

NIEBUHR'S LECTURES
ON
ROMAN HISTORY

TRANSLATED FROM THE EDITION OF DR. M. ISLER,
BY H. M. CHEPMELL, M.A., AND F. DEMMLER, PH.D.



IN THREE VOLUMES.—VOL. I.

London:
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PREFACE.

It has been the object of the translators of this work, to give a faithful version of the original into English without any additions of their own. In so doing, they follow in the steps of the German editor, Dr. Isler, who likewise confined himself to “the purely philological task of producing a genuine text.”

Niebuhr twice delivered a course of lectures on Roman History at Bonn,—the first in the winter term of 1826-27, and the second in the winter of 1828-29, and in the following summer. In the latter of these, he went down to the fall of the Western Empire, whereas the course of 1826 was broken off at the times of Sylla, owing to his having entered rather fully into critical disquisitions.

The form in which these Lectures are here given, is that of the later course. Everything, however, that was important or interesting in the earlier series, has been inserted. Dr. Isler moreover assures us, that in his compilation, not a thought, and indeed hardly a word is to be found, which Niebuhr had not really spoken. As Niebuhr lectured quite extemporaneously, the only sources for this work are the notes taken by his hearers, several of which have been collated to ensure correctness.

Although, from the nature of things, the result cannot be looked upon as a finished and elaborate history, yet, no one who reads it can fail to be struck with its great value, even for those who are acquainted with Niebuhr's other writings; for as Dr. Isler remarks, there are many things set forth in these Lectures more clearly, more precisely, and more at length than in the greater work. Of this, we may find examples in the introduction on the sources of Roman History, and in the account of the Saturnian verse. They also give us the last opinions of Niebuhr. The first volume of his Roman History dates most of it from the year 1826, and the additions in the third edition from 1827; but a mind like his was always active, and he went on with his investigations, even when all the leading points were settled. In several instances, fragments of ancient authors which had newly come to light, have led him to modify his views. This is particularly the case with

that part of the Roman History treated in his third volume, which had been originally arranged for the press in 1812, and therefore would, if he had been spared to revise it, have undergone many qualifications.

ROYAL MILITARY COLLEGE, SANDHURST.

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Battle near Heraclea,	<u>558</u>
Pyrrhus tries to march against Rome,	<u>560</u>
Pyrrhus sends Cineas to Rome,	<u>561</u>
Pyrrhus returns to Tarentum,	<u>562</u>
Roman embassy to Pyrrhus,	<u>563</u>
Battle near Asculum,	<u>564</u>
Pyrrhus goes to Sicily,	<u>566</u>
Siege of Lilybæum. Pyrrhus returns to Italy,	<u>567</u>
Battle near Taurasia (Beneventum),	<u>568</u>
Pyrrhus' death. Peace with Samnium,	<u>569</u>
Tarentum falls into the hands of the Romans,	<u>570</u>
Subjection of Italy,	<u>571</u>
Campanian legion at Rhegium,	<u>573</u>
Earlier history of Sicily,	<u>574</u>
Mamertines in Messana. Hiero,	<u>577</u>

Hiero and the Carthaginians defeated by the Romans,

[581](#)

Peace with Hiero,

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LECTURES ON ROMAN HISTORY.

INTRODUCTION.

Ancient history divides itself into the history anterior to the rule of Rome, which has many centres, and into the history of Roman rule, wherein there is but one centre, Rome, the action of which extends on all sides. Other nations, like the Egyptians, have acted by their intellectual power upon the foreigner, but were deficient in mind; others, as the barbarian nations of the Celts and other races, became important merely by the mightiness of their conquests; Greece, by her mind; but Rome combines every thing, the greatest political perfection, might, and mind. Here is an influence which has become still more lasting and ineffaceable than that of Greece: it continues to the latest centuries, even to this very day. The Roman history has to exhibit the greatest characters, achievements, and events; it is the development of the whole life of a people, the like of which is unknown in all the rest of history. Of the history of the East, as far as regards the stages of its progress, we know nothing whatever. The Egyptians we find already in castes, consequently in fixed forms, in which they abide throughout every century; they exist unalterable, of which their mummies are the emblem, and all the changes which we remark in them are a mere dying away. The Romans we see almost growing under our eyes; indeed, they also are early moulded into fixed forms, but their origin is no riddle to us. The other nations are as buds still folded up in their petals; they grow, but before they expand, they die away or only open imperfectly, as it also ever occurs with individuals, that among many thousands few only are not checked in their development. In modern history the English alone have had a career like that of the Romans. In a cosmopolitical point of view therefore, these two histories must ever remain the most important ones.

Here now the whole history of the twelve ages, which in the legend of Romulus have also been foretold as the duration of Rome, is to be set forth;—in the beginning the history of the nation and the town, then that of the empire and the aggregate of people who bore the name of Romans.

But first of all, let us make ourselves acquainted with the sources.

SOURCES OF ROMAN HISTORY.

Are the sources of the most ancient Roman history, before ever an historical literature had arisen in Rome, worthy of credit? In former times a simple honest belief was prevalent concerning this point; it would have been considered as audacity and as a crime, if any one had doubted of the Roman history, especially that which Livy drew and set forth from the sources at his command. It is now quite incomprehensible to us to what a degree very ingenious men, like Scaliger, who had far more knowledge than we, received without any hesitation the details of ancient history, deeming, for instance, the lists of the kings of Sicyon to be quite as authentic as those of the kings of France. This state of literary innocence lasted as long as all education was purely philological, and derived from books only. In the seventeenth century, when in England, France, and Germany, a new era commenced for the civilization of mankind, many began to be startled at the contradictions which some individuals might have remarked before them, but had imposed on themselves silence upon the subject,—as for instance the Roman Valla, the discovery of whose grave is one of the most pleasing remembrances of my life, and Glareanus, who thereby irritated the ingenious Sigonius, a man, however, who had not the least idea of historical criticism. The Italians were for some time a-head of the rest of Europe, then the French followed, and shortly afterwards, the Germans. As early as towards the end of the sixteenth century lived Pighius, a native of the province of Cleves, who had original ideas with regard to historical criticism, but who has commenced much and finished nothing. Then followed Perizonius' able criticism, and then the sceptical works of Bayle and Beaufort. It was not possible in the eighteenth century to receive the Roman history with the same credulity as in the sixteenth, since the sphere of the human mind had been so much enlarged during the seventeenth. People wanted to comprehend what had happened, and how it had come to pass, and so they could no more believe in the Roman history as they found it. O that Perizonius had gone on with the work which he had begun, and had formed the conviction that he must arrive at an historical result, without which belief no man can advance and succeed;—or, that others had

proceeded in his track! But he was wanting in self-confidence, and others set themselves to the work with less comprehensive powers. Beaufort, a clever man, but whose studies had not been sufficiently comprehensive, forms at this time an epoch; but his literary and personal imperfections caused him to root up the tares with the wheat. Already before had Pouilly, in the 'Mémoires de l'Académie des Inscriptions et des belles lettres,' set forth the same opinions, but quite crudely. It was the time of that extreme scepticism which Bayle had given birth to, and Freret had confirmed. Beaufort did not feel the necessity of a good groundwork of scientific knowledge; nevertheless he held a prominent place in his time, and exercised a marked influence upon Hooke and Fergusson, who were not capable of any deep inquiry. Yet it is remarkable that those points which Beaufort had left untouched caused scruple to no one. People made difficulties about the seven kings, the chronology, and other matters of the kind; but they would believe without knowing why, and repudiate what had a very good foundation. Such a state of things must be followed by a regular sound criticism, or there is an end of science.

Properly speaking, Livy himself to a great extent is liable to the censure of having made the earlier Roman history fall into disrepute; not merely because he sets forth much contradictory matter, but because he says himself in the beginning of the sixth book, that a new era commenced with the burning of the city by the Gauls, in which the records of the earlier times had been destroyed. This is only half true.

That in the earliest times the use of letters was already known among the Romans, and that authors might therefore have existed dating from the remotest periods, cannot be gainsayed, as we still have coins of Sybaris, the destruction of which is generally set down as having taken place four years before the expulsion of the kings. If the Greeks in Italy had letters, why should not the Romans have had them likewise? A common and easy use of them is not to be thought of previous to the introduction of the Egyptian papyrus;^[1] but that writing was used in Rome very early is shown by the census, which required very extensive book-keeping. It is beyond a doubt, that before the burning by the Gauls a written law existed, the composition of which is attributed to L. Papirius under Tarquinius Superbus (according to others, Tarquinius Priscus). When Livy therefore says, *per illa tempora litteræ raræ erant*, this is only partly correct. Authors there were at that time

none at all (by which appellation I designate those who write with a view of being read by a public). And when moreover he says of written literature, (*litteræ*), *una custodia fidelis memoriæ rerum gestarum*, he goes too far. We have parallels in the German and other histories. Among the Greeks, Polybius mentions the Chronographies, and Toichographies, Annals especially in the temples. Corresponding to these are our *Annales Bertiniani*, *Fuldenses*, and others, which commence from the seventh century, and go on through the period of the Carlovingians. They are composed of unconnected lines under the heads of the years of the different reigns, and at the side of the yearly dates the events are marked in the briefest manner, for instance, *Saxones debellati*. These annals also were mostly kept in churches; besides the names of the emperors, those of the bishops are usually found. After the chronicles of the empire, those of the towns arose. Thus it was among nations who in every respect were most different. Among ourselves also, family events are even now still frequently noted in our Bibles. Such annotations are most ancient, and it may safely be supposed that they existed in Rome likewise in very great numbers. When magistrates were introduced who changed every year, it became necessary to note down their names for the *Fasti*; for no document had legal validity unless the accurate date was affixed to it. In these *Fasti* they had without doubt an era *a regibus exactis*, the consuls being at the same time registered, and the principal events put down.

To these annals belong the *Annales Maximi*, more rarely called *Annales Pontificum*, an authentic and more comprehensive arrangement of annals, the object of which was to record every thing that was to be preserved for public memory. Cicero, *de Oratore* II, 12. and Servius ad Virg. *Æn.* I, 373, state that the chief pontiff wrote the most important events on an album which was exhibited at his residence, where probably many may have copied it, as we know of Cn. Flavius who exhibited a copy of the *Fasti* in the Forum. An album is a whitewashed tablet (a proof of the difficulty of the material), on this the transcript of the public documents was painted, as for example, the *Edictum Prætorium* and others. Now Cicero states, that the noting down of the annals had been made *ab initio rerum Romanarum* to the pontificate of P. Mucius; from which people wanted to conclude that the Romans in his time had had authentic annals which had gone on without interruption from the first beginning of the state. But this is by no means what Cicero says, he merely states that the noting down of events had been

a usage observed from the first; that the annals had been preserved entire in his time, he does not mention any where. Vopiscus mentions, that they had been kept *ad excessu Romuli*, beginning therefore with Numa; but this is only the opinion of an illiterate man. The pontificate was referred to Numa, and so was therefore also the institution of the annals.

We may say with certainty, that the annals of the pontiffs for the earlier times were afterwards restored, although the belief in their genuineness might be generally received. The pontiffs were conservators of the law and of the chronology, and of course therefore also of history. But even if the original annals had only existed as far back as the expulsion of the kings, those most irreconcilable contradictions which we now find would have been impossible. Would not Fabius and others have found them out? Livy himself says, that the old records of history had perished in the Gallic conflagration. This may particularly refer to the *Annales Pontificum*; at that time not even the twelve tables were rescued, now could these *Alba* have been saved? The fact alone, that they were not found farther back induced Livy to make conclusions which were too sweeping. The chief pontiff lived below in the town, so that although the *Annales Maximi* were destroyed, yet many other annals (of private persons living perhaps in the Capitol, and others) might have been preserved. Thus in China, the old books were destroyed by the command of the Emperor, and those now preserved were restored from the memory of aged men, and the supplements of the astronomers with regard to the eclipses of the sun and the moon. And in the same manner, the Sibylline books, after the destruction in Sylla's time, were made up again by collation from all quarters. According to a Jewish tradition, this applies also to some books of Holy Scripture which were restored after the destruction of the temple. In this manner we may also explain what is recorded concerning the fabled infinite antiquity of the Egyptians. The eighteenth dynasty of Manetho is historical. Before it the Hyksos were reigning, under whom old records are stated to have been lost. And yet we are told, that before this, seventeen more dynasties had existed, reference being made to such lost annals. Before Champollion's invention of the reading of hieroglyphics, one wanted to repudiate as unhistorical every thing down to the time of Psammitichus, whereas we now know, that the age of the Hyksos forms the boundary of real history, and that every thing previous to it has been supplied afterwards. In like manner, the *Annales Maximi* may have been restored for the time anterior to the burning

by the Gauls. A striking proof that the authentic *Annales Pontificum* were not preserved beyond the destruction of the city by the Gauls is afforded by the passage in Cic. R. P. I, 16, where the eclipse of the sun, which took place fifteen years before the Gallic conflagration, is spoken of. This eclipse, which was seen at Gades, was mentioned in the *Annales Pontificum* as an extraordinary phenomenon, and put in connexion with the passage of the Gauls over the Alps which took place nearly about the same time. Now Cicero states, that from this eclipse all the preceding ones had been calculated backwards up to the time when Romulus was snatched away from the earth.

Servius states of these annals that they had been divided into eighty books. It is to be remarked, however, that this passage of the Scholion is not found in the Codex Fuldensis, but only in several other manuscripts, the trustworthiness of which is indeed rather doubtful; yet it is not to be understood, how any one could have told stories precisely on this subject. Cicero, in the introduction to the books *De legibus*, says moreover concerning the *Annales Maximi, quibus nihil potest esse jucundius*, which is quite enigmatical. The manuscripts of the books *De legibus* have all of them in the fifteenth century, from the year 1420, been copied from one single manuscript. Ursinus conjectures instead of *jucundius*, *jejunius*, which indeed has much in its favour; others propose *incomtius*. A first-rate author, however, may sometimes easily venture upon an expression which puzzles and distracts us; and thus Cicero may have written in this passage *jucundius*, merely in order to designate the enjoyment which historical records of such high antiquity afford, owing to their credibility. At least we should not be justified in altering the word.

We may form a distinct idea of these annals from the passages which Livy has quoted from them at the end of the tenth book, especially where he mentions the election of the magistrates, and in the third and fourth decades. As it seems, Livy's copy only began with the year 460 A. U. C., otherwise he would have certainly made an earlier use of it.

One point is still to be mentioned, Diomedes (III, 480) states, that the *res gestæ populi Romani* are (in the present tense) noted down by the pontiffs and scribes. Now authors like him are to be taken *cum grano salis*, but he is of some weight in so far as he had no desire to deceive, and he might have known it after all. When therefore Cicero states that the *Annales*

had been written only as far down as to P. Mucius, a distinction must perhaps be made. In the times of P. Mucius, it may have been deemed superfluous to continue them any longer, the later *acta diurna* may about this time have commenced,—a sort of town gazette, which also contained the acts of the senate. The farther development of these *acta diurna* (afterwards *diurnale*, *journal*) together with the rise of literature is probably the cause of the *Annales Pontificum* having ceased. Yet similar annals may have been continued privately. The infinitely important fragment of a chronicle of Rome, by a monk of the name of Benedict, who belonged to the monastery of Soracte, discovered by Pertz,^[2] contains at the time of Pope John the Eighth, annotations made quite in the old language of the annals concerning the *Ostenta*, which at that time were seen in Rome and the environs; that the lightning had struck the city wall; that there had been a shower of stones; and such like entries. In many monasteries the Annals of St. Jerome were continued. Every year the most remarkable events were inserted, as when an Emperor ascended the throne, &c. In this manner the expression of Diomedes may be justified.

These different annals were the only books of history from the earliest times which have been preserved among the Romans. All others mentioned by Livy, *libri magistratum*, *libri legum*, &c. are Fasti, of which there were certainly a great number dating from the commencement of the Republic, the like of which we have still in the *Fasti Capitolini* and *Triumphales*, incomplete, even frequently falsified. These Fasti, which are still to be seen on the Capitol, where Augustus set them up, and which originated with Varro or Atticus,—the so-called Capitoline Fasti which formerly stood in the Curia Julia—contained only at the side of some detached yearly dates some memorable events. The Triumphal Fasti, which stood in the same edifice in a different place, had certainly existed from very early times. Every triumph was marked down in them, and very likely with more detail than was done in those which are preserved. The statements of Livy concerning the booty which had been made, are undoubtedly always taken from these Triumphal Fasti; but it is very remarkable that they are first found the year after that in which his extracts from the *Annales Pontificum* commence.

Another source of information concerning the earliest Roman history are the *Commentarii Pontificum*. They were a collection of law cases from

the old public and ceremonial law, together with the decisions of the pontiffs in cases which came under their jurisdiction, similar to the decisions of the lawyers in the pandects. This mass was the groundwork from which those who studied the laws deduced the general principles. The Sunnah, which is the Mahomedan code of law, and the Talmud are quite corresponding to it in form. An abstract principle is never laid down: there is nothing but an enumeration of decisions in particular cases. We find the same in the Pentateuch in the discussions concerning the inheritance of females. With reference to the case of *judicium perduellionis*, it is stated how Horatius had slain his sister. But the groundwork of those books is nevertheless made at a different time from that which is given out in it. What we know must date from a later time, indeed still a very remote one for us, anterior to the rise of Roman historical writing, yet not so old as they themselves would have us believe.

The same was the case with the *Libri Pontificum* and *Libri Augurales*. From them the historians quote the declarations of war in that definite formula which Ancus is said first to have introduced. The forms of surrender, the formula *fœderis ferendi*, the appeals to the people, were according to Cicero likewise entered in them. From these books history has been enriched as much as if they had contained authentic historical facts.

Another source of the annalists were the *laudationes funebres*, spoken of by Livy and by Cicero in Brutus, from which latter it comes out, that very old specimens, dating as far back as from the times before the war of Pyrrhus, were in existence. They were kept in the Atrium, near the images of the ancestors (*imagines*). They were speeches in commemoration of a deceased person, delivered in the forum by the nearest kinsman, at first quite simple and unpretending. According to Cicero, they always returned to the family and the ancestors, that is to say, the descent of the deceased was traced from the first fathers of the race. But Cicero and Livy both complain of the falsifications which crept from these panegyrics into Roman history. The Romans, in fact, notwithstanding all the veracity which they otherwise possessed, had an extraordinary vanity with regard to political and family relations, deeming themselves bound in duty to extol their state and their families. For this reason forged victories and triumphs are contained in those *laudationes*.

This was the material when the first historians arose. They had besides, it is true, many laws and other documentary records; but these were a buried treasure noticed by few only. On the whole, the Romans were too careless and negligent to make use of such sources. A remarkable example of it is afforded by Livy, who, among other things, contents himself with stating, that he had heard from Augustus that there existed a certain inscription in the temple of Jupiter Feretrius,^[3] without ever thinking of looking himself at it in the Capitol, where he certainly must have been often enough.

The Annals, many of which, as may have been seen, were preserved in later times, form one source of history, of which it cannot be stated at all how early it could have commenced. But this is only the skeleton of history. Besides these there is a living traditional history. It consists of narrations which pass from the father to the children, and may be very circumstantial;—others are propagated partly by word of mouth, partly in writing, and these are the poetical traditions. Here is a field on which it will never be possible to agree, whilst looking only to one side of the question. I am convinced that great part of the early Roman history has been handed down in songs; that is to say, all that has life in it, all that has pith and meaning, and coherence. This is to me as evident a truth as any in the world. To these belongs the history of Romulus, that of Tarquinius Priscus, down to the battle near the lake Regillus, and others. The passages in Varro, and a fragment of Cato in Cicero, purporting that the Romans sang the achievements of the ancients to the flute, speak distinctly to the fact. Three inscriptions on the tombs of the Scipios are poetical, as I have shown in my Roman history. Such is moreover the story of Coriolanus, of Curtius, and others. Besides this there are without any doubt preserved in Livy detached lines from the lay of Tullius Hostilius and the Horatii. With regard to others we have not indeed any thing to bring forward, but we may here appeal to the general experience of mankind.^[4]

It matters not in the least, whether the old legends were still in existence at the time when the historians wrote their works, or whether they were in verse or in prose. We may find a parallel illustration in our own (German) literature, and refer to the manifold changes which our epic poems had to undergo. The song of Hildebrand and Hadubrand, which Eckard has edited, and W. Grimm has commented upon, is of much more ancient date than the

times of Charles the Great; in the tenth century there existed a Latin version of it. We are acquainted with the 'Nibelungen' only in that form in which they have been composed in the thirteenth century. How many phases may there not have occurred in the interval between? Then we have the much tamer version of the same subject in the 'Book of Heroes;' and at last that in prose of 'Siegfried,' which for some centuries has been in an ever renewed form in the hands of the people. Now if the 'Nibelungen' and all the information concerning them had been lost, and some ingenious critic recognised in 'Siegfried' the old poem, it would be exactly the same case as in the Roman history. The quotation of some verses from the 'Nibelungen' in Aventinus,^[5] would then stand quite on the same footing as the three verses cited by Livy in the story of the Horatii. Such lays go for a long time side by side with history. Saxo Grammaticus has tried to change the Danish Saga into history, and on that account he cannot be brought into agreement with the statements of the Chronicles. Just so is it in Grecian history. Rhianus, in his poem on Messene, which he undoubtedly composed from old popular songs, is utterly at variance with the list of Spartan kings which Pausanias found in the old records, and with the facts which are mentioned in the contemporary strains of Tyrtæus. Then comes the time long before a literature exists, when men who have a true vocation write history; as, for instance, the author of the excellent Chronicle of Cologne. In this chronicle, which partly dates from the fifteenth century, and which might be made beautifully complete from the archives of Cologne, we find the poem of Gotfrid Hagen on the feud of the bishops, paraphrased in prose, yet with some traces of the rhyme remaining. (Here then is another example of the continual alteration of the form of old poems.) Yet if we compare this with what is stated by that very chronicle on the same subject, perhaps from church books, they can by no means be reconciled with each other. The same thing happened in the Russian Chronicles, which were continued from the time of Nestor, a monk of the eleventh century, down to a much later period, as I myself can testify from a copy in my own possession. The authors of these, as well as the writer of the Chronicle of Cologne, did not live in a literary age, and their works therefore vanished, as they did not write for the public at large. Similar chronicles had without doubt arisen in Rome also before the literature of history commenced; that is to say, before authors wrote for the Greek public, as Fabius, M. Cincius, C. Acilius did. History as a branch of literature only began when the Romans wished to

make themselves known to the Greeks. Those who were not Greeks were everywhere keenly alive to the contempt which they had to suffer from the Greeks.

Cicero and Livy say that by the orations in praise of the dead history had been made fabulous. There can be no doubt of this; yet, for all that, those discourses were not a mere tissue of fables, but they were mostly documents of a very early period. This ancient time may be dated from the expulsion of the kings, that is to say, twenty-eight years before the passage of Xerxes over the Hellespont. How many literary documents of the Greeks have we not of that date? Thus in the case of the seven consulships of the Fabii, as they are told in Livy and Dionysius, in the case of the battle with the Veientes, of the story of Q. Fabius Maximus (in the last book of the first decade of Livy), the relations seem to be taken from such and similar documents; unless we choose to suppose that these stories had been fabricated with such astonishing accuracy of detail. It even seems that Fabius Maximus himself has written his own history, that at least a number of records were at hand in the accomplished Fabian family, and were carefully preserved. Of this intellectual cultivation among the Fabii, we have many proofs before us. C. Fabius Pictor, a hundred years before the war of Hannibal, created a work of art of the highest beauty; the historian wrote in Greek without being ever reproached with barbarisms in his style.

In composing history, men consulted the annals of the pontiffs, wrote out in good faith what was found in them, and put in what they found in the laws wherever they thought it would best suit, little caring whether it closely tallied or not. These different pieces were probably joined together with a greater accuracy than was done in the Chronicle of Cologne. Few only, Fabius possibly, or what is more likely, Cincius Alimentus and M. Licinius Macer first made use also of the documents in the Capitol and the old law books. The brazen law tables may have indeed been taken away by the Gauls, but there still existed other sources of law. The whole of the earlier constitution seems to have been described in the *Commentarii Pontificum* in law cases, from which Gracchanus took it. The groundwork of these notices is extremely worthy of credit. The march and progress of the constitution from the establishment of the Republic may be completely traced in it, with an accuracy much greater than has hitherto been possible with regard to considerable portions of medieval history.

One ought to take care not to consider the Romans previous to the time when they learned from the Greeks as barbarians. A people which in the age of the kings built those wonderful sewers; which a hundred years before the Punic wars produced the she-wolf of the Capitol; which possessed a painter like C. Fabius Pictor; which made a sarcophagus like that of Scipio Barbatus, takes certainly a high stand in mental cultivation. And such we must deem their written literature to have been, not composed in Greek forms, but endowed with beauties peculiarly its own. The grammarians knew still the moral maxims of Appius Claudius Cæcus, Cicero still read a speech of the same person against Pyrrhus. Where such writings were kept, many others also must have still existed.

The earliest work which we know of as a contemporary history is the first Punic war of Cn. Nævius, who had himself served in that contest. If concerning this greatest of all ancient wars, we had more positive accounts, such as we possess of the second Punic war, it would be better appreciated. That Nævius wrote this war in the Saturnian rhythm, that he wrote it as a poem, is characteristic of the age, a proof that ancient history was at that time familiar to the Romans in a poetical form. So it was in the oldest historical literature of the Germans with the feud of the bishops by Gotfrid Hagen, and with the poetical history of the conquest of Livonia by the Teutonic knights (which is as yet unprinted); for before the thirteenth century at least no history was written in German prose. The year in which Nævius first brought out a play on the stage is undecided. It was somewhere about the year 520; two passages in Gellius concerning it are contradictory. [6] Whether that piece, however, was the first that he had written, or whether he composed his great work yet earlier, is not mentioned by any one. Nævius was a Campanian, and it may safely be presumed that at Capua there was already a greater movement in literature than there was in Rome at the same time. The poem consisted of seven books. According to Suetonius, it was originally written *continente sermone*, but was divided by C. Octavius Lampadius into books, and probably also into single verses. This poem, to judge from the fragments still extant of it, was by no means deficient in poetical merit. Perhaps Servius had not read Nævius at all; he only seems to have known from older commentators that Virgil had borrowed from him the argument of his first book. Nævius treated in it of the destruction of Troy, of Dido, and Æneas. It is very natural to surmise that he also derived already the rivalry between Rome and Carthage from

the faithlessness of Æneas.^[7] Yet it was hardly an elaborate Roman history. It is known that Nævius by some libellous verses against the Metelli was brought into great troubles, and that he is said to have been thrown into prison. But it is enigmatical how a Roman citizen could have been thrown into prison for the publication of a *liber famosus*. He is said to have written two plays, whilst there. This is scarcely to be understood, when one has seen those frightful dungeons at Rome, into which no ray of light ever finds its way, and which the ancients themselves declared to be the Gates of Death. The facts may have happened in the following manner. Nævius was a Campanian, and the Campanians lost in the war of Hannibal all the benefits of their rights as citizens. Nævius, who was now friendless and helpless, must as a Campanian have been *noxæ deditus* to the Metelli, and have been confined, not in the public prison, but in the house of the Metelli, in a dungeon such as the Romans frequently had in their own houses for the confinement of debtors. Just as incorrect is the statement in the Chronicon of St. Jerome, that Nævius had died in the year of Cato's era, 547 (according to Varro 549), at Utica; for as Utica was attached during the war of Hannibal to the party of Carthage, he would even as a *transfuga* have been very badly received there. According to Cicero, Varro placed the death of Nævius at a later period than others did. There existed therefore at that time already some uncertainty about it.

After the second Punic war, there arose several authors who wrote in the Greek language. After the Macedonian period, the Greeks began in their histories to direct their attention to the remoter nations also. This encouraged able men among such nations, who understood Greek, to write the history of their people, in order to be read by the Greeks. In Southern Italy, the Greek language had been long introduced. To maintain that the Lucanian Ocellus had really written the works attributed to him might scarcely be advisable; but some reason must nevertheless have existed for placing the authorship of them to his account, and Aristoxenus, to whom all the statements which are extant concerning this point are to be referred, was aware that these people wrote in Greek. In Campania, Apulia, and elsewhere, the native towns had Greek inscriptions and coins. The Alexandrine grammarians read Oscan histories of Italy; but these books were by no means written in the Oscan, but in the Greek language. With regard to the Roman history, there are particularly to be mentioned Q.

Fabius Pictor,^[8] and Cincius Alimentus, both of them very high-born Romans. The former, being of patrician family, had been sent as ambassador to Delphi. He was great-grandson of that C. Fabius Pictor, who painted the temple of Salus, a work of art which was preserved until the times of the emperor Claudius, and was most probably a battle piece representing the victory of Consul Junius over the Æqui. To him already we must give credit for having been familiar with the Greek language and manners, as the practice of painting, according to genuine Roman views, would not have been seemly for a patrician. His son was ambassador to Alexandria, and consequently likewise acquainted with Greek. The object of the historian Fabius was without doubt to combat the odious and unfair notions of the Greeks respecting the Romans. He therefore wrote the Roman history from the beginning,—whether from the arrival of Æneas we know not, but most likely from the *primordia urbis*. He described, as Dionysius states, the earlier times κεφαλαιωδῶς, those which were nearer to his own more circumstantially, a feature which he has in common with almost all the Roman historians except Cn. Gellius and Valerius Antias, who do just the contrary. Cato alone kept an even balance. The real subject of Fabius was the war of Hannibal; but his account of the first Punic war was also detailed. From Polybius we see, that he endeavoured in every possible way to justify his own people; that writer even taxes him with partiality for the Romans. The first history of the first Punic war had been written by Philinus, a native of Agrigentum, who was more highly exasperated against the Romans, on account of the destruction of the town of his birth. In direct opposition to him, Fabius in his writings now perhaps exaggerated in favour of the other side. Probably he wrote as far down as to the end of the second Punic war, although we have no evidence in proof, as most of the quotations from him refer to the very earliest times of Roman history. The title of his book we know not; nor do we find it mentioned anywhere, in spite of the frequent quotations, into how many books it was divided. The work was held in exceedingly high estimation, he is very often quoted by Livy and likewise by Polybius, and Diodorus Siculus; but surely we have many things from him where we do not read his name mentioned. It is evident and certain that Diodorus took Ol. 8, 1. to be the date of the building of Rome, just as Fabius did. Now Diodorus in the several years contains notices concerning Roman history, which are very much at variance with the statements of Livy, but which, although indeed very

scanty, are by no means to be despised. These he can only have taken from Fabius or Timæus; but the former is more likely on account of the accordance just alluded to. Appian, on the occasion of the embassy to Delphi, mentions Fabius, ὃς τόνδε τὸν πόλεμον ξυνέγραψε; and he too certainly has borrowed from him. Appian was very little conversant with Latin, and had not the least research; where Dionysius of Halicarnassus went before him he closely followed his track, just as Zonaras did with regard to Dio Cassius. Fabius Pictor had likewise written in Greek, (Dion. Hal. V proœm.), so that Appian could read him. Now he also agrees in a remarkable manner with Zonaras, who follows in the wake of Dio Cassius, whose keen glance recognised Fabius as the best authority. We owe therefore to Fabius an immense debt of gratitude for the most precious and invaluable information. And certainly the careful language used concerning the earlier constitution by Dio Cassius, who consistently calls *populus* δῆμος, and *plebs* ὄμιλος or πλῆθος, is derived from Fabius. Thus Fabius not only is the father of Roman history, but in him also is found the highest and most perfect knowledge of the ancient constitution. Censorious people have railed at the idea that we in the nineteenth century should pretend to understand the Roman constitution better than Livy and Dionysius did; yet we do not presume to understand it differently from the consular Dio Cassius, and Q. Fabius from whom he has borrowed.

With reference to Fabius, there is great and insurmountable difficulty belonging to literary history in the manner in which Cicero de Divinat. I, 21 speaks of him, where he mentions *somnium Æneæ ex Numerii Fabii Pictoris græcis annalibus*. This Numerius Fabius Pictor reappears in no other place. The prænomen of Quintus Fabius Pictor is a point quite settled, as it occurs in too many authors; but at that period several wrote in Greek, so that there may possibly have been also a Numerius Fabius Pictor. Cn. Aufidius, whom Cicero speaks of, is likewise quite unknown. As it happens, the books *De Divinatione* have only come down to us in bad manuscripts, which are all derived from one single copy now lost, yet we should certainly not be warranted in supposing this prænomen in particular to be falsified. Yet in his treatise De Orat. II, 12 and in the beginning of the first book De Legibus, Cicero speaks of a certain Pictor as of a Latin author of Annals, and places him between Cato and Piso. This person is also quoted by no one else; but Gellius V, 4, cites *Annales Fabii* without any cognomen. A writer of the name of Pictor,^[9] *de Jure Pontificio*, is met with in

Macrobius; but these books are foreign to history. Perhaps Cicero made a mistake. There was another annalist, Fabius Maximus Servilianus, who was an author of note according to Dionysius, who mentions him after Cato. Servius also cites him. He lived just in the period between Cato and Piso. His book was entitled *Q. Fabii Annales*. Cicero had an extreme dislike to the old annalists, he had in all probability hardly read any besides Cato, at least not since his youth. Now in all likelihood he calls that Fabius erroneously Pictor. In dictating especially, such a mistake may occur. That Cicero was little versed in Roman history is proved by the delusion to which he recurs more than once, that Decius the grandson had sacrificed himself like his grandfather and his father.^[10] Cicero is particularly incorrect sometimes with regard to the prænomens, as for instance, contrary to every other writer, he calls the father of Virginia Decimus Virginius. The prænomen Numerius was moreover very common in the Fabian family, so that it might have been more familiar to Cicero. Lastly, Diodorus mentions the same dream of Æneas, which Cicero treats of in other places, as being taken from Q. Fabius (Diod. fragm. ap. Syncell.). In Korte's edition of Sallust, the fragments of Fabius Pictor are thrown together with those of Fabius Servilianus.

Contemporary with Fabius was the other Roman, of whom we know from Dionysius of Halicarnassus, that he wrote the Roman history in Greek; and it is a very instructive fact, in forming an idea of these accounts, that without Dionysius we should not have known that Cincius had written the Roman history in Greek. From Livy we should only have been able to gather that he had written about the war of Hannibal. He was a senator and prætor in the second Punic war, and was made a prisoner in the beginning of the struggle. We see on this occasion, that he must have been a very distinguished personage; as the Roman laws were very strict in that war against those who allowed themselves to be made prisoners, and he nevertheless attained to high and honourable offices. He relates, that Hannibal had entered into conversation with him, and given him an account of his passage over the Alps; a proof as well of his personal consequence, as of the circumstance that he could speak Greek, since Hannibal in the beginning of the war did not yet speak Latin. He is called by Livy *Maximus Auctor*, and his statement cited by the latter as decisive. His works *De Potestate Consulum*, and on the Roman Calendar, he wrote in Latin; as to his identity there cannot be the least doubt. From Dionysius we see that he

had peculiar views with regard to Roman antiquities. He made researches concerning the monuments of ancient times, even in Etruria, thereby forming an exception to the most of the Romans. What Dionysius has taken from him, cannot be known for certain. A fragment of his in Festus, throws especial light on the relations between the Romans and Latins.

Likewise in Greek, only a little later (after 570), C. Acilius writes Roman annals down to the war with Antiochus. He is quoted for the Myth of Romulus; and by Dionysius with reference to the restoration of the sewers. His work was translated into Latin by a certain Claudius; he too seems to have been a very estimable writer.

Some more Romans afterwards wrote in Greek; it is, however, uncertain, whether the whole of the history, or merely memoirs of their time. There are mentioned A. Postumius Albinus, a contemporary of the elder Cato (about 600); and Cn. Aufidius, a contemporary of Cicero in his youth.

It was soon afterwards, towards the beginning of the war with Perseus, that Q. Ennius composed his Annals. The denomination of annals is a strange one, quite ill suited to a poem. Ennius was by far too poetical to write down history year by year. His poem was the first real imitation of the Greek model: the earlier ones of Nævius were still in the old lyric style. We are able to gain a general view of the work in the fragments; if the older quotations were only somewhat more trustworthy in the numbers, the whole of its argument might be restored. So much is certain, that the oldest times of the Trojan arrival and of the kings were contained in the three first books; and the quotation may also be pretty sure, that the war of Pyrrhus had been the subject of the fifth book.^[11] He occupied himself little with the domestic struggles; and would probably speak of the wars only, according to the notions of epic poetry which were then entertained. The 225 years between were therefore contained in one book; the wars against the Samnites perhaps only in a slight sketch. The first Punic war, as Cicero tells us, he altogether left out, because Nævius had sung it; that of Hannibal he treated with the utmost prolixity, so that it must have begun already in the seventh book, and have been still continuing in the twelfth. In the thirteenth book, the subject was the war with Antiochus; in the fifteenth, the Istrian; so that the last six books only extended over twenty-four years. There were in all eighteen books. Of Scipio, and of M. Fulvius Nobilior, he sung the

praises with peculiar richness of detail. The latter he accompanies into the Ætolian war. He was born in 513, according to Cato's chronology, and died 583, continuing his poem almost to the time of his death.

The sources of Ennius for the earliest times were the *Annales Maximi*; for the times of the kings, the old lays, and the *Commentarii Pontificum*; in the middle times, Timæus, Hieronymus, Fabius; in the last years, he was a cotemporary. He is to be blamed for his vanity, since he placed himself on a level with Homer; and for his bad hexameters. One cannot but be annoyed at his speaking in a disparaging tone of the old poems. On the other hand, however, there are fragments extant of his, which bespeak a true poetical spirit. He had some similarity to Klopstock, who like him despised the ancient forms, without knowing the Greek ones sufficiently to distinguish himself in them. It may be presumed that it was he from whom Livy took his noble description of the time of the kings.

As to the assertion, that the division of his books had originated with Q. Vargunteius, a positive denial may be given to it. Suetonius only states, that Vargunteius had critically reviewed the books of Ennius, as Lampadio did Nævius.

The fragments of Ennius have been collected by several; with much minuteness by Hieronymus Columna, at the end of the sixteenth century, accompanied by a commentary which, although prolix, is very instructive. Some verses in it are taken from Claudius Sacerdos, who is still lying in manuscript at Vienna.^[12] Soon after him, a Netherlander, Paul Merula, edited them anew in a different order, and with many additions. Among the latter there are some verses which Columna had overlooked. But Merula says that he had a great number of verses from L. Calpurnius Piso *De Continentia Veterum Poetarum*, in which the older poets were compared with those of his own time (that of Pliny), and the latter also among themselves; that the manuscript was in the library of S. Victor in Paris; that he was however afraid of its not being safe there. This is altogether strange. Another statement is that the manuscript had been bound together with a copy of Lucan, and had afterwards been cut out. Indeed such a copy of Lucan exists still in Paris, where Bekker has seen it; yet this proves very little after all. It is possible that in this Merula has committed a fraud, which is quite in the manner of his time. The detached verses which he quotes from Nævius and Ennius, are to my belief suspicious without exception.

Those from Nævius are decidedly spurious; for in their case, he was ignorant of the rhythm. The verses of Ennius are hexameters; but they nowhere bear the stamp of genuineness, like his other fragments. Why has not Merula copied and edited that MS., if indeed he entertained any misgivings that it might be purloined?

Not long after the time of Ennius, whom we rightly reckon among the Roman historians, Roman history began to be written in Latin prose; and the first work of this kind was the most important which has ever been composed on the history of ancient Italy, viz. the *Origines* of the elder Cato. They show that Cato had indeed found out the only right way of treating Roman history. He wrote not the history of the Romans only, but also that of Italy. As he described the widening the Roman sway in Italy, he seems to have told the history of each Italic people separately. We know from Nepos the plan of his seven books. In the first, there was the history of the kings; in the second and third, the subjugation of Italy; in the fourth book, the first, and in the fifth, the second Punic war; in the sixth and seventh, the later wars down to the time with which he concluded. Cato was a great man in every respect, he rose far above his age. Of his work we have many detached quotations; but of real extracts we have only one in Gellius, viz. the passage of the Tribune Q. Cædicius, which is from the second Punic war, and consequently belongs to the fourth book. It shows Cato's peculiar manner of writing; and we understand from it why Cicero, who on the whole vacillates between praise and censure with regard to Cato, distinguishes him above all his contemporaries. He wrote about the year 600. In Livy there is a strange anachronism in the discussions about the *lex Oppia*, when, in the year 561, the tribune cites against Cato his *Origines*. But so slavish was formerly the belief in Livy, that the most positive information was less considered than that passage. Gerh. Jo. Vossius is the first who points out that Livy was here most likely rather speaking himself. What we have from the work of Cato is unfortunately very little, but all of it excellent. This book and that of Fabius are by far the most important accounts which we might wish for Roman history. His work stands alone in the whole collection of Roman annals.

A short time after Cato, about the time of the destruction of Carthage, the history of Rome was written by L. Cassius Hemina, of whose work we have historical quotations in the Grammarians. Several writers call him

antiquissimus auctor, which is not said of Piso and others. He had concerning Alba still the old native chronology: the earlier times of Rome he made to synchronize with Grecian history. He began from the very earliest times; and, what was indeed quite different from all the annalists, from before the foundation of the city. One finds of him several things concerning the Sicilian towns in Latium; from whence it would appear that the archæology of the towns was his principal object. As to his style we may form an idea of it from a single larger fragment: it is worse than that of Cato. The fourth book, according to Priscian, had for its title *Bellum Punicum Posterior*; consequently at the time when he wrote the third war had not yet begun. The secular festival, 607 according to Varro, he has indeed mentioned; yet it may have been quite at the end of his work. We must not, however, believe that his history consisted of four books only; as the whole of the fourth was taken up by the second Punic war, and thus there must have been at the very least five or six of them.

From that time, history was written repeatedly, and therefore no original way of treating the subject is any more to be thought of. The *Rhetores Latini* have surely made use of the books which then existed, and have besides consulted the ancient annals. How far this may have been the case with each of them in particular is indeed no more to be decided; but on the whole we shall not be mistaken in this supposition. It is in this time that the Fabius Pictor is to be placed, whom Cicero mentions in his work—*de Oratore*. He was a learned writer: his work entitled *Res Gestæ*, seems to have been very diffuse, as it mentions the burning of the city by the Gauls in the fourth book; yet the number of the books is unknown. No fragment of any import has been preserved of it. His name was Servius, or perhaps Sextus; for in the Brutus of Cicero Ser. Fulvius, and then Ser. Fabius is spoken of, whom he terms *juris pontificii peritissimus*. Yet the books *de Oratore* and Brutus, which seem to have such an excellent text, are corrupted in many little passages, which a clever copyist of the sixteenth century furbished up. Of the books *de Oratore*, only one old manuscript has been found in Milan, which is particularly indistinct. The Brutus does not fare better: none of the manuscripts date higher than 1430. There is therefore much doubt about the names in these books. A MS. at Heidelberg has Serius Fabius, and it is probable that it ought to be Sextus, as the prænomen Servius is unheard of in the family of the Fabii. Perhaps this Pictor is the same as he who in a fragment quoted is called Fabius Maximus

Servilianus, since he at least belonged to that time. The fragment refers to the arrival of Æneas.

Here I also mention the tedious Cn. Gellius, a credulous, uncritical, and second-rate writer. The time when he lived is uncertain. Vossius conjectures that he is the very same against whom Cato the Censor made a speech; but we have fragments of his which do not seem to tally with such an early period. Much rather should he be placed in the second half of the seventh century; partly on account of his style, and partly because he already criticizes, and tries to make the improbabilities of the old tradition more credible by small but dishonest alterations. The numbers of his books, as they were quoted, betoken an immense prolixity. Charisius cites the ninety-seventh book, and that distinctly written in full letters in the Neapolitan original Codex. Other citations do not go beyond the thirtieth book.

Cicero mentions after Pictor an annalist, Vennonius, of whom we have only one passage in Dionysius, referring to the history of the kings. He therefore most likely wrote annals from the building of the city. In that fragment, he shows himself to be a man without judgment; which also corresponds with Cicero's unfavourable opinion of his manner of writing.

An author whose period we cannot fix with certainty, is L. Calpurnius Piso Frugi Censorius, an opponent of C. Gracchus, a supporter of the aristocratical party, but an honest one. The time of his censorship occurs between the tribuneships of the two Gracchi, and he may have written his history not long afterwards. He has quite a peculiar character. He wished to bring the old historical matter, which his predecessors unconcernedly rendered just as they found it in ancient poems and *Fasti*, into the consistency of an actual possibility, and thus to fashion out a true history by cutting off the improbabilities. He finds, for instance, that Tarquinius Superbus could not possibly have been the son of Tarquinius Priscus; and so without any further ado, he makes him at once his grandson. He is also startled at the fact of Tarpeia's having had a tomb on the Capitol; not considering that she was a Sabine heroine to whom such a tomb had been erected on the Capitol,^[13] as Tatius had a monument on another hill. He is therefore the original author of all those falsifications,—a sad prosy undertaking which Cn. Gellius also has entered into. That magnificent story of Curtius he explains thus, that a warrior with his charger had been swallowed up in a gulf on the same spot, which could only have happened

when Romulus and Tatius were waging war against each other; and that Curtius must therefore have been a Sabine general. It does not occur to him, that a whole army cannot find a footing in a place where the general sinks down. In the same spirit, it has once been attempted to change the northern Sagas into history; and there were people who affected to see in the struggle of the Nibelungen an historical war of the Burgundians. A similar course was adopted forty or fifty years ago with regard to the interpretation of the New Testament. The title of Piso's book was *Annales*. He was a plodding man; for it is to be seen that he has made use of sources like the *Fasti* and such like. The number of his books is undecided. In his third book, he treats of Cn. Flavius (450); in the seventh, of the year 516. He came down to his own times, since he mentions the Secular Games of the year 607.

In the course of the same century, several historical books were written. I do not, however, mean to speak here of those who merely composed a history of their own time, but of such only who wrote the entire Roman history. Among these, there were in Cicero's youth, about the period when the books *ad Herennium* were written, 680, or rather about the date of Cicero's consulship, two who wrote a general Roman history, Q. Claudius Quadrigarius, and Q. Valerius Antias. Both of them, according to Velleius, are later than Cœlius Antipater and than the older contemporaries of Sisenna. They wrote after the time of Sylla. Quadrigarius belongs to those authors who, in later times, after the restoration of the older literature, were frequently read. He forms, as did Cassius Hemina, an exception to the general rule, according to which the annalists commenced from the building of the city. Whilst the latter went yet much farther back than this, Claudius began his history with the destruction of the city by the Gauls. We have of him some considerable fragments from which this is evident. For, in the numerous fragments of his first book, much is told of the Gallic war; likewise the beginning of the war against the Samnites,—we have even the battle near Caudium; one of them alludes to the end of the third Samnite war; and all this not cursorily. As therefore he comprehended in it a period so ample and rich in incidents, he could not have had room for the older history. Another argument for our assertion, is a statement of Plutarch, that a certain Clodius (Κλώδιος) said that nothing whatever could be grounded upon the older Roman accounts; as owing to the calamitous invasion, the old documents had been destroyed, and all that remained was merely the production of family vanity. In the second, or third book, he speaks of

Pyrrhus; in the fifth and sixth, of Hannibal; in the eighth, of Tiberius Gracchus the father; in the thirteenth, of Metellus; in the nineteenth, of Marius: there are quotations from him as far as the twenty-third book. His history was brought down to about the time of Cicero's consulship. Fragments, in which we may clearly recognise the unwieldiness of language of these old annalists in general, in whose writings regularly constructed periods^[14] are not yet at all to be thought of, are found in Gellius; and they fully justify Cicero's opinion with regard to the old writers. The Chronicles of Cologne and Limburg are for the most part much better written. Little was therefore read of Roman prose writers before Sallust and Livy. Gellius finds the old writers pleasant; which may be accounted for by the fact that the taste of his time was completely palled, so that it now betook itself to highly spiced dishes, and then to ice. Let only the fragment of Claudius in Gellius^[15] be consulted. The golden age of Roman literature was certainly under Augustus, as that of the French was in the days of Louis XIV.; but precisely because this was its first blossom, the thoughts and ideas were more simple, the language more calm, and in some respects having greater breadth and fulness. Afterwards spirit rather, and wit, were called forth into existence; every thing was required to be expressed, and was expressed, in more terse, polished, and pointed language. Thus the time down to Tacitus was like the age of Louis XV. in France. But now, when the Romans carried every thing to the highest pitch, this manner of thinking and writing was also overstrained: it was still to be made more and more pointed, more polished, and more witty; and then they reached that extreme which borders very closely upon what is absolutely spiritless and insipid. At this period lived Gellius, a very clever man, who was so tired of this tendency of his age, that he had no more feeling for the better literature preceding it, and turned to the earliest times, in which he found a relish.

Valerius Antias is of all the Roman historians certainly the most untrue, the only one who can be directly taxed with falsehood. Livy says of him, *adeo mentiendi nullus modus est*, and *si Valerio Antiati credere libet*. He knows the most circumstantial details of the old times, and is always inclined to exaggerate without bounds, especially with regard to numbers. His fictions have a character quite different from the older ones. The numbers of the latter are not at all meant to deceive any one; they merely mention a number (e. g. *sexcenti*, *μύριοι*, *ter centum tonat ore deus* in

Virgil,) in order to denote an indefinite quantity. This poetical mingling of what is definite with what is seemingly indefinite, every where pervades the Roman legends. Thus the thirty Sabine maidens are in fact no definite number, but an equivalent to *many*. Valerius Antias, for his part, has five hundred and forty-seven. Thus he has written an immense huge work, in the latter portion of which especially he becomes quite prolix; nevertheless he has not been able to compose a circumstantial and lively narrative, but has drily recorded the detached incidents. He is cited as far as the seventy-fifth book. In the second, he mentions Numa; and in the twelfth, the tribune Tib. Gracchus. Fragments, from which we might judge of his style, are not extant.

One might be inclined to take this Valerius for a *gentilis* of the Maximi and Poplicolæ. He might have been so in the widest sense; but he did not belong to the gens of the patrician Valerii. In the war of Hannibal, one meets with a L. Valerius Antias, who probably was a citizen of Antium. From him our annalist may have descended.

It is strange, that although Livy himself repeatedly acknowledges the untrustworthiness of Valerius Antias, there are nevertheless in his own first book some passages which he can only have taken from him.

All these authors had still something old-fashioned in their manner, and stood in the same relation to the later ones as the German writers in the beginning of the eighteenth century did to those who came out at the time of the seven years' war.

Towards the end of the seventh century, after all these authors, who were very much of the same cast, there appeared C. Licinius Macer,—the father of the orator and poet Calvus, who flourished at the same period as Catullus, about the year 700,—a distinguished and original writer. His tribunate dates about 680, before Pompey's first consulate. Of the character of his works, we may form a sufficient estimate from the quotations in Livy and Dionysius. He did what only two before him had done; he wrote history from documents, and may have retained much belonging to those times, which the later writers have left out, because it did not agree with the idea which they had formed, and with the generally received statements in the *Fasti* and elsewhere. Pliny frequently mentions him among his sources; and certainly the treaty of Porsena with the Romans, which we read in Pliny,

was taken from him. In the introduction to the books *de Legibus*, Cicero speaks unfavourably of him; and he may have partly been justified in asserting that as an author he had by no means deserved the praise which is due to him as a critic. When we Germans praise Mascov^[16] as the first who has written a history of Germany, we do not mean by it to assert that his work was a perfect history. Yet Cicero perhaps gave an unfavourable judgment for this reason also, that Macer and he belonged to different political parties; Macer having had a considerable share in the restoration of the tribunician power. The State had at that time lost its soundness, and was in that condition, in which people see the lesser evil to be on one of the two sides, very much as is now the case in France (1828). The loss of the history of Macer is very highly to be regretted. A speech in the fragments of Sallust's History shows an accurate knowledge of the old constitution, which Sallust cannot be given credit for. He is quoted to the sixteenth book. How many books he has written is undecided: he may have begun from the earliest times, and he probably went on as far as his own.

An historian of the old constitution is Junius Gracchanus, a friend of C. Gracchus, which accounts for his cognomen. Gracchus exercised a marked influence upon many, and especially on younger men. Both of the brothers were men of a deeply earnest heart. Gracchanus has written the history of the constitution; and, quoting the yearly dates, has given a description of the changes which it had undergone. He is often cited in the law books, in Ulpian, in Censorinus, in Tacitus, and elsewhere. The era of the beginning of the consulship, which is particularly used by Lydus *de Magistratibus*, who has derived it from Gaius' commentary on the twelve tables, originates undeniably with Gracchanus.^[17] He has drawn from the most authentic sources, and is deserving of unlimited confidence, as I can assert with the firmest conviction.

Of Fenestella nothing is quoted that refers to the earlier ages: it seems therefore that he did not treat of Roman history in its full extent.

Among the *Scriptores Minores Rerum Romanarum*, there is a book, *Origo Gentis Romanæ*, attributed to Victor. In this most of the earlier annalists are quoted; also the *Annales Maximi* (even for the settling of Æneas), Sextus Gellius, Domitius, Egnatius, M. Octavius; and authors besides, who occur nowhere else. Andreas Schottus has first edited it. From the similarity of the book to the writings of Fulgentius, of the Scholiast on

Ibis, and other commentators of the time, who likewise cite known and unknown writers, one might be induced to place the author in the same period, namely, the fifth or sixth century. But the whole of the book is a fabrication of more modern times; not by Schottus himself, but by a forger, of whom indeed there were so many towards the end of the fifteenth century. Messala also, Fenestella *De Magistratibus*, and others in that collection, date from the same period. Octavius may have been got at second hand by the author from the Scholiast of Horace; and Sextus Gellius from Dionysius, who says, "I write, what the Gellii and others have written." The quotations from Cato in this book are in direct contradiction to the most positive evidence which we have with regard to Cato in Servius and others.

This was the state of Roman history in the time of Cicero. During Cæsar's stay in Gaul, Q. Ælius Tubero, a friend of Cicero, wrote the Roman annals anew. He was with Q. Cicero as legate in Asia; he belonged to the party of the Optimates, and was a very honest man. Livy cites his history from the earliest times. What is quoted of him, gives an impression of his respectability as a historian; though it is evident from it, that he no longer knew the old style of language, and that he did not see the difference between the institutions of his own day and those of primitive times. He too made use of documents; but he was not to be compared with Macer in importance, unless he has been wronged by those who are our authorities.

Atticus' annals seem to have been only tables; but a very valuable work. Quotations, however, from them we read nowhere; so that we may infer, that in all likelihood there were many such books of which we know nothing. [\[18\]](#)

In that introduction of wondrous beauty to his books *De Legibus*, Cicero speaks of having been asked to write the Roman history, as a duty the fulfilment of which his country expected from him. He expresses himself on the subject in such a manner, as clearly to show that he would certainly have liked the work, but that indeed he had never thought of it in right earnest. Had he done so, we may, without losing sight of the reverence due to so great a man, assert, that he would have taken upon himself a task for which he was quite unsuited. From the books *De Republica*, we see with how incredibly little previous reading he set about the description of the constitution. He seems not to have made any use of Gracchanus; but to have

derived his knowledge chiefly from Polybius, and perhaps from Atticus. His proper calling was that of a statesman, and not of a scholar.

Many authors are yet to be mentioned; Antipater, Fannius, Polybius, Posidonius, Rutilius, Lucullus, Scaurus, and others, part of whom have written in Greek.^[19]

Sallust found the Roman history in a neglected state; he expresses himself to that effect in his *Catiline*, and says, that it would be a task for a man, who had the capacity for writing it. And he would have had the capacity; but the Romans had no more a Roman history than we have a German one. Sallust was a busy practical man, who would not, and could not devote his life to the immense preparatory studies, which were required for it. He therefore wisely chose to write detached parts of Roman history, which were perhaps intended at a future period to form a whole. Thus he wrote the history of Jugurtha, in which it was his main object to point out to his readers the reaction in favour of the crushed popular party against the aristocrats, who had so shamefully abused their victory. He therefore is careful to show how Rome then in every respect was full of rottenness within. His histories began from the time after Sylla's death, and described the revolution against Sylla's ill-judged counter-revolution, and the struggle of Sertorius. *Catiline's* conspiracy is to prove, what consummate ruffians, after all, those partisans of Sylla were, who called themselves the *optimates*, the *boni*.

Between the time of Jugurtha and the consulate of Lepidus, the historical work of Sisenna formed the connecting link. With this Sallust no doubt was satisfied; otherwise he would have treated also of that period.

The great change in the Roman world under Augustus had taken place; the history of the republic was brought to a close. It was believed that nothing more was to be hoped from constitutional forms and their development, but that the great mass of the state was to be kept together by outward force. After such a catastrophe, history appears altogether in a different light, and is written in a different spirit. In these times, just as in Greece after the downfall of the Athenian state, many historians come forth before the public. After Cæsar's death, Diodorus Siculus wrote, to whom the Roman history is merely a secondary affair. It is probable, that Timæus also in his history of Italy and Sicily had interwoven the Roman one;

though not beyond a very early period. Diodorus had the idea, which none but a prosaic mind could have conceived, of writing the whole of ancient history in synchronistical order; first in large periods, and then year by year, down to the consulate of Cæsar, when the latter commenced the Gallic war. He concludes before the civil war, in order to avoid the offence, which he might have given by his narration to one or the other of the two parties. And it was besides a very convenient break; as in all probability he wrote his work before the conclusion of the troubles. That he composed his history after the death of Cæsar, is evident from the introduction, in which he mentions that event, and calls Cæsar *Divus*. Scaliger had the unfortunate idea of arguing from the passage I, 68 that Diodorus had written as late as 746, that therefore he had left off fifty years before his own time. This opinion passed from Scaliger into the work of Vossius *De Historicis Græcis et Latinis*, and from the latter into the *Bibliotheca Græca* of Fabricius. That passage states concerning the Olympiads, that these were a period of four years which the Romans called *bissextum*; and from this Scaliger infers, that he could not have written before 746, because at that time Augustus had fixed the *intercalatio* at four years. This interpretation is most ingenious; but the passage is an interpolation, as some of the earlier and all the later commentators have remarked, so that Wesseling entirely expunges it from the text. The term χρόνος for year, which occurs there, is modern Greek; just as *tempus* instead of *annus* is met with after the fifth century. Diodorus is an author whose writings have been falsified. These forgeries were made in the age of the restoration of literature, when manuscripts were much sought after, and dearly paid for. There are for the most part omissions; and from the eleventh to the twentieth book he now and then gives fasti, which do not in the least agree with those which we have. The names in them are often not to be recognised at all. All his accounts of the earliest times he probably had from Fabius. Where Polybius begins, he may have made use of him down to the year 608; and he may also have had Posidonius, Rutilius, Sylla and Lucullus.

We now come to the two great authors, who were contemporary writers of Roman history. Dionysius of Halicarnassus in his introduction gives a full account of his circumstances and his works. He came to Rome after the conclusion of the civil wars, and published his history, 743 according to Cato, (745 according to Varro). He calls himself the son of Alexander of Halicarnassus, and was a rhetorician. His rhetorical writings belong to the

earlier time of his life. These are of all the Greek rhetorical works the most excellent, those of Aristotle alone excepted. They are full of fine remarks, and are the produce of an amiable mind and an exquisite taste: it is only a pity that they should have been handed down in such a corrupt state. He is very likely to be the same person whom Strabo^[20] mentions under the name of Cæcilius. We cannot wonder at this; for if he obtained the Roman citizenship, he was obliged to assume the name of a Roman *gens*. It can hardly mean Atticus, who indeed, but extremely seldom, is called by the name of Cæcilius. In the lives also of the ten orators, which are found among Plutarch's Biographies, the name of Cæcilius occurs, which some took to be that of the quæstor Cæcilius, who was in Sicily under Verres, but which seems likewise to mean Dionysius; for all that is quoted of him we find in Dionysius. It is true, that the facts, which we now read in Dionysius, may also have been contained in others; yet the supposition, which we have put forth, is a very probable one, as indeed Josephus also is frequently called Flavius.

His history comprises, in twenty books, the period from the earliest times to the beginning of the first Punic war. It does not go further, either because Polybius,—for whom he has, however, no particular liking,—begins with that period, or because the much-read history of Fabius rises here into greater importance. The first ten books are complete; the eleventh is in a very corrupt state. Extracts from the others are found in the collections of Constantinus Porphyrogenitus *De Virtutibus et Vitiis*, and *De Legationibus*; and also in a collection ἐκλογαὶ Διονυσίου τοῦ Ἀλικαρνασσεῶς, which is met with in several libraries, but is dreadfully mutilated. Mai has published them from a Milanese manuscript; Montfaucon had already directed attention to them. I respect and acknowledge the merits of Mai; but he has an unfortunate vanity, and thus I believe, that he has intentionally foreborn to mention, that here he has been led into the right path by Montfaucon, conduct for which he has been taken to task by Ciampi. Yet this is merely a secondary question. The collection itself mostly consists of unconnected sentences, remnants perhaps of books of Const. Porphyrogenitus, which have not come down to us. The advantage gained from this discovery is at all events very considerable. Dionysius himself had made an abridgment of his work in five books, to which Mai quite wrongly wants to have those extracts referred. As to the first ten books, there are more very old manuscripts of them extant than of any other

ancient author. The Chigi manuscript is of the tenth, that of the Vatican of the eleventh century; the former is kept by Fea locked up from all visitors,—it has been imperfectly collated by Amati, but the result has never been published, nor would he sell it to me; the Vatican codex has been made use of by Hudson. The eleventh book is only to be found in copies which are quite modern. Ever since the old books were no more written on rolls, those which were voluminous had stated divisions. Thus the Pandects, the Theodosian Code, Livy also, were originally divided into decades; and in all likelihood Dionysius too. Of these, the first volume has been preserved entire. Of the second, a copy very probably long existed;—Photius was acquainted with it still;—yet only a few leaves of it have come into the hands of the first Greek copyists. The text is much more corrupt than that of the first half.

Dionysius was first printed by Robert Stephens, and indeed from a very bad manuscript. He had already before that been generally read in a Latin translation. A Florentine, Lapus^[21] Biragus, translated him from a very good manuscript, probably a Roman one, in the time of Pope Sextus IV., who has done very great services to ancient literature. But Lapus was a bungling translator, with a very scanty knowledge of Greek; as also were Petrus Candidus, Raphael Volaterranus, Leonardus Aretinus. But the works of these men were much read; and to us they are of importance, because they represent the manuscripts which they made use of.^[22] Sylburg has very judiciously used the translation of Lapus. It agrees almost throughout with the Vatican manuscript. H. Glareanus revised again the version of Lapus, and, as he states, corrected it in six thousand places. He likewise availed himself of a manuscript. S. Gelenius of Cologne made a new translation, and one far better than those of his predecessors. He too may serve as a manuscript. Now was the text itself first published. The second edition is that of Sylburg, 1586, one of the most excellent elucidations of an ancient author any where to be found. He had, as it seems, an incomplete collation of the Venetian manuscript; but beside that the translations only. It is a pity that Sylburg should not have restored the text, with the means which he possessed in his apparatus, and in his eminent talent for conjecturing. The annotations are done in a masterly style; and added to this moreover was the double work of a matchless philological index, and of an historical one almost as perfect. No editor has done as much for his author as Sylburg did

for Dionysius. Sylburg is not yet sufficiently appreciated. This work, his *Etymologicum Magnum*, his Pausanias, his Clement of Alexandria, bear evidence that in the faculty of conjecturing, and in profound knowledge of the language, he was not inferior to any one philologist of the first renown, not even to J. Fr. Gronovius himself. He has contributed much to the *Thesaurus* of Henry Stephens. Particularly important, besides, is his edition and translation of the *Syntaxis* of Apollonius. His edition of Dionysius, which was published by Wechel at Frankfort, is rare. A reprint of it was made at Leipsic 1691. After Sylburg follows Hudson's edition, 1704. Hudson was a friend of Dodwell, and passed in England for an eminent philologist. Bentley was at that time run down, as being a Whig; and therefore the whole University of Oxford had conspired against him, and opposed to him Hudson, whom they lauded as a great classical scholar. But Hudson was a sad bungler. He has not done the least thing for his *Geographi Græci Minores*, just as Reiz did nothing for Lucian. Hudson had a collation of the excellent Vatican Codex of Dionysius, which is in the notes, but of which he made no use at all. The edition is beautifully printed. Sylburg's annotations are for the most part not given, or else mutilated. But the book enjoyed some fame in Germany, and a bookseller of Leipsic had it reprinted. When the first volume was nearly finished, the publisher applied for the correction of the proof sheets to Reiske. The latter was a friend of my father, and I have a high regard for him; but I am not blind to his defects for all that. His mind was extremely versatile, he had an admirable talent for conjecture; but he was too hasty. He had previously only read Dionysius once; whilst correcting, he inserted into the text readings from the Vatican manuscript, sometimes also his own emendations, of which he gives an account at the conclusion. Yet they are often very unhappy, although now and then very spirited. In Grimme's *Synopsis* nothing has been done for criticism. If I could get a collation of the Chigi manuscript, I might perhaps undertake some day to make a critical edition of Dionysius.

It prepossesses us in favour of Dionysius, who shows himself in his rhetorical writings to have been a man of fine judgment, that, as he tells us, he had devoted twenty-two years to that work; that he had learned the Latin language, and made researches into the annals. His history, which now reaches down only a little beyond the time of the decemvirs, extended, as already observed, to the beginning of the first Punic war; at which period Timæus also left off, and Polybius began. He was befriended by many

distinguished Romans, and wrote with a true veneration for the greatness of the Roman people. The name of Archæology appears new in him. When we see that his history does not give in eleven books more than Livy's does in three; that he takes up a whole book with what happened before the building of the city, and treats of the earliest times so much at length; this prolixity excites our mistrust not only of the credibility, but also of the judgment of the author. As far as regards this point, it is not to be denied that Dionysius has chosen a plan of which we cannot approve. Not to mention that he looks upon the time of the kings as historical, he made a mistake when he undertook to treat history pragmatically from the very earliest times. Yet the more carefully we examine the work, the more worthy of respect Dionysius appears to us, and the more we find his book to be a treasury of the most sterling information. As such it has been first acknowledged by genuine criticism only; before that, it was cried down as a tissue of absurdities. Setting his imperfections aside, we cannot indeed assign too high a rank to Dionysius, as a treasure of ancient history providentially preserved to us. He has borrowed, if not directly, at least indirectly, from the old law books and annalists; and without him we should not know any thing of the most important changes, to which, however, too often he only lends personifications. The careful use which he made of his sources renders him invaluable. Even the matter of his speeches he took from the old annalists; many circumstances at least, which were contained in them, and which he could not receive into the context of his history, he has introduced in his harangues, so that the latter, in which elsewhere the arbitrary fancy of the historian seems to prevail, often retain the traces of tradition. Thus, when there is a rising of the people, these words occur in the speech of a patrician, "If there is no more help for it, why should we not, rather than humble ourselves before these plebeians, grant Isopolity to the Latins?" Now this Isopolity, as we must take it for granted, is in the subsequent peace imparted to the Latins, which is, however, not mentioned in Dionysius. This is one of the passages in which he introduced a notice found in the annalists, on the occasion of the conclusion of the peace, as subject matter into a speech. Only we must discriminate between his mistakes, and the substance of the valuable information which he gives. If he had succeeded in comprehending the language of Fabius, all would have been correct; but he understood the Greek language as it was current in his own time, and thence all his mistakes arose. He has lost the clue in the

history of the development of the Roman constitution: he is not aware of the difference between δῆμος and ὄμιλος, but he gives all, though it appears to him a riddle, and tries to find a solution. That he is a rhetorician and not a statesman, we indeed see only too clearly. In his criticism he is faulty, but, for all that, not bad: he was a very clear-headed man. With very little exception his language is correct and well suited to its purpose. What we may object to in him, are the harangues, in which the distinctness of individual character is entirely lost; an ill-timed imitation of those of Thucydides. I have worked through this author from my early youth, as no one perhaps has done since he has written, and I may say that I entertain infinite respect and veneration for him; and I am convinced that except in the speeches and pragmatistical reflections, he has not by any means invented or intentionally omitted anything. He worked out his sources, it is true, without selection, and cared only for the abundance of the materials which were offered to him. Nothing is more unjust than the opinion formerly entertained, that all that Dionysius had more than Livy was merely the invention of his brain.

About the same time, 743 according to Cato, and 745 according to Varro, Livy began to write. That he commenced so late seems authenticated. He was born 693 according to Cato, in the consulship of the great Cæsar, at Patavium, and lived during the reign of Tiberius, until 772 according to Cato (774 according to Varro), A.D. 20. Livy commenced his career as a rhetorician. Of his early life nothing is known. He has written on rhetoric also. There are several grounds for fixing the period in which he began to compose his history at so late a date. His first decade has been called the work of his youth, but the following proofs are against it. Mentioning Numa, he speaks of Augustus as the restorer of all the temples, consequently after 730; moreover he talks of the closing of the temple of Janus, of the building of the temple of Jupiter Feretrius, and he names Cæsar Augustus in relating the war of Cossus. Dodwell very seldom hits upon the right conclusion, but in this point we must agree with him. In his *Annales Velleiani* he remarks, that from the manner in which Livy wrote about Spain, it is evident that that country had already then been conquered by Augustus. The ninth book is of later date than the campaign of Drusus; for he says in it concerning the *Silva Ciminia*, that it had been just as impassable *quam nuper fuere Germanici saltus*, and the latter were first entered by Domitius Ahenobarbus and Drusus after 740 only. It might be

attempted to make this out to be a later revision; but it is easy to tell what books are written in one flow of the pen, and which are revised, and those of Livy undoubtedly belong to the former sort.—It is in accordance with our supposition, that Dionysius did not know him; for if a book written in such a masterly style as that of Livy had existed, Dionysius could not have been ignorant of it; and it would then have been impossible also for him to complain of the utter want of any thing like the working out of the materials of Roman history. In the last books of the first decade, on the other hand, we find several traces that Livy had known Dionysius. From the *Excerpta de Legationibus* we learn, in what manner Dionysius treated the second Samnite war; the relation of it by Livy cannot possibly have been taken from Roman Annals, but from Greek sources, especially the account how Naples fell into the power of the Romans, which Dionysius seems to have got from a Neapolitan Chronicle. Livy could not know the latter himself, and yet he gives a circumstantial description of the event. He must therefore have had a Greek source, and this is certainly no other than Dionysius. The comparison also of the might of Alexander with that of Rome leads to the same conclusion. And certainly the histories of Pyrrhus king of Epirus, and of the plundering expedition of Cleonymus, are likewise from the Greek; so much the rather, as Livy here calls the Sallentines Messapians,^[23] probably because he did not know that this was the Greek name for the Sallentines. Already from the eighth book, Livy must have made use of Dionysius.—Let no one say that his history has too much freshness for it to be deemed the work of an old man: this depends entirely upon the character of the individual. He had yet, even with his mode of working, nearly thirty years' time for the accomplishment of his immense undertaking. That he did not cut it off where it finishes, but that he died before he had reached his goal, is evident from several circumstances. His history consisted of a hundred and forty-two books, and ended with the death of Drusus without any marked close. The feeling against disproportion in a division by numbers was among the ancients quite decided and developed, and therefore the number itself bears witness to the books not having been completed. There can be no question, but that the division into decades is an original one, and we might see it yet more clearly if we had the second decade left. Even the Greek word *decas* would not have been invented in later times. The twentieth book must have been double the size of the rest, in order that the war with Hannibal might not begin with the twenty-second book. At the end

of the war with Hannibal, the books are extremely short, in order that it might finish with the thirtieth book. He cannot therefore have intended to close the work in the middle of a decade. At least the epitome reaches only as far as book 142, so that at all events we should be obliged to assume, that as two books in the middle, thus also at the conclusion some are still wanting.

When we attentively consider the work of Livy, we find it written in an astonishingly uneven style. The several decades essentially differ from each other, and in the first decade, the first book from the rest. This one is the very perfection of his manner, and shows how matchless he would have been, had his history been more condensed. Throughout the first decade, a high strain of eloquence prevails. In the third, the monotony of the events constantly checks its display; yet beautifully written are the battles on the Trasimene Lake, and at Cannæ. Here, however, is the turning point. In the fourth, the prolixity gains ground more and more, in which traces of extreme old age are to be recognised. The more freely Livy relates, the more beautiful is his composition. The fourth decade is far below the third; in the fourth and fifth he has to a great extent paraphrased Polybius. He could not have chosen better with regard to credibility; but here he is hurried, and it happens also that he contradicts himself, and that, telling the same things twice over, he becomes prolix, which he never is in the first and third decades. But particularly remarkable is the fragment from the ninety-first book; which is written in such a manner, that if it were not inscribed *T. Livî liber XCI*, and that some circumstances bore evidence for it, one would not take it for a work of Livy. Here we understand how the old grammarians could have reproached him with tautology and palilology; [24] here we see how a great writer may become old and garrulous. If the second decade had not been lost also, it would be easy to explain how the later ones have perished, viz. by their being excluded from the grammatical schools. His preface is characteristic, belonging to the worst parts of the whole work, whilst on the contrary the introductions in those great practical historians, Thucydides, Sallust, Tacitus, are masterpieces. This is to be explained from the fact, that Livy began without being conscious of any definite object, and those other writers with a bold stroke of the pencil drew the results of long lucubration.

It is evident that when Livy commenced his work, he was far from being well versed in Roman history; he had read some of the old books, and he may have been, compared with others, well acquainted with ancient history: but he was entirely deficient in general and comprehensive historical knowledge. He wrote it, as he himself states in the preface, from the pleasure which he took in history, and for consolation in a cheerless and most gloomy period; the rising generation were to be refreshed with the remembrance of the glorious times of old; after having once resolved upon this work, he had set about it in the first exultation of enthusiasm. In writing the history of the kings, he apparently followed Ennius. We perceive that clearly it is consistent, and of a piece. As he went on, he gradually got hold of more authors, but always a very limited number. As in Dionysius every thing is connected, so in Livy all is isolated. He had not at all made it his task to write a learned and scrupulously sifted history. With foreign histories he is altogether unacquainted. He could not have written that the Carthaginians first came to Sicily in 324, if he had known that fifty years before they had already undertaken their first great expedition thither. That of Alexander of Epirus would, according to him, have lasted eighteen years. He also mistakes Heraclitus, Philip's ambassador to Hannibal, for the philosopher of the same name.

The ancients were generally in the habit of dictating their works; this is to be seen in none more clearly than in Livy. He worked out each of the years separately; and very often the later ones are in contradiction to those which go before, so that we find that he did not even once submit the whole to a connected revision. Fabius, Valerius Antias, Tubero, and Quadrigarius, —whether this last from the beginning cannot be ascertained,—are the authors whom he made use of; and perhaps, though I doubt it, Cato's *Origines* also. He read himself, or had some one to read to him, the events of a year, and then dictated his narrative from it, taking one annalist in preference as his groundwork; and therefore in most cases there are no contradictions in the history of the same year. As he went on, he got hold of authors whom he had not known originally; for instance, the *Annales Pontificum* for the first time just before the end of the first decade, Polybius not earlier than the middle of the war of Hannibal. The account of the siege of Saguntum, which is so poor in incident, and that of the passage of Hannibal over the Alps, would surely have been differently told by him, if instead of Cœlius Antipater, he had availed himself of Polybius. It was only

when he reached the history of Philip of Macedon, that he looked into Polybius; in the fourth decade, he translates from him every thing that he has not taken from the next annalists concerning the internal affairs of Rome. Thus he certainly had before him Posidonius after Polybius, and then the Memoirs of Rutilius and of Sylla; in later times, perhaps Asinius Pollio, Theophanes, and others. The farther he advanced, the nearer he came to the work for which he was really fitted, only he had unfortunately become old in the meanwhile. The delineation of the character of Cicero from Livy in M. Seneca's *Suasoria*, is done in a masterly style. One is more and more convinced how richly Livy was endowed with a talent for description and narration of the kind which we prize in the novelists of our time. What he is utterly deficient in, is comprehensiveness of view. He often takes from an annalist an account, which presupposes quite different circumstances from those which he himself has set forth. Wherever he wants to give a summary, one sees that what a little while since he had written, nay, even what he had quite close before him, was not at all present to his mind. Thus the enumeration of the nations which fell off immediately after the battle of Cannæ is entirely wrong, there being several among them who only revolted some years afterwards. He shows himself to be no critic in the war of Hannibal, where he repeats the tales which Cœlius Antipater only could have devised; and moreover we find in him an entire absence of judgment with regard to an event and the actors in it, whether they were right or wrong. In early life, he was on Pompey's side; that is to say, a partisan of that chaos which had grown up out of the Roman constitution. He was then very young, being only ten years old when Cæsar came to Italy. This bygone time before the dictatorship of Cæsar, appeared to his imagination as a golden age. Thus a friend of my youth, a Frenchman and a staunch royalist, remarked to me, that the French nobles who at the outbreak of the Revolution were still young, were the most fiercely zealous against its ideas, and looked upon the period immediately preceding it as a time of the highest felicity. Livy seems to have been one of those men who never put to themselves the question, What ought then to have happened, if matters had not come to a crisis? Yet it is natural that after Cæsar's victory noble minds should have inclined to Pompey, who seemed to uphold the ancient usages and constitution; and it is only now that we are able to recognise Cæsar to have been the most beneficial of the two leaders. Livy, moreover, applies his party names to persons and to circumstances which were quite different,

and he looks upon every thing that belongs to the tribunes as seditious. When he tells us of Tarquin the Proud, how he usurped the dominion over the Latins, and how Turnus Herdonius, evidently with the greatest justice, withstood him, he calls the latter *homo seditiosus, iisque artibus potentiam nactus*. Thus Livy must have proverbially become what is called in France an Ultra. In this sense Augustus called him a Pompeian; though he did not fear him, because no real effects were to be expected from such daydreams.

Whether the Patavinity with which Asinius Pollio has taxed him, had reference to his history, or to the speeches which he was heard to deliver as a rhetorician, we are no longer able to ascertain. The latter supposition is very likely. Pollio may have said, “one still perceives from the pronunciation of Livy, that he was not bred in Rome,”—just as in Paris also one can tell provincials. I myself think that I can make out whether the author of a work lived in Paris or at Geneva, and a Frenchman of course discovers it yet more quickly. There may, therefore, have existed some nice shades of distinction, even in style itself, which now-a-days escape our observation. The Latin of Livy in a grammatical point of view is perfectly classical and correct; yet for all that, it is by no means impossible that either in speaking or in writing, he may have ventured upon many an expression which was not usual at Rome. There remains yet another question. Have we any reason to believe with regard to Livy’s history, which was commenced thirty-one years after Pollio’s consulship, that Asinius Pollio could have known it? It is possible. We have an account of his being still living after Caius Cæsar’s death.^[25] Yet this can hardly be true, as Pliny would in that case have certainly mentioned him among the *longævi*.

Particularly worthy of notice is the amiable disposition of Livy. The whole of his work breathes a kindliness and serenity which does one’s heart good in reading it. Perhaps we should observe this yet more clearly, if we had the later books. Few writers have had such an influence as Livy. He forms an epoch in Roman literature: with him every attempt ceases to write Roman annals. When Quintilian compares him with Herodotus, this is only correct with regard to the amenity of style which is common to both. Otherwise Livy is particularly deficient in those qualities which Herodotus possesses, than whom none was ever richer in remembrances and ancient lore; than whom there never was a more gifted investigator; and who was indeed a master both in observing and in research. Livy’s great talent, on

the contrary, is that of arranging details, and of narration. Of the old Roman constitution he had no notion whatever. Even of the constitution which still existed during his youth, he seems to have had no very accurate knowledge; but whatever in the old institutions bore the same name as in his time, he always confounds with what was more recent. On the other hand, he gives accounts which are inappropriate as applying to his own era, but quite correct with reference to the olden time. He had a wonderful reputation in his day: it is a known fact that a man came from Cadiz to Rome merely to see him, and then immediately went back again. This fame lasted. He was the historian Κατ' ἐξοχήν, and Roman history was learned from him alone. Whatever in after times was written by Latins, was scarcely more than extracts from him. Wherever in the later Roman authors any thing is quoted from history, it is taken from Livy: Silius Italicus, the most wretched of all poets, has done nothing but paraphrase him. And therefore he was read in the rhetorical and grammatical schools, particularly, as it seems, his first and third decades. These grammatical schools existed in Rome until beyond the seventh century, in Ravenna even down to the eleventh. It is, however, remarkable that all the manuscripts of the first decade may be traced back to a single one, which was written in the fourth century by a certain Nicomachus for Symmachus and his family, but is most wretchedly done.

We have no manuscript in which all the books which have been preserved are contained. Where the first, third, and fourth decade are together, the fourth is never entire; and all the manuscripts are very recent, dating from the fourteenth century. One sees that he was little read during the middle ages, as they made shift with the most trivial extracts. Of the first books we have manuscripts of the tenth century. At the restoration of learning, the first and third decades existed in pretty many manuscripts; the fourth in few only, and those mutilated. Yet the fourth decade was indeed known and read before that time, as may be seen from a novel of Francesco Sacchetti. But the thirty-third book was entirely wanting; and the fortieth, from the third paragraph of chapter 37. The latter gap was filled up from a Mentz manuscript in the edition printed in that town, A.D. 1518; but the one in the thirty-third book, from the sixth paragraph of the seventeenth chapter only. The last five books were published from a manuscript of the monastery of Lorsch, of the seventh or eighth century (*codex Laurishamensis*), now at Vienna, in the Basle edition of the year 1531. The first sixteen chapters of the thirty-third book have been published at Rome

in 1616, from a Bamberg manuscript, and again collated by Gøeller (as the Laurishamensis for the last five books was by Kopitar), who has found some important various readings. Yet these have always remained defective.

The desire to obtain the missing parts of Livy's history was universal; and in the days of Louis XIV. especially, people allowed themselves to be taken in by the most extravagant stories. At one moment, they were said to be in existence at Constantinople;^[26] at another, at Chios; and then, in an Arabic^[27] translation, at Fez. Only a short time ago, one heard of a translation, which was said to have been found at Saragossa. At Lausanne there formerly existed a complete manuscript of the fifth decade; but it has been lost. A real treasure was found by Bruns of Holstein, who lived at Rome in 1772 and 1773. He discovered a little volume in which some books of the Old Testament, in the Vulgate version but with very differing readings, were contained; and which almost entirely consisted of re-written leaves, originally from the Heidelberg Library to judge from the handwriting, perhaps a Bobbian manuscript. In this he found *M. Tullii Ciceronis Oratio pro Roscio incipit feliciter*; and seeing that it began differently from the speeches as they usually were, he considered it to be the lost commencement of the oration *pro Roscio Comædo*. He called in the learned and ingenious Italian Giovenazzi, and asked him to examine it; the latter decided that it was the *Oratio pro Roscio Amerino*, yet did not observe the excellent various readings, nor discover in what preceded the lost oration *pro Rabirio perduellionis*. They turned over some more leaves, and found some very elegant hand writing with the superscription *T. Livii liber nonagesimus primus*. The aid of chemical means being as yet unknown in those days, they read it with incredible exertions. It was reserved for me, to do what they could not accomplish. I have read it all through, and completed it.

The text is very different in different decades. As far as regards the first of these, all the manuscripts which hitherto have been deemed authentic only follow the recension of Nicomachus Dexter Flavianus, whose subscription is found beneath the Florentine copy, the first of Leyden, and some others. These manuscripts, the text of which that of Florence gives very accurately, are all of them bad. Some various readings are exhibited by several English, Harleyan and Lovel manuscripts; but these are extremely recent, from philologists of the time of the restoration of learning, who

made very free with the text, and therefore they are not of a good description. One single manuscript, of which we have only extracts, shows some quite extraordinary readings, the *Codex Clockianus*, concerning which we know not where it now is. These variations are so peculiar, that I often doubted whether they were always authentic, and whether Clockius really had a manuscript. The Veronese palimpsests exhibit no deviation of consequence from the Florentine manuscript. We cannot therefore hope to get beyond the recension of Nicomachus, at least as far as our present knowledge of the manuscripts enables us to judge. Of the Paris manuscripts, not one as yet has been collated. It is otherwise with the third decade, for which the *Codex Puteanus*, which Gronovius has made use of, is excellent. The text here is sounder than in the first; for the fourth, the Bamberg and the Mentz manuscripts, and the *Editio Ascensiana* have a strong claim on our regard. For the fifth decade, the *Codex Laurishamensis*, now preserved at Vienna, is the only source. From Italian libraries, we can no longer expect much; as the first editions generally represent the manuscripts, and the best manuscripts of Latin authors are, on the whole, not in Italy, but in France and in Germany.

As far as regards commentaries, it is really astonishing how little has been done in the way of criticism for Livy; and yet he is one of the first who has been subjected to any elaborate criticism. Already was this done by the ingenious Laurentius Valla, whose learning was of the true philological cast, and who even before the invention of printing, wrote short scholia, and likewise an historical disquisition concerning Tarquin the Proud, whether he was a son, or a grandson of Tarquinius Priscus? Then follows M. Antonius Sabellicus, a Venetian, of whom some annotations still exist, which, considering his great ability, are very trifling. Glareanus was a very ingenious and acute man. His attention was especially directed to the historical part, and in his remarks he frankly pronounces much of it to be untenable. The emendation of the text was then taken in hand by many persons whose names are not known. Gelenius has certainly aided in the Basil edition, without his name being mentioned. When Glareanus had finished, Sigonius of Modena wrote his scholia on Livy. His work is very good and praiseworthy,—his criticisms chiefly historical. He most unaccountably bore a strong grudge against Glareanus, and the latter replied in an edition in which he had Sigonius' notes reprinted. Sigonius has contributed much towards the criticism of the text; but he has also

interpolated a great deal that is untenable, part of which still stands in the text. Then follow almost a hundred years, during which nothing was done for Livy, until John Frederick Gronovius, sprung from an Holstein family at Hamburg, appeared; who, when philology was in a dying state, might have given it a new impulse, had the age been susceptible of it. His Livy is a masterpiece. He is one of the earliest who conscientiously searched into manuscripts. His careful grammatical and historical commentary gains for him the palm among all who have occupied themselves with Livy; only, when he speaks of the constitution and laws of the State, he has sometimes made mistakes, and unjustly censured Brissonius. After him came Clockius, whose conjectures are most unlucky; and then Tanaquil Faber of Saussure, who, though he was very intelligent, has done very little for Livy; nor is his criticism much to be relied on. Duker's and Drakenborch's edition holds the first rank among all the editions which we have of ancient authors. Duker's notes are excellent,—a striking contrast to his Thucydides,—he shows likewise a very correct judgment concerning the subject-matter. Drakenborch is far from possessing the same penetration and ability, but for all that he has very good common sense; his application, which is scrupulously conscientious, is admirable, and he scrutinizes every thing most accurately. The treasure of philological remarks which he has hoarded up is really astonishing, and his indices are very much to the point. Drakenborch is a model in this also, that he had already completed the whole of his work before he began to publish it. The subject-matter is quite evenly disposed all through the work.

After this, little was done for the criticism of Livy. The emendations of Professor Walch of Berlin are beautiful, and it is a pity that he has not realized his intention of editing the whole of Livy. Yet a very great deal remains to be done, especially in the first decade. The nations of Roman language have gained for themselves little or no distinction with regard to Livy.

Livy is one of those authors whose fate it was, like all who form an epoch in literature, that his influence was not wholly beneficial, but also pernicious. He became from henceforth an authority, although he was no critic; people read the Roman history in Livy only, and the old historians were almost entirely forgotten. The only exception which we know of Roman history being written independently of Livy, is that of Velleius

Paterculus, who began from the mythic legends, and wrote as far as the year 783. He divided his work into two books, the first of which ended with the destruction of Carthage; and besides the Roman, treated also of the earliest Greek history. Unfortunately the second book only is any thing like complete, as in the first the whole of the earlier history is wanting, a loss which is very much to be regretted. Velleius belongs to the writers of evil repute, and it is not to be denied but that a dismal time has crushed him and his independent spirit. He crouches before the tyrant Sejanus; but one must not overlook the fact, that he was much more ingenious than his contemporaries. He is exceedingly witty, and there is something choice in his remarks; besides which he is perfectly master of his subject, and shows himself to be a deeply read and deeply learned scholar. He reminds one of the authors in the time of Louis XV.

It is not quite decided that Fabius Rusticus has not written the earliest history. He was perhaps the only man in his time who could have done it.

The manner in which from henceforth Roman history was written was to epitomize it, of which we have several examples.

There is extant an old table of contents of all the books of Livy, of which two only, the hundred and thirty-sixth and the hundred and thirty-seventh, are wanting,—a sort of index for those who wished to search for any thing in the great work, and perhaps nothing more than a collection of the heads which were written in the margin. This epitome bears quite inappropriately the name of Florus. The author is unknown, and it is certainly only the work of some copyist. But to us it is invaluable, as many things have been preserved in it alone.

Well known and much read was the Roman history of Florus in four books, which, written in the reign of Trajan, is a very wretched piece of work. Yet at the side of many glaring mistakes, there is something which may be turned to use. Florus may have written from what he read in Livy; yet there is in one single passage a deviation from him, so that he must have read others also.

Eutropius has evidently every where followed the track of Livy; but he is so bad a writer, that one cannot believe that he has read Livy. I therefore conjecture that there must have existed an abstract besides, forming a sort of medium between the work itself and our epitome; which Orosius no

doubt also read, who likewise implicitly follows Livy, but assigns dates which clash with him, a practice quite in keeping with his ignorance in changing the dates by consuls into those by years. Such an abstract was like that of Trogus from Justin. Orosius' object was simply this, to console his contemporaries in the state in which they were by means of perversions and sophisms in describing the wretchedness of the olden time. Yet there are many points in which his statements have great value, only one must not allow oneself to be misled by him.

The influence which Livy had exercised upon the Romans, in putting an end to every thing like originality in writing history, did not extend to the Greeks. They directed their attention more and more to Roman history, and found in it a theme for rhetorical and elegant composition. One of those who at that time more or less engaged in this task, was Plutarch, who composed his historical works in the reign of Trajan. He had a definite moral purpose, his was a fine soul: yet neither was he a practical man, nor had he a turn for speculative thought, but he was made for quiet and cheerful contemplation, like Montaigne. He had an unaffected aversion to all that was vulgar; and he wrote in this spirit for himself and his friends, the parallels of distinguished Romans and Greeks. He is just to every body. He loves the Greeks and respects the Romans, and this makes his *Lives* most delightful reading. But his qualities as an historian are of a very secondary order. He is no critic, and does not discriminate between conflicting opinions; but he follows at one time one authority, and at another time another. In Pyrrhus and Camillus, one sees that he has used Dionysius; in Marius and Sylla, Posidonius; and wherever we are able to make this out, his history gains a much more important character for authenticity. The task of ascertaining this point is as yet far from being accomplished. Plutarch, as he himself tells us, understood little of Latin, and was particularly ignorant of the grammar, owing to which mistakes are found in him here and there, though indeed but seldom.

About a generation after Plutarch, Appian wrote. He was a jurist from Alexandria, who in the reigns of Adrian and Antoninus Pius, lived in Rome as an agent for his native town, and had the management of lawsuits. He was greatly befriended by Fronto, and by his interest got the office of a *Procurator Cæsaris*. Although he had lived a long time at Rome, and had a great opinion of his Latin, yet it is not to be supposed that he was very

conversant with that language; as, owing to Adrian's predilection for Greek, he surely was allowed to plead in it, especially for the *transmarini*. Having made a fortune at Rome, he returned to Alexandria, and was in his old age treated with much distinction by the Romans. According to one account, he has written twenty-four books on Roman history; among them four on Egypt, in which he treated with particular prolixity of the Lagides. It was not a continuous history, but arranged after the plan of the *Origines* of Cato. The first book was called Βασιλική, the second Ἰταλική, the third Σαυιτική. The first twenty-one books of his work went as far as the battle of Actium; then the subsequent times down to Trajan he disposed of in one book Ἐκατονταετία; besides which he wrote a book on the Dacian, and another on the Arabian war of Trajan. He is a compiler, and knew well how to choose his sources. In the earlier history he chiefly follows Dionysius; in the second Punic war, perhaps also in the first, he follows Fabius; then Polybius, and afterwards Posidonius. In using these sources, he displays great ignorance, particularly of geography. Thus, for example, he believes that Britain was quite close to the northern coast of Spain, and he places Saguntum on the northern bank of the Iberus. We must discriminate with regard to him. Wherever he copies without thinking, we find in his work the best sources for history. The greater half of the books of Appian are lost. We possess eleven of them, and besides these, there are extracts in the *Eclogæ de Legationibus*, and *de Virtutibus et Vitiis*, collected by Ursinus and Valesius. Spurious is the Παρθική, as Schweighäuser has correctly demonstrated.

There are of Appian, properly speaking, only three editions, those of Stephens, Tollius, and Schweighäuser, the last of them being by far the best. Much remains to be done for the *Bellum Illyricum*, as Spaletti has kept his collation for it from Schweighäuser. A good source also made use of by the latter, is the Latin version of Petrus Candidus, which though barbarous is faithful.

About eighty years after Appian, wrote Dio Cassius, surnamed Cocceianus, who was born in the reign of Antoninus Pius at Nice in Nicomedia, of a family which was of very high standing in the Roman State. Very likely Dio Chrysostom was his grandfather on the mother's side. He came as a young man to Rome, at a time when the provincials of the east were already admitted to the highest offices, which was much earlier

the case with those of the west. Whilst the latter soon assimilated themselves in language and address to the Romans, the former amalgamated much later, and from sheer necessity. In the eastern provinces they still let the beard grow, as we see from the likeness of the statuary Apollodorus in the Trajan column, the most ancient likeness of an artist. From the time of Adrian the Greeks met in Rome with a different reception from that which they had before; this emperor favoured them, as did also the Antonines. Marcus Antoninus even married one of his daughters to Pompeian a Greek.

Dio came early to Rome, where he lived forty years engaged in business, and then retired to Capua. He wrote, when about forty years old, the history of Commodus, which he dedicated to Severus, who received it with favour, and encouraged him to write the whole Roman history. He became consul under Septimius Severus, and a second time under Alexander Severus. He reached an age of nearly eighty years, and had, according to Fabricius' computation, already reached that of seventy when he was for the second time invested with the consulship. He spent twelve years in collecting materials, and during ten he worked. If this account be correct, the last books must be a continuation of his work. Being a statesman, he paid attention to many things in history which his predecessors had not cared for. He had a true vocation for writing history, and declared that in his dreams the gods had commanded him to do so. He was a perfect master of the Latin language, thoroughly acquainted with all the Roman affairs, and he felt an interest in political concerns. He is every where at home, in the laws, in the constitution, and in matters connected with warfare. Livy had no idea of either the economy of a state, or of a battle; the commonest rules for the array of an army escape him. Surely he can never have looked on, when the soldiers were drilling at Rome.

For the very earliest times, Dio Cassius draws from the very fountain-heads. He wrote quite independently of Livy from Fabius, and he perfectly understood the old Roman constitution. On the other hand, he is reproached with κακοήθεια, and ἐπιχαιρεκακία, with its being a pleasure to him to bring to light the hollowness of men's pretensions to political virtue, and such like things. Indeed he is in a bitter mood against the false pretences to virtue in a thoroughly corrupted age; but this is quite different from showing an infamous delight in it. The former only is the real character of Dio Cassius.

When a man scoffs at religion, it is the sign of a bad heart; but when he snatches the mask from the face of a hypocrite, he is quite in the right. When one hears the language of so-called patriots of the time of George the First and Second, and then learns how they intrigued for places, how in spite of their boasted integrity they kept up a secret correspondence with the Pretender, and when they came into power did the very self-same things as their predecessors, it is very natural to speak with disgust of such sham patriots. In the time also of Louis XV. such a state of feeling as we find in Dio Cassius was universal. Dio, owing to his experience in a most abandoned age, may have judged many a man too harshly; but at bottom his view of things is sound and enlightened. That he was no friend to tyranny, is shown every where in his history, when one reads it without prejudice. His style, however, is not flowing; his peculiarities are sometimes faults (examples of it are given in the index of Reimarus). He is one of the few who at that time wrote as men really spoke; on which account the study of his language is very instructive. There is no affectation in him, as in Pausanias; his language is the Greek, as it was then used in familiar conversation. His history was much read. It was for a long time a common source of Roman history, and was continued by an anonymous writer to the time of Constantine, as we know from the *Excerpta de Legationibus*. He himself divided his eighty books into decades. The twentieth book he concluded with the destruction of Carthage; the fortieth went as far as the outbreak of the civil war between Cæsar and Pompey; the sixtieth, to the death of Claudius. Of these there were left in the twelfth century, when Johannes Zonaras wrote, only the first twenty, and from the thirty-sixth to the end. In the tenth century when Constantinus Porphyrogenitus caused the *excerpta* to be made, the whole was still extant. Afterwards, in the eleventh century, the monk Xiphilinus made extracts beginning from the thirty-sixth book, with the exception of the history of Antoninus Pius, and a part of M. Aurelius' reign. Whether he had the rest or not, is no more to be ascertained. It is, however, probable, as Zonaras fifty years later had still the first twenty books. It has therefore been unjustly said that the loss of the books of Dio was the fault of Xiphilinus. His manuscript was still complete as regards the reigns of Augustus, Tiberius, and Claudius, where the Venetian is full of gaps. The very late author of the *Lexicon Syntacticum*, which Bekker has edited, already in all probability had no more the first five and thirty; as from these, in comparison with the other books, he gives

scarcely any extracts at all. We have a fragment which is generally thought to be of the thirty-fifth book, but which, according to Reimarus, most likely belongs to the thirty-sixth; then from the thirty-seventh to the fifty-fourth complete, and the fifty-fifth and fifty-sixth mutilated. Of the first twenty books we have the abstract of Zonaras, with slight admixtures from Plutarch; of the last forty-five, that of Xiphilinus likewise with admixtures. Of books 78, 79 and 80, we have an important fragment from the Vatican library. In books 55 to 60, the manuscripts are full of gaps: Xiphilinus, however, had yet a complete copy of them. Morelli, an excellent philologist, found these books in the year 1797, when, to console himself for the downfall of his republic, he took to ancient history as a refuge, in a very old manuscript in the library of St. Mark, and discovered that it had formerly been complete, but had suffered much from the destruction of part of the fascicles and leaves; that this was the mother-manuscript for these six books; but that when the copyist in his transcript had come to a stop in some story, and the beginning of the next was mutilated, he had entirely dropped such incomplete narrations, and disguised the gaps. Morelli has collected these defective passages, so that we see how at one place some leaves, at another, whole quaternions are missing. From what he communicated, the remarkable expedition of Ahenobarbus to Germany was first brought to light, which had till then been unknown. Thus also in Diodorus, the halves of two books are entirely wanting, a circumstance which is nowhere noticed. In a third passage, Perizonius and others have discovered it. Such a thing was by no means of rare occurrence among the volatile Greeks of the fifteenth century, who gained their livelihood by copying.—What remains of the three last books of Dio Cassius, has been edited by Fulvius Ursinus. The manuscript is of the seventh or eighth century; yet the centre column only has been preserved entire: the two others along the margins are illegible. Nevertheless something may be gleaned from it. In the excerpta *de Legationibus*, *de Virtutibus et Vitiis*, and *de Sententiis*, many pieces from Dio are to be found. We have also many fragments elsewhere, as Dio was very much read. There are besides the abridgments of Xiphilinus and Zonaras. It is surprising that the latter is not also reprinted in the edition of Reimarus. This Zonaras,^[28] under Alexius and Kalojohannes Comnenus, was a man of business, and wrote a history from the beginning of the world to the death of Alexius Comnenus. The first volume of it is an abstract from Josephus, the second from Dio, and the

third from several, particularly from Cedrenus, Skylitzes, and others; as to the later books of Dio, he could not procure them in spite of all his inquiries. He was imperial secretary, and commander of the body-guard. Nor was he a fool, though his judgment is exceedingly narrow; but his extracts from Dio, whom he does not mention as his authority, are of the highest importance. He was formerly overlooked, and I was the first to direct attention to him. Freinsheim made use of him where Livy is wanting, but no further. The excerpta *de Sententiis* especially, show with what accuracy he selected from Dio.

Dio has been edited by Stephens at Basle, and by H. S. Reimarus. A collation of the Venetian manuscript would be infinitely important. The annotations of Fabricius and Reimarus are of extraordinary value in an historical point of view. What is defective in Fabricius, as well as in his son-in-law Reimarus, is grammatical knowledge. Yet this deficiency has not prevented Reimarus from directing the whole of his attention to the index, which is excellent. If he had made the index before the edition was completed, he would have arranged quite differently the strictly philological part of his work. Philological indices are a most useful aid in study, and infinitely heighten the value of an edition. The task of compiling them leads to a great number of questions and inquiries, which otherwise would never have been thought of. ^[29]

After Dio, nothing original was any more written by Greeks on Roman history. In the middle ages, works were lost. Of Livy, the first and third decades were read in the schools for the *provectiores*, and for history men contented themselves with Florus, Eutropius, Rufus, Victor, and Orosius. Eutropius was read also, but spuriated, in a continuation of Paul Warnefrid and Sagax; besides which, as a chrestomathy of fine actions, Valerius Maximus, one of the most wretched of writers, was very much in vogue. People in those days generally cared only for what was ready at hand, and that they diligently worked at; but about any thing that was unknown they did not at all trouble themselves. If the glossators had not been tainted with the defects of their age, they might have got access to quite different sources, from which the law books were to be explained. Some men in the middle ages read indeed and collected manuscripts; but they had no comprehensive views—no sort of symmetry—no striving after any thing that was not at once within reach. Since Priscian, there is no direct

quotation from Livy, except in Johannes Saresberiensis; and in him moreover, only from the books now extant. When in the fourteenth century the light was dawning, people began again to read Livy; as we see from a strange novel of Francesco Sacchetti, in which he speaks of a Florentine who was so absorbed in the study of Livy, that, when one Saturday, the workmen came to him for their wages, he spoke to them as though they were living in the time of Cato. Petrarch read the war of Hannibal in Livy, and also Cæsar's Commentaries, with an ardour and a passionate fondness, with which they certainly had not been read since the times of the great Boëthius,—consequently for eight centuries. He in vain wished to have more of Livy; he had as yet only the epitome, of which, perhaps, he was the discoverer. Now awoke in the hearts of the Italians the desire of considering themselves as the successors and heirs of the ancient Romans, and they began to collect books wherever they found them. The letters of congratulation which were written by Leonardus Aretinus, Bartholomæus, and others, to Poggius, when he had discovered new books, are most affecting. The Roman history was read with an interest which beggars belief; and yet they kept to the works which they already had. But now they began to convince themselves that with the means which they had hitherto possessed, they were not capable of understanding the Roman history: and thus the study of Archæology grew up, to which Pomponius Lætus in particular gave an impulse; who, however, did much mischief by the negligent way in which he set about it. In the beginning of the sixteenth century, the study of Roman antiquities made rapid progress; and collections of inscriptions and of antiquities were now first made in Italy and France by Mazocchi and others, who lived at that period. In Italy an equal degree of attention was not bestowed upon the ancient science of jurisprudence, which, strange to say, did not flourish in that country, though the interpretation of the civil law had originally sprung from thence. At that time scientific jurisprudence was the province of the French, while the Italians applied themselves to history, and to the investigation of authorities for that purpose. People also began to make remarks on particular parts of the history. Glareanus, a strange character, but of an acute and penetrating mind, began freely to examine and to scrutinize Livy. Panvinus, an Augustinian at Verona, and Sigonius of Modena, have first done something by arranging the Fasti, and elucidating the Roman antiquities; owing to them, the knowledge of Roman affairs advanced with colossal strides. They

dwelt especially on the times of Cicero and Cæsar, for which there existed contemporary accounts; but they did not work their way into the earliest times. They fostered the tree, but there was no root to it. Both of them, and Panvinius in particular, were weak in Greek literature, and had a very deficient knowledge of Greek affairs. Both have done much; yet they were wanting in practical experience. The State, as it existed, was to them a mystery, although in some respects they had greater facilities than a foreigner, since many things presented themselves to their observation which were still continuing under the old names. They did not take a sufficiently clear view of things, and therefore they generally blundered in the exposition of details. Panvinius' *Fasti* are a fine work; his supplements to them admirable, considering what his means were. It was his good fortune that in his time fragments of the Capitoline *Fasti* were found, when a church was building, which led to many results. Under my own eyes also some pieces were found, from which important hints may be gathered concerning the times in which Livy fails us.

The *Fasti* are preserved in many separate collections, and also for those periods in which history forsakes us. At the end of the sixteenth century, Stephen Pighius of Campen in Overijssel, secretary of Cardinal Granvella, and afterwards priest at Xanten,^[30] conceived the idea of restoring the Roman history in the form of annals, including the times for which Livy fails us; and with this view he subjected the latter to a searching criticism. He was a man of very great learning,—his *Hercules Prodicus*, his notes on Valerius Maximus, &c. are excellent,—yet his annals are based on a mistaken idea. I tried once in my youth to learn the *Fasti* by heart, and I believe that the young Romans were used to do so; it is, however, of no great value. If the *Fasti* were all preserved, such annals as Pighius intended would be very important for us, but interesting in details only. Pighius, however, entered upon quite a chimerical undertaking. He wished to restore the lost periods of the *Fasti*; and in so doing, not only to mark the few notices which we possess, but also to fill up the gaps from possibilities, calculating what people might at that time according to the *leges annales* have held the offices. Yet he had no desire to deceive his readers, but he indicated his supplements as such; nevertheless G. J. Vossius has allowed himself to be misled by them, and after him even some scholars of the present day, as for example, Schubert of Königsberg in his book on the *Ædiles*. In spite of all this, Pighius' book cannot be dispensed with,

inasmuch as he availed himself of inscriptions, and made many acute combinations. Unfortunately his work was not completed; he died before its publication. Andreas Schottus finished and published it; but his continuation is far inferior.

The account of the manner in which Roman history was handled affords us an image of the progress of philology itself. In the fifteenth century it had scarcely awakened, and it was still uncritical; in the sixteenth, men penetrated quickly and deeply into the study of antiquity, without, however, fully securing the results; but the golden age of philology vanished in the beginning of the seventeenth, and in Germany, where it had blossomed only late, it was blighted by the thirty years' war. It was now combined with other studies, and works were produced, which were laboriously and diligently executed, but of inferior philological merit, and devoid of genius. The Strasburg school of philologists especially, still maintained a certain pre-eminence. At the end of the thirty years' war, John Freinsheim of that town wrote his supplements to the books of Livy. Of particular facts, he has left few unnoticed; yet he has but imperfectly succeeded in arranging the events of the obscure ages, and in entering more deeply into the spirit of the times. He had no idea of the Roman state either in relations of peace or of war, though he prided himself not a little on his *prudentia civilis*. For the second decade, especially books 11-15, and perhaps also four books 46-60, he had more complete materials, and made an energetic use of them; afterwards, he becomes more and more careless, and from the period of the Social War decidedly bad. Notwithstanding which, no one who works at Roman history can do without his book. Unfortunately, the quotations are very inaccurate, even in the original edition; and in that of Drakenborch, they are either made worse, or at least not corrected. Freinsheim, like his fellow citizens Boecler and Obrecht, is to be reckoned among the ornaments of Germany of that time. That he did not continue his immense work with equal care is very pardonable, and the preposterousness of the undertaking itself is to be charged to the taste of the age in which he lived.

About twenty years after him, quite a different man began a work on Roman history which is thoroughly classical. James Perizonius, in his *Animadversiones Historicæ*, undertook a critical review of Roman history, which, however, extended only to detached parts of it, though what he did was ably and beautifully executed. He first conceived the fruitful idea, that

the Roman history, like that of the Jewish people, had arisen out of lays: an idea which we cannot sufficiently admire, when we consider the time in which he wrote, and that he was moreover a Dutch philologist; for such national songs are entirely wanting in the Netherlands. A Dane might much more easily have been its author, as Saxo Grammaticus and the songs of the Edda would have led to it. Perizonius had a perfectly unbiassed mind, incredible philological learning, and a real genius for history. Yet his *Animadversiones* have not had the influence which they deserved, as they were reprinted only once, and altogether forgotten.

After 1684, in a strictly philological point of view, little better than nothing was done for Roman history. Bentley and J. M. Gesner are almost the only exceptions to the wretched condition of philology during the first half of the eighteenth century. In the meanwhile there spread itself in Europe more and more a certain general mental cultivation, which laid claim to classical history as a part of the universal one; and in consequence, even men who had none of the deeper philological knowledge, occupied themselves with ancient history. Thus arose that little masterly work of president Montesquieu, *Sur les causes de la grandeur des Romains et de leur décadence*, which in spite of many mistakes is an excellent book.

At the end of the seventeenth century, scepticism had awakened in Europe; it originated with Bayle, and attacked history also. It did not, however, aim at establishing profound results; but was content with disclosing the mistakes in what had previously been considered as authentic history. In this spirit wrote a very ingenious man, a refugee who had lived a long time in England, Monsieur de Beaufort. His work on the Roman Antiquities, however much may be objectionable in it, considered as a whole is the best which has been written on the subject. It was clear to him, that the early Roman history was a poem, and no history; and this conviction of his he made known in his *Dissertation sur l'incertitude des quatre premiers siècles de l'histoire Romaine*. The work bears the stamp of an ingenious and well read man, who was no philologist by profession, and on the whole, not inured to accurate research; there is manifested in it that spirit of scepticism, which only destroys and does not attempt to rebuild; and therefore it excited much opposition. But the book has been of use. All that has been written since is based upon it.

What the worthy Rollin has compiled from Livy and from Freinsheim's supplements, is not to be reckoned a Roman history. With very little talent, he shows such a respectable, virtuous, and upright disposition, that men were perfectly justified in putting it into the hands of youth; yet it is a dry book, which now-a-days scarcely any one would read through. His learning is very defective; he is destitute of all critical judgment, and without any insight into the state of affairs. People at that time, as a very witty writer remarks, treated ancient history as if it had never really happened.

Somewhat later, ^[31] Hooke wrote a work, with which indeed I am but slightly acquainted, and which, generally speaking, is not known in Germany. He took notice of Beaufort's views, without, however, entering into any deeper questions; and he treated the history of those times only which he held to be historical.

This is no less the case in Ferguson's history of the Roman Republic, which is a complete failure. He was judicious and honest, but unlearned; and he had not the remotest conception of the constitution. He gives full details only from the times of the Gracchi, and treats history pragmatically and morally. For the knowledge of history the book is of no value. Levesque's history is downright trash: he deems the account of the earliest times to be nonsensical stuff, but quite in an arbitrary manner makes exceptions in favour of particular events. There is a low tone about the book, and there is no erudition in it. Micali's *Italia avanti il dominio de' Romani* is likewise a wretched work. He rouses himself into a strange passion against the Romans, and invents histories of the Italian States which could not be arrived at by any. Micali wrote at the time of the French ascendancy, and so he was glad to be able on this occasion to say something against the exclusive dominion of any one people; but he thus allowed himself to be betrayed into an unreasonable heat, and into unfairness against the Romans. Besides which, he is quite an unlearned man.

The general tendency of philology in Germany could not but lead to a critical treatment of Roman history, based on research. For the last forty years it has gained a settled character. The movement in it began on several quite distinct points, it lay in the very essence of the whole development of our literature. Men like Lessing, who, without any accurate philological learning, was endowed with a most philological spirit, and Winkelmann, are to be considered as the true fathers of modern improved philology. Thus

also the attempts of Heyne and Ernesti, although very imperfect ones; the revival of historical jurisprudence;^[32] as well as that of grammatical philology, by Reiz, Wolf, Hermann, the translations of Voss and others, have contributed much to Roman history. The spirit was awakened, the language moulded by Lessing and Goethe, and the age with its gigantic changes and revolutions filled every thing with life; and exertion was felt to be a necessity. All this must have reacted upon Roman history, and the more so as political affairs assimilated to those of the ancient Romans. By these circumstances especially, my attention was directed to the Roman state as it really was, and first turned to inquire into the question, why those violent struggles had taken place in Rome. Thus Roman history was now no more treated merely sceptically, but critically; results took the place of exploded inventions; it was shown what we are to believe, and what to reject as invention or interpolation; and, moreover, this advantage has been gained, that people know what they may receive as truth, with regard to ancient Roman history in general, without engaging in vain attempts to pursue it into all its details, with the dates accurately specified. In this immense labyrinth, these researches, as far as they regard the early times, could not succeed at once. He who entered into them was still fettered by many prejudices: he saw the goal, but got bewildered on his way. Thus it was imperatively demanded by good faith and conscientiousness, not to remain satisfied with what was already found, and to take courage to find the solution of enigmas. What could be gained for the early times, is now gained in all essential points; and it is time that these researches should not grow too much into fashion. Not that I am afraid, that the results obtained may be shaken; but since this work is limited by the extent of the sources, until fresh ones be discovered, nothing, on the one hand, can have been missed; and, on the other, nothing essential yet remains to be done. It is to be wished that men's energies may now be directed to those points, from which important results are to be expected, especially within the range of the later periods. To know and to understand these, one should necessarily be acquainted with the ancient ages and forms; but one ought not to believe that the interest of the Roman history leaves off where contemporary accounts begin; as if those things only were interesting which are to be guessed. The Roman history is a whole. Emerging from the darkest ages, where it can be only restored by combinations, comparisons, and analogies, it reaches that stage in which it is borne out by the evidence of persons who

are well informed. The remainder of Roman history, from the time when it becomes historical, must likewise be investigated, in order to gain settled results; or where they are already gained, calmly to examine them, and to make use of the materials which have been brought to light.

The study of ancient history requires for its basis a sound, able, philological, and grammatical spirit, which is proof against every temptation to indulge in fanciful etymologies; a well cultivated and practised taste, so as to distinguish possibilities or probabilities, and realities; a matured judgment; a knowledge of human and civil affairs, of those things which have happened in different ages, according to the same laws; and above all, *conscientiousness and uprightness, free from all feelings of display and vanity,—a blameless walk before God*. The adage of former times ought well to be laid to heart, that learning is the fruit of uprightness and piety.

When once we have a correct system of Roman antiquities, it will belong to scientific Roman history as an introduction to it. Now they are treated very differently from each other. The older works contain much that is excellent concerning those times for which Roman literature is coeval. In ancient geography also, a chorography of ancient Italy is still wanting; as to Mannert's work, it can only receive a very qualified recommendation. Much better are Cluver's *Italia Antiqua* and *Sicilia*, colossal works, which are, however, so rare, and so costly, that one cannot refer the student to them. In the details little is to be added, almost every thing in the classical writers which happens to bear upon the settlement of chorographical points being incorporated in them. What is decidedly deficient is the survey of the ancient nations; all his general views are vague. Yet the description of the country is admirable for his times.

As to maps, that of d'Anville is unquestionably to be recommended. D'Anville was a genius: he possessed the acuteness to discriminate among conflicting statements those which were worthy of belief; he was like a great artist, who, with very simple instruments, does more than another with the most perfect ones. His works on the interior of Africa are extraordinary, considering the few notices which he had. Not to be excelled are his maps of Gaul, Spain, and Britain; unsurpassed is his map of Italy, although much might be improved in it. He is less perfect with regard to Greece. For Epirus and Macedon, he was of course unable to make use of the more correct

information of modern times, the interior of these countries not being then explored by travellers; the Peloponnesus he worked out mostly from the Portulan maps. Barbié du Bocage, his pupil, was likewise highly to be esteemed; but with such a predecessor, he was in a disadvantageous position. He continued several of d'Anville's works with little success. He found, for instance, that Patras in d'Anville's map was placed 30 minutes too far north, and he accordingly changed the position; yet, although he was in the right, he twenty years afterwards restored it to d'Anville's original position. D'Anville has in Italy one single mathematical error with regard to the south-eastern part of Naples, where the country of the Sallentines lies about 20 minutes too little to the east. For d'Anville had as yet no other maps at hand but the Venetian ones, in which the outlines are generally excellent, but the longitudes for the most part incorrect. The comparison of d'Anville's maps with those of his predecessors, as those of Delisle and others, makes him still more admirable. His map of Egypt is an extraordinary performance, if we consider that he had only the rude outlines of the Arabian and Turkish maps to work from. An apparent defect in his map of Italy is this, that it represents a distinct period, about that of Augustus, and in consequence there is a discrepancy in the settlement of the confines which might make one inclined to censure him; and yet one ought to be very careful not to do so. Samnium, for instance, according to Livy, still included a very large tract which d'Anville draws into Apulia, because he follows the description of Italy by Pliny.

Thoroughly bad is Reichardt's map of Italy. Reichardt has no idea of ancient geography, and his map is a medley of ignorance and impudence. Places which never existed are described by him as towns of importance;—this he does in the case of Sublanuvium, Subaricia, stages for changing horses laid down in ancient itineraries beneath Lanuvium and Aricia, towns which were built on hills. A place of this kind happens to be called *ad bivium*, from which Reichardt makes a town *ad Birium*, of the size of Præneste and others in Latium. Aquila, founded during the middle ages, is described by him as an old Sabine town, merely because it bears a Roman name. Politorium, Medullia, and other towns in the immediate neighbourhood of Rome, the accurate position of which is no more by any means to be made out, are placed by him just as fancy leads him, and on sites besides where they certainly could not have stood. He brings the Volscians as far as the mouth of the Tiber, whilst no one makes them extend

farther than to Antium. Could I have overcome my disgust, and looked over the map of this man yet more accurately, I might have found many other similar blunders. Its only recommendation is the beauty of the engraving. D'Anville as yet remains unsurpassed. My father, who was certainly a competent judge in this matter, never spoke of him but in the highest terms of acknowledgment.

IMPORTANCE OF ROMAN HISTORY.

The importance of Roman history is one of those points which have never perhaps been gainsayed. There may be persons who have their prejudices with regard to the value of ancient history in general, yet even they will not deny that of Roman history. In other branches of knowledge, it either appears as an introduction, or as an integral part of the preparatory discipline. As long as the Roman law continues to hold among us the position which it now has, an accurate knowledge of Roman antiquity will be indispensable. Such will it likewise be for the divine, to whom the results which follow from the connexion of ecclesiastical with profane history are quite lost, if he be deficient in the knowledge of Roman history and Roman antiquities. With regard to many another science, there are fewer relations in which Roman history becomes of any importance; yet even then points of contact will not be wanting. It has its importance, for the history of human life in general, for the history of diseases, &c. Yet if, taking a wider and scientific view, we look on history as an independent branch of knowledge, that of Rome is the most important of all. All the ancient histories merge into the Roman, all the modern spring from it. Not only the philologist who occupies himself from preference with Roman literature, ought to be so familiar with the history and the antiquities of that people, that he may read its authors as he would contemporaries; but he also ought to do this, who makes the Greek his principal task, otherwise he would remain one-sided in his views. At all events, he ought to be acquainted with the concluding period of the Greek people, and to know how it fared under the rule of the Romans. If we balance the two histories against each other, the Roman one has by far the better claim to the higher rank. A small population enlarges itself, rules at first over thousands, then over hundreds of thousands, then lords it over the world from the rising to the setting sun; the whole of the west adopts their language and institutions, and their laws are to this day still in force for millions,—such greatness has no parallel in history. Add to this, the individual greatness of the men; the spectacle of all the states waning before this star; the extraordinary character of the institutions by which this is partly brought about; all this imparts to Roman

history its peculiar durability and importance. For these reasons, even in the middle ages, in those times when learning was most neglected, it was, although in an imperfect form, yet always held in honour as history. By the Roman literature, science and civilization were first restored; Dante and Petrarch felt as warmly for the men of the Roman era, as an old Roman himself would have done. Valerius Maximus was during the middle ages the mirror of virtue, which with the Holy Scriptures was read by every one. The tribune Rienzi is said to have read all the books of the ancients. The Teutonic Knights had a book, still extant at Königsberg, which was read during dinner, containing stories from the Old Testament, and from the heroic age of Rome.^[33] Thus since the restoration of learning to the present day, although Roman history was not always very profitably studied, there has notwithstanding ever been in every one a certain vague feeling which told them that it was transcendently important and instructive.

MANNER IN WHICH THE EARLY HISTORY OF ROME ORIGINATED.

When Fabius began to write the Roman history, his materials consisted of the *Annales Pontificum*; the *Fasti*; the *Libri Pontificum*, and *Augurales* for the time nearer his own; of the *Laudationes*, and of lays. Of the scantiness of these sources we have already convinced ourselves, but what were their contents? They cannot have been less worthy of belief than our Merovingian and other ancient annals. As the *Annales Pontificum* commenced *ab initio rerum Romanarum*, or at least from Numa, they might have been very authentic. The pontiffs, as Dionysius informs us, had with the greatest accuracy recorded in them year by year from the era of the kings; in the *Fasti Triumphales* it was even entered on what days the kings had triumphed over their foes. The consideration, however, that the ancient history, as it lies before us, is impossible, must lead us to the question of the credibility of the oldest annals. Our task therefore is that of now showing that the earliest history contains impossibilities; that it is poetical, and that every thing in it which does not bear the impress of a poetical character is a forgery; that thence it follows that the history must be reduced to ancient songs, and to a later invented chronology, which was adapted to those lays.

The accounts of the earliest times are materially different in Livy and Dionysius. Livy wrote his first book without any division of years, and with extraordinary fairness; he also had evidently Ennius before his eyes, as one may see from a comparison of the fragments of that poet with Livy;—e. g. Lib. II, 10. with *Fragm. Ennii, Teque pater Tiberine tuo cum numine sancto*. Dionysius tries to make out a true history. He takes it for granted that the Roman history must be capable of being restored in its details; that a truly historical groundwork was built over with fabulous legends; and so he endeavours to reconstruct it according to his notions; in doing which he sometimes makes himself really ridiculous by his pragmatistical speeches in the mythic ages. Livy, on the contrary, writes history, as he found it in the oldest books, and as it appeared to him most beautiful, giving what was the

old narrative before it was spoiled by too much art; and for this reason his account is the most unadulterated source for those times.

The history of the wondrous birth of Romulus is an historical impossibility, although it was historicised by the school of Piso. This is also the case with the rape of the Sabine women, of whom, according to the original tale, there were thirty; with the removal of Romulus from the earth during an eclipse of the sun;^[34] and likewise with the long reign of Numa in unbroken peace, and that marriage of his with the goddess Egeria, which in the belief of Scipio's contemporaries was held to be quite as historical as the Punic wars. There is a poetical impress of hoar antiquity in the story of the combat between the Horatii and the Curiatii, who were born by two sisters in one day, the effect of which is already somewhat marred in Livy. We next arrive at Tarquinius Priscus, who, with Tanaquil his wife came to Rome in the eighth year of the reign of Ancus (which lasted twenty-three years), then reigned himself thirty-eight more, and being at his death upwards of eighty, left infants behind him, who were brought up during the forty-three years' reign of Servius; so that Tarquin the Proud must have been at least fifty years old, when he killed his father-in-law. Tanaquil, who lives to see this, and exacts an oath from Servius not to resign the crown, must at that time have been a hundred and fifteen years old. One of the first things told us of Servius is this, that a flame burns round his head, for the natural explanation of which Dionysius wishes to give hints. Collatinus is stated to have been the son of a brother of Tarquinius Priscus; this brother, it is said, was born before the removal of Tarquinius Priscus to Rome, a hundred and thirty-five years previous to the expulsion of Tarquin the Proud, and his son is now, more than a hundred and twenty years after his father's birth, a young man of thirty. Brutus is described as a *tribunus celerum*, which was the highest office attainable by one of the equestrian body, by virtue of which he represents the king, assembles the senate, and is called upon to officiate at the highest sacrifices; and this office the king is declared to have given to a man whom he considered as half-witted and therefore deprived of the management of his own property, while Brutus, on the other hand, is said to have feigned imbecility that he might ward off the envy and covetousness of the king. He is stated to have been the son of a daughter of Tarquinius Priscus, and to have been afraid of rousing the anger of the king by taking upon himself the administration of his own possessions; yet Tarquin was not even of the same *gens* as himself. In the

beginning of Tarquin's reign, Brutus was a child; but immediately after the king's expulsion, he has sons who are grown up youths.

All these details connected with dates, the list of which, down to the times of Camillus, might be vastly swelled, are so characterised by marks of inconsistency and historical impossibility, that it may safely be concluded that here we are entitled to the exercise of criticism. Let us now call to mind the twofold sources of the earliest Roman history,—the chronological ones, the *Fasti*, the *Annales Pontificum*; and the unchronological ones, the lays, *Laudationes*, the *Libri Pontificum* and *Augurales*. With regard to the chronological ones, we see that in the oldest accounts of Fabius, from the building of Rome to its destruction by the Gauls, 360 years are reckoned; precisely the number of the γένη in Attica, which number the Greeks already (especially Aristotle, from whom the grammarians Pollux, Harpocration, and others borrowed) declared to have been in imitation of the solar year. If we look more closely into it, 360 is the middle number between those of the days of the solar and lunar year, and the nearest to either of these capable of being conveniently divided. The time assigned for the kings, according to the older reckoning, was 240 years; that for the republic, 120. This number has the same mathematical character as those of the Indian ages of the world, the Babylonian, and other eastern numbers. The 120 years for the republic are received also by those who deem the whole period to have been 365 years. Whether these 120 years are correct, remains indeed to be decided according to one's views with regard to the epoch of the dedication of the Capitol. That the annals of the pontiffs were destroyed when the city was burned by the Gauls, is strongly confirmed by Claudius (without doubt Claudius Quadrigarius) in Plutarch, and indirectly by Livy, who cannot state it in a direct manner, or else he would have declared his first books to be worthless. An additional proof of it is the fact, that the eclipse of the sun in the year 350 was the first one really observed which occurred in the annals; whereas all the earlier ones were calculated afterwards, and of course incorrectly, with the aid of the scientific means which then existed. For the first 240 years we have seven kings, who reigned for an immense time, most of them about forty years. Newton has already pointed out how improbable it was, that a succession of princes should have all ruled for so long a period, and he has assigned seventeen years as an average for each. The most exact parallel, however, is to be found among the doges of Venice, who also were elective princes like the

Roman kings. There have been forty doges within the space of five centuries (800 to 1300), so that there were eight of these to a century. When we now look more closely at the numbers of the Roman kings, we find in them a play upon numbers, as among the eastern nations. To understand this, we must premise the following remarks.

The Etruscans had as the basis of their chronology two sorts of *sæcula*, physical and astronomical, of which the latter consisted of a hundred and ten years, as the received average number of the physical one. By a twofold intercalation, the calendar was rectified to within a wonderfully small fractional difference, a hundred and ten of these years very nearly corresponding to a hundred and thirty-two years of ten months; and thus an astronomical period was constituted. The length of the physical *sæculum* was thus fixed. The life of him who outlived all those who had been alive at the foundation of a state, marked the first *sæculum*; the second was determined by the longest life among those who were alive at the conclusion of the first, and so on. Now there is an old tradition in Plutarch and Dio Cassius, and in Dionysius at least an allusion to it, that Numa was born on the day of the foundation of Rome, and therefore the first *sæculum* at Rome probably ended with his death in the year 77.^[35] If this was the case, we then see the reason why Romulus was made to reign thirty-eight years (the number of the weeks of the year of ten months), and Numa thirty-nine. For the last five kings one had historical traditions; yet they did not extend through the whole of the regal period. Rome has surely had by far more than five kings; but as a founder was wanted besides for the Ramnes, and another for the Tities, the number was chosen which had a sacred meaning, that of the planets, &c. The middle point in two hundred and forty years is the end of the hundred and twentieth, just the middle of the reign of the fourth king out of seven, evidently an artificial arrangement. Twenty-three years were given him, so that people might be able to begin to date them from the year 110, as they always wished for the beginning some distinguished number, and a hundred and ten was the *sæcula* number. The old year had ten months, and a hundred and thirty of those years are equal to a hundred and ten of the later ones. The reign of Ancus must therefore have been placed between 110 and 132. What is between 77 and 110, namely, thirty-two years, is now of course to be assigned to Tullus Hostilius. Tarquinius Priscus reigns until 170, half a century being added to the middle of the regal period; his reign therefore lasted thirty-eight years.

The twenty-five years of the last king may be historical, or a quarter of a century may have been assigned to him in round numbers. For Servius Tullius there now remains the time from 170 to 215. But let us now suppose that the two reigns of Tarquinius Priscus and of Servius Tullius did not last so long, then every inconsistency vanishes, and the old unanimous account that Tarquinius Superbus was the son of Tarquinius Priscus reasserts its claims. We thus see how the greatest absurdities may arise from chronological restorations, as in this case there is a palpable forgery.

Although the other sources of the earliest history, the old lays, may not also have been tampered with, they are nevertheless altogether insufficient. We have a parallel case to this in our own *Nibelungenlied*, the poets of which likewise did not wish to deceive, nor did they make any pretensions whatever to be annalists. Historical characters appear in it,—Theodoric, Attila, the Burgundians; and yet of the whole poem nothing belongs to history. Nor has history any part in Romulus and Numa. They belong to the cycle of the gods, Romulus as the son of Mars, and Numa as the husband of Egeria; Romulus is merely a personification of Rome. Other poems have more historical matter in them; for instance, the Spanish romances of the *Cid*. Here the outlines are undoubtedly historical; but they form as it were a line only, whilst the description as given in the poem is a plane. There is also much of this in Roman history. He who utterly rejects the whole of the early Roman history, does not know what he is saying. Romulus and Numa are included within the first *sæculum*, because they do not at all belong to history; and therefore they form a *sæculum* of their own, and as it were quite a different era. From thence whatever was discovered of old traditions concerning the kings and their time, much of which was in circulation, had now its place assigned to it in the chronological cycle. Those who think this criticism doubtful, would not do so if they were more familiar with what is nearer our own times. It is well known how the romances of the middle ages about Charlemagne and his Paladins, refer to Latin chronicles the authorship of which is ascribed to the Archbishop Turpin. These are now allowed to figure as romances by the side of history; but who would believe that not a hundred and fifty years after Charlemagne, in the reign of Otho the Great, at a time therefore when the crusades were not yet in the remotest manner thought of, there appears already in the *Chronicle of Benedict of Soracte* a most detailed account of an expedition of Charlemagne to Jerusalem, and that without any consciousness of its falsehood. Before the

extinction of the Carlovingian race, utterly fictitious expeditions across the Alps, &c., taken from the history of Charlemagne, are related at large in the Chronicles as positive facts. We are now able to disprove them, because we have contemporary annals, and the history of Eginhard; and as for the expedition to Jerusalem, even without these we may also disprove it from eastern annals.—The same thing occurs in Ireland. There also, pretended annals exist in which a succession of kings are found, among whom Niall the Great, about the time of the emperor Theodosius, conquers Britain, Gaul, and Spain, crosses the Alps, and threatens the emperor in Rome. The most decisive proof can be brought against this completely fabulous tale, as the authentic history in this case is generally known.^[36] Had we likewise older books of history to check the Roman legends with, we might just as easily get the proof of the want of authenticity of the early Roman history. In the meanwhile where shall we find them? The Greeks had no intercourse with Rome, and although they knew of the Romans at a much earlier period than is generally supposed, yet they did not trouble themselves about them, precisely because they never came into contact with them. The case would be quite different with the Greeks of Southern Italy, and the Siceliotes, of whom we have, however, no more authors left. Neither Herodotus nor Thucydides can mention the Romans. There nevertheless exists a notice which gives one a sample of Roman history as it was told among other nations, quite a detached fragment of Etruscan history. The case is as follows,—Claudius, afterwards emperor, who was so unfortunate in his youth, who was disowned by his mother, and whose feeble understanding, in spite of his other good qualities, was entirely spoiled by ill-treatment, seems to have excited Livy's pity, who gave him instruction and encouragement for writing history. Thus he wrote several works, *Καρχηδονιακά*, in eight, and *Τυρρηνικά*, in twenty books, certainly in Greek, the loss of which we have very much to regret. Even Pliny does no more quote this latter work. But in the sixteenth century two tablets were discovered, on which fragments of an oration of the emperor Claudius are found, wherein he proposes in the senate to give the Lugdunensian Gauls the full citizenship, and to admit them into the senate, as had long been the case already in the *Provincia Romana*. The inhabitants of Gaul were Roman citizens, had Roman names, yet they had not the right of admission into the senate. With this right the emperor Claudius presented Lugdunensian Gaul. The two brazen tablets are still left, out of several which contained the

speech mentioned by Tacitus; and they either do not immediately join each other, or a considerable piece must be wanting at the bottom. Before the French Revolution they were still in the town hall at Lyons; whether they be still there, I know not. Lipsius had them printed in his edition of Tacitus, Gruter in the *Corpus Inscriptionum*; but yet they have been little read. They give us an idea of the stupidity of Claudius, so that we feel assured that the ancients have not done him injustice. In this harangue he says at full length what Tacitus very summarily condensed, that we ought not to say that this was an innovation. Innovations had been made from the beginning of the state; foreigners had ever been received, as for instance the Sabines of Titus Tatius. Even foreigners had been made kings—Numa; Tarquin the Etruscan, a descendant of the Greeks; Servius Tullius, who, according to our annals, was a Corniculensian, but according to the Tuscan ones was a Tuscan of the name of Mastarna, a follower of Cæles Vibenna. He emigrated and settled on the Mons Cælius, which was so called by him after the name of his leader, and now called himself Servius Tullius. This is therefore a direct proof of how matters stood at that time with regard to the Roman annals; for there is nothing whatever in which we can make this Etruscan Mastarna and Servius Tullius, the son of a bondwoman, tally with each other.

Undoubtedly therefore the earliest Roman history has sprung from lays. Perizonius quotes examples from other nations; even in the historical books of the Old Testament, there are such lays. With regard to the Romans, he cites the testimony of Cato, to which Cicero refers in two passages. “Would that the lays were still in existence;” Cicero writes, “for as Cato says, they were sung at table by the guests in praise of deceased men!” A third mention we find in Nonius Marcellus from Varro, that at banquets *pueri honesti* sang lays in praise of departed great men, either to the flute, or without any accompaniment. This evidence every one must acknowledge as authentic. Among all the nations of whose peculiar original early literature we can form any judgment, there are found either longer historical poems of the epic class, or else very short ones in praise of individual men. In order to pave the way for the assertion that we have still pieces left of both from the Romans, we must first premise some remarks on their most ancient metres.

The ancient Romans, before they adopted the Greek poetic system, made use of the Saturnian verse. Horace says of it,

Horridus ille
Defluxit numerus Saturnius

and several old grammarians have given accounts of it. Atilius Fortunatianus and others among them, who knew nothing about its structure, stuck to a couple of verses which had been preserved; particularly to the following, in which, according to the views which then prevailed, a hypercatalectical Senarius makes its appearance:

Malum dabunt Metelli Nævio Poëtæ.

Terentianus Maurus, who belongs to the end of the third century, speaks of it when treating of the Anacreontic verse, because the first division of the Saturnian bears some resemblance to it. But the real Saturnian verse is quite a different one, which I intend shortly to prove in a detailed treatise. It has many forms, and is altogether distinct from Greek metres. The Latin term for Rhythmus, which in later times only was applied to Greek metres, is *numeri*. But the Greek metre is based on music and quantity, while in theirs the Romans really *counted*, the syllables being little measured, or rather not at all: a certain degree of rhythm was, however, kept. Our ancestors, in the same way, had no idea of short and long syllables in the Greek manner; and in the old Latin church hymns likewise short syllables are made long, and *vice versa*. Plautus and Terence also, in their iambic and trochaic verses, really observed the rhythmic measure only, and not the quantity. This is the case with all northern people. The pervading characteristic of the Saturnian verse is this, that it must consist of a fixed number of trisyllabic feet. Generally speaking there are four of them, in which either Bacchics or Cretics interchange with Spondees. Sometimes the Cretics and sometimes the Bacchics predominate. When kept distinct they have a very fine movement; but they are usually very much mingled together, so that it is difficult to make them out.

These verses, found from the very earliest times, are quite analogous to the Persian, Arabian, and to our own old German and northern ones, and also to those of the Anglo-Saxon, and to all in which alliteration prevails. The old German verse is divided into two halves, in the first of which two

words begin with the same consonant, which once more occurs again in the second, and it has four beats. In the old Saxon Harmony of the Gospels there is this quadruple measure, and likewise in Otfrid and others; but five or six measures may also be found. In Persian poetry there are uniformly four feet of three syllables each; in Arabic this is often the case, but not unseldom there are quadrisyllabic ones also. Exactly agreeing with these are the Spanish *coplas de arte major*, which were in use before the introduction of the Alexandrine, and have also passed into the Flemish. In all probability this metre was also used in the longer poems of the Provençal. This old Roman syllabic measure is universal in the Roman poems down to the seventh century. I have found a long string of them, and a chapter of an old grammarian with fragments of wonderful beauty, principally from Nævius. This important treatise on the Saturnian verse I shall publish. For this grammarian has really understood that metre,^[37] which in Plautus is worked up to a high degree of beauty.

There are also shorter old poems in this measure. At the funerals of the Romans, *Neniæ*, as they were called, were sung to the flute, which were not doleful sentimental songs, but must have been of the same character as the *Laudationes*. The dead had now passed over to their illustrious ancestors; their glory was made the theme of pride and exultation; and therefore in these *Neniæ* praise was simply given them. When Horace says, *absint inani funere neniæ*, &c. this refers, if there was any singing at all at funerals, to the dirges of the later age. The Romans were not originally tender-hearted. They made even the dead man of use to the State, and from the grave itself he exhorted others to follow him in his deeds. *Neniæ* and *Laudationes* were therefore quite plain and simple, in that old style which did not yet know of any construction of periods, and they are no way to be compared to the λόγοι ἐπιτάφιοι in Thucydides and the later Greeks. Two such poems are evidently still preserved to us, in the tombs of the Scipios, which were discovered in 1780, by the Appian road. The upper story, where the sarcophagus of the younger Africanus and the statue of Ennius were, is wanting; but the lower one, which was scooped out of the hill side, was found choked up with rubbish. Here was the sarcophagus of L. Scipio Barbatus, who had been a consul in the fifth century (454). At an earlier period,^[38] this tomb had been already entered from the top, and a tablet taken out, which is now built into the wall of the Barberini palace; yet this

had fallen into oblivion. The bodies of the Cornelii down to Sylla were not burned in the Pelasgian, or Greek manner, but buried in coffins. On these noble sarcophagi there are verses, written indeed like prose, but divided by dashes; and on the sarcophagus of the son the verses are even arranged in lines. That they are verses is to be seen from their unequal length, as otherwise the Romans always wrote every line to its full length. These are quite plain and simple verses, yet there is still some metre in them.

*Cornéliu' Lúciu' Scípio Barbátus,
Gnáivo prognátu', fortis vír sapiénsque—
Consúl, censor, aédilis, quí fuit apúd vos, etc.*

These are surely the *Neniae* which were sung at the time, and then inscribed on the tomb. The old songs at the banquets, were for the most part quite as simple.

Now these *Neniae*, together with the *Laudationes* kept in the Atrium, are sources for the earliest history. There were besides some longer epic poems among the Romans, as well as among other people; for instance, the Servians, &c. The modern Greek songs are only of a lyrical description, but those of the Servians are a combination of the epic with the lyric. A fragment of an heroic poem of this kind on the combat of the Horatii and Curatii, I think I have discovered in Livy. Now it is not by any means to be supposed that Livy had still seen these old heroic poems, and written from them; but he wrote, either directly or indirectly, through Varro, from the books of the pontiffs and augurs, in which very many fragments of such ancient epic lays were preserved; many of them dating even from the time of the taking of the city. In the passage of Livy alluded to, wherein the appeal to the people is related, which he had taken from these books, he speaks of *lex horrendi carminis*. The formulas of that time were, however, called *carmina*, and were written in the old measure. That Livy has indirectly or directly borrowed from these books is so much the more certain, as Cicero asserts, that the formula of the *provocatio ad populum* was contained in the *libri augurales*. The formula is

Duúmviri pérduelliónem júdicent, &c.

in which the old metre is still to be recognised.

That Cicero's assertion, *laudationibus historia nostra facta est mendosior*, is acknowledged also by Livy, has been already remarked. For as every thing good may easily be turned to evil, that lofty feeling of family pride which the Romans had was also liable to be perverted, and we may well believe that saying.

After the first scanty notices from the earlier times were for the most part destroyed in the Gallic devastation, they were restored from outlines taken from the songs of the *Vates*; the poems were changed in passing from mouth to mouth, and from these combined with the *Laudationes* history arose. These are the materials which Fabius found extant.

If we look at the tenth book of Livy, we find in it a disproportionate prolixity in the account of the campaigns of Fabius Maximus Rullianus. Now this is exactly an instance of a story taken from family records. In fact not a few statements may even be pointed out, which have no other source than family vanity. People even ventured to interpolate fictitious consulships and triumphs into the family annals, as Livy himself tells us.

Again, other falsifications have arisen from national pride. The forgeries of patriotism manifest themselves among the Romans whenever they suffered great disasters; and this is particularly the case with the momentous ones of the earlier time, with the war of Porsena, the Gallic calamity, and the disgrace at Caudium, in which the whole account is a lying one. Others have sprung from that spirit of caste, which in earlier times led to continual struggles. Both parties thus brought false accusations against each other, which afterwards found their way into history; or, on the other hand, palliation was also attempted in order to disguise political or moral crimes. The blame of the worst events is laid to the people's charge; yet it is innocent, and the guilt belongs wholly to its antagonists. Not the people, but the Curies condemned Manlius to death; these also pronounced the disgraceful decision between the Ardeates and the people of Aricia;^[39] nay, we may be sure that it was the Curies which compelled Camillus to go into exile.

Such falsifications accumulate, become involved in each other, and give rise to this strange confusion. The rich materials, widely scattered indeed, because the parties did not allow of their being brought together, we may

gather in order to find out by critical research the organization and the nature of the Roman nation; and on the whole to carry on their history to that point at which contemporary accounts from the Greeks begin, to the war with Pyrrhus, and the first Punic war. Much will indeed remain undecided in these inquiries; but we may exactly discriminate where this must needs be the case, and where it is otherwise.

THE EARLIEST HISTORY.

The Roman history goes back to Latium, and through Latium to Troy. Since Dio Chrysostom has started the question, whether Troy ever existed at all, a vast deal has been written on the subject; and also upon this other point, whether Æneas came to Italy. The treatise of Theodore Ryckius^[40] about it is particularly well known. He deems the arrival of Æneas to be historical, in opposition to Bochart, who is one of the last highly gifted French philologists,^[41] and at all events is superior to him in discernment. Bochart's hypothesis concerning the influence of the Phœnicians, is doubtless carried too far. No one, however, will now any more put the question thus; but one must ask, has the legend that the Trojans came to this coast any historical foundation? and, moreover, has the legend arisen among the Greeks, and passed over to Italy; or is it a native Italian tradition which cannot, at least by us, be traced back to Greek sources? If the latter be the case, some truth must surely be at the bottom of it, and the less one takes these ancient accounts in their literal meaning, the more are they found to partake of possibility.

There is no question but that in the earliest times there were in Greece two peoples who were very nearly akin, but still distinct from each other; so much so that they did not understand each other's language, as Herodotus positively asserts. One of these languages as opposed to the other was considered as barbarous; and yet, when looked upon from a different point of view, they may be said to be both of them closely related. There are still several living languages which stand in a similar degree of affinity,—the Polish and the Bohemian, the Italian and the Spanish, and, although we may not find the relationship to be so close, the Polish and Lithuanian. The two last languages are as wide as heaven and earth asunder; yet for all that they have a characteristic similarity. The grammar of both has the same development, the same peculiarities; the numerals are nearly the same; a great many words are common to both. These languages are therefore branches of the same stock, and yet the Poles do not understand the Lithuanians. Now this is the manner in which we solve the question so often mooted concerning the difference or identity of the Greeks and the

Pelasgians. When Herodotus says that they were different, we must after all believe him; yet, on the other hand, he places the Hellenes and Pelasgians again side by side. The two nations cannot therefore be of different race.

In the earliest times, when the Greek history is yet veiled to us in impenetrable mystery, the greater part of Italy, perhaps the whole eastern shore of the Adriatic sea, Epirus, Macedon,^[42] the southern coast of Thrace, the Macedonian peninsulas, the islands of the Ægean, and also the coasts of Asia Minor to the Bosphorus were inhabited by Pelasgians.^[43] The Trojans also are to be looked upon as Pelasgians. That they were no barbarians is the opinion of all the Greeks, as we also see already from Homer; their abode is quite in the Pelasgian country; their names are Greek. They are in close conjunction at one time with the Arcadians, another essentially Pelasgian people, then with the Epirots, then also with the Thessalians; and Æneas, according to one tradition, goes to Arcadia and dies there, according to another into Epirus, where Helenus settles. Thus, in like manner, we find in Pindar, in the poem on Cyrene, Aristæus, a Pelasgian hero from Arcadia, together with the Antenorides. The connexion of the Pelasgians with the Trojans extends very far. Samothrace in particular is the metropolis of Ilium; Dardanus comes from Arcadia, but passes through Samothrace, and from thence, married to Chryse, goes to Troas. The Samothracians, according to one of the grammarians, are a Roman people, acknowledged to be of kindred race with the Romans; that is to say, with the Troio-Tyrrhenian Pelasgians. This connexion has no other source but the common relationship between the Tyrrhenians, Trojans, and Samothracians. According to some accounts, Dardanus comes from Tyrrhenia to Troas; according to others, the Trojans come to Tyrrhenia. In the temple, and in the mysteries of Samothrace, there was a gathering point of many men from all quarters;^[44] and it was for a great part of the world at that time as the Caaba of Mecca, the grave of the prophet at Medina, or as the holy sepulchre at Jerusalem. Samothrace and Dodona were for the Pelasgian races, what perhaps to the Hellenic world Delphi and Delos were. The distance of a considerable portion of those who are linked together by a common origin ought not to have much stress laid upon it in a case like this, as it is such as not to hinder the Mahometan from making the pilgrimage to the sacred spot.

This old stock of the Pelasgians which we may trace as far as Liguria, and which also dwelt on the coasts of Corsica and Sardinia, vanishes in the age of history as a component part of nations; but it consisted originally of a number of tribes which bore different names. A very wide spread name for that portion which was settled in Epirus, and in the southern part of modern Italy, as far as Latium and the coast of the Adriatic Sea, was that of Siculians (*Siculi*); also Vituli, Vitelli, Vitali, Itali, from the last of which Italy takes its name. Notwithstanding the wide spread of these Siculian or Italian names, *Italia* in the earliest times does not seem as at present to have designated the country to the foot of the Alps. It is indeed possible that the changes which followed upon the immigration of northern races severed the sea-coast from Etruria, and confined the name *Italia* to the country south of the Tiber, or rather, south of Latium. Yet this is only a supposition, though it is certain that Italy was once bounded on the north by a line from the Garganus on one side to Terracina on the other; and that the name, which had been restricted to within yet narrower limits in the times after Alexander the Great, before the sway of Rome had begun, was again extended to that wider range. It is probably of this earlier Italy that Pliny says, that it was *querno folio similis*,—a remarkable example of the manner in which Pliny wrote. He speaks at one time in his own name, and at another he gives excerpts. Yet his excerpts are unfortunately as little weighed by him in historical matters as in those of natural history. This statement he has without doubt taken from Timæus, with whom also the comparison of Sardinia to a sandal or a foot-print originates. That in his own time Italy could not by any means be so described, entirely escaped Pliny's notice.

In the south of Italy, the earliest inhabitants were also called Ænotrians and Peucetians; in the north, without doubt they were likewise called Liburnians; and on the coasts of Latium, Tyrrhenians.

Whether the settlements on the coast north of the Tiber were the remnants of an expelled people, or perhaps mere colonies, can no longer now be ascertained; yet there appear in the middle of Italy, besides those people which were akin to the Greeks, some of a different kind by whom the former indeed were crushed. It seems that those migrations of the different races came about in the same manner as those in modern history. The people which directly precipitates itself upon the Siculians in Latium,

and the Italians in Southern Italy proper, partly expelling, and partly absorbing and assimilating them, are the Opicans (*Opici*), a mixed race, which in fact as Opicans exists only in a few places, but is again absorbed by another people, and produces new tribes. They are the same whom we meet with under the name of Apulians; for the terminations, *-icus* and *-ulus* are equivalent. The Italian population therefore ends in Apulia; though it reaches in appearance as far as into Messapia, where part only of the Italians maintained themselves in an isolated settlement. Moreover they were in Samnium, Campania, and on the borders of Latium as Volscians and Æquians.

These Opicans were in their turn pushed forward by the Sabines (Sabellians), who called themselves aborigines, and traced their source from the highest Alps of Abruzzo near Majella and Gran Sasso d'Italia. Cato in a somewhat extraordinary manner makes them come from Little Amiternum. Whether the Sabellians and Opicans were about as distinct from each other as the Gauls and Ligurians; or in a less degree, like the Celts and Cymri; or whether they belonged to the same stock, and were only politically separated; are questions which we cannot solve. The ancients knew not, nor did they care much about it. When we want to see at any rate where no historical light is to be had, the mind's eye is dimmed like that of the body when it is violently strained in the dark. Varro indeed distinguishes the Sabine from the Oscan language; but as he was very little of a judge of the earlier languages, in the sense in which we should apply the term to W. von Humboldt, we have also very little reason to rely upon any of his statements concerning the relationship of languages. From a general analogy, I conceive that the tide of emigration must have set in in several streams, and that thus the Sabines also may have been carried down from the higher north by its first rush. Yet this is mere conjecture.

The Umbrians may have belonged to the same stock as the Opicans. I would not lay too great a stress on the resemblance of names; the races which are nearest akin to each other have very often the most dissimilar names, and those which are the most remote quite similar ones. Thus the Getæ and the Goths were for a long time mistaken for the same people. Fifty years ago, it was the general belief in Ireland and Scotland that the Fir-Bolgs^[45] were the old Belgians; yet this is false, and they are a Danish colony, as a very well-informed Englishman wrote to me. If I had no other

reasons but the names, I should hesitate to pronounce for the identity of the Opicans and Umbrians. But Philistus called the people which overcame the Siculians in Latium, Ombricans, and the affinity of the languages may also be clearly made out from what remains of them.

These changes of the population, in which the earlier inhabitants are dislodged by another tribe, and the latter by some other one in its turn, make the history of the old Italian nations so indescribably obscure and difficult for us. At a time which we cannot fix with chronological certainty, in what was afterwards called Latium, which, however, perhaps bore this name from the earliest times, there existed a population of Siculians. The memory of it was preserved at Tibur, where according to Cato part of the town was called Siculio.^[46] There are also elsewhere very many allusions in ancient authors, which place it beyond doubt that this people once existed there. Under the same name we find it in Southern Italy, and in the island which is to this day still called after them. According to one tradition, Sicelus came from Latium to the Ænотrians; according to another, the Siculians under different names were driven from their old abodes by the Opicans or Ombricans, and removed to that island. This migration is merely indicative of the combinations of those who tried to explain the contemporary existence of the same people in Latium and in Sicily. Possible it is, but it is also possible that it took quite a different direction. It is certain that in Homer's time there were Siculians in Southern Italy; to prove which fact there exists a passage from Mnaseas, a pupil of Aristarchus, a learned grammarian and historian, whom the scholiast of the Odyssey quotes. He also says, that Echetus in Epirus was prince of the Siculians, so that he likewise acknowledged this name in those parts. From his explanation, we see that the poet of the Odyssey, when speaking of Siculians, does not mean the inhabitants of Sicily, a country concerning which he was in the dark; but those of Southern Italy, or the Pelasgians of Epirus.

The Siculians are the same as those whom Cato calls *Aborigines*. This name is interpreted γενάρχαι, ancestors; or also, wanderers, *aberrigines*; and likewise those who are from the very beginning, *ab origine*. The nominative singular, according to the Latin idiom, must have been *aboriginus*. There was a tradition that Latium had originally been inhabited by *Autochthones*; but Cato and C. Sempronius^[47] said, that the aborigines

had emigrated from Achaia, by which was meant the whole of the Peloponnesus, then named by the Romans Achaia. Others called the different places which were formerly termed Siculian, Argive; and Cato had done that with regard to Tibur itself. Argos and Larissa are Pelasgian names, which we meet with wherever there are Pelasgians;—Argos probably meaning town, and Larissa borough. As long as the Peloponnesus was Pelasgian, it was called Argos; even so was Thessaly. In this meaning the Argives are Pelasgians, and the Ἀργεῖοι Πελασγοί are in the old tragedy always named in conjunction. The one was most likely the general, and the other the special appellation.

Hesiod says of Latinus, πᾶσι Τυρρῆνοϊσιν ἀγακλειτοῖσιν ἀνάσσει. All that we know of the Latins is this, that they had a number of towns from Tibur to the river Tiber. How far they extended in the earliest time to the Liris is lost in obscurity. Cato (in Priscian) says, that the plain of the Volscians formerly belonged to the aborigines; certainly all the towns along the coast were at an early period Tyrrhenian, as Antium, Circeii, and many others. At that time, therefore, the name of Latium spread far, and so late as immediately after the Roman kings, even to Campania; it having been first limited in consequence of the great popular migrations soon after the expulsion of the kings. Hesiod of course refers to the earlier time. In the treaty of Rome with Carthage, the coast beyond Terracina, probably as far as Cumæ, was called Latium, and the inhabitants Latins.

By the Greeks the Pelasgian inhabitants of the whole western coast of Italy were called Tyrrhenians; by the Latins, *Turini*, *Tusci*, i. e. *Tusici* from *Tusus*, or *Turus*; for s in the ancient language stands for r, as in *Fusius* for *Furius*.

We must bear well in mind that the Pelasgians and Aborigines are one and the same people. If we look over the legends of nations, we repeatedly find the same stories told in different ways which are entirely opposed to each other. The story of a Jew who takes ruthless revenge upon a Christian, as we know it from Shakspeare, in a Roman novel shortly before his time, is found just reversed, so that the Christian wants to cut off the flesh from the Jew. The migrations of the Goths, according to some, proceed from Scandinavia to the south; according to others, from the south to Scandinavia. Wittikind says that the Saxons had come out of Britain into Germany; the usual account makes them out to have been invited thither

from Germany. The Pelasgians near the Hymettus near Athens are represented to have come from Tyrrhenia to Athens, and from thence to Lemnos; in another tradition, the Tyrrhenians go from the Meonian coast to Italy. Thus Cyrene, according to one legend, is colonized from Thera; in another, Thera rises out of a clod of earth from Libya. In the earlier account, the Symplegades were in the Eastern Sea, and the Argo sails through them on her voyage out; in the later, they are in the Western Sea, and impede the progress of the Argo on her voyage home. This exchange of polarity is manifested also with regard to the aborigines. In spite of etymology, Dionysius so calls the people which, issuing from the interior of the country, conquered the ancient inhabitants. Varro did the same, and yet worse than Pliny. He had read an immense deal; but learned he ought not to be called on account of his confusedness.^[48] Varro knows about the close alliance of two of the Latin nations, but he makes a jumble of every thing; the aborigines are for him the conquering, and the Siculians the conquered people. Then, following Hellanicus, he brings over the aborigines from Thessaly; yet they then migrate from the Upper Anio to the Upper Abruzzo, whither they are driven by the Sabines. This tradition has a local and plausible character; for there were many small towns to be found there: large cities, on the contrary, such as the Etruscans possessed, are always a proof of immigration, as the immigrating people rather settles in a few considerable places. Trent and several other cities are large Lombard colonies. Dionysius may be excused, as he relies on Varro's authority; the latter alone is answerable for the mistake. Here also the designation of the people, the conquering and the conquered one, is confounded.

The conquerors were probably called Cascans. This name Servius has preserved from Saufcius, a grammarian who seems to belong to the first century of the Christian era. They are also met with under the name of Sacranians, and to this the expression in Dionysius refers, that it had been a *ἱερὰ νεότης*. Part of the people which under the name of Opicans and Oscans inhabited the interior of Italy, or was more likely pushed down from the north, and wedged in between the old Pelasgian places, settled in the Apennines round the lake Fustinus (at present called Celano), towards Reate. Their chief town was called Lista: they bordered on the Siculians, who inhabited the country as far as beyond Tibur. There was a legend concerning them, that in the war with the Sabines, who had already taken from them Reate, and were driving them before them further and further,

they had made a vow of a *ver sacrum*. This custom of the Italian nations when evil times befel them, was kept up also among the Romans. It was vowed to consecrate to the gods all cattle, in short, all that should be produced in the ensuing spring; and to send out in colonies the male children born at that period, as soon as ever they were grown up: the produce was either to be offered up, or redeemed. Thus devoted, the Sacranians marched against Latium, and subjected to themselves the Siculians. In Latium they settled among the old inhabitants, and became united with them into one people, which received the name of *Prisci Latini*; for, the Cascans must also have been called *Prisci*. To take *Prisci Latini* in Livy for *Old Latins* would be an absurdity: he has borrowed the formula of the declaration of war by the Fetiales, in which the expression first occurs, from the ancient rituals; it goes back to the time of Ancus Marcius, whilst before that of Tarquin the Proud, there were certainly no Latin colonies which we may suppose to have been placed in opposition to the rest of the people. *Prisci Latini* stands for *Prisci et Latini*, as the Latin language always expresses two necessary contra-positions, or two notions inseparably combined, by an immediate juxtaposition of the two words. The earliest Romans made as little use of cement in their language, as in their buildings. Brissonius has very clearly shown this, and has thereby fixed the formula *Populus Romanus Quirites*; only that he goes too far when he asserts that *Populus Romanus Quiritium* had never been said, which has been justly controverted by J. F. Gronovius. In the same manner, *patres conscripti*, instead of *qui patres, quique conscripti sunt*; and in legal forms, *locati conducti, emti venditi, &c.* *Priscus* and *Cascus* mean in after times very old, quaint, as Gothic or old Franconian, do in German; hence we have *casce loqui, vocabula casca*.—These conquerors spoke Oscan; and from the fusion of their language with the Siculo-Pelasgian arose that extraordinary medley which we call Latin, in which the grammar in some measure, but still more the etymology, contains such a considerable Greek element; a subject on which O. Müller has made those fine enquiries in the first volume of his *Etruscans*. The ancient Oscan language still exists in some old monuments: in Pompeii and Herculaneum, there are a couple of inscriptions, and the tablet of Bantia (Oppido) may be fully interpreted. Of the two elements in Latin, that which is Greek and that which is not, the latter agrees with the Oscan language. All the words which refer to agriculture, domestic animals, fruits, &c., are either Greek or akin to Greek.

We evidently see a conquered agricultural people, and a conquering one from the mountains which was not engaged in agriculture.

From henceforth the trace of the tradition is lost to us, being effaced by the account of the Trojan immigration. This legend has no authenticity whatever, and is merely a later figment to express the relationship between the Trojans and the Latins as Pelasgians. The story of a Trojan colony is found on so many points of Italy, that it is by mere chance that this legend has been more definitely fixed upon Latium; and it was fostered by the wide circulation of the Greek poems, which spread much farther than we generally think.

Among the Romans the legend of the Trojan settlement is comparatively ancient. Nævius, in his poem on the Punic war, gave it already at considerable length; and the Ilians pleaded it with the Romans in their wars against Seleucus Callinicus. If any one should feel inclined to treat these accounts of the foundation of Rome by Æneas seriously, we cannot follow him: some traditions in them have a very national character, but the distance of time is too great between the events and those who described them. Nævius wrote from 950 to 980 years after the period at which the destruction of Troy is generally fixed. It is little known how very much Virgil changed the old legend of the settlement of Æneas in Latium, in which as a poet he was fully warranted; for its features were rude and harsh, as that Latinus had fallen in the war against Æneas, and that Lavinia, first betrothed to Æneas, and then refused, became the prize of the conqueror. The oldest tradition besides speaks of the settlement as a very small one. According to Nævius, Æneas arrived with one ship only; and the tract of land assigned to him consisted, as Cato stated, of not more than seven hundred *jugera*. Suppose this to have been true, how could any remembrance of it have lasted after nine hundred years?

The original tradition is that Æneas had first lived for three years in a small town called Troy; then, that taking a higher flight, he had founded Lavinium, and thirty years afterwards Alba; and that the three hundredth year after Alba, was that of the building of Rome. This regular progression of the numbers betokens a field which is not that of history. Three thousand years also were certainly fixed as the duration of Rome. There are two different numerical systems in these legends:—the Etruscan with a *sæculum* of a hundred and ten years, and the Greek, or the Tyrrhenian, in which the

sæculum consisted of thirty years. This number thirty had at all times considerable weight on account of the period of the revolution of Saturn, which according to the then existing opinion, as Servius records, was completed within thirty years. Thirty common years constituted among the Greeks a Saturnian, and a hundred Saturnians a grand year. With this the scale of numbers from the foundation of Lavinium to the building of Rome is connected. The earliest Alban history is a nonentity, as the sagacious Dodwell (de Cyclis, diss. X.) has already shown, who indeed on other occasions only too often spoils by his subtleties what he has well begun. The chronology of the Alban-kings in Dionysius, for instance, is mere absurdity and forgery, the names of them being patched together in every possible way. This forgery, as we see from Servius, was committed in a later age by a freedman of Sylla, L. Cornelius Alexander of Miletus, who readily found acceptance at a period when people were glad to have histories of those times of which nothing could be known.

Alba, on the Alban Lake, was in my opinion the capital of the ruling conquerors. It is not accidental that it bears the same name as the town on the Lake Fucinus, from whence the Sacranians had issued. When they were obliged to yield their abode to the Sabines, they founded the Alba again on the banks of a lake; as the Pœni did a New Carthage, the Milesians a New Miletus on the Black Sea, and as is so frequently the case in the New World. This Alba Longa is therefore the seat of the Cascans or Sacranians, and the older Latin towns which lay within its territory have probably had a double fate. Some may have derived part of their population from the immigrants; others may have been subjected without receiving colonies. We find in tradition that these Latin towns had been thirty in number, all of them colonies of Alba, a tradition which is contradicted by the other, which states all of them to have been originally Argive. Both of these might be maintained in this sense, that an ἀποδασμός of the dominant race had settled in each of the towns. Be this as it may, Alba had thirty boroughs (δῆμοι) which belonged to the town as immediate dependencies or cantons: these are the *populi Albenses* which I have discovered in Pliny. It is not to be doubted, but that the Albans were to their dependencies as the *populus* of Rome to the *plebs*, or as Rome in later times to Latium.

At the mention of Alba, few are proof against the prejudice by which I also was beguiled for a long time, that so very much of the history of Alba

is lost, that one can only speak of it in connexion with the Trojan or anti-Trojan times; as if every thing said of it by the Romans were based upon delusion and errors of judgment. Indeed, the foundation of Alba by Ascanius; the whole series of the Alban kings with the years of their reigns; the story of Numitor and Amulius; the account of the destruction of the town; all this does not belong to history. Yet the historical existence of Alba is for all that not in the least to be doubted, nor have the ancients ever had a doubt about it. The *sacra Albana*, the *Albani tumuli atque luci* bear witness to it. Ruins do not indeed exist any more; yet the situation of the town in the valley of Grotta Ferrata is still to be traced at this day. Between the lake and a long ridge of hills, near the convent Palazzuolo, one still sees even now the rock below towards the lake completely scarped, evidently by the hand of man, so that on that side an attack on the town was impossible; on the other side, on the summit, stood the Arx. That the Albans had the dominion over Latium is a tradition which we may deem authentic, as it rests on the authority of Cincius.^[49] The Latins occupied afterwards the spot and the temple of Jupiter. The accounts also that Alba had shared with the thirty towns the flesh of the sacrifices on the Alban mount, and that the Latins after the fall of Alba, had themselves chosen their magistrates, are glimpses of history. The exceedingly ancient Emissarius is still preserved, and through its vault a canal was drawn, *fossa Cluilia*. In this vault, beneath the centroni, we have still a traceable work, more ancient than any Roman one. Yet that Alba was the capital; that it had the dominion over Latium; that its temple of Jupiter was the central point of the nations under its rule; and the *gens Silvia* the reigning family, is all that can be said about Alba and the Latins of that time.

It is not to be doubted, that the number of the Latin towns was really thirty, as well as that of the Alban boroughs. This number afterwards is again met with in the later Latin towns, and in the thirty Roman tribes; and it is also at the bottom of the account of Lavinium's being founded by thirty households, in which the union of the two races may be traced.^[50] The account that Lavinium was a Trojan colony, and afterwards abandoned, but again restored by Alba; that, moreover, the sanctuary could not be transferred from thence to Alba; however much it may bear the stamp of antiquity, is after all merely an adaptation of the Trojan and the native tradition. For, Lavinium is nothing else but a general name for Latium, as

Panionion for Ionia. *Latinus*, *Lavinus*, *Lavicus* are one and the same name; as Servius also acknowledges. Lavinium was the central point of the Prisci Latini, and without doubt there existed in earlier times, when Alba had not yet the rule over Lavinium, a communion of worship in Alba and Lavinium; as afterwards in Rome at the temple of Diana in the Aventine, and at the Roman and Latin holidays on the Alban mount.

The characters therefore in the Trojan legend are thus to be analysed. Turnus is no other than Turinus, the Τυρρηνός of Dionysius; Lavinia, the beautiful maiden, is the name of the Latin people; perhaps they are so distinguished as the inhabitants of the coasts are more especially called Tyrrhenians, those of the interior country, Latins. As the Latins after the battle at the Regillus, are found together with thirty towns in the league with Rome, we cannot doubt but that the number of those towns, of which the dominion belonged in the earliest times to Alba, was also thirty. Only there were not always the same towns in this league; many afterwards perished, others were received in their stead.

Here the same instinct of substituting the fallen off members of political organizations is at work, which is to be perceived every where so long as institutions quietly go on in accordance with the old traditional forms, and not with the actual wants of the times. Thus also in the twelve Achæan towns, in the seven Frisian maritime provinces, when one is ruined, the number is made up by splitting another. Where once a fixed number exists, although a unit may fall off, it is not given up, but it is always renewed. We may add, that the state of the Latins lost in the west, and gained in the east; we therefore take Alba as having thirty boroughs, and the thirty Latin towns as a state which at first was in league with Alba, and was afterwards subjected to its sovereignty.

The old places of the aborigines were, according to Cato's important statement in Dionysius, small villages scattered on the hills. Such a place lay upon the Palatine, and had the name of *Roma*, certainly a Greek one. Not far off, there are several other places with Greek names, Pyrgi and Alsium; nor is it an erroneous supposition that Terracina had formerly been called Τραχεινή, the rough place, or that Formiæ is to be derived from ὄρμος, anchorage, roadstead. As certainly as Pyrgi meant towers, as certainly did Roma the place of strength.^[51] Rome is described as a Pelasgian place where Evander lived, the founder of learning and

civilization. The first step in civilization, according to the legend, began with Saturn. In the tradition found in Virgil, which is to be taken quite literally, the first men grew out of trees (*gensque virum truncis et duro robore creti*). As in Greece the μύρμηκες were changed into myrmidons, and the stones of Deucalion into men and women, thus the trees also by some Divine energy grew men. These half men acquired by degrees human manners, and that they owe to Saturn. Yet really liberal cultivation they considered to have originated with Evander, who must not be looked upon as coming from Arcadia, but as the good man. He was the inventor or teacher of the use of letters.

Among the Romans, the conviction prevailed that Romulus, the founder of Rome, had been born of a maiden ravished by a god; that he had been wonderfully preserved alive, rescued from the floods, and suckled by a she-wolf. The ancient date of this poetry cannot be doubted. But did the legend at all times call Romulus the son of Rea Silvia, or of Ilia? Perizonius has first remarked against Ryckius, that Rea Ilia never occurred in combination; that Rea Silvia was the daughter of Numitor, Ilia of Æneas. He is perfectly right. Both Nævius and Ennius, call Romulus the son of Ilia the daughter of Æneas, as Servius in his notes on Virgil, and Porphyrius in those on Horace (Carm. 1, 2.), bear witness. Yet it must not thence be inferred, that this was also a national Roman belief; those poets who were familiar with the Greeks, might have annexed their legends to the Greek poems. But the old Romans could not possibly have made the mother of the founder of their city a daughter of Æneas, whose time was dated 333 or 360 years earlier. Dionysius says that his narrative, which was that of Fabius, is found in the sacred songs; it is also consistent with itself. Fabius cannot, as Plutarch asserts, have borrowed it from a wretched unknown Greek writer, Diocles. The statue of the she-wolf was erected in 457, long before Diocles wrote; at least a hundred years before Fabius. Certainly, therefore, this tradition is the older Roman one, and it places Rome in connection with Alba. There has lately been a monument discovered at Bovillæ, an altar which the *gentiles Julii* erected *lege Albana*; a religious reference therefore of a Roman family to Alba. The relation between the two towns goes as far back as to the founder. The well known legend, with the old poetical details of which Livy and Dionysius already leave out much, because they were afraid of accumulating marvels, is the following.

Numitor and Amulius were both of them candidates for the throne. Numitor is a *prænomen*; but the name of Amulius says nothing in proof of his having belonged to the *gens Silvia*; I question therefore if the old tradition took them for brothers. Amulius, so it is said, had got possession of the throne, and had made Rea Silvia the daughter of Numitor, a vestal, in order that the Silvian race might become extinct. This shows a want of knowledge of public law, as a daughter surely could not convey gentilician rights. The name Rea Silvia is old, yet Rea is only a cognomen; *rea femina* is in Boccaccio, and still to this day in Tuscany, a woman who has lost her honour. A priestess Rea in Virgil is ravished by Hercules. Whilst Rea in a grove was drawing water for a sacrifice, an eclipse of the sun took place, and she fled from a wolf into a cavern where Mars overpowered her. At her delivery, the sun is again eclipsed, and the image of Vesta covers its eyes. Livy here has left out the wonderful part. The tyrant threw Rea with her children into the Anio: she lost her life in the river; but the river god took her soul, changed her into an immortal goddess, and made her his wife. This is now modified by the tale of her imprisonment, which is prosaic enough to be of later invention. The Anio bore the cradle, just as if it were a boat, into the Tiber, on which it was drifted to the foot of the Palatine, the waters being high in consequence of a flood; and there it was overturned at the root of a fig-tree. The she-wolf takes the children forth, and suckles^[52] them: Mars sends a woodpecker, which brings them food, and the bird *parra*,^[53] who keeps them free from vermin. These details are scattered: the narrators have as much as possible stripped them of the marvellous. Faustulus, the legend goes on to say, found the boys nursed with the milk of the strong brute; he brought them up with his twelve sons, and they became the stoutest of them all. As chiefs of the herdsmen of the Palatine, they had a quarrel with those of Numitor on the Aventine;—the Palatine and the Aventine are always hostile;—Remus is led away a prisoner to Alba; Romulus rescues him; the descent from Numitor is discovered, and the latter restored to the government. They receive permission to settle at the foot of the Palatine hill, the place of their rescue.

From this beautiful poem the falsifiers tried to make out something credible; even the unprejudiced and poetical Livy sets aside as much as possible whatever was most marvellous. But the falsifiers went yet a step beyond. In those days when no one any more believed in the ancient deities,

they sought to discover something rational in the old legends; and thus they here got up a story which Plutarch received with predilection, and which Dionysius also does not disdain, who, however, likewise relates the old legend in a mutilated form. Dionysius says that many people believed in demons, and that such a demon might forsooth be the father of Romulus. Yet he himself is far from believing in it. On the contrary, his version is that Amulius had in disguise offered violence to Rea Silvia, playing off conjuror's tricks of thunder and lightning; that he had done so in order to have a pretext for doing away with her, but had then been asked by his daughter not to drown her, and had thereupon imprisoned her for life; that the herdsman whom he commissioned to expose the children, had preserved them at the entreaty of Numitor, and put two others in their stead; and that Numitor's grandsons had been taken to a guest-friend at Gabii, who had educated them according to their rank, and caused them to be instructed in Greek literature. It was really attempted to introduce this into history; and indeed some of the details of this silly story have found their way into the narrative of the historians, e. g. that the old Alban nobility had emigrated with the two brothers to Rome. Had this been the case, no asylum would have been wanting, and it would not have been necessary to obtain the connubium with the other nations by force.

More historically important on the other hand is the difference of opinion between the two brothers concerning the building of the city, and the spot on which it is to be founded. According to the old legend, both are equally heads of the colony, both of them kings. Romulus is generally stated to have wished to build on the Palatine; and Remus is said by some to have decided in favour of the Aventine, by others, of the Remuria. This is, according to Plutarch, a hill three miles south of Rome, and can be no other than the eminence which lies obliquely from St. Paul's; and this is the more likely, as this hill, though in a country elsewhere very unhealthy, is remarkable for the healthiness of the air,—a very important consideration in researches concerning the old Latin towns; as it may safely be inferred, that where the air is now wholesome, it was also the same at that time, and that where it is now unwholesome, it was then no better. The general account of tradition is that a quarrel had arisen between Romulus and Remus, as to which of the two should give the name to the city, as well as where it was to be built. Without doubt there also existed therefore on that hill a town called Remuria; and at a subsequent period we find this name transferred to the

Aventine, as was so often done. According to the common story, Auguries were to decide the matter. Romulus watched on the Palatine, Remus on the Aventine. The latter watched the whole of the night, but saw nothing; towards sunrise he saw six vultures flying from the north to the south, and he sent word to Romulus. But his brother, vexed that no sign had appeared to him, fraudulently sent him a message that he had seen twelve vultures; and in fact, at the very moment when the messenger of Romulus reached Remus, twelve vultures made their appearance, and these he claimed for himself. This is, however, impossible; for as the Palatine and the Aventine lie so near each other, every Roman only knew too well, that whatever any one saw high in the air on either of the two mountains, could not in any way escape notice on the other. The legend cannot therefore be old: it is only to be upheld by substituting Remuria for the Aventine. As the Palatine was the seat of the noblest patrician tribe, and the Aventine exclusively the city of the plebeians, there reigned between the two an undying enmity; and thus in aftertimes that scene was transferred from the Remuria, which was far off from the city, to the Aventine. According to Ennius, the Aventine was the very spot from which Romulus watched the heavens, so that the station of Remus must have been at Remuria, and Romulus, when he had observed the Augury, threw his javelin towards the Palatine. This is the old tradition which the later authors neglected. He takes possession of the Palatine. That the javelin took root, and grew into a tree which stood to the time of Nero, is symbolical of the imperishableness of the new city, and of the help of the gods. That Romulus had played false, is a later addition: the fine poem of Ennius in *Cicero de Divinatione*^[54] knows nothing of the circumstance. From hence it now follows that in the earliest times there were two towns, Roma and Remuria; the latter a good way outside the city, and far from the Palatine.

Romulus now drew the boundaries of his city; but Remus leaped in mockery over the ditch, for which Celer slew him, an intimation that no one should step with impunity over the bulwarks of Rome. Romulus, however, fell into grief on the death of Remus, instituted festivals for him, and caused an empty throne to be raised at the side of his own. Thus we have a double rule, which ends with the overthrow of Remuria.

The next question is, what were these two cities,—Roma and Remuria? They were evidently Pelasgian towns. There is an old tradition, that Sicelus

had come from Roma on the south to the Pelasgians; that is to say, the Tyrrhenian Pelasgians are driven to the Morgetians in Lucania and in the island, who were allied to them in blood. Among the Greeks, according to Dionysius, the belief was general that Rome was a Pelasgian, i. e. a Tyrrhenian city; but the writers from whom he had this information are lost to us. There is a fragment, however, in which it is stated that Rome was a sister-town of Antium and Ardea. We have also to quote here the notice from the Chronicle of Cumæ, that Evander had had his palatium on the Palatine. As an Arcadian he is likewise a Pelasgian. To us he appears less important than he is in the legend: he is one of the benefactors of the people, and to the Pelasgians in Italy he brought the use of letters and the arts, as Damaratus did to the Tyrrhenians in Etruria. In this meaning, therefore, Rome is indeed a Latin town; and that not a mixed, but a purely Tyrrheno-Pelasgian one. The after fortunes of this settlement are indicated in the allegories.

Romulus found the band which he had with him much too small. To the numbers of three thousand foot and three hundred horsemen, which Livy got from the *Commentarii Pontificum*, no regard should be given; for this is merely the sketch of the later Roman military array, dated back to the earliest times. According to the old tradition, his little troop was too small for him, and he opened an asylum on the Capitol. This asylum, according to the old description, only took in a very small space; a proof that these things were not at all understood as history. Therein were all sorts of people gathered together,—thieves, murderers, in short, rogues and vagabonds. This is the simple account of the way in which clientship began. In the bitterness with which the different classes afterwards regarded each other, this has been applied to the Patricians, as though their earliest ancestors had been scoundrels. But the Patricians would naturally be deemed descendants of the free companions of Romulus. Those who took refuge there are men who placed themselves as dependants under the protection of the really free citizens. But wives were now wanting to them, and they tried to get the right of intermarriage (*connubium*) with the neighbouring towns; especially perhaps with Antemnæ, which was only four (Roman) miles distant from Rome, with the Sabines and others. This was refused. Romulus, therefore, had recourse to stratagem: he gave out that he had discovered the altar of Consus, the god of counsel, an allegory to denote his usual craftiness. In the midst of the festival, the Sabine maidens were carried away, thirty in

number; for this is the genuine old tradition, a proof how small people pictured to themselves old Rome to have been. From these the Curies received their names. Afterwards the number was found to be too little; and it was cunningly made out that these thirty had been chosen by the drawing of lots to give their names to the Curies, and Valerius Antias fixes the numbers of those who were carried off at five hundred and twenty-seven. The Rape is placed in the fourth month of the city, because the Consualia were kept in August, and the festival in commemoration of the foundation of the city in April; afterwards it was made four years later, as by Cn. Gellius, and Dionysius finds this much more worthy of belief. Wars arise from it; first with the neighbouring towns, which yielded one after the other; at last with the Sabines. There is no trace in the old tradition of the latter having been carried on to any length; yet in later times it was necessary to assume it, because another standard was then adopted. Lucumo and Cælius march forth to join Romulus, an allusion to the inroad of Cæles Vibenna, which, however, took place much later. Tatius, by means of treason, gains a settlement on the hill which was called the Tarpeian stronghold. Between the Palatine and the Tarpeian rock an indecisive battle is fought, until at length the Sabine women threw themselves between the combatants, and the strife was put an end to by an agreement that the rule should be shared between the Romans and the Sabines. This happened according to the annals in the fourth year. But it lasted a short time only; Tatius was slain at a sacrifice at Laurentum, and his throne was left vacant. Before that time, each king had a senate of a hundred members, which after having deliberated separately, joined together in what was called a *comitium*. Romulus reigned alone all the remaining time. The old legend knows nothing of his having been a tyrant: on the contrary, according to Ennius, he continued to be a mild and benevolent king, and Tatius was a tyrant. The ancient tradition had nothing more than the beginning and the end of the reign of Romulus: all that lies between, the war with the Veientes, Fidenates, &c. are silly stories of the later annalists; and whilst the poem itself is beautiful, this narrative is quite tasteless. It says, for instance, that Romulus slew with his own hand ten thousand Veientes, and more of the same stuff. The old poem proceeds at once to the period when Romulus fulfils his career, and when to Mars the promise given him by Jupiter was granted, that Romulus might be the only man whom he should dare to introduce among the gods. According to this ancient story, the king

once reviewed his army at the marsh of Capræ, when, as at the time of his conception, an eclipse of the sun came on; and then likewise arose a whirlwind, in which Mars rode down in a chariot of fire, and took him up with him to heaven. From this beautiful lay, the most pitiful interpretations were wrested. It was said that Romulus had been among the senators, who had stabbed him, cut him in pieces, and carried him off beneath their togas. This silly story has become the general one. In order that a cause for such a deed of horror might not be wanting, it was now told that Romulus in his latter days had become a tyrant, and that the senators had revenged themselves upon him in this manner.

After the death of Romulus, there was for a long time a feud between the Romans and the people of Tati; the Sabines wishing for a king from among themselves, since no new election had been made to fill the room of Tati, whilst the Romans would have one of their own race. Then, it is said, it was at last agreed that one people was to elect the king from the other people.

And here we must speak of the relation of the two nations to each other, as it in reality existed.

All the nations of antiquity lived in fixed forms, and their political communities were always organized, down to the lowest ranks. When cities rise into nations, we always find at first a division into tribes. Herodotus mentions such tribes when Cyrene was colonized, and in later times this was also the case at the founding of Thuri; yet when a city anywhere existed as such, its claim to this character consisted in this, that its citizens were at a certain time divided into communities (γένη), which had a common chapel and the worship of a common hero. In the higher stages of these organizations, the clans were also in certain numerical proportions united into Curies (φράτριά). These clans are not families, but free associations, sometimes close, sometimes open; and in certain cases the general assembly of the state might assign them new members; as in Venice the great council was a close body, and it was so likewise in many of the oligarchical states of antiquity.

All the communities had a council and a commonalty, that is to say, a small and a great council, or a council and a popular assembly, the latter of which consisted of the guilds or clans; and these again were united as it

were into parishes. The Latin towns have all a council of a hundred persons. This was divided into ten decuries; and these gave rise to the term decurions, which was continued to the latest times for the magistrates of the towns, and also passed by the *lex Julia* into the constitution of the Italian municipalities. That this council consisted of a hundred persons is shown by Savigny in the first volume of his history of Roman jurisprudence. This constitution survived until late in the middle ages, and was abolished when corporations of the different trades came into the place of the municipal constitution. Giovanni Villani says, that before the revolution in the twelfth century there had been in Florence a hundred *buoni uomini*, who managed the affairs of the town. There is nothing in our German cities corresponding to this constitution. We must not consider these hundred as gentlemen; but they were, as in the small free cities of the empire, an assembly of the burghers and husbandmen, each representing a clan. They are called by Propertius *patres pelliti*. The Curia at Rome, which was thatched with straw (*recens horrebat regia culmo* in Virgil), was a faithful remembrance of the times when Rome, buried in what may be deemed the night of history, stood like a small country town surrounded by its fields.

The earliest event which we are enabled to make out from the forms of allegory, by comparison with what happened in other places in Italy, is a consequence of the continued great movement of the different races. It did not stop when the Oscans were driven from the Fucinus to the Alban Lake; it went much farther. The Sabines may have rested for some time, but they pressed on far beyond the countries of which we have traditions. They begin as one of the smallest of peoples, and become afterwards one of the greatest in Italy. The Marrucinians, Caudinians, Vestinians, Marsians, Pelignians, in short all the Samnite peoples; the Lucanians, the Oscan part of the Bruttians, the Picenians and others, have all sprung from the Sabine stock: and yet we have traditions only about the founding of some of them. This people was down to the period at which we must fix the foundation of Rome, in a state of expansion. It is said the Sabines, guided by a bullock, had advanced into Opica, and had thus founded the country of the Samnites. Yet earlier perhaps, they had moved down below the Tiber, so that we there find Sabine towns mixed with Latin ones; and we meet with some of them also on the banks of the Anio. Into the country of the later Sabines, they in all likelihood only came subsequently; for Falerii is a Tuscan town, and certainly its population had once been entirely Tyrrhenian.

At the advance of the Sabines, some of the Latin towns maintained their ground, others gave way. Fidenæ belongs to the former class: north of it all is Sabine. Now we find at the side of Old Roma a Sabine town on the Quirinal and Capitoline, hard by the Latin one; yet the existence of this town is all that we know of it. A tradition is extant, that before that there had once been a Siculian town, Saturnia,^[55] on the Capitoline; this then must have been conquered by the Sabines. Whatever may have been the case with regard to this, and to the existence of an old town on the Janiculum, there were here a number of small towns. The two cities could exist together, as there was a deep marsh between them.

The town on the Palatine may have been for a long time dependent on the Sabine conqueror, who, according to tradition, was Titus Tatius, and hence it is that his memory has been so hated. He was slain at the sacrifice of Laurentum. Ennius calls him a tyrant in the well-known line:

O Tite, tute, Tati, tibi tanta tyranne tulisti.

The existence of a Sabine town on the Quirinal hill is confirmed by the number of Sabine chapels which undoubtedly stood there, as Varro still knew, who proved from this fact that the Sabine ritual was received by the Romans. This Sabine element in the Roman worship has almost always been mistaken.^[56]

The legend that by the rape of the virgins war had arisen between the Sabines and Romans, is without doubt a symbolical account of the relation between the two places, when as yet there was no intermarriage between them. The Sabines had the upper hand, and denied it; the Romans conquered it by force of arms. The Sabines were certainly originally the masters; but by some movement of the Romans, other Sabine places like Antemnæ and Fidenæ, were subjected, and the Sabines were thus isolated from their countrymen. The Romans again insisted upon their independence, and from thence arose war, the issue of which may have been that which is handed down to us,—only that Romulus is to be set aside,—namely, that both places formed a sort of confederacy as two closely united towns, each with a senate of a hundred men and a king, with an offensive and defensive alliance; and that in common deliberation, the

assembly of their clans met on that spot between the two cities which afterwards bore the name of Comitium. Thus they formed against the foreigner only one state.

The account of a double state existed already among the ancients; yet the only proofs of it which have been preserved are scattered notices here and there, chiefly among the scholiasts. The head of Janus which in the earliest times is represented on the Roman As, is symbolical of it. Roman antiquaries have quite correctly understood this. The empty royal throne by the side of the Curule seat of Romulus refers to the time when there was one king only, and is emblematical of the equal but dormant right of the other people. [\[57\]](#)

It is also historical that this agreement was not of long duration; and that the Roman king usurped the rule over the Sabines; and that the two councils combined and formed one senate under one king, it being also settled that the king should by turns be a Roman and a Sabine; and that each time the king should be chosen by the other people, yet that no one should be forced upon the non-electing people whom they did not like, but that he should only be able to enter upon the *imperium*, if in the first place the auguries were favourable, and moreover the whole people had confirmed him. The other tribe had therefore the right of recognising or rejecting the king elect. This is told of Numa as a fact; yet it is merely a representation of the right taken from the books of rituals. This strange double act of election, which seems such a riddle, and was formerly so entirely misunderstood, is in this manner quite intelligible.

When the two states amalgamated, after having existed separately perhaps for ages, the towns ceased to be towns, and the collective mass of their clans formed itself into tribes. The nation consisted therefore of two tribes. From the earliest times the style of addressing the Roman people was, *Populus Romanus Quirites*, out of which, when the origin was forgotten, *Populus Romanus Quiritium* was made; just as *lis vindiciæ* afterwards was into *lis vindiciarum*. This change is older than Livy; yet the correct use of the phrase is still met with in his time, though much encroached upon by the false one. The old tradition says that the name *Quirites* had after the union of the two tribes been adopted as a common one. But this is false. The name first becomes common at a very late period only. When for a long time there had been no more difference between

Romans and Sabines, nor between these and the Luceres; and even later, when that between the patricians and plebeians had become almost wholly extinct, this denomination still remained, and was transferred to the plebeians. Thus the two towns stood side by side as tribes (*tribus*), and it is merely in acknowledgment of the old tradition that we call the Latins Ramnes, and the Sabines Tities. That the derivation from Romulus and T. Tatius is incorrect, does not impair the truth of the main assertion.

Dionysius, who had good materials, and made use of very many of them, must indeed, for the time of the Consuls, have sometimes had more than he gives; especially concerning one important change in the constitution, where he has a few words only, and has either not seen clearly, or has been careless.^[58] Yet with regard to the olden times of the kings he was clear. He says that there had been a dissension between the two tribes concerning the senates, which Numa had compromised, by not taking any thing for the Ramnes as the first tribe, but bestowing honours upon the Tities. This is perfectly plain. The senate, which at first consisted of one hundred, but now of two, was divided into ten decuries, each of which had a president. These are the *decem primi*, and these were taken from the Ramnes. They formed among themselves the *Collegium*, which, when there was no king, held the government by rotation; each for five days, yet so that the same always came back in their turn, as we must correctly assume with Livy. As for Dionysius, he brings in his Greek notions, taken from the Attic Prytanies; and Plutarch quite misunderstands the matter.

Not only the senate, but also the augurs and pontiffs, were doubled in number; so that each college consisted of four members, two of them from the Ramnes, and two from the Tities. These changes were attached indeed by Dionysius and Cicero to the names of certain kings; yet this must not hinder us from acknowledging them as quite historical.

Thus was Rome in the second stage of its development. This state of compromise is that of peace, and is described as the reign of Numa. Concerning him the traditions are simple and short. They had the ideal of a peaceful period, with a holy man at the head of affairs like Nicholas Von der Flue in Switzerland. People pictured to themselves Numa inspired by the goddess Egeria, whom he married in the grove of the Camenæ; who introduces him among the quire of her sisters, afterwards melts into tears at his death, and gives her name to a well springing from them. Such a peace

of forty years, during which no people had risen against Rome, because Numa's piety had had its influence upon the other nations, is a fine idea; but it is historically impossible at that time,—evidently a poetical fiction.

With Numa the first *sæculum* closes, and quite a new epoch begins; just as in Hesiod the ages succeed each other. The age of the heroes is followed by the iron era: it is evidently a period;—quite a different order of the world is supposed to be commencing. Hitherto we had mere poetical fiction; but now with Tullus Hostillus a sort of history begins, i. e. events which on the whole must be taken as historical, being foreign to history only from the light in which they appear. Thus the destruction of Alba is historical, very probably also the reception of the Albans into Rome. The conquests of Ancus Marcius are very credible: this point of real history stands like an oasis in the midst of legends. Something like this we once find in the Chronicle of Cologne. In the Abyssinian annals, there occurs in the thirteenth century one story, quite explicitly given, which we recognise as a piece of contemporary narrative. Before and after that, nothing historical is met with.

The history which now follows is like an image seen from behind, like phantasmagoria. The names of the kings are entirely fictitious. How long the Roman kings have reigned, no mortal man can know, as we do not know how many have reigned. For seven was fixed upon for the sake of the number only, which is found in connexion with many proportions, especially some important astronomical ones. The chronological dates are therefore utterly worthless. One ought to look upon the interval, from the origin of Rome to the times when people were able to execute those gigantic works which were really executed under the kings, and which vied with those of the Egyptians,—the sewers, the wall of Servius, and other buildings, as at least a succession of centuries. Romulus and Numa are to be wholly set aside; yet there follows a long period in which the races gradually amalgamate with each other, and spread, until the regal government disappears, and makes way for a republic.

For remembrance sake, we must, however, give the history as we have it. Between Rome and Alba there is not the least connexion, not even in those writers who suppose Rome to be an offshoot from Alba. Yet all at once, under Tullus Hostilius, they appear as enemies; each of the nations seeks for war, and the only question is to gain the favour of Fortune, on the

strength of each party pretending to be the injured one, and wishing to declare war. Both mutually sent envoys to demand satisfaction for depredations committed. The form was, that these envoys, the Fetiales, told to every one they met the grievances of their town; then they proclaimed them in the market-place of the foreign town, and if after three times ten days no satisfaction were given, they said, "We have done enough and now return," whereupon the senators at home deliberated about the manner of the satisfaction. In this formula, therefore, the *res*, the giving up of the guilty, and the restitution of the body was to be demanded. Now we are told, that the two nations at exactly the same time, sent such envoys; but that Tullus Hostilius had for a while detained the Albans sent to him, until he had learned for certain that the Romans had not had right done them at Alba, and had there declared war. He now first admitted the envoys into the senate, and to their complaints it was answered, that they themselves had not redressed the grievances of the Romans. Livy therefore thus continues: *bellum in trigesimum diem dixerant*. Yet the formula is *post trigesimum diem*; why did Livy or the annalist whom he followed, alter this? Quite naturally. One rides from Rome to Alba in a couple of hours; so that it was impossible that the Alban envoys should have been detained in Rome for thirty days, without being apprised of what was in the meanwhile going on at Alba. Livy saw this, and therefore altered the formula. But to the old poet this was of no consequence: he did not let it trouble him. He enlarged in his imagination the distance, and made Rome and Alba great states.

Just as undeniably poetical is the whole representation of the state of affairs in which Alba's fate was decided. We shall dwell a little on this point, in order to show how a semblance of history may be got up.

There was between Rome and Alba a ditch, *fossa Cluilia* or *Cloelia*; and moreover there must have been a tradition that here the Albans had pitched their camp. In Livy and Dionysius we find it mentioned, that a general of the Albans, Cluilius, had given it this name, and had also died in that spot. The latter circumstance must have been told to account for the general being afterwards a different man, Mettius Fuffetius, and yet that it should be still possible to connect the name of that ditch with the Albans. The two states commit the issue of the feud to single combat. Dionysius says that the traditions were not unanimous, as to whether the Roman champions were called Horatii or Curiatii; yet he as well as Livy gives them the name of

Horatii, in all likelihood, because the larger number of the annalists so had it. Who, without that passage of Dionysius, would have guessed any thing of that uncertainty? The combat of the three twin-born children is symbolical of both the states being at that time divided into three tribes. Attempts have indeed been made to clear away the improbability by denying the triple birth,—one of them is even mentioned as the youngest; yet the legend goes still farther, the brothers being said to have been the sons of two sisters, and to have been born on the same day. This is to represent the absolute equality between Rome and Alba. The issue was the complete subjection of Alba. Yet Alba did not remain faithful. In the struggle with the Etruscans which followed, Mettius Fuffetius shows himself a traitor to Rome; but he is prevented from executing his plan, and afterwards falls on the fugitive Etruscans; Tullus by way of punishment caused him to be torn in pieces, and Alba to be demolished; and the most distinguished Alban clans were transferred to Rome.

Equally poetical is the legend of the death of Tullus. He foolishly undertakes conjurations like Numa, and thereby draws the thunderbolt upon his own head.

If we try to make out the historical substance of these legends, we come to a period when Rome no longer stands alone, but has already colonies with Roman settlers, who possess a third of the soil, and who hold the sway. This is the case with a number of towns, most of them old Sicilian ones. So much is certain, that Alba was destroyed, and that after its fall, the towns of the Prisci Latini formed an independent and compact confederacy. How Alba was destroyed is involved in great obscurity. Whether, as it is said, it was ever forced to acknowledge the supremacy of Rome; whether it was destroyed by Romans and Latins combined, or by Latins or Romans alone, are questions which no human sagacity can solve. The destruction by the Latins rising against Alba's superiority is the most probable; but whether in that case Rome received the Albans into her bosom, will ever remain uncertain. That Alban clans were settled at Rome we cannot doubt, as little as that the Prisci Latini from henceforth existed as a consolidated state. Yet if we consider that Alba lies in the middle of the Latin country; that the Alban hill was their common sanctuary, the grove of Ferentina their place of assembly; the greater probability is this, that Rome did not destroy Alba,

but that the latter perished in the insurrection of the Latin towns, and that the Romans strengthened themselves by the admission of the Albans.

Whether the Albans first built on the Cælius, is more than we can ascertain. The account which places the foundation of the town on the Cælius in the times of Romulus, tends to prove that before the reception of the Albans, a town already existed here. But what weight has that account? A third tradition represents it as an Etruscan colony of Cæles Vibenna.

The destruction of Alba had an extraordinary effect on the greatness of Rome. At all events there now existed a third town on the Cælius and part of the Esquilæ, which seems to have been very populous. Such a settlement quite close to other towns was made for the sake of mutual protection. Between the two older towns there was a perpetual marsh and morass; the Roman town was likewise bordered on its south side by a piece of stagnant water; but between the third town and Rome there was dry ground. Rome had also a considerable suburb towards the Aventine, behind a wall and ditch, as is represented in the legend of Remus. The latter is a personification of the plebeians: he jumps from the side of the Aventine over the ditch.

The Sabine town had without doubt the name of Quirium; for the πολιτικόν of it is *Quiris*. This is certain. Almost as little do I doubt but that the town on the Cælius was Lucerum; because, when it was united with Rome, its citizens were called *Lucertes* (Luceres). The ancients derive this name from Lucumo king of the Tuscans, or from Lucerus king of Ardea. The meaning of the latter may perhaps be this, that the tribe was Tyrrheno-Latin, since Ardea was the chief town of that tribe. Thus Rome was enlarged by a third element, which is not, however, on an equal footing with the other two, but is in subjection to them, just as Ireland was to Great Britain before the year 1782. Yet although they were obliged to acknowledge this supremacy, they were already looked upon as being a part of the whole, as a third *tribus* with an independent administration, though with inferior rights. What here shows us our way is the statement of Festus, who on the subject of Roman antiquities is very trustworthy, inasmuch as he makes extracts from Verrius Flaccus. In a few points only has one of the two in my opinion made a mistake; all the rest may be accounted for by the deficiency of the extract, as Festus did not always understand Verrius Flaccus. The statement of Festus, which I am now speaking of, is this, that

Tarquin the Proud had reduced the number of the vestals to six, so that each tribe might have two of them. In connexion with this is to be taken the passage in the tenth book of Livy, which asserts that the augurs were to represent the three tribes. The numbers in the Roman priestly colleges may always be divided either by two or by three: by three, those of the vestal virgins, of the great flamens; by two, those of the augurs, the pontiffs, the fetiales; these last represented only the two first tribes. Before the passing of the Ogulnian law, there were only four augurs; and when afterwards five plebeian ones were added, the basis of this increase was indeed a different^[59] one; yet the ancient form of divisibility by three was kept up. The pontiffs, of whom there were likewise four, had at that time only four added to them. This then would seem to be an inconsistency; but a passage of Cicero on the subject has been overlooked, in which he tells us that the number of those added had been five, evidently counting the Pontifex Maximus with them, which Livy does not.—In the same manner there were twenty Fetiales, ten for each tribe; and Numa added to the Palatine Salii, another brotherhood of the same kind on the Quirinal. Every where the two first tribes are plainly opposed to each other on an equal footing, while the third is left in the background.

The third rank accordingly consisted of free citizens; yet it had not the same rights as the two first. Nevertheless it thought itself better than all other people; it stood in the same position as that in which the Venetian citizens of the mainland did to the nobili. The nobleman of Venice treated one of these citizens with more regard than he showed to any of the others, so long as he did not take upon himself to claim to have a voice in political matters. Whoever belonged to the Luceres called himself a Roman; and if the dictator of Tusculum had come to Rome, the man of the third tribe in it would have looked down upon him as an inferior, although he himself was of no account.

Tullus is succeeded by Ancus. Tullus makes his appearance as one of the Ramnes, as a descendant of Hostus Hostilius, one of the companions of Romulus; but Ancus on the contrary is a Sabine, and a grandson of Numa. His story has an historical air: there is none of the colouring of poetry in it. The development of the state advances in his reign another step. Rome and the Latin towns are, according to the old description, at war with each other, and the Romans carry it on with success. How many of the details of which

we are told here, are historical, I cannot decide: that a war took place is credible enough. It is said that Ancus after this war led away many thousand Latins, and established them on the Aventine. The ancients judged differently of him: he at one time appears as *captator auræ popularis*, and at another he is called *bonus Ancus*. Like the three first kings, he is also stated to have been a lawgiver: of the later ones this is no more mentioned. He is said besides to have founded the colony of Ostia, and therefore to have extended his rule to the mouth of the Tiber.

Ancus seems, like Tullus, to be historical; only we can hardly suppose that the one was the immediate successor of the other, and that the events which are placed in their reigns really belonged to those times. These events must be considered in the following manner. When at the end of the fourth reign, the Romans, after a long feud, came to an agreement with the Latins about the renewal of the long neglected league, Rome dropped her claims to a dominion which she could not preserve, and in exchange enlarged herself on another and a safer side. The eastern colonies coalesced with the preserved Latin towns, although this is nowhere expressly stated. Part of the Latin country was yielded to Rome, the rest entered into relations of friendship, and perhaps of isopolity with it. Rome in this acted wisely, as England did when she acknowledged the United States of North America.

In this manner Rome acquired a *distretto* (district). The many thousand settlers whom Ancus is said to have led to the Aventine, are the population of the Latin towns which fell to Rome, a much more numerous one than that of the two old tribes, even with the addition of the third, which was already much the largest. In this rural district lay the strength of Rome; from it was the army raised with which the Romans carried on their wars. Now it would have been natural to admit this population as a fourth tribe, but this did not please the Romans: the constitution of the state was closed, and it was looked upon as a trust in which nothing must be changed. As our forefathers in their different tribes clung to their own peculiar laws (the emperor Otho made a question arising out of the law of inheritance to be decided by an appeal to the judgment of God), so was it likewise among the Greeks and Romans. A town in Sicily had Chalcidian *Nomima*, another had Doric ones, although the population was entirely mixed: in the former there were four; in the latter, three tribes.^[60] The division into three tribes was an

indigenous Latin one; but it may be that the Sabines in their towns had the division into four.

Here we have the first beginning of the plebes. Although the story that Ancus led the Latins away from their homes, and transplanted them in Rome, deserves no credit, because it is impossible; yet it is not to be doubted that Ancus Marcius is justly mentioned as the builder of a town on the Aventine. Here arose a town, which to the very latest times kept itself politically separated from Rome proper, and which for a very long period, as a byetown, was not comprehended in the Pomœrium.

Ancus is succeeded by Tarquinius Priscus, who is represented as a half Etruscan, son of an Etruscan woman and of Damaratus. The latter is said to have been a Bacchiades, who in the revolution of Cypselus had left Corinth with great treasures, and emigrated to Tarquinii. His heir was his son Lucius Tarquinius, as an elder son, Aruns, had previously died, leaving behind him a wife whom the father did not know to be with child. This account is very generally believed, because Polybius, though a Greek, mentions Tarquin as a son of Damaratus, and because the time corresponds. Yet this is after all merely an illusion. The whole agreement hinges upon the correctness of our chronological dates of the Roman kings, according to which Tarquinius Priscus ascended the throne in the year of the city 132; but if we must place him at a later time, the story of Damaratus and Cypselus, which pretty certainly belongs to the thirtieth Olympiad, falls at once to the ground. Now it has already been remarked in the general review of the sources of Roman history, that all the old annalists, with the single exception of subtle Piso, have never doubted but that Tarquin the Proud was the son of Tarquinius Priscus; and consequently the date assigned for the latter must be altogether incorrect. And therefore the connexion with Damaratus becomes impossible.

Damaratus belongs to the old tradition about the connexion between Greece and Etruria, and of the civilization which came from Greece to Etruria. As Evander did to the Latins, so does Damaratus bring the letters of Cadmus to the Etruscans, or Tyrrhenians; and he also belongs, according to the most ancient Greek tradition, to equally early times. The alleged connexion with Tarquinius Priscus arose from the circumstance that the old legend speaks of Tarquinii as the place where Damaratus settled. Of his descent as a Bacchiad, the tradition certainly knew nothing: it was added by

later historizing accounts, which every where tried to keep up a sort of link with history. The reason for referring Damaratus to Tarquinii was partly this, that Tarquinii was an important town, and partly also that between Tarquinii and Corinth there is a connexion not to be mistaken. Formerly the vases and vessels found in Tuscany were taken for Etruscan; but afterwards people most justly gave up that opinion, though they now believed that such vases had never existed in ancient Etruria. But there have been vessels dug up at Corneto which are perfectly similar to the oldest Greek ones,—not to those which were formerly called Etruscan but to the real Greek ones from the earliest times, especially to the Corinthian ones which Dodwell has copied.^[61] Fragments of the same kind are only found there near the old Tarquinii. In all the rest of Tuscany such a vessel has hardly been met with more than once or twice; whilst in the north-eastern part of the country, near Arezzo and Fiesole, the Arretinian vessels of baked red clay with embossed figures of quite a peculiar style of art are quite common, which, on the other hand, are nowhere found near the coast. This connexion of the art of Tarquinii with that of Greece, especially Corinth, explains the tradition that the artists Eucheir and Eugrammos had accompanied Damaratus from Corinth.

When once Tarquinius Priscus was connected with Tarquinii, and the tradition besides was remembered, that the solemn worship of the Greeks had first been introduced by him, it was said, “this is the work of the old Greeks;” and now it became necessary to compare the Roman chronology, as laid down in the books of the pontiffs, with the Greek one, which could already be done, as Timæus had written. Then it was found that the connexion became possible, if Damaratus was made the father of Tarquin. This Tarquinius Priscus or Lucumo, it was said, had with his wife Tanaquil, an Etruscan soothsayer, betaken himself to Rome, being only a half citizen at Tarquinii; and on his journey thither, a miracle happens to him. Of his reign many glorious things are told. Yet here the accounts differ: one, that of Livy, is very modest; another makes him conquer all the Etruscan towns. This is to be read at length in Dionysius; the story of it has its place in the Roman annals, so that Augustus even had these victories marked in the triumphal Fasti as three triumphs with definite dates, as we see from the fragments which remain.^[62] Now the Romans had so much the more reason for believing these statements, as Tarquinius Priscus is always mentioned as

the man who united the two towns, that of the Sabines, and that of the Romans, and built the gigantic works by which also the valleys were filled up.

The same account, generally calls Tarquinius Priscus Lucumo; yet this was never a name, but the Etruscan title of a prince. Whenever the Romans want to invent any thing about the Etruscans, they always call the men Lucumo, Aruns, or Lars. The last of these probably means king. Aruns is a common name, as we may see from the inscriptions of the Etruscan tombs, of which we cannot indeed understand one word, but yet may recognise the names. I have looked over all the Etruscan inscriptions, and have arrived at this conviction, that there is in them an entirely different language, of which we can only guess some words: for instance, *ril avil* means *vixit annos*. Lucumo is nowhere found on them; and the old philologists also, as Verrius Flaccus, knew that it was no name. The Romans had several traditions concerning a Lucumo who acts a part in Roman history; one, for instance, was a companion of Romulus. No one else is meant by any of them but Lucius Tarquinius Priscus; that is to say, the tradition referred every thing to him that was told of the others. Livy says that he had given himself at Rome the name of L. Tarquinius Priscus, for which the philologists reproach him as guilty of a great oversight, which, however, is only to be deemed one if we suppose that he had explained Priscus to mean "The Old." Yet Livy might often in the first book have written down the narrative under the conviction that all that had not really so happened, and that something different might be understood as its meaning. Priscus is a common name with the Romans. Among the Patricians we find it in the family of the Servilii; Cato was called Priscus before he got the name of Cato, i. e. Catus, the prudent one, with the emphatic termination o; and besides these a whole series of families bear this cognomen. I am convinced that Tarquinius has been brought into connexion with Tarquinii only because of his name, and that on the contrary he was in reality a Latin. This is supported by the mention of Tarquinians, who after the expulsion of the kings reside at Laurentum; and likewise by the fact that Collatinus betook himself to Lavinium, a Latin town. The whole story of the descent of Tarquinius Priscus from Damaratus falls besides to the ground, as Cicero, Varro, and even Livy acknowledge the existence of a *gens Tarquinia*; and how utterly different is a *gens* indeed from a family which only consists of two houses,

that of the kings and that of Collatinus? Varro says expressly, *omnes Tarquinius ejecerunt, ne quam reditionis per gentilitatem spem haberet*.

The reason of Tarquin's being connected with Etruria was, besides his name, the necessity of accounting for an Etruscan influence on Rome. The Romans made Servius Tullius, who was an Etruscan, a Latin from Corniculum; and *vice versa*, Lucius Tarquinius Priscus, who was a Latin, an Etruscan. Thus the whole story of his descent is a fiction, and this is also decidedly the case with Tanaquil, inasmuch as the Romans so name every one of the women who were stated to have been Etruscans, it being a common Etruscan name, which is often met with in inscriptions. In the old native tradition Tarquin was married to a Latin woman, Caia Cæcilia, a name which must be traced back to Cæculus the founder of Præneste. Her image was set up in the temple of Semo Sancus; for she was worshipped as the guardian goddess of female domestic virtue. This bears a genuine stamp of nationality. In the old legend, she is such a familiar personage that the girdle of her brazen image was filed off, and the filings were used as remedies.

It is therefore a matter of history, that there was a Latin Tarquinius Priscus; yet he in all likelihood belongs to the Luceres. He introduces the Luceres into the senate; to the two hundred councillors a hundred more are added, summoned by the king as *gentes minores* after the *gentes* of the two first tribes; in the rebellion of his son against Servius Tullius, they are his faction. His time seems to be parted from the former one by a great gulf: in his reign, Rome appears under quite a different form from what she had before. The conquests which are ascribed to Ancus Marcius are confined within a very narrow space. He first conquers the mouth of the Tiber, and fortifies Ostia. But now a state of things is mentioned, the consequences of which we still see, even to this hour. To this very day there stands unchanged the great river vault, the *Cloaca maxima*, with the name of which one incorrectly associates a base meaning. It is not a mere sewer, though it is also used as such. Its real object was no less than that of draining the great branch of the river's bed, which went forth from the Tiber between the Capitoline, the Aventine, and the Palatine, and between the Palatine and Capitoline, and then extended in marshes to the space between the Quirinal and the Viminal, and of thereby gaining solid ground. This work consisting of three half circles of huge blocks of free stone without

mortar, which even to this present moment have not given way the breadth of the back of a knife, drew off the water from the surface, received it underground, carried it into the Tiber, and formed a firm soil. At the same time, because the Tiber had also muddy banks, a great wall was built as a dyke, the greater part of which is still in preservation. This construction is equal in extent and bulk to the pyramids; in difficulty it very far surpasses them. It is such a gigantic fabric, that one does not comprehend it when one sees it: even the aqueducts of the Emperors are indeed nothing great when compared to it. They were of brick, with a cast of mortar in the middle; but here, all is of hewn Alban freestone, with immensely deep foundations.

Whether the *Cloaca Maxima* was executed by Tarquinius Priscus, or by his son Superbus, is a point in which the ancients differ from each other, and we also can decide nothing. This much, however, we may say, that the building must have been completed before the town was enclosed within the circuit of the seven hills, and formed a whole; yet this was done by the last king but one, and therefore, if we will avail ourselves of the personification, in the time of Tarquinius Priscus. But such a work could not possibly have been executed with the resources of the State as we know it to have been at that period, when its territory extended from the river about two leagues in breadth, and at most six to eight leagues in length, and consequently was not as large as that of Nuremburg; especially if we think of all the difficulties of an age in which trade and commercial wealth were in no wise in existence. Here are evidently all the intervening stages leaped over, and we see at once an Empire before us quite different from the former one, in which Rome rules far and wide. Of this sway we find no mention in Livy, although he too is astonished at these buildings. Livy fancies that time to be a state of childhood for the city, and is therefore under the same delusion by which Cicero, and the later writers especially are beguiled; that the period of the kings was to be looked upon as the age of Rome's greatest weakness. Much more correct might be the account given by Dionysius, according to which the Etruscan towns, the Latins, and the Sabines paid homage to Tarquinius Priscus. Only all the narratives of the manner in which this had come to pass are so fabulous, that one cannot be mistaken as to their being invented by those who had wished to solve the riddle. Here history entirely fails us. But whatever relation Tarquinius Priscus may have to the Tuscan legends of the conquests of Tarchon, this much we may say; that Rome itself ruled at that time with an extensive

sway, or else that it was the seat of foreign rulers, so that at all events a state of things had existed in which Rome was the centre of a foreign empire.

Another undertaking quite as enigmatical is assigned to the same reign of Tarquinius Priscus. It is said that Tarquin had wished to double the Romulean *Tribus*, that is to say, to add three new tribes bearing his own and his friend's names. To this the Augur Attius Navius had objected, as three tribes were enjoined by the auspices. Probably the legend was not as Livy, but as Dionysius has it; that Tarquin had himself cut through the whet stone, and in doing so had wounded his hand. The king had not indeed then formed three new tribes, but had annexed new centuries to the old ones. In this legend therefore the immutability of the tribes is spoken of, as well as the intention of the ruler to double the community by new citizens, which scheme the old citizens set their face against, pleading the sacred character of the original number. But we see here a ruler, who is not a mere magistrate, but governs by arbitrary force:—he yields as to the form, but alters the substance, making second centuries. Centuries and tribes are originally the same thing, since the *tribus* had a hundred clans. How it was with the second centuries is utterly hidden from us. One hypothesis is this, that as many of the old clans had died away, Tarquin formed new ones; for instance, that when the Ramnes had dwindled to fifty, he added to fill up the number fifty new clans, as *secundi Ramnes*. We have the example of the Potitii, who became extinct in the time of Appius Claudius, though they still consisted, as we are told, of twelve families. The rolls of exclusive families show with what rapidity they become extinct. In Styria there were formerly two thousand noble families, and now there exist scarcely a dozen of them; in the duchy of Bremen, the equestrian body admissible to the diet dwindled within fifty years to half its number, merely because they intermarried only with those of their own cast. In Luneburg the government formerly belonged to the noble houses; now there is only one house left. Perhaps Tarquin collected the remnants of the old Curies, and then made up clans which were wanting. What recommends this supposition is this, that there remained some difference between the old and new clans. Certainly the new centuries had not the weight which they would have had as independent tribes.

It is a very uncertain thing to seek allegories in historical statements, and to try and draw from them again historical facts. Thus as Ancus

Marcus is the founder of the *plebes*, and the murder of Tarquin is said to have been brought about by the Marcii, one might surmise that Tarquin, who was one of the Luceres and had introduced them into the senate, had perished owing to rebellion of the plebeians. Yet this is one of the most hazardous hypotheses, and therefore I did not choose to have it printed. In proffering it, I support myself on a credit to which he may lay claim, who for eighteen years has almost incessantly devoted himself to these researches, after having been fondly attached to them for many a year before.

The legend which makes Tarquin the acknowledged chief of the twelve Etruscan towns, leads us to speak of the Etruscans. They are perhaps of all the nations of antiquity that on which the most different disquisitions have been made with the smallest apparatus of authorities, and about which also the greatest number of deceptions have been circulated. The forgeries of one Annii of Viterbo, of one Inghirami, and others, are impudent in the highest degree; and yet they have nevertheless become the sources of many later works. By them Dempster, and by him Winkelmann in his turn, was led astray. In the eighteenth century, the Italians did not indeed forge any more documents; but with the greatest recklessness they gave themselves the air of being able to explain what could never be explained. Indeed, many written documents existed of the Etruscans; yet only a few great ones. Five years ago an altar was dug up, written all over on three sides; a cippus in Perugia; a coffin at Bolsena, &c.; and descriptions have been published of them, some separately, and some collectively; especially by Lanzi. On works of art also, inscriptions are found. To interpret these is a matter of great interest, since, if we could read them, much light would dawn upon us; but this has given rise to the definite presupposition that they were capable of being explained, and thus the most arbitrary things were done. Eastern languages, and the Celtic were applied to it; at last Lanzi acted on the supposition that it was a sort of Greek, and, in defiance of all the rules of grammar, he formed at his own pleasure a spurious Greek. With all these relics, we stand without knowing any thing, as we did with regard to the hieroglyphics, until Champollion arose. Long *inscriptiones bilingues* only could help us out. We may positively assert that the Etruscan has not the least resemblance to the Latin and Greek, nay, to any language which is known to us, as Dionysius already has justly observed. This passage of Dionysius has purposely been overlooked, or its absolute meaning has been

wrested into a conditional one. The Umbrian on the Eugubian tablets, has some resemblance to the Latin.

Dionysius had this information, that the Etruscans considered themselves as an indigenous people, which descended from no other, and, knowing nothing of the name of Tyrrhenians and Etruscans, called themselves Rasena.^[63] Of the traditions of the Greeks they knew nothing. Yet the latter had two distinct traditions concerning the Tyrrhenians, which they referred to the Etruscans; the one, that of Hellanicus, that the Pelasgians from Thessaly had settled at the mouth of the Po, at Spina, from whence they had crossed over the mountains to Etruria; the second, that of Herodotus, according to which the Lydians at the time of Atys, were visited by a famine, so that part of the people under Tyrrhenus were obliged to emigrate to Italy. Dionysius controverts the latter statement in that good style of criticism which we sometimes find in him, on the ground that neither the language nor the religion of the Etruscans bore any resemblance to those of the Lydians; and that neither the Etruscans, nor the Lydian writer Xanthus,—whose work, as O. Müller shows, was unjustly suspected among the Greeks of not being genuine,—know any thing about it. Dionysius in this judged rightly, because he did not work from books, but from immediate observation. With the other tradition he deals differently: he does not altogether drop it; but he refers it, not to the Etruscans, but to the aborigines. The Italian antiquaries, on the contrary, stuck to the Lydian tradition; or they also referred the emigration of the Pelasgians from Thessaly to the Etruscans, and said, in spite of all the assertions of Herodotus, that the inhabitants of Cortona (Croton) were not at all different from the people of the neighbourhood. And here I will now set forth the simple results of my researches concerning the Etruscans. I have (in the new edition of the first volume of my Roman history) shown that the name of Tyrrhenians was transferred by the Greeks to the Etruscans, as we use that of Britons when speaking of the English, or that of Mexicans and Peruvians, of the Spaniards in America; because those nations dwelt originally in these countries, whilst a newly immigrating people founded quite a new order of things, and that so completely that we no more recognise any traces of an earlier condition, than if the former had never existed. The Tyrrhenians were quite a different people; yet they inhabited the shores of Etruria, as well as the whole coast to the south, as far as Ænotria proper, i. e. Calabria and Basilicata. These Tyrrhenians were

Pelasgians, as well as those of the Peloponnesus and Thessaly: and when Sophocles speaks of Τυρρῆνοὶ πελασγοί in Argos; when in Æschylus king Pelasgus, son of Palæchthon, rules in Argos; when Tyrrhenians, according to Thucydides, reside near Athos, and in Lemnos, and, according to Herodotus, in Attica near the Hymettus, these are all branches of one and the same stock. In Asia Minor we must fill up the gap in history after the destruction of Troy by making the Lydians, Carians, and Mysians, push forward from the interior country nearer to the coast in the neighbourhood of the fallen city, partly subjugating, partly expelling, the Meonians and other Pelasgian nations. The Meonians, who are always distinguished from the Lydians, are likewise Tyrrhenians, and are called so by Ovid in the Bacchian fable. Now these Tyrrhenians have given to the coast of Western Italy and to the Tyrrhenian Sea their names: the Romans call them *Tusci*. Both names passed to the Rasena, who came down the Alps as conquerors. Thus the whole statement of Herodotus becomes clear. It is a usual genealogical explanation to show how Tyrrhenians could have been in Lydia, and also in Italy. This opinion is now generally received in Germany and in England.

The only difficulty, which indeed does not damage the evidence for this representation, but is surprising as a fact, is this, that after the Etruscan conquest of the Tyrrhenian country, the language of the Rasena is the only one preserved on so many monuments; and that no trace of inscriptions is to be seen in the tongue which was akin to the Greek, as we must presume the Tyrrhenian to have been. But, in the first place, these inscriptions were almost all of them found in the interior of the country near Perugia, Volterra, Arrezzo, &c., where the original population was Umbrian; and on the sea coast near Pisa, Populonia, Cære, Tarquinii, and elsewhere, only in very small numbers. Some have been lately discovered near Tarquinii, but they have not yet been published: one might therefore say, that if no Tyrrhenian inscriptions have yet been met with, they may still be found. But no stress is to be laid on such special pleading. In conquests which bring a heavy yoke upon the conquered, the language of the vanquished often becomes wholly extinct. In Asia and many other countries, the use of the native tongue was forbidden, in order to prevent treason. The Moors were in many respects mild rulers in Spain, and the country flourished under their sway; yet in Andalusia, at the advance of the Christians, a king forbade his people on pain of death to speak Latin, so that a hundred years afterwards

no more trace of that language is to be found. As late as in the eighteenth century, the whole Christian population of Cæsarea spoke Greek: a bashaw forbid them to do so, and after a lapse of thirty or forty years, when my father came to the place, not a soul was any more able to converse in that language. In Sicily, at the time of the Norman conquest, the language was exclusively Greek and Arabic; even under the Emperor Frederic the Second, the laws were still promulgated in Greek; afterwards this language all at once utterly disappears. In the Terra di Lecce, and the Terra di Otranto also, the names were afterwards Italian, but conversation was in Greek; and at the end of two hundred years, in the fifteenth century, it became extinct also here. In Pomerania and Mecklenburg, without any immigration of Germans, merely owing to the predilection of the princes, the Vandal language has vanished in the course of one or two generations. The conquerors of the march of Brandenburg forbade the use of the Vandal tongue on pain of death, and nothing soon was spoken but the Low German, (*plattdeutsch*). The Etruscans had quite an aristocratical constitution, and they lived in their towns in the midst of a large subjected country; under such circumstances, it could not but be of great importance to them, that the people should adopt their language.

The Rasena came down from the Alps as conquerors, since, according to Livy and Strabo, not only the Rhætians, but also the other Alpine tribes, the Camunians, the Lepontians on the Lake of Como, were of Etruscan race. That they were forced by the Gallic conquest to retire from the plain into the Alps, has never been said by any of the ancients; and it is absurd to think that a people which fled before the Gauls from the Patavinian plain, should have been able to subdue the mountaineers of the Alps, or have been allowed to have any footing there, unless those regions had already before been occupied by others of the same tribe. We have the tradition, probably from Cato, that the Etruscans had taken three hundred Umbrian towns;—these must be considered as belonging to the interior of Tuscany;—and a long time afterwards, a district in Tuscany is called Umbria, and a river, Umbro. The Etruscans are therefore one of those northern nations which were driven to the south by the pressure of some of those national migrations which are quite as historically certain as the later ones, although we do not find any record of them,—national migrations like that which had driven the Illyrians forward, so that the Illyrian Enchelians, about the fortieth Olympiad, burst into Greece, and sacked Delphi, as Herodotus tells

us. Such a national migration drove the Etruscans from the north. They once inhabited Switzerland and the Tyrol; nay, it surely happened to the Etruscans in those countries, as it did also to the Celts in Spain, that some tribes kept their ground longer than the other. The heathen wall on the Ottilienberg in Alsace, which Schweighäuser has described as one of the most remarkable and unaccountable of monuments, is evidently an Etruscan work: it has exactly the character of Etruscan fortification, as we see it at Volterra, Cortona, and Fiesole. Some would have this called the Gallic style of building; yet quite groundlessly, as we may see both from Cæsar's description, and also from other remains and structures in Gaul. There are two essentially distinct kinds of fortifications in central Italy. The one are the so-called Cyclopiæan Walls, built in polygons, which alternate with intentional irregularity along the slope of a hill, in such a manner that it has become quite scarped, but at the summit it is without walls. The ascent is by a ledge on the slope of the hill, *Clivus*, which one may ride up on horseback; at the bottom of it, and at the top there are gates. In this manner the Roman and Latin hills were fortified. The other are the Etruscan fortifications, which are erected on the crown of a hill of difficult access, the wall being not of polygons, but of parallelopipeds of colossal dimensions, very rarely of hewn stone, which follow the ridge of the hill in all its bendings. Thus it is near Volterra, and such is the one in Alsace just spoken of. Now, I do not assign the origin of this wall to such very ancient times, but to a kindred tribe with the Etruscans, which had long maintained its ground there against the Celts; and yet I would not quote its existence as an irrefragable proof that there had been such a tribe. The Etruscans settled first in twelve towns in Lombardy; about as far as to the present Austrian frontier, on the side of Piedmont (Pavia was not Etruscan); in the south, from Parma to Bologna; in the north, from the Po to Verona; then they spread farther, and founded or enlarged in the country south of the Apennines twelve towns besides, from which they commanded the country. Now it is the common belief that the Etruscans were quite an ancient people in Italy; I was myself for a long time of that opinion. But very old in Tuscany they are not; and in that part of southern Tuscany which now belongs to the States of the Church, they have spread only very late. Herodotus relates that about the year of the city 220, the unfortunate Phocæans had been beaten in a sea-fight by the Agyllæans who dwelt in Corsica, and the Carthaginians, and that those who had been taken prisoners

were stoned to death; that the vengeance of heaven for this crime had been made manifest; that the Agyllæans had applied to Delphi, and that Apollo had imposed upon them Greek sacrifices and the worship of Greek heroes. Now Agylla, according to the unanimous account of all writers, bore this name as long as it was Pelasgian: thenceforth it was called Cære by the Etruscans. Mezentius, the tyrant of Cære in the legend which Virgil with his great learning embodies in his poem, may with much probability be taken to be the Etruscan conqueror of Cære. He also appears afterwards as the conqueror of Latium, who claims for himself the tithe of the wine, and even the whole produce of the vintage. The extensions of the Etruscan sway belong to the age of the last kings of Rome: they are connected with the expedition of the Etruscans against Cuma, and in the country of the Volscians. About the time from Olympiad 60 to 70, they spread in those parts; in the year of the city 283, they found Capua, according to Cato's account, which has certainly great authenticity. The shortness of the period allowed for the growth and decay of the people, the objection started by Velleius, cannot make this improbable: Capua, for instance, had already been built two hundred and fifty years before it became a large town: New York is a case yet more in point. The time, therefore, when Hiero of Syracuse defeated the Etruscans near Cuma, was that in which these people flourished. In the beginning of the fourth century of the city, they declined, while the Romans rose; and in the middle of the century, the Gauls wrested from them the northern part of their territory,—their possessions in the neighbourhood of the Po.

After men had come to the conviction that the Alban origin of Rome was untenable, Rome was believed to be an Etruscan colony. I myself put forth this supposition, and made it the groundwork of the first edition of my History, because I held the Alban Latin descent to be false. This Etruscan origin seemed to me to be confirmed by several circumstances, especially by the statement of a certain Volnius in Varro, that the names of the oldest Roman tribes were Tuscan; and, moreover, by the remark that the secret theology of the Romans was derived from Etruria, and that the sons of the ten first in the Roman senate learned the ordinances of religion there, insomuch that the worship of Jupiter, of Juno, and of Minerva on the Capitol, was in all likelihood after the Etruscan ritual. Yet by unprejudiced researches I have convinced myself that this is not the case; that the two original elements of the Roman state are the Latins and Sabines, though I

would not altogether dispute the existence of an Etruscan one afterwards added to it; that as Rome is much older than the spread of the Etruscans in those parts, the statement of Volnius is either groundless, or the names of the tribes were later than the tribes themselves; yet that the strong influence of the Etruscans at the time which is designated as the reign of Tarquinius Priscus, and of Servius Tullius, is sufficient to account for all the Etruscan institutions in Rome. Moreover no ancient author ever speaks of an Etruscan colony at Rome. The question then is only this, Whether the Etruscans spread so early, that in the times of Tarquinius Priscus they were already in possession of Tarquinii and the neighbouring places? or whether they began only about the sixtieth Olympiad, and later, to appear on the Tiber and beyond it?

Before we now proceed to set forth the changes which manifested themselves in those times, a picture must be drawn of the oldest constitution of Rome previous to them, after we have first told the history of the Etruscans, as far as we have any knowledge of it.

What we know of the history of Cuma is very obscure: the foundation of no Greek town in those parts is dated so early. This would not have been the case if Cuma had not so soon ceased to be a Greek town, and had come into the power of the Oscans before the time when the people in those districts began to write Greek. All towns in fact have surely had eras dating from their foundation; and by this means it became possible to get definite chronological dates, which were afterwards reduced to Olympiads. For it was only at a very late period that the Greeks reckoned by Olympiads. The first who does so is Timæus (Ol. 120 to 130): Theophrastus does not yet use this computation. But when a town like Cuma happened to have been lost to the Greeks, there was then no trace of this era, and consequently nothing on which one could lay hold but the genealogies of its Ctistæ (Founders). If therefore it was stated, that this man or that man had founded a city, people made out his descent as far back as Troy and the heroic age. Thence it comes that Cuma was looked upon as so wonderfully old, as two hundred years older than the neighbouring Greek towns; for the real era of this city was lost at an early period, and it was surely not older than the other Greek towns. What was known of Cuma probably existed in Neapolitan Chronicles, which Dionysius also made use of. His description of the war of the Etruscans against Cuma is indeed mythical: the Volturnus flows back to

its source, &c. yet this is only a matter of secondary consideration. Herodotus is also mythical; for instance, at the destruction of the Carthaginian army against Gelon,—yet for all that the war which he relates is not to be doubted of. The people of Cuma were then at the height of their prosperity, and possessed Campania. If therefore the Etruscans besieged Cuma about the sixty-fourth Olympiad, this shows clearly that they were at that time conquerors, which is in perfect agreement with Cato's account, that Capua had stood only two hundred and sixty years since its foundation; that is to say, it was an Etruscan colony. Thus therefore, with regard to the passage of the Etruscans over the Tiber, we have the date 250 to 280 according to our usual chronology from the building of Rome; and as late as 220 to 230, Herodotus represents Agylla as a town which consults the oracle at Delphi. That this had been done by Etruscans, who thought so much of their own religion, is inconceivable; and the more so, as there existed a deep-rooted hatred between the Etruscans and the Greeks, owing to which it was that the Romans received the command to sacrifice a Gaul and a Gallic woman, and also a Greek and a Greek woman,^[64] from the *Libri Fatales*, which were of Etruscan origin; and not from the Sybilline books, as Plutarch would have us believe. This national hatred already displays itself every where: in Pindar, in the Bacchian fable, it is transferred to the Tyrrhenians, but it is to be understood of the Etruscans. The Etruscans therefore also reach the Tiber at a much later time than is generally supposed; they spread forth by degrees, attain to their meridian height, maintain themselves in it for two generations, and then fall into rapidly increasing decline. Of the earlier Etruscan history, we positively know nothing. We find in Tuscany twelve cities altogether independent of each other, but yet sometimes joined together in a common undertaking. It was customary that a king reigned in each of these towns; still no trace is found in any Italian people of an hereditary rule, as among the Greeks. Moreover these cities are not united in any artificial confederation: a league is formed of itself from their assembling at times at the temple of Voltumna for the purpose of common deliberation; and besides this they had a common priest for the whole nation. It seems, however, true, for, as the Etruscan language was unintelligible to the Romans, we must be very cautious in using their traditions,—that in common enterprises one of the kings was chosen, whose supremacy the other towns acknowledged, and whom they invested with the royal insignia. Yet it would seem that this pre-eminence was not always the

result of an election, but that a city often usurped the leadership; as in the war of Porsena, Clusium is the chief town of the Etruscans. The accounts which we have represent Rome as being in the same relation to those towns: the twelve cities are stated to have sent to Tarquinius Priscus the ivory throne and the insignia; according to others, to Servius Tullius. Neither of the two accounts is historical; but this is a sign, that Rome under the last kings was the capital of a mighty empire, much greater than during the first 160 years of the republic, of which also we still have proofs in Rome itself. With regard to Etruria in particular, Rome seems to have been acknowledged as a chief town; yet this is only something transient, which perhaps under the kings already was changed several times.

The Etruscans have all the distinguishing features of an immigrating people, probably not much more numerous than the Germans who settled in Italy at the beginning of the middle ages. The towns bear rule, and in them the clans govern; their territories are large, but have no importance. This oligarchical form of government was the very thing which made Etruria powerless against Rome, as it was dangerous to put arms into the hands of the common people.

Dionysius, who gives the expressions of his authorities with great care, says that the magnates of the Etruscans had assembled with their clients for war. Among the Romans it is only the last resource to call upon the clients, when the plebeians refused to take the field. Other nations also allude to the fact that Etruria was peopled by vassals under a territorial aristocracy. When on the advance of the Gauls the dwellers on the left bank of the Tiber separated from Rome, Rome drew to herself those on the right bank, Cære got isopolity; four new tribes were formed from those who in the war had separated from Veii and Falerii, evidently not *transfugæ*, as Livy says, but whole populations which joined Rome to escape from oppression. This plainly appears from analogy; for from the Volscians two tribes only are formed, and as many from the Sabines. Moreover, the history of the insurrection of Vulsinii exhibits the condition of a vanquished people, as I have shown in the first volume of my Roman history. The Vulsinians formed from their serfs a *plebes* in order to repel the Romans; the *plebes* afterwards subjects its former rulers, and the latter choose rather to throw themselves into the arms of the Romans, and to allow their town to be destroyed by them. There is every where such an oligarchy; hence it is that

we find so very few towns in Etruria. The whole country from the Apennines to Rome had only twelve. For this reason power was only in its rudest state of development: there was no lasting vitality in it, no elements of national existence, as among the Romans, or the Samnites who evidently did not oppress the old Oscan people, but combined into one whole with them, and even adopted their language; whilst on the contrary, the Lucinians, who had emigrated from among the Sabines, stood in quite a different position to the old Ænotrians, or else the numbers of their citizens must have been stated quite differently by Polybius. Here an opposite policy bears opposite fruits. The insurrection of the Bruttians is nothing else but that the Ænotrians, who were already serfs under the Greeks, broke their chains when they became subject to new masters who treated them still more harshly. The Etruscans, in spite of their wealth and their greatness, could not withstand the Romans; their towns did not form a closely connected state as did those [of] the Latins, nor even as the Achæans. Most of the towns laid down their arms in the fifth century, after one or two battles. The only town which defended itself for thirty years, was that very Vulsinii where the serfs were changed into a *plebes*. The Samnites resisted for seventy years; the Lucanians for a very short time only.

The Etruscans have met with great favour with the moderns; the ancients thought very lightly of them. Among the Greeks, very unfavourable accounts were in circulation concerning their unbounded luxury. In some measure justice is done to them in respect to the fine arts. The technical perfection and quaint effect of their works had great attraction; the *Signa Tuscana* were about as much prized at Rome, as old German pictures are now a-days in Germany.

The Etruscans enjoyed particular consideration as a people of priests, who were devoted to soothsaying in all its forms, especially from meteorological or astronomical phenomena, and from the entrails of victims: the augural divinations, on the other hand, are an inheritance of the Sabellian races. Yet we must after all acknowledge this to have been a system of gross fraud. I will not deny that the observations on lightning led the Etruscans to interesting discoveries. They were already aware of the lightnings flashing forth from the earth, which are now generally acknowledged by natural philosophers, but were denied only thirty years ago. That they knew of lightning conductors, as one might suppose from

Jupiter Elicius, is now much less probable to me than it was formerly. It would never have been so entirely lost. And, besides, it is not stated that the lightnings were attracted, but called forth.

In history, the Etruscans show themselves in any thing but a favourable light. Unwarlike, inclined to withdraw from impending danger at the price of humiliation; just as in modern times so many states have done between 1796 and 1813. The descriptions of their great luxury may have been exaggerated; yet they had some foundation. For nearly two hundred years, the Etruscans lived in the most profound peace under the Roman dominion, free from every service in war; except in extraordinary emergencies, as in the war of Hannibal. To this period, then, the immense wealth and luxury which Polybius described are to be referred.

The Etruscans had also annals, of which the emperor Claudius made use. Some few portions of them may have likewise come to Verrius Flaccus and to Varro. Cæles Vibenna is especially celebrated. He offers, in fact, the only historical point which we know from the history of the Etruscans. Cæles Vibenna is said by some to have come to Rome, and to have settled on the Cælius. According to others, and indeed to those who follow the Etruscan traditions, he died in Etruria, and his general, Mastarna, led the remainder of his army to Rome, where he is said to have given the *Mons Cælius* the name of his old general. In the narratives we always find him as a condottiere, as the independent leader of a free corps, in no sort of subjection to any of the towns; like the Catalan hosts in the beginning of the fourteenth century, and the East Indians in the eighteenth. We do not know any thing more about him; yet the emperor Claudius asserts, from the Etruscan books, that his faithful general, Mastarna, when he had come to Rome and settled on the Cælius, had been received into the Roman state under the name of Servius Tullius. This is possible; whilst, on the other hand, the tradition of the Romans concerning Servius Tullius falls entirely within the sphere of the miraculous. It is said that in the ashes of the altar a vision of the God of fire had appeared to Tanaquil; that she had ordered her maid to lock herself up there, dressed as a bride; that the maid had gotten with child, and had borne Servius Tullius; and that therefore, in token of the latter's descent from the god of fire, his head had during his childhood been surrounded, when he was asleep, by a halo of fire, and also at the conflagration of a temple, his wooden image in it had remained untouched.

With a great deal of circumspection those who refine on history, have attempted to introduce this legend also into authentic history. Many of them find his descent from a bondmaid to be unseemly; and so they make him out to be the son of a man of rank at Corniculum, who had died, and had left her with child, whereupon she had been brought to the royal palace. According to others, his mother was indeed a bondmaid, but his father was the king. The halo of fire also is interpreted as symbolical of his early developed mind: *non latuit scintilla ingenii in puero*, says Cicero. Yet the old poets meant it seriously. We have the choice either of leaving the descent of Tullius in obscurity, or of believing that the Etruscan histories are true. I am so decidedly of opinion, that the Etruscan literature is older than that of the Romans, that I do not hesitate to give their legends the preference; and still more so, because Tarquinius Priscus has been made to be an Etruscan; since the existence of an Etruscan element was perceived, which, on account of the name, was referred to Tarquinius. Servius Tullius was represented as belonging to another race, chiefly because Rome did not wish to own herself indebted to an Etruscan for the important changes which are ascribed to that king. As he could not, however, be positively assigned to any distinct clan, recourse was had to the mythus; and he was made to be the son of a god like Romulus, just as Numa also was said to be the husband of a goddess. In the case of the son of a god, it is of no consequence who is his mother.^[65] Yet we cannot draw from this any farther conclusions; nor can we make any use in history of the notice that he was an Etruscan, and that he led the remainder of the army of Cæles Vibenna up to Rome. Livy speaks of a Veientian war; but he only gives a few outlines, from which it is evident that he knew this was nothing but the fraudulent work of the Fasti.

In the legend we find Servius Tullius as a Latin, who ascends the throne, yet not even by regular election. To him all the political law is traced back, as all the spiritual was to Numa; a proof that to Livy himself they were no historical persons. The *gens Tullia*, to which Servius may have belonged, perhaps by adoption, is expressly mentioned as an Alban clan settled on the Cælius, consequently belonging to the Luceres; and thus a king of the third tribe,—or as that and the commonalty are very nearly related, for it is derived from Corniculum,—a king from the commonalty ascends the throne. He is installed in his rule without election; yet he is then acknowledged by the Curies. Now Servius appears important from three

different points of view:—as the enlarger of the city, inasmuch as he gave to Rome its legal circuit, even as it remained down to the time of the Emperors, although suburbs were added;—as the author of a constitution, since he constitutes the *plebes* as the second half of the nation;—and as the founder of the connexion with the Latins, who before that had only been either at war with the Romans, or else in a state of forced dependance upon them.

In these respects he is of such consequence, that we must dwell at some length on the subject. Tarquinius Priscus and Servius Tullius, for the sake of clearness, shall here be treated as if they were historical persons; but merely for the designation of relations and causes, their names serving instead of an *x*. In this manner, as was already remarked, we start from the most ancient form of Rome previous to this change.

In its first form, Rome consisted of a city on the Palatine, surrounded by a wall and ditch, with a suburb, and of a Sabine town on the Quirinal and on the Tarpeian Hill. From the union of both, Rome arose; and from the union of both bodies of citizens, the Roman citizenship. All modern states, with the single exception of the canton of Schwytz, have their governments and subdivisions according to their territory. Every city is divided into districts and wards, and on these, in representative governments, the representation is based: he who has his abode in a district is both an elector, and may also be elected in it. But the view which the ancients took was this, that the land was only the substratum of the state; that the state itself was formed of individuals; and that the relations of these to the whole community were modified in different ways by the corporations. Hence the state was divided into a certain number of associations, each of which again consisted of several families. These associations had among themselves their assemblies, their rights of inheritance, &c. their tribunals, and especially their sanctuaries. Whoever belonged to them, bequeathed these to his children; and wherever he might live, within or without the state, he was always deemed to belong to that association. Whoever, on the contrary, did not belong to it by right of birth, could only come in as an exception, if that association acknowledged him. A man might be received into the state with all the rights which the ancients confined to the citizen as such, he might acquire landed property, he might sue and be sued; and yet, unless he had a share in some association, he was only an inmate, and could not be invested

with an office, nor could he vote. This view was generally entertained by all the most ancient states. The state could merely bestow upon an individual the right of abode and civil privileges: it could not command the association to receive any one. In many states, the associations had not even the right of admitting any body. This is the case with the castes which always remain exclusive, and which, being separate, allow of no intermarriage. Such an association, comprehending a number of families from which one may go out, but into which one either cannot enter at all, or only by the adoption of the whole association, is a clan, and by no means what we call family, which implies an origin from a common root; for when these clans have patronymics, they are always merely symbolical, and derived from heroes. [66] I assume it as a certain fact that among the Romans the division of the nation was into *gentes*, which were analogous to the γένη of the Greeks, and to the *Geschlechter* of our German forefathers. This is a presupposition to start from, for which, when the time comes, historical proofs will not be wanting. Let us first speak of that people concerning which the accounts are more distinct,—the Greeks. Their γένη are associations which, notwithstanding their common name, are not to be looked upon as families sprung from the same ancestors; but as the descendants of those persons, who at the foundation of the state were united in a corporation of this kind. This is expressly stated in Pollux, undoubtedly from Aristotle, wherein it is asserted that the *Gennetae* were called from the γένη; and that they were connected not by descent (γένει μὲν οὐ προσήκοντες) but by *ἱερά* which they had in common. Then we have also the evidence of Harpocration concerning the Homerides in Chios; he says that they were a *genos* in that island, but that according to the opinion of the well-informed they had no relationship whatever with Homer. These γένη are just like the Arabian tribes, the Beni Tai are ten thousand families who cannot all descend from Edid Tai; or like the clans of the Highlanders, who were named after individuals; yet it was only in a poetical sense that they spoke of themselves as the kinsmen and descendants of these. In the Highlands there were five thousand Campbells able to bear arms, who looked upon the Duke of Argyle as their cousin.

Concerning the Roman *gentes* we have no positive evidence, like that of Pollux and Harpocration (such perhaps as Verrius Flaccus would have given), that they were corporations without relationship; but we have an important definition of Cicero's in the *Topica*. He there gives the word

gentiles as a difficult subject for definition; and such it was, because in fact time in its course had wrought a thorough change in the original institution. The *gentes* in Cicero's days had lost much of their former consequence, and their constitution had been affected by law decisions. He says, *Gentiles sunt, qui inter se, eodem nomine sunt. Non satis est. Qui ab ingenuis oriundi sunt. Ne id quidem satis est. Quorum majorum nemo servitutem servivit. Abest etiam nunc. Qui capite non sunt deminuti. Hoc fortasse satis est.* According to this, the Scipios and Sulla were *gentiles*; for they are *eodem nomine*, &c. Suppose that one of the Cornelii had been *addictus* as liable to a debt, or condemned to death for a crime, then he was *capite deminutus*, and ousted from his tribe, exactly what the English in feudal language call "corruption of blood." And should he now as an *addictus* beget children, these also were outcasts, and did not belong to the *gens*. By the added clause *quorum majorum nemo servitutem servivit*, all the *Libertini* and their descendants were excluded, although bearing the gentile name of their patrons; yet all the *Peregrini* were left, whom one might admit if one chose. But this in all likelihood is an addition which was unknown to the old gentile law. For, in my opinion, there was in the earlier times no difference whatever with regard to the *Libertini*: they belonged to the *gens* as well as the patrons. Yet this was a moot point, as is shown by the remarkable lawsuit between the patrician and plebeian Claudii (the Marcelli), for the inheritance of a *Libertinus* in Cicero *de Oratore*. On that occasion a *res judicata* was pronounced by the centuries, that the patrician Claudii could not inherit in a case of this kind; from which the conclusion was afterwards drawn that the *Libertini* did not belong to the *gens*.

In the whole of this definition, there is not a word about a descent from a common stock, closely connected as the idea would seem with it. Hence it clearly follows that the *gentes* in Rome were of the same nature as the Greek γένη. *Genus* and *gens* are moreover quite the same word, a thing which often happens with words of the old language, e. g. *cliens* and *clientus*,^[67] *Campans*^[68] and *Campanus*, and likewise *Romans* and *Romanus*: the genitives *Romanum* and *Romanom* come from that old contracted nominative.

The very institution of the *gens* essentially implies a division of the state by its fundamental laws into a certain number of such associations, which then constituted small states by themselves, and enjoyed special privileges

of which the extent was very great: *jus gentium*, and *jura gentium*, originally had perhaps a somewhat different, a much wider meaning than we generally believe. The numbers of the *gentes* are always found in such a proportion to the state as never could have been the result of chance. In Attica there were 360 γένη, a number which the grammarians very correctly refer to the division of the year, or of the compass. This is also the case in Germany; in Cologne there were three orders, each of fifteen houses (Geschlechter); in Florence there were three times four and twenty houses; in Dittmarsch three times ten. Now in Rome there were probably three times one hundred *gentes*, i. e. three tribes of a hundred clans each; wherefore Livy gives them the name of *centuria*, and not *tribus*. There usually existed between the division into tribes and that into clans an intermediate one comprising the latter, as the φράτριά: in Greece, the curies at Rome, which corresponded to the orders in Cologne, and to the classes in the Lombard towns. These Curies are parts of a *Tribus*, and a combination of several *gentes* (probably consisting always of ten) for common sacrifice. And just as every *gens* had its own *gentilician sanctuaries*,—for *sacra familiarum*, which sometimes we find mentioned in modern writers, were unknown to the Romans,—so likewise as member of a Cury, each individual had some special duties besides of worship, and a vote in the popular assemblies. The ancients did not vote by poll, but by corporations: from the earliest times therefore it continued to be the established usage at Athens that recruiting and voting should be carried on by φυλαί (*Tribus*). Four Phylæ might be outvoted by six; although, if polled, the latter were very inferior in numbers. In Rome they went still farther: they did not vote by Tribes but by Curies. The reason for it is easy to be seen: for, since at first the Ramnes and the Tities were ruling alone, difficulties might have arisen from allowing only these two to vote. It might easily have happened that one tribe would be for, and the other against; and this would have led to collisions. But if each Tribe was again divided into Curies, and voted accordingly, it was then perhaps more likely that some one Cury gave the casting vote. Before the admission of the third estate this would necessarily happen. Afterwards we find that the turn of the Curies and the *prærogativa* were decided by lot, a thing which cannot be presumed to have been done before; for by this means the Luceres might have got the initiative as well as the two others. But here we have an instance of the innumerable stages by which the Roman constitution developed itself; and it is precisely this

gradual development which has given such a long duration to Roman freedom. For the true secret of a great statesman, who is quite as seldom found as any other great genius, is indeed the gradual perfection and reform of the several points of an existing constitution, and not the sudden setting up of a finished work.

Thus therefore the Curies came into the place of the tribes. During the reign of Tarquinius, the third estate was admitted to the full citizenship: these are the *gentes minores*. The *gentes* are such an essential element of the constitution, that, as *gentes civium patriciæ* is the formal expression for *patricii*, thus also *gentes civium majores* and *minores* is said. It is stated that the senate had consisted of two hundred, and that Tarquinius had raised it to three hundred by the admission of the *gentes minores*. This can only mean that he gave the third tribe the full citizenship, and received a number of them, which corresponded to that of their *gentes*, into the senate; and this is the usual course of things. In Cologne also, the second and third order were admitted to offices later than the first. It is a great change in the constitution, and one which completes it for the first *populus*. The third estate at the beginning was not quite on the same footing with the rest: their senate was not consulted until the other two had already voted, and in the same way their Curies were certainly only allowed to vote when the others had already given theirs. With regard to the priestly offices, they were only admitted to the college of the Vestals. Where we find *duumviri*, these are but the representatives of the two first tribes: it is in later times only that we find *triumviri*, and when these are patrician, they represent the three tribes. But they are likewise often plebeian, and then based upon the plebeian constitution to be treated of hereafter.

One of the widest spread peculiarities of former times, is the difference made between the old homebred citizens and those who have come from without. This difference has been almost every where done away with by the notions of the eighteenth century. In North America there is hardly any homebred population: with the exception of the eligibility for the presidentship, it matters not in the least how long one has lived in the country; there is no difference between him who is come from the first colonists, and the man who has just landed. Among the ancients, the admission to the rights of citizenship was every where difficult: the alien needed not to be of a foreign tongue, he might belong to the same nation as

the citizen, and even to the same tribe of the nation. The lines of demarcation are drawn in the most varied manner. In the oldest constitution of which we have any authentic knowledge, that of the Jews, we already find such a distinction. The people consists of tribes with unequal rights, just as the tribes of the Romans; besides these, are the persons who had been received into the congregation of the Lord. With regard to the latter, the Pentateuch expressly makes this distinction, that some nations might be received, and others not. These aliens form a mass closely connected with the Jewish people, but out of the tribes. In after times, when the Jewish constitution is better known to us from books of more recent date, the population is divided into Jews and Proselytes; and the latter again into two classes,—the Proselytes of Righteousness, and the Proselytes of the Gate. [69] The former had political and civil rights, yet they were excluded from civic honours; they could buy land, make wills, marry Jewish women, &c. &c. The Proselytes of the Gate had to accommodate themselves to the Jewish customs; they could not do any thing which was against the ceremonial law for fear of giving offence; but they did not participate in civil rights with the inhabitants of the country.

The same system presents itself, only less distinctly, in all the Greek constitutions,—a fact about which so much nonsense has been talked. Among the Greeks there existed from the very earliest times, besides the sovereign body of the citizens, a community of native freemen, who had civil rights, but by no means in every instance the privilege of intermarriage with the ruling tribe; they might sue and be sued, yet they had no share in the government. It was otherwise with the aliens or the freedmen, who were bereft of all the personal rights of citizens, and only protected against violence by taking a citizen for their patron. This twofold distinction, that one might be born in a country and exercise civil rights to a certain extent; and that those who were aliens had no civil rights whatever, was a very general notion.

The body of the Roman citizens was now enlarged. At its first origin it was an aristocracy, only so far as the subjected people of the neighbourhood and the freedmen stood in the position of vassals to the citizens; beyond this, no aristocratical relation whatever existed. But when Sabine and Latin communities were so incorporated with Rome that they got full civil rights, and had to serve, that class was formed which in our German towns we call

Pfahlbürger (burghers of the pale), an expression which no one has rightly and clearly understood. The derivation of this word is from *Pahl*, or *Pfahl*, (*pale*); in Ireland, the counties round Dublin were said to be “within the English pale.” This name was also given in Germany to the district in the immediate vicinity of a town. The freemen who lived in it had, properly speaking, no rights of citizenship, as these were limited to the *Geschlechter* (the *Houses*), but merely civil rights. The signification of the word in the course of time was more and more widened, it being also applied to those aliens who had acquired the right of community with a country (*Landrecht*), or a town (*Burgrecht*), the *isopolity* of the Greeks. The investigation of this subject, which is perfectly analogous to the origin of the Roman *plebes*, has to me been fraught with such considerable difficulties, because in the sixteenth century these relations had vanished, and we therefore nowhere find any thing more about them. In the fifteenth century this expression is still found, but hardly in the sixteenth. Johannes Von Müller did not understand it, and has used it without any proper meaning. Now, when a province, or a town, or a baron established such a right of community (*Landrecht* or *Burgrecht*) with a town, the consequences of it were twofold. In the first place, both parties protected each other in their feuds; and moreover, the strangers might settle with their vassals in the town, where they had the full civil rights of freemen, and also their own courts of law: yet they were not of the sovereign people, as they had no share in the government; and in this respect the *Houses*, as having the sovereignty, stood on quite a different footing. Many of the communities beyond the Tiber, Sabine and Latin, entered into relations of this kind with the Romans, and it was chiefly on the Aventine that they settled. The account given by the Roman historians is, that Ancus had led them from their homes, and had made them take up their abode there; but there are circumstances which make this impossible. For, since all the land near Rome was occupied, they could not have got any there, and must therefore have had their dwellings some miles away from their fields. It is very possible that some of the most distinguished were obliged to settle in Rome. This citizenship “of the pale” now became more and more enlarged. The great body of the people did not as yet form a corporation, though they contained all the elements of one: they increased in the city and the environs at such a rate, especially owing to the union with Latium in the reign of Servius Tullius, that they far outnumbered the old population, and formed the chief strength of Rome,

and were employed to a great extent in the wars. And the more they grew, the more did the Tribes, which only intermarried among themselves, die off.

Thus arose the Roman *Plebes*,—the Greek δῆμος, in German *Gemeinde*. The *demos* comprehended all those who had the inferior citizenship, and who therefore owed service to the state, but had no rights but that of personal freedom. Thus the δῆμος stands in contraposition to the πολῖται, the *plebes* to the *populus*, the *Gemeinde* to the *Bürgerschaft*, the *commune* to the *cittadine*.^[70] I also think that πόλις was not originally the term for city (which was called ἄστυ), but just like *populus*, a Tyrrhenian word; and that both of these bear the same meaning which we have stated above, *Populus* having been formed by reduplication from πόλις. The commonalty is in all states the main part as far as numbers are concerned; yet the way in which it developed itself was different in the ancient world from what it was in the middle ages. In the middle ages, the commonalty resided within the walls: it often settled, as for instance in Geneva, round the *cité*, the heart of the town, in the *bourg*, *borgo*, the suburbs; and its members were therefore called *bourgeois*. These suburbs were then likewise fortified, and in the course of time gained equal rights with the cities. In Germany the same thing happened, the name only being different, for *Bürger* and *Geschlechter* have the same meaning; and there the cities sprang up, particularly after the tenth century, when the age had become more settled. And in Gaul, where a *civitas* and a royal villa still existed from the times of the Romans, a place often grew up near the villa, which remained under the protection of the king, and under the management of the mayors of the Palace. This is the original meaning of the word *ville*, as opposed to *cité*. There is therefore a distinction in French towns between *la cité*, *la ville*, and *le bourg*. Wherever the commonalty was growing up within the walls, it was formed of quite different elements. In the Germanic states, aliens were better treated on the whole than they were in the ancient world, or even in France. The *Beisassen* of the small Swiss cantons, as for instance of Uri, are, properly speaking, nothing else but subjugated communities; the inhabitants of St. Gervais were subjects of Geneva. In France, by the *droit d'aubaine*, the liege lord was heir to the aliens who were not naturalized; for they were not allowed to make a will. In all those medieval towns where trade and commerce were paramount, the commonalty soon divided itself into guilds, which got their own heads and wardens, their own privileges and style, as well as property; as to capital jurisdiction, it could only be

granted by the kings, and wherever it was exercised, they had a share in it. The wardens of the companies at first appear in the council to take care that their rights were not infringed upon; but they soon took their seats as members, and ended by getting the ascendancy. This is clearly seen in the Italian cities, e. g. in the case of the seven old guilds at Florence. During the feuds of the Guelphs and the Ghibellines, the clans or houses had still the upperhand; but soon afterwards, about the time of Rudolf of Habsburg, the guilds are every where the ruling power,—in Italy in the thirteenth century, and in Germany about the middle of the fourteenth; at Zurich as well as at Augsburgh, at Strasburg, Ulm, Heilbronn, and the Suabian imperial cities. The transition is made by the houses (*Geschlechter*) sharing the government with the guilds: wherever this is conceded, the union is effected peacefully; but where it is refused, it is only after a sanguinary struggle, which generally ends in the destruction of the houses. But sometimes also the reverse takes place, as at Nuremberg, where the guilds were crushed.

This union of the clans and of the community, or the guilds, is called in Greece πολιτεία; in Italian *popolo*, the meaning of which is somewhat different from that of the Roman *populus*.^[71] The partition was so fully carried out, that at Florence, for example at the *palazzo vecchio*, and on books also, the coat of arms of the city, a fleur de luce, and that of the commonalty (*il commune*), a cross, gules, field argent, are seen side by side. The expression *il commune* easily gives rise to misconceptions; it does not mean the union, but the commonalty, as Savigny has pointed out to me. At Bologna there is a *palatium civium*, and a *palatium communis*. The *Capitano del popolo* and the *Capitano di parte* at Florence are also difficult to be understood. In the struggle of the Guelphs and Ghibellines, the *Capitano di parte*, that is, of the party of the Guelphs, having driven the Ghibellines out of the city, was placed at the head of affairs, and the others had their rights of citizenship suspended. The single *Capitano* of the houses was nevertheless called *di parte*. But among the ancients it was not the guilds within the walls which formed the commonalty; but the population of the country round the city, which consisted of quite different elements, comprehending people of the highest as well as of the lowest ranks. The notion, therefore, is altogether a wrong one, that the *Plebes* was made up of the poorer classes only. It was occasioned already by the language employed in Plato and Aristotle, as they had only the word δῆμος to designate city-corporation, commonalty, the union of both,—in short, all

that did not belong to the ruling class, and moreover the common people. Dionysius knew the word δῆμος only as contradistinguished to βουλή, ὄχλος being the proper term for the mass of poor. Yet he also is not free from that mistake, but carried it into Roman history; and as he went much more fully into detail with regard to these relations than Livy did, he led the restorers of ancient history into quite erroneous notions. Livy likewise did not see the matter in a clear light; yet he has many passages from which it is manifest, that the annalists whom he followed were correct in their views. A further cause of this confusion is, however, to be found in the pecuniary embarrassments and debts which are stated to have prevailed among the Plebes; but which, as we shall see hereafter, are only to be understood of the mortgages which encumbered the landowners in many communities. The Plebes is the counterpart of the Populus, as the Romans in general divide all the primary agencies in nature and in the world of intellect into two; one part being male, and the other female: as for instance, Vulcanus and Vesta are the element of fire; Janus and Jana the heavenly lights, the sun and moon; the generating power of the earth, Saturnus and Ops; the earth as solid ground, Tellumo and Tellus; and thus also the entire state, Populus and Plebes, both of which together formed its whole.

Under the protection of the Populus, a number of dependents^[72] (*cluentes*, from *cluere* to hear) dwelt within the liberties of the old town, which extended for about one German mile (nearly five English) on the road leading to Alba. The boundary may be laid down very accurately: unfortunately, the thought struck me only after my departure from Italy. The way in which these clients came to be bound to their patrons, just as the vassals were to their liege-lords, to ransom them from captivity, to pay the portion of their daughters, to be their stay and defence in the time of trouble, had its origin from very different causes. They may partly have been old native Sicilians, who on being conquered by the Cascans, swore fealty in order to be mercifully dealt with; foreigners may also have come in as residents, and placed themselves under the guardianship of a Roman citizen; there may likewise have been among them some of the inhabitants of those places which were obliged to submit to the supremacy of Rome; and the slave who had gained his freedom, stood to his late master in the relation of a client. This class must necessarily have gone on increasing so long as Rome was in a flourishing state. The asylum, in the old tradition, has reference to the clientship, the clients having really gathered together

from all quarters. Quite distinct from them, however, were the free communities, from which the country population arose, of which the first beginning was traced back to the times of Ancus. Scaliger, in one of the noblest of divinations, has discovered that Catullus calls the Romans *gens Romulique Ancique*, in which Romulus represents the clans, Ancus the commonalty. This *plebes* now increased, partly owing to the enlargement of the territory, and partly also, without doubt, in consequence of the extinction of some of the clans; in which case their former clients having no more liege lord, now joined themselves to the commonalty; and many came in besides from the free cities with which there were relations of isopolity. Such organizations are, however, imperfect in their beginnings, and are only developed in the course of time. Towns like those of the Tellenians, Ficanians, Politorians, were surely quite isolated at first, and had no regularly organized power. It is beyond a doubt, that in all the towns of Italy a *Populus* and a *Plebes* existed; and this was also the case in the Greek colonies of Lower Italy and Sicily, which in their constitutions exhibit the closest analogy to the states of Italy. In the former even the same names were certainly in use.

Before the age of Servius Tullius the country district was not yet united with the state, to which it was linked perhaps by the king alone: it does not even seem to have had *commercium*, that is to say, no patrician could acquire property in it, and *vice versa*. In many countries also, the rule was in force, down to the latest times, that the landed property of the peasant could not pass to the nobleman; a most judicious custom, which, however, was set aside owing to the illusion that it was a vain limitation. Still less can any intermarriage be presumed to have existed between the patricians and plebeians. The children of such a marriage were not admitted to the rank of their (patrician) father; but they rather followed the worse blood, that is to say, theirs was under any circumstances the inferior right. The *Lex Mensia*^[73] has not devised this; but merely revived the rule, and more clearly defined it in difficult cases. A lawgiver now came forth, who on one hand gave to the commonalty a constitution complete in itself, and, on the other invented forms by which it was united to the whole body. The former part of this plan has been entirely overlooked, and the latter appeared to Livy and Dionysius quite a riddle; so much had circumstances changed since Fabius, who had still a perfectly correct insight into these matters. In Rome a great revolution in literature had been brought about by Cicero; and

Livy must have felt himself as much a stranger among the authors of the earlier times as we do with regard to those who were before Lessing: few only were still acquainted with books. And there was likewise a great deal in the federal citizenship of the Latins abrogated by the *Lex Julia*, on account of which the remembrance of the former state of things has perished. Thus it is easy to understand, how it was that the judicious Livy and the learned Dionysius were quite mistaken as to these points, and nevertheless have preserved a great number of hints from ancient sources, from which we may with much trouble guess the truth. To take an example from our own times, I really believe that there are not now ten people at Cologne, who know what the constitution of their city was two hundred years ago. How many are there, who still know any thing about the constitution of their own town before the French revolution?

The division of such a country population was local. This was not peculiar to Rome, we find it also to have been the case in Greece: Clisthenes took the *ager Atticus* as the basis for the division of the Athenian people. The whole was divided into certain definite parts, to effect which they did not reckon together several large places, but they chose a particular number which seemed suitable, for instance, one hundred, into which the division was to be made; and for this purpose some large places were to be parcelled into districts, and other smaller ones to be combined. These divisions according to a number fixed before hand, were so general among the Romans, that, when Augustus divided the city into fourteen regions, he did not count how many *Vici* there were, but to each region he assigned a certain number of *Vici*. Now the lawgiver whom we call Servius Tullius took all those portions of the city of Rome which were inhabited by burghers of the pale, and the country around, and divided the former into four and the latter into twenty-six regions. This must be assumed as true: the proof that this statement of Fabius is correct would lead us too far. Every *Populus* presupposes almost as its necessary counterpart a *Plebes*; in a certain sense therefore there was already a *Plebes* before the reign of Ancus, although an insignificant one. Roma, Quirium, Lucerum had each of them their commonalty; these and the settlement on the Esquilæ in the time of Servius Tullius constituted the four first tribes, the first of which, the Palatina, corresponds to the Palatine; the second, the Collina, to the Quirinal; the third, the Suburana, to the Cælius with the Carinæ and Subura; the fourth, the Esquilina to the Esquiline and Viminal. This organization is

to be dated before the *Murus Servii*, as is proved to a certainty by the existence of the Esquilina. Each of these regions had a corresponding local tribe, so that all those who, at the time of their being established, were living in a place, were inscribed there on the register of the local tribes, and their descendants after them.^[74] This continued so during the first generation; but in the course of time it was changed, as the descendants did not always remain in the same place. The names of the country tribes were not taken originally from the districts, but from heroes, being at the same time surnames for the tribes and for the clans; for it was evidently the object of this legislation to amalgamate the different elements of the people. The remembrance of olden times, when those places had been independent, was to be absorbed in the idea that they were Roman. They acquired common *sacra* like the tribes composed of clans, as Dionysius expressly mentions. Sacred rites were always among the ancients a bond of union. That the plebeian tribes had *sacra*, we know from the fact that Tarquin the Proud positively forbade them. Besides this, there was a local subdivision into *vici* for the city, and into *pagi* for the country. Each of these *vici* had a warden (*magister*); each tribe, a tribune. The same system was established at Athens. If for instance a person was registered at Acharnæ, and emigrated to Sunium, he still remained an Ἀχαρνεύς. As in the earlier times these tribes were all equal, there was no occasion for any one to wish to be registered in another tribe; but afterwards it was different, when there arose between the tribes an inequality of political consideration, of which I shall afterwards speak. The *tribus urbanæ* were inferior to the *rusticæ*, and the removal from the latter to the former was a *nota ignominiae*: this dates from the censorship of Fabius Maximus. If a man became a Roman citizen *sine suffragio*, he was not received into a plebeian tribe; nor could he get admission therein by isopolity or emancipation; and therefore he could not hold any office, nor have a vote. A vote in the plebeian tribes belonged only to those who were settled on the land, and to the cultivators of the soil; he who got his livelihood by some other trade was debarred from it.

Now that the lawgiver had constituted the two bodies, the patricians and the plebeians, he might, as is done in modern states, have put them side by side in two separate assemblies. Yet this was impracticable in those earliest times, inasmuch as they both looked upon each other as enemies. In order to effect an accommodation, Servius established the centuries (*centuriæ*), similar to the *concilio grande* in Venice, in which every one was equal to

his neighbour on entering the Hall, whether he were rich or poor, each being in a plain garb. It was the object of the centuries, to unite the patricians and the plebeians, and those who grew up at the side of the plebeians, and now took the place which these formerly held; and at the same time to exclude those, who, as they had no property at all, could give no guarantee to the state. The centuries therefore contained the whole of the first estate; of the second, those who were qualified to vote; of the third, all those, who, owing to their means, were equals of the second; and, besides, some distinguished trades. Great confusion with regard to this was created in Roman history by the views of Livy and Dionysius, who imagined the tribes to have differed as to rank and fortune only. They thought that the old body of the citizens, which contained the patricians, had been divided into curies, and that these were all placed on the same footing; but that this had been an oppressive democracy which Servius Tullius had done away with by establishing the centuries. This mistake is the same as that into which Sismondi falls when he represents the Italian cities, at the time in which they first appear in history, as having been democratically governed,—a prodigious error! Had the Roman historians attentively studied the old law books, they could not possibly have remained in darkness with regard to these things. It is true, however, that it is not yet fifty years since Möser's first researches, by the light of which we too have only begun to get a clear insight into our own institutions.

According to the old system, the clansmen not only served on horseback, as in aftertimes, but likewise on foot: it was also just the same originally in the German cities. They had not at first the least likeness to a nobility. We may take it for granted that each clan served in war with one horseman and ten foot soldiers; and hence the statement in Plutarch, that the first town had consisted of about one thousand households. This looks like history; yet such additions as “about,” and others of the same kind, in Plutarch, Dionysius, and other writers of the later times, are touches put in to subdue the tone of colouring which seemed to them too bright. The narrative is quite ancient, but it is not so much history as the personification of a system of rights. In the earliest Rome there were a hundred clans, and consequently a thousand foot soldiers, each of whom was deemed to have been furnished by one house.^[75] Besides these the country population had to serve, being probably called out according to their place of abode. The new laws made a change in the phalanx; relieved the old citizens from the

duty of serving as foot soldiers; and granted them immunities for serving as horsemen. In laying the burthen of the foot-service on the plebeians, they also at the same time gave them corresponding privileges, and thereby the means of upholding their freedom. In this manner they divided the population into horsemen and footmen, without however excluding the commonalty from the cavalry. The military array of all the European nations in ancient times was analogous to the Greek phalanx. It was a mass of men which acted by the pressure of its own weight, and these were armed with pikes and charged with them against each other in files eight, ten, or twelve deep. The barbarians never fought in dense masses, and the Asiatics were merely archers. When the soldiers, as at Rome, stood ten files deep, those who were in the rear were not, of course, quite so much exposed and in need of so much armour as those in front: they wanted, if they closed their shields properly, no breast-plates, nor did the hindmost ranks even require greaves. Part of them also were light troops, slingers who threw either leaden bullets or stones. Every one at Rome who served on foot, had to find his equipments at his own expense, and therefore according to his means; so that the wealthier citizens were completely armed, while those who were badly off were called upon to serve as slingers only. When wars became protracted, gaps occurred in the ranks, as the first rows grew thinner; in this case, the men who were behind took possession of the arms and equipments of the slain, and being now already trained, stepped into their places. At the same time there followed a reserve in case of need. These therefore were the three component parts of the Roman line of battle,—the legion proper, the light armed, and last of all the men in the reserve, who stepped into the hindmost ranks when those in front had been filled up from thence.

Servius therefore looked upon the whole nation, *Populus* and *Plebes*, as an army, *exercitus vocatus*. And as this militia had to march against the enemy abroad, there was need besides of carpenters for building bridges, pitching tents, &c., and of musicians;—the former constituted one, the latter two centuries;—and now only was the host (*Classis*)^[76] quite organized. These centuries did not consist of plebeians, as no plebeian was allowed to carry on any other trade but that of agriculture; otherwise he renounced his caste and was struck off by the censors from his tribe (*capitis deminutio*), originally without any disgrace being attached to it. Yet the Romans had from the earliest times companies of trade, which were traced back as high

as Numa, and of which there were three times three,—pipers, goldsmiths, carpenters, dyers, girdlers, tanners, braziers, potters, and then all the rest. Of this the intention certainly was to give the craftsmen of the city also an existence as a corporation, just as in the middle ages. But as those who were in these centuries were generally freedmen and foreigners, it became an object of ambition to get out of them, and to be enrolled among the tribes; and so the companies could never thrive. They were of greater importance at Corinth. By the division into centuries, the lawgiver connected the plebeians with the patricians and ærarians. To the trades so necessary for warfare as the carpenters and musicians, distinct centuries were assigned, by which they acquired the same rights which would have belonged to them, if they had served in war as plebeians. The carpenters were reckoned in the first class on account of their importance, the musicians in the fifth.

Lastly, he had regard to those free people who did not belong to the commonalty. Many of these certainly entered the service, either by conscription or as volunteers; for I cannot imagine that the *capite censi*, and the *proletarii*, should not have had to do any service at all. They were not, however, arrayed against the enemy; but they were camp followers, (*lixæ et calones*). We have no reason to presume that these had always been slaves.

Thus was an army now completely formed; and by this, together with the horsemen, Servius caused the people to be represented. For the cavalry he chose the three old double tribes, or six centuries of Tarquinius Priscus; then twelve other centuries of the Plebes, which were the most distinguished among the commonalty. In the six centuries was the entire patrician body; which indeed had on the whole a very insignificant number of votes, but, as we shall see by and by, the upperhand in other respects. Within these, there was perfect equality; there was no distinction of age: every century had a vote.

In the plebeian body, Servius Tullius selected from among those of higher rank and greater wealth, two classes,—that of the former Latin nobility, and that in which the rest were placed. To this noble class he assigned the twelve other equestrian centuries, and that without regard to property, with the exception perhaps of such persons as were quite impoverished, a fact which must be particularly urged; for according to the received opinion, they were deemed to have been the richest. Had the knights at that time already been the richest, that is to say, if we are to look

upon them as having been in the same state as after the war with Hannibal, what a senseless constitution would then have been the result! All fortunes, between a million sesterces (the sum which at the end of the second Punic war was the qualification of this class) and 100,000, would not have been classified in any way; and yet lower than that again in a great number of divisions. And we have also the explicit testimony of Polybius, that the property standard was of new introduction with regard to the knights, contrary to the old system, in which birth was the qualification. Another proof, besides, is the statement that, even as the censors registered a burgher of the pale in the plebeian tribes, so did they likewise place a plebeian in the equestrian body as a mark of distinction; which excludes a classification according to property. In the reign of Augustus it was indeed quite a different case. At that time, the most distinguished men could not become knights without a certain amount of fortune.

Yet what is meant by *census*? With us every description of property would be valued, all rights which might be reckoned as a capital. It was otherwise with the Romans. It is to be considered as a proved fact, that the census affected realized property only, "*res corporales*," that is to say, substantial objects; not *res incorporales*, as for instance, debts and obligations. Thus, if I have 50,000 asses in land, and owe 10,000 to some one else, I in fact possess only 40,000. Yet this was not at all regarded in the census of the ancients, as no notice was taken of incumbrances. This very point, which is of paramount importance, has never once been noticed by the earlier writers on Roman history, because they were no men of business. One must not look upon the census as a property tax, but as a land tax; or as a consolidation of direct taxes. Certain objects were estimated at a certain value, according to prescribed rules, and then one paid a corresponding assessment on the thousand. In Dutch Friesland the landed estates were rated according to pounds, and a certain tax assessed on these pounds. An estate was hence called *Pondemate* (Pound-mead), and a certain number of pence were paid on it. Thus the Roman census comprehended all the landed estates, and without doubt all *res mancipi* as well; but I am quite convinced that nothing was assessed on outstanding debts, however rich an individual might have been from these sources. The Attic census on the other hand was really a property tax. From thence it followed that the whole floating property in the state had very little weight; for the richest monied man might have come off without any tax, whilst the land had all the burthens,

but likewise all the privileges. In this the census closely corresponds to our direct taxes, in which also no account is taken of the mortgages with which an estate is encumbered.

All who did not belong to the equestrian centuries were again divided into those who possessed upwards of 12,500 asses, and the poorer ones, whose census did not reach that sum. The former were distributed into five classes: in these there were no patricians whatever, but all the plebeians whose census amounted to the sum fixed, and the *ærararii*, that is to say, those who were not in the tribes, but had an income which made them equal to those who were. The *ærararii* are now what the plebeians had been before: as soon as they acquire landed property, they enter into the tribes. In the first class were all those who in landed estates, metals, agricultural implements, beasts of draught, slaves, flocks, herds, and horses, possessed as much property as was valued at 100,000 asses and upwards: these were divided into eighty centuries. All who were above sixteen and under forty-five, were reckoned among the *juniores*; from forty-five to sixty, among the *seniores*. In Sparta, the obligation to military service lasted until the sixtieth year; at Rome, it was in the case of the *seniores* limited to the defence of the walls only. As regards numerical proportion, the *seniores* certainly were not half of the whole:—men of that age, according to what is a favourable average of life in the south, would be scarcely a fourth part, or more exactly two-sevenths;—all who were alive above forty-six, might have been about the half. There is every probability that in those times all the rights and obligations of citizenship ceased at the sixtieth year. In Greece, a greater value was placed on the capacity of old people; among the Melians, the whole government was placed in the hands of the aged men above sixty. Although the *seniores* amounted indeed to not more than about half the number of the *juniores*, yet they had quite as many votes, and may also have been called up first to give their suffrages. The remainder were divided into four classes, of 75,000, 50,000, 25,000, and 12,500 asses. Of these, the second, third, and fourth had twenty centuries each; the fifth had thirty. A hundred thousand asses was no great fortune; it was pretty nearly equivalent to ten thousand drachmas of Athens, an as being worth about a stiver and a half.^[77] At the levies, each century had to serve according to a fixed rate; so that those which contained but a small number, had to do more military duty than the larger ones. The conscription was from tribes and centuries combined. In the thirty tribes, one man was always called from each

century of the *juniores*, from each century therefore thirty men. Each following class had to furnish more troops; and that in such a manner, that when the first supplied a single contingent, the second and third were to send double ones, and the fourth again only a single one, employed as a javelin corps. The fifth also served with a double contingent.

The object of the constitution, which was based upon property, would have been quite defeated, if the first class had not possessed a preponderance of votes. The centuries in the lower classes were strong in numbers in an inverse ratio to their fortunes: out of thirty-five citizens who were able to vote, six only belonged to the first class. Dionysius does not see his way through all the details; yet he plainly states that it was according to property that the whole of the calculations were made.

All those who had property, the assessed value of which amounted to less than 12,500 asses, were moreover divided into such as still belonged to the *locupletes*, which was the case if their rateable property was worth more than fifteen hundred asses; and into those who had even less. The latter were called *proletarii*, which means persons who paid no tax: they formed a century. The *locupletes* comprehended all the plebeians but the proletarians, and so far they were all equal; yet there was a gulf between them and the proletarians. Any *locuples*, for instance, could in a court of law become personal security for another; the proletarian could not. With money, of course, he only could be *vindex*, who was able to prove from the censor's books that he had the requisite property; and certainly *locupletes* alone could be appointed as judges by the prætor, and appear as witnesses, which is shown by the term *locupletes testes*. The proletarians, therefore, were placed in quite a different category. Whether at that time they may not also have been debarred from voting in the plebeian tribes, is uncertain.

This is the system of centuries as established by Servius, with regard to which Livy materially differs from Dionysius, and both of them from Cicero in the second book *de Republica*. This passage is very ill written, but it may be amended. There result from it 195 centuries: 170 in the five classes; two of the *locupletes*, or *assidui*; the *accensi* and *velati*; two of the proletarians (the *proletarii* in the stricter acceptation of the word), and the *capite censi*; and the three centuries of the trades; and lastly, eighteen equestrian centuries, consisting of the six patrician and twelve plebeian ones. Several conjectures have been made concerning that passage of

Cicero's, all of which are wrong; as for instance, what Hermann, highly-distinguished scholar as he is, has said about it. Yet if one is familiar with these researches, every thing may be made clear by the Roman combinations of numbers, as I have elucidated them. It was the aim and object of the whole system, that the minority should decide:^[78] wealth and birth combined were to turn the scale, and that by means of the eighteen equestrian centuries and the eighty of the first class, which were the earliest called up to vote; if these were unanimous, every question was decided by them, as they formed the majority of the centuries, though far inferior in number to the rest of the citizens. Among those who were equal in rank, it was again the minority which decided; for the centuries of the *seniores* contained so much fewer voters than those of the *juniores*.

Had the intention of this institution been that which historians assign to it, it would have been highly unjust to the patricians, who still continued to form a considerable part of the nation. Those who gave the account did not see that the latter belonged in no way to the classes,—their presence in the centuries was merely that they might be represented, and therefore important as symbolical only;—and they contented themselves with saying that they probably voted with the rich, consequently with the first class. Rich, however, the patricians were not by any means, according to the census: they were tenants *in capite*, not freeholders. But that injustice did not exist at all; for the centuries stood in the same relation to the curies as the House of Commons does to the House of Lords. No election was valid which the curies had not approved of; nor any law either, for this is the meaning of the expression, *ut patres auctores fierent*. Besides this, the centuries could not deliberate on any subject which had not been laid before them by the Senate; and no one from among them could get up and speak, which the curies were perfectly at liberty to do. In the tribes it seems to have been allowed, after the tribunes had made a motion, to discuss it until it was put to the vote; yet this perhaps was a privilege but seldom used. Thus therefore was the commonalty extremely restricted in the system of the centuries: it was merely a step towards a free commonwealth. The assembly of the tribes at that time had no legislative power of any kind: it had merely to elect its officers, to make rates for common purposes, and perhaps there was likewise already a sort of poor law administration, as bread was distributed under the superintendence of the *ædiles* at the temple of Ceres. But the most important privilege of the tribes was this, that a right

of appeal to them, such as the patricians had long had to the curies, was also granted by Servius Tullius to the plebeians, against sentences of chastisement for refractory conduct towards the authorities.

The laws of Servius Tullius may have contained much more besides, but Tarquin the Proud is said to have entirely destroyed them; that is to say, they were not to be found in the *jus Papirianum*. There are stated to have been fifty laws. How far the equalization of both orders may have been carried in other respects, is uncertain; the exclusive claim of the patricians to the use of the public land, and the practice of pledging the person for debt, are said to have been done away with. More certain it is that the lawgiver meant also to lay down the royal dignity, and to bring in the consulship in its stead, so that Populus and Plebes should each be represented by a consul; which was only accomplished a hundred and fifty years later by the *lex Licinia*. He considered himself as a νομοθέτης, like Lycurgus and Solon. The transition was easy, as indeed the kings likewise were only elective magistrates for life; a system which in earlier times seems to have been very common among the Italian people. The election of two consuls seems to have been projected in the commentaries of Servius Tullius (*duo consules creati sunt ex commentariis Servii Tullii*; Liv.) But it was not carried into effect; be it that he lost his life too soon, or that he himself put it off. Tanaquil, in the legend, is said to have adjured him not to resign the throne, nor abandon her and hers. All that is ascribed to king Servius Tullius, was not entirely accomplished by him: it became the exciting cause of the revolution of Tarquin the Proud. Although a reign of forty-four years is assigned to Servius, Livy knows of one war only, that against the people of Cære and Tarquinii, which was ended in a few weeks. Dionysius also does not give a single detail which has even the semblance of truth. The length of his reign has been prolonged beyond all bounds; whereas there is every likelihood that it was but a short one.

To the same lawgiver the settlement of the relations with the Latins is attributed. It is said that he made a league with them, and induced them to erect a common *Sacrum* on the Aventine, in which the tablets containing the covenant were set up; that Rome had offered sacrifice there, and that this, as Livy tells us, was a *Confessio rem Romanam esse superiorem*. The inquiry into the condition of the Latin people, is decidedly one of the most difficult of that class of subjects: at first every thing belonging to it seemed to me to

be confused, and it was only step by step that I came to have clear views with regard to it. It is a mistake of the ancients which I have shared with them until very lately, that Servius had acquired the hegemony over the Latins. This was first done by Tarquin: the very same authors who represent it to be the work of Servius, themselves tell it afterwards of Tarquin. The establishment of the festival of the *feriæ Latinæ* on the Alban Mount was from the earliest times ascribed to Tarquinius Priscus or Superbus; more correct, however, is the opinion of others, and also of some of the ancients, that it originated with the *Latini Prisci*. If here the chief of the Latins offered the sacrifice, and the Romans merely took part in it; it is natural, that in order to adjust the balance between the two nations, a counterpoise was formed on the other side, in which Rome got the precedence, and the Latins were guests only. This was accordingly done in the temple of Diana on the Aventine. At a later period, the Latins, having become independent, transfer this symbol of a national right to a grove before the gates of Aricia. In earlier times, Alba was the sovereign state; afterwards, the Romans and Albans are bound in friendly alliance as two distinct nations; under Servius, they join in a close confederation and communion of sacrifice. Thus leagued were the Romans, not only with the Latins, but also with the Sabines; and they constituted a great state, of which Rome was the centre. Without doubt part of Etruria was also subjected to them. This we consider to have been the work of Servius, a hypothesis which is recommended by its simplicity and which rids us of the contradiction above mentioned. When the plebeians became citizens, the Latins drew nigher to the Romans, and mounted in fact upon that step which the plebeians had just left. Thus we find in Roman history, as long as there are signs of life in the people, a steady advance of the more recent institutions, as the old ones, upon which they grew, fell into decay. Those who at first were mere allies, are afterwards incorporated, and form plebeian tribes. Thus the whole of the Roman constitution is a sound healthy development, in which nothing stagnates: the Roman people ever revives and springs up anew; and—what Montesquieu looks upon as the only true progress in the life of states,—Rome, until the fifth century, is the only state which always fell back upon its first principles, so that its life became ever more noble and more vigorous. Afterwards, people begin to check and to keep down what is fresh rising up, and then life is thrown back, and the seeds of decay are first sown. Signs of this evil already show themselves a hundred years before the

Gracchi; it breaks out in their time, and from thence goes on increasing for forty years, until it gives birth to the Social War, and that of Sylla and Marius, out of which the people comes forth as a confused mass, being no more able to subsist in republican unity, and necessarily wanting an absolute authority to guide them. One might exactly tell how Rome could have become young again, and have kept up for some hundreds of years longer. The good path lay open; but people were blinded by selfish and besotted prejudice, and they tried when too late to follow it.

With regard to the gradual increase of the city there exist very contradictory opinions, which in the common topographies, as for instance that of Nardini, cause the most confused chaos. Yet this may be set to rights. It should be born in mind that the views which have influenced these statements are manifold. The statement of one set is that a hill was built upon under such or such a king; of another, that it had been taken into the town; and of a third, that those who dwelt on it had obtained the freedom of the city. The result of my researches is as follows. Old Rome was situated on the Palatine: the Pomœrium of Romulus mentioned in Tacitus, which ran from the Forum Boarium through the Circus as far as to the Septizonium, S. Gregorio, the arch of Constantine, the Thermæ of Titus, and from thence back through the Via Sacra by the temples of Venus and Roma,—even the whole of this circuit is a suburb built around the old city, and surrounded, not by walls, but by a rampart and ditch. At that time there was on the Quirinal and the Tarpeian rocks the Sabine town, which likewise had its Pomœrium: between the two ramparts and ditches a road ran along,—the Via Sacra. On this stood the Janus Quirini, a gateway which was *bifrons*, turned on one side towards the Roman and on the other towards the Sabine town; closed in times of peace, because it was not then wished that there should be any intercourse between the two cities; open in war, as both towns were in a league, and bound to give support to each other. A case quite analogous to this is to be found in the Gætulian town of Ghadames beyond Tripoli: the place is inhabited by two hostile tribes, and is divided by a wall into two parts, which are connected by a gate; likewise closed in peace, and open during war.^[79] As for the Cælius, some say that Romulus; others, that Tullus Hostilius; others, that Ancus Marcius added it to the city. The key to which is this; that under Ancus the hill, already inhabited before, was connected with the town by a ditch, the *fossa Quiritium*, from the old moat of the Pomœrium to the Porta Capena, which was the first

enlargement of Rome; and that this was partly to drain off the water, and partly for defence. There is too much water there for excavations to be easily made, otherwise the finest antiquities might be found in the Circus: the Obelisk was brought to light from thence in the sixteenth century. The *Agua Marrana* is not the *aqua damnata* of Agrippa: in the old Circus there was a canal which carried the water off. Here was the *septem viarum vicus* where Ancus cut the ditch, perhaps as far as the sewers. Moreover the Roman and the Sabine towns were still separated by the Forum, which was a marsh. The whole neighbourhood of the Velabrum was as yet a river or a lake; and before this was drained, a topical union of the two towns was impossible: the Janus, probably a dyke, was the only road. To effect this, the works were now executed which are ascribed to Tarquinius Priscus, the immense sewers, or more properly, river tunnels, consisting of one main and several minor channels. The main sewer (*cloaca maxima*) of a most ancient style of architecture, may be seen to this day, and still carries off the water. Its width is 18 palms, ^[80] and it is formed by three stone vaults of *peperino* (a volcanic stone from Gabii and Alba), one above the other, built in the shape of a semicircle. These form the gigantic work: the stones, each of which is $7\frac{1}{2}$ palms long, and $4\frac{1}{6}$ palms broad, are joined by no cement or dovetailing, nor any thing of the kind; they hold together merely from the way in which they fit, and the exact closing of the arch. The structure has not for two thousand years undergone the slightest change, having stood unshaken the shock of earthquakes, which have laid waste the rest of the city, and overthrown obelisks; so that one might say that it will see the end of the world. This is the work which made it possible to form Rome into a whole of that extent which it afterwards had. The entire embankment of the river, the quay, is likewise built of stone, of the volcanic stone from Alba; and we may recognise there also the same style of architecture. The other vaults begin between the Quirinal and the Viminal, and run beneath the Forum Augustum, the Forum Romanum and the Forum Boarium into the Velabrum and the *cloaca maxima*. They are of equally perfect preservation; but they lie deep under ground. They were found during the papacy of Benedict XIV. They are executed on the same immense scale; but they are built of *travertino*, from which it is manifest, that they are of a later age, and yet perhaps of the time of the republic, somewhat about the first half of the fifth century, before the war of Hannibal. Now therefore the whole country as far as the river was inhabitable, even beyond the Capitoline hill.

Soon, however, were greater plans devised for the enlargement of the city. On the north side of the Esquiline, where the kings had built a rampart, level space was to be secured which had the advantage of not being able to be flooded,—a high and dry plain, whither the country people might take refuge in case of war. For this reason Servius Tullius constructed his great rampart from the Porta Collina to the Esquiline gate,—almost the fifth of a German mile, and a moat besides, an hundred feet broad and thirty deep. The earth from the moat formed the rampart, which was protected by a lining wall on the side of the ditch, and by battlements and towers on the top. Of this stupendous work, which Pliny justly regards with wonder, there is hardly anything whatever left; its line only may yet be traced. But in the times of Augustus, even in those of Pliny, it was in perfect preservation, and therefore it was not possible to talk at random about it. It was a public promenade of the Romans: Dionysius has seen it, and walked on it a hundred times. Rome had now gained her seven hills, since the Viminal was first brought by that wall within the precincts of the city, which thus had a circumference of more than a German mile, like Athens after the Persian wars; a considerable town even for our days. We therefore see again how false is the opinion of Florus and others, who look upon the time of the kings, as being one of childhood (*infans in cunis vagiens*): on the contrary, after the expulsion of the kings Rome fell to a low ebb for a long time.

Well worth our attention is the Etruscan tradition concerning Servius Tullius, and the fragment of Claudius' speech on the tablets at Lyons, which contains the notices of Cæles Vibenna and Mastarna from Etruscan historians.^[81] I never was so much surprised by any literary discovery as by this. Not a soul had taken any heed of it before;—people don't look at such square letters, especially when they are those of the silly Claudius. I at that time still believed in the Etruscan origin of Rome, and thought that quite a new light would thus be shed upon the whole of the Roman history. Cælius Vibenna must be an historical person: mention is made of him too frequently and too distinctly; his name also is such that the Romans could not have invented it, as the Etruscan language was as foreign to them, as the Celtic to us Germans. Nor is it perhaps to be doubted that he had a friend Mastarna. But when I search into the legislation which is ascribed to Servius Tullius,—whatever abatements may be made on the score of historical precision, especially with regard to chronology, although the fact is unquestionable that Servius reigned before the last king, and was

overthrown by the thoroughly historical Tarquin the Proud,—this legislation was yet so peaceful and so free, that I cannot bring myself to believe that a condottiere, a captain of freebooters (for such were those enlisted troops) should have made such mild laws, and intended to change the monarchy into a republic. The whole civil and political legislation of Servius Tullius bears the impress of a thoroughly Latin stamp; the relation also to the Latins bespeaks a Latin lawgiver. He may have been a Corniculan, and have ascended the throne in a manner which was contrary to the established custom. He may have sprung from a marriage of disparagement between one of the Luceres with a woman of Corniculum before the connubium was conceded, and this may be at the bottom of the history of his descent; but a foreigner, or a leader of marauders, he certainly was not. I do not in the least doubt Claudius' honesty, nor do I impugn the importance of the Etruscan books; yet we must not rate their value too high. What they really were could not be known before Mai discovered the Veronese Scholia on the *Æneid* (1818). In these are found quotations from two Etruscan historians, Flaccus and Cæcina, which considerably lower our expectations concerning the value of the Etruscan books for the early times. It seems that just as the Romans misunderstood the old Latin history, and substituted the Tyrrhenian one, thus also the Etruscans kept to the traditions of the Tyrrhenians whom they had brought under their yoke, and made Tarchon, him who plays his part in Virgil, and may be met with in the Roman tradition as Tarquinius Priscus, the founder of their empire from Tarquinii. If Claudius had really at hand the old Etruscan rolls written from right to left, of which Lucretius speaks, he was on very slippery ground; but how much more so, if he followed Flaccus and Cæcina, who wrote without any sort of criticism. The books of the Etruscans are for the most part dated too early. Etruria had from the war of Hannibal to that of Sylla, for more than a hundred years, enjoyed profound peace under the supremacy of the Romans; in this time most of the works of Etruscan literature must be placed. Before the Social War, as Cicero states, the sciences flourished all over Italy, of which we have no more any detailed knowledge; certainly histories were written in the whole of Italy, just as in Rome. Now if any one read in the Etruscan books Cæles Vibenna and Mastarna, and chose to put things together, he might have thought with some vanity, "what has become of this Mastarna? very likely he is that Servius Tullius, whose birth has been shrouded in mystery." Somebody may thus have stumbled upon this

idea quite by himself, and Claudius indeed, addle-headed as he was, was sure to believe such a thing. Thus he also says of the *tribuni militares consulari potestate*, “*qui seni sæpe octoni crearentur*.” But there have always either been six of these, half of whom were patricians and half plebeians, or *promiscue*; or else only three patricians, making four with the *præfectus urbi*: once only we know of eight, when the two censors were reckoned with them, as Onuphr. Panvinus has shown.^[82] This may have happened once or twice besides; but at all events it was an anomaly. From this we see that Claudius did not understand the Fasti. Our notice of Mastarna therefore is according to all appearances based upon very slight authority. The Etruscan annals from which Claudius drew may have been old; but that they really were so, is nowhere stated.

The unity of the poem of the Tarquins from the arrival of Tarquinius Priscus to the fight at the Regillus cannot be mistaken,—a noble theme for an epic poet, much more worthy of being treated by Virgil than the *Æneid*. The account seems credible, and to have been derived from old traditions, that the legislation of Servius Tullius had to be carried through almost by force; that he arbitrarily formed his centuries; and then that these for the second time acknowledged him as king, and ratified his laws. All such changes among the ancients have been brought about in the same way. Moreover it is said that the patricians were angry at this legislation, although it took nothing from them, and merely gave something to the second order; and that they made attempts to murder the king, for which he compelled them to dwell, not on the Esquiline where his house stood, but in the valley below it. All this, as a tradition, has much probability from its intrinsic consistency. Yet the tragedy itself has its origin in the king’s own house. His two daughters, one of them good, the other wicked, are married to the two sons of Tarquinius Priscus; the good one to the younger L. Tarquin, a brave but ambitious young man, the wicked daughter to Aruns the elder brother. The latter saw that Aruns was disposed to give up his claims to the throne, and on this she offered L. Tarquin her hand to be gained by murdering her husband; he accepted it, and carried out her intentions. Tarquin, we are told, now formed a party among the patricians, and arranged with them for the murder of Servius Tullius; the king, when he made his appearance in the Curia, was flung down the steps, and the body guards dispatched him in the street; and Tullia went to greet her husband as

king, and as she was returning drove over the corpse, owing to which the street got the name of *vicus sceleratus*.

That Servius lost his life in a rebellion of Tarquin, and that the latter was supported by the whole body of the citizens, in particular by the Luceres, his own party (*factio regis, gentes minores*), so that these reaped the fruits of the revolution, and the two first tribes thought themselves hardly dealt with, may be looked upon as historical. Yet I am far from considering as such all the details which are given about the daughters of the old king: they are no more so than the tale of Lady Macbeth. There is so wide a gulf between our manners and the crimes of the South, that we have not a notion of their possibility or impossibility; yet even if those accounts were possible, historical they are not. That the rule of Tarquin the Proud was brilliant but frightfully oppressive, and that he trampled the laws of Tullius under foot, may belong to history; but those appalling massacres of his cannot but be poetry. Tarquin has perhaps the misfortune of an awful poetical celebrity, much worse than he may have deserved. Yet he cannot have entirely abolished the laws of Servius at once. There may be some truth in the statement that he put down the meetings of the plebeian tribes; that he did away with their festivals; and that he did not call them together for legislation and the election of their magistrates. Nor, in fact, was there much occasion for these last, the criminal judges being chosen by the patricians. When it is recounted, that Tarquin undertook immense works, that he built the magnificent Capitoline temple, after having arranged the site for it, it is possible that he used the plebeians as his bondmen, that many of them committed suicide on that account, and that in order to prevent this he had the corpses fastened upon a cross. We must here proceed with caution and circumspection; the details will always remain uncertain, and all that cannot be set aside as impossible, is not therefore necessarily true. That Tarquin did not abolish the division into classes, seems to me certain; partly because it was advantageous for him to have the improved military organization, and partly because from the connection which he entered into with Latium, we are to conclude that the constitutions of the two states were the same; so that either Servius Tullius gave to the Romans a Latin constitution, or Tarquin to the Latins the Roman one. Even if Tarquin the Proud and his revolution in favour of the patricians, especially those of the third order, are quite historical, yet it is still singular that the third order should seem nevertheless after that revolution to have been

inferior to the two others. This very fact, that the interests of the two first tribes clashed with those of the third, paved the way for a popular revolution.

According to Livy and Dionysius, the Latins, with the exception of Gabii, were induced to acknowledge the supremacy of Rome and of Tarquin; on the other hand, Cicero in the books *De Republica* says, *universum Latium bello subegit*. Whether this war was merely passed over by the others, or whether Cicero let fall the expression from carelessness only, cannot now be decided. It is probable that there have always existed discrepancies between the narrations of poetry and history: the tale of Turnus Herdonius has a highly poetical colouring. Whilst under Servius there was an alliance with reciprocity, Latium now entered into that relation in which afterwards the *Socii Italici* stood, when they bound themselves *ad maiestatem populi Romani comiter colendam*. It seems also that the Latins, when there was a change of rulers at Rome, had refused to renew the alliance concluded under the late king.

In the alliance between Rome and Carthage, (of which the original treaty was kept among the archives of the ædiles, which also Polybius, as he states himself, not without a great deal of trouble, translated into Greek, since even the Romans themselves could hardly decypher and tell the meaning of the old writing; an alliance which was to be renewed from time to time, as in our days is still the case with those with the Barbary states,) we see the whole coast, not only of the Prisci Latini, but as far as Terracina, which at that time perhaps was still Tyrrhenian and not Volscian, in the possession of Rome; its inhabitants are called in the Greek translation ὑπήκοοι. Rome concludes the alliance for them as well as for herself; it is stipulated that, if the Carthaginians should make conquests in Latium, they were to give them up to the Romans. This treaty is as authentic as any thing can be: it is a strange whim of an otherwise estimable man, ^[83] to take it for an invention of Polybius. Here, therefore, Latium is still dependent on Rome, to which dependence Livy also bears witness: it was a relation newly established. Afterwards, when all as far as Antium rise up in hostility against Rome, we again recognise a decline of Roman power. The *Feriæ Latinæ* are an assembly of all the Latin nations, not merely of the Prisci Latini on the Alban Hill, where we know that the Latin authorities must needs have had the presidency. Yet Dionysius tells us that Tarquin had

established the festival; that a bullock was killed, of which the delegates of the several towns each received a piece (*carnem Latinis accipere*). The Milanese Scholiast on Cicero's oration for Plancius^[84] says, that with regard to this there had been a different tradition; that some had ascribed the festival to Tarquinius Priscus,—this is a mere falsification for Tarquinius Superbus out of spite against the latter, just as the foundation of the Capitol was referred to the former king,—others to the Prisci Latini, which consequently would place it in the earliest times. The latter are perfectly right. The festivals existed long before Tarquin, as long as there was a Latin people. Yet, at the same time, the other opinion has arisen from a mistake which is very easily accounted for; for if Tarquin the Proud obtained the supremacy over Latium, he would also naturally preside at the sacrifices as the Ætolians did at Delphi during their hegemony, from whence the well known expression in the inscriptions, ἱερομνημονούντων Αἰτωλῶν.

In order to make a full use of Latium for his own ends, whilst yet he did not quite trust the Latins, he did not wish to admit their troops in distinct legions, under their own officers. He therefore combined the Roman with the Latin legions, and then divided these again into two parts. The Latins had a similar organization to that of the Romans: the system of centuries among the latter was based upon the thirty tribes, among the former upon the thirty towns. He united two centuries into a maniple, the Roman officer being *primus centurio*; as in the East Indian possessions of the English, the officers are exclusively Europeans.^[85] Livy confounds the *primus centurio* with the *primipilus*. Here the maniples now first make their appearance; and this is the plain meaning of what Livy tells in a confused manner, but which may certainly be unravelled.

We are, however, not a little puzzled as to what we are to believe of the detached accounts. It is stated that Tarquin had established colonies at Signia and Circeii, and that he had taken Gabii by stratagem. The latter is false, and the accounts are compiled out of two in Herodotus of Zopyrus and of Thrasybulus of Miletus. Authentic is the alliance with Gabii, from which we see that Gabii was out of the union of the thirty towns, the relation with which had been already settled before. Still in the times of Horace, the original treaty, one of the few which had been preserved, was kept in a temple. It is clear from it, that Gabii had acquired isopolity by a formal compact.

THE REGIFUGIUM. ROME A REPUBLIC.

We may readily believe that Sextus Tarquinius committed the outrage against Lucretia, as indeed similar things happen even now in Turkey, and are told in the middle ages, of the Italian princes down to Pietro Luigi Farnese (in the sixteenth century), and in ancient history of Demetrius Poliorcetes at Athens. Cicero is quite right when he says that the misfortune was this, that the offence was committed against a matron of one of the most powerful families. To all the other details linked with it, from which the history derives its individuality, to the connexion with the campaign against Ardea, not the slightest credit is to be given. The king is said to have been in the camp before Ardea, and a truce to have been concluded there for fifteen years. Yet Ardea had already before been dependent upon Rome, and was one of those towns in the name of which she concluded the alliance with Carthage. Nothing, therefore, is likely to be true but the ill usage of Lucretia, and that her death kindled into a blaze the fire which had long been smouldering.

We are in just as much perplexity with regard to the character of Brutus. He is said to have feigned himself half-witted, concerning which there exist several accounts. The mission to Delphi with the sons of Tarquin, although such a one had already before been sent from Agylla, seems to betray a later hand, the same which put in the stories from Herodotus. It is said, moreover, that Tarquin, in order to render harmless the dignity of tribune of the *Celeres*, which was second only to that of the king, had conferred it upon Brutus. There is every likelihood, however, that the story of the stupidity of Brutus was merely derived from his name. Brutus is without doubt an Oscan word, the same which is in the name of the Bruttians; it means a run-away slave, a designation which the overbearing *factio regis* gave the leader of the rebels because he was a plebeian,—a case just like that of the Gueux. Is it conceivable that an eminent king should have made an utter fool (whom he might have put to death) tribune of the *Celeres*, in order to bring the dignity into contempt? Tarquin was not the kind of tyrant who was obliged to paralyze the state that he might rule over it; he could allow it strength, and yet govern it by the superior weight of his own

personal qualities. Nor does the opinion which the Romans had of him incline that way; his statue remained in the Capitol together with those of the other kings.

A question which formerly much engaged my attention is this: How could Brutus, a plebeian, be *Tribunus Celerum*, although the *Celeres* were the patrician knights? I think I have found the key to it. Writers speak of him as if he had been the only tribune of the *Celeres*, whereas there were several of them, as Dionysius already mentions in the enumeration of the priestly offices in his account of Numa. The *Celeres* were the horsemen; yet the plebeians also had their knights, and these formed a fourth order. Now as each of the patrician tribes had its tribune, is it not according to analogy that among the thirty tribunes of the plebeians there was one who represented the plebeian *Celeres* as opposed to the patricians? The *Magister Equitum*, whose office is looked upon as a continuation of the dignity of the *Tribunus Celerum*, was not necessarily a patrician: P. Licinius Crassus was elected to it. This magistrate stood at the head of all the eighteen centuries of the knights, in which the plebeians had the preponderance. As a fourth estate the plebeians likewise appear in the remarkable adjustment of the estates, in the year of the city 388, when to the three holidays, which were kept at Rome corresponding to the three tribes, a fourth day was added; certainly because the plebeians now as a body were placed on an equal footing with the patricians, although not of such importance in the eyes of the latter, that three days should also be set apart for them.

To give the revolution the necessary sanction, it is said that Collatinus brought Brutus with him, and Sp. Lucretius Valerius. Now, we may positively assert, that Sp. Lucretius belonged to the Ramnes; Valerius, to the Tities;^[86] Collatinus, to the Luceres; and as to Brutus, from what we have just seen, we may class him among the plebeians. That Valerius belonged to the Tities was generally acknowledged by the ancients: it is stated of him in Cicero, that he was consul together with Lucretius, to whom he yielded the Fasces, *quia minor natu erat*. Yet Cicero here confounds *gentes minores* with *minor natu*, the less privileged tribe being called *minor*. We know from Dionysius, that when the two first tribes were placed on an equal footing, the third was called νεώτεροι (*minor*). Collatinus was of the Gens of the Tarquinii, consequently a Lucer. Brutus is a plebeian; Cicero's belief in the descent of the Junii Bruti from our L. Junius Brutus is beyond a doubt; and

this is of greater weight than the denial of those who wrote after the battle of Philippi. M. Brutus was to be considered as a *homo insitivus*, as an outlaw. We already perceive from Posidonius that the question of the descent of the Bruti was mooted. Much may be said in support of the opinion of those who take him to be a patrician; certainly many patrician clans have survived in some plebeian families; a *transitio ad plebem* was made most frequently by unequal marriages, and although the cognomen was then generally wont to be a plebeian one, yet it might be surmised that such an illustrious name as that of Brutus had been retained. But as long as the consulship was not open to the plebeians, no Junius occurs among the consuls. In the earlier times of the republic a tribune of the people, one L. Brutus, is mentioned, who plays a prominent part as the framer of an important *plebiscitum* in the trial of Coriolanus (in Dionysius also, at the time of the *secessio*, which is a falsification). This Brutus is a real person; but just like the whole story of Coriolanus, he belongs to quite a different period.

If we reject from our account every thing which is purely dramatic, we see after Tarquin's downfall four Tribunes of the Celeres in possession of the government, consequently a magistracy of four persons, Sp. Lucretius being at the same time *Princeps Senatus* and Valerius *Præfectus Urbi*. In Livy all goes on as in a stage play; the necessary historical development of the events is mistaken: some important hints are, however, to be found in Dionysius. These four men had no authority whatever to bring any resolution of their own before the citizens; the patricians could not decree anything, unless there had previously been a *Senatus-Consultum* as a *προβούλευμα*, as in all the Greek states, which Dionysius points out in several instances. This was the case in the curies as well as in the centuries: the first branch of the legislature which had an initiative were the *Comitia Tributa*, and it was this which made the *lex Publilia* so exceedingly important. So long as the senate could not take anything in hand but what was laid before it by the consul, nor the popular assembly without a decree of the senate, so long might the consuls stifle almost everything; they merely needed to keep a stubborn silence. In the case in question, it appears that the proposal for the abolition of the kingly dignity was not in a legal manner brought by the *Tribuni Celerum* before the curies; Livy has, however, for the sake of the composition, suppressed the old account contained in the law books. The tribunes of the celeres assembled, and

resolved upon moving the abolition; the motion was by the *Princeps Senatus* brought to the senate; and the senate and the curies decide upon it. This is the *lex curiata*. With the intention now to restore the constitution of Servius in its integrity, the decision of the curies was also laid before the centuries for their approval, the order being a matter of little consequence. The way in which this is represented, is that the army in the camp of Ardea had assented to the resolution.

It is by no means certain that the consulship was instituted immediately after the expulsion of the kings. Rome was perhaps at first under the rule of the four Tribunes of the Celeres; perhaps also the government was at once rid of its superfluous number of heads, and they were reduced to two. This was certainly a deterioration; yet it may have been so ordered in Servius' constitution with the definite purpose of securing the equalization of the commonalty, so that there might be one consul from the patricians, and one from the plebeians. In this case, of the first consuls Collatinus is the patrician and Brutus the plebeian one, unless perhaps there should yet happen to be a prior consulate of Sp. Lucretius and Valerius Poplicola.

The taking of Rome by the Gauls has not been fraught with more serious consequences to the city itself than it has been to its history, of which indeed all the sources have been obliterated by it. The chronicles of many places in their early histories afford a parallel to this. In Dittmarsch they begin about a hundred and fifty years before the conquest of the country, after the great change when the clans and the peasantry were formed into one organized body; an event which they do not mention, but presuppose. In like manner the chronicle of Cologne commences its notices long after that city was already great and flourishing. There were every where in the middle ages earlier written accounts; yet they were laid on the shelf, as they had no more any positive interest, after the particulars of the tradition had been buried in oblivion. Thus it was also with Roman history. They had it from the times of the republic, not, however, from its beginning, but only from about the period of the Secessio, merely with detached notices of the earlier times; before it they had nothing besides the peace with the Sabines during Sp. Cassius' first consulate, and the war with the Volscians. All those earlier histories were, as we have already shown, restored in accordance with a numerical scheme.

I have already remarked that, when there were consuls of the two orders, Brutus represented the plebeians, as Sextius Lateranus did afterwards. It is very remarkable, that with regard to all these old institutions, it must indeed be asserted that the Licinian laws were in all essential points nothing else than restoration and re-enactment of those of Servius. The consuls were first called *Prætores*, στρατηγοί in Dionysius, until the Decemvirate, when their power was curtailed; and then the title of consul seems to have been introduced as being a somewhat more humble one. The derivation of this word has greatly troubled the Roman etymologists; we class it with *præsul* and *exsul*. *Præsul* means, he who is *before* (above) others; *exsul*, he who is *out* of the town; *consul*, he who is *with* another, equal to *collega*, whence *consulere* to be *together* in order to consult;—it has nothing to do with *salire*. Yet the being together of a patrician with a plebeian was not of long duration. It is stated that the expulsion of the Tarquinii was at first not at all followed by an embittered hostility, although an oath had been taken not to suffer kings any more to reign in Rome; so that it might almost appear doubtful whether the outrage against Lucretia had been really perpetrated. The ancients were often inconceivably mild with regard to such matters. It is possible that the influence of the royal race and of the third tribe were still so great, that they were obliged to grant the Tarquins in lieu of the hereditary rule the eligibility for the consulship. In Greek history also the royal races are dissolved into γένη ἀρχικά: the Codrids become archons, even those elected for ten years and certainly also at first those for one year were Codrids. Yet this did not last long. Collatinus was obliged to resign, and the whole of the Gens Tarquinia to leave the city. It may be that there was at that time a Tribus Tarquinia also, the memory of which was now obliterated. It seems shocking that Collatinus, the husband of Lucretia, was banished; if there were children of Lucretia living and they had to leave the country together with Collatinus, this was a revolting cruelty. Yet Lucretia's marriage with Collatinus belongs to poetry only; *neque affirmare neque refellere in animo est*. She is the daughter of Sp. Lucretius Tricipitinus, and this is dwelt upon with much greater emphasis than her marriage. The intention of this probably was, to palliate the fact that the Tarquins were not absolutely driven out, and to explain the reason for which after all a cousin of the king had been made consul; and this could not be effected more easily than by connecting him with the legend of Lucretia.

The main point in the consulship was the limitation of the royal power to one year, election supplying the place of hereditary right. It was separated from the priestly functions, and received no τέμενος, what Cicero calls the *agri lati uberesque regii*, large demesnes which were cultivated by the clients for the kings. These *agri* were now divided among the commonalty in order that the restoration of the regal dignity might become impossible, and also that the consuls might not have the absolute sway of the kings. The power of these, like that of the Frankish kings, lay in their retinue. Clovis was not allowed to appropriate to himself any exclusive share in the booty, and yet he ruled already as a despot, and still more so his successors. This power he had merely by means of the *comitatus*. In the middle ages the tenant of the king had less consequence than the common freeman who had carefully preserved his independence. This state of things was only changed in the thirteenth century. Such royal tenants were those clients who cultivated the fields of the kings.

Was the consulate such that two patricians were to be elected, and there was no further limitation; or was it confined to the two first tribes, the Ramnes and Tities, to the exclusion of the Luceres, as in some of the priestly colleges; or was it a representation of the patricians and plebeians? These three probabilities lie before us. No one, moreover, was allowed to stand for the consulship in the earliest times: the candidates were proposed by the senate. The first of these cases is out of the question: were it not that the two first tribes, or the two estates were represented, a triumvirate would have much rather been thought of. The idea of the triumvirate was first taken up at a later period of the Roman history, a fact which was quite overlooked until I discovered the trace of it in an insignificant author, Joannes Lydus, who made use of excellent materials.

Of a plebeian consulship we find no more traces, down to the times of Licinius. In the place of Collatinus Horatius was elected, as may be proved from the treaty with Carthage, and by a passage of Pliny: in the common tradition, Valerius Poplicola is named as the successor of Collatinus. Thus we have these two statements placed side by side, one of which gives the lie to the other, and therefore we may freely have recourse to criticism, just as in the era of the kings. The events which happened under the kings, inasmuch as they fall within larger periods of time, could be extended or compressed; it is therefore quite a natural illusion to consider as better

authenticated the subsequent times in which year by year is counted, and private persons only appear as the actors. Yet the age of uncertainty reaches much lower down. The poem, with which we have now to do, goes as far as the battle at the Regillus; in the legend of Coriolanus there again begins a distinct poem. In the Fasti there are the greatest discrepancies. In the first thirty years, there are wanting in Livy three pairs of consuls given by Dionysius. With regard to one of these, Livy seems to have found a gap in the Fasti: those copies which have not these gaps are interpolated. The two other pairs, Lartius and Herminius, are nothing more than subordinate characters which are mentioned along with the heroes. Men felt the necessity of enlarging the Fasti, because they did not suffice for the number which had been calculated; and so they forged consulships, not, however, laying hold of names at pleasure, but taking them from extinct houses and from second-rate heroes, and these they put in between the consulships of the Valerii, in order to disguise the fact of their series being unbroken. We have therefore free room for much conjecture upon other subjects also. Of the Horatii, we know from Dionysius that they belonged to the *gentes minores*, so that we have again one of the Luceres to supply the place of Collatinus; it is therefore my conjecture that alternate pairs, first one of the Ramnes and Tities, and then one of the Luceres and a plebeian, were set to preside over the state. Yet we cannot investigate this any further. Now if Valerius was not the colleague of Brutus, all that is told of him falls to the ground. Valerius Poplicola, it is stated, did not after the death of Brutus choose any successor at first. He is said to have built a stone house on the Velia. The temple of the Penates, falsely called the temple of Romulus, lies at the foot of a steep hill, the Velia: on the top, where the temples of Venus and of Roma and the arch of Titus stand, is *summa Velia*; the temple of Romulus is *infima Velia*. The people, or rather, the sovereign citizens, murmured at the building of that house of stone; on which Valerius had it pulled down during the night, and summoning the people, that is to say, the *concilium* of the curies, made his appearance accompanied by the lictors without the axes, and likewise had their *fascēs* lowered before the *concio*. Hence the name *Poplicola*. Here also the *populus* is undoubtedly the patricians, the commonalty of the old citizens, from whom the consular power was derived. Such an homage before the plebeian commonalty would have been demagogical, and had this been the case, he must have been called *Plebicola*. This fine story cannot now be of any historical value

for us; because according to the documents we have, Valerius could not certainly have been the only consul, tradition always mentioning Sp. Lucretius as his first colleague. The reason why he did not at once fill up the consulship, is said to have been his dread of the opposition of those who had equal claims. Sp. Lucretius occurs in some Fasti in the third year as consul instead of Horatius; but then there follows that unfortunate accommodation by which, in order that the father of Lucretia might not be passed over, his consulship is transferred from the third year into the first.

The Valerian laws are genuine; and it is on the whole a settled fact that the legislation of Servius was restored. The patricians, as Livy says, tried to gain over the plebeians; and Sallust also tells us, that as in the times immediately following the change the state had been governed by just laws and fairly, so it had afterwards been quite the reverse. The election of the consuls by the centuries is preserved from the ritual books, and therefore it is not absolutely certain. That the first law of the centuries was that Valerian one, by which to the *Plebes* was given the right of appeal to their commonalty, looks very authentic, but is not so. Perhaps it may be that the first elections were made by the Curies, as was unquestionably the case afterwards; yet the explicit tradition that the original condition of the *Plebes* was far more favourable than the later one, pleads against it.

Tarquin is said in the story to have betaken himself to Cære, and from thence to Tarquinii,—according to others, to Veii, to call upon the Veientes for aid. The emigration to Cære is nothing else but a personification of the “*jus Cæritum exulandi*,” this *jus exulandi* having always existed between Rome and those who were on terms of isopolity. The *jus Cæritum* is prominently mentioned in the old law-books, the reason for which seems to have been the flight of Tarquin. The version of the books is that he went to Cære; that of poetry that he went to Veii, and led the Veientes against Rome. The annalists finding both of these too mean, gave it out as most likely that he might have bent his steps to Tarquinii, where forsooth he must yet have had some relations. With regard to Cære, whither the royal family is said to have gone, there is no mention whatever of its having supported it in the war. Cicero, who had seen the genuine old Roman history, knows nothing of the participation of the people of Tarquinii in the Veientine war: he says in the Tusculan questions, that neither the Veientes nor the Latins had been able to bring back Tarquin.

Purely mythical is the battle near the forest of Arsia, where Brutus and Aruns fall fighting, and the god Sylvanus loudly shouts forth the decision after 13,000 Etruscans, and one Roman less, had been stretched dead on the field of battle. Now that cannot be any thing but poetry.

Lars, or Lar^[87] Porsena is an heroic name, as Heracles among the Greeks, Rustam among the Persians, Dietrich (Theodoric) of Berne, or Etzel (Attila) in the German epic lay. The principal characters of the heroic legends are blended with history, and their names are linked to events which have really happened. The war of Porsena belonged to those traditions which were most widely spread among the Romans, and it is represented as the second attempt of the Tarquinii to recover the throne: the Veientine war had not effected any thing, and after the death of Brutus it is no more spoken of. Cicero surely looked upon this war of Porsena in no other light than that of a Tuscan war of conquest. And undoubtedly the Romans were at that time engaged in a most destructive conflict with the Tuscans, in consequence of which they sank as low as any people can sink. From republican vanity this immediate result of an alteration in the constitution was thrown into the shade:—the Gallic conquest was just as dishonestly covered over. Of Porsena, the legend must have told a great deal. Thus a mausoleum of his at Clusium is mentioned, which Pliny quite innocently describes from Varro, who had it from Etruscan books. This account especially shakes my belief in the trustworthiness of the old Etruscan books, which to judge from this sample must have been tinged with an oriental colouring. It is a marvellous work, such as never has existed, and never could have existed,—like a fairy palace in the Arabian Nights. Pyramids stand in a circle, and are connected at the top by a brazen ring on which, of course in the intervals, other pyramids of huge base are standing; and so on in several stories, a pyramid of pyramids, which indeed could not have stood firm, but must needs have fallen to the ground, furnished too with bells, and other things of the same kind. It is inconceivable how Varro, and above all, how such a practical man as Pliny could have believed in day dreams like these: even a child may see that this is not possible. The impossibility is yet more confirmed by the fact that neither of them beheld any more traces of such a work, of which the ruins must have existed even to this day, as in Babylon those of the temple of Belus. Quatremere de Quincy has had the unfortunate idea of trying to restore this edifice in an architectural elevation. There may have been a historical Porsena who was

made mythical, like our Siegfried, who was placed in quite a different time from the true one; or *vice versa* there was a mythical Porsena who was brought into history. We may safely deny the historical character of all that is told concerning this war: it has a thoroughly poetical appearance. How much this was the case, becomes evident when we view the tale in its simple form, stripped of the additions taken from the annalists. It is peculiar to all these poems, that they do not at all tally with other historical data.

According to the general tradition, the Etruscans are suddenly seen on the Janiculum, and the Romans flee across the river. The poem does not even speak of the conquest of the Janiculum; but the Etruscan army appears at once on the banks of the Tiber, ready to pass the *pons Sublicius*. Here three Roman heroes stand against them; Horatius Cocles, Sp. Lartius and T. Herminius,—in all likelihood a personification of the three tribes. These resist whilst the Romans are breaking down the bridge; then two of the heroes, Lartius and Herminius, go away, and the first, one of the Ramnes, alone withstands the enemy. On this the story is told, how the Etruscans cross the river, and the consuls enticed them into an ambush on the Gabinian road. This tale is entirely borrowed from the Veientine war of 275, in which the self-same thing happens. The annalists transferred it because it did not seem to them satisfactory that the poem should not have known any thing of the war beyond the defence of the bridge. The whole account in Livy has a ridiculous exactness; the characters are the ever recurring Valerius, Lartius, and Herminius. But we find Porsena on the Janiculum; how then is it possible that Rome could have been visited by a famine such as must be presupposed for the story of Mucius Scævola, if the Etruscans lay only on that hill? The plunderers on that side of the stream could easily be kept at bay. In Livy nothing more is mentioned but that Porsena carries on the war alone; in Dionysius he makes his appearance leagued with the Latins under Octavius Mamilius,—evidently a device to account for Rome's being beleaguered and suffering from famine. Of the hostility of the Latins there is no question at all until their grand war. In fact the Etruscans had not occupied the Janiculum only; that the famine was raging, is acknowledged by the Romans. In this distress, the poem makes Mucius Scævola undertake to kill the king; but he stabbed instead of him his secretary, as the latter was clothed in purple, a mistake which indeed is inconceivable in real history, and only pardonable in poetry. He then tells him that three hundred patrician youths (one of each gens) were like

himself resolved to slay him; whereupon Porsena concludes peace, keeping the seven Veientine *pagi*, and leaving a garrison on the Janiculum.

If we enquire into the details, whether a Mucius Scævola had existed at all, we come to the question which Beaufort before now has correctly stated; for on the whole this war of Porsena and the time of Camillus are beautifully handled by him, and they seem to have been the chief occasion, as well as the pith and substance, of his work. How is it that Mucius is called in Livy and Dionysius a patrician, or *juvenis nobilis*, when on the contrary the Scævolæ were plebeians? Probably the family of the Mucii Scævolæ appropriated to themselves this Mucius: in the old poems he was certainly called Caius. As late as in the seventh century two names are mentioned, and afterwards Scævola (the left-handed one); whereas the family of the Scævolæ had got this cognomen from quite a different circumstance. Scævola in the latter instance means an amulet. It is impossible to make out how much or how little is true concerning the existence of the old Scævola. The story as we have it is evidently poetical.

Beaufort has really struck a new light, by showing that the peace of Porsena was quite a different thing from what the Romans would have us believe. Pliny states explicitly, that by it the Romans were bound to make no use of iron, except for agriculture. That hostages were given is acknowledged even in the common account. Thus we see Rome in a condition of utter subjection, *arma adempta, obsides dati*, an expression which so often occurs with reference to the conquest of states. Pliny has seen that treaty (*nominatim comprehensum invenimus*); where, is uncertain,—a tablet probably did not exist,—perhaps in Etruscan books. Just as positively does Tacitus, in his account of the burning of the Capitol, speak of the Romans having been most deeply humbled by Porsena, *sede Jovis optimi maximi quam non Porsena dedita urbi neque Galli captor, temerare potuissent*; and what *deditionem facere* means is evident from the form which Livy gives us when mentioning the submission of Collatia to Ancus Martius, from which we see that it was a complete making over of people, state, land and persons, similar to the *mancipatio*, or to the *in manum conventio* of women in the civil law. To this submission the notice in the *Quæstiones Romanæ* of Plutarch is to be referred, who was wont to make a very uncritical use of good materials. He says that the Romans had once paid tithes to the Etruscans, and that Hercules had freed them from the

obligation. Tithes, however, were paid by those who had the usufruct of a field belonging to the state (*qui publici juris factus erat*). The removal of the burthen by Hercules denotes their having freed themselves by their own might: that they paid the tithes was the consequence of their having given themselves and theirs into the keeping of the Etruscans, which is the excellent German expression for complete submission (*feuda oblata*); a man makes himself, as it were, a minor, and becomes dependent upon another. A further, and much more important proof of the misfortunes of that time, is the loss of about one-third of the Roman territory; which is shown by the number of Servius Tullius' tribes being reduced from thirty to twenty, to which afterwards, in the year 259, the *tribus Crustumina* was added as the twenty-first.^[88] Among the Romans the custom was quite a common one, when a state fell beneath their sway, *multandi tertiâ parte agri*: it is therefore evident also in this instance, as tribes and districts correspond with each other, and we find besides only twenty tribes out of thirty left, that Rome in consequence of the *deditio* about the year 260 had lost a third of its territory. There are traces of it in the *septem pagi agri Vejentium*, the surrender of which is already mentioned. In order to conceal the conquest of the city, Porsena was made the protector of the Tarquins; whereby this advantage was gained, that it appeared as if the war had not ended after all so badly, since its main object, the restoration of the Tarquins, had not been attained.

It is now stated besides that Porsena, after his return, had sent his son Aruns with part of the army to Aricia, in order—as Livy says in one of those passages in which he intentionally shuts his eyes to the truth—to show, that his expedition had not been indeed quite fruitless. Yet the expedition of Porsena against Aricia seems really to have failed owing to the assistance of Cuma; for Cuman traditions also spoke of it. Aricia was a very strong place. The Romans are said to have now behaved generously to the flying Etruscans; and Porsena being moved by it became their friend, abandoned the Tarquins and gave back the seven Veientine pagi. After this Porsena is no more mentioned. Here it is obvious that a poetical fiction has been awkwardly thrust in. It was even at a very late period the custom at Rome, that before every sale by auction the goods of king Porsena were symbolically sold. Livy seems to have good sense enough to see that this does not tally with the account of Porsena and Rome, having parted friends in arms (δορούξενοι). The whole becomes quite clear if we assume that on

the defeat of the Etruscans before Aricia, the Romans made an effort and freed themselves. By this the legend of Clœlia also has its right meaning; as otherwise her flight together with the rest of the hostages would have only been injurious. Connected with the great migration of the Etruscans is the account that Tyrrhenians from the Adriatic, together with Opicans and other people, had made their appearance before Cuma; concerning which there is in the common chronology a mistake of at least 15 to 20 years. The Tyrrhenians here are not the Etruscans, but the old inhabitants of the country; perhaps those of Picenum, who were pushed on by the advance of the Etruscans and threw themselves upon Cuma. The conclusion come to is this. The Romans carried on an unequal war against the Etruscans and their king Porsena, in consequence of which they submitted themselves to him as their master, lost one-third of their territory, and paid tithes of the rest. The Etruscan power broke down before Aricia, whereupon the Romans took courage and once more became free, yet without recovering that part of their territory which lay beyond the Tiber; for, long afterwards, even as late as the days of the decemvirate, the Tiber was their boundary line, except that the Janiculum probably was Roman, as is evident from the regulation concerning the sale of the slaves for debt *trans Tiberim*. Now it is a question of great importance, whether the war of Porsena is to be dated about the year in which it is generally placed; or else one or two years after the consecration of the Capitol; or from a later period. Livy and Dionysius contradict themselves in this respect, and are completely at variance with every one else. It is easy to see that the poem was interpolated by the annalists; since the oldest annals do not mention it at all. In the same way, the poem of the Nibelungen cannot be chronologically placed any where, and Johannes Müller had to proceed very arbitrarily before he could fix upon any chronological position for it. Such poems have nothing to do with chronology. Valerius Poplicola is named in the battle at the Regillus, and this gave occasion to assign this place to the legend. It is more likely from other statements that the war happened ten years later than is generally taken for granted, shortly before the hostilities against the plebs began. This I conclude from the accounts of the numbering of the people; for, I do not wholly reject them, though at the same time I am far from maintaining that in their present form they are authentic:—they are certainly a representation of the increase and decrease of the numbers of the Roman citizens. He, who is the first author of that statement, even if it should not be very ancient, had

formed a notion of Roman history, according to which in the times mentioned the number of the citizens rose from 110,000 to 150,000, and again fell to 110,000. If this increase or decrease had harmonized with the history in the annals, it might have been said that some fabulist had set forth his own views in these statistics. Yet such a man would from vanity never have spoken of a decrease of numbers; on the contrary, just in the times when in the census the numbers decrease, there are in the annals victories and acquisitions. I believe therefore that some account, older than the annals, was intended to show in a statistical outline, how Rome and Latium were by unequal wars reduced in population. That the numbers are correct, cannot be avouched; at all events the statement independent of the annals. I therefore ascribe the notice that Rome between the battle at the Regillus and the rising of the Plebes, and for a long time afterwards, was bereft of one-third of its inhabitants, to the fact that at that very period the war of Porsena took place, and the loss of territory occasioned by it. The decrease of population all but tallies with the diminution of the territory by one-third; and it does not quite agree, perhaps for the sole reason that the numbering included the plebeians only and not the patricians, perhaps also because part of the inhabitants of the lost districts emigrated and settled in Rome.

In the Roman history the same events very often recur again. As after the Gallic conquest, the Latins and their allies separated from Rome; thus also after the Etruscan calamity they broke the alliance which had been brought about in the reign of Tarquin. The confederation of the two states, which we find in the days of Servius Tullius, had under Tarquin been changed into a union, which notwithstanding the obscurity of all the details, is evident from the combination of the Roman and Latin centuries into maniples. This combination is the more certain as Livy mentions it in two different places, in his account of Tarquin the Proud, and in the eighth book, wherein he describes the battle-array. The sources from which he drew contained authorities quite independent of each other, which he gives without understanding them; yet in such a manner that we may gather from them the real views of the annalists. He surely wrote the second passage without the least recollection of the first. The relation in which the parties stood may have been this, that Rome had the chief command, and the Latins received their share in the booty; or the two people may have held the *imperium* by turns. But in the treaty with Carthage we see the supremacy vested in Rome, and the Latins in the position of *periœcians*. The war, the

only reminiscences of which are an historical one, the conquest of Crustumeria, and a poetical one, the battle at the Regillus, has this consequence that the Latins pass from the condition of periœcians to that of inhabitants of rural districts with equal rights: as in Gröningen the districts at last were placed on the same footing with the town, and formed only one province with it with regard to the foreigner. As the first cause of the war Tarquin and his house are named. That he was not unconnected with it, may easily be believed, as his alliance by marriage with Mamilius Octavius of Tusculum has the appearance of history; but we can by no means receive the battle at the lake Regillus as it is told. It does not enter into my thoughts to deny that the Romans tried to restore their rule by war; but it is altogether a different question, whether at the Regillus a great battle was fought under the command of the Dictator Postumius, in which the Latins were conquered and reduced to their former position. No, if we may reason from effects to causes, which is not as infallible in moral as in physical problems, the Latins were by no means defeated; for, they attained, although after a considerable time only, their object,—a completely free alliance with Rome. One might draw the opposite conclusion from the fact that Postumius, who is said to have been dictator or consul, was called Regillensis; but the Claudii are also surnamed Regillani. Cognomens borrowed from places are quite common among the patricians, as e. g. the Sergii are called Fidenatus; Regillensis was likewise derived from the town Regillus; and surnames of this kind are even taken from quarters of Rome, as Esquilinus, Aventinus, and others. Such *gentes* stood to these places somewhat in the relation of patrons. The appellation from victories occurs only very late: the greatest generals prior to Scipio Africanus have received no surnames from the places where they gained their victories, as Livy himself remarks at the conclusion of his thirtieth book.

That the Romans looked upon the battle as a complete victory is proved by the legend of the Dioscuri. At the Regillus, where the whole adjacent country consists of volcanic tufa, there was shown in a stone the impression of a horse's hoof (as on the Rosstrappe in the Hartz mountains), which was said to have been the foot print of a gigantic horse of the Dioscuri,—a legend which even to Cicero's times was in the mouths of the people. After the battle they likewise made their appearance still covered with dust and blood on the comitium; announced the victory to the people; watered their horses at the well, and vanished away. In every account which we have of

this battle, there is already the attempt to make it appear as history; nevertheless we perceive that the poem distinctly shines through. In the description of the fight there is much harmony between Livy and Dionysius, which we seldom find elsewhere: in the latter, it is more in the form of a bulletin; in Livy's lively narrative it has quite the appearance of a combat of heroes in Homer; the masses are entirely kept in the background. The peace had been renounced already a year before, in order that the many ties of friendship might be as gently severed as possible, and the foreign wives be enabled to go home; Tarquin had betaken himself to his son-in-law Mamilius Octavius; and all the Latins were excited to hostility. The dictator leads the Romans against a far superior force; Tarquin himself with his sons is in the enemy's host. In the fray all the chiefs encounter. The Roman dictator meets Tarquin who leaves the field badly wounded; the Magister Equitum fights Mamilius. T. Herminius and the legate M. Valerius fall; and P. Valerius also, who endeavours to rescue the dead body. At last the Roman knights gain the victory by alighting from their horses and fighting on foot. The consul had offered a reward for the taking of the enemy's camp by storm; this was done forthwith at the first assault, in which the two gigantic youths distinguished themselves.

With regard to M. and P. Valerius the ancients are in great perplexity; for, Marcus soon afterwards appears again as dictator, and Publius was already dead before it happened. Both of them are stated to have been sons of Poplicola; yet this also is awkward, since a P. Valerius occurs as his son once more in the Fasti. The poem takes no heed of Fasti and annals, and the sons of Poplicola are not to be thought of: they are the old heroes Maximus and Poplicola, who fight here, and meet with their death. The tradition also certainly related that Tarquin and his sons fell:—the reason why he was said to have been wounded only, is that men had read in the annals, that he had died at Cuma. And surely the dictator Postumius is likewise a mere interpolation; in the poem it was Sp. Lartius, who could not have been left out, or M. Valerius. The reward offered by the dictator refers to the legend of the Dioscuri, as in the war against the Lucanians under Fabricius, in which a youth brought the ladder and was no more seen afterwards, when the mural crown had been awarded to him.

With this battle ends the lay of the Tarquins, as that of the Nibelungen does with the doom of all the heroes. The old era is concluded by it, and a

new one is ushered in. There is no fixed date for the battle: some assume 255, others 258; some make Postumius a consul, others a dictator, and this is the very proof that the account is not historical; if it were so, the Fasti must in any case have marked such an event with some exactness. It is credible that in 259 the peace with the Latins was restored; if this notice be taken literally, the victory at the Regillus is confirmed by it. We may well believe that the Latins had been beaten at the Regillus, and had been obliged to content themselves with the position which Tarquin had assigned them, but that the senate had afterwards from other reasons restored to them the constitution of Servius Tullius. However this may be, there was peace already between the Romans and the Latins before the secession of the Plebes. For years after the battle at the Regillus, Livy has nothing to tell of the Latins; whilst, on the other hand, Dionysius gives various accounts of exchanges, armistices, &c., which, however, are invented at pleasure, until the first decree of the people that their prisoners should be restored to them; yet we know nothing of the whole affair, except that under Sp. Cassius Rome concluded a treaty with the Latins by which isopolity, or *jus municipii*, was granted them. The meaning of the term isopolity changes in the course of ages, but in ancient times its nature was as follows. There existed between Romans and Latins, and between Romans and Cærites, this right, that whosoever wanted to emigrate into the other state, might at once claim the privileges of citizenship therein. This was called ἰσοπολιτεία, an expression which is first met with in the days of Philip, when it became desirable to combine into larger states. Even before the war, there were already definite relations between Rome and Latium, which included *connubium* and *commercium*: the citizens of the one state enjoyed in the other the full right of acquiring Quiritary property, and of carrying on in their own name, without a patron, all their business and lawsuits. They were full citizens, with the exception only of political rights. This might co-exist with equality as well as with supremacy; the change now was, that Rome acknowledged Latium as endowed with equal rights to her own. The Hernicans also soon entered into this relation, so that the three states formed one whole with regard to the foreigner. After the Gallic war this union was broken. The league made by Sp. Cassius in 261 is not to be looked upon as a treaty of peace, but as the beginning of a state of mutual rights. It is incomprehensible how this compact of 261 could have been so misunderstood, as it was even already by the ancients when occasionally

mentioning it. Dionysius gives this alliance in words betokening an authenticity which we cannot doubt. He had not himself seen the tablets on the Rostra any more; for, Cicero in his Oration for Balbus speaks of having seen them, as of a thing which he recollects. Yet many Roman writers, Macer and others, must have known them: Cincius, who lived a hundred years earlier, knew them very well. Having the Swiss confederation in mind, we may call that league an everlasting one: it was to stand as long as heaven and earth should abide. But before thirty years were ended, it had become obsolete owing to the force of circumstances, and afterwards it was revived for a short time only. It stipulated perfect equality between Romans and Latins, so that they should alternately hold the chief command of the army; the party in distress was to call in the other, and the latter was to give it every support in its power; the booty was then to be divided.

Here we have the key of another political relation. About this time we first behold the appearance of a dictator, which is properly a Latin magistracy; for not only single towns, but also the whole of the Latin people might have a dictator, as Cato informs us. It was natural that the Romans likewise now elected a dictator who ruled alternately with the Latin one, on which account the *imperium* was granted for six months only. Among the Tuscans the king of each town had a lictor. The lictors of all the twelve towns, whenever they united, had to be in attendance upon the common chief. Thus, of course, the twelve Latin and the twelve Roman lictors were given to the common dictator: the consuls together had had no more than twelve lictors, who waited upon both by turns. A *magister populi* also at Rome is now spoken of more than once: whether he was from the beginning one and the same with the dictator, or whether he was elected for Rome alone is uncertain. The dictatorship had probably only reference to the league with Latium. A consul might have been dictator without there necessarily being a *magister populi*; yet if there was a *magister populi*, then must a dictator likewise have been appointed for the foreigner, it being contrary to usage that there should have been two names for the same office. Very likely there was for some time a dictator every year, an office which sometimes was conferred upon one of the consuls, and at others upon some one specially chosen for it.

In the history which now follows, we find ourselves upon real historical ground; we have distinct men, and distinct facts, although now and then

legends are still interpolated among the Fasti. That errors have crept in, is merely the fate of all that is human; yet we are to look upon this history as we would upon any other, and we ought not to make it the subject of a silly display of scepticism. A new war breaks out in which Cora and Pometia fall into the hands of the Auruncians; they are afterwards said to have been retaken by the Romans and Latins, which is highly problematical. This war occurs twice in Livy; it has certainly happened, but whether in 251 or 258, cannot matter much to us. Whenever in the annals of the Romans a serious defeat was simply stated, their descendants found gratification for their vanity in not leaving things as they were, but making the calamity all right again by a bold lie. The most glaring, yet not the only example of this in Roman history, is the deliverance of the city by Camillus, the fictitiousness of which has been already shown by Beaufort very ably. Polybius informs us, that the Gauls had retired with their booty at the tidings of an inroad of the Venetians into their country; yet it may have been, that in very early times indeed an old Vates sang the tale in a poem on Camillus. In the Samnite wars also, every defeat of consequence, which cannot be disguised, is followed by a victory quite unconnected with any thing else; and this is likewise the case in the wars with the Volscians and Æquians. This is a common weakness of human nature, of which one has personal experience in disastrous times. The Italians of the fifteenth century wanted by every means to be genuine descendants of the ancient Romans, and therefore Charlemagne is stated by Flavius Blondus to have driven all the Lombards out of Italy. Thus, after the battle of Austerlitz, a report was generally believed in Northern Germany, that the French had indeed conquered in the early part of the day, but that in the afternoon the most complete victory had been gained by the Austrians and Russians. I have myself witnessed absurdities of the same kind in 1801 at Copenhagen. Greek history, even that of the middle ages, has been remarkably free from such fabrications.—I now believe in the invasion of the Auruncians: not only the thirty towns, the sanctuary of which was the temple of Ferentina, but also the towns on the coast, which had been Latin, and which, in the treaty with Carthage, are acknowledged as subject to Rome, fell off from it, when it was bowed beneath the Etruscan calamity. Antium therefore and Terracina, as well as the towns properly Latin, likewise threw off Roman sway, and expelled the *coloni*. There is no doubt but that Antium and Terracina were afterwards Volscian, yet it is erroneous to suppose that they were so originally;—they

form no exception to the general Tyrrhenian population on the coast. In an old Greek Ethnology, which was certainly not an invention of Xenagoras, but derived from Italiote sources, Antium is represented as being sprung from the same stock with Rome and Ardea; Romus, Antias, and Ardeas are brothers. At a later period only, Terracina acquires the Volscian name of Anxur. These places became Volscian, either by conquest, or by voluntarily receiving, while in want of support, ἔποικοι of the Volscians; or also, because after having fallen off from Rome, they were obliged to throw themselves into their arms.

The Volscians are an Ausonian people, identical with Auruncians. They are said to have come from Campania; yet we know of the Auruncians in Campania that they were Ausonians: *Aurunici* and *Ausonici* are the same. Cora and Pometia, Latin colonies, are stated to have gone over to them. They must in that case have driven out the Latin colonists, or it was simply a conquest. This is a point which we cannot decide. But certain it is that the Auruncians were in possession of Cora and Pometia, and advanced as far as into Latium; perhaps they may have been defeated there by the Romans.

SECESSION OF THE PLEBES. LAW OF DEBTORS. INSTITUTION OF THE TRIBUNATE.

Sallust, who, like Thucydides, had prefixed to his history of the times after Sylla, which, alas! is lost, a succinct review of the moral and political history of his nation, preserved to us by St. Augustine, tells us in it, that no longer than the fear of Tarquin lasted, had Rome been governed with fairness and justice; but that, as soon as that fear had been removed, the *Patres*^[89] had ventured upon every sort of arbitrary deeds, and from the severity of the law of usury the *Plebes* was kept under a yoke of slavery. Livy says likewise, that the Plebes was oppressed, *cui summa opera inservitum erat* until the ruin of the Tarquins. Until then, salt, which belonged to the *publicum*, had been sold at a low price; customs had been abolished; the demesnes of the kings had been distributed among the *Plebes*; and the φιλόανθρώπα δίκαια of Servius Tullius were again enforced. Finally, the old account states that Brutus had filled up the senate, *qui imminutus erat*, with plebeians. As he was the *Tribunus Celerum* of the plebeians, and afterwards plebeian consul, he may without doubt have admitted plebeians into the senate, although not in such considerable numbers as is asserted. But this did not last. Plebeian senators cannot have continued to the time of the legislation of the decemvirs; but from what Sallust says, who in the speech of Macer displays an uncommon acquaintance with the old constitution,—and St. Augustine, one of the greatest minds, a man endowed with the clearest penetration, believed him,—that the patricians *soli in imperio habitabant*, it is evident, that, when tranquillity was restored, they again excluded the plebeians. There are analogous cases in all states, precisely because it is in human nature. Without doubt the banished royal family had left a considerable party behind them, as is wont to happen in all revolutions; or a new one arose, which attached itself to the cause of the refugees, as was the case in the Italian towns of the middle ages. We may think what we like of the battle on the Regillus; we may deem the cohort of the Roman emigrants in the army

of the Latins as improbable as it really is; yet we may with certainty believe in the existence of an emigration from Rome in a mass, linked to the royal fugitives, and always keeping up a connexion with the friendly party in the city,—like the φυγάδες in Greece, and as in English history, at the time of the great rebellion when the Stuarts were abroad, the Irish Papists and the Scotch Presbyterians, who were overpowered, and partly driven out of the country by Cromwell, joined the old cavaliers then living away from their homes with the royal family. The same was the case in the French revolution. As long as Tarquin, a man of personal eminence, was living abroad, the patricians hesitated to carry their innovations to extremities; yet they may have annoyed the plebeians; they may have deprived them of the *imperium*; they may even have expelled them from the senate;—at least they certainly did not fill up the places of those who died, with plebeians. Whenever in Switzerland danger threatened from abroad, the aristocratical cantons were mild to their country districts; otherwise they were harsh and cruel. Immediately after the English revolution of 1688, the liberties of the dissenters were far greater than they were twelve or fifteen years afterwards. What the plebeians lost, cannot be particularized. That the Valerian law of appeal to the tribes had been done away with is not likely; but it was no longer regarded, since it could only be upheld by impeaching the consul who had infringed it, when his year of office was expired: this the plebeian magistrates no more dared to do. Yet the real oppression only began when the fear of the foreigner was taken away.

Whether the law of debt had been changed by Servius Tullius, and Tarquin had abrogated the Servian laws, but Valerius had restored them, is a question with regard to which Dionysius is not to be implicitly believed. Tarquin is said to have utterly destroyed the tablets on which it was inscribed, that he might quite blot it out from the memory of men. This looks very suspicious: they needed only to have been copied once, and all that was done would be of no avail. We may however conclude from that statement that they were not contained in the *jus Papirianum*: the *Plebes* would have restored them after the Secession, if they had been deprived of a right so expressly granted. In this case, therefore, one of the plebeian forgeries seems to lie before us.

The law of debt produced a revolution. Had the senate and the patricians understood how to act wisely, and divided the opposite party, a thing so

easily done in free states, the patricians were superior to the plebeians, not indeed in numbers, but in many other respects. For the patricians had almost exclusively the clientship. Livy and Dionysius have many passages from which it is evident how numerous the clients were during the first centuries; that the patricians distributed the demesne in many little hides of land among them; and that they kept them entirely in their power. These clients were not in the tribes; but they were connected through their patrons with the curies: hereditary landed property they only possessed by the special permission of their masters, what we would now call a quit rent. Thus they were absolutely dependent on the patricians. But the plebeians consisted of altogether different elements, of Latin knights, rich men, and a host of quite poor people: they were either proprietors or day-labourers. These different elements might very easily have been divided; the principal men were ambitious of offices and of political consideration; the common people, on the contrary, did not care at all whether their chiefs were admissible to consular dignity or not, but so much the more did they for other things. In the absence of patriotism and justice, the patricians must have been able easily to sever the mass from the principal plebeians. But they were as covetous as they were ambitious, and thus pressed doubly upon the people. The whole of the demesne was in their occupation. Had they assigned small possessions to the poor, or given them a right of ownership, then they would have gained them over; and separated them from the rest. Yet as they had the money trade entirely in their own hands, they deemed themselves sufficiently secure. The money trade no doubt was so managed, that the banking business was transacted by foreigners or freedmen under the patronage of a patrician, as in Athens by Pasion, who was a Metic, and paid an Athenian for lending his name to the firm.^[90] As in Athens the Trapezitæ, in medieval Italy the Lombards, in our days the Jews, all of whom have no real home, carry on the money trade. And thus the poor plebeian often applied for loans to his neighbour, yet more generally he was obliged to go to town, and to fetch the money from the Trapezitæ.

The expression *persona* in law is derived from the fact that a foreigner could not appear in court. It is a mask: another had to represent him. That the *peregrinus* afterwards could himself sue and be sued, and that a special *prætor peregrinus* was appointed, was not done on account of the vast amount of business, but for political reasons. The patricians themselves

would not have possessed such great moneyed resources: yet the foreigners who came to Rome had to commit themselves to their patronage, the same as the clients, for which, of course, the patrician was paid a commission. Now and then perhaps the patricians may have done business on their own account. Taken in this point of view, it was not after all such a sordid usury as is generally presumed.

The patricians and plebeians had quite different civil rights, as they had come together out of different states: the twelve tables, besides settling the political groundwork, first introduced one uniform civil law. Among our (German) forefathers also, there was not a geographical, but a personal distinction of rights. In Italy, the homebred population down to the twelfth century had Roman, whilst the German had Lombard and Salic law; but when the old municipalities were abolished and the elements of society were in the process of amalgamation, people first began to issue their decrees in common, they weaned themselves more and more from the old native institutions, and thus by degrees arose the statute law of the Italian towns, such as every city possesses. The patricians had a liberal law of debt, the plebeians a strict one; they had it also among themselves, but to them it only became dangerous as far as it was between them and the patricians. As soon as it is possible to run into debt, the number of small proprietors decreases from century to century. If we compare the division of the land at Tivoli in the fifteenth century with the present one, we see that at that time there were fifty times more owners of the soil than there are now.

The general law of debt, as it is found in the East, among the Greeks, among the northern nations, as well as among the Romans, is this, that the borrower could pledge himself and his family for the debt. According to Plutarch, in his life of Solon, there were at Athens nearly a thousand bondmen for debt, who, if they were not able to pay, were sold to the foreigner. Among the Romans personal arrest existed in its sternest form. People either liquidated their debts by personal servitude, or else they alienated their property for a certain time, or in case of severe distress for life, or else they also sold themselves,—by which likewise the children, who were still *in patria potestate*, came *per æs et libram* into the *mancipium* of the buyer,—yet with the condition that they might be redeemed. This bondage lasted until they emancipated themselves again *per æs et libram*. Our personal arrest of insolvent debtors is the still remaining

half of this ancient right, which ceases to have any meaning, owing to the other half having been done away with by milder manners. The German also could in olden times give up his freehold and his person to another, whose bondman he then became. In order to escape the addiction, the borrower could eventually sell his property as a security; yet he was bound in conscience to redeem it after a certain time. The *Fides* answered for it that the creditor also would not withhold from the debtor the opportunity of redeeming himself, even when his person and his family were concerned. For this reason the *Fides* was a goddess of such importance among the Romans: as under such strict forms of law, people would have utterly been ruined without her. If a debtor did not discharge his debt, he was forfeited to his creditor, being *fiduciarius* in his *mancipium*; yet the latter could not directly *manum injicere*, an addiction of the prætor being wanted for that purpose. He had to *in jure vindicare* him with the words, *Hunc ego hominem meum esse aio ex jure Quiritium*; and without doubt the five witnesses and the *libripens*, before whom the contract had been concluded, were to be present. The prætor then gave a respite; and if after its expiration payment was not made, and the debtor therefore was not able to prove the *liberatio per æs et libram*, the ὑπερήμενος was addicted to the creditor. In the old Attic law, it was just the same; yet Solon had without doubt abolished it, and introduced in its stead the Attic law of mortgage, from which the later Roman one is derived. For the *equites* in their important money transactions tried to evade the strict debtor's law, by causing them to be managed by foreigners who were not subject to the Roman laws. Thence arose the laws concerning the *chirographa* and *centesima*, a discount business for so short a date was not done in Rome at all. The *Addictus* was termed *nexus*, because of his being *nexu vinctus*. *Nexus*, or *nexum* every transaction was originally called, which by *traditio* and by weighing out of money was done in the presence of witnesses, a thing afterwards usual only in fictitious sales, and then significative of a right of mortgage, by which in case of neglect of payment a definite right of property was secured to the creditor. Frequently also people were allowed to discharge their debt by work. An industrious workman might advantageously dispose of his labour in times when there was a great demand for it; if, for instance, a man, who had pledged himself, had a son who was still in his full strength; the father sold him to the creditor; and when the son had discharged the debt by his work, he became again free of the *mancipium* of his master. Yet the interest

accumulated at such a usurious rate, that it became very difficult for a debtor who was poor to redeem himself; though, if he worked as a *nexus*, he at least paid the interest. During such a period of labour the master had full authority over him as over a slave. That those who thus worked in payment of debts were a numerous class, is expressly asserted by writers.

But there was yet another way in which bondage for debt arose. One might also become a debtor without contract; as for instance, by neglecting to pay a legacy, or should a tradesman work for me, and I do not pay him; and again, if I commit a crime, I am bound in Roman law to make amends to the injured party according to a fixed estimate, *obligatio ex delicto*. All these relations constitute a second class of liabilities, and in these cases there was addiction without *nexus*, as was laid down in the twelve tables. The prætor sentences the thief to give me double what he has stolen; and if the man does not pay it by the appointed day, he addicts him to me as a bondman for debt. In the same manner, if I sue any one for a purchase and he cannot deny the debt (*æs confessum*), I demand his *addictio* for a certain time. This was a *vinculum fidei*, an intimidation, so that the debtor, of course, strained every nerve to pay. To this only did the expression *vinculum fidei* refer, not to the *nexus*; as vindication was here allowed, and there was no question about the fulfilment of a contract. When a Roman was *in nexu*, having sold himself to another in the event of his not paying, as the Merchant of Venice did to Shylock, he had to pay the taxes on his freehold all the same, however heavily incumbered it might be; for *nexo solutoque idem jus esto*, was the law of the twelve tables. But quite different is the case of the addictus, who is the creditor's own, and has no personal rights. Thus we have the solution of the enigma in the accounts given in our books, that debtors who had sold themselves (that is to say, *nexi*) served notwithstanding in the legions.^[91] Livy does not enter into this subject, because he was not conscious of the difficulty: Dionysius indeed remarks it, but he is embarrassed by it.

In a certain measure, this system was just as necessary as our strict rules of exchange; yet its abuse was unavoidable, as the rich man is not always kind-hearted, but is often harsh, and will abide by the law in its utmost rigour. This idolizing of mammon reigned in Rome, and the tyranny of positive law was often very oppressive. Besides which, the right was all on one side. When a patrician got into difficulties, his kinsmen or dependants

had to get him out of them; the plebeians were forced in most cases to borrow money from the patricians. Now the fate of an addicted plebeian was one in which there might be much variety. He might find a mild master who allowed him to buy his freedom by work, or else a hard one who would shut him up in the *ergastulum*, put him in chains, and treat him cruelly, that his friends might be obliged to pay for his release.

This was the state of these relations about the year 260. All at once an extraordinary general distress arose, like the one nearly a hundred years later, after the Gallic calamity. Before that time we find nothing at all resembling it. The reason for this must have been the war of Porsena, from which we may draw the inference that it ought to be placed much later than we find it in Livy. The distress caused commotions among the people, of the breaking out of which Livy's account may be tolerably well founded. An old warrior, covered with scars, falls into the hands of his creditors, because his house had been burnt down and his property carried off; he escapes from the dungeon in which he has been most barbarously treated by his master, and shows himself in the market-place, starving, clothed in rags, and disfigured with stripes. This sight gives rise to a general uproar, and the *Plebes* renounce the rule of their tyrants. Livy's account of the way in which the tumult spreads wider and wider is a model of beautiful writing, being taken from the very nature of man; yet its details do not contain any real tradition, but it is to be looked upon as an historical romance. When the senate and the consuls had now arrived at the terrible conviction that the commonalty could not be ruled when once it did not choose to obey, either the report was spread that the Volscians were at hand, or they actually advanced when they heard of the dissensions in Rome. The senate resolved upon raising an army. According to the original law, the senate had no authority by itself to declare war; but it brought the motion before the curies, and these had to give it their approval. According to Servius' laws, the motion ought to have gone to the centuries also; but this was no more thought of; the annalists mention only the senate. The latter decreed that an army should be raised. As the burthen of the service on foot lay on the Plebes only, its *juniore*s were summoned by tribes (*nominatim citabantur*); to answer to the summons was termed *nomen dare*; to refuse, *nomen abnuere*. This conscription remained unchanged in all essential points to the latest times of the republic. But when the *Plebes* refused to serve, it did not answer (*non respondebat*): such a silence is the most awful that can be.

Since this now happened, the consuls knew not which way to turn. A loud outcry arose, that people would not be so foolish as to shed their blood for their tyrant-masters; that the whole gain of the war fell to the lot of the patricians; that the booty was shared among them, and that it passed into the *publicum* (the chest of the patricians), not into the *ærarium*; that the plebeian became poorer and poorer, and that he was obliged to pledge himself and his to the patrician, and to serve him as a bondman. Among the patricians a split began to show itself. Livy tells us, that the *minores natu* among the *patres* were foremost in the fray;—probably this ought to be the *minores*, who are the Luceres, as it is impossible to think of young patricians at that time as members of the senate, which in reality was a γερουσία. The consuls (A. 259) belonged to opposite parties; Appius Claudius representing the interest of the most furious oligarchs, Servilius being moderate. In the danger which was threatening, one could only succeed by mildness: every attempt to raise an army by force disgracefully failed. Servilius had himself authorized by the senate to arrange matters. He issued a proclamation calling upon all those who had been pledged for debt to present themselves, and he gave them security as long as they should be in the field, and for their children and dependants as well. Numbers now crowded to the standards, and with the army thus formed, Servilius went out to war, and returned victorious. He had promised to do his utmost with the senate to make them cancel the contracts for debt; but the senate did not grant any thing, and the army was dismissed. Appius Claudius undertook the jurisdiction, and, without paying any regard to the word of the consul, addicted all those who had been in the field to their creditors, or obliged them to enter into a *nexum*. The rest of the year was passed in the greatest commotion. The consuls who came next, A. Virginius and T. Vetusius (A. 260), were both of them men of moderate views;—a proof that the election lay still with the centuries, as the curies would have chosen the most violent oligarchs. Yet they were not able to do any thing either with the senate or their own order. It was again attempted to raise an army, and the difficulties were the same as before. The consuls were reproached with cowardice; others who wanted to strike terror into the people, had to think of saving their lives instead. Real danger there was only on market days; the *Plebes* consisting of peasants who lived in the country. In Italy tillage requires extraordinary care. The land must be weeded several times during summer; the Romans plough the fallow ground five, six, or seven times; they weed

the fields, and weed them again, until the corn is grown about three inches high. It is incredible how much work this requires; the peasant therefore is busy the whole of the year, and has no time to go about idle. In the city there were usually only those plebeians who were townsmen. The patricians were therefore safe: they had strong men among them, and a great number of clients, whereas the plebeians in the four *tribus urbanæ* were certainly the minority. Thus the fact may also be accounted for, that the patricians were able to rule the plebeians even without regular troops. The houses (Geschlechter) also of the German towns had for a long time the commonalties in their power, although the latter were superior to them in numbers. Had the plebeians been a rabble, the patricians would all of them have been soon slain by them.

When the attempt proved again unsuccessful, some proposed to carry out the concessions of Servilius, and to abide by them; but Appius said, that the resistance ought to be put down, and a dictator therefore elected. It had been one of the objects of the institution of the dictatorship, to be enabled to evade the limitations placed upon the power of the consuls, not only by the appeal to the curies, but also by that to the tribes, which Valerius had established. Appius wanted the dictator to seize every one who refused to serve, and to have him put to death. This mad project could not but have caused the most dreadful commotion. The assembly passed an insane resolution, but the good genius of Rome guided them to choose as dictator the most moderate man, M. Valerius,—thus he is called by all the authorities, less correctly by Dionysius alone Manius Valerius, which is a mere figment, devised because Marcus was said to have been killed at the Regillus,—a clansman, or, according to our narratives, a brother of P. Valerius Poplicola. He renews the edict of Servilius, and, whilst the Volscians, Æquians, and Sabines were in arms, raises an army without difficulty. That it is stated to have consisted of ten legions, can only excite our smile. To each consul he gave a part of the army; he took one likewise himself, and returned victorious. He now demanded of the senate the fulfilment of his promises; and declared, that the law should not be departed from. Valerius resigned his dignity. Now there were still both of the consular armies, or at least one of them under arms, the return of which the patricians did not wish to allow; for as long as there was an army in the camp, its services might be commanded. Dionysius expressly tells us, that the consuls, owing to a Lex Valeria, held absolute sway, extending from one

mile beyond Rome by virtue of their *imperium*, and that consequently they might punish by martial law anybody who was *obnoxius* to them, without needing the decision of a military tribunal. For this reason the senate did not wish to allow the army to return. This was an atrocious policy, since the army must some time or other be dismissed, and the whole safety therefore of the senate only rested in the conscientiousness of the *Plebes*, the oath being so sacred to the Romans. But the rebellion actually broke out in the camp, though with great moderation. It is related, that the soldiers had wished at first to slay the consul, that they might be relieved from their oath, which was only sworn to him personally. Yet they merely renounced their allegiance; made L. Sicinius Bellutus their leader; passed the Anio in arms; and encamped three or four miles from thence on a hill which was afterwards consecrated, and therefore called the *mons sacer*. Thus a whole population withdrew from the city, and there remained behind the patricians and their slaves, besides the wives and children of the emigrants. The patricians did not, however, seize upon these as hostages; whilst, on the other hand, the plebeians also practised no further hostility, but kept themselves from all devastation, and foraged in the neighbouring country only to supply their immediate wants. The patricians now acted like human beings. As long as their authority was not put in jeopardy, there was nothing which they dared not do, and so in every instance until the Lex Hortensia; yet their power once being broken, they became dispirited, and each new contest ends only in disgrace. They had thought that the plebeians would have no courage; they ever said among themselves, This time they will lay down their arms, one has only to overawe them. One feels giddy at the sight of madness like this; and yet, so long as the world lasts, it will ever be renewed. When the plebeians had raised their standard, the scales fell from their eyes. Within the town the *Plebes* had only two quarters,^[92] the Aventine with the Vallis Murcia, and the Esquiline, both of them very strong, and provided with gates, certainly guarded by armed men. The plebeians might therefore have taken possession of Rome without any resistance, as their friends would have opened the gates to them. They would, however, have been obliged to take the other hills, all of which were fortified, and the forum by storm; which would have been their country's ruin, since the other nations would not have kept quiet. The conduct of the *Patres* therefore appears mad, and it is inconceivable that the *Plebes*, when once in arms, did not go further: in Florence the Guelphs and Ghibelines

fought against each other in the streets. A key to this seems to be found in the fact that the Latins were at peace, and that therefore with their help the senate was able to make head against the *Plebes*. It ought to be borne in mind that in confederate republics similarity of constitution has no influence whatever on the mutual support: democratically governed nations protect the governments of aristocratical ones. In the great insurrection of Lucerne and Berne, in the year 1657, the democratical cantons came to the assistance of the oligarchical governments against the peasants. This explains also how it was that the senate could hold out under such circumstances. There are allusions to it from the annals still extant in Dionysius. Appian says, that the Latins, if isopolity were granted them, would assist them against the *Plebes*.

According to Dionysius, the secession lasted four months, from August to December; and this he proves from the circumstance, that the tribune always entered upon their office on the 10th of December. There was likewise a tradition that on the Ides of September the dictator had knocked in the *clavus*, and that consequently about that time there had been no consuls at Rome. Yet the troubles are said to have broken out under the consuls Virginius and Vetusius; these consuls then, so Dionysius concludes, must have resigned their office at the end of August, and the insurrection have lasted four months. Had the succession of the tribunes never been interrupted at all, there would have been no difficulty whatever as to the same rule having applied to the time of their inauguration from the first, as that which was afterwards followed; but Dionysius overlooks the fact, that during the decemvirate the tribunate had ceased to exist, so that the tribunes hardly entered upon their office on the same day as before, but rather as soon as they were allowed to meet again. The consuls were inaugurated on the first of August, and it seems certain that the peace between the two orders was concluded by the new consuls Vetusius and Virginius. The secession cannot have lasted longer than about a fortnight: the city could not have held out in this condition; a famine would have broken out if the legions had occupied the fields. The rapidity of Livy's narrative allows us to suppose a short duration only.

The patricians saw too late that they had driven matters to extremity, and that they must give way. They had to make very lowering concessions as to the form, and to send envoys. The list of the ten envoys which

Dionysius gives, is certainly authentic, and taken from the *libri augurales*: forgery must have been carried on to a great extent if such statements were not genuine. The end of the secession is only explicable when we have a clear insight into the relations owing to which the ruling power could not only defend itself in the city, but also dispose of the confederates; for, these had sworn fealty to the Roman state, that is to say, to the senate and the *Populus*; so that numbers do not by any means turn the scale between the two orders. A peace was concluded in due form by *fetiales*, as between two free nations. The patricians sent ambassadors and conducted the negotiation, with great humiliation as to the formalities, yet with a prudence which is worthy of admiration. It was their aim to get off as cheaply as possible after the faults which they had made. They could only manage to retrieve matters, either by strengthening themselves from abroad with the aid of the allies, or by dividing the *Plebes*. For the latter purpose, two ways lay open to them. They might draw to their own side the chief plebeians, but in that case they would have lessened their own power; or they might separate the mass of the people from its leaders. The second was an infallible device. The plebeians were granted remission of debts for the insolvent debtors; the *Addicti* were freed, and the *Nexum* dissolved, without any general rule being made with regard to the law of debt: of course an amnesty also was stipulated. The remission of debts was no great loss for the creditors, as the interest had long outgrown the capital. A hundred and fifty years afterwards the rate of interest was lowered to ten per cent.; at that time it may have been about fifty per cent. A similar course was pursued by Sully.

A lasting result was the institution of the office of the *Tribuni Plebis*. These tribunes were no innovation in themselves. At the restoration of the tribunate after the second secession, the commonalty had twenty chiefs, viz. one for each tribe; among these two are invested with the power. The tribes in fact make up two decuries, and for each of these there is a chief; just as in the senate there were ten decuries, each of which had a *primus*, all of whom together constituted the board of the *decem primi*. Symmetrical arrangements every where recur in the old institutions, wherefore we may by induction from a known quantity arrive at the unknown. Thus, when we read that the first tribunes had been two, who made choice of three more to join them; it is certain that those two were the foremen of the existing twenty or twenty-one tribunes, who in a new state of things merely rose to a

higher sphere of official functions. The difference without doubt was this, that the old tribunes were elected by the several tribes (as the phylarchs in the Greek states were by each phyle); the new ones, on the contrary, by the whole commonalty. C. Licinius and L. Albinus are mentioned as the two first tribunes; Sicinius, the general of the *Plebes* at the secession, is one of the three who were chosen in addition. The plebeians were not able to recover their good right which the Servian constitution had given them; they had to be content with defending themselves against oppression. Their magistracy was therefore *auxilii ferendi gratia*; the tribunes by an oath were declared inviolable (*corpora sacrosancta*), so that they might step in between the holders of power and those who were aggrieved and protect the latter. Before that, owing to the spirit of caste and the pride of office among the patricians, the tribune who impeached a consul, would have in vain incurred the peril of the prosecution, as there was another consul with equal pretensions, and all the patricians sided with him;—indeed the consul would have caused the tribune who appealed against him to the commonalty, to be arrested and chastised. Whoever henceforth laid hand on a tribune, was proscribed as an outlaw; and if the consul did not put the outlawry in force against him, the tribune might after the expiration of his period of office, summon him before the tribunal of the curies, or even perhaps of the tribes. The tribunes were perhaps scarcely a magistracy in the commonalty, certainly not in the state. Justus Lipsius, an ingenious and very learned man, with whom as a philologist I am not worthy to be compared, has by his authority, great as he is as a grammarian, done much mischief with regard to Roman antiquities. Whenever a magistracy, or a military arrangement is mentioned, he, and all those who follow in his wake, never distinguish between the different ages. A tribune at the end of the third century is by no means like a tribune of Cicero's time. It is just the same in Roman topography; a clear-headed man like Sarti does not put all the buildings in Rome of the different ages side by side, as the common herd do. People fancied that the tribunes had the Veto, and likewise the self-same privilege which they got afterwards, of proposing resolutions; but the first tribunes are perhaps to be looked upon in no other light but that of an ambassador in a foreign state, who is to protect the subjects of his sovereign. The patricians had until now wielded their power without any check; the plebeians had no share in the administration: and therefore a magistracy became necessary which might come forward as protectors

against public authorities as well as against individuals, whenever any members of their order had to complain of ill usage. Their houses were therefore open by day and night, and they were not allowed to absent themselves from the city: like a physician they were always to be in readiness to give help. This is a grand idea, quite peculiar to Rome; there is nothing analogous to it in Greek antiquity. Besides this the tribunes had the right of calling together their commonalty, and of making propositions;—yet there are very few traces indeed of this in the earlier times. The resolutions which the tribunes moved among the *Plebes* were mere by-laws, rules at pleasure, *plebiscita*; whilst, on the other hand, those of the patricians were called *leges*. To this allusion is made in a passage of Livy, where the Etruscans say, that the Romans were now two peoples, each of them *suis magistratibus, suis legibus*, a notice of the importance of which Livy was entirely unconscious. He does not in general alter the materials which he finds; but he merely drops part of them. The *plebiscita* had as yet no authority whatever over the whole community; after more than twenty years they could only be considered as an opinion offered by an assembly of states, which might pass into a law (283). The only real magistracy among the plebeians were the ædiles, a name which among the Latins also was borne by the local magistrates. In all likelihood, these were judges in the disputes of the plebeians among themselves; whereas the tribunes were no judges in the earlier times, though perhaps there may have been an appeal to them from the ædiles. No change was probably made at that time in the civil law.

These prerogatives of the tribunes are still very insignificant and humble, being either merely negative, or else administrative in a narrow sphere, and least of all legislative. I do not believe that they had the right of moving any change of the civil law in favour of their own order. Strange to say, the election of the tribunes was now committed to the centuries, although it ought far more naturally to have remained with the tribes. From this also we see, how small the advantages were which the *Plebes* obtained by the first secession; for the patricians had great influence in the centuries by means of their clients: about ten years afterwards, they had formed, owing to this mode of election, a party among the tribunes. The statement that they were elected by the curies is a palpable falsehood; yet there is thus much of truth in it, that they were to be confirmed by the curies in order that no obnoxious people might be chosen; just as the curule magistrates were

by the centuries. It is the same as when the English government claimed a veto in the election of the Irish [Roman Catholic] bishops. This relation, according to Livy, ceases already before the passing of the Publilian law. Piso thinks that before the Publilian law, by which the election was transferred to the tribes, there had been only two tribunes. I believe that the number five is of later date; yet I do not deem it likely that it should have first come in with the Publilian law: for as this number corresponds to the five classes, how should it have come into use, when it was no more the classes, but the tribes which had had to elect? It seems to me highly probable, that under the pretext of a fair compromise, the patricians still managed also to gain an advantage for themselves. I explain from this the perplexing circumstance that ten years later we find the curies in possession of the consular election instead of the centuries. The plebeians by concession only get the election to one office for the centuries; the other remains with the curies until the restoration of the consulship after the time of the decemvirs. Perhaps a grant of land was made besides, and very likely the promise was given to restore the old system of the *ager publicus*. The result of the secession was therefore by no means such a decided victory of the plebeians over the patricians, as is stated by our historians. A firm groundwork was indeed gained, which they afterwards knew how to make use of; yet the fruits were only to be reaped by dint of hard exertions.

The compromise between the two orders was now concluded in form like a peace, and also with sacrifice, by a *senatus-consultum* and a decree of the curies on the one side and by a resolution of the plebeians in arms on the other. They called down curses on themselves if they should do anything to break the vow; and yet the patricians did all they could to shake off the yoke. The deputies of the *Plebes*, and the Decem Primi of the senate, made an offering in common; order returned; things became better; yet, of course, the seeds of new commotions and agitations were still sown for a long time to come. I have called this settlement “a peace.” This word is used elsewhere on similar occasions: the Magna Charta in Lüttich, the union between the burghers and the commonalty, was likewise called *la paix de Fexhe*. In German there is for such an agreement the fine expression eine Richtung (a righting).

The Latins were now rewarded for what they had done for the senate, as Dionysius particularly mentions from the excellent record on which his

narrative is based. They receive isopolity (*jus municipii*) in its first meaning by the treaty of Sp. Cassius, of which we have spoken before.

WARS WITH THE VOLSCIANS AND ÆQUIANS. LEAGUE WITH THE HERNICANS.

Immediately after this gleam of light, the same darkness comes upon us as before, for some time only the Fasti remain to us. In Livy here follows the story of Coriolanus.

If in a book a sheet is misplaced, it ought to be set right unless we would have the writer talk nonsense. The case is the same when an historical fact is placed in a wrong time. I see no reason why I should not believe that a Siceliote king in a famine had sent corn to Rome; yet the tyrants of Sicily first make their appearance some Olympiads later than the period assigned for the story of Coriolanus. I believe that Coriolanus was first of all brought to trial by the *Plebes*; yet the latter would not indeed have ventured upon such a thing before the Publilian law. The Romans also could not have quarrelled under Sp. Cassius about the distribution of the *ager publicus*, if the Volscians had advanced as far as Lavinium. I believe moreover, that a L. Junius Brutus established the heavy penalties against the interruption of the tribunes when they addressed the people; but he who placed this history in the year 262, could not have believed any thing of all this. For this reason I maintain that it does not belong to this epoch, but that it can only have happened after the passing of the Publilian law. Cn. or C. Marcius may perhaps have stood his ground in the war against the Antiates; but he cannot have conquered Corioli, as it takes part that very same year in the league of the Latin towns. We must either reject the whole story as a romance, or date it from quite a different period. A further combination was attempted with regard to it. The temple of *Fortuna muliebris* in the Via Latina, between the fourth and the fifth milestones, happened to be on the same spot where Coriolanus encamped as an exile, and the reconciliation took place. Now the supplication of the mother and the matrons, which may be historical, was connected with the name of the *Fortuna muliebris*; and it was believed that this temple, the time of the building of which was known, had been erected in consequence of that event. Yet *Fortuna muliebris* corresponds with *Fortuna virilis*, who had a temple in Rome, a male and a

female deity, as *Tellus* and *Tellumo*. The same contraposition is also exhibited in *animus* and *anima*.^[93]

Livy says that he would not be astonished if his readers felt tired of the wars of the Volscians and Æquians. And indeed every one has this feeling from the time when he first became acquainted with Livy. The narrative spoils the elegance of the first decade. What has made these wars so peculiarly troublesome to him, is the circumstance that he does not distinguish between them, nor divide them into periods. With the exception of what remains in Dionysius on the subject, he is the only source we have, and so it is difficult for us to get a general view of the events. The first period reaches down to the last years of the decennium from 280 to 290. Its beginning is shrouded in great darkness; the conquests of Tarquin the Proud are very vague. Afterwards we find the Volscians under the name of Auruncians invading the Latin territory; then follow a number of petty wars to about 290; in the last years we see the Volscians in possession of Antium, though they soon lose it again. In the second period the tables are turned: the Æquians take an energetic part in the war of the Volscians; Latium is entirely crushed; the war takes a very unfortunate turn for the Romans, Latins and Hernicans. This lasts to about 296, when the Romans make peace with the Volscians properly so called, and the danger is warded off. In the third period, the Romans carry on the war singlehanded against the Æquians: it has lost its dangerous character, and is on both sides carried on very languidly. Then follows another Volscian war against the Ecetrans, leagued with the Æquians. This fourth period is ushered in by the great victory of A. Postumius Tubertus (324); from which time the Romans keep advancing until the war with the Gauls, conquering many Volscian towns, and weakening the Æquians. In the Gallic war the Æquians also may have suffered much. Afterwards,—and this is the fifth period,—the wars begin anew, but their character is quite different. The Æquians are insignificant foes, and the Volscians amalgamated with the Latins, fighting like them for their own independence.

I will not go through these wars. No memory is capable of retaining them; and they are also deficient in authenticity, and that because the historian, weary of them, has read and written them in too great a hurry. After the Latin league, the enemy make a fierce onslaught, without,

however, conquering much. Circeii in the time of Sp. Cassius is still a Latin town.

An event of relatively great importance for the Romans was the league with the Hernicans (267). Isopolity must already have existed early, if it be true, that under Tarquin the Proud these had a share in the festival of Jupiter Latiaris. A Roman tradition even mentions them as allies of Tullus Hostilius. After the humiliation of Rome by the Etruscans, they must, like the Latins, and the Tyrrhenian towns on the sea coast, have set themselves free. The league restored the relations in a manner very advantageous for them. Romans, Latins, and Hernicans were to be quite on the same footing; the booty, as well in money as in land, was divided in equal shares; if a colony were sent out, the colonists were taken from all the three. Whether the annalists have rightly understood the matter,—Livy and Dionysius differ very much from each other,—or whether they merely took it for granted that whenever a peace is concluded, it must have been preceded by a war, cannot be decided. Yet I am inclined to believe that the league was brought about by mutual necessity, as both were hemmed in by the Volscians and Æquians, and the fortified towns of the Hernicans were of great consequence to the Romans: a war would at least have been very absurd. The Hernicans dwelt in five towns, Anagnia, Alatrum, Ferentina, Frusino, and Verulæ, remarkable for their Cyclopiæan fortifications, and extending from the West to the East. According to the statements in Servius and the Veronese scholiast on Virgil, whom Mai has incorrectly edited, the Hernicans were a people sprung from the Marsians and Sabines; their name is said to be derived from *hernæ*, which in the Sabine language meant a rock, (Arndt compares to it the German *Firn*^[94]), so that they were mountaineers. But it is strange that a people should in its own language have borne a mere epithet as its name, especially as the Marsians, Marrucinians, and Pelignians dwelt on much higher mountains. The Sabine descent of the Hernicans is therefore somewhat suspicious; it might, however, be maintained, even if the derivation of the name were a mere subtlety. Another difficulty is this: if they have come forth from the Marsians, they must have broken through the Æquians, which is altogether unlikely; and besides, in the sequel they have no connexion whatever with the Marsians. Julius Hyginus declares them to have been Pelasgians.

The Hernicans are remarkable in history. They kept off the Romans with brilliant courage; the alliance with them is historically certain. It was a joint league with the Romans and Latins, and therefore they received the third part of the booty. Nevertheless Roman antiquaries would have it, and Dionysius has allowed himself to be deceived by them, that the Romans had exclusively the supremacy; that therefore they had had two-thirds, and the Latins one-third of the booty; and that of those two-thirds the Romans had generously given half to the Hernicans. Yet when Romans and Latins conclude together an alliance with that brave people, it is no more than reasonable that each of them should have given up a sixth. Rome, according to Dionysius' own version, had by no means the supremacy over the Latins. These relations must afterwards have been dissolved by some compromise. At a later period, by insisting upon their privileges the Hernicans brought on their own ruin.

Spurius Cassius is by far the most distinguished man of that age. In the times which are now quite dark, the most remarkable events are connected with his name; first the alliance with the Sabines (252),—without doubt accompanied by isopolity, to judge from the rolls of the census,—then this league with the Hernicans. In this alliance, Rome is placed in quite a different position from what it had been in the former one; just as the relations of Athens to its allies are changed about Ol. 100, after the battle at Naxos. When Athens established its second naval supremacy, the towns were far from being as dependent as formerly; and Demosthenes, when he founded his great league, with all the wisdom of an enlightened statesman no more demands that Athens should have the rule, but merely that it should be the life and the soul of the confederacy. For this, traitors to their country like Æschines, taxed him with having degraded it, inasmuch as the messenger of Athens was of no more weight than that of an Eubœan town. They wanted, so they falsely said, to see the sovereignty of Athens. Yet the question at that time was merely this, to preserve their freedom against Philip; and therefore Demosthenes readily concluded peace with any town that wished for it, and took the lead only by the power of his intellect. The same position is gained for Rome by Cassius; and this very fact shows him to have been a great man, with a clear head and a sound judgment. The Etruscan war had crushed the dominion of Rome on the right bank of the Tiber; the Volscians and Æquians were both of them advancing; the towns on the coasts were lost; it was necessary to arrange matters, not as one

wished, but as one could. This the so-called historians of later days wanted to disguise from themselves, owing to their blinded partiality for their own native country. Livy—and the writers in whose wake Dionysius followed, were full of senseless veneration for the greatness of their forefathers. Rome, they thought, could never have been small. Indeed at that time also, there may have been people like Æschines, and fools, who thought Cassius a traitor, because he accommodated himself to circumstances.

Cassius in his third consulship, after the league with the Hernicans, wished to be just to the *Plebes* also. This leads us to the important agrarian law.

THE AGRARIAN LAW. SP. CASSIUS. EMIGRATION OF THE FABII. THE PUBLILIAN ROGATIONS.

The ancient nations, when they waged war, held on the whole a different principle of right from what we do. We look upon war as a duel between the genii of two states,—between two ideal states: the individual is not affected by it as to his person, his liberty, and his property; the law of war intends him to be injured as little as possible, he is never to be the immediate object of hostility, he is only to be placed in jeopardy when it cannot be helped. But among the ancients, the hostilities were common to every one that belonged to the state; and whilst with us the conquered state indeed loses its right to the land, but every individual remains as he was, just as if there had been no war, these had quite different views on the subject. It was not only in wars of extermination that they took away the whole property of the vanquished, and made them slaves; in the common wars also the goods and chattels of the inhabitants were forfeited. Even when a place surrendered voluntarily, these with their wives and children fell into the hands of the conquerors, as we see from the forms of dedition. The conqueror in the latter case did not make them slaves; yet they were bondmen, and the whole of their landed property became the prize of the victor. If such a place had suffered but little, and it still seemed worth while to preserve it, there were sent thither from Rome three hundred colonists, one from each *Gens*, and these were a *φρουρά*, a *φυλακή*. They got each of them a garden of two *jugera*; without doubt they had the whole, or at least the greater part of the public demesne, and a third of the district as arable land, two-thirds being left to the old inhabitants. These are the original colonies. In other instances no colonies were sent, it not being deemed requisite to take occupation of the place. Sometimes the inhabitants were cast out, at other times they were allowed to remain, and a tax was laid upon them, generally the tithe; yet they then held their tenures as it were on sufferance, being always removable at pleasure. In countries which had been devastated by war, or from which the inhabitants had been driven out,

the Romans used to act according to a law quite peculiar to themselves, for which there is no parallel whatever in the Greek institutions.

This *jus agrarium* is of so much the greater importance for me as it first led me to critical researches on Roman history, whilst before that I had occupied myself more with Greek antiquities. When as a youth I read Plutarch's parallels and Appian, the system of the *lex agraria* was quite a riddle to me. It was thought to have really been a violation of property, which it was to limit to a certain standard, so that he who had more than five hundred *jugera* was deprived of the surplus, by which means an increase of the plebeian holdings was created at the expense of the patrician proprietors. This exposition of the law in such an extreme sense met with much applause. From Machiavell, as he lived in a revolutionary age, and in his opinion the end sanctified the means; and not less from Montesquieu on the other hand, who looked upon the repetition of the past as a thing which was out of the question, since in his time a revolution was still as far off as possible. His example shows how bold speculative minds may become in relations which are unknown to them, and which seem impossible. At that time, revolutionary ideas, in an apparently quite innocent manner, were generally current, even among men who in the revolution itself went over to the extreme opposite side.

As Plutarch and Appian expressly state that the law applied to the γῆ δημοσία only, it was evident that something else must have been meant by it. The first who thought here of the *ager publicus* was Heyne, in a programme the occasion for which was taken from the revolutionary confiscations; yet the question, What then was the *ager publicus*? was not cleared up, as Heyne so often had a general notion of the truth which he but rarely worked out. Afterwards also, the historical writers who treated of the Gracchi were still completely in the dark with regard to it. Once upon a time, when I did not yet see my way into these riddles, I asked the great F. A. Wolf his opinion on it. Yet he, with all the distinguished qualities of his mind, had this fault, that he sought to have the credit of knowing every thing, and then gave himself the air of not wishing to commit himself. He too did not know how to get over this difficulty. I was brought to the subject by chance. In Holstein at that time bondage was abolished. Instead of the peasants, serfs as well as freemen, having hereditary abodes on the estates as formerly, their possessions were taken from them, and changed into

tenant farms, whilst they themselves were arbitrarily transferred to small and worse farms. This was quite abominable. Even where there were no serfs, the same measures were now to be enforced. I called to Heaven against this injustice, and came to raise the question,—“What right have they to do this?” On this occasion I was led to inquire into the nature of tenure at will, and traced it among various nations; and this gave me the key to the Roman *jus agrarium*.

The general notion of the Italian nations was this, that there is an indissoluble relation between the land and the right of citizenship; that every kind of ownership in the soil is derived from the state alone. The soil is merely the substratum on which the preconceived idea of the civil organization rests. There is a great similarity in this to the feudal system. According to strict feudal law, there is no land whatever but what has a liege-lord. All fiefs derive from the prince as the lord paramount, and then follow the mesne tenures. In point of fact, this idea has never indeed been carried out in its full meaning. Another analogous case is in the East, especially in the East Indies, where we find the sovereign the real owner of the soil, and the peasant's tenure to be only at will (*precario*). Thus also among the Italian nations, all right of property in the soil is from the soil.

We read in Appian a statement, of which it is evident that it has not sprung from his own intellectual resources, but that it is an extract from the history of the Gracchi by Posidonius, who was not inferior to Polybius, and whom he uses as his chief authority for that period, as he did Dionysius before, and then Polybius, Fabius, and at last, in all probability, Rutilius. Now, if we see it mentioned by him, that the *ager publicus* was partly turned into colonies and demesnes, and partly sold or let on lease (the latter notice is found in Plutarch only), we may ask ourselves, How was it possible that difficulties should have arisen on this subject? The Roman republic had only to lay down the law, that no one should possess more than a certain number of lots, and all the evil consequences were prevented. The fact is that Appian and Plutarch misunderstood the ambiguous expression of their predecessor. There is no question of any letting on lease; but a tax was laid on the estates, the tithe (*decuma*), from corn; the fifth (*quinta*), from fruit; and from every thing else in proportion. If, then, the corn was taken in kind, the state was obliged to establish great storehouses; for the cattle it had to pay the pasturage; so that of course the revenue was different in

different years. A new system was therefore adopted of letting out the revenue from those taxes to *publicani*. The political forms of the Romans have almost always an analogy in the Greek constitutions, and so has often the civil law; but with regard to the *jus agrarium* the Romans stand alone. The Greek state made conquests and founded colonies, but the *possessio agri publici* is unknown to that people: in one instance only does any thing like it happen. We see from Xenophon's *Anabasis* that he devoted an estate at Scillus to the Artemis of Ephesus; and that the temple did not cause the estate to be let on lease, but received the tithe from it, and that this was farmed. As the victim was never offered as ὁλόκαυστον, but a part of it only was burnt in honour of the god; thus of such an estate, not the whole proceeds, but a part only, was offered as a gift. According to the system of Roman law, the state did not keep as much as possible of what was *publicum* for itself; but it proclaimed that every Romanus Quiris who wished to cultivate a part of the conquered country, might take it. This was called *occupatio agri publici*. At first, those who were patricians, as the oldest citizens, might take a plot wherever they liked. This was for the most part waste land, become desolate in the war, on the hostile frontier, and therefore there was no great competition for it. From the very first, the obligation was imposed of paying the *decumæ* and *quintæ*. It was this revenue which was farmed, and this has always been overlooked. The terms *agrum locare* and *agrum vendere* are synonymous, and mean neither more nor less than *fructus agri vendere*, *agrum fruendum locare*. One really had the possession of such an estate very much as if it were one's own, so that a third party could not claim it; just like the tenant at will, from whom the landlord may under certain conditions take his farm, but who enjoys perfect protection against any one else. This was secured among the Romans by the possessory interdicts, so that this possession might also become hereditary. But the state, on the other hand, might at any time interfere, and say, "Now I want to establish a colony here, or to divide the land *viritim*, the occupant has therefore notice to quit;" and in that case the latter had no *auctoritas* whatever against the state. From this it is evident that the state could always dispose of the *ager publicus*, so that, for instance, no more than a certain number of *jugera* came into the possession of a single person; for others would thus have been excluded from it, and the excessive influence of an individual, from the immense number of his clients, might have become dangerous to the whole community.

This is the great difference between property and a mere *possessio*. The *possessio* was given by the prætor in the edict by which one was called upon to take it; the prætorian right of inheritance rests wholly and entirely upon this ground: the prætor gives *possessionem bonorum secundum tabulas*. Property, one might leave by will as one liked; but possession (occupancy) one could only transfer to another by a sale before witnesses according to a fair arrangement, and he who had received it, proved the legal acceptance, and armed himself with his *interdictum possessorium*; he had witnesses of his having got possession *neque vi, neque clam, neque precario*. But how was it when the possessor died? By his will he could utterly disinherit his children, and leave what he had in property to the most unworthy person, without the prætor in the earlier times being able to interfere; but the prætor could do so when the tenure was that of possession, and as being the source of possession, he decided in the latter case according to a principle quite different from that which applied to the former, as the chancellor of England does in Equity. Even those who entertain unfavourable views of the *Plebes* and the tribunes, as for instance Livy and Dionysius, cannot deny that the patricians were *usurpatores agri publici*; yet these might according to the letter of the law rightly make their claims, and it is moreover not impossible that they appeared to have been perfectly honest. It is in general a great result of historical research, that one learns to judge fairly, and can see that there are good men in the most opposite parties; that the distinctions of party do not constitute the worth of man. Thus it was with regard to the patricians. When Livy and Dionysius, although against the *Plebes*, state that the *ager publicus* had been occupied *per injuriam* ὑπὸ τῶν ἀναιδεστάτων πατρικίων, their remarks are unjust; a fact which can only be understood by going back to the origin of the matter.

Only the original Roman citizen of the three old tribes, that is to say, the patrician, could, according to the earliest law, be admitted to the *possessio*. He got from the prætor as much as he thought he could cultivate, no limits whatever being fixed; and for this he had nothing to pay, but only to invest his capital in making the land productive. The *Plebes* now grew up at the side of this order. These were the real strength of Rome: they furnished the whole of the infantry; their blood was shed in the wars; and they achieved the conquests. It was therefore undoubtedly also the right of the *Plebes* to have their share in these conquests: the *Populus*, however, continued to look upon these as their own property. Servius Tullius had already ordered

that no more unlimited grants should be made, but that a part of the conquered land should remain with the state, and that the rest should be divided among the *Plebes* as their freeholds. According to the rules of the augural system, squares were made, and then lots were numbered, and tickets issued to all those who were to have a share: each of these tickets represented a square (*centuria*). This is called *assignatio*. Such is the law of Servius Tullius, which is inseparably connected with the constitution of the *Plebes*. From Sallust's expressions, we are to suppose that after the expulsion of the kings the Servian institutions were restored. Yet they were again done away by the patricians. Only the *ager regius* was as yet divided; afterwards every thing remained with the patricians, who likewise dispensed themselves from paying the tithes. The tribunes were anything but mutinous; they only wished as the natural advocates of their order to make good its right. Perhaps the plebeians felt particularly aggrieved by the Etruscan war, as they had to sustain the deficiency of the lost third.

Sp. Cassius was the first who brought in an agrarian law, first in the senate, then in the curies, and lastly in the centuries; or else perhaps, first in the centuries, and then in the curies. It was his proposition, to restore the Servian law; to re-establish the tithes and fifths; to sell part of the conquered country, and to mete out the remainder and assign it to the *Plebes*. This is all that we know of the *lex Cassia*. All the rest of Dionysius' statement, as I positively assert after mature consideration, bears evident traces of having been taken from a writer of the second half of the seventh century, and is invented with great ignorance of the old state of things. The *senatus-consultum* of which he speaks has not the slightest authenticity. The law for the division of the land is so closely connected with the whole fate of the plebeians, that there is every likelihood that it was already mooted in the peace on the *Mons Sacer*; under Cassius it is fully brought out. According to all appearance, it was carried; as the *Lex agraria*, down to the time of the decemvirs, is spoken of as a right of which the *Plebes* were in possession, but which was not kept as they were promised. Thus Cassius stands out as a remarkable man; in Cicero he is mentioned as being well known, and yet there is very little said about him.

It is historical that Sp. Cassius was executed in the following year for high treason, and that from his estate (*ex Cassiana familia*) a votive-gift was offered in the temple of Tellus on the Carinæ. It was probably in order

to remove from this deed the appearance of crying injustice, that the tale of his having been judged by his father was invented. Dionysius already is justly startled at the fact that Cassius, who at that time had no less than thrice been invested with the consulship, should have been put to death by his father. The *leges annales* were indeed not yet then in force; but nevertheless it is incredible that one who had been thrice consul, and had triumphed, should have still remained under his father's rule. Another tradition gives a milder version, which is followed by Dionysius and Cicero *de Republica*. The father of Sp. Cassius is said to have declared before the court that he considered his son as guilty, and on this the latter was executed. The truth is that the public accusers (Rüge Herrn), the *quæstores parricidii* impeach Cassius before the curies; and the curies, as the community to which he belongs, cause him to be executed. This is intelligible: he had most grievously offended his order, and therefore they are only too glad to wreak their vengeance upon him. Dionysius is perplexed with the account; Livy gets over the difficulty. According to him, it is the *Plebes*, which condemns Cassius, as the tribunes are envious of him:—as if these had at that time already been able to bring forward any proposition of the kind! A question which has before now been mooted by the ancients, is whether he was guilty or not. Dionysius believes him guilty; Dio Cassius holds him to have been innocent; the all-seeing God alone can decide on it. What he did was done with the clearest right; yet the same act may have sprung from the best or from the most perverse intentions, and he may either have wished to further the welfare of the state, or he may have aspired to the royal dignity. To suspect such a design twenty-five years after the expulsion of the kings, was by no means so absurd as when, seventy years later, Sp. Mælius was charged with it. Cassius was no common man, otherwise he would not in those times have been thrice consul, which was then a thing quite unheard of: no one besides had been invested so often with that dignity but P. Valerius Poplicola, and with regard to him also the *Fasti* are very indistinct. The manner in which Cassius concluded his leagues betokens a great soul. It is therefore quite possible that he entertained the purest intentions of wisdom and justice; for Rome's position in consequence of the spread of the Volscians was not free from danger, and it was necessary to keep together, and to concentrate all her forces. Guilty or innocent, a great man he was, and detestable the faction which condemned him. With him his clan disappears from among the patricians.

Very strange is what Dionysius says about his having had children, and that a question thereupon had risen of executing them also; but that they were spared, and ever since the children of criminals likewise. This looks like a quotation from the law books relative to the establishment of a new juridical institution; yet it may be something quite different. We shall afterwards find a son of Sp. Cassius, and in a place where we should certainly have least expected to have met with him. In all likelihood, the stern judge, L. Cassius Longinus, 640, as also the murderer of Julius Cæsar, are sprung from his stock: it is no wonder that this family went over to the *Plebes*. The condemnation of Sp. Cassius by a Fabius lays the foundation of that greatness of the Fabian house, of which no other instance is to be discovered in the Roman Fasti. During seven years (269-275), we always find a Fabius consul; as in the beginning of the republic the Valerii were for five years. The conclusion therefore is quite natural, that the Fabii were at that time in possession of a rightful claim, and that the second tribe, that of the Tities, was represented by them.

One of the drawbacks of a free government is the extreme difficulty of retrieving a fault which has been once committed. The efforts of rulers to amend it are rarely acknowledged by the people. An independent prince may do so without weakening his authority, and without any danger to himself. But the case is different in republics. If the people were good-natured and conscientious enough to hold out the hand of reconciliation, it would do. But it is not so. If a government wishes to make amends to those whom it has injured, the first step which these take is to revenge themselves. This must excuse the Romans who were in power,—especially if Sp. Cassius fell an innocent victim,—when they were guilty of another arbitrary act, and after his death once more changed the constitution in their own favour. The government could not now stop short; and least of all, if it was conscious of guilt. If it had let the constitution remain as it was, it had to expect, that in the free election of the centuries for the consulship the plebeians would only have allowed patricians who were like Sp. Cassius to get it. They were therefore obliged to do what Dionysius so strangely describes, when he tells us that the *Plebes* had withdrawn from the elections, and that these were now conducted by the principal men alone. As if under the Servian constitution any other but the principal men could ever have turned the scale! The fact is quite different. I state it as it is; the proofs I will not adduce here.

In the year after Cassius' death, or even in the same year, when consuls were to be elected, the election was no more held by the centuries; but the senate nominated the candidates, and the curies confirmed them. Yet owing to this there arose the most violent contention between the *Plebes* headed by the tribunes and the consuls. For though the tribunes at that time were still confirmed by the curies, yet the wrong was so glaring, that even the meekest could not have borne it. And hence the character of the tribunate is now suddenly changed. Up to that time no traces are found of tribunician commotions. The honour of the order was too deeply wounded: on one side the agrarian law had not been carried out; on the other, unlawfully elected consuls were in power. The tribune Ti. Pontificius therefore puts a veto to the levy, on the ground that the people ought not to serve under an illegal government. The old annals would hardly have recorded his name, if his resistance had not been the first made by a tribune. The enlistment was then carried on by force, be it, that open defiance was now bidden to the tribunes, and that those who did not answer were seized and punished; or that the consuls ordered the houses of those living in the country to be set on fire, and their cattle to be driven away; or finally, that they transferred the place of enlistment from the town to the country, whither the power of the tribunes did not reach. An army being raised in this manner, the despair of the plebeians went so far that they would rather let themselves be killed by the enemy like victims, than fight in behalf of their tyrants. This fermentation lasted for two years, and at length it came to such a height, that the senate, as if by a free act of grace, consented to give up to the *Plebes* the election of one consul by the centuries, perhaps without a *senatus-consultum*. The consequence of which was, that the consul whom the centuries had chosen, met with no resistance from the plebeians; whilst, on the other hand, they in every possible way opposed the other. Meanwhile the times were so bad, the neighbouring nations also growing more and more bold against Rome, that the tribunes themselves saw, that one ought rather to put up with a wrong, than to let the commonwealth go to ruin. The *Plebes* therefore in the following year (272) conceded to the senate and the curies the election of one of the consuls. Yet on that occasion it must also have wrung from them the right, that the tribunes no more needed to be confirmed by the curies. Publilius could never have become a tribune, if this change had not already taken place before his law was passed.

According to the traditions, there must even at that time have been as many as five tribunes.

During this period the Volscian wars continued, yet they may not have been of great importance, so that the Latins and Hernicans could by themselves make head against them. But another war weighed upon Rome alone,—that against the Veientes. Veientine wars are already mentioned under all the kings beginning with Romulus; but they are quite apocryphal. Veii, according to the latest researches, was about one German mile (5 Engl.) in circumference, as was Rome in the days of Servius Tullius. That there should have been two such large towns so near each other, almost within two or three German miles, is very remarkable: it shows how strong the opposition must have been in those times between the Latins and the Etruscans. The incidents of the war are diffusely told by Livy and Dionysius; and very prettily indeed by the former, who deemed it all to be true. A long and severe war against the Veientes may be held to be authentic. The details are found in Livy; there is nothing improbable in them, and the story of the death of Cn. Manlius, that vain attempt to elude Fate, has quite the colouring of antiquity. If the accounts of this fight be compared with those of the battle at the lake Regillus, a marked difference will be found. The many narratives of it are most likely taken from the laudations of the Fabian family, which were a tissue of repetitions, like the panegyric *λόγοι ἐπιτάφιοι*. I believe that the plebeians always refused obedience to the consul elected by the patricians. The Fabii doubted also this time whether the plebeians would obey their orders; yet when the latter were filled with ardour for the fray, their co-operation decided the battle, and the Fabii were thus reconciled to them. With this reconciliation all the relations changed. Of the chiefs of the Fabii, who are mentioned as three brothers (they may have been clansmen), one had been slain; the two others who remained at the head of their house, had their eyes opened to the fact that the oligarchs had brought the state into a wretched condition. The Veientes were beaten; but the war still lasted, and although the Latins and Hernicans had been called into the field, the Volscians spread more and more. What was therefore most requisite was union. For this reason the Fabii themselves declared that the agrarian law must be granted; and in consequence from henceforth no Fabius became patrician consul, while on the other hand, the plebeians now elected Cæso Fabius, their former enemy, to be their consul. The most frightful commotion arose; the Fabii were

looked upon by their own order as traitors. When their propositions are rejected, they leave the city, three hundred and six of them, and found on the Cremera a settlement of their clan and of several thousand plebeians who had joined them. This must have been a settlement of a peculiar kind; a colony it was not, as it had arisen *per secessionem*: it was a political emigration; for the Fabii were at feud with their order, and therefore established for themselves an abode distinct from Rome.^[95] It is therefore stated that only one single Fabius, who as a child had been left sick in Rome, had remained behind. Perizonius has sifted this matter before now with able criticism, and has shown how preposterous it is, that three hundred and six strong men should all but one have been childless. This child we again meet with a few years afterwards as already consul. The probability is this, that the number 306 is not indeed symbolical; nor did it comprehend, as Livy has it, merely warriors, nay, leaders only, but the whole of the *Gens Fabia* engaged in the settlement, women and children included. If we take them to have been three hundred and six men able to bear arms, we should be obliged to estimate the number of the patricians at something beyond all belief. That they had a vast number of clients is not to be doubted; and the circumstance that these emigrated with them, is a remarkable evidence of the nature of the clientship.^[96]

The destruction of the Fabii at the Cremera is a positive fact; but the accounts of it are different, one being poetical, and the other annalistic. According to the poetical version of the story, the Fabii, relying on the peace concluded with the Etruscans, had gone from the Cremera to Rome, in order to offer a *sacrum gentilicium* in the city, a rite which indeed had to be performed at Rome, and at which all the *gentiles* had to be present; and as they were not aware that the Veientes intended any hostility, they had marched without their arms. But the Veientes called on the allies of their race, and beset the road on which the Fabii were travelling; and these were surrounded by thousands, who did not, however, venture to attack them at close quarters, but struck them down from a distance with slings and arrows. The gentilician *Sacrum* is doubtless the *statum sacrificium* of the Fabian *gens* on the Quirinal, which is mentioned in the Gallic calamity.^[97]

The other account is this, that the Fabii had been enticed by means of herds which were grazing in the neighbourhood, to go farther and farther; and that they had then been slain in a woodland glade by the countless host

of the Etruscans. Nothing more is said about the clients; but the stronghold on the banks of the Cremera is taken by the Veientes. One might feel inclined to see some treason in this, even that the rulers of Rome had betrayed them into the hands of the Etruscans: one of the Roman consuls, T. Menenius, is said to have been near, and to have been afterwards capitally arraigned on that account. Yet this is hardly to be supposed. If the consul behaved with treachery, we can only see in it a private hatred of his own. The same consul was defeated: he fled to Rome, and the fugitives came into the town without even being able to maintain the Janiculum. The garrison of that place escaped with them; the other consul Horatius appeared just in time to ward off the greatest danger, and it was all they could do to break up the bridge. There was yet a wall, it is true, extending from the Capitol to the Aventine, which protected the city on that side of the river; but it was necessary to break up the bridge, in order to isolate the suburb. The Veientes were now masters of the whole field; they encamped on the Janiculum, crossed the river and pillaged the whole of the Roman territory on the left bank of the Tiber. This was in the midst of summer, the first of August being the period of the change of consuls, in which the new ones entered into office. The enemy had unexpectedly passed over the river on rafts; and thus the harvest may also have been to a great extent destroyed, the farm-houses burnt down, and man and beast have fallen into the hands of the enemy. The distress in the city was extreme. The Roman armies were encamped before the town, and the Veientes pressed upon them hard; on which, in despair, they resolved to venture on a piece of daring which must end either in the ruin of Rome, or in its deliverance. They crossed the river, and defeated the Etruscans; part of them stormed the Janiculum, others made an attack higher up the river. They indeed suffered an immense loss in men, but they drove off the enemy by this means. In this story, as we have remarked before, there is a striking similarity to that of the wars of Porsena. A year after, an armistice was concluded for forty years of ten months, which was also actually kept.

After these events, the importance of the tribunate manifests itself in a peculiar way. The tribunes summon the consuls of the past year before the people; not, as our writers represent it, before the *Plebes*, for as yet it was much too powerless to sit in judgment on the sovereign magistrates; nor even before the centuries, which also were in fact chiefly plebeian. But it was either not the tribunes at all, but on the contrary, the quæstors; or what

was much more likely, a great change had taken place, so that the tribunes insisted upon the right of prosecuting the consuls before their own community, the *Populus*, because those whose proper duty it was, had forborne to do it. On the conviction of the defendants, which ended in a moderate fine, they proceeded to impeach the consuls, their successors. These were acquitted; but the exasperation rose higher and higher. The tribunes had brought their charge before the body of the citizens for matters which it was authorized to judge; it was *majestas populi Romani imminuta re male gesta*, therefore a *crimen majestatis*. Now they went still farther. They summoned before the body of the *Plebes* every one of the consuls, who had been in office since Sp. Cassius, for not having satisfied the people with regard to the *lex agraria*; according to the old Italian principle that when two nations were bound together by a treaty, the complaint of its breach was to be made before the injured people. It is at variance with our ideas, that any one should be judge in his own cause; yet it is every where the case among the old Italian nations, so that the Romans even held the principle of giving up to allied nations citizens who had wronged them. Of this we have instances in the giving up of Mancinus to the Numantines; of Postumius and his companions to the Samnites after the defeat of Caudium; of Fabius who had aggrieved the envoys of Apollonia. This dedition of those *qui in noxa sunt* is generally demanded when a *rerum repetitio* occurs. The Greeks did not hold this principle. There is, on the one hand, a very generous notion at the bottom of it, that the oath taken before judging the cause, would give sufficient protection; and on the other, an idea which was also entertained by the ancient Germans. With our forefathers, every member of a house was to bear witness for his clansmen when called upon to do so (*consacramentales*), which is based on the noble idea of faith and loyalty. A member of one's own class one cannot judge, but only defend, a principle which, it is true, has been dreadfully abused. It is wonderful how impartial the tribunals at Rome often were. The case also became less difficult owing to the circumstance that the accused, until the passing of the sentence, was at liberty to go away from Rome, and to betake himself to some town allied by isopolity, as there were many. In Cære, for instance, one could demand to be received as a citizen. The origin of that right was in the Roman books dated as far back as T. Tatius, who refused to give up to the people of Lavinium his kinsmen, by whom they had been aggrieved; for which he was murdered. Afterwards, the Romans bring those who had

wronged the Lavinians, and the latter the murderers of T. Tatius, mutually before each other's tribunal.

A tribune of the people, Cn. Genucius, of a family already then important, had appointed the charge against the former consuls *in trinundinum*; and here the *Plebes* itself was to judge. Its right, according to the treaty solemnly sworn on the Sacred Mount, was by no means doubtful, as little indeed as the issue of the trial. The patricians, as the rage of faction was at its height, now found their readiest expedient in an atrocious crime, in the murder of Genucius; and thus the impeachment was put an end to. Dionysius justly remarks, that if the perpetrators had contented themselves with this enormity, the panic which they had spread might have sufficed. The tribunes were thoroughly alarmed: their sacred office had been violated; as their houses were to be open day and night, no precaution could guard them against such foul play, against the intrusion of disguised assassins;—the bravest man shrinks from such a danger. The assassins of Genucius were not discovered; every one was paralysed with terror. The patricians were in high glee at what they had done; and they thought to make use of the first moment of fear for levying an army, adding insult and outrage to crime. It was their intention to enlist the most illustrious plebeians, and to execute them in the field, or to let them fall a prey to the enemy. But they overshot themselves in their overbearing insolence: for in their exultation they could not wait, and they caused a distinguished plebeian, Volero Publilius, who had before been a centurion, to be summoned, and wanted to enrol him as a common soldier. Among the plebeians, as well as among the patricians, there were distinguished families, there were rich and poor: to the former class the Publilii belonged. Publilius refused; the consuls sent their lictors to drag him *obtorto collo* before their tribunal, to strip him, and to flog him *servili modo*. The toga was a very wide garment, of one piece, in the form of a semicircle, on which nothing was sewn; the Romans entirely wrapped themselves up in it. Now, if one was to be taken before the authorities, the beadles flung the ends of the toga round his head, and thus dragged him before the magistrate, often throttling him so tight about the neck that the blood flowed from his mouth and nose. A man who was thus dragged away, tried to defend himself by drawing the end of the toga to himself and pressing his arm against it, on which the lictor would take a knife, and slit the toga: he had then a place where he might lay hold on the prisoner and pull him

away. This was called *vestem scindere*. Yet the beadles were very shy of having recourse to this means. Volero Publilius was resolute: he flung the lictors aside, threw himself among the *Plebes*, and called upon the tribunes for help. The tribunes were silent. Then he turned to those of his own order, and a crowd collected fast, and easily kept the lictors at bay. The young patricians hastened to the spot, and an affray took place, in which the tyrants after a short time were driven from the forum. The day after, the consuls again attempted to make a levy with equally bad success; and they were obliged to give it up for the whole of the year: the murder of Genucius had made matters much worse. In the following year, Volero Publilius was elected tribune; a proof that the confirmation by the curies was no more requisite.

An ordinary man would have brought the consuls of the bygone year before the tribunal of the *Plebes*; yet this would have been but a pitiful revenge. Publilius considered that the thorough exasperation of the commonalty might be made use of to gain permanent rights for it; and for this reason, contrary to the general expectation, he took a step which he ought not to have taken, but which became the beginning of a new order of things. He promulgated an address to the people, declaring that they had a right to deliberate on matters of state at the motion of the tribune; and, moreover, that the tribunes ought no longer to be elected by the centuries, but by the tribes. In these rogations, which are much more explicitly given in Dionysius and Dio Cassius (in the abstract of Zonaras), we only miss one circumstance, which was that such resolutions of the tribes were to be confirmed by the senate and the curies; for it could not possibly be, that the Lex Publilia should already put forth the claims of the Lex Hortensia. But this is evident from the examples themselves.

This was now the order of business. The tribunes made their proposals of laws on a market-day. For, the people, *Populus* as well as *Plebes*, could not legally transact business on every day; the curies and the centuries only on the *dies comitiales*; the tribes only on the *nundina*; by the Lex Hortensia, it was first allowed to assemble also the centuries on the nundines. The special expressions are, *populus jubet*, *plebs sciscit*; but it was never said, *plebs jubet*, or *populiscitum*. The *Plebes* in former times assembled in the Forum, afterwards in the *Area Capitolina*: the *Populus* in the Comitium, or in a grove outside the Pomœrium, the *Æsculetum* or *Lucus Petelinus*. In the

concilium plebis, they voted *tabellis*; in the concilium of the curies, *viva voce*. In the *concilium populi*, no previous notice needed to be given. Nothing could be taken to the *Plebes* direct from the senate; the latter could only commission the consuls to confer with the tribunes about any thing: the curies on the other hand could do no business without a *senatus-consultum*, and in their assemblies nothing could be brought forward without a curule magistrate or an *interrex*: in the assemblies of the *Plebes* these did not even dare to show themselves.^[98] If the tribunes wished to propose a law for deliberation to the commons, they set it up in the forum *in albo*, *in trinundinum*, that is to say, to be decided upon after fifteen days, the first nundines being included with them. A *concio advocata* could take place at any time: the forum was full every day; the tribune might mount the rostra and harangue the people, and also allow others to speak, especially those who wished to make themselves heard against his proposal (*edocere plebem*). Yet this deliberation is only a preliminary, not a decisive one; as when, for instance, the English Parliament goes into committee, or the French Chambers deliberate in the *bureaux*: different from it is that which takes place on the day of voting. Every resolution, as well of the *Populus* as of the *Plebes*, was to be carried before sunset; otherwise the day was lost. Auspices were valid for the *Plebes* only in later times; as for the *Populus*, a flash of lightning, or a similar phenomenon, broke up the assembly (*dies diffusus*). If the tribune had announced the rogation *in albo* fifteen days before the decisive debate came on, we generally imagine the affair to have been more tumultuous than it was. People assembled early in the morning; the discussion lasted the whole day; one after another stood up to speak for and against; the opponents tried *eximere diem*, that the measure might not be passed before sunset; the sunset was seen from the steps of the Curia Hostilia,^[99] and the *suprema tempestas* proclaimed. The tribune had now to wait again eight days, and to make a fresh announcement *in trinum nundinum*. This form must have been used from the very earliest times in all the resolutions of the *Plebes*; for *plebiscita*^[100] there have been as long as the *Plebes* existed. But if, on the contrary, one wished to go to the vote, the discussion was then closed, and the tribune bade the patricians and the clients withdraw. The rostra stood between the comitium and the forum, and to the former the *Populus* retired. Hereupon ropes were drawn dividing the forum into a certain number of squares; into each of these a tribe entered, and every tribe then voted by itself under the direction of its tribune. When

it was now settled that such a resolution was passed by the tribes, the patricians by law might throw it out, just as the Upper House and the King may a bill of the Lower One; yet if the latter is earnestly and decidedly bent upon having it carried, its rejection would be quite impossible, as it would give the signal for the dissolution of the state. They did not wish things to go so far; they therefore tried to defeat a motion of this kind before hand. Yet what was gained by its having miscarried to-day, when it might again be brought forward on the morrow? A very great deal; in fact, three weeks' time, within which perhaps a war might arise, which would prevent it all. Nay, they might drag it on through a whole year; only the evil in that case grew worse and worse, and the struggle yet fiercer. This is the folly of all oligarchs, which they continually repeat. The patricians were so infatuated as not to see, that, if they gained over a sufficiently strong party in the *Plebes* itself against the measure, it would to all intents and purposes be the same as if the resolution had been actually carried, and then rejected; and yet that odium would not be excited. In the end, the patricians never show the courage of letting matters come to a crisis; but they yield with an ill grace, reserving to themselves their old rights, from which they will never abate unless driven to it by sheer force.

The great importance of the Publilian law is this, that the tribunes now obtain the initiative. Hitherto it had entirely depended upon the senate and the patricians whether a law should be discussed or not. The consul first made a motion in the senate; the latter decided on it, and then it came to the curies, or to the curies and centuries. But if the tribunes were now free to propose a matter for debate in their own community, they could by this means generally bring any subject to discussion which needed it. There were points, many of them of the highest importance, which urgently required change, and, but for the Publilian rogation, never could have been mooted in a legal manner. The Publilian laws were therefore beneficial, and yet I do not at all blame the then holders of power for not acknowledging this: the fury only with which they opposed them, was as blameable as it was ruinous. By the manner of their resistance, the charge of illegality in point of form, under which indeed the proposals of Publilius lay, was thrown on the opposite side. The senate needed not have deliberated at all in such a *plebiscitum*; yet when the tribunes requested the *Populus* to leave the Forum, the patricians refused to withdraw, and, spreading with their clients over the whole of the forum, so that the plebeians could not come to give

their votes, they drove away the beadles who carried the urns, threw out the voting tablets, and did many other things of the same kind. When this had been tried more than once, there was at last a fight, in which the patricians and their consul Appius Claudius were driven from the market-place. The consequence of this was a general panic among the patricians. Yet matters did not stop there, but the *Plebes* put themselves in possession of the Capitol, though without abusing their victory; for, the oppressed party frequently restrains itself after having conquered: they only needed their victory that they might carry their resolutions. Although Appius even now exerted all his influence to make the senate withhold its sanction, yet the senators saw the danger too well, and assented to the law. Livy refers this law merely to the election of the tribunes; Dionysius and Dio Cassius in Zonaras contain the more correct view. Livy, however, at the conclusion of his narrative, in touching upon some points, presupposes all the rest.

If the patricians had been wise, they ought to have been rejoiced at the result; at least, nobody could have deemed it to be a misfortune. From such a law it is not possible to retrograde; but instead of seeing this, the patricians were ever trying to undo what had been done, and to take revenge. The plebeians still continued to refuse obedience to the consul whom they had not elected. This was the plight in which Appius Claudius found himself, when he led an army against the Volscians. He began on the march ruthlessly to punish the soldiers for the most trifling offences,—to torture them—even, as Dionysius from old traditions very credibly relates. The plebeians opposed to him a dogged resistance, and let themselves rather be punished, than obey him. Immediately before the battle they resolved upon flight, and they fled into the camp, although the Volscians did not the less for this pursue and slay them: they even left the camp, and did not stop until they had reached the Roman territory. On this, Appius now did what might seem to us incredible, if it were not accounted for by the influence of the allies, the Hernicans and Latins, who were under his command. He decimated the army, and led the decimated troops back to Rome. For this he was impeached the year after by the tribunes before the *Plebes*. Livy's masterly narrative of it we may consider as derived from an actual eye-witness of the event. Appius displays the greatest insolence and pride before the *Plebes*, disdaining to soothe it by prayers; even the tribunes allow themselves to be overawed by him. The two historians agree in stating that the tribunes granted him a respite that he might die by his own

hand; and that he made use of it before the dawn of the following day, to save himself from a shameful death.

Hereupon the home dissensions are at rest for a while, and the foreign wars acquire considerable importance.

WARS WITH THE VOLSCIANS AND ÆQUIANS. PLAGUE. CINCINNATUS. CÆSO QUINCTIUS. CORIOLANUS.

In the year 286, the Romans conquer Antium, or, according to another more probable account, Antium opens its gates to them. In the narrative as we have it, the town is Volscian, and part of the population fly to the Volscians at Ecetræ. Antium, just like Agylla and the other towns on the coast, was originally Tyrrhenian; yet there may have been a party uppermost in it, which, feeling itself too weak, called in the Volscians, and Ecetræ, the south-eastern capital of this people, may have sent a colony thither. This colony again was opposed by part of the citizens; these called in the Romans, and the Volscians returned to Ecetræ. The Volscians now wished to regain what they had lost, and thence arose these obstinate wars. After Antium had surrendered to the Romans and their allies, it received a colony of Romans, Latins, and Hernicans,—a proof, that these three people divided their conquests in equal shares. It is evident enough how this is perverted in Dionysius: Livy thinks that too few Romans had liked to go thither. Antium was now linked to the three confederates. The old Antiates formed the commonalty, and the citizens of the three united states its colony, there being probably three hundred from each, and four hundred from the Hernicans only; for among these the division into four seems to have been prevalent, whence also the *cohortes quadringenariæ* are mentioned. The *Antiates mille milites*, who are met with in the later Volscian wars, seem to have reference to this colony. But as the Romans at that time were not the strongest in the field, and the old inhabitants were always badly off in a colony, it is quite accountable, that Antium after ten years should have fallen off again, in the same manner as it had joined the Romans.

This success of the Romans in the war was but transitory. Here ends our first period, and these contests now assume quite a new character.

The Æquians, who at that time must have been a great people (Cicero also calls them *gens magna*), seem until then to have taken little share in the war: yet by the loss of Antium, not only the Volscians of Ecetræ were roused to vigorous exertions, but also the Æquians. Over the disasters of the Romans which followed, a veil has been drawn. The enemy appear to have advanced to the confines of the Roman borders; in another place, we find the Volscians in the neighbourhood of Velitræ; and now they are every year on the Algidus, and get possession of the Arx of Tusculum, which is only with difficulty wrested from them. Several Latin towns utterly disappear: Corioli is destroyed; Lavici becomes an Æquian town; Gabii was as late as in Dionysius' times devastated within its walls; Præneste is no more spoken of, and, when after a hundred years it is mentioned again, it is hostile to Rome; the nearest places only, as Tusculum and Lavinium, remain with the Romans; Rome's boundary is on the other side of the hills of Tusculum, Circeii, Velitræ, Norba, and other places farther to the east, are lost. Thus it is certain that more than half of Latium is conquered; by the Æquians, from the Anio, and by the Volscians, from the sea shore.

We find some sort of allusion to this in the story of Coriolanus; for the Romans tried to console themselves by attributing these victories to one of their own countrymen, as indeed is so natural. Yet the whole story of Coriolanus is for all that neither more nor less than a poem, in which on one man and into one period events are concentrated which are spread over several years; and besides this, it is dated too early. However hard pressed the Romans may have been, it is not to be supposed that whilst the enemy were marching victorious from one town to the other, there should have been nothing said either of consuls or of armies sent against them. Only in the enumeration of the places which were destroyed, have we the intimation of those, which after the breaking up of Latium became Volscian.

The Volscians advanced so far that men and beasts had to be brought within the walls of Rome, and a plague arose from this crowded state of the city. Lowness of spirits always makes people susceptible to epidemics. Thus in the Peloponnesian war, it was the despair of the Attic peasants, at seeing from the battlements their farms set fire to, and their olive groves cut down, which developed the seeds of the epidemic; the yellow fever at Cadiz in 1800 grew much more violent from the despondency of the host of people which had flocked in without any means of livelihood. The unfavourable

season,—it was in August,—the unwonted manner of life, the effluvia from the cattle, the want of water and of cleanliness, might have contributed much to the breaking out of the plague; yet it is likely that the great epidemic, which thirty years later broke out in Greece, and afterwards in Carthage, had begun already then. The mortality was very great; it was a true pestilence, not a mere fever, which might have been brought on by passing the night in the open air. There died the two consuls, two of the four augurs, the *Curio Maximus*, the fourth part of the senate, and a countless number of citizens of all ranks; so that the dead carts did not suffice even to throw the corpses into the river. They were cast into the sewers by which the evil became still greater. In the meanwhile, the Volscians and Æquians were overrunning Latium. The Latins resisted, but suffered a terrible defeat in the valley of Grotta Ferrara. In the following year, we read nothing of victories: the disease may have attacked the enemy also, and Rome thereby been saved. After some years, the plague shows itself again.

The details of the accounts of this war are in part deserving of no notice whatever: many of them were invented only very late, in order to enliven with some cheerful images that dismal time. The scene of the wars is always on the Algidus, which is not a mountain, but a cold rugged height extending several leagues between Tusculum and Velitræ, where the different streams divide, which partly flow towards the Liris and the Pontine marshes, and partly towards the Anio. Horace says, *nigræ feraci frondis in Algido*. The country round is barren, and was in olden times, as is it to this day, overgrown with evergreen holm oaks. It was several years ago the constant haunt of robbers, so that I did not see it; but I have gathered very accurate information concerning it. Here the Æquians and Volscians always appear, and unite their armies. Here also is the scene of the poetical tale of the victory of Cincinnatus over the Volscians. This, at least in the form in which it has been handed down to us, belongs to a very fine cycle of legends; but it is connected with the earlier events which happened at home.

The Publilian law could not remain without consequences unfavourable to peace. The great grievance was the unlimited rule of the consuls. The consuls had come into the place of the kings, and though restricted as to time, in their power they were hardly beneath them, the consequences of which became apparent when there was an enlistment of troops. As the

tribunes were now authorized to propose laws, it was first moved by C. Terentilius Harsa to appoint five men who were to draw up a law declaring the limits of the consular authority. This undertaking was very difficult to carry out. In reality, the supreme power can never be perfectly defined, and least of all in free republics: it ought to have a certain degree of pliancy, in order to admit of extraordinary expedients. The Roman republic acknowledges this principle in the formula, *videant Consules, ne quid detrimenti res publica capiat*, which in the earlier times was something quite ordinary; and in such conjunctures the limits of lawful use or of abuse could not be easily laid down. This is one of those points with regard to which we may fully understand, how with the greatest honesty on both sides, people may have spoken for and against. At the same time, if there existed a difference of opinion, it ought not to have been envenomed. The question may, however, from the very beginning have had a wider meaning: it was perhaps intended by it to divide the consulship equally between the two orders.

During the first year, the commotions were still moderate; in the next they grew more violent, since another tribune, according to Dionysius' account, again took up the *lex Terentilia*, but with this addition, that Decemvirs,—five from the *Patres*, and five from the plebeians,—were to make a general revision of the laws. The legislations of old did not only comprehend civil and criminal law and judicial procedure, but political law besides, and even transient measures also. Solon's legislation, for instance, was a complete alteration of the constitution; but it likewise contained regulations concerning matters of quite momentary interest, as for the payment of debts. The idea so lately in vogue, that general legislations were to issue from a great assembly of men learned in the law, was quite foreign to the ancients, who were well aware, that a few only ought to discuss the laws, and the larger assembly merely to adopt or reject, inasmuch as it had to sanction them. This is the natural course of legislation, and for this reason the ancients for the most part held the principle, that lawgiving ought to be quite independent of magistracy. In all the republics of antiquity, one or a few were appointed to make the laws, and the people said yes or no. It was the same among the Romans: ten men were to be nominated *legibus scribundis*, to whom moreover consular power was to be granted. When we see from the remnants of the Roman laws, how lengthy a single statute was, the fact is easily accounted for that few only read them; yet the majority did

not know in the least what was spoken of, and thus republican form in such transactions is necessarily a mere phantom.

Dionysius has this very happy expression, that the Romans had aimed at *ἰσονομία*, and that they had attained to *ἰσηγορία*.^[101] From an occasional remark of Tacitus we know, that the ancient laws were for the most part ascribed to kings, Romulus, Numa, Tullus, and Ancus. This shows, that each of the three old tribes and the *Plebes* had their own peculiar law which was derived from their first founders. These tribes and the *Plebes*, which had originally been separate civic communities, had retained their old statutes when they united into one state. I think I have been told of more than a hundred sets of statutes, all of which, before the revolution, were in force in the States of the Church. Many a village in Italy which does not number a hundred hearths, has its own common law: Abbate Morelli has collected three hundred different varieties of statutes in Italy. This is likewise the case in many districts of Germany; yet there are also very large tracts of country there, in which one and the same law of the land prevails. It cannot even be stated with certainty whether the whole of the *Plebes* had the same law; whether in places like Medullia and Politorium a different system was not in vogue. This seems indeed to be contradicted by the fact that Servius Tullius swept away every difference among the plebeians; but on the other hand it seems confirmed by the circumstance that there were towns like Cameria and others, which existed as *Coloniæ Romanæ*, and formed separate communities. The ancients had a tradition according to which the clause in the Twelve Tables, that the *Fortes* and the *Sanates* were to have equal rights, applied to certain places, as for instance, to Tibur.

On the establishment of such an equality, the chiefs of the *Plebes* might very well insist, as the disadvantages of this difference of usages must have been great enough to have been very severely felt. Abolition of all that constituted a glaring and oppressive inequality was the object of this reform, and this the tribunes might certainly demand. Still there existed no *connubium* between patricians and plebeians; the child took its rank from the parent of the worse blood (*deteriorem partem sequi*). Thus in the Italian cities, Lombards, Franks, Romans, and others, lived together for centuries under their own peculiar laws; but this, by its very inconvenience, afterwards gave rise to the statute law with equal rights.

Yet the tribunes went further: as the laws also affected political rights, the lawgivers had likewise to reform the constitution. By the Publilian Rogations, a life had been awakened in the nation which was not in harmony with the ruling power: a new state of things was necessarily to spring up from it; but against this new state of things the old was arrayed in opposition. The most violent resistance was made to this law, and the patricians had recourse to the same outrages of which they had formerly been guilty. In this Cæso Quinctius, a son of Cincinnatus, particularly distinguished himself. He repeated all the intrigues of Appius Claudius, and at the head of the young men of his order and of the clients, he again prevented the plebeians by force from voting. Against this, either at that time, or a year before, a law had been passed, the *lex Junia*, which is inconceivably dated by Dionysius^[102] thirty years earlier (262). By virtue of it, any one who molested the tribunes in the discharge of their duty was guilty of high treason against the commonalty. He had to find bail for an amount to be fixed by the tribunes (the usual number was ten sureties, for three thousand asses each), and if he did not attend to receive sentence, the sureties and their goods were forfeited to the commonalty. When the trial began, the charge was brought against him, that with a gang of young patricians he had caused the death of a plebeian by ill usage. Thus the Pentalides ran about in Mitylene with clubs, and ill used the plebeians there; as late as during the minority of Louis XIV. similar scenes took place in Paris, where people would not go out into the streets unarmed, as they were afraid of being attacked; in the times of Queen Anne, there was also in London a band of young men of rank, called Mohocks, who infested the streets in disguise; under King William, Lord Bolingbroke belonged to such a crew, as we see from Swift's correspondence. The charge raised such a feeling of exasperation against Cæso Quinctius, that he left the city. It is now stated that his father was ruined in consequence, the tribunes having cruelly exacted the whole amount of the bail from him. This is impossible; for the tribunes could only come upon the securities. If these chose to come upon the father, a *sponsio* must have preceded; and even then, a man of so distinguished a house could not possibly have been bereft of rights which belonged to the very meanest of his order, but he might have called upon his clansmen and clients to indemnify him. The story is a fiction, like so many others which go a step beyond the truth. These embellishments might have

been made skilfully so as to deceive us; but luckily we cannot be mistaken in this case.

Cincinnatus is one of those characters which have a very great name in tradition, but of which the notices in history are scanty, and nearly worthless. He occurs afterwards as a consul, and on that occasion nothing more of any consequence is recorded. Striking facts are told of him only in the Æquian war. There is a *prestige* of wealth and also of poverty about him: the latter shines forth especially in a rhetorical age, when no one has a mind to be poor, and it seems so much the more inconceivable if a great man is poor. We may leave the old account as it is; but the enthusiasm which has arisen from it, is only foisted into history. Perizonius has remarked, that the same story as that of Cincinnatus was told of the dictator Atilius Serranus (*te sulco Serrane serentem*), and therefore is quite apocryphal. He thinks that in all likelihood it was made from the name (*Serranus* from *serere*), which was certainly older than the dictator Serranus. The story of Cincinnatus is preserved in a poem on his dictatorship.

A Roman army under the consul Minucius was surrounded on the Algidus by the Æquians; the senate, as is stated, then sent a deputation to Cincinnatus, which found him ploughing his little farm of four *jugera* beyond the river; he is said to have received the invitation of the senate, and to have obeyed it with a bleeding heart, since he had still the fate of his son before his mind. He then chose a brave but poor patrician, L. Tarquitiuſ, as his Master of the Horse; and gave orders that all who were able to bear arms should present themselves, and that each should bring with him twelve palisades, and provisions for five days. In the night they accordingly set out, arrived on the following morning, and formed the army in a line around the Æquian camp. The consul broke through from within, and the Æquians, themselves enclosed by a palisaded ditch, were obliged to surrender.

The whole story is quite as much a day dream, as any tale to be found in the “Book of Heroes.” If the Roman army was in the middle, and round it an Æquian one, and round that again another line of Romans, the latter must have occupied a circuit of at least a league; so that the Æquians could have broken through without any difficulty. Yet I will not assert that this dictatorship of Cincinnatus is not historical at all; although it is strange that afterwards a similar account occurs at the siege of Ardea, and the same

Clœlius Gracchus as a general in it. Cincinnatus now exerts his power, to have Volscius, who had deposed as a witness against Cæso Quinctius, banished; probably by the curies, as the centuries had not as yet any judicial authority. At that time, Cæso Quinctius was no more alive: it is likely that he had already perished the year before on the following occasion, in which the spirit of the age shows itself in its true light. When he had expatriated himself, the tribunes remarked symptoms of a conspiracy among the patrician youth, and had information that Cæso was in the town. Moreover it is said that the city was surprised from the Carmental gate, which was open, by a host of patrician clients, headed by the Sabine Appius Herdonius who had come down the river in boats. But such an enlistment of four thousand men must have been known at Rome, as there was peace with the Sabines, and although the gate was to have been open on account of a consecration, yet it surely was guarded by double sentries; the enemy could not possibly have passed the Field of Mars unheeded, and have occupied the Capitoline hill; the Clivus at all events was closed. There must therefore have been treason here. In the night people were awakened by the cry, that the enemy had got hold of the Capitol; all who did not join the enemy were slain; the slaves were called upon to unite with them. This of course excited the greatest alarm and general misgiving. The plebeians thought that it was a stratagem of the patricians, and that they had set on their clients to take possession of the Capitol, as a means of intimidating the plebeians; that the consuls would, as in a tumult, require them to be sworn unconditionally, and would then avail themselves of the oath to lead them to a place beyond the reach of the tribunician authority, and demand of them the renunciation of their rights. The tribunes therefore said that they could not allow the commonalty to take up arms, before the laws were adopted. We may believe, notwithstanding, that the government was altogether guiltless. It seems certain, that there was a conspiracy, in which Cæso Quinctius had a share, and that they had promised to make Appius Herdonius king. There may have been here besides a conspiracy of the *Gentes Minores*; for one still finds a great division between them and the *Majores*. When it was seen how matters stood, the tribunes consented that the commonalty should take the military oath; and under the command of the consul, the Capitol was stormed. Luckily there seems to have been an armistice with the *Æquians*; yet such a state of affairs was always dangerous, for one could not reckon indeed with any safety that the truce would last. The consul Valerius, the

son of Poplicola, the very one who is said to have been killed at the Regillus, was among the slain; the Capitol was taken by assault; of those who were in it, the slaves were crucified, and the freemen were executed. Cæso Quinctius may have been also among the latter; and for this his father now took a revenge, pardonable indeed, yet at all events ungenerous, in banishing Volscius, the prosecutor of his son. The tribunes of the people are stated to have vetoed this charge; a remarkable instance of their power, which at that time was very great already: perhaps they only took the accused under their protection, not allowing him to be brought by force before the tribunal; the expression *patricios coire non passi sunt*, is first used in later times. There were disputes about this trial for one or two years; for Cincinnatus as consul, or as dictator (very likely the latter), would not resign his office before Volscius was condemned. Volscius went into exile. His cognomen Fictor is one of those instances in which either the name arose from the tale, or the tale from the name, being probably from *fingerē*; so that the fact that the plebeian M. Volscius Fictor had been condemned, gave rise to the story that he had borne false witness.

It is evident, that Cincinnatus has been preposterously idolized by posterity. Twenty years after this event, we see him, quite in the interest of a faction, shedding the innocent blood of Mælius.

After the war of 296, the history takes a different turn. Concerning the causes of this change we find no special notice; yet the combination of several circumstances leaves no doubt but that an alliance of peace and friendship was then concluded with the Volscians of Ecetræ, of which the condition was to restore Antium to the Volscians; so that this town now takes that character which it preserved for a hundred and twenty years, until after the Latin war. For, from that time the Volscians no longer appear every year on the Algidus; only the Æquians are enemies still, but indeed enemies of no consequence. The Antiates and Ecetrans from henceforth take a share in the festivals on the Alban Mount, the *Feriæ Latinæ*. This is referred to the days of Tarquin the Proud; but in that age Antium was not yet Volscian. Before the year 290, the census amounted to 104,000; after the plague, we find this number reduced not more than an eighth, although one fourth of the senate had been swept away, which is owing to the Volscians having been admitted to the right of *municipium*. Citizens they were not; the census therefore did not comprise the Roman citizens only. Yet the story of

Coriolanus in particular is a proof of this compromise. Coriolanus is said to have made it a condition to the Romans, to give back the places which they had taken from the Volscians, and to receive the Volscians as isopolites. Both of these things were done: Antium is restored, the isopolity granted. Either to this tradition has been transferred whatever is historically related of the great Volscian war, or the story of Coriolanus is the catastrophe of this struggle which brings on the peace; that is to say, Coriolanus is really commander and mediator in this war.

That his history is not in its proper place, is manifest. The law against those who should disturb the popular assembly could not certainly have been made before the Publilian Rogations. If the Volscians had advanced to the gates of Rome as early as we find it stated in our books, there would not have been left any demesne for the distribution of which Sp. Cassius could have proposed a law; and, in fact, after the disastrous Volscian wars the agitations about the agrarian laws are at an end, because there was then no occasion for them. Moreover, if the war of Coriolanus in the year 262, had been carried on in the manner in which it appears to have been from the narrative, the Romans would not have had to restore any thing to the Volscians; but after the great Volscian war, these possessed Antium. Lastly, the demanded isopolity was really granted in the year 296, as is proved by the numbers of the census.—As to the giving up of Antium, the Romans say that it had fallen off: yet this is absurd with regard to a colony. The Roman colony was simply withdrawn, and the old Tyrrhenian population left to the Volscians. Even what is mentioned as the cause of the breaking out of the war of Coriolanus, that is to say, the account of the famine, during which a Greek king of Sicily was said to have sent a gift of corn, points to a later period. After the destructive Veientine war, under the consulship of Virginius and Servilius, the surrounding country had been burnt and devastated during the harvest and seed-time. In the year 262, Gelon was at most only prince of the insignificant town of Gela. Dionysius of Halicarnassus shows himself very clever at the expense of the old annalists who mention here the tyrant Dionysius, when he proves that the latter began his reign some eighty years later; yet he deserves much more severe censure himself, as he names Gelon. But after the Veientine war, according to the more probable chronology, Gelon, or at least his brother Hiero, was ruler of Syracuse, and had, on account of his hostility against the Etruscans, substantial reason to support the Romans. All the circumstances indicate the

time which we have fixed upon. What gave rise to the mistake, was the mention of the temple of the *Fortuna Muliebris*, as has been remarked before; yet this surely belongs to an earlier period. The daughter of Valerius Poplicola is mentioned as the first priestess; if it were at all connected with the history of Coriolanus, his wife, or his mother, would have been the first priestess. The account is now as follows.

C. or as others call him, Cn. Marcius Coriolanus, a young patrician of eminence, very likely of the lesser clans, as these are on the whole most opposed to the *Plebes*, had distinguished himself in the wars against the Antiates. He had been commanding officer in the army which the consuls had led against the Volscians, at a time which of course the poem does not specify. The army besieged Corioli; the Volscians, advancing from Antium, wished to relieve it; Coriolanus took it by storm, whilst the army of the consul fought against the Antiates. For this his name was given him, and he was highly extolled. Yet the same person who in the war appears as a youth, is also a member of the senate, and stands there at the head of the oligarchic faction. There was a famine; and in contradiction to the plebeian statement that the *Plebes* during the secession had not been guilty of pillage, it is now said that the land had been devastated by them. The whole story is evidently of patrician origin; it glaringly shows the colouring of the caste. Fruitless attempts were made to procure corn: money was sent to Sicily to buy some; but the Greek king returned the money, and gave the corn as a present. Perhaps it was a gift from Carthage. Now it had been discussed in the senate what should be done with this corn. Coriolanus had proposed, that it should neither be sold nor distributed, unless the commonalty renounced its newly acquired rights, selling them for a mess of pottage. Another proposition not much more commendable, was that it should be sold to the commonalty as a body, so that individuals had to buy it of second hand. In this manner the patricians got double the prime cost. This plan was adopted. As might be expected, it excited great exasperation; at the same time, it also transpired that Coriolanus had insisted upon making use of the opportunity to do away with the privileges. The sequel is briefly told by Livy; Dionysius relates it at great length. According to Livy, the tribunes brought a charge against him, as one who had broken the peace; and they had a full right to do so by virtue of the agreement sworn at the Sacred Mount. The impeachment, of course, was brought before the *Plebes*, a fact indeed which Dionysius does not perceive. Coriolanus therefore was put on his trial

before the tribes, with permission to leave the country before the decision was pronounced. This might be done, if bail were found; only not in the way that is generally imagined. Coriolanus is said to have met the charge proudly: Livy, however, tells us that he had not appeared on the day that judgment was given, but had withdrawn before the sentence was made known. Now if he had settled in some place where he had received the right of citizenship, the sentence could not be passed; or, if it were passed, it was null and void, though his sureties had to pay the sums for which they had bound themselves. Coriolanus was perhaps the first who was allowed on this charge to find bail. According to the general account, he now betook himself to the Volscians. This is true;—I believe every thing as far as here, —yet his presenting himself to Attius Tullius at Antium is apocryphal, and entirely copied from the visit of Themistocles to Admetus, the king of the Molossians. It is then stated, that he induced the Volscians, who had been quite disheartened, to hazard a war once more. This is Roman exaggeration, intended to disguise the distress which had been brought on by the Volscian arms. It is related, how he conquered the towns one by one, first Circeri, then those lying to the south of the Appian Way, then those on the Latin road; and how at last he advanced against Rome itself. This does not agree with what follows. Coriolanus now appears on the Roman frontier near the Marrana, the canal which carries the water of the low ground at Grotta Ferrara into the Tiber, five miles from Rome. Here the Romans send an embassy to him: first of all, ten senators; he grants them thirty days, and then three, as the Fetiales did whenever a war was not yet declared; afterwards they send the priests, and at length the matrons also. These last move his heart, and prevail upon him to turn back.

This is all very pretty, but, if we look a little closer to it, impossible. Livy makes on this occasion a most remarkable assertion. He says that one would not indeed have known that the consuls of that year had waged war with the Volscians, had it not been evident from the league of Sp. Cassius with the Latins that one of them, Postumus Cominius, had been absent; for Sp. Cassius had concluded that treaty alone. To account for this, Livy alleges the eclipsing fame of Coriolanus. This is a most valuable notice. The old traditions then do not mention at all that the consul had taken Corioli, but merely that Coriolanus had. Now, as we have seen before, it is not true that he received his cognomen from the conquest of the town, as such surnames do not occur before Scipio Africanus; moreover, Corioli was at

that time not a Volscian, but a Latin town, which first became Volscian in the great Volscian war which we call that of Coriolanus, and was destroyed only later. That it was Latin, is plain from the list of the thirty towns which shared in the fight at the Regillus; and yet indeed that list in all likelihood was not originally made out with reference to this, but to the league of Sp. Cassius. Thus the name of Coriolanus meant no more than that of Regillensis, Vibulanus, Mugillanus, and others, whether it was that Corioli stood in a relation of proxy or clientship to his family, or from any other reason. We have therefore nothing historical concerning Coriolanus, but that he wished to break the treaty with the plebeians, and was therefore condemned. It is the same with all the rest of his story. Coriolanus was condemned as one who had transgressed against the sworn rights (*leges sacratae*, the German *Frohnrechte*). He who violated them, made both himself and his family accursed; and it was said that such persons were to be sold for slaves at the temple of Ceres. How then could his wife and children have stayed behind in Rome, if such a sentence had been passed upon them? Mercy is not to be thought of in those times. The places against which Coriolanus waged war, were in alliance with Rome; whosoever therefore warred against them, was at war with the Romans, and Rome would already then have been obliged to take the field. And so, when he appeared before Rome, he could no more offer war or peace, but merely an armistice, nor could he settle the conditions of the truce; while on the other hand, the Romans could not possibly conclude peace on their own account without bringing in the Latins and Hernicans. Moreover, it is stated in the old narrative, that repeal of the *interdictio aquae et ignis* had been announced to Coriolanus; but that he had not accepted it, but had put forth claims in the name of the Volscians. Yet, after the matrons had moved him, he goes off, and abandons all the conditions made in their behalf. Thenceforward we find no more traces of him beyond the notice in Fabius, that to the end of his days he dwelt among the Volscians; and that it was a remark of his, that in old age one began really to feel, what it was to live away from one's native land. Others were well aware that the Volscians could not have let things pass off in this way; and hence we are told that they had followed him on account of his personal superiority, but that afterwards, when he left them, they stoned him to death at the instigation of Attius Tullius. Yet even Livy does not believe in this, because it is contradicted by the statement of Fabius.

The story is not altogether a fiction: Coriolanus lives too much in the Roman legends for this to be the case. As for the assertion that he was general of the Volscians, it is to be attributed to the natural feeling that it is less painful to be conquered by one's own countryman than by a foreigner. From such a feeling of national pride, the Romans gave a false colouring to the Volscian war, and thus softened down, for themselves and the Latins, the disgrace of a defeat which led to such great conquests of the Volscians. In the same spirit, they devised the tale of the magnanimity of Coriolanus, and likewise of his death; and I am convinced that Fabius Pictor was right in asserting that Coriolanus, even to an advanced age, lived in exile among the Volscians. That Rome was on the brink of utter ruin, is likely; the distress, as represented, is perhaps not quite fictitious; but, that the expedients for warding off the danger, namely, the three embassies, of the senate, the priests, and the matrons, were invented to glorify the hero, is not to be denied. The different orders in their narratives mutually revile each other; and thus the *Plebes* here shows itself at once discouraged, and the patricians proud, as if they did not wish for a reconciliation with Coriolanus.

I believe that the real truth is something quite different. At that period when so many emigrants of the times of the Tarquins still existed, who flocked together wherever a new gathering point presented itself, I consider Coriolanus as one, who, on his retiring to the Volscians, formed such a centre. As he finds an army of Roman emigrants who are joined by the Volscians, he makes his appearance with them on the Roman frontier. He could not, however, have had any idea of forcing the walls of the city; but he encamped, just like a man in the history of Dittmarsch who had renounced his country, and he threatened war against it. He grants a respite, at first of thirty days, that the senate might deliberate whether his demands were to be conceded or no; and when this was not done, he waited for three days more, this being the time which the state or the general asking for satisfaction, still took to consider, whether war was to be declared, or how to decide on any proposals which might have been made. Coriolanus had come with partisans of the Tarquins, and likewise with many who had fled the country for their crimes, and lastly with Volscians. The republic invited him to return; the supplications of the mother, the wife, and the matrons could have had no other meaning—but to urge him at least to come alone, and not to bring back the terrible band. He probably answered, that he could

not enter alone, that he could not leave his companions. If he returned, nothing remained for him but to be a tyrant in his own native land, as we know from Greek history that the return of the φυγάδες is an awful calamity; the ousted party cannot but crush the other entirely. We see him here as a noble-hearted man, who will not thus return, but rather dismisses his followers upon whom he must have made an impression by his having renounced his country; such a paramount influence could easily be exercised by a great man in times like those. He did not compromise the interests of the Volscians: it is possible that he really mediated for them, and obtained the cession of Antium and isopolity. Thus he fulfilled his duty towards those who had received him, and for Rome he gained the immense advantage that it was now reconciled with its most dangerous enemy; for, the Volscians had pressed upon Rome the hardest, and henceforth there remained only the Æquians, whom it was easy to resist. The childish vanity of the Romans has thrown so thick a veil upon this Volscian peace, but for which every thing would be unconnected. It saved Rome, and gave it new strength; and the state, with great wisdom, now turned this time to account.

It is one of the distinguishing features of Roman history, that many an event which seemed necessarily to lead to ruin, only brought out a new career of prosperity. After the plague, one might have expected the fall of Rome; and the peace with the Volscians was in the eyes of the later Romans, who for this very reason tried to conceal it, in some measure a humiliation; yet we have seen, how wise and fortunate it was. From it there arose a source of power for Rome, which, even in the most successful issue of the war, it would have been far from ever possessing. The dissolution of the Latin state destroyed *de facto* the equality which was established in the league. The general opinion in Dionysius, and also in Livy, is this, that the Latins were subjects of the Romans, and that the war under Manlius and Decius in the year 410 (415), was a kind of rebellion. This is contradicted by the notice of Cincius in Festus, according to which,—in his opinion, since Tullus Hostilius—the Latins had their separate republic, and the supremacy alternately with Rome. The true account is as follows: In the times from Servius Tullius down to Tarquin the Proud, the Latins were on a footing of equality with Rome; under Tarquin, they were subjects. This state of submission was done away with by the defection of Latium after the expulsion of the kings; after the battle at the Regillus, it was perhaps restored for a couple of years; and at last, equality was again established in

the league of Sp. Cassius. In point of fact, it continued for thirty years; but when the Latin towns were partly occupied, partly destroyed by the Volscians, scarcely the fourth part of the Latin league was left, and this could no more put forth the same claims to equality as the whole state had done. It is evident, that in the beginning of the fourth century, no ties of home policy bind the Latin towns together any more. They have hardly a common tribunal still: some towns, Ardea for instance, were entirely severed from the rest. And thus the Latins are once more subjected to the Roman sovereignty, as they were under Tarquin the Proud. The distinction between the different times is the only clue to this labyrinth. Of the Hernicans I cannot assert this with positive certainty; yet it seems to me very likely. After the burning of the city by the Gauls, the Latins again broke loose from the Roman sway, and renewed their claims to equality; and, in consequence, there arose a war of thirty-two, or according to the more probable chronology, of twenty-eight years, which ended in a peace by which the old league of Sp. Cassius was re-established. In the meanwhile, the Volscian war had for Rome this advantage, that it stood alone indeed, but unmolested.

In Rome there was still at that time a considerable degree of fermentation. According to Dio Cassius, it was by no means seldom that distinguished plebeians were made away with by assassination. During these dissensions, the agrarian law, and that on the *νομοθέται*, are brought forward at every turn. It cannot be made out what interest the *Plebes* had in the increase of the number of tribunes to ten, two for each class: their authority could not have been raised by this means.

A strange story, which is, however, enveloped in great obscurity, belongs to this time of the increase of the tribunes. It is stated in Valerius Maximus, that a tribune, P. Mucius, had caused his nine colleagues to be burnt alive as traitors, because, headed by Sp. Cassius, they had hindered the election of the magistrates. There is here an evident confusion of dates, as ten tribunes were first elected in 297, twenty-eight years after the consulship of Sp. Cassius. Two hypotheses may be set up to account for this. Either these tribunes were traitors to the *Plebes*, which is not likely, as the election lay with the tribes; or P. Mucius was not a tribune of the people; or at least he did not pronounce the sentence, but it was the curies which did so, and they must have condemned the tribunes as breakers of the peace.

There must be something in this story, as Zonaras (from Dio) likewise mentions it; perhaps this event is identical with the impeachment of nine tribunes in Livy, about the time of the Canuleian quarrels.

LEGISLATION OF THE TWELVE TABLES.

We pass over the unimportant wars with the Æquians and Sabines, and over some laws which indeed are of the greatest moment for the study of antiquity. If we could review in detail the debates on the Lex Terentilia concerning the equalization of the two orders, it would be very interesting; but this is impossible, and we can only dwell on quite detached notices. One of them is this, that a trireme was sent out from Rome with three envoys to collect the Greek laws, particularly those of Athens. The credibility of this story has been much discussed. I now retract the opinion which I expressed in the first edition of my Roman History. I had considered as little as my predecessors, that the questions whether the Roman laws have sprung from the Attic ones, or whether envoys went from Rome to Athens, are quite distinct. If the question be put in this way,—“Are the Roman laws borrowed from those of the Athenians?” the answer is a decided “No.” Two laws of Solon only are quoted in support of it, which are said to be met with in the Pandects; yet these are not only quite insignificant, but they are also such as might just as well be borrowed from other codes: we may find as many detached Germanic laws, which coincide with the Roman ones. Nor can we know how far the common descent from the Pelasgian stock may have produced a similarity of laws. All that is distinctive in the Roman law, is not to be found in the Athenian; and distinctive it is with regard to the rights of persons and things. Never had the Greeks the right of paternal authority like the Romans; never the law, that the wife by her marriage entered into the relation of a daughter and co-heiress; never the *jus Mancipii*, the formality in the purchase. The difference between property by formal purchase and simple property, between property and hereditary possession, does not exist in the Attic law: the Roman law of inheritance, the Roman law of debt; the Roman system in contracts of borrowing and lending, are quite foreign to the Athenians; the Roman method of procedure is thoroughly different from the Attic. The Attic law belongs to a much later time, when the forms were already very polished; and we behold in Athens a social body which is deficient in the very features which distinguish the Romans. And what we also know of the laws of the other Greek nations has nothing to do with the

Romans. If the laws of the states in Magna Græcia should chance to bear any resemblance to those of Rome, this is certainly much rather owing to their having sprung from the same Italian source. Thus in the *tabula Heracleensis*, the law of the *ager limitatus* seems to have been similar to that which was in force at Rome.

For this reason, therefore, the story has been deemed untrue; yet for all this, the real facts may have been quite different. Every one has often in his life done things after long consideration which have never attained their object: the same may happen to a state. The embassy falls just within the time of Pericles, between the Persian and the Peloponnesian wars, the period when Athens was most flourishing, and the fame of that most powerful and enlightened city was certainly spread far and wide. That the senate at a much later age, in the days of Cassander, when wishing to set up a bust of the wisest Greek, did not make choice of Socrates but Pythagoras, was quite in the spirit of the Italian nation; yet that they selected Alcibiades as the bravest, proves how familiar Athens was to the minds of the Romans. They may therefore indeed have sent this embassy not wholly without purpose, as they seem to have derived advantage from it for their political constitution.

There is yet this other tradition concerning this legislation, that a wise Ephesian named Hermodorus, who was staying at Rome, had been consulted about it by the decemvirs. He is said to have been a friend of the great Heraclitus, and to have been banished from Ephesus because he was too wise (ἡμέων μηδεὶς ὀνήϊστος ἔστω). Down to a late period, there was shown at Rome a *statua palliata* which was referred to him. The tradition is old, and Hermodorus was not so renowned that the Romans should have called him their teacher without good reasons. He could play the part of adviser, as the object of the legislation was laid down, which was to do away with the difference between the two orders, and so far to modify the constitution, that both of these might as much as possible constitute one whole; then also to effect a limitation of the *imperium* of the consuls. For all this the civil code has no Greek sources whatever. There are points in the Roman law, of which we know for certain that Solon had already abolished them; and in the criminal code there are still greater discrepancies.

The plan from the very first, was to appoint a mixed commission for making laws. In Livy it looks as if the plebeians had entertained the

preposterous idea of appointing the lawgivers exclusively from their own order, five in number; but Dionysius has the number ten, evidently therefore there were to be five patricians, and five plebeians. Very strange again is the statement of Livy that the plebeians had earnestly requested, that, if it was once intended to have a revision of the laws, and the patricians did not wish the plebeians to have a share in it, these would begin alone, and come to an agreement with them with regard to the fundamental principles only. People were therefore sensible enough to see, that a mixed commission would only breed the most bitter quarrels among its members; and that on that account all had better be chosen from one order, when the main points were once settled. Nevertheless it is remarkable that all the writers agree in asserting that the obnoxious laws, the ones which were hostile to the liberty of the plebeians, were on the two last tables, which derived their origin from the second set of decemvirs. The ten first are not attacked; they merely granted isonomy, which had already been agreed upon, as Appius in Livy says, *se omnia jura summis infimisque æquasse*. The quite different rights of patricians and plebeians were made equals; so that with regard to the patricians also, personal arrest, and personal bail could take place.

Undoubtedly, the ten first decemvirs were all patricians from old families; *decemviri consulari potestate legibus scribundis*, was their name according to the consular Fasti which have been recently discovered. They were appointed in the place of the consuls, the city præfect, and the quæstors. But, are Livy and Dionysius correct in stating that the tribunate also was abolished? It is not to be believed. It would have been madness, if the plebeians had thus given themselves up with their hands fettered. At the second decemvirate only, we find them *appellationi invicem cedentes*: we then meet with C. Julius, who brings a criminal cause before the people. The tribunes must have said, we are willing that there shall be ten patrician lawgivers, but the continuance of the *leges sacratæ* is to us the guarantee of our rights; for the *leges sacratæ* referred to the tribunate. The mistake may easily be accounted for; it arose, because such was the case under the second tribunate. On this supposition, that the tribunate was not abolished during the first decemvirate, and that a general law of the land was the object aimed at, every thing is clear. All the points about which there might be dispute, were reserved.

Besides drawing up a general code of laws, they were also commissioned to settle the constitution on the basis of equality between the two orders. In this constitution which they worked out, the tribunate was to be done away with, and the supreme authority to be held by men of both classes. The five last names which Livy mentions in the second decemvirate, are plebeian, from families which do not occur in the Fasti before the Licinian laws. Three among them, Dionysius expressly names as such; with regard to the two others, who, it is stated, were chosen by Appius and the chief men from the lesser clans, it is equally evident to any one who knows the Roman houses, and therefore Livy places them at the bottom of the list. The mistake of Dionysius arises from his having confounded the two decemvirates. The first decemvirate represented the *decem primi* of the senate, chosen by the centuries from a *προβούλευμα* of the Patres; the second, on the contrary, was a *συναρχία* after the pattern of the archons of Attica, perhaps even originating in the knowledge of the Athenian laws. The second election was quite different; the most eminent as well as the most humble patricians solicited the votes of the plebeians. Here for the first time we meet with canvassing, and therefore perfect freedom of election. There were six *Tribuni Militares*, three patricians and three plebeians, who were intrusted with the real command in war: of the rest, two are to be considered as invested with the censorial power, combined with that of the *Præfectus Urbi*, and with the presidency of the senate; the two others, with the authority of the quæstors, being also in certain cases charged with military functions. Of course, in each of these two pairs were also one patrician and one plebeian. If, therefore, Dionysius had read that there were three patrician and three plebeian *Tribuni Militares*, he might,—as the old books were surely written in very obscure language,—have easily overlooked the circumstance that the other four were likewise equally divided among the two orders. The three plebeians, acknowledged as such by Dionysius, are Q. Poetelius, C. Duilius, and Sp. Oppius.

This constitution was intended to last for ever, and it is easy to see what was the object which its authors had before them, and in what manner it was secured. From that time, the distinctions between the older and the younger clans (*gentes maiores* and *minores*), altogether disappear. These lawgivers took the same view of the state, as the government. For they reasoned thus:—that, as the state had become unprosperous since the Publilian law, the question was merely this, that the decemvirs should have

the authority of the tribunes to bring any matter to discussion. In this manner, the *Plebes* would obtain all that it could reasonably ask for: *Plebes* and *Populus* would stand each for itself by the side of the other, but should together form a whole. The *Plebes* would not then want any more tribunes, as one might indeed appeal from the patrician to the plebeian decemvirs. Moreover, it was fair that the patricians and the plebeians should share the senate, yet that the plebeians should only come in by degrees, until they had a certain number. The two orders were to be carefully distinguished; but yet be invested with equal power. The former law, that the *gentes* should send their representatives into the senate, and that when a gens became extinct, the cury, or perhaps the consuls, had the election,—these last, however, having a power far more limited than the censors afterwards, were to be replaced by a new institution. A special authority was to be created, which had to superintend and to decide on the changes from one step to another in the scale of civic rank; which should receive the *ærararius* into the *Plebes*, and place the plebeian nobles on an equal footing with the patrician ones. These are the chief points of the second decemviral legislation: what were the results of these laws, and how little they answered men's expectations, is shown by the subsequent history.

Of the statutes of the Twelve Tables concerning the civil law, there has hardly any thing been preserved. Among the little that we know, is a decree, which was on one of the two last Tables, that there should not be any *connubium* between the *Plebes* and the *Patres*. This principle is fraught with such consequences, that the spirit of the whole legislation may be judged from it. The ordinance is generally looked upon as an innovation, for instance, by Dionysius, and by Cicero in the books *De Republica*; but this is all grounded upon the mistaken belief that this body of laws was entirely new, as if the Romans before that time had either had no laws at all, or altogether different ones. No one in the ancient world took it into his head to make quite a new system of laws; they merely amended those which they had inherited. As it was now intended to bring the orders nearer to each other, and to equalise their rights, they surely could not have established such a separation between them as a new institution. In the middle ages also, a legislation merely sprung from the will of the lawgiver is scarcely to be traced anywhere: it is to be found in the laws of the emperor Frederic II. only, as Savigny has observed. The opinion of the above mentioned writers is therefore based on nothing but their own fancy; so that there is no

authority for it, but on the contrary its extreme improbability in every respect is against it.

New, however, is another and most important point, the unlimited right of disposing by will which was granted by the *leges XII. tabularum*. This right was bestowed upon every *pater familias*, and it gave to the later jurists occasion for most important changes: it cannot have existed from the earlier ages. The consequence of it was a double form of will, before the curies and *in procinctu*, that is, before the symbol of the centuries, these representing the *exercitus vocatus*. Before these the testator declared his will: if it was on the eve of a battle, the soldier made his declaration before the army itself; if a patrician wished to dispose of his fortune, the Pontifex maximus summoned the curies, and these were first to confirm the dispositions of the will. The reason of this was founded on the respective position of the parties. If a person left children, then in the earliest times it may only have been rarely that a will was made; if he remained childless and there were cousins, the latter inherited, otherwise the clans; but, if the clan was quite extinct, the cury inherited. Now, when Plautus says in the *Aulularia*, [\[103\]](#)

*Nam noster nostræ qui est magister curiæ,
Dividere argenti dixit nummos in viros,*

I was formerly of opinion, that this was a mere translation from the Greek; for, Euclio represents an *ærarius*, and what had he to do with a cury? But it is rather a Roman state of things: some property has accrued by death to the cury, and this inheritance is divided *viritim*. [\[104\]](#) In the same manner, the plebeians may have had gentilician inheritances, which at last fell in to the tribes; if, however, there was a will, the *exercitus vocatus*, that is to say the centuries, had to give their consent, because for making a will auguries had been requisite, which the tribes of the plebeians had not. A similar system of inheritance still exists to this day in the island of Fehmern, where there are two clans with Dittmarsch rights and customs. If any one belonging to them wishes to make his will, he is obliged to give the cousins a small sum, as compensation for the money which would properly be due to them. This has been kept up there, whilst in Dittmarsch it has become quite obsolete, nor have I anywhere among all the other clans in Germany found any trace of it; from which circumstance we may see, how of important general rights

only a few scattered relics will oftentimes remain behind.—The curies might, of course, originally give a negative answer in the case of such a will; but when it was laid down in the Twelve Tables, *Paterfamilias uti legassit super pecunia tutelave suæ rei, ita jus esto*, it is clear that the consent was only *dicis causa*. This ordinance has had an immense influence on the Roman manners: yet it was necessary, because the *connubium* of the two orders had not been permitted. Even the child of a plebeian by a patrician woman could not inherit by law, and therefore it was necessary to have a law of inheritance. When the prohibition of the *connubium* was afterwards removed, the free disposition of property was still allowed, and in the later profligate ages, it gave rise to the most shameful abuse. That in early times such a tendency was already perceptible, is proved by the *Lex Furia testamentaria*, which I have good ground for placing about the year 450.

The law of debt must also have been on one of the two last tables, as Cicero describes it as thoroughly unfair. It was binding for plebeians only. Those two tables, we may be sure, consisted chiefly of exceptions. The most important part of the legislation of the Twelve Tables, is that *jus publicum* which was entirely overlooked by the earlier commentators, who believed them to have been a code of laws like that of Justinian, only most imperfect and barbarous. But Cicero and Livy call them expressly *fons omnis publici privatique juris*; and Cicero, in the examples in his books *de Legibus* which are taken from the laws of the Twelve Tables, speaks also of public administration. Yet the Twelve Tables certainly did not touch upon any subject that remained unchanged, as for instance, the whole system of the centuries; of the alterations in the political law which were found in them, we have only a few traces. One of these is the enactment that no *privilegia* should be issued any more, that is to say, no laws against individuals, nor condemnations of individuals; there must therefore at that time have been methods of proceeding with regard to individuals similar to ostracism at Athens. It is moreover likely that charges were no longer brought by one of the two orders before the other, and that the centuries were looked upon as a grand national court of justice. We have no authority for this; yet, though every story cannot be warranted in detail, thus much on the whole is certain from the events which occurred, that until then accusations were made before the *Plebes* by the tribunes, and before the curies by the quæstors, but that afterwards such impeachments are no more

heard of. Prosecutions before the tribes on account of individual offences are indeed met with; but they are no more connected with the antagonism of the two orders. Probably at that time also the change arose which is afterwards clearly to be perceived, that the clients entered into the tribes; for the plebeian tribes, besides what they were from their particular nature, were also intended to be a general national division, of which we find several hints. Yet it may also have taken place a hundred, or a hundred and twenty years later. If Camillus was condemned by the tribes, it may perhaps be explained in this way, as in his trial his fellow-tribesmen are spoken of. Cicero among the wise laws of the Twelve Tables which he receives in his *Leges*, mentions, with reference to his own tumultuary condemnation by the tribes, that *de capite civis* could only be judged *per comitatum maximum*. It cannot indeed be positively asserted, that previous to the legislation of the decemvirs, the centuries had not been called upon to give judgment; I have, however, discovered a formula which belongs to an earlier time, and perhaps refers to trials by the centuries, and something definite may yet be found with regard to this point. If it was so, the practice must have been introduced shortly before the time of the decemvirs; previous to this, the *judicia capitis* were with the curies and tribes. The trials of Coriolanus and C. Quinctius are not yet held before the centuries. If in after times one still finds an instance of a condemnation by the curies, it is an unlawful act of arbitrary power. The tribunes therefore now bring the charge of a *crimen capitis* before the centuries, and a mere *multa* before the tribes; and it often happens in such a case, that the person condemned goes into exile, and loses his right of citizenship. Here the saying of Cicero in his oration *pro Cæcina* holds good, that exile does not necessarily imply the loss of the right of citizenship; for, exile being no punishment, the loss of the right of citizenship is incurred only by the reception into the foreign state. In this light we must look upon the condemnation of Camillus, if ever he was condemned by the tribes, and not, as is far more probable, by the curies.

In this manner, the sphere of the nation as a whole, was very much enlarged, and instead of distinct appeals to one of the two orders, there are scarcely any appeals but those to the centuries to be met with. The existence of this law is quite enough to prove how wrong they are who believe, that in this the decemvirs had arrogated to themselves the whole of the jurisdiction. They have confounded with it the fact, that now that the old appeal to the orders was done away, one had to appeal from one board to the other.

Instances of appeal from the consuls to the people are very seldom met with from henceforth; and even then, they are altogether problematical. It is most likely that the appeal to the tribunal of the assembled commonalty was abolished, and that the tribunes as the direct representatives of the commonalty took its place, and that by a natural development of the constitution; for a resolution of the commonalty at large is after all a mere form.

Other laws also which are mentioned, might be considered as innovations; for instance, that one who is pledged for debt should have equal rights with him that is free.

From the time of the battle at the Regillus, the narratives of Dionysius and Livy are in many years quite in agreement with each other, and there are rarely any discrepancies of importance. The history of the legislation of the decemvirs is also an instance of this harmony. Other accounts, however, few as we have remaining, do not at all tally with them; so that their accordance is not exactly a proof of their historical truth, and we must suppose that both these historians happened to make use of the same sources for that period. The narrative, especially in Livy, is exceedingly fine and highly wrought. It has already been remarked, that probably the intention was to establish the decemvirs as a permanent magistracy, the consulship and tribunate being abolished; and that the decemvirs of the second year were not chosen as lawgivers, but as supreme rulers, although they were authorised to add two more tables. Another supposition which I set forth pretty positively, is this,—that these decemvirs were not elected merely for one year, but for several, perhaps for five. There is a tradition handed down to us, that they did not go out of office on the Ides of May, and this is considered as an usurpation. If it were so, this would be a real *δυναστεία* in the true Greek acceptance of the word (it is used in contraposition to *τοπᾶννίς*, a distinction which is foreign to the Roman language, although not without an example in ancient history).^[105] According to an invariable principle, it must have been intended in the election of the decemvirs, that those who should be invested with this dignity, should forthwith pass into the senate; but ten persons every year would give too great an increase. It seems much more likely that the fact of their being appointed for longer than one year was overlooked, than that

they should arbitrarily have prolonged their tenure of office, which they indeed could hardly have ventured upon doing.

The history now shows us in the second year the decemvirs in possession of every magisterial power. They are stated to have kept a guard of an hundred and twenty lictors (ῥαβδοφόροι), twelve men each. This was in the style of all the Greek oligarchs; these lictors therefore had quite a different meaning from those of the consuls; they are the σωματοφύλακες of the Greek tyrants. Now the decemvirs of Livy and Dionysius are represented as criminal tyrants. This account is, however, to be received with just as much caution as most of the stories of the ancient tyrants; for, the worst monsters of history in most instances did not commit crimes for the sake of outrage, but for quite different purposes. Thus also Cicero tells us, that though the decemvirs did not altogether behave as good citizens, yet one of them, C. Julius, respected the public liberties, and summoned the people to pass judgment on one who was not *reus manifestus*. Among them were Appius Claudius and Sp. Oppius, the presidents of the senate; these exercised the jurisdiction in the city, and they seem also to have possessed the censorial power. Now, it is stated by Livy in a very lively description, that the Forum and the Curia had grown silent, that the senate had been called together but rarely, and that no *comitia* had been holden. This was quite natural. The tribunes were done away with, there was therefore nobody to harangue the people in the Forum; politics there were none, the constitution being quite new, nor was there any change to be made in the civil law; the senate was convoked but rarely, because the board of the decemvirs could manage most of the affairs alone; the patricians therefore went into the country, and minded their estates, and the city passed all at once into a state of the most unruffled peace. Yet the people was so much used to excitement, that it longed for fresh agitation; there was an uncomfortable feeling abroad, because every thing that had filled the whole mind of the public had now for once ceased to exist. In unsettled times, such a transition is very dangerous; just as when one who is accustomed to the use of strong stimulants, or to gambling, is suddenly obliged to give them up. Thus it was in the year 1648, when the Dutch had concluded the peace of Munster with the Spaniards according to the accounts of contemporary writers, people found the state of things insufferably tedious, and thence arose a wild sort of life, and the differences between William II. and the city of Amsterdam. Every circumstance, be it ever so trifling, was

laid hold of on which men might vent their passions. The very same thing occurred in France just after the restoration. When such a temper prevails, the necessary consequence is a very sore feeling between government and people. The Romans became discontented with their new constitution. Even though the decemvirs had not been had, or no one else but Appius Claudius had been such, they could not have been borne with, and the people would not have remained quiet. Much besides may be guessed. The plebeians had been mistaken in the men of their order who had become decemvirs. Just at first indeed, the protection of the tribunes is stated not to have been missed; but gradually these persons thought fit to use their power for their own benefit, and to show the same exclusive spirit as the rest. It is easy to understand that the plebeian Sp. Oppius was decidedly most obnoxious, since he addicted the debtor as much as Ap. Claudius did. Such accusations had until then been brought against patricians only.

That a war broke out with the Æquians and Sabines, was an event of which the decemvirs might indeed have been glad, as they gained by it an opportunity of giving the people employment. We are now told that patriots, L. Valerius Potitus and M. Horatius Barbatus, had got up in the senate, and had required the decemvirs first to resign their power; but that the majority of the senate had decided upon the levy. The speeches which are found in Livy on this occasion, I look upon as empty declamations which have arisen from the belief, that the decemvirs had usurped their office. The enemy had invaded and plundered the country; resistance was necessary; there was no time for deliberation. Also there was nothing more easy than such an enlistment, as there were no more tribunes. Just as little foundation does there seem to be for the story of the assassination of L. Siccius; it looks too poetical. The only fact which we can gather from it is, that two Roman armies took the field, of which the larger host stood on the Algidus against the Æquians. In the meanwhile a crime happened in Rome, of a nature which was quite common in the Greek oligarchies, Appius Claudius having fallen in love with the daughter of a centurion L. Virginius, very likely a relative of the tribune Virginius. That her death, like that of Lucretia, became the cause of the downfall of the decemvirs, is uniformly stated by all the accounts; the story is most ancient, and there is no reason to doubt it. The rape of women and boys is quite a common crime of the tyrants against their subjects. Aristotle and Polybius also tell us explicitly that the overthrow of oligarchies was often brought about by such outrages against

female virtue. Appius Claudius suborned a false accuser, one of his clients, to assert that the real mother of Virginia had been his slave, who had sold her to the wife of Virginius, as the latter, being barren, wished to pass off the child as her own; and this he offered to prove by the testimony of false witnesses. Appius was resolved upon adjudging the slave to him; yet this was contrary to the law of the Twelve Tables, for, if the freedom of a Roman citizen was impugned, he could claim to remain in possession of it; only he had to give bail, as the value of the person might be estimated in money. This was called *vindiciae secundum libertatem*; Appius wanted to give them *contra libertatem*. Upon this, all who were in the Forum flocked together, and adjured him to put off the sentence, at least until the father, who was serving in the field, should be able to return. When the lictor tried to use force, such a number of plebeians filled the market-place, that Appius had not the courage to insist upon his decision, but requested the plaintiff to rest content with the surety until the next court-day; yet in order to prevent any thing that might appear like a conspiracy, the morrow was named for the trial. At the same time, he sent messengers into the camp to have the father detained with the army; but the latter had already been fetched beforehand by the betrothed lover of the maiden, and other kinsmen, and he appeared on the following day in the Forum. The semblance of justice was now abandoned. Had Appius allowed the cause to be tried in due form, the father would have unmasked the lie; and so he said that he was satisfied that the damsel was the slave of the plaintiff, and ordered her to be taken away. Amidst the general dismay at this decision, Virginius collected himself; and while pretending to bid farewell to his daughter, and to put some questions to the nurse, he stabbed her with a knife taken from one of the stalls in the Forum, under a portico, and with the bloody weapon walked unmolested out of the city back into the camp again. Here the soldiers unanimously refused obedience to the decemvirs, the two armies joining. But the accounts contradict each other: some state that they occupied the Sacred Mount, and at the first secession the Aventine; others the reverse. It is to be remarked that the commonalty has now twenty leaders, and is therefore standing again under the guardianship of its tribunes (phylarchs). These elected among themselves two men who were to hold the presidency, and to treat with the authorities, whom the people in the city had abandoned. The *tribuni sacrosancti* were abolished by the decemviral constitution; but the *tribuni* had continued as wardens of their tribes. With these at their head,

they held out against the senate and the decemvirs in a more decided insurrection than that of forty years before; for at that time they had separated themselves in order to recover their rights, but now they were completely armed as for war. In this contest the decemvirs must needs have succumbed, especially as many patricians evidently fell off from them, although, as Livy correctly remarks, they were for the most part well pleased with the decemviral constitution, as they were freed by it from the tribunician power. Nevertheless there were many, as for instance Valerius and Horatius, who were for the restoration of the old constitution, because they were convinced that the tribunate worked in a very wholesome manner as a check upon the power of the consuls. Thus it was determined to treat with the *Plebes*, and a peace was concluded.

We have yet some remnants of discrepant accounts concerning the downfall of the decemvirs. Quite different from ours is that of Diodorus, which might have been borrowed from Fabius, did it not contain a fact which is rather strange. According to this version, the decision happened much sooner than Livy places it; on the day after the occupation of the Aventine, peace had been already concluded. According to Cicero, the secession lasted for a long time; nor does he know anything of what Livy says about Valerius and Horatius having been the mediators. Valerius he afterwards mentions as consul, and as continually engaged in reconciling all parties. These are signs of a discrepancy in the traditions, although the character of this age was on the whole quite different from what it had been before, and thoroughly historical. There is an account in Cicero that the plebeians went from the Sacred Mount to the Aventine, which is certainly false. They always occupied the Aventine; and the obscure Lex Icilia had also probably reference to this point, that the Aventine should be excluded from the union with Rome, and, as the peculiar seat of the plebeians, be ruled by their own magistrates. We must therefore understand this statement of his to mean, that the army had betaken itself to the *Mons Sacer*, and that it had then marched to the towns, and united with the men of its own order on the Aventine. The Capitol was given up to the armed troops, and the circumstance of this surrender is a marked proof of the difference of the then plebeians from those of forty years before. The plebeians were conquerors to all intents and purposes.

The decemvirs laid down their office. The first election which was now proceeded with, was that of the ten tribunes under the presidency of the *Pontifex Maximus*, which is the strongest possible form of acknowledgment on the part of the patricians; the plebeian magistracy makes its own inviolability part and parcel of the sacred law. By a most remarkable anomaly, they hold the councils in what was in later times the *Circus Flaminius*, which was for the plebeians what the *Circus Maximus* was for the patricians. This happened in December: since that time the tribunes regularly entered upon their office in that month. In order to settle the affairs of the state, it was resolved to elect again two patrician magistrates; yet not under the former title of prætors, but under that of consuls, as Zonaras tells us. This change of designation proves, that the magistracy was considered as distinct from the former one; it was a less elevated dignity: *prætores* were “such as took the lead, generals;” *consules* were only “colleagues,” quite a general name like *decemviri*. This new form of the consulate was not, however, designed to reintroduce the old constitution, and to abolish the decemvirate; but it was merely an extraordinary and temporary measure, a proof of which is the further extension, at this period, of the law which denounced outlawry against him who had offended against tribunes or ædiles, in favour of the tribunes, ædiles, judges, and decemvirs. This law has been much discussed; the mention of the decemvirs in it is a certain fact. The great Antonius Augustinus, bishop of Tarragona,—a man highly distinguished for his knowledge of the old monuments and of the political law, but who, with great historical talent, was unfortunately deficient in grammatical acuteness,—has already seen that the *judices* here are the *Centumviri*, the judges who were appointed by the *Plebes*, three for each tribe, to decide in all causes concerning Quiritary property. He merely threw out this assertion; I have proved it fully in the latest edition of my History. Even as these *judices* were said to have meant the consuls, and the inviolability of these were derived from thence, thus also with equal incorrectness, the decemvirs in the law were made out to have been the *decemviri stlitibus judicandis*; yet these were first appointed in the fifth century. It refers without doubt to the former *decemviri consulari potestate*, and indeed to the plebeians among them, as the patricians were already protected by their old laws.

When the tribunate was restored, the patricians might say, “You were in the right; the power, which the former prætors had, was too great, and

therefore we shared the decemvirate with you. But now that you have again your tribunes, the power which you would gain, would be excessive; and therefore you must leave the decemvirate to us alone.” This the plebeians did not choose to do; and thus the negotiations for the restoration of the decemvirate came to a stand still. The consular power was retained, yet with a considerable modification. According to trustworthy accounts, the assembly of the electors, down to the year 269, was in possession of an unfettered and real elective franchise. From that time, first by usurpation and then by compromise, the change was introduced that one consul was previously to be chosen by the senate and confirmed by the curies, and the other to be elected by the centuries. At this period, the election of the centuries was again perfectly free, with the reservation of its being confirmed by the curies,—as was the case with all other acts of the centuries,—very likely a consequence of the legislation of the decemvirs.

The tribunes also had their authority altered in an essential point. Formerly in that board the majority of votes decided; now, according to Dionysius, the right was established by virtue of which the protest of one tribune might paralyse the influence of the whole college, which is equivalent to an appeal to the tribes. The principle was applied to them, *vetantis major potestas*. According to Livy this right had existed already before; yet it is probable that at least it was now first acknowledged, as the relation of the tribunes to the commonalty was changed. They were no more the deputies, but the representatives of their order; which in fact was a corruption of the right, though the evil consequences of it only became manifest some generations afterwards. In this point also the government gave a signal proof of adroitness; for they might always hope to find some one in the board who would side with them. Cicero says, that the tribunate of the people preserved Rome from a revolution; that unless tribunes had been granted to the people, the kings must needs have been retained. The centuries had now gotten a right of jurisdiction; yet according to the sacred law, the *comitia centuriata* had auspices, as the gods were asked with regard to the matters which were to be discussed, whether it was their pleasure that they should. Since the tribunes might now prosecute before the centuries, it also follows that they must have been empowered to hold auspices (*de cælo observare*). To this the statement in Zonaras refers, that the tribunes had received permission to observe auspices. According to a notice in Diodorus, outlawry was denounced against any one who should be

the occasion of the *Plebes*' remaining without tribune.—It is quite a phenomenon that at the close of the year two patricians are found among the tribunes: either these are patricians who have joined the *Plebes*, or the patricians set forth the thoroughly sound principle, that the tribunes of the people, owing to their action upon the machinery of the state, were no longer a magistracy of a part of the nation, but of the whole. That at this period many patricians went over to the *Plebes* is expressly asserted; yet the other version is also very probable. From this time, we often find the patricians mentioned as fellow-tribesmen of the plebeians. At the discussion of the project for the separation of the *Plebes* and their settling at Veii, the senators are said to have gone about *prensantes suos quisque tribules*. In like manner we are told that Mamercus Æmilius, about fifteen years after the time of the Decemvirs, had been struck from the list of his tribe, and placed among the *ærarii*. Camillus also appeals to his *tribules*; yet this may perhaps have meant his patrician clansmen. That afterwards, in Cicero's days, all the patricians were in the tribes is well known. Cæsar belonged to the *Tribus Fabia*; Sulpicius, to the *Lemonia*. After the war of Hannibal, C. Claudius says in Livy, that to strike one from the list of all the five and thirty tribes, was to deprive him of the right of citizenship. M. Livius expels his colleague Claudius from the tribes. The number of these examples might easily be enlarged. In the earlier times, there were patrician and plebeian tribes; in the later, the Ramnes, Tities and Luceres are no more spoken of: they only make their appearance still as the *sex suffragia* in the centuries. The whole Roman nation was now thrown together into the same tribes. The same was done at Athens, when the ten *phylæ* of the *Demos* became the only ones, and the four old mixed tribes were broken up. I believed formerly that this was to be attributed to the decemviral legislation; yet, if we bear in mind how carefully the decemvirs otherwise distinguish between the two orders, we cannot possibly suppose, that in this respect they should have aimed at their fusion. We must place it at a somewhat later period, and we are led to decide upon the time of the second censors; it was therefore soon after the decemvirs. In the fragments of Dio Cassius it is mentioned, that the patricians had preferred the plebeian order on account of its greater power, and had passed over to it. Greater power at that time the *Plebes* had not; but it had greater strength, and it was easy to foresee what it would attain to. It was for many a more pleasing position to be in the ranks of those who were advancing, than of those who stood still.

The decemvirs were brought to justice; Appius Claudius and Sp. Oppius died in prison. The latter was of plebeian extraction, a proof that we need not regard the plebeians as the holders of particular virtues. Wherever a state is divided into factions, the strong party abuses its might, so that our interest turns to the weaker one. Sp. Oppius was perhaps one of those who formerly had talked a great deal against tyranny, and now he had become a tyrant himself. Appius was capitally impeached by L. Virginius (Aulus Virginius is certainly a mistake of the transcriber, as the copyists had in their mind the former tribune of that name): L. Virginius as avenger of the blood of his daughter had been appointed tribune. He wished, by virtue of his tribunitian authority, to have Appius cast into prison. Livy's account of this leads us to a remarkable point. It is indeed a generally received opinion, that every Roman citizen had the right of saving himself from the punishment of death by exile. If such had been the case, one might well have wondered why capital punishments should indeed have been instituted at all, of which notwithstanding the old Roman laws have so great a number. Yet these facts are to be looked upon quite in another light. The views of the ancients with regard to criminal law are very different from ours, and perhaps more so than with regard to any other object in life. According to our notions, a man has also a right to be tried who has been caught in the very act; it is considered as an obligation of the prisoner to deny his guilt, and to allow himself to be convicted by evidence; the lawyers may defend him, and endeavour to lead the judge into error. Of this the ancients had no idea. If any one was taxed with having committed a *delictum*, the deposition of the witnesses was sufficient to have him instantly arrested and dragged before the magistrate; if it was no *delictum manifestum*, and he was a plebeian, then he applied to the tribune and gave bail. Should he thus manage to get free, he might leave his sureties in the lurch and go into exile. But if, on the contrary, he had been caught in a *delictum manifestum in flagranti*, and the *testes locupletes* asserted that they had been present, thereby identifying his person, no trial was allowed; but he was, *obtorto collo*, his toga drawn over his head, conducted before the magistrate, who then at once gave judgment. If it did not happen to be a court-day, the culprit was in the meanwhile put into prison. Yet if any body committed a crime worthy of death, but not, however, of a kind in which it would have been possible to catch him *in flagranti*, the plaintiff had still a remedy in law by which the defendant was brought into prison.^[106] Thus,

for instance, in the case of Appius Claudius, the charge against him was a crime punishable by death; he had deprived a citizen of liberty. For this offence, Virginius prosecuted him; and would not allow him to give bail, lest by this means he should escape. The prosecutor could then offer to the accused a *sponsio*, a sort of wager, which consisted on the part of the prosecutor of a sum of money (*sacramentum*) staked against the personal liberty of his opponent. The prosecutor said, Thou hast deprived a citizen of his liberty; the defendant denied it: if the judge, elected for this purpose, decided for the prosecutor, no further judgment was needed, but the culprit was at once taken before the magistrate and executed; if he decided against the prosecutor, the latter lost the *sacramentum*. But, if the defendant would have nothing to do with the *sponsio*, he was thrown into prison. The question now was, whether the prosecutor should be obliged to drop the charge, or to accept bail. The passages which prove this are to be found in Livy and Cicero. It was only until the court-day that the culprit remained in prison, which accounts for the *Carcer* being so exceedingly small. The staying there, as also its darkness, was already a foretaste of death: he who entered it was lost. Cicero says, *carcerem vindicem nefariorum ac manifestorum scelerum majores esse voluerunt*; either his neck was broken there, or he was led out and executed. The Greek custom with regard to imprisonment was much nearer our own.

Yet one remark remains to be added. If one had a charge against a *filius familias*, the father was judge; in causes against the clients, the patron.

Another part of the Roman criminal law which is likewise utterly at variance with ours, is that which takes cognizance of political delinquencies. For many of them no penalty was fixed, as in such cases it was the decided opinion of the ancients, and held by them as a general rule, that the state ought to look to its own preservation (*salus publica suprema lex esto*). They were well aware that offences against the state might, when taken severally, have the most varied shades: the same act outwardly may either spring from error, or it may be the offshoot of the darkest crime, and it is therefore impossible to assign a distinct penalty for every single case. Hence the Greeks and Romans had for all the *judicia publica* this most important right, that the prosecutor could sue for a certain penalty in proportion to the matter in question, even though a different degree of punishment might have been inflicted for the same act in another instance.

The same privilege was applicable, it seems, even to *judicia privata*, whenever the criminal code was insufficient; instead of which, in modern times, the foolish notion was entertained that punishment must only proceed from a distinct law, a wretched opinion which has really got the upperhand every where. The ancients held just the opposite principle. The boy who tortured an animal was doomed to die by the popular assembly of the Athenians, although the laws contained nothing for the protection of animals. Hence a man might also be condemned to death, provided that he had committed an act which was contrary to the general feeling of honour.

Until then the patricians had indeed claimed for themselves the privilege of not being liable to be imprisoned at all; for we are told that Appius Claudius had called the *Carcer* the *domicilium plebis*. Virginus showed himself generous, and granted to Appius a respite that he might deprive himself of life. Yet Sp. Oppius was executed, because his crime was of another kind, and not merely against an individual who might act with mildness. For that he had ordered an old soldier, who had served twenty-seven years, to be scourged; and that the man had come forward as his prosecutor, is evidently a fiction. Twenty-eight years was the time of effective service for a soldier; and here an old soldier is now brought in, who was in the last year of his military obligation, evidently as a general representation of tyranny. The other decemvirs went into voluntary exile, and their goods were confiscated. One of them was Q. Fabius, the ancestor of what was afterwards the *Gens Fabia*. The tribune Duilius now proclaimed an amnesty for all those who had committed any offence in this unfortunate time. This incident is of great importance for the history of the Roman method of procedure. I have already, on a former occasion, explicitly stated my opinion about it; but since the discovery of Gaius, the case has become much clearer.

**LEX HORATIA VALERIA. FURTHER
CHANGES IN THE CONSTITUTION.
MILITARY TRIBUNATE. CENSORSHIP. SP.
MÆLIUS. VICTORY OF A. POSTUMIUS
TUBERTUS OVER THE VOLSCIANS AND
ÆQUIANS. CONQUEST OF FIDENÆ AND
VEII.**

At first the patricians were in great dismay, and they confirmed all the laws proposed. Among them is that which gave the *plebiscita* general validity (*ut quod tributim plebes jussisset populum teneret*). This law is one of the greatest riddles in Roman history; and it cannot be solved with any historical certainty, although I have formed for myself an hypothesis on the subject, of the truth of which I am perfectly convinced. The law is thus given in Livy; afterwards in the eighth book he says of the second Publilian law, *ut plebiscita omnes Quirites tenerent*; and in like manner, Pliny and Lælius Felix in Gellius quote the law of Hortensius which is to be placed a hundred and sixty years later; Gaius says concerning the latter, *ut plebiscita populum tenerent*. When we now consider these three laws,—as to the Publilian, Livy alone mentions it,—they seem all of them to say the same thing. Is this really the case; or was the enactment only revived from time to time, because of its having fallen into oblivion? If we investigate the character of these laws according to their several ages, we see that the meaning of each was a distinct one, and that the import of the *plebiscita* was differently interpreted at different periods. The result of my researches is this, that Livy in his mention of the *lex Valeria Horatia*, was certainly not accurate, because he did not himself clearly see his way, and the generally known Hortensian law was present to his mind. The law may have been something to this effect,—*quæ plebs tributim jusserit, QUARUM RERUM PATRES AUCTORES FACTI SINT, ut populum tenerent*; for, from that time the course of the legislation was frequently this, that when the tribunes had gotten a

proposition adopted by the commonalty, they laid it before the curies, who immediately put it to the vote; which was an abridgment of the proper order of business, according to which the laws approved by the senate had first to go to the centuries, and then only to the curies. In the new system, the asking the leave of the senate and the passing through the centuries were done away with. This was a great change, as now the discussion might originate with the *Plebes* itself. That, however, the *plebiscita* without the approval of the curies had no legal force, is evident, especially from the struggle on the occasion of the Licinian laws; wherefore at that time already, *leges* may be spoken of with reference to the resolutions of the *Plebes*, for as soon as the curies had sanctioned them, they were *leges*. Whenever the *Plebes* and the curies were not kept asunder by class-interests, every matter was carried. It is also to be borne in mind, that this law was enacted, not by a tribunician, but by a consular rogation. The *lex Publilia* had been rendered superfluous by the decemviral legislation, as in this there were no *comitia tributa*.

The later Publilian law of the dictator Q. Publilius Philo, has quite a different intention. By it the sanction of the curies to a resolution which had been carried in the tribes, was declared superfluous, as this course was too circuitous, and the senate after all had the right of proposing. His law, *ut plebiscita omnem populum tenerent*, must on the other hand run thus,—*ut plebiscita QUÆ SENATU AUCTORE FACTA SINT, omnes Quirites tenerent*; for from henceforth it happens with regard to many enactments concerning the administration, that the senate commissions the consuls to arrange with the tribunes about making proposals to the tribes which they were to approve of; yet this was only with reference to administrative ordinances (ψηφίσματα), (for instance, whether an extraordinary *imperium* should be given to any one), and not to legislative ones (νόμοι). This was a useful simplification: on certain days only, from religious reasons, might the curies and centuries be convoked; the tribes on the contrary might assemble, and did assemble, every day, they were not restricted by the *dies nefasti*. People saw more and more that the form of general assemblies was a mere semblance, and too much depending on accident: it is but fancy to think of votes being the expression of personal will; impulse, the force of example, does every thing. Clearer and clearer became the conviction, that the more the state increased, the more necessary it was to have a settled government; and thus what the Romans had to do, was to find out forms, which might

check the arbitrary sway of the men in power, and secure publicity. In this especially the Romans differ from the Greeks, that they confidently gave themselves up to the personal guidance of individuals, which was never the case at Athens.

Lastly, the Hortensian law again has quite a different object. It establishes a true democracy, inasmuch as it lays down the rule that in legislative measures,—for with regard to administrative ones, the second Publilian law remained in force,—a previous resolution of the senate was not necessary, but the *Plebes* could pass any decree: at the same time, the power of the curies was taken away. This is a decided victory of the democracy. The administrative measures were decrees for particular cases, nor could any thing of this kind be brought before the *Plebes* without a previous resolution of the senate, even so late as the end of the sixth century (570); but for actual laws the resolution of the *Plebes* was sufficient. By this means, the older body of citizens lost its power of regeneration, the equilibrium was destroyed, and the scale was turned in favour of the democratic side. The curies were bound already by the *lex Publilia* of the year 417, before a convocation of the centuries to declare after a certain form that they sanctioned whatever was going to be decreed. It was a misfortune for the state that the curies did not regenerate themselves; yet as long as the resolutions were still made in the centuries, this mattered nothing. But by the *lex Hortensia*, by which the whole weight was given to the tribes, all the wholesome relations between the different elements of the state were broken, and the balance utterly destroyed. In the *first* stage therefore, the *plebiscita* are mere bye-laws which have no reference to general affairs; for instance, resolutions at the death of a person of consequence concerning his burial, &c., or a poll tax. In the *second*, by virtue of the older Publilian law, the *Plebes* declared itself competent to pass resolutions on general affairs, which were, however, to be taken into consideration by the consul, to be laid before the senate, and by the latter to be brought before the centuries and curies. In the *third* stage, according to the Valerian law, a *plebiscitum* was just as valid as a resolution of the centuries: it went at once to the curies, and received their sanction. And *fourthly*, by the later Publilian law, the *plebiscita* could do for the confirmation of resolutions of the senate which, in pressing circumstances, when one could not wait for the next *dies comitialis*, were brought by the consul to the tribunes. It was sufficient that the tribunes proclaimed a

concilium: the *dies nefasti* only affected curule magistrates and the *Populus*. For instance, let us suppose that an army was in the field at the conclusion of the year, and that a decree of the senate had first to be brought to the centuries, and then to be ratified by the curies; in such a case a shorter course was taken. The consuls were ordered *ut cum tribunis plebis agerent, quam primum fieri posset ad plebem ferrent*. This does not occur before the Publilian law. *Lastly* and *fifthly*, by the *lex Hortensia* the *Plebes* took upon itself the authority for an independent and inherent legislation.

The consuls now took the field against the Æquians and Sabines, and returned after splendid victories, having also probably concluded a lasting peace with the Sabines. The patricians had in the meanwhile again taken courage, and those men of their order, who in the general confusion had sincerely wished for the best, were now the object of their hatred; and therefore the senate refused them a triumph on their return. Now for the first time the paramount power of the tribunes was displayed. They stepped in, and granted the triumph on their own responsibility: their legal authority for doing so may fairly be called in question. The consuls accepted the triumph; if they had been disturbed in it the tribunes would have assisted them. This incident shows what exasperation then filled men's minds. In the following year, it rose to such a height that, as we are told by Livy, the heads of the patricians assembled and discussed the proposal to rid themselves of their antagonists by a massacre: but this mad design was not carried out.

The events which now take place are shrouded in darkness; the piety of posterity has thrown a veil over them. People had emerged from the irksome tranquillity of the decemvirate; but the constitution had not yet recovered its equilibrium, and there was still a contest for the possession of the government. The plebeians either wished the consulship to be divided between the two orders, or the form of the decemviral rule to be restored. The next year, the patricians showed themselves somewhat more yielding. The criminal judges, until then a patrician magistracy, were for the first time elected by the centuries; the choice fell upon the two consuls of the last year, Valerius and Horatius, which was certainly not accidental. Many of the ancients are mistaken with regard to this point; for instance, Tacitus, Plutarch, even Ulpian, but not so Gaius. There were in fact two kinds of quæstors, the public accusers (*Quæstores parricidii*), who impeached

political offenders before the curies, and the six *Quæstores Classici*, who in works on antiquities are all along confounded with the former: Tacitus refers to the latter what ought to be referred to the former. He says that the quæstors had formerly been chosen by the kings, and then by the consuls, as was evident from a *lex curiata* of Brutus. But this law Tacitus cannot possibly have seen; for the *Quæstores parricidii* are synonymous with the *Duumviri perduellionis*, and it is these who were always elected by the curies, or rather by the Ramnes and Tities whom they represented. That Poplicola caused also the *Treasurers* to be elected, is possible; but the two, who were formerly elected by the curies, and now, as Tacitus says, sixty-three years after the expulsion of the kings, and consequently in the second year after the abolition of the decemvirate, by the centuries, were the old *Quæstores parricidii*, who continued until they were changed into the *Ædiles Curules*. Nine tribunes then made the proposal to leave the offices of censor and quæstor to the patricians, and, either to divide the consulship, or to introduce military tribunes with consular power; one only of their colleagues was of a different opinion. Perhaps to this is to be referred the incident mentioned before, that the *Populus* had once condemned nine tribunes to be burned alive, and that a traitor among the tribunes, P. Mucius, had ensured the carrying out of this sentence. Without doubt the *Populus* means the curies, who had again usurped this power. Among the nine tribunes was probably a son or grandson of Sp. Cassius, who had renounced his order, and perished in the attempt to revenge his father.

It was the general wish to re-elect the consuls and tribunes; the consuls declined it, and Duilius, who had been delegated by his colleagues to represent them, refused in the name of the tribunate also to accept any votes. This had evil consequences. A division was caused, and the tribunes who wished to remain in office, had indeed so much influence upon their partisans, that they abstained from voting; so that five tribunes only were elected, who had themselves to elect their colleagues. It is stated that they likewise elected two patricians, which is a proof in favour of our assertion that the tribes had acquired a double character, that is, that they also become a general national division.

A remarkable change which dates from this time, is the repeal of the prohibition of intermarriage between patricians and plebeians. This prohibition, as we know, had been sanctioned by usage since the very

earliest times, and had been first made an enactment in the twelve tables only; such a custom generally first becomes galling by being received among the written laws; and thus the storm was raised from which the *plebiscitum Canuleium* sprang. This is usually considered as a great victory of the plebeians: the patricians, so it is said, at last yielded it in compensation for other rights which they reserved to themselves; Livy looks upon it as a degradation of the ruling order. If we take the matter as it really was, it is evident that the existence of such a prohibition did harm to no one more than to the patricians themselves. Mixed marriages from both orders must surely have been common at all times, and they were binding in conscience; yet the son of a patrician-plebeian marriage never had any gentilician rights, and was counted among the plebeians; the consequence of which was that the patricians were fast dwindling away. Wherever the nobles are limited to marriages within their own class, their order becomes quite powerless in the course of time. Rehberg mentions, that of the members of the States of the duchy of Bremen, in whose case sixteen quarters were required, one-third had become extinct within fifty years. If the plebeians had meant mischief against the patricians, they ought to have insisted with all their might upon the prohibition of intermarriage being kept up: but for the Canuleian law, the patricians would have lost their position in the state a hundred years sooner. We do not know, whether the thing was granted as a favour to the patricians or the plebeians; this is one of those cases in which no probable hypothesis can be formed; even absurdity is sometimes quite possible.

Afterwards there appear for once three military tribunes instead of the consuls. Dionysius says that it had been resolved to satisfy the *Plebes* by the institution of military tribunes, three of whom were to be patricians and three plebeians. But there were only three, one of whom was a plebeian. Livy foolishly takes them all for patricians; he thinks that the plebeians had wanted indeed to possess the right, yet that afterwards they had looked upon themselves as unworthy of exercising it, and had elected patricians only. He speaks of the plebeians as if they had been unutterably stupid. This is the confused notion of a man who with all his genius was, after all, no more than a rhetorician. What is most likely, is that it was agreed upon to drop the name of consul altogether, as the two orders were indeed no longer distinct, and to leave the elections free and open to both parties; but that in the meanwhile all sorts of artifices were nevertheless employed to turn the scale

in favour of the patricians. In the earlier times, for instance, the clients of the patricians were not in the tribes; like the patricians, they had to withdraw when the voting began; and whoever was not in the tribes, was either not in the centuries at all, or voted in them only with the craftsmen and the *capite censi*. Yet from henceforth every mention of cases in which *Plebes* and clients were opposed, entirely ceases; and this ought to lead us to observe how trustworthy our accounts are. Could a forger of a later age have so accurately discriminated between the positions as implied by the law? A fabulist is always an unlearned man, and even a learned one would have made here some mistake. The clients now appear in the tribes, and therefore in the centuries likewise, as is expressly mentioned, and as we may also partly see from the circumstances themselves. The discussions of the *Plebes* now take quite a different character; they lose all their violence, the struggle of two hostile masses against each other, is at once entirely at an end. The checks which the plebeians meet with in the elections, &c., arise no more from any resistance from without, but they are from within the body itself. Whilst formerly the boards of the tribunes showed themselves unanimous, they are now divided; some of the members are even in the interest of the senate, and only single tribunes yet make such motions as those which formerly proceeded from the whole college. These are proofs of the fusion of the orders having been completed.

The military tribunate had been considered as a sort of compromise. Among the first were, according to Livy, L. Atilius Longus and T. Cæcilius. [\[107\]](#) For the latter, Dionysius in the eleventh book has Clælius. We cannot decide in this question, the readings in the eleventh book being all of them of very recent date. If it is Cæcilius, there were two plebeians among their number; and this would account for the violence with which the patricians insisted upon doing away with the military tribunate.

In the same year as the military tribunate (311), the censorship seems to have been instituted. There must have been therefore a common motive for both, which Livy does not see: and the circumstance that the first censors are not found as consuls either in the *Fasti* or in the *libri magistratum*, but only in one of the *libri lintei*, may be accounted for by supposing that the censors were already elected in conformity with the laws of the twelve tables; and that when the patricians by their violent commotions were carrying every thing with a high hand, these magistrates who were neither

consuls nor military tribunes,—a fact of which we have only a trace,—acted as consuls, and thus concluded the peace with the Ardeates. Livy could not explain this to himself, nor could Macer have done it. Strange indeed is what Livy mentions, that the military tribunes had been obliged to abdicate because of the *tabernaculum vitio captum*; and that T. Quinctius as *Interrex* (or rather, perhaps, as dictator) had chosen the two consuls, L. Papirius Magillanus and L. Sempronius Atratinus, whose names were not, however, recorded in the Fasti. Nevertheless he relates the thing as certain. It is still more strange that in the following year he says of these first censors, that in order to indemnify those *quorum de consulatu dubitabatur, ut eo magistratu parum solidum magistratum explerent*, they had been elected censors; as if in 312 there could have been any doubt as to what had happened in 311. In the very same way, Livy in the second Punic war mistakes a certain Heraclitus for the philosopher of that name.

As to the nature of these military tribunes, their magistracy is for us a subject of considerable obscurity.^[108] Livy says of them, *eos juribus et insignibus consularibus usos esse*, and they are also called *tribuni militares consulari potestate*; but Dio Cassius, that acute observer, who himself had sat in the curule chair, says that the military tribunes were inferior to the consuls, and that not one of them had ever been granted a triumph, though many had performed deeds which were worthy of it. This is in perfect accordance with history. We also find that a consul was never appointed *Magister Equitum*, but that the military tribunes certainly were. From this it seems to be evident that the military tribunes were no *magistratus curules*, that is to say, none of those magistrates, as Gellius explains it, who were allowed to make use of a carriage (thus we have *Juno Curulis*, whose image was carried on a car). The consuls drove in carriages to the *Curia*; the full triumph was termed *triumphus curulis*, according to the Monumentum Ancyranum on which the number of the *triumphi curules* of Augustus is given; different from this is the *Ovatio*.^[109]—Moreover, the military tribunes never had any jurisdiction; but originally the censors, and afterwards the *Præfectus Urbi* had one, the latter probably holding likewise the presidency in the senate. This magistracy also had been abolished by the decemviral legislation; but it now again makes its appearance. The consular power was weakened in this manner, and so it was afterwards by the Licinian law; for when at that time the consulship was divided between

patricians and plebeians, the praetorship was separated from it, and established as a distinct magistracy. We may understand how it was, that the plebeians preferred the election of military tribunes, even when they were not taken from their own order: their power was at all events less. According to Livy's account, it was the senate which decided in every instance, whether consuls or military tribunes were to be elected: it is more probable that it was the curies which determined it. The mistake may have been occasioned by the ambiguous word *patres*. The military tribunate is also of a wonderfully variable character. Sometimes, but seldom, we find three tribunes; more frequently, four; but from 347 or 348, regularly whenever they occur, six; once, as many as eight, among whom, however, the two censors are included. Of the four, one is generally *Præfectus Urbi*: so that in reality there are after all only three. The claim of the plebeians to be chosen among the military tribunes is never disputed; but after the first election it is almost always eluded. How this could be done is inconceivable; Livy's explanation of it is silly. On the one hand, it is quite possible that a compromise was made, and that the patricians said, we consent to the weaker magistracy's being established, but then it must be filled up from our ranks only; or else in the earlier times the preceding magistrate had the right of not accepting any votes (*nomina non accipere*) in favour of those who from different reasons were to be rejected; or again, if six military tribunes were elected, the curies afterwards gave the *imperium* to the patricians only, and denied it to the plebeians. Yet it is incomprehensible in this last case how the plebeians could have allowed it. Unfortunately Dionysius fails us here, who, though he did not himself understand these relations, nevertheless faithfully recorded the facts as he found them: if we had him, the whole of this period would undoubtedly be clearer to us. After the last change, when six military tribunes always occur, we several times find the plebeians in a majority among them; and it is evident that it was then a settled rule that the number of six should always be full, and that without any further distinction between the two orders. This looks very much as if in the change the election had been transferred from the centuries to the tribes. It now depended only upon the honesty of the president whether he received the votes or not. That policy by which Italy became great in the fifteenth and sixteenth centuries, that wretched ideal of states-craft, is now displayed in the Roman history, especially in the

division in the college of tribunes. This is one of the causes, which for some time checked the progress of Rome.

Times in which successful wars are carried on, as was now the case with Rome until the Gallic invasion, are exceedingly apt to lead subjects to acquiesce in what they otherwise would never have borne with. The name of the state was surrounded with a halo of glory; a great deal of booty was gained, and also many conquests; plebeians as well as patricians felt comfortable; and although the power was not much liked, matters were yet allowed to go on as they were. Rome recovered from the decline into which she had fallen since the *Regifugium*. Moreover the intermarriage allowed between the two orders, must have exercised a powerful influence: the families on both sides became more closely related; the patrician who, born of a plebeian mother, was in the senate, stood on an equal footing with the plebeians.

A greater, a lasting magistracy, and according to all appearance the first, the lustre of which far outshone that of the military tribunes, was the censorship. If we admit that it was instituted by the twelve tables, we can understand why Cicero also made the censors the first magistrates. He may have copied this from the laws of the twelve tables; only he must have left out something, as there they had yet a greater number of attributes. The consuls are said to have formerly had the functions of the censors; which is very probable from the almost kingly power of the consuls, and it is only to be wondered how they could have got through this immense amount of work. The Greek states also had *τιμηταί*, Athens alone excepted, and the Siceliote and Italiote towns had them as well; yet nowhere in Greece was their power so extensive as at Rome. According to the Roman law, the censors had to value and assess; accurate lists were kept of properties, of births and deaths, of newly admitted citizens. Yet we are to distinguish between two kinds of lists. The one was of persons, and was arranged according to names; Q. Mucius, for instance, with all his family and rateable property, stood under his name among the *Tribus Romilia*: his sons wearing the *toga virilis* may perhaps have had each a distinct *caput*. The other list was topographical; in it the landed estates were registered according to the districts, for instance, the *Tribus Romilia* in all its divisions. The ancients wrote on the whole much more than is generally imagined; this was done with a prolixity which was part of the forms of the

state. In London, I saw a register of lands belonging to an Indian province,—in the translation, of course, as I do not understand a word of the Indian language,—which had a copiousness of detail of which we can scarcely form an idea. And it was the same among the ancients: the registers of mortgages at Athens were very prolix; and so, even in later ages, were the contracts before the curies at Rome. In the registers of the Roman censors, the division of the hides was very accurately marked down; under the *caput* of every individual, his descent, tribe, station, property, &c. were entered. Now the censors had also the power of transferring people from one class to the other, as an honour or a disgrace; yet what were the qualities for which they pronounced the *ignominia*, as it is termed? Every one in Rome was to correspond to the definition of his station; a plebeian was necessarily an agriculturist, either a land-owner or a free day labourer. This rule was laid down positively; and still more strictly in its negative bearing, as no one who carried on a trade or business could be a plebeian. Whoever did so, was forthwith struck out of the list of the tribe; consequently this was not so much a personal *ignominia*, as a declaration that he had passed from one side to the other. But he who badly cultivated his field was likewise put out of the tribe, that is to say, he was declared to be *de facto* no husbandman; and so was the *eques* who kept his horse badly: this is the *notatio censoria*. Such a person was placed among the burghers of the pale (*æarii*), because he was not worthy of holding his property. The æarian, on the other hand, who distinguished himself, who acquired landed property, was placed as a mark of honour among the plebeians; the plebeian who distinguished himself, was transferred into the centuries of the plebeian knights. Foreigners, however, they could certainly not make citizens: for this there were fixed rules, or else the popular assembly conferred the right of citizenship by means of an extraordinary act. In a state, the changeable elements of which were widely different,—where the *Plebes* was not an exclusive order, but was allowed to recruit itself; and where there existed among its ranks an aristocratic order of honour, that of the knights, which was not bound to the census; there must be some authority which assigns to every individual his station: for such an order of honour cannot be exclusive and unchangeable, owing to its very nature as an order of honour. One might say, that the decision about it ought to have been left to the people; yet this was not only a circuitous, but also a preposterous arrangement, as in all probability the censors,—who were chosen from the most distinguished

persons, and who held their office under the fullest responsibility, whilst moreover one colleague might even impugn the acts of the other,—would be much fairer than the whole people, had it been called upon to make the selection. The senate also needed a careful supervision to fill up its vacancies, and to secure its respectability. It was indeed originally an assembly of the clans, every one of which had its representative senator; but when the clans began to dwindle away, there were taken from the whole order three hundred,—an hundred from each tribe; so that in consequence of the extinction of the clans, one clan might often number several votes, and another become altogether weak or degenerate. Afterwards the *lex Ovinia Tribunicia*^[110] was passed, in which it is enacted that from the whole order, without regard to the *gentes*, the most worthy should be chosen. If it dates from the first times of the censorship, it proves that in those days the senate still consisted only of patricians, and that from all the three tribes the most worthy were taken. The statement that by Brutus, or Valerius Poplicola, plebeians had, under the name of *conscripti*, been already introduced into the senate, is either a fable, or it must be considered as quite a temporary arrangement. About the time of the migration of the commonalty, and likewise at the actual period itself, not a single plebeian could have been in the senate: towards the middle of the fourth century we can trace it for the first time. The senate now became a number of men chosen by the people, inasmuch as the magistrates were granted the privilege of voting in the senate, and the right of being elected into it on the publication of the new list; a right which also extended to the quæstors. Now, when in the year 346 the quæstorship was thrown open to both orders, I see in this the first occasion on which plebeians were admitted into the senate; and as from henceforth eight quæstors were appointed every year, the arbitrary sway of the censors must have been entirely put an end to. They might indeed exclude the plebeians; but as the senate consisted of no more than three hundred, and the censors, at the end of every *lustrum*, always saw forty men before them who had a claim to be elected into the senate, it is manifest that the senate could soon have become rather a plebeian than a patrician assembly. The power of the censors therefore declined in the course of time, like that of all the magistrates, with the exception of the tribunes: at first, only a censor could check the resolutions of his colleague; afterwards, the tribunes also took upon themselves to interfere with the determinations of the censors. It was formerly thought

impossible that the censors should have had such a power as was granted them by the Lex Ovinia, or it was deemed detestable; yet they really had in the beginning an immense discretionary power. But, as in after times it was no more the two orders exclusively, but government and people who stood opposed against each other, the people set limits to the government, and the censors were also deprived of their arbitrary sway. To the patricians the censorial power had no reference; nor, with the then existing notions of the auspices, could any body become a patrician by adoption, though indeed this was done in after times.

Here the question now arises, were the censors authorized to exercise their power also with regard to morals? were they allowed to strike a bad man from the lists with a *nota censoria*? This I formerly denied, except it were perhaps in cases of downright infamy; yet in the newly discovered *excerpta* from Dionysius of Halicarnassus, a passage was found, which undeniably speaks of the right of the censor to take cognisance of any moral turpitude which could not be reached by the law; as for instance, heartlessness to parents, wives, or children, harshness towards slaves or neighbours. In fact, Dionysius in his time no more knew the censorship in its ancient state; yet he certainly gives us reason to believe that when he describes it, he rather sets before us the censorship of bygone times, than that of his own, which was generally known. It is therefore probable that the power of the censor had this great extent, the limits of which are still to be traced from the existing materials. The censorship of Gellius and Lentulus in Cicero's days, was somewhat irregular.^[111] Whether at that period already some tribes were *minus honestæ*, and others *honestiores*, cannot be decided. That afterwards the *tribus urbanæ*, particularly the *Esquilina*, were looked down upon, while the *Crustumina* stood high, is certain; yet it would be silly to suppose that this was also the case in the earlier ages.

The censors were at first elected for five years (a *lustrum*); and thus, in the true spirit of its system, it seems to have been the object of the decemviral legislation with regard to all the magistrates, to apply cooling remedies against the political fever, as elections always excite the passions most. Whether Mam. Æmilius really limited the censorial power to eighteen months, and was therefore branded by his successor with the *ignominia*; or whether this is an account contained in the books of the censors, which

refers an existing law to one particular person, cannot be decided: certain it is, that such books of the censors existed.

In the year 315, a famine and terrible scarcity broke out in Rome. Many Romans drowned themselves in the Tiber not to perish by hunger. On the whole, the price of corn in those times was endlessly fluctuating, just as in the middle ages; which gave rise to forestalling and regrating, especially as in Italy grain may be kept for such a long time under ground. The distress came quite unexpectedly, and therefore a *præfectura annonæ* was established, which seems to have been a temporary magistracy. L. Minucius Augurinus was invested with this office. He did all he could to bring down the prices; he ordered the existing stores to be thrown open for sale at a compulsory rate, and had purchases made among the neighbouring people; yet his purveyances not only went on too slowly, but also the means which he employed did not answer: real help was only afforded by a rich plebeian knight, Sp. Mælius. This man had great quantities of grain bought up on his own account in Etruria and the country of the Volscians, and distributed it all among the poor. Any one who had done so much good, might in the ancient republics easily be suspected of having been actuated by questionable motives. Mælius therefore was charged with having attempted to gain over the people, that by their aid he might establish a tyranny. Minucius is said to have reported to the senate that many plebeians assembled in Mælius' house, and that arms were conveyed thither. No one can now presume to decide whether this charge was well founded or not; at all events, such a conspiracy would have been madness in a man who was distinguished for nothing but his wealth, and who must have had the tribunes against him as well as the patricians. However this may be, he was looked upon as the head of a party; and in order to crush him, the senate and the curies appointed L. Quinctius Cincinnatus as dictator, who took Servilius Ahala for his master of horse. Cincinnatus, having occupied during the night the Capitol and the other strongholds, on the following morning set up his curule throne in the Forum, and summoned Mælius by Ahala before his tribunal. Mælius foresaw his fate: as no tribune could protect him against the dictator, he refused to appear, and mingled with the crowd of the plebeians. Then Servilius Ahala seized hold of him and stabbed him. This act is much admired by the ancients; but its merit is very problematical, as it may have been mere murder. The *Præfectus Annonæ*, according to a very plausible account, is said to have separated himself

from the *Patres*, gone over to the *Plebes*, and to have been appointed as the eleventh tribune; and then within a few weeks to have entirely succeeded in bringing down the prices; which is a proof that the distress was rather an artificial one. The corn from the magazines of Sp. Mælius was confiscated, and distributed among the people. Servilius Ahala, as we are told by Cicero, was impeached by the *Plebes* as a murderer, and withdrew into exile: whether he was recalled afterwards, is unknown to us. This gives the whole affair an ugly look. Mælius' house was pulled down; the Æquimælium, the place where it had stood, was under the walls of the Capitol, and is now entirely buried in the rubbish which forms a mound at the foot of the hill. This is a point of some importance for the understanding of Roman topography.^[112]

When the Valerian laws, as we have seen before, so far limited the old right of the consuls to enforce obedience, that any one sentenced by them to receive corporal punishment might appeal to his community, they were yet to be allowed a certain sphere of jurisdiction without appeal: otherwise their authority would have been reduced to a mere nothing. That power extended to fines, the fixing of which is also ascribed to Valerius. Yet this is not likely, as there is too positive an evidence in the law of the consuls Tarpeius and Aternius, passed by the centuries, in which the *multa* was estimated in heads of cattle, as Cicero *de Republica* expressly tells us. This would not have been possible, if the Valerian law had already fixed the limitation; or else the rulers must afterwards again have seized upon the absolute authority. On the whole, all that is mentioned of the Valerii is not to be trusted, as Valerius Antias, who reckoned himself of the Valerian house, invented a good deal about it, and the Valerii moreover were rather vain of their popularity. That law fixed two sheep and thirty oxen as the highest *multa*, with regard to which Gellius makes a very heedless statement; for he says that sheep were at that time so rare, that two of them were estimated as equal to thirty beeves, though he himself immediately afterwards informs us that a sheep was worth ten, and an ox a hundred *asses*. The explanation of the fact is simply this,—that the consuls were obliged to increase the amount of the fine only by degrees, that the way might always be left open for a return to obedience: he who did not make his appearance on the first day, was mulcted of a sheep; on the following day, of two; then of an ox; and so on. We know from Cicero of another circumstance besides, which proves to us how little other accounts are to be relied on. Only twenty-five

years later, the value of these payments was fixed in money, and that at a moderate estimation. Cicero justly looks upon this as denoting a progress of individual liberty.

The number of the treasurers or masters of the exchequer, whose election was indeed formerly made by the king or the curies, but afterwards assigned by Poplicola to the centuries, was raised from two to four, to be taken alike from patricians and plebeians. At first the patricians still hinder the carrying out of this clause; but at a later period the plebeians make good their right. This progress was not a mere point of honour, but it was a reality; it was closely connected with the dearest interests of the *Plebes*, as they now shared in the administration of the common exchequer, which was no more *Publicum* but *Ærarium*. By this means, as we have already remarked, the senate was now opened to the plebeians also, and they could be degraded from it by the power of the censors only.

A further advance to freedom was this, that about twenty years after the legislation of the decemvirs, the right of declaring war and peace passed from the curies to the centuries. That the curies originally had this right, we know from Dionysius; yet as the plebeians alone were bound to serve on foot, and the patricians withheld the booty from them, it was natural that the tribunes should have claimed for their order the right of deciding whether they would have war or not; and consequently the veto of the tribunes to a declaration of war is nothing else but a reservation of the rights of the *Plebes*. If the centuries had carried the resolution, the curies were of course obliged to confirm it; yet this was certainly not always the case, as the proposal originated with the senate, and it is not at all likely that the senate and the curies should not have agreed.

The existence of plebeian senators is now as clear as daylight, and it is expressly stated that P. Licinius Calvus sat in the senate. Whenever therefore an interrex was to be elected, it was no longer the *decem primi* who met together,—for, they had lost their importance by the admission of the plebeians,—but all the patricians in the whole of the senate. This is what is meant by *Patricii coeunt ad Interregem prodendum*, and it might have been based even on the laws of the Twelve Tables. One can quite understand that the ancients might have known the laws of the Twelve Tables by heart, and yet not have perceived, that something different was written in them from what was afterwards the rule.

Thus then we have seen, how from the legislation of the decemvirs down to the conquest of the city by the Gauls, the development of free institutions at home steadily kept pace with the expansion of the state abroad; and hence it is manifest that the two were necessarily linked together.

The history of the Italian nations we know almost exclusively through the Romans; and yet that history would in fact be the only means for correctly understanding the foreign relations of Rome, as the account of these is very often not only defective, but altered moreover in a lying spirit. The decline of the state after the expulsion of the kings may have partly arisen from the fermentations at home, and partly from the quarrel with the Latins. Afterwards, however, the spread of the Etruscans in the prime of their strength from the North, and at the same time that of the Sabines and their colonies, exercise their influence. The Romans call the latter Sabellians; for *Sabellus* is the general adjective-termination corresponding with *Sabinus*, like *Hispanus* and *Hispellus*, *Græcus* and *Græculus*, *Pænus* and *Pænulus*, *Romus* and *Romulus*; at a later period only the ending in *-lus* had a diminutive meaning given it. *Sabellus* is quite synonymous with *Sabinus*, except that according to usage, the name of Sabellians is given to the whole nation, and that of Sabines to the inhabitants of the small district. The spread of those nations was therefore the chief cause of the decline of Rome; otherwise the wars of Porsena would not have happened. If the Etruscans had spread in any other direction, and had not the Sabellians, inasmuch as they were pushed on themselves, been obliged to push on others, the Ausonian people also, particularly the Æquians, would not have been driven, as they were, to make conquests.

The period of the greatness of the Etruscans coincides with the middle of the third century of the city, according to a statement bearing the authority of Cato, that the Etruscan colony of Capua or Vulturnum was founded about the year 260, which falls within the time of that war in which the Romans were so hard pressed by the Veientines. At that time, the Etruscans, who by the Greeks are called Tyrrhenians, were the most formidable conquerors; yet a reverse came upon them when the people of Cumæ with the help of Hiero, towards the close of the third century (280), destroyed their naval power. The general fact only of that change can be asserted with certainty; the details of it are, alas! entirely lost to us; a

considerable event in the world's history here lies buried in darkness. About the same period also, their power on the banks of the Tiber is broken. On the other hand, the Sabines in the last half of the third century are often seen as enemies of the Romans; the earlier accounts of victories gained over them by Valerius are utterly apocryphal. Whether they were dangerous to the Romans, we will not decide here: yet undoubtedly wars took place with the Sabines, as well as with all the other people of the neighbourhood, though all the details about them are either fiction or poetry. Towards the end of the third century, however, the history becomes clearer and clearer, and we may discern the traces of the old annals. The last Sabine war is that which Valerius and Horatius victoriously carried on in the first year of the restoration of the consulship; it is told too circumstantially to be credited in all its parts; but certain it is, that from that time, for nearly a hundred and fifty years until Curius, the Sabines waged no war with the Romans. There must have been some very particular reason for this, and I find one in a treaty of which no other trace whatever is left, and in which isopolity was established between the two peoples: that isopolity existed between them, is attested by Servius on Virgil. About the year 310, we find a notice that the people of the Campanians was formed; that is to say, that at Vulturnum or Capua, the Etruscans received Samnites as ἑποικοι among them, and shared with them their territory. This is to us a proof of the advance of the Sabines in those parts, as the Samnites are a Sabine people. The Æquians and Volscians relax in their attacks on Rome; the Sabine wars are at an end; consequently we behold the period when the emigration of the Sabines towards the South leaves off, and the Ausonian mountaineers no more push forward. The Etruscans now at once stand still, which is natural in an oligarchically governed nation: when such a people has once settled down to rest, there is no example of its ever having been aroused again and gained fresh life. Thus we may link together all the facts which are confusedly told by the Romans.

During the time from 306 to 323, wars had almost entirely ceased. The account of the insurrection at Ardea in which the Romans had been called in, has something in it so strange, that we cannot build any thing upon it: it is nothing but a repetition of the story of the enemy's army being surrounded by Cincinnatus. In the year 323, the war first breaks out again in good earnest. With regard to the Antiates, we do not know whether they took any share in it; as to the Ecetrans, we cannot doubt but that they did.

The latter at that time joined the Æquians on the Algidus. Between Velitræ (which was Volscian), Tusculum, and the Alban Mount, the Roman armies, sent against them, lost a battle. A. Postumius Tubertus was therefore appointed dictator. This war is now described in a perfectly historical and accurate manner. Whether there be any truth in the tradition that A. Postumius heightened the power of his *imperium* on the minds of those who were under his command by his ruthless treatment of his own son, we may leave undiscussed. The more general opinion is this, that Manlius followed his example; From the phrase *imperia Manliana* no conclusion can be drawn; Livy's argument against it is at all events worth nothing. Postumius led thither all the forces of the republic and the allies, he gave one army to the consul, and took the other himself: the former was posted on the road to Lanuvium, the latter, on that to Tusculum, below the point at which the two highways crossed each other. The Volscians and Æquians occupied separate camps: to the one the consul, to the other the dictator was opposed, the two hosts being, however, very near each other. The enemy during the night attacked the camp of the consul; in the meanwhile, the dictator, who was prepared for this, sent a detachment to seize the almost abandoned camp of the Volscians, and he himself led the greater part of his army to the help of the consul, and fell upon the enemy's rear. These last were completely routed, all but one body, which cut its way through under the lead of the brave Vettius Messius.

This battle is one of those which are of importance in the world's history. It broke the power of the Volscians of Ecetræ, and of the Æquians; the slaughter must have been frightful. The Æquians sued at once for peace, and were granted it for eight years; from that time, they were no more to be dreaded. After this, the Romans spread more and more; the places also which had been taken from them in the former wars by the Volscians and Æquians, were now recovered. Of these there are expressly mentioned, Lavici, ^[113] formerly one of the great Latin towns, Bolæ or Bola; Velitræ, Circeii, Anxur, Ferentinum, which had formerly been Hernican, and must now have been restored to the Hernicans, as it is always again met with among their places. Thus the Romans had advanced to the frontiers of Latium proper, even as far as under the kings. Moreover, at that time also, Setia, Norba, Cora, Signia, must have been retaken; and, as the Romans and Latins were now no more on an equal footing, they must likewise have come under the rule of the Romans alone. In the country of the Æquians,

the Romans advanced as far as the lake Fucinus. The subjugation of the Volscians made it possible for them to carry on the terrible Veientine war. As in consequence of these conquests many indigent persons were provided for, Roman colonies were founded at Lavici and Velitræ, and restored at Circeii: in the latter place it was perhaps a Latin colony.

After a long interval, the agrarian law begins again to give rise to serious discussions in the year 345; before that, in the years between 30 and 40, it is once spoken of, but only slightly. The cause of this silence during the preceding years is not sufficiently explained. Some assignments of colonies indeed take place; but always in common with the Latins and Hernicans, and without any consequences for those who did not wish to give up their Roman home and their rights as citizens. The times of contentedness and discontent in history do not by any means correspond with the growth of political rights, but rather indeed with the stages of general prosperity: when things are decidedly flourishing, man enjoys life without troubling himself much about the state of political affairs. In Germany there was such a period just before the thirty years' war; every kind of property improved in value, and matters at home went on very quietly: this was also the case in France under Henry IV. Such on the whole was then the condition of Rome; and hence we may perhaps best explain, why it was that for so long a time no violent internal commotions took place there. Yet when in such a state of things new energies have developed themselves, new claims also spring up, which then at once are fiercely urged. And thus it was now with the agrarian law. Hitherto the patricians had with great cunning kept the plebeians out of those honourable offices to which they had a right; often were consuls elected instead of the military tribunes, and these last again with less than their full number. But now decided claims began to be insisted upon. Rome's humiliation abroad, owing to the wars of the Etruscans and Volscians, had ceased, the city had quickly risen by its conquests to a very high position, and under these circumstances the tribunes raised their voices for the men of their own order. The first occasion for this, the consequences of which must have been much more violent than Livy represents them, was afforded by the conquest of Lavici: a colony was demanded there, but the Roman senate refused it. The question is now no more about the *Lex Cassia*, but there is a special *lex tribunicia agraria* brought by the tribunes before the tribes: it was demanded that a division of the *ager publicus* should be made, and a tax

again imposed on the patrician demesne. The latter clause was originally in all the agrarian laws; but the patricians had succeeded in evading their obligations. These warnings had directly no effect beyond this, that colonies of citizens were several times founded: these were exclusively Roman, and therefore called *coloniæ Romanæ*. After the conquest of Bolæ, an ill-fated military tribune, M. Postumius, had caused all the booty to be sold by auction for the benefit of the *publicum* (*in publicum redigere*, for *publicum* is the separate exchequer of the curies). This excited such an outburst of rage, that the soldiers rose against the quæstor and slew him. The military tribune, who had to judge the case, drove them to such despair, that they mutinied also against him, and stained their hands with his blood; which is the only instance of the kind before the times of Sylla. The senate chose to connive at a deed of which the guilt was but too evident. The consequences of this outbreak must have been very great, though Livy says nothing on the subject; for from that time only it never happens that there are less than six military tribunes, and the election seems to have been now transferred from the centuries to the tribes, as otherwise it would have been very thoughtless in Livy to have spoken of a *tribus prærogativa*. The curies conferred, as usual, the *imperium*, after the election had been made.

Rome now turned her arms against Veii, which was about two German miles and a half distant, and nearly one German mile in circumference: its boundary must have reached as far as the Janiculum. This city was a thorn in the side of Rome, and until she had overthrown this rival, she could never be great. Fidenæ, which is called an Etruscan town, but was a Tyrrhenian one, is represented from the earliest times, even under Romulus already, as being involved in war with Rome: it lay one German mile above Rome on the Tiber. It was either in 320 or 329, that the Fidenates rose against the Roman *coloni* and expelled them. Two wars are related here, according to all appearances put in the wrong place: the detailed account occurs at least once too much; probably it belongs to the year 329. In 320, hostilities may likewise have taken place; this is at all events the time fixed upon by Diodorus, whom we may follow. We must look upon these *coloni* as a garrison of settlers who had their own hides of land. Three Roman ambassadors appeared at Fidenæ; and the inhabitants were called upon to justify themselves, and to reinstate the *coloni*. This seemed to them so unreasonable, that they slew the ambassadors, and threw themselves into the arms of the king of Veii, Lars Tolumnius; for all the Etruscan towns had

a regal government, the king being elected for life. Tolumnius came across the Tiber to their assistance; and since the Romans, as the conquerors of the Æquians and Volscians, were now formidable to the neighbours, the Capenates and Faliscans, Oscan tribes, who had maintained themselves in those parts against the Tyrrhenians, hastened likewise to help the Fidenates. This host struck terror into the Romans; it lay one mile from Rome, being separated from it by the Anio only. A dictator was appointed, and he chose the military tribune A. Cornelius Cossus as Magister Equitum. The battle was a lucky one, and Cornelius Cossus slew the Veientine king Tolumnius, to whose charge, no doubt unjustly, the murder of the ambassadors was laid. The emperor Augustus with regard to it made the remark to Livy, that Cossus, on the strength of these *spolia opima*, had taken upon himself consular dignity; for on the armour he had called himself consul. This is a later addition in Livy, which, however, is left quite detached, or otherwise he must have placed the event seven years later. After this victory, Fidenæ was taken and razed to the ground; the *ager Fidenas* became *ager publicus*. With the Veientes a truce was made, which was quite seasonable for the Romans, as it enabled them to begin by completely crushing the Æquians and Volscians. Towards the end of the armistice, the Veientes sent to the other Etruscan peoples for aid against the Romans. Yet it was refused them, inasmuch as from another side, on the Apennines, a far more dangerous enemy had appeared, which like a horde of invading Turks destroyed every thing before it, namely the Gauls. The Etruscans advised the Veientes to try by all means to maintain the peace with the Romans: the demands of the latter may, however, have been too high,—perhaps they wanted the sovereignty over Veii, so that the Veientes were obliged to choose war as unavoidable. If we compare the account of the first Veientine war, seventy years before, the Veientes were then supported by the whole power of the Etruscans; but now their only remaining champions are the Capenates^[114] and the Faliscans: in one single campaign indeed the people of Tarquinii come to their help. The Cærites were friends with the Romans, and therefore kept neutral: the Etruscans, it is true, were in the ascendant there; yet in the main the population may still have been Tyrrhenian. Rome was obliged to make the strongest efforts when arming herself for this struggle, and was supported in it by the Latins and Hernicans.

The derision with which Florus speaks of the *bella suburbana*, when saying, *De Verulis et Bovillis pudet dicere, sed triumphavimus*, is the sneer

of a rhetorician, and we cannot find fault with him for finding these events rather uninteresting. Wars indeed which were fought within a narrow field, have not the same claims to our interest as one like that of Hannibal; still it was in these that the powers of Rome developed themselves. We will not treat this Veientine war with contempt, nor yet will we describe it with as much prolixity as Livy does; but we shall give a sketch of it in very brief outlines. To us, the spirit is of importance with which the Romans began it; inasmuch as they undertook it amid difficulties, which under the circumstances were not less than those of the first Punic war, for instance, and it was only by long perseverance that they could hope to bring matters to an issue. A city like Veii, which lay so near, and was so strong, could not be taken but by a blockade or a siege: when the Veientines were too weak in the field, they withdrew within their walls, against which the Romans could do nothing. One was now obliged, either to invest the town and force it to yield by hunger, or if needs be, by works, by mines; or else to try and reduce it by distress, fortifying a place in the neighbourhood (ἐπιτείχισις), as Decelea near Athens, and from thence devastating the country far and wide, and preventing its cultivation, so that the enemy are brought into such a strait of misery that they must strive by every possible means to get out of it. But to do this, inasmuch as they had to fear the neighbouring places, as Capena, Falerii, the Romans had to change their former mode of war. They had until then only undertaken short expeditions during a few of the summer months,—not unseldom but ten to twelve, nay even five to six days, especially in the times of the republic: under the kings it must have been different. There were from the earliest ages certain months of war, in which they mutually ravaged each other's fields; thus it was among the Greeks, and so it is to this day among the people of Asia. On the frontiers of Georgia, Russia and Persia make war against each other for a couple of months every year; in the laws of Charlemagne the period is fixed during which the people are bound to service. During the intervals, the intercourse was more or less free; the time of the festivals especially was quite free, as, for instance, the common festivals of the Etruscans near the temple of the Voltumna, or that of the Ausonian people near the temple of Feronia. It was only for the stated period that the soldiers could be kept in the field, and as soon as it was over, they dispersed. The means of Rome for keeping up a large force were very much lessened since the Etruscan and Volscian wars: in former times the army was paid from the tithes which the possessors of

the *ager publicus* had to give. But since the *ager publicus* was lost, every one marched out to war οἰκόσιτος, the men brought their stock of provisions from home, and what they wanted besides they tried to get by foraging: if this could not be done, the army had to return home again. It was owing to this that so very few sieges took place. But as it was now intended to carry on the war in right earnest, and not to lay down their arms until Veii were conquered, the army was to receive pay. This decree was perhaps connected also with a proposition for levying the tithes again from the *ager publicus*, and thence defraying the expense of the pay. There is some ground for the supposition, that in the earliest times already a *stipendium* was very generally paid, in a statement that in the census of Servius Tullius the *equites* received two thousand asses; without doubt, therefore, the *pedites* also got something. I suppose that it was a hundred asses, whether the war lasted a longer or a shorter time; and that for this sum, the soldier had to find himself in arms and provisions. With such a system wars of conquest were incompatible, as in these the soldier must be entirely kept by the state; and this is the arrangement which was intended, when it is said that the Roman soldiers now first received a *stipendium*. It would be incorrect to take it for granted that formerly they had nothing given them; but there is a very great difference, between their receiving a small sum at once and their being paid by the day. It may be assumed, that the *ærarians*, as they were not obliged to serve in war, had always had to pay a war tax for the *pedites*, as the *orbi orbæque* had for the *equites*; for, the plebeian could not have been loaded with the double burthen of serving with his body and with his goods.

The pay of the Romans was from of old a hundred asses per month for one man, which was in a fair proportion to his wants. Such a pay is to be met with among the Athenians since Pericles' days, but scarcely ever before. The pay of a hoplite at Athens was immense; in Rome, where the allies paid no contributions, it could not but be much less. The sum of one hundred asses continued to be paid also in later times; when the asses were made too light, they were calculated in silver at the rate of ten to one. Every third day, the soldier got a *denarius* (as much as one drachma), which is two obols daily. The *stipendium* was considered as a unit; yet it was multiplied afterwards (*multiplex stipendium*: Domitian added a *quartum stipendium*). But this is always to be understood of one month only. The excellent Radbod Hermann Schele makes the mistake here of drawing from

authorities which are not worth any thing, the impossible conclusion that the *stipendia* were *annua*, which would have been to no purpose whatever: his practical turn of mind failed him in this instance. The pay was only for the time when one was really in the field; if the war lasted for one year, a year's pay was, of course, allowed. When Appius Claudius says in Livy, *annua æra habes, annuam operam ede*, this is likewise an incorrect opinion of Livy.

This innovation was of the utmost importance for the republic, as without a national army Rome could never have become great. If the money for the purpose could be supplied without entailing any fresh tax, it answered perfectly; but if the patrician did not pay the tithe from the *ager publicus*, or the revenue of the state was otherwise insufficient, the war was exceedingly burthensome for the plebeian, as the pay had to be defrayed by a property tax, and the service might last for an unusually long period. This injustice was an unavoidable necessity. That the plebeians had not been taxed before, was, very likely, owing to their inability to pay; but for twenty years Rome had been increasing in welfare, so that it now became possible, although new distress was thus created, and prosperity blighted, until there was even a return of the old system of oppression for debt. But, on the other hand, it also became possible, to keep an army in the field throughout the whole of the year.

About the same time, there was a change in the art of war. *Postquam stipendiarii facti sunt*, says Livy, *scuta pro clupeis habebant*; he seems to take it for granted that this alteration in the arms was called forth by the introduction of pay. The first step towards it may indeed have been already taken before the Gallic invasion.

The Romans entered upon the last Veientine war with the determination to conquer Veii. The republic, which had extended itself as far as Anxur, began to feel its own strength, as with the Sabines it was at least on friendly terms, and it had conquered the Æquians. How far the Latins took part in this war, is uncertain; their co-operation may not perhaps have reached beyond the Tiber. According to a statement which bears the appearance of truth, Circeii also was retaken by the Romans soon after Anxur: on the outskirts of the mountains, however, Privernum still maintained itself as a Volscian town. The weakness of the Ausonian peoples arose from the spread of the Samnites, and must have inclined them to make peace with

the Romans. Thus Rome had leisure for permanently enlarging its territory, which in all probability it had no more to share with the Latins.

The last Veientine war had been followed by a twenty years' truce. The Etruscans, like very many other nations of antiquity, had the custom of ending their wars only by armistices for a certain number of years, which were years of ten months. This may be proved by the fact, that in almost every instance hostilities break out again earlier than might be expected from the fixed number of years of twelve months, and never sooner than after the same number of years calculated at ten months. The truce between Rome and Veii was concluded in 330, and in 347 it had already run out (*induciæ exierant*, is the literal expression). The use of these years of ten months is on the whole very common among the Romans; such a year was reckoned for mourning, and for all matters connected with money and interest. In sales of corn a credit of ten months was an understood thing. Loans for a long term of years there were none; but all business was done for short periods, and on the security of personal credit, as debts on bills of exchange. The Veientines, quite contrary to what they did in former times, try to evade the war in every possible manner. Without doubt, Veii had formerly been the chief of many Etrurian towns; probably from its situation, as in the earlier wars the power of that city appears to have been very great. Yet the irruption of the Gauls had this effect with regard to the towns southward of the Apennines, as Arretium, Fæsulæ, &c., that they were summoned to assist their countrymen on the other side of the mountains. This assistance was fruitless. The loss was great, and Etruria shed its lifeblood in the plains of Lombardy. Tarquinii and Capena alone came to the help of Veii; and also the Æqui Falisci, not indeed as an Etruscan people, but because they considered Veii as their bulwark.

At first, the Romans thought that the war could be quickly brought to an end; they built strong forts in the *Ager Veientanus*, (which the Greeks call ἐπτερίζειν) as Agis did in the second half of the Peloponnesian war; and from thence they hindered the Veientines from tilling their fields, or they set fire to the ripe corn, so that famine and distress soon made their appearance in the town. This system of warfare is designated here by the term *obsessio*. Once only the Romans undertook a siege in the simple fashion of that age. Between two redoubts, and parallel with the wall of the town, a line of rubbish, sand bags, and fascines was thrown up; wooden scaffoldings

(*plutei*) were then erected on both sides, in order to give the rubbish firmness; and, what was the chief difficulty, they were pushed further and further in advance. These wooden works were raised to about the height of the wall; bridges and scaling ladders were laid on it (*aggerem muro injungebant*); and then the machines were brought up, first the battering rams, in aftertimes the catapults and ballistæ,—for these, which in that age were yet unknown at Rome, were invented at Syracuse for Dionysius. The people of the town tried on their side to countermine. Yet the neighbouring nations defeated the Romans, and destroyed their works. Since then, several years passed without any camp being again pitched before Veii.

The war of Veii was for the ancients a parallel to that of Troy. They pictured to themselves another ten years' siege, and a conquest quite as marvellous as that of Troy by the wooden horse. Yet not the whole of the war is poetical fiction; but the old lays were linked to detached historical points which they embellished, differing in this from the epics of the earliest history. By the side of these, there is an old annalistic narrative which is by no means incredible. The defeat of the tribunes Virginus and Sergius is historical; but the particulars concerning the Alban lake, and such like things, belong to the old poem. Whether this was written in prose or in verse is all the same to me. The account given was as follows.

After Rome had already for eight years worn herself out against Veii, and the most perfect tranquility reigned with the Æquians and Volscians, a *prodigium* came to pass. The waters of the Alban lake, which otherwise stood always below the brink of the old crater, now began to swell, and threatened to overflow. This is the general tenor of the old tradition: with regard to the details the accounts differ. According to Dionysius of Halicarnassus, and Dio Cassius in Zonaras, the stream ran straight from the lake into the sea; according to others, it merely threatened to overflow its banks. The Romans did not know what to do. They had stationed outposts before Veii, but when there was no actual fighting, a sort of armistice was kept. On this, an Etruscan haruspex laughed at the Romans for giving themselves so much trouble to conquer Veii, saying, that, so long as they were not masters of the Alban lake, they would not be able to take the town. A Roman, bearing this in mind, sent for the haruspex under the pretext of a *procuratio rei domesticæ*, who was then seized by the enemy, and compelled to tell them, what was to be done. He answered that they ought

to drain the waters of the Alban lake, so that a stream from thence might reach the sea by a neighbouring river. The same thing was told by the Delphian god. The Romans now undertook the work and executed it. When it was all but finished, the Veientes sent an embassy to Rome, adjuring the Romans to receive them *in deditionem*. But the Romans would not listen to any such prayer; for they knew that the spell was broken. The Veientes said that this was true; yet that it was also stated in their books, that, if Veii were destroyed, Rome would likewise soon be taken by barbarians, and this the haruspex had forborne to tell them. The Romans now ran this risk, and appointed Camillus as dictator, who called upon all the people to share the booty, and undertook the assault. The sacred matters having been attended to, human wisdom was in requisition. He ran a gallery under the Arx of Veii, and led from thence a passage to the temple of Juno; as the fates had decreed, that he who made the offering in the Arx of Veii should be victorious. The Romans rushed in by that passage, slew the Etruscan king, and made the offering. Then the wall was scaled on all sides.

If we now reflect upon the historical absurdity of this account, we cannot doubt for one moment, the existence of a poetical fiction. There are traces of the citadel of Veii to this very day. It is situated on the Aqua rossa, is almost wholly surrounded by water, and rises to a considerable height: it is a rock of tufa. The Romans must then have had to dig a passage under the bed of the river, and to make the gallery with such consummate art, that no one could observe any thing; so that when all was done, they would only have quietly to raise the last stone in the temple and to climb out, as from a trap door.

In all probability, this is what really happened. There were two sorts of sieges. One was that described above, which only consisted in heaping up rubbish against the wall. Or else, with huge toil they undermined its foundations, and shoring it up with a framework of strong beams, set fire to the timber, and burned it, so that the masonry might come down with a crash. A positive mention of battering rams does not occur before the Peloponnesian war; and among the Romans even somewhat later. If Veii was really taken by means of a *cuniculus*, it is to be explained by the second mode.

The draining of the Alban lake must surely belong to this period. We cannot gainsay it, nor is there any reason for putting in here a work of

earlier date. It is likely that owing to some stoppage in the channels by which it was drained, there was danger of the lake's overflowing the whole of Latium; and possibly they may have taken advantage of the credulity of the people to stir them to this immense undertaking, though I believe that, if the senate decided upon this necessary work, it readily found obedience. It is to be supposed that the Alban lake had a subterraneous outlet through clefts, like the Fucinus and all lakes which have been formed in the craters of volcanoes: these chasms may have been filled up by an earthquake. Livy, somewhat further on, speaks of a severe winter when the Tiber was covered with ice, and of a sickly summer which followed it. The newly discovered *excerpta* of Dionysius place the construction of the tunnel in the year after that severe winter. Livy says that during that winter the snow lay seven feet deep, and that the trees were killed by the frost; a statement quite in the style of the annals, which, although the old annals were lost at the Gallic invasion, is yet very credible, as that winter must have survived in the memory of all. Just as severe was the winter of 483, when the snow lay for forty days on the Forum. The earlier Roman history shows traces of the average height of the thermometer having been at that time much less than it is now.^[115] In Roman and Greek history, the periods of extraordinary appearances in the weather are almost always the precursors of frightful earthquakes: thus an eruption of Ætna happens at this time (354). Vesuvius was then quiet; yet the earthquakes were awful. By one of these, the outlets of the Alban lake may have been stopped: generally speaking, all lakes which have no *emissarius*, exhibit wonderful periods of rise and fall. The lake Copais even had artificial drains, which, however, were afterwards choked up, and Bœotia during the Macedonian era was not able to pay the cost of clearing them; the consequence of this was, that the lake began to swell, and overflowed the country all about. On the whole, as Aristotle has already remarked, Greece may have lost in the supply of water. The lake Copais is at present merely a marsh, which one cannot indeed any more call a lake, with stagnant pools, as in our "turf-moors."

The work which the Romans executed is wonderful. The tunnel is entire to this day, and is in length 2,700 paces, half a German league:^[116] the water of the lake is diminished to an appropriate level. This alone is a considerable advantage, although the country about is now uncultivated, and has nothing but brushwood growing upon it. More important, however,

is the fact that drinkable water was gained by it; as the campagna of Rome was much in want of water, and although that of the lake is by no means good, yet it is better than what is found in the wells thereabouts. The work is equal to the greatest Etruscan ones: the entrance from the lake is a vault, executed in the grandest style like the hall of a temple, and we see that Rome now built again on as vast a scale as under the kings. This is characteristic of the time of Camillus. The tunnel is most of it cut through a hard mass of lava, a small portion only through *peperino*, which is more easily worked; it is a gallery nine palms high, and five palms broad. By this means the lake is kept, probably for ever, to a fixed level: moreover, the *emissarius* never needs to be repaired. The lake was at that time about a hundred feet above the level to which it was let off. How such a work was accomplished, is a very interesting question. If we consider the imperfect state of the instruments of those days when the use of the compass was not yet known, the task of finding the correct level at a distance of half a mile is indeed immense; nay it would even now be fraught with considerable difficulty, as one must know to a line, how high one ought to build in order to have a gradually inclined way for the water. It is known in the country, and stated in some books, that from the lake to the lower point to which the water was to be led, open shafts are everywhere seen to this day by which people even now go down to clean the *emissarius*: these did not serve merely to carry off the mud,—the lake is not muddy,—but also to calculate the depth, and to allow the air to come in. By the salt-water of the shafts, they were able accurately to calculate the line to its extremity. Now-a-days people are so little practised in levelling, that to a very recent period it was not known that the lake of Nemi lies higher than that of Alba. By sinking shafts, it was also possible for a greater number of people to work, and to bring the whole to a speedy completion: from each of them two parties might proceed till they mutually met. In this manner the tunnel was finished to the edge of the lake. The entrance was no doubt effected by a stone bore of the size of the tube of a tobacco pipe; for a wall of basalt needs not to be thicker than two ells for it sufficiently to withstand the whole pressure of the lake. An opening was made by which the lake sank gradually, so that the workmen had still time to be raised by a windlass from the shafts; when the water had discharged itself, the wall was pulled down, and the break was built to keep off trees, &c.; then it was embellished, and the magnificent portico and the entrance, similar to that of a temple, were erected. This

shames all the Egyptian works, which are strange and useless; this, on the contrary, is purely rational.

That Veii was taken by storm, is certain. The nation was annihilated, and the sack was carried on quite methodically. It is said that the whole population of Rome was summoned thither to assist in the plundering. This may have applied to all those who were bound to military service; partly owing to the short distance of Rome from Veii, and partly because in that long war all had actually served. The fate of the inhabitants of the conquered town is the same which befell so many of the nations of antiquity: those who did not fall by the sword, were led away into bondage. The Romans took possession of an empty town: it was, as we may well believe, finer than their own. Rome has a magnificent situation; yet its picturesque character is fraught with many disadvantages. The country about the city is liable to frequent inundations; the communication within its walls, owing to the many hills and valleys, was very inconvenient for carriages: Veii, on the contrary, with the exception of its Arx, lay on a plain, and in all likelihood had fine broad streets. It was therefore no wonder that the Romans were loath to destroy such a beautiful town. Immediately after its conquest, quarrels arose between the government and the *Plebes*; for the latter demanded the division of the fields, and the former claimed the whole for itself. But this was now no longer possible. Another difficulty arose from the beauty of the town: it was thought a pity that it should be left desolate. It is conceivable, that when the proposal was made to divide the territory, it was also wished that to those who were in want of dwellings, the houses of Veii might be assigned. A tribune of the people proposed, that if the patricians deemed the plebeians too vile, to have their abode in the same place with them, the *Plebes* with its magistrates might emigrate to Veii:—that the proposal was, as Livy has it, that half of the senate and people should settle at Veii, would be too absurd for belief. Yet even the former one is very questionable: the plan would have been most injudicious. The reasons which Livy adduces against any such splitting of the population, are very weighty: a complete separation would have been inevitable. And if the project was only to transplant a numerous colony with a local government to Veii, even this was likewise very dangerous. A compromise took place. Whilst the patricians received a great part of the occupied land, the *Plebes* also got a share; and indeed not only were the seven *jugera forensia* assigned to each as his own lot, but the children were also taken into

consideration. According to Diodorus' statement, every family gets twenty-eight jugera; but in that case the size of the Veientine territory must have been enormous. This assignation did not extend to the *ærarii*. Those among them who were clients of patricians, got places on the estates of their patrons.

The sequel shows that at that time in the territory of Veii and Capena, as well as that of most of the Etruscan cities, there were great rural districts with subjected towns which during the war threw themselves into the arms of the Romans: these were no doubt the old inhabitants, who looked upon them as their liberators.

The conquest of Veii was one of the leading events in history: it freed Rome from the counterpoise which checked its progress. Now that the east was entirely pacified, the Romans advanced with irresistible might into Etruria; as the Etruscans had to concentrate the whole of their force in the Apennines, in order to keep off the Gauls. The war was, however, waged against the Faliscans also. These, to judge from their name, were Volscians, and therefore Virgil calls them *Æqui Falisci*; according to Strabo, they had ἰδίαν γλῶσσαν, and were ἕτερον ἔθνος from the Etruscans. The war of Camillus against the Faliscans is known to us from our earliest childhood, and how he moved them so strongly by his magnanimity, that they embraced the friendly alliance of the Romans. In this there is much which is improbable in itself. The story of the schoolmaster, I will not discuss. Moreover, there was war against the Vulsinians also: the Romans made conquests in their territory, and concluded an advantageous peace. By that time, Rome had already advanced beyond the boundary of the *silva Ciminia*, which afterwards, in the great war of Fabius, appears to have been fraught with such dreadful horrors. The line of demarcation then, does not yet seem to have been very distinct: afterwards, the district may have been purposely allowed to run wild, in order to form a boundary, just as there is also a forest between Austrian and Turkish Dalmatia. Of Capena there is no more mention; it disappears entirely. It was, therefore, either destroyed by the Romans after the conquest of Veii, or by the Gauls: certain it is, that after the invasion of the Gauls, all the Capenates who were left became citizens.

After these victories, Camillus stood forth as the greatest general of his age. But at this period it happened, that he was accused of having

appropriated to himself out of the spoils of Veii many articles of great value, particularly the brazen doors of the temple of Juno; and of having announced too late, that he had made a vow to offer the tenth part of the booty to the Pythian Apollo. It would be a vain disquisition to speculate here upon the guilt or innocence of Camillus; only we must not forget, that every Roman general was justified in selecting a portion of the booty for himself.^[117] Whether Camillus in this case took more than his share, we cannot decide; where one man goes by a smaller scale, another employs a greater one. We must not believe that Camillus did this in secret: he certainly had the gates put on his own house; if he had intended to use them as metal, they would long since have been melted down. The reason of the hatred against Camillus was a political one. He stood at the head of the most obstinate patrician party, even to the time of his death. The plebeians were becoming more and more energetic and powerful; owing to the tranquillity of prosperity, a certain taste for agitation had sprung up. Camillus was impeached, because he had an influential party against him; and he was fined the sum of fifteen thousand, according to others, one hundred thousand, or even five hundred thousand asses. He then went into exile, to Ardea. Livy says that, previous to his trial, he had entreated his clients and fellow-tribesmen to make every exertion to have him acquitted; which would prove, that he was proceeded against before the centuries, as in this instance there cannot be any question of the tribes;—that they had, however, declared, that they would pay his fine, but not acquit him. This clearly proves his guilt. According to Dionysius, his clansmen and clients really paid it, and he withdrew from sheer disgust. I believe that the curies condemned him, as, when he was recalled, they had again to be summoned to the Capitol, to repeal the decree of banishment; for, it was only in Rome that the curies could assemble. This would likewise prove that he was found guilty, a thing not at all unusual in those times with regard to great men.

MIGRATION OF THE GAULS. CONQUEST OF ROME.

No one had any foreboding of what was now impending upon Rome. She had become great, because the country which she had conquered had been weakened by its oligarchical constitution; the subjects also of the other states willingly went over to her, as they would thus be so much better off, and moreover, in all likelihood, they were sprung from the same stock. But even as Basil subjected the Armenians when they were threatened by the Turks, and soon afterwards the whole of the Greek empire was assailed by the latter, who took much more from it than it had gained before; thus it was also with the Romans.

The inroad of the Gauls into Italy is to be looked upon as a migration, not as a conquest. For what is historical in it, we must depend upon Polybius and Diodorus, who place it shortly before the taking of Rome by the Gauls. To Livy's statement, that driven from their own country by a famine, they had already come to Italy in the age of Tarquinius Priscus, no credit is to be given. It originated in the fact that some Greek historian or other, perhaps Timæus, connected this migration with the settling of the Phocæans at Massilia. Livy has, perhaps, in this instance borrowed from Dionysius, and the latter from Timæus; for as he certainly made use of Dionysius in his eighth book, why should he not also in the fifth? He himself knew very little of Greek history.^[118] But this account is evidently contradicted by that of Justin. Trogus Pompeius was born near Massilia, and had also apparently used for his forty-third book native chronicles; as from them only he could have got the account of the *decreta honorifica* of the Romans to the Massiliotes, in return for the friendship shown them during the Gallic war, and likewise of the sea-fights of Massilia with the Carthaginians. Trogus knows nothing of the circumstance that the Gauls assisted the Phocæans; but according to him, these merely met with a friendly reception among the Ligurians, who also dwelt there for a long time. About the year 350, fifteen years therefore before this, Livy himself says, *gentem invisitatam, novas accolas, Gallos comparuisse*. Even the

story of that Lucumo, who had called in the Gauls, pleads against it: referred to Clusium alone, it is absurd. Polybius dates the passage over the Alps from ten to twenty years before the conquest of Rome; Diodorus makes the Gauls burst upon Rome in one uninterrupted onslaught. Moreover, it is said that Melpum, in the country of the Insubrians, had been destroyed on the same day with Veii; and though we may not positively assert this exact coincidence, there can yet be no doubt but that the statement, on the whole, has hit the truth. Cornelius Nepos wrote it, who, as a native of the country beyond the Po, might have known the facts, and whose chronological accounts were very highly valued among the Romans. The Gauls can only have passed, either over the little St. Bernard, or over the Simplon. The former is not likely, because their country reached to the Ticinus only; if they had crossed over the little St. Bernard, they must needs also have occupied the whole of the territory between that mountain and the Ticinus. Now, the Salassians, for aught that we know, may have been a Gallic people; but this is not certain, and moreover, on the banks of the Ticinus, between them and the Gauls who had come over the Alps, there still dwelt the Lævians; surely then, there were still at that time also Ligurians on the Ticinus.

Melpum must have stood near the spot where Milan is now. The situation of Milan is exceedingly favourable, and often as it has been destroyed, it has been always restored; so that it is not impossible that Melpum was the same town. Without doubt, the Gallic migration came sweeping on with headlong impetuosity, like the billows of a stormy sea; how then can we suppose that Melpum had withstood the barbarians for two hundred years, or that they had conquered it, and had left the Etruscans undisturbed during the whole of that time? It is absurd to believe this, merely to bear out an uncritical assertion of Livy's. Twelve years after the taking of Rome, as is usually computed; or, according to a more correct chronology, nine years later, the Triballians, who in the times of Herodotus abode in Lower Hungary, were seen in Thrace, having been driven out of their own country by the Gauls. It is evident that the same movement which led them to the Middle Danube, extended likewise to the Po. And should they who in a few days came from Clusium to Rome, and afterwards appeared also in Apulia, have sat still in a corner for two hundred years?

These Gauls were partly Celts, but the great body of them were Belgians or *Cymri*. This may be gleaned from the fact that their king, as well as he who appears before Delphi, is called Brennus; *Brenin*, according to Adelung in Mithridates, means in Welsh and *Bas Breton* a king. But what gave rise to the whole migration? The statement of Livy that a famine had driven forth the Gauls, is quite in the character of all those traditions about national migrations which we find in Saxo Grammaticus, in Paul Warnefrid from the Swedish lays, in the Tyrrhenian legends concerning Lydia, and elsewhere. In the case of a people however, like the Celts, any special account of this kind, in which, as here, even the leaders are named, is no more worthy of belief than all other legends among nations who have not the use of writing. It is indeed certain that the Celts had Greek letters; but they may only have used them for the purposes of every day life, and it is well known that they were not allowed to commit the old lays to writing. The Celts, however, had a tradition which we meet with in Ammianus Marcellinus, that Britain had been one of their most ancient seats. We now find them in Britain, Ireland, in different places in Spain, and in two places in Portugal. For the Celticans and Celts in Portugal, who dwelt in Algarve and Alemtejo, and between the Mincio and Douro, are pure Celts; the Celtiberians in Spain are a mixture of Celts and Iberians: they live in the heart of the mountain range between Saragossa and Madrid, which is connected with the Pyrenees.^[119] Of these Celts in Spain the same tradition has been preserved, as of their appearance in Italy: they are said to have been driven thither by famine, and to have spread by conquest. Yet here is again a confusion of the two opposite poles in the tradition. In no instance where a national migration has taken place, is the invading people to be found in scattered spots; but the inhabitants of such districts, especially in mountains, are the remnants of the ancient population which has emigrated, or been changed. Among the Celtiberians, the Iberians prevail; the Celts are the indigenous people which amalgamated with the Iberians who broke in from Africa: there may have arisen a sort of mixed language; the names of places are Iberian. Similar transformations of a people are sometimes met with in history. The Wendes in Germany, owing to the insignificance of their colonies, have for the most part adopted the German language, without there having been any German conquest or German princes; and yet they were originally Sclavonians, as well as the Cassubians who speak Wendish to this day. That the Iberians spread across the Pyrenees, is proved by the

existence of the Aquitanians, who were pure Hispanians, as Cæsar informs us; nor is there any reason to suppose that this was only a change of later times. Basques are still dwelling north of the Pyrenees. And there is, moreover, the statement of Scylax, that the people from the Pyrenees to the Rhone was a mixture of Iberians and Ligurians. The Celts once possessed the whole of Spain, with the exception of Andalusia; and besides this, Southern France, Ireland, and part of England. The boundary of the Iberians in the north, we cannot lay down with certainty; in the earlier ages, it was the Sierra Morena. In the south, we find them in Southern Spain; in the Balearic isles; in Sardinia, Corsica, and Western Sicily; and lastly also, in Africa.

Distinct from the Celts, but of the same stock, are the *Cymri* or Belgians: this distinction, concerning which I have given my opinion years ago, is of essential importance. Cæsar's notion that the Belgians were a mixture of Germans and Celts, is erroneous: there is a wide difference between them and the Germans, although a small number of words in their language are Germanic. In Cæsar's time, they were undoubtedly *Cymri*, with a sprinkling of Germans whom they had met with in their migration. *Cymri* lived also in a part of Britain: probably they were the older inhabitants, who had been dislodged by the Gales. The Gales were pushed on by the Iberians; the *Cymri* by the Gales; and the Germans by the *Cymri*, who at that time were settled in the north of France and in the Netherlands, where Celts had afterwards their abode.

Southern France from the Pyrenees, Lower Languedoc, and the valley of the Rhone, the Piemontese country, and Lombardy also as far as the Etruscans, were inhabited by the Ligurians, a great European nation. Scylax already says, that in Lower Languedoc, Iberians and Ligurians were living mixed up together. In later times which cannot be particularised, the Celts drove the Iberians from Spain to the Garonne; and the latter pushed on the Ligurians to the neighbourhood of Aix in Provence;—an event which may be traced in its consequences. By this impulse the Gauls and *Cymri* together were driven into emigration: some of the *Cymri* part from the Gauls, and go on migrating; others march with them. Gauls and *Cymri* differ very much from each other: their grammar and language are quite distinct. The two great migrations of Bellovesus and Sigovesus, mentioned by Livy, are to be considered as true, although the leaders may be looked upon as mere

personifications. Of these expeditions, the one, penetrating through the Etruscan Alpine tribes and the Ligurians into Italy, overthrows the Etruscan towns in the Lombard plain; the other proceeds northward from the Alps. The Rhætians, the Lepontines, the Camunians, the Stonians and other Alpine peoples in the Tyrol and in the country of the Grisons, including Verona, stand out alone like islands, amid the immigrating Gauls who poured round them like a sea; and they remind us of the Celts in Spain. This migration, in which the Helvetians did not join, I have already sufficiently discussed in my little historical writings, in the essay on the Scythians and Sarmatians. It first proceeds round the Black forest, then stops a while, and then goes on to the middle Danube, Hungary and Lower Sclavonia: here they undertake the difficult conquest of the highlands, spread from thence into Macedonia, Thrace, Bulgaria, and then across the Danube as far as the Dnieper; and then, pushed back by the Sarmatians, they again throw themselves into Europe. It is the only known instance, in which it is apparent that such a torrent rushes forth until it meets with insurmountable obstacles, and then returns again with unabated violence. As late as the times when Herodotus still wrote, about 320 A. U. C. the nations on the banks of the middle and lower Danube were living undisturbed in their abodes. The Scythians inhabited Moldavia and Wallachia as far as Transylvania; there the Agathyrsians were settled, and the Triballians in Sclavonia and Lower Hungary. But nine years after the taking of Rome by the Gauls, the Triballians make their appearance near Abdera in Thrace, and afterwards they are seen on the banks of the southern Danube in Bulgaria. The Scythians, on the other hand, are found as early as the reign of Philip to have been limited to Bessarabia; at the time of Alexander the Getæ are in possession of Moldavia and Wallachia. The people, who effect these changes, are the Gauls, and by means of the same emigration as that in which they poured themselves over Italy.

Scylax (Ol. 106.) knows of Gauls in the inmost recesses of the Adriatic, the Carnians and Noricans of later times. They did not, he says, join the migration: part of the Gauls, who had advanced further, lived in Sirmium; from thence, under the name of Bastarnians, they cross the Danube, and compel the Getæ to throw themselves into Hungary and Transylvania; afterwards they spread in the Ukraine. From the important inscription of Olbia, which Köhler has edited, we see that the Galatians, and, together with them, the Scirians, afterwards a German people, are dwelling near the

Dnieper; and this agrees perfectly well with the fact, that the Scythians now vanish. For in the east also there is a national migration, that of the Sarmatians, a people which Herodotus only knows as dwelling beyond the Tanais. Scylax, seventy years afterwards, speaks of them as being settled on this side of it; according to the Olbian inscription, they are on the other bank of the Dnieper; under Augustus, they are in Wallachia: they destroy the Greek towns in that neighbourhood. This movement was afterwards the cause of the irruption of the Cymri or Cimbrians, as in the migrations of the Celts the Cymri were always included. To them belong the Bastarnians, who dwelt in Southern Poland and in Dacia, and were driven out by the Sarmatians. Johann von Müller indeed was the first to recognise the truth of Posidonius' statement, that the Cimbrians did not come from Jutland but from the East; but he saw not yet, that they were originally Belgians, or, as the Greeks called it by a general name, Κέλται. To claim the victories of the Cimbrians for the German nation is foolish.

The extent of these emigrations reached in Germany as far as the Mayne and the Thuringian forest. Celts, before Cæsar's days, were settled even in Bohemia, and some tribes of them remained in the time of Tacitus; the Gothinians at that time still spoke Gallic; the Noricans in Austria were of Celtic descent. The Rhætians were Etruscans; the Vindelicians, Liburnians. The Helvetians conquered the greatest part of Switzerland; yet near the St. Gotthardt some of the old population were left. The Gauls penetrated into Italy by a very narrow track, very likely across the Simplon: it was only by means of the Valais that they kept up the connection with the people of their own stock beyond the Alps. As far as Aosta, the ancient inhabitants stood their ground: for, the Salassians, Taurinians, &c., were Ligurians, and the tribes towards the St. Gotthardt Etruscans. The Ligurians were a warlike race and held their own; they dwelt on both sides of the Alps: the Allobroges, however, were pure Celts. On this account, Cisalpine Gaul appears too large on the maps, even on that of d'Anville: it did not contain Piedmont, but only the Austrian Milanese, Bergamo and Brescia, Lombardy south of the Po to the Adriatic, and north of the Po to the neighbourhood of Lake Garda. All the country, therefore, which they conquered, was in the plain; and even for this reason their migration cannot have lasted as long as Livy states.

In the history of the Gallic migration it is again shown how little we know of the history of Italy in general. Our knowledge is limited to Rome: it is just the same as if of all the historical sources of the whole of the German empire, the annals of one imperial town only had been preserved. From Livy's account, it might appear as if the Gauls had advanced against Rome alone, and as if this had been their only object. And yet this immigration has changed the whole aspect of Italy. For when once the Gauls had crossed the Apennines, there was nothing to hinder them from marching by any road into Southern Italy; and indeed we find some mention of their further progress to the south. The Umbrians still dwelt as far as the lower Padus in the present Romagna and Urbino, in parts of which Liburnians also were living. Polybius says, that many nations there had become tributary to the Gauls; of the Umbrians this is certain. In history, we first find the Gauls in Clusium, where they are said to have made their appearance immediately on their immigration, owing to the revenge of a high-born citizen of the place who called them in against the town of his birth. Yet this remains doubtful: if there should be any truth in it, it is much more likely that the offended man crossed the Apennines, and fetched the avengers from thence. Clusium had been no more spoken of since the time of Porsena; that its people seek assistance with Rome, is a proof how little this northern town of Etruria shared in the fate of the southern ones; even an alliance with Rome may be conjectured. The danger was, however, so great, that every jealousy must have been hushed by it. The natural road for the Gauls would have been down by the shores of the Adriatic; then through the country of the Umbrians, who were tributary to them, and already completely broken down; and through the Romagna, across the Apennines. The Apennines, however, which separate Tuscany and the Romagna, are very difficult to pass over, and particularly troublesome for beasts of burthen. As from this side, therefore, which the Etruscans moreover had purposely allowed to grow wild, the Gauls could not break in, though they had made an attempt to do so, they then crossed the Apennines near Clusium, and appeared before this town. Clusium is the key of the valley of the Tiber; if it were taken, this as well as the road on the Arno would be open to the Gauls, who might then advance upon Arezzo in its rear. The Romans therefore looked upon the fate of Clusium as decisive of their own. The people of Clusium solicit the alliance of powerful Rome; the Romans with well-judged readiness accede to it, and send an embassy to

the Gauls, ordering them to go away. According to a more probable account, the latter had demanded from the Clusians the division of the land, as a condition of peace; not, as it was customary among the Romans, as a charge imposed upon a people already conquered: if this be correct, the Romans sent that embassy trusting to their might. But the Gauls treated the ambassadors with scorn, and these allowed themselves to be carried away by their military ardour to join the Etruscans in fighting against them: it may perhaps have been only a small isolated affray. This is what Livy tells us; and he proceeds to state, that the Gauls, as soon as they had become aware of this violation of the law of nations, had caused the signal for retreat to be sounded, and had called upon the gods for vengeance, intending forthwith to march against Rome. Here is evidently a mere legend. A barbarous people could not possibly have entertained such regards; nor was there in this case any real violation of international law, as the Romans stood in no connexion whatever with the Gauls. But the fall of Rome must needs be laid to the account of a *Nefas*, against which no power of man could avail. Roman vanity besides plays its part; and the ambassadors were said to have so greatly distinguished themselves, that they were more conspicuous than the Etruscans. In contradiction to these events, it is now stated that the Gauls had sent to Rome to demand the giving up of those ambassadors; that the senate hesitated and left the decision to the people, on which the latter not only refused compliance, but even appointed the same ambassadors as military tribunes; and that in consequence the Gauls with all their force immediately marched against the surprised city. Livy here again speaks of the *Populus*, to which the senate refers the decision; yet this can only be the patrician community, as it alone could have decided on the fate of those who belonged to that class. The Romans have, in this instance, been unfairly charged with want of honesty. But the whole story is certainly derived from later writers, who conferred upon barbarians a right, to which none but a people within the pale of international law could lay any claim. Nor is the statement by any means a general one, that the three ambassadors, the Fabii, were chosen military tribunes. A different account is found in Diodorus, who in this place must have made use of Roman sources written in Greek, that is to say, of Fabius; as he calls the people of Cære Κάριοι, and not Ἀγυλλᾶιοι. He speaks of one single ambassador, who as a son of a military tribune had fought against the Gauls. This at least shows how little the history can as yet be relied upon.

The battle of the Alia was on the sixteenth of July, and the military tribunes entered upon their office the first of the same month, whilst Clusium is only a good three days' march from Rome.

The Gauls marched in innumerable hosts from Clusium to Rome. They were for a long time the people most dreaded by the Romans, even so late as in the Cisalpine war of 527; and likewise by all the nations with which they came into contact, as far as the remotest East and the Ukraine. For the knowledge of their manners and customs, Polybius and Diodorus are our best guides: under Cæsar they were already changed. In the description of their persons, we have a glimpse of the Gael, or Highlander of the present day;—tall bodies, blue eyes, coarse hair. Their very dress and arms are those of the Gael; their clothing being checkered and variegated tartans (*sagula virgata versicoloria*), their weapons the Highland claymores, broad war-swords without points. They had an immense number of horns, such as were long to be met with in the Highlands; and they threw themselves in huge irregular masses, and with terrible fury upon the enemy, those in the rear pushing on those in front, so that no line of battle then in use could withstand the shock. Against them the Romans should have employed the phalanx, and doubled it, until they became accustomed to such a foe, and gained the mastery by dint of their superior skill. If they could stand the first onset, then the Gauls were sure to fall into confusion, and were afterwards easily routed. The Gauls who in later times were defeated by them, were the descendants of those who had been born in Italy, and had very much fallen off in courage and strength. The Goths under Vitigis, not fifty years after Theodoric's immigration into Italy, were cowards, and did not hold their ground against the twenty thousand men of Belisarius: thus quickly do barbarians degenerate in such a climate. Terrible also were the Gauls for their appalling cruelty! Wherever they settled, the original towns and their inhabitants utterly vanished from the face of the earth. In their own homes they had the feudal system and a priestly government. The Druids, who were their only rulers, avenged the oppressed people upon the chiefs, and in their turn were its tyrants. The whole of the people were serfs; which proves that the Gauls, even in their own country, were a race of conquerors who had enslaved an older population. Their wealth in gold is much talked of; and yet there are no rivers in France by which gold is washed, and the Pyrenees were at that time no more in their possession: the gold must, therefore, have been bartered. Much of it may be only

exaggeration; and when individual chieftains wore golden chains, the ancient poets may have extended this to the whole nation, as popular poetry, particularly in such embellishments, is apt to give itself great license.

Pliny says, that the *census* before the Gallic calamity had amounted to 150,000; but this only includes the men who had votes, and neither women, children, slaves, nor foreigners. When we take this into the account, the number of inhabitants was immense. Should this statement, however, be well founded, it must not be understood of the residents in the city alone; for these were much fewer. When we read in Diodorus that every one was called out to fight against the Gauls, and that forty thousand men assembled at the summons, this is very probable: there is the testimony of Polybius that Latins and Hernicans were included in the host. According to another account, the Romans took the field against the Gauls with twenty-four thousand men; that is to say, with four country, and four city legions. The country legions were raised from the plebeians only; they served in the order of the classes, very likely in maniples. The city legions contained all those who did not belong to the plebeians and patricians, all the *æ*rarians, proletarians, freedmen, artisans, who at other times had never yet faced the enemy; they were certainly not armed with the *pilum*, nor arrayed *manipulatim*, but provided with pikes, and drawn up in phalanx. As to the country legions, they consisted half of Latins and half of Romans, there being in each maniple a Roman and a Latin century; and if in those days there were four of these legions, this would be twelve thousand men, as the legion together with its reserve was then three thousand strong. When therefore one statement gives twenty-four thousand, we see that it implies four country, and four irregular city legions. Thus there were only six thousand plebeians, so that, had the legions contained Romans exclusively, there would not indeed have been more than twelve thousand of them; but if to these we add twelve thousand irregular troops and sixteen thousand allies, the number of forty thousand is then correct. If so, the population of Rome was not so large as that of Athens in the Peloponnesian war, which is very likely. The horsemen are not reckoned in this calculation; forty thousand men must, however, be deemed the maximum of the whole army. There seems to be no exaggeration in this; so that on the whole, the battle on the Alia ranks among those events which are historical. It is surprising that the Romans elected no dictator for the battle; they cannot be said to have looked upon that war as quite an ordinary one, as in that case they

would not have summoned all their forces to the fight. Yet they did not estimate the danger to its full extent. There were always fresh swarms crossing the Alps; the Senonians also now make their appearance, seeking out places where to dwell. They, like the Germans afterwards, asked for land, on beholding the Insubrians, Boians, and others already settled in the country. They had taken up their abodes in the Umbrian district near the sea; but only till they should find larger and more convenient ones.

The river Alia has no remarkable features. It would almost seem that the country in the neighbourhood has changed; it is only by the distances which are given, that we can tell what river it was. The ancients describe it as a stream with high embankments; but the river which we must now take for it, has none. The name is now obsolete. In the summer, however, all these rivers have very little water; and therefore the position behind it could not have availed much. The Romans committed the great fault of giving battle with troops swept together in haste, to an enemy hitherto invincible. The hills near which the right wing is said to have been placed, are no more to be recognised: they may perhaps have been only small mounds of earth.^[120] At all events, the opposing a long line to the huge masses of the enemy was quite absurd. The Gauls, on the other hand, could without any trouble turn off to the left; and, passing the river higher up, where it was more easy to be forded, they very judiciously threw themselves with the whole of their might on the right wing, which consisted of the irregulars. These at first stood their ground, but not for long; and when they fled, all the rest of the line, which as yet seems to have stood quite useless, was seized with panic. Fright preceded the Gauls, as, like the Turks, they devastated every thing wherever they went. (Throughout the *Cispadana* they destroyed the towns, they themselves dwelling in villages only: when the Romans afterwards conquered the country of the Insubrians, they found not a trace any where of the former population.) This, instead of calling forth a desperate resistance, paralysed the courage of the Romans. Thus they were defeated on the Alia in the most inglorious manner. The Gauls had attacked them in the rear, and cut them off from the road to Rome: part of them fled to the Tiber, of whom some escaped through the river, and others were drowned; and part took refuge in a forest. Yet the slaughter must have been immense; and it is inconceivable, how Livy could speak only of the disgrace. Had not the Roman army been all but annihilated, it would not have been necessary to have given up the defence of the city so entirely, as was done: for it was

left undefended and abandoned by all. Many, instead of returning to Rome, ran away to Veii; some few only, who had fled along the high road, entered the city by the *Porta Collina*. Rome was exhausted; its force was scattered to the winds, its legions powerless; its allies also who could bear arms had most of them shared in the defeat, and they partly expected the dreadful enemy in their own homes. In Rome it was believed that the whole of the army was destroyed: nothing was known of those at Veii. Within its walls were only old men, women and children; defence was not to be thought of. It is not, however, to be supposed that the gates were left open, and that the Gauls, fearing an ambush, had waited several days before the town. More likely is what others relate, that the gates were barricaded. We may form a very lively image of the condition of Rome after this battle, by comparing it with the similar situation of Moscow just before the fire. People were convinced that a long defence was impossible, as in all likelihood provisions were scarce. Livy has a false idea of the evacuation of the city, as if the defenceless inhabitants in their consternation had remained immovable, and part of them had been received into the Capitol. But it had been resolved to defend the Capitol. The tribune Sulpicius, with about a thousand men had taken refuge in it. There was an old well there, which is still in existence, and without which the garrison would soon have died of thirst. No antiquary knew of it; but I discovered it from the accounts of the people living there: it is sunk through the rock to the level of the Tiber, yet its water is not fit to drink. The Capitol was scarped, and thereby inaccessible: the way to it, leading from the Forum and the Via Sacra, was a *clivus*, which was shut by a gate at the bottom and on the top. The rock was not as steep as in later times,—this is shown by the account of the assault,—but it was still very strong. Whether, as was the case in Moscow, some remained behind in the town, who, in their confusion, did not consider what an enemy they had to deal with, we cannot decide. The story is very fine, and reminds us of the taking of the Acropolis by the Persians, where also the old men allow themselves to be put to the sword by the enemy. Yet, in spite of the improbable character of the incident, I am inclined to believe, that several old patricians,—the number may not be quite historical,—seated themselves in their robes of office on the curule chairs in the Forum; and that the *Pontifex Maximus* consecrated them for death. Such consecrations were a well-known Roman custom. And, surely, it is also true, that the Gauls were astounded at finding the town forsaken, and only

those old men immoveably sitting; and that, mistaking them for images or phantoms, they did nothing, until one of them struck a Gaul who touched him; whereupon all were slain. To lay hand on themselves, was at variance with the habits of the Romans, whose feelings, on the whole, were in many things much more correct, and much more akin to ours, than those of many other nations of old. All hope for their fatherland had indeed been given up by the old men; but the Capitol was still tenable, and people chose rather to die in an attempt at resistance, than to flee away to Veii, where, after all, they would not have been able to hold out. The sacred things were taken to Cære. The hope of the Romans was now, that the barbarians would get tired of the siege. The Capitol had been provisioned for some time to come; there may have been a couple of thousand persons in it; public and private buildings, all the temples were used as dwellings. The Gauls made dreadful havoc in Rome, still more so than the Spaniards and Germans did in 1527. The soldier sacks, destroys, when he finds no men; he gets drunk, and fire breaks out quite undesignedly, as at Moscow;—the whole town was laid in ashes, with the exception of some houses on the Palatine where the chiefs of the Gauls were living. It is to be wondered at, that single monuments of the earlier times outside of the Capitol are still talked of; statues were said to have been preserved: it is true that the *Travertino* is tolerably fireproof. That Rome was burnt down, is certain; at the rebuilding of the city, the old streets were not even restored.

The Gauls were now lying in the town. At first they made an assault on the *clivus*, and were repulsed with loss; which is rather surprising, as we know that the Romans had before succeeded in an attack upon the same *clivus* against Appius Herdonius. Afterwards they discovered the footsteps of a messenger, who had been sent from Veii to provide for the affairs of the city in the due forms of law. For, the Romans on the Capitol were patricians, they represented the curies and the government; those who had gathered together at Veii, represented the tribes, but had no leaders. The tribes had decided upon recalling Camillus and making him dictator; Pontius Cominius was therefore sent to Rome to obtain the consent of the senate and the curies. This was quite in the spirit of the olden times. If the curies had interdicted him *aqua et igni*, they only could recall him after a previous decree of the senate. But, if he had gone into voluntary exile, and, by accepting the right of citizenship at Ardea, had renounced the Roman one before a decree of the centuries had been passed against him, it again

rested,—he being a patrician,—with the curies alone, to receive him anew as a citizen; otherwise he would have been no dictator, nor would he have considered himself as such.

It was in the dogdays that the Gauls came to Rome. But summer has at all times been pestilential at Rome, especially the two months and a half until September; and, a thing which Livy also tells us, as the barbarians bivouacked in the open air amid the ruins, they could not fail to be attacked and destroyed by diseases like the army of Frederic Barbarossa before the castle of St. Angelo. Yet it was not the whole host of the Gauls which was encamped there, but most likely no more than were necessary to keep the garrison on the Capitol blockaded: the rest were overrunning the neighbourhood and devastating the flat country in Latium, all the open places and the isolated houses. Many a place which existed in the early ages and is no more met with now, may have been destroyed at that time. Ostia was a strong town, and held out; for it was able to get provisions by sea, whilst the Gauls were no adepts in the art of besieging. The Ardeates, the territory of which the Gauls likewise invaded, made head against them under the command of Camillus.^[121] The Etruscans seem to have caught at this opportunity of regaining Veii; for it is said that the Romans in Veii under the command of Cædicius won a battle against them, and were thus encouraged to reconquer Rome, as they were now in possession of arms.

A Roman, Fabius Dorso, is said to have offered in broad daylight a gentilian sacrifice on the Quirinal, and the astonished Gauls to have done him no harm: a tradition which is by no means improbable.

The provisions in the Capitol were about to be exhausted; but the Gauls, being themselves troubled by contagious diseases, were tired of their conquests, and not inclined to settle so far from their homes. They tried yet once more to storm the Capitol, having observed, how the messenger had gone up and come down again near the Porta Carmentalis below Araceli, which is in the direction of the Venetian palace. Now the old rock is covered with rubbish, and is therefore no more to be recognised. The besieged never dreamed of an attack being made from that side. There may have been masonry there which had become ruinous; in southern countries there is always some vegetation springing up about walls (Virgil says, *Galli per dumos aderant*, Livy also speaks of *virgulta*); and if this were not attended to, it might easily be climbed. They had already gained fast

footing, as there was no wall on the top (it was not the Tarpeian rock which they tried to climb, but the *Arx*), when Manlius, who lived there, roused by the cackling of the geese, hastened to the spot, and hurled the assailants down. This made the Gauls still more ready to treat: they were besides called back by an irruption of the Alpine peoples into Lombardy where they had their wives and children. They were willing to withdraw on payment of a ransom of one thousand pounds of gold, about fifty thousand Frederics d'or (for, the Roman pound is very light, weighing nearly twenty-three half-ounces of Cologne), which, surely, were to be taken from the treasure on the Capitol. This was a vast sum for that age: in Theodosius' time, there were indeed people in Rome who are said to have had a revenue of several hundred weight of gold; one even, who had as much as ten tons. That that sum was paid the Gauls, and that in consideration of it they left Rome, is historical truth; that in weighing it they practised a scornful fraud, is very possible. The *væ victis* also may be true: we Germans have also lived to see the same thing previous to the year 1813. Not true, however, is the rest of Livy's story, that while they were disputing about it, Camillus made his appearance with an army, and forbade the fulfilment of the bargain, as the military tribune had no right to agree to it; and moreover, that he then drove the Gauls out of the city, and afterwards in a twofold battle so discomfited them, that not a messenger escaped. Beaufort, inspired by Gallic patriotism, has most ably shown the utter groundlessness of this tale. It is quite childish to try and hide the calamities of one's ancestors by means of fables. Livy did not invent that story; he merely copied it from others. At the same time, he would not let his own better conviction get the upperhand here, as it is his way to look upon the whole of the earlier history with a kind of irony: he has half a mind to believe, and yet for all that, he has no belief in it. Another account, that in Diodorus, is that the Gauls besieged a town then in alliance with the Romans (the name of which, indeed, must have been wrongly written, and is said to have probably been Vulsinii); and that the Romans delivered it, and took back again from the Gauls the gold which had been paid them: Livy, however, knows nothing of this siege of Vulsinii. A third account, in Strabo, and also in Diodorus, does not allow the honour to belong to the Romans; but will have it that the Cærites pursued the Gauls, and attacked and cut them to pieces in the country of the Sabines. Just in the same way did the Greeks endeavour to disguise the fact that the Gauls took the money from the treasury of Delphi, and that in quite an

historical age (Ol. CXX.). The true explanation is surely the one which is found in Polybius, that the Gauls were induced by the rising of the people of the Alps to withdraw from Rome, and that Rome on the other hand had suffered its full meed of humiliation. What booty the enemy had taken, was spent; conquests they had made none, they had merely pillaged and devastated everything; and now they had been lying there for eight months, and there was nothing more which they could gain but the Capitol, and that very money which they also thus obtained. From Polybius' version, many discrepant accounts may be sifted and reconciled, Livy's romantic embellishments included. As a proof of the Gauls having been really beaten, it was asserted in Rome, that the money taken from them and buried in the Capitol, amounted to twice as much as the city's ransom. Yet it is much more likely that the Romans paid their ransom from the treasure of the Capitoline Jupiter, and of other temples, and that this was afterwards made up double by a tax; and this tallies with a notice in the history of Manlius, that a rate was levied for the payment of the Gallic ransom. This, however, could not indeed have been done whilst the Romans were scattered every where during the siege; but afterwards, to replace the gold which had been taken away. Now, if such a mass of gold was hoarded at the Capitol, it is evident that people might have thought that they saw in it a proof that the Gauls had not kept the treasure.

As late as in Cæsar's times, they used to show in Rome the spot near the Carinæ where the Gauls piled up and burnt their dead. It was called *busta Gallica*, which during the middle ages was corrupted into *Portogallo*; hence the church which now stands there, is properly called *S. Andreas in bustis Gallicis*, or, according to later Latinity, *in busta Gallica*. The Gauls marched off with the gold, and the Romans were reduced to pay it, being so pinched with hunger, that they stripped off the leather from their shields, and cooked it. Annihilated the Gauls certainly were not. We find in Justin the remarkable statement that the self-same Gauls who had destroyed Rome, marched into Apulia, and from thence offered the elder Dionysius their aid for money. From this important account it is manifest, that at all events they marched through the whole of Italy, and then perhaps returned along the Adriatic. Their devastations extended far into Italy; and it is an undoubted fact, that the Æquians received from them their deathblow, as from henceforth there is no more mention of any hostilities of the Æquians against Rome: on the other hand, Præneste, which must formerly have been

subdued by the Æquians, appears as an independent city. During the passage therefore of the Gauls, the Æquians who inhabited small towns which might easily be destroyed, must no doubt have been crushed.

RESTORATION OF THE CITY. MANLICUS CAPITOLINUS. THE LICINIAN ROGATIONS. CONFUSION IN THE CHRONOLOGY. ESTABLISHMENT OF THE PRÆTOR URBANUS AND OF THE ÆDILIS CURULIS.

The most striking feature in Livy's history, is unquestionably the view which he takes of the consequences of the Gallic calamity. He must have pictured it to himself as a passing storm, by which Rome was bent, but not broken: the army, according to his account, was only scattered; the Romans come forth just as they were before, as if all had been nothing but an evil dream, and the only thing to be done was the rebuilding of the town. Yet the havoc was surely immense throughout the Roman territory. During eight months, the barbarians had raged in that country, destroying every trace of tillage, every farmhouse, all the temples and all the public buildings; they had purposely pulled down the walls of the city, and carried off a great number of the inhabitants into slavery: the rest were in great misery at Veii. Camillus, as dictator, is called a second Romulus; and to him the glory is due of not having yielded to despair in this crisis. Since the Volscian war, Rome had been powerful enough no longer to grant to her former allies, who at that time were weak, the same rights as before; for nearly seventy years they had been all but her subjects, although she made a very mild use of her superiority. But all these nations, which had suffered less than Rome, now no more acknowledged her supremacy; and this is the *defectio Latinorum qui per centum fere annos nunquam ambigua fide in amicitia populi Romani fuerant*, of which Livy speaks. Nothing is more natural than that they should make themselves independent. It would be very bad indeed, if unnatural arrangements were of irrefragable force, so that the natural state of things could not be established at last. That it must have come to this; that shortly before the Gallic troubles the Romans had in reality the ascendancy, is quite a different question. This had certainly been the case; just as, under similar circumstances, among the seven Dutch

provinces, equal as they all were in law, Holland in fact took the lead, holding that position which belonged to it in right of its wealth and population. In the same way, the Romans might be considered as the heads of the league; but only so long as Rome was in possession of her power.

There is an old tradition, that in the famine the aged men were killed, to spare them the pain of dying of hunger, and that the little which was left, might be reserved for those who were to propagate the republic. It was almost as sad as at the destruction of Magdeburg, when the number of inhabitants was reduced from 30,000 to 3,000. Rome, even when restored, could for several generations have been only a shadow of what it was before its overthrow. It is natural, that people in their despondency should have lost all courage, and that the tribunes insisted on abandoning Rome, and removing to Veii. To have withstood this faint-heartedness, was the merit of Camillus, who in this was upheld by his high aristocratical feeling. It certainly required enlarged views, to make the right decision:—the gods had forsaken Veii; Juno had loudly said that she would not reside at Veii, but at Rome. The discussions on this subject in Livy, are full of his peculiar beauties. I will not assert that Rome could not have taken root again in Veii also; but the chances are that it would have quite gone to ruin: the Latins would have taken for themselves the left bank of the Tiber, and perhaps have placed a Volscian or a Latin colony on the seven hills. Rome's site on a stream between three peoples, was marked out by heaven with a view to her greatness. The advantages of it are evident: in Veii, she would perhaps have become Etruscan. The senate now behaved like a stern father. After having come to the resolution, which for the poor man was a very hard one, of restoring Rome, it caused Veii to be destroyed for the purpose of rebuilding the city. It is said to have granted bricks, stones, and other building materials, all of which were to be found at Veii. Mean huts were built, and it was only by degrees that better houses were restored. The senate allowed every one to build as they liked; for according to Roman principles, all private property had, owing to the late confusion, fallen in to the state, which now gave its sanction for a new occupation. The walls were raised again, and the dangerous place at the Capitol was faced with hewn stone (*saxo quadrato*). Under Augustus only was Veii restored as a military colony; but yet as a little Veii; like Gabii, Lavici, &c.

With regard to the rate of interest, and the law of usury at Rome, there were no clear views whatever at the beginning of this century, the antiquities of the Roman civil law being utterly neglected at that time. I make an exception, however, in favour of Schulting. Heineccius is full of talent and learning; but he did not know which way to take. Among others, Hugo, the father of scientific jurisprudence, has handled that subject. He had a fine taste for these things; but he was wanting in the requisite knowledge: Savigny, as well as myself, has been long convinced of the worthlessness of what he has written concerning interest. Savigny did not himself enter into this research; I was led to it in my inquiries. Schrader has confirmed my opinion, and it is now generally received.^[122] The Roman loans were contracted for years of ten months, and one ounce in the As was given as interest; that is to say, a twelfth of the capital, which is equivalent to ten per cent. in a year of twelve months. Hugo thought that a twelfth was given monthly; which proves that he had no insight into the state of things, so as to tell what was possible, and what was not. Jurisprudence in general has two sides, theory and practice, with regard to the latter of which we, in Germany, are quite in a wrong track: they manage that better in other countries. The Roman system of debts and obligations in later days is entirely borrowed from the Greek law; the calculation of the *syngraphæ* and the *centesimæ*, as it was in common use in Cicero's time, arose out of the relations in the Greek towns of Athens, Rhodes, and Alexandria. In Tacitus, it is stated, that the *foenus unciarium* was introduced by the laws of the Twelve Tables; in Livy, that it was adopted in the beginning of the fifth century. People affected to find in this an irreconcilable contradiction, and once I also thought myself that Tacitus was mistaken: now I am of a different opinion. We are to make a distinction here. It does not by any means follow from Livy, that the *foenus unciarium* was not mentioned already in the Twelve Tables. Until the city was destroyed by the Gauls, there were no complaints of usury; but afterwards, when every one had to build, the law against usury was in all likelihood abrogated, in order that people might be enabled, at all events, to get money. This gave rise to that awful state of debt which followed; and forty years afterwards the old usury law was again enacted. Thus it may also be quite true what Livy says, that at one time it was positively forbidden to take any interest. In the year 1807, friends of mine, contrary to my earnest representations, carried the abrogation of the usury laws, a measure which had unhappy results. The

money, afterwards, could not be paid: they then *faciebant versuram*; that is to say, they added the interest to the principal.

It is wonderful, where, at that time, men were to be found, who could lend money. People confined themselves, it is true, to what was most strictly necessary, on which account the senate gave permission to build as every one pleased. Yet, however much the state might give to lighten the burthen, the restoration must still have been infinitely expensive indeed. I believe that the means for it were furnished by the clients. The grand resolution to restore Rome, which had been formed in the consciousness of its imperishability, must have commanded respect, and have led to a belief in the stability of the state; and thus holders of capital from far and near might have been tempted to betake themselves to a place, where one could get such high interest: the patricians could hardly have saved all this immense capital. Now if a Syracusan, Neapolitan, &c., came with ready money to Rome, he could not himself put it out to interest; so he became the client of some patrician, who concluded the *nexum* for him. And thus, until the Licinian laws, the condition of the commonalty was exceedingly wretched; and it was unfair that the order which had already such advantages in the state, should also receive usurious interests.

If Rome alone had been destroyed, which the reader of Livy, unless he take a more elevated point of view, must needs believe, it would be quite incomprehensible to us, how it could have kept the neighbouring people at bay, when they had become aware of the opportunity of shaking off the yoke. But the inhabitants of all the country round had indeed likewise to bear their full share of the calamity; and even when they succeeded in defending their towns, many of them may have bought themselves off from being pillaged, at the cost of a heavy war tax. This state of things reminds us of the times immediately after the thirty years' war, when in the same way the wars soon break out anew. We see clearly that the Etruscans now rose against the Romans, and that this turned out much to the advantage of the latter. Sutrium and Nepete were now the border-towns of Rome towards Etruria,—all the rest, even Falerii also, were lost,—and these towns, moreover, were sometimes besieged, even taken; and when the Romans had reconquered them, they changed them into colonies. The war was principally with the people of Tarquinii and Vulsinii. That the Etruscans tried to wrest back from the Romans their conquests, shows that the

Etruscan league was also now dissolved; the northern Etruscans fight against the Gauls, whilst those in the south attack Rome. These Etruscan wars, however, are in the narratives of the historians as full of unauthenticated statements as all the former ones. We find every where throughout that age a breaking up of the old alliances, together with the want of combining into larger states. This was also the case in Greece. Latium was then in a state of political dissolution: one may say that it was no more kept together by any compact bond. Antium, Velitræ and Circeii, the colonists of which were either driven out, or made common cause with the Latins and Volscians, were severed from Rome; so were also the Hernicans; scarcely did the nearest places, like Tusculum and Lanuvium, still hold to Rome. An important part is now played by Præneste. The people of that town and those of Tibur seem to have been allies at that time; Præneste might now perhaps have been the capital of part of the Æquians. The boundary between the Æquians and Romans had ceased to be there: it was now on the other side of Præneste. The respective positions of the different states in the ancient world changed with extraordinary quickness: this is most strikingly seen in Arcadia; the three chief Arcadian peoples are at last quite forgotten. As on the dissolution of Latium, part of the Latins, together with Velitræ and Antium, rose in hostility against Rome; so did Præneste likewise, with part of the Æquians. The time of Rome's supremacy was now past; Veii only was a permanent gain; and they now received the inhabitants of Etruscan places, which had already before enjoyed the right of citizenship without *suffragium*, as full citizens, forming four tribes of them; so that there were again twenty-five tribes. Livy says by mistake, that the new tribes were composed of persons who in the former wars had gone over to Rome. This is impossible, as the Romans always formed new tribes of a much greater number of individual voters than there were in the old ones; for on this principle only they could really unite with them, that while these had equal rights as individuals, their influence on the votes should be limited. I, on the contrary, am convinced that all these tribes had formerly been sovereign places and districts: the districts of Veii, Capena, Vulsinii, &c., were no doubt mere spectators in the wars of the towns which ruled them; and they yielded without resistance to the Romans, as soon as these made their appearance, because they were equally well or badly off under any state. Many also were on a footing of neutrality; of which, during the war of Spain and the Netherlands, we find a similar

example in the towns of Brabant, which paid taxes to both the belligerent parties in order to remain unmolested. Owing to the destruction of the towns, they became the subjects of Rome. Now it was certainly these to whom Rome gave the full citizenship, and thus filled up its lessened numbers. The conduct of the Etruscan towns in this change was very likely quite passive. Rome had the wisdom to give its new subjects the full plebeian right of citizenship; it was as in Jerusalem, when Ezra and Nehemiah, after the return from Babylon, rebuilt the city.

Of the weakened state of Rome, there is a tradition in Plutarch and Macrobius, which, indeed, such as it is, seems not to be historical. While the city was still without walls, armies made their appearance from quite powerless places in the neighbourhood, like Fidenæ and Ficulea; so that the Romans had to give hostages. But a trick was played when this was done; and instead of maidens of high birth, they sent servant-girls, whose leader, a Greek bondmaid of the name of Philotis, like another Judith, when the troops, in the celebration of their unwonted good luck had got drunk, gave a signal with a torch to the Romans, whereupon these destroyed the enemy. This incident was dated in Quinctilis, consequently four months after the evacuation of the town. This story is at all events a proof how weak Rome was supposed to have become.

On the new country district, which was not inconsiderable, there again arose a renewal of Rome's might. At the end of this period, the disorganised state of things on the left bank is the same as before: on the right bank, every thing belonged to Rome except Sutrium and Nepete, which are border fastnesses, and beyond which the *silva Ciminia* grew into a wilderness. Whenever an *ager publicus* is now spoken of, it lies almost exclusively in these parts. It was probably only with the nearest Latin towns, Tusculum, Lanuvium, Aricia, that Rome was in relations of isopolity. These events cannot here be told in a connected narrative; the details would not serve any purpose whatever: it is only with those which are important in themselves, and in their consequences, that we have to do. It was otherwise with Livy, who wrote for his countrymen.

Of much greater consequence are the events which happened at home. Avarice and usury are among the besetting sins of the Romans; which in proportion as they found a wider range, became the more oppressive. A few years after the evacuation of the city, when a distress was reigning which

Livy completely disguises from us, and perhaps from himself, M. Manlius came forward to befriend the sufferers. The cognomen of Capitolinus was not given him for having saved the Capitol, but because he lived there; as T. Manlius, most likely his father, already twenty years before, occurs with that name in the Fasti. The deliverance of the Capitol was not the only brilliant achievement of Manlius: he was acknowledged as one of the most distinguished heroes in war, and the fact of his not being met with at all in the Fasti, throws a light upon the position in which he stood. It is generally told of him, that he entertained *consilia regni affectandi*; but Livy says, that there were no proofs to be found in the annals of any such intention, beyond meetings held in his house, and his bounty to the *Plebes*. It may have been, that he bore a grudge against those who were in power, because he had received no reward for his deeds: it may be also, that his great soul was stirred within him by a vast ambition, and that he yielded to the desire of taking the crown for his reward. Whatever he did, his were actions which the purest and most benevolent mind might have done as well. Every day, citizens were assigned to creditors as bondmen for debt; Manlius paid for them what they owed, especially for old soldiers; dissolved their *nexum*, and restored them to their families by the sacrifice of the whole of his fortune. At the same time, he is said to have charged the patricians with having embezzled the money which had been retaken from the Gauls. The suspicion must have arisen from the tax having been laid on to replace the gold which had been paid to the Gauls; as there was harshness and fanaticism in calling it in under such circumstances, although it was destined for the gods. Thus Manlius acquired an enthusiastic popularity; and therefore the ruling order attacked him in the most violent manner. Instead of taking the hint, and relieving the distress, the patricians stood obstinately upon their right, and thus a race was run between benevolence, or benevolent ambition, and the most headstrong oligarchy; just as in the year 1822 was the case in Ireland, where the peasantry, when animals were bled, would fight for the blood that they might appease their hunger, and yet the landlords would not for all that abate from the strict letter of their claims. Thus it was natural, that there should be a feeling among many, that any change would be better than such a government; and that Manlius, as a usurper, might be useful, like many of the Greek tyrants. The Roman government was so little inclined to recede in its course, that it caused Manlius to be arrested. Yet this was to no purpose: a general sympathy

manifested itself in behalf of a man who until now had not offended in any thing; the *Plebes* went into mourning, and flocked in crowds to the gates of his dungeon. And thus the government was obliged to release him. Now, one might have thought, he would be sure to take some step which could not be justified. Manlius had a difficult part to play. Men often begin under such circumstances with the purest intentions, and are drawn in by degrees to go dreadfully astray. I believe that Manlius did not set out with the design of making himself the tyrant of his country; but when his own kindred now decried him, and gave his good motives an evil interpretation, his actions were thus as it were poisoned in the bud, and thence might grow up the resolution of seizing upon despotic power. And yet there is no proof to be found of it. The tumult increased. Manlius demanded in the name of the people, that part of the common land should be sold, and the debts be paid from the proceeds; a reasonable request as the state had a right of property in the demesne. But the oligarchs wanted to keep it in their occupation, and they exulted at the distress of the plebeians. Embarrassment had made the dependence of the *Plebes* very great; so long as the *Præfectus urbi* had the power of addicting, every one was in danger of losing his liberty. Manlius now became more proud and self-assured in consequence of his victory; dangerous thoughts might daily have been more familiar to him. He was accused: two tribunes declared for the senate; Camillus, according to Zonaras, was expressly appointed dictator. Overawed by the dictatorship, he was now brought before the assembly of the centuries; yet they did not venture to send him again into prison. Having been liberated on bail, he surrendered and defended himself; which gives us the strongest presumption of his innocence, as he might have withdrawn himself. He pleaded his great military achievements, and his good and kindly deeds, as vouchers for his motives; he brought forward the spoils of thirty slain enemies, and forty marks of honour gained in war; he appealed to the citizens whom he had saved, even to the Master of the horse himself; he pointed to the Capitol, which is seen from the Campus Martius; and the centuries acquitted him. But the oligarchy was not satisfied with this. The senate prosecuted him before the curies (*concilium populi*), which were to judge him as a patrician in the Peteline grove. Livy, and all those who followed in his wake, misunderstood this. As the *concilium populi* occurs but seldom, he thought of a tribunician impeachment; yet he cannot deny that the *duumviri*, that is to say, the patrician public accusers, instituted the

proceedings. The assembly was held in the Peteline grove; not because one could not thence see the Capitol, but most likely because it was not wished to pronounce a sentence of death within the town, and yet one was obliged to assemble on a sacred spot. Manlius was condemned, and thrown headlong from the Tarpeian rock. This brought on an awful calm which lasted for several years, just as after the death of Cassius; but the cause of the patricians, as was always the case, had to suffer for it, [\[123\]](#) although the full weight of vengeance did not fall upon them. For until C. Gracchus called the murderers of his brother to account, those who were in power were not personally made to answer for such outrages; and it was in truth to this very forbearance that Rome owed the preservation of her liberty. From Manlius' blood sprang those, who did not so much avenge him, as carry out his ideas. Licinius and Sextius were perhaps, or rather, in all likelihood, his friends; his shameful death animated them to brave every danger, that they might accomplish their great work. Encouraged by his example, they did this without bloodshed.

It was about ten or eleven years after the destruction of the city, that two tribunes of the people, C. Licinius and L. Sextius, put themselves at the head of their order, with the resolution of at last placing the two orders on a right footing. The patricians were not to be done away with as a distinct class; but the plebeians were to exist by their side with equal rights, and the state, in the true spirit of its original idea, was to become a double one, being formed of two perfectly equal communities. The military tribunes were now again almost always patricians only, which is unaccountable. Something must be wanting here; unfortunately there is nothing to be found about this period in the *excerpta de Sententiis* from Dio Cassius. The patricians were content with the military tribunate; they wanted no consuls. There is a silly story current concerning the motives of Licinius in thus putting himself forward; so that it was an easy task for Beaufort to show that it was mere fiction. M. Fabius Ambustus was said to have had two daughters, one of them married to the patrician Sulpicius, the other to C. Licinius. Sulpicius was a military tribune, and had come home with the lictors. The younger sister, who was startled at the noise, was laughed at by the elder one, as if the noise must indeed have been an unwonted one to her, the wife of a man who could never attain to this honour. Beaufort has justly remarked that this honour could not possibly have been unknown to a child of M. Fabius Ambustus; and it is quite as unhistorical, that the younger

Fabia begged her father and her husband to help her to get it likewise. Plebeians could indeed be military tribunes just as well as patricians, and M. Fabius Ambustus besides is afterwards one of those who join in violating the Licinian laws. The whole is a wretched story, such as we meet with in memoirs, trumped up by a party who are annoyed at the success of their opponents' designs. The motives of men are often mean at bottom; yet one ought not to make the rule general, and to bury everything great beneath the littleness of contemptible circumstances. Livy has merely borrowed the tale from others: in him it is the thoughtlessness of haste, and the want of entering into the spirit and relations of the times; he wrote history, not to give an account of facts, but for the sake of the narrative. He had a generous and noble soul; and although his patrician predilections sometimes beguile him, it is still quite true what he says in the preface, that he felt impelled to seek for the great in the olden times.

Whatever may have been the occasion, it was natural enough to think of remedying the existing abuses by a radical reform. Theirs embraced two objects; the alleviation of the temporary distress was the third. The first law which they proposed, was that no military tribunes should be elected any more, but consuls, one of whom must of necessity be a plebeian. The patricians, small as their numbers were, had still the upperhand in the government; and they tried for along time to evade the law, until it was made so stringent, that all their artifices became impossible. It was on account of these tricks, that the law had to be laid down in such absolute terms. It would not do to say, that the most worthy from both orders were to be elected, as the curies had still the confirmation, and could refuse it to a plebeian; and therefore the election of a plebeian was to be made an indispensable point. The division was of importance for the patricians themselves; as otherwise, when the plebeians became powerful in the state, they would have elected two men of their own order. Only two hundred years after, the balance turned in favour of the plebeians, who were then aware that the patricians had quite dwindled, the patrician nobles being to the plebeian ones in the ratio of 1 to 30. The second law established the principle, that plebeians as well as patricians might have a share in the possession of the *ager publicus*; and that with regard to the past, part of it should be assigned to them as property, according to the *lex Cassia*, while with regard to the future, one part of it should be granted to the patricians in possession, and one part be allotted to the plebeians as property. No

individual was to hold more than five hundred *jugera*; whatever now exceeded this amount, was to be divided among the *Plebes* in lots of seven *jugera*. The number of cattle also, which might be allowed the use of the common pastures, in summer on the hills, and in winter in the meadows near the city, was to be according to a certain proportion. The temporary measure was contained in the third law proposed. Of the debts of the plebeians, the interest, which had been added to the principal, was to be cancelled; and the rest was to be paid, no doubt without interest, in three instalments, at periods of a year or ten months each. This was indeed a general bankruptcy; but it was the only feasible plan, and the creditors had previously gained enough in all conscience by their usury. That was done for individuals, which Sully, after the dismal times of the *Ligue*, did for the state, when he brought down the debt by striking off the exorbitant interest already paid, and leaving the remaining capital to continue at the usual rate of interest. Owing to this strong measure, France was raised to a high state of prosperity under Louis XIII.; whilst before that, the marrow of the nation had only served to fatten the farmers of the revenue and the usurers. In Rome also, it was without doubt merely the worst people among the citizens who suffered under it: a more gentle remedy would indeed have been very desirable; but there was none to be found, and help could not be withheld.

Against these rogations, the patricians not only now displayed the greatest determination themselves not to yield, but they also exerted all their influence in the assemblies for elections; so that for ten whole years the tribunes, who were re-elected every year, met with opposition within their own college. Beyond this, the affair is shrouded in great darkness; on which side the resistance arose, and wherein the difficulty lay, we cannot tell for certain. Whether the tribunes themselves made opposition; or whether the patricians managed to call forth a spirit of indifference and refractoriness within the commonalty itself; or whether the laws, as rogations, were adopted by the centuries; must all be left undecided: probably it was different in different times.

Our authors state that Licinius and Sextius had so stoutly withstood the election of new magistrates, that for five, or according to others, for six years, no curule magistrates were chosen. This is one of those stories which at first sight seem as if they could not have been invented. We also find in

all the Fasti five years, in which neither consuls nor military tribunes are given, but only Licinius and Sextius as *tribuni plebis*: their colleagues, who surely ought likewise to have been mentioned, we also miss. Thus it is in Junius Gracchanus besides, from whom it passed to Joannes Lydus. Nevertheless it is false. Undoubtedly the tribunes stopped for some length of time the elections of the curule magistrates, so that the Fasti were put out by it: but what a state of confusion there would have been if this had happened five years running! *Interreges* were sufficient in times of peace only, as no one could have led an army into the field; and were the neighbours quiet all the while? The account arose, in the first place, from the positive information that the tribunes had really during the whole struggle hindered the elections, and had only given way in extreme cases, when a war made the appointment of a curule magistrate indispensable: the vacancies therefore lasted always for a short period only, during the delay of the elections. In the next place, the ancients thought,^[124] that Rome had been taken by the Gauls under the Archon Pyrgion Ol. 98, 1. They read this in Timæus, and took it for granted, without considering that he was by no means so sure of this, as would seem from his positive way of speaking. Fifty Olympiads later, Ol. 148, 1. (corresponding with 565 according to Cato), Fabius wrote. He knew perfectly well how they now reckoned in Greece, and he knew likewise that Rome had been taken by the Gauls two hundred years before; and so he reckoned backwards. But the Fasti did not tally: six or seven years were wanting between the taking of Rome and the Licinian rogations, some of which were made up by taking into the account the substitution of *interreges* instead of consuls. This went some way; but it could not fill up the deficiency. After the Gallic invasion, the consuls were elected *Kalendis Quinctil.*; at that time perhaps *Kal.* or *Id. Aug.*, as on those two days of the month only were elections held. And thus the yearly reckoning was disturbed. Hence it follows that these statements are as false as they are incongruous: the Gallic conquest must be placed considerably later, by at least four years, than it has been. Now the first who composed our accounts, were by no means of opinion that the tribunes had been the only magistracy for five years; but they compared the Greek date with the Roman statements, and yet they did not see their way through the Fasti. Owing to this, we have the interpolated dictatorships of entire years in the Fasti of Varro, which are likewise false, and only grounded on the derangement of the consular year. They then went beyond the restored

consulship of 388; and putting in this place that impossible anarchy of five or six years, they foisted in the tribunes of the people, to whom, however, instead of ten years, there were much too many given. The forger found in the *Fasti tribuni*, without any further mention of the curule magistrates; and made out from this the opposition against the elections, which in Livy has been extended to so great a length.

During these proceedings of the tribunes, there surely were always in Rome military tribunes, almost without any exception patricians, upon whom the elections were forced by their presidents; in one instance, however, half of them were plebeians. The exasperation increased from day to day: it went so far, that the outbreak of a civil war was actually to be dreaded. Under the dictator Manlius, the tribunes first succeeded in having half of the decemvirs who had the charge of the Sibylline books, chosen from the plebeians, in order to prevent false assertions concerning the *prodigia* on the part of the patricians. Another instance of progress was this, that the dictator P. Manlius raised a clansman of the tribune Licinius to the dignity of *Magister equitum*, being indeed authorized to do so by ancient usage. For in fact the plebeians had also knights of their own, and Brutus, even as early as in his time, had been *tribunus celerum*. When there was now no more opposition made by any tribune, and the tribes had adopted the rogations of Licinius, matters were brought to a crisis; as the senate, which was almost entirely patrician, refused to give its sanction. The commonalty showed itself much less obstinately bent upon carrying the law for the election of consuls, which was all that the plebeian nobles cared about, than upon having the others passed. The policy of the senate, of trying to compromise the matter by temporising concessions, was brought here into play again. But Dio Cassius informs us, that the tribunes of the people, in order to carry all the laws together at once, had consolidated them into one; and that Licinius had said, that if they did not choose to eat, they should not drink either.

In every free state, there are in families political views and principles which are handed down like heirlooms. Of this there are many examples in Roman history: people are born members of a party, as well as of a church. The first tribune of the people was a Licinius; a Licinius was the first who took the lead of the people in the insurrection on the Sacred Mount; and a Licinius it was, who 420 years later, after Sylla's rule, again asserted the

rights of the tribunate: the Licinii ever continued to be the first plebeian house. It was the same with the Publilii and the Sicinii. If this seems to us a strange narrowing of individual freedom, thus to cleave to the principles of one's forefathers, as if there were an outward obligation for doing so, we shall after some experience find it to be the true groundwork on which the stability and the strength of a nation rest. In the same manner, there are certain marked political features ever recurring in many English families.

Licinius therefore combined the different laws in one, that they might all stand or fall together. Nothing is more praiseworthy in Roman history, than that a community, which was far superior to its antagonists in might as well as in numbers, bore with their wiles for a succession of years with the greatest forbearance and self-command, and without committing one illegal action. The aged Camillus, who was past eighty, was now named dictator. In him the old party spirit with all the old feelings, was still alive: called upon by his order, he believed that he could make things possible, which were impossible. To withstand a dictator was more than the plebeians would have dared; but with consummate wisdom they formed the resolution, should Camillus take upon himself as dictator to do anything against them contrary to law, to prosecute him after the expiration of his time of office for a fine of 500,000 Asses. This announcement paralysed Camillus: he could effect no more than Cincinnatus had been able to do ninety years before. He himself advised compliance, and made a vow to build a temple to *Concordia*, if he should succeed in reconciling the two orders. This temple was consecrated, although not before the death of that great man. For the Romans of the later ages, it was too mean in its ancient glory; and under Augustus already it was replaced by another, under Trajan, by a still more splendid one. Until 1817, it was sought for in a wrong place: it stood in a corner, under the *Salita* which leads from the arch of Septimius Severus to the Capitol. Several votive tablets were found there; it is behind the church of St. Servius, which Pope Clement VII. had built in the place of an older one. The columns, which were of later date, were of Phrygian marble, and of most elegant workmanship. Trajan was fond of transporting himself into the past. He coined Roman *denarii*, bearing on one side his head, and on the other the stamp of some extinct family of distinction (for, in former times the right of coining was no prerogative); of these *nummi restituti* there is a great number in existence. In the same spirit, Trajan was pleased with the thought of restoring the ancient temple of *Concordia*: the spot where the

golden age of Rome had begun, to him was hallowed; as it also was to his friends Pliny and Tacitus. This temple is a classical spot in Rome: it is the symbol of the constitution, based on freedom and equality.

The reconciliation was now brought about in the following manner. There were to be elected one plebeian and one patrician consul; yet the old consulship was not to be restored as it was before the time of the decemvirs, but there was to be a permanent *præfectus urbi* as a new curule magistrate, under the name of a *prætor urbanus*. He was not, however, so called merely in contradistinction to the *prætor peregrinus*, a point in which I was formerly, like so many others, mistaken. This *præfectura urbis* had existed already before the institution of the decemvirs, and was to have served in it a different purpose. The patricians had very strong reasons not to allow it now to pass into the hands of the plebeians; because the whole of what was possessed in the *ager publicus* depended on it. If, for instance, a father left by will four hundred *jugera* to a son who had four hundred already, a conscientious prætor might take from him the three hundred by which the legal standard was exceeded; but if it was the system of the prætor to keep down the law, he adjudged the possession, without taking any cognizance of the objection that the heir was already possessed *ultra modum*. Besides which, the right was still in the possession of the *pontifices*; and therefore, the patricians, who alone had the appointment of the pontiffs, might say, that they alone were qualified for the prætorship. Another function of the prætor, and as important a one, was that of nominating the *judex*. In questions of *meum* and *tuum*, the *centumviri* were the judges, and they were elected by the tribes; but criminal causes had to be tried before the prætor. Wherever a *delictum manifestum* was in the case, the culprit was dragged *obtorto collo* before the tribunal, and the prætor at once decided on the amount of punishment. But if the matter were disputed, the prætor might delegate a *judex*, and direct him to decide in such or such a manner, according to the issue of the trial. He no doubt had also the right of giving judgment himself; but he could not possibly master alone all the cases that occurred. Now these judges were then, and long afterwards, elected from the senate; and for this reason it was of immense importance for the patricians to keep the prætorship for themselves. And hence we may understand the grand character of the restoration by the Gracchi. For thirty-two years, the patricians retained the prætorship for the members of their own order: but when a great part of the *ager publicus* had passed into the

hands of the plebeians, and the prætor's functions had likewise changed in consequence, as he had to command armies, and often to act as consul, his office necessarily fell within the reach of the plebeians also. The prætor besides was termed *collega consulum*; and as the two consuls had together twelve lictors, he had six of them.

It is said moreover that the curule ædiles were now chosen to preside over the public games. The plebeian ædiles refused, we are told, to give expensive games in celebration of the peace; on which some patrician youths took the business upon themselves, and to honour them the new office was created. I have already shown in the first edition of my Roman history, that this opinion is absurd. They were the same as what the old *quæstores parricidii* had been: they had to do with accusations before the tribunals of the people, with state prosecutions, for instance, for poisoning, sorcery, and such like. This is something quite different from the jurisdiction of the prætors; if a distinct punishment, fixed by law, was not named in the indictment, they adjudged the penalty in proportion to the crime. After the lapse of a year, the plebeians insisted on having a share in this magistracy also; and for a hundred and thirty years, the ædiles were always elected by turns, one year, two patricians, and the other, two plebeians. To the *ludi Romani* a fourth day was now added for the plebeians: formerly they had games of their own. From the statements which Dionysius, at the end of the seventh book, gives from Fabius concerning the *ludi Romani*, it is manifest, that the state, until then, gave a great sum yearly to defray the expense; and was compelled only by the disastrous turn of affairs in the first Punic war, to saddle individual citizens with the cost. The *ludi* were now given at the charge of private persons; and thus the office of the curule ædiles became a *liturgy* in the Greek acceptance of the word. The ædiles had access to all the places of honour; but they had on the other hand to pay out of their own pocket all the expenses of the games. This was also continued afterwards, although the state had in the meanwhile again acquired great wealth. Even trierarchies came into use at that time, just as at Athens.

That the plebeian ædiles were a general Latin magistracy, is evident from the mention of them in Latin towns: whether the curule ædiles, as such a local magistracy, had already existed before among the patricians; or whether they were newly created, cannot now be made out. People have

hitherto pictured to themselves these curule ædiles as a police authority. This indeed they also partly were; and in this respect, they had to compete with those of the plebeians. Yet their proper duty was not confined to the supervision of the corn trade, buildings, and so forth, in which we make no distinction between the patrician and plebeian ones; but it consisted also in conducting, as public accusers, the trials before the people: of this I have pointed out several examples. I suppose that the *triumviri capitales* were an offshoot of the ædilician power. The ædiles had no lictors, no *imperium*. How happened it then that these new magistrates were nominated in the *comitia tributa*? Very likely they were at first to be chosen by the *comitia tributa* and *curiata* alternately, and to be acknowledged by the others; but when the *lex Mænia* made the confirmation by the curies a mere form, this election also was wholly transferred to the tribes. The petty magistracies, *triumviri monetales*, *quatuorviri*, and others, were first established after the *leges Hortensia et Mænia*, when the curies no longer assembled, and the election was to all intents and purposes made over to the tribes. As for the prætor, it cannot be doubted but that he was appointed, like the consuls, by the centuries. The expression is, *iisdem auspiciis*; but the auspices were taken for the centuries and curies only. Thus the settled points help us on to the explanation of all that is enigmatical in the constitution.

INVASION OF THE SENNONIAN GAULS. LEAGUE WITH THE LATINS AND HERNICANS. CHANGES IN THE DOMESTIC AFFAIRS OF ROME.

According to Joannes Lydus, that is to say, according to Gracchanus, at the end of the commotions, the government remained for some time under the sway of the tribunes. This is highly probable. The fact that Varro in his memoir to Pompeius, *de Senatu habendo*, mentions the *triumviri rei publicæ constituendæ* among those who had the right of calling the senate together, is very strong evidence for it. It may also have been with reference to that earlier magistracy, that the later triumvirs called themselves by the very same name. Nor is it at all unlikely that the first military tribunes were likewise designated in the old accounts as *triumviri rei publicæ constituendæ*.

When the Licinian laws had been carried, and the first plebeian consul elected, every thing was nearly on the point of being undone again; inasmuch as the patricians refused their confirmation to the plebeian consul. After a great deal of trouble, matters were made up: the patricians yielded, and acknowledged the plebeian consul L. Sextius. Thus was brought to a conclusion this moderate, legal, and necessary revolution, of which the stages were somewhat like the normal changes in the bodily constitution of one who is growing up out of childhood into early manhood. That the peace was a hollow one, is not to be wondered at: the patricians yielded to necessity; but with the fixed intention to get back by force, at the very first opportunity, all that they had lost. About twelve years later, 339 according to Cato's chronology, which Livy also follows,^[125] the struggle was renewed. The patricians succeeded in engrossing again the second place of the consulate; and they kept up this contest until 413, during which they usurped the consulship more than a third of the time. At last they were obliged with shame to give in, and in the course of the struggle to yield to

claims which the plebeians would not have urged with such violence, had the treaty been honestly observed.

The beginning of this period is marked by few incidents. Livy's statement, that no wars had been waged lest the plebeian consuls should have an opportunity of gathering laurels, can only be a mere supposition. The whole of men's attention was bent on domestic affairs; and it is but natural, that the immense number of arrangements at home which followed from the Licinian law, should have entirely absorbed it. Surveys of the whole of the *ager publicus* had to be made; a commission was engaged in regulating the matter of the debts, and a great deal of other business was lying on hand. The general allotment of land to the plebeians is to be considered as the cause of the rebuilding of the city. We do not easily find in history such a speedy recovery: Rome seems to have become young again, although there are wars nearly every year. The debts still partly continued, and the right of the *nexum* was not done away with; but it became less oppressive by degrees. The changes extended further than what we know; the treasury of the patricians now became in all likelihood the general exchequer of the country. These were also quiet times abroad: the Latins, separated from Rome, lived in peace; single towns only, like *Tibur* and *Præneste*, were hostile, rather from mistrust than from any special reasons. The people of Tarquinii were the only enemy who threatened Rome. But from afar a new foe made his appearance—the Sennonian Gauls, in the year 393, thirty years after the first invasion. What has been mentioned of earlier inroads of the Gauls, is contradicted by Polybius, who records all their expeditions, and speaks of this one as being the first after the destruction of Rome. It seems that the Gauls, after the taking of Rome, had retired into Apulia, and there had concluded a treaty with Dionysius of Syracuse: they then returned to their abodes in what is now-a-days the Romagna, and the territory of Urbino. Yet there was a new migration over the Alps, which forced its way as far as the Anio. Here was said to have been the single combat of Manlius Torquatus, who took from the Gaul his golden chain: this appears to be historically authenticated, and we have no grounds for deeming it a fable. A great battle was not fought there: the Romans, who were in readiness to receive the enemy, were now fully awake, and on their guard. The Gauls then took up a strong position: they seized upon the Alban Mount and the heights of Latium, and from thence they wasted the Latin country, roving beyond Tivoli^[126] as far as Campania,

even to Apulia, as is stated in one account. They must therefore have overcome the Samnites, and passed through their long and narrow territory, as afterwards the Romans did also.

These events had again the most fortunate consequences for the Romans, as had been the case with the Volscian war, a hundred years before. They themselves, as well as the Latins and Hernicans, now came to the conviction, that their division exposed them to great danger. Between the Romans and Latins, there was no hostility; between the Hernicans and Romans there was open war, in which the Romans may have taken the strong town of Ferentinum: it ended in the return to the old relation. False is the story that the Hernicans surrendered; for so late as half a century afterwards, they received one-third of the booty, or an equivalent in money, until C. Marcius conquered them. Latins and Hernicans united with Rome, and a new state was now formed which Livy mentions in two places,^[127] without, however, being aware of the circumstances connected with it. The Latins were to all appearance no more a compact state: to restore themselves to the condition in which they were before, was impossible; very many of their towns had been destroyed by the Volscians and Æquians, or by the Gauls. But now, the Volscians, their former enemies, were likewise split into several states:—the Antiates seem to have kept by themselves, but other towns of them united with Latium; they had urgent reasons for annexing themselves, as they were hard pressed by the Samnites, who were making conquests on the upper Liris, and had taken Fregellæ, and become masters of Casinum. Thus a new Latin political league was formed, which was joined by the Latin colonies and part of the Volscians; for with regard to the Latin colonies the Romans seem to have renounced every claim to hegemony: Sutrium and Nepete, which lay on the left bank of the Tiber, entered likewise into the confederacy. Forty-seven peoples shared in the sacrifice on the Alban mount; but that was in those times when Latium, as a powerful state, stood by the side of Rome. As a counterpoise to Latium, another part of the Volscians seems to have been admitted to the rights of full Roman citizenship; for two new tribes are formed, which had their abode near the Volscian frontier; just as in the treaty of Sp. Cassius, the Latins yielded to the Romans the Crustumian territory. Thus the year 397 is remarkable for Rome's having renewed the old relations with Latium and the Hernicans. Festus, in the article *Prætor ad portam*, which is borrowed from Cincius, speaks as if the Romans, since the

fall of Alba, had always been on a footing of equality with the Latins. This was the case from the peace of Sp. Cassius to the year 290, and from 397 to the consulate of Decius Mus; but the intervening period is overlooked. Cincius has certainly stated what was correct, and indeed has only been misunderstood by Verrius Flaccus. A very broad distinction is here to be made between the different times: I was mistaken in this respect for many years. ^[128] A Roman and a Latin *imperator* held by turns, for a year, each the chief command of the combined army: they offered their sacrifice in Rome on the Capitol, and were there greeted at the gate.

The new league of the three states had undoubtedly sprung from the fear of the Gauls, who, although they did not make their appearance that year on the Tiber, were still very near. It would serve no purpose to tell in detail how the contest was carried on. It was a dreadful time for the Romans. The struggle with the Gauls lasted until 406 and 407; and Latium and Campania, especially, had to suffer for twelve or thirteen years from the continual devastation of the Gauls. Once the enemy was seen before the Colline gate: the Romans stood their ground against them, or at least it was a drawn battle. It was on the same spot where Sylla afterwards defeated the Samnites, and which is now within the city. It is a prolongation of the Quirinal into table land: on the left, there is a deep valley; beyond the table ground, there are other hills, on which the city-wall now stands. It was there, without doubt, that the Gauls and the Samnites posted themselves.

One of the changes, occasioned by the establishing of the new Latin league, is this: that, as the older Latium had, according to Cato (in Priscian), a dictator, this new Latium had also for its chiefs two prætors, as Livy expressly mentions. A league between the Samnites and Romans, which is likewise to be found in Livy, belongs to this, or to a somewhat later period: that, however, before that time, such relations had already existed between the Samnites and the Romans, may be surmised, but cannot be asserted with certainty, inasmuch as a notice of Festus, under the head of *Numerius*, is too vague. As early as the battle at the Cremera, according to that quotation, one of the Fabii, who was sent as a hostage to the Gauls, was married to the daughter of a Samnite of Beneventum; but without a treaty no *connubium* took place. It is yet possible that this relation was instituted between Sabines and Romans alone, and that it was extended by the Sabines to their Samnite colonies. The motive of the league was a double one; partly the

threats of the Gauls, and in this case it is to be placed between the second and the third Gallic inroads, those to the Anio and the Alban mount; and partly, according to a highly probable supposition, jealousy against Latium. The latter state, when joined by the Volscians and Æquians, was so powerful, that Rome had cause to be jealous. The Latins bordered immediately upon the Samnites, and these tried to spread themselves out on the upper Liris; so that a league between the Romans and Samnites was very natural, whereas Rome and Latium were allied indeed, but did not trust one another. A league of this kind must not of necessity be understood to mean one of mutual assistance; it is not at all to be looked upon as such. It is rather a treaty, than an alliance; and in fact there was in such leagues of the ancients an honest clause, wherein the contracting parties, on both sides, prescribed to each other the bounds of their intended encroachments upon other nations. Such was the league of Rome with Carthage; that of the Carthaginians under Hasdrubal with Spain; and likewise of Rome with the Ætolians. It is mere declamation, when in moral disquisitions the division of countries in the new world, as laid down by Pope Alexander VI., between Spain and Portugal, has so often been reviled: it was nothing else but such a line of demarcation for eventual conquests. Even thus was a limit afterwards drawn in the first actual peace between the Romans and the Samnites, and it was its want of precision which occasioned the second war.

Notwithstanding the general peace with the Latins, the Tiburtines were at enmity with the Romans; they seem to have formed a distinct state, and they took the Gallic armies in their pay. A war against the people of Tarquinii brought the Roman arms along the coast to Etruria. It was carried on with great exasperation. The Etruscans advanced even against Rome; but the plebeian consul C. Marcius utterly routed them, and compelled them to make a long truce.

At home, there was continual distress in consequence of debt. One commission after the other was appointed; respites were granted; and the state again took the matter in hand. The latter, owing to the tithes which came in from the public fields, was now so well off that it could effect a general arrangement. The debts were inquired into by a commission; and all those who owed money, but were able to give security, received an advance from the treasury to enable them to discharge their liabilities. This was a wise measure; as by the paying off of principals the rate of interest was

lowered, so that money became exceedingly plentiful, and it was requisite to find out where to place it. On the other hand, it was ordered that those who had property, should not be obliged to sell it, as in that case the price of estates would have fallen; but that they should be allowed to give it up for the debt, according to a fair valuation. By this means, the value of landed property must have risen, and the rate of interest have been lowered; a most prudent and judicious financial calculation. It had lasting and excellent consequences, although fresh misery was caused soon afterwards by new disasters. If the misfortune of an age is once made decisive by extraordinary events, the wisest of rulers cannot ward off a state of pressure and distress. Such a calamity, which befell Rome at that time, was the third Gallic invasion in the year 405, a much more frightful one than the second. The Gauls appeared before the city, the Romans did not venture to give them battle; for though their military science had been brought to a high perfection, yet it was well judged to confine themselves to the defence of the town: the consequence of this, however, was the devastation of the open country. The Gauls, that time, remained long in Latium, even throughout the winter. If we may believe the account of the Romans, they were then in the same plight as the barbarians under Radagaise, whom Stilicho pushed on to the Apennines not far from Fiesole;—even now the name which the peasants have given to those heights, still refers to that period:—[\[129\]](#) they must have retired to the Alban hills, that is to say, the *Monte Cavo*. It is possible, but inconceivable, that they should have gone of their own accord to mountains covered with snow. Certain it is, that L. Furius Camillus, a nephew, not a son of the great Camillus, marched against the Gauls as a distinguished general: he was in other respects a headstrong patrician who broke the peace between the two orders, yet *bono publico natus*. It is manifest that the Romans and Latins combined sent a large force into the field; they formed ten legions, a number which could have never been raised by the Romans alone. A very clever campaign was carried on against the barbarians. The Romans fought no battles, but brought them into great straits by their entrenched lines. To this perhaps refers the notice of a grammarian, that the Gauls concluded a treaty with the Romans. They were allowed to march off; on which they spread over Campania, and ravaged the country, still going lower down.

Many important changes date from the beginning of the fifth century. As early as 397, we meet with an account of the tribes deciding on war.

This right we found belonging at first to the curies, then to the centuries, and now to the tribes. It was natural that when the nation had grown into more vigorous life, the old customs were no longer kept, according to which, for instance, the deliberations were to be stopped because there was a flash of lightning, or because a bird of evil omen was flying past, and the like; so that no army could then be levied, and, in short, no resolution of the centuries be passed. Very properly then was recourse had to the assembly of the tribes, which from the very first was an institution based on a practical plan, and adapted to the real wants of the commonwealth.

The enlargement of the plebeian rights is linked to the name of C. Marcius Rutilus, the first plebeian censor and dictator. He preserved the peace of the two orders; and we remark in his case a change in the mode of electing the dictator, which Zonaras also mentions, but which Livy has entirely overlooked. Down to that time, the patricians had always had the actual choice of the dictator; that is to say, they had to select one out of candidates proposed to them. We have a passage in Livy which expressly states this. Sulpicius was the last dictator nominated by the curies; there would otherwise have been no occasion for particularly mentioning it. Livy has merely copied it in a heedless manner: he has many more notices of the same kind, which appear superfluous, when one does not know how to explain them from any other circumstances. Three years later, we find a plebeian dictator, whom the curies would never have confirmed. Only the senate now decided the election, and the consul proclaimed it. This is also recorded in the statement of Dionysius, which has been transferred to an earlier age, that the nomination of the dictator had been restricted for some time to the discretion of the consul; I have discussed this in the first volume of the new edition of my Roman History. The more, therefore, the curies lose, the more does a power grow up in the senate, which it had not before. Of very violent commotions which then took place, the traces have been much obliterated: a mention of it occurs in Cicero, where he tells us how Popilius Lænas when consul had repressed the *seditio plebis*, for which he had got a cognomen. This consulship I place immediately before the election of the plebeian dictator. Thus in the year 400, the patricians had succeeded in hindering the Licinian law from being kept, and this lasted for a few years. Another great change was this: that the nomination of a number of military tribunes was given to the tribes.

In Etruria, it is said that the town of Cære was obliged to give up part of its territory in consequence of a truce; so that, what never happened before, a war must have been waged with Cære. There is generally a great deal of declamation against this, as a piece of ingratitude; for Cære had, in the Gallic war, given shelter to the sacred things of Rome. We do not, however, know any thing positive about it.

THE FIRST WAR WITH THE SAMNITES. PROGRESS OF LEGISLATION.

Majora hinc bella narranda sunt, says Livy. We now arrive at a period in which great masses come into collision; when Rome struggles with a great people, which displayed heroic steadfastness, which possessed great generals and an excellent system of arms (which the Romans even adopted from them), and which had all the political virtues that give greatness to a nation in the eyes of posterity. The war for life and death lasted seventy years, interrupted only by treaties of peace, or rather, armistices. In the Samnites we have a proof how much is gained for future generations by heroic perseverance, even though one be overpowered in the strife; for, their lot was always much more tolerable than that of many other nations conquered by Rome. Had their descendants brought down their wishes to the standard of things as they were; had they not aimed, though in a high and noble spirit, at impossibilities; had they not intoxicated themselves with feelings, the season for which was long since gone by; they would not have perished in the days of Sylla. And indeed, theirs was then a terrible fate, because they had no longer regard to the circumstances in which they were placed.

The great event by which Rome emerged from childhood, is the reception of Capua under her protection. It is involved, however, in obscurity, and is falsified besides by the Romans.

When we read in the ancients of a colony which turns in hostility against its mother state, we always think of disloyalty and ingratitude: the ancients themselves, that is to say, our authors, look upon such a defection as a domestic feud of the daughter against the mother. In some detached cases, this may be true; but in most instances, especially in Italian history, the relation is quite a different one. We must bear in mind the origin of the colonies; how a portion of the territory was set apart, and allotted to the *coloni*, while the rest remained to the old inhabitants; and how the colony then became, either the representative of the sovereign state, or, should it get emancipated, itself a sovereign power. The Romans always bound their

colonies closely to themselves; the same appears to have been done by the Latins. There is scarcely anything similar to this in the Greek colonies. The Greeks almost always sent their colonies into waste countries, and built themselves new towns in which they afterwards would receive burghers of the pale and foreign residents; but they remained utter strangers to the nations among which they settled. Thus it was in Libya, on the Black Sea, Asia Minor, Thrace, Gaul, Spain. The only peoples akin to them were the Pelasgian nations in Italy and Sicily, and thence arose the rapid increase of the Greek colonies in those parts. Their colonies generally went out from political reasons, from discontent, perhaps also from over-population; and as they immediately emancipated themselves, they owed to the mother state no other feeling than that of reverence. The Roman colonies, on the contrary, stood always *in patria potestate*, and were bound to the discharge of certain duties.

A different system we meet with among the Samnites, perhaps everywhere among the Sabine states. Just as they had quite a different religion, different fundamental types of division, a different military equipment, so had they likewise a different system of rights in the colonies. —From Strabo we know the tradition of the Samnites concerning their descent; that sprung from the Sabines, they had found the Oscans in the country which they occupied. The Oscans inhabited the whole of that neighbourhood, whilst on the coast there were Pelasgians, who once upon a time, we do not know when, had also spread over the midland country. Probably the Pelasgians dwelt at first from the Tiber to the Garganus: the Oscans from the mountains of Abruzzo, pushed on by the Sabines, overran these districts; and after these the Sabines, the stock from which the Samnites sprang, took possession of them, and advanced into the most southern part of Italy, the most ancient population perishing before them. Their colonisation therefore, unlike that of the Romans, was not undertaken with the view of extending their dominion; but it was merely the overflow of too crowded a state, whence it happens that there is nowhere a trace of connexion between the Sabine colonies and the original race. Thus it was likewise with the Picentines; with the four nations, the Marsians, Marrucinians, Pelignians, and Vestinians; thus also among the Samnites. These consisted of four peoples, which formed a confederation, the Pentrians, Caudinians, Hirpinians, and in all probability, the Frentanians. The Frentanians were afterwards separated from them; and in their place

another canton, between Surrentum and the Silarus, was introduced, the inhabitants of which were perhaps called Alfaterians. From the Samnites other tribes came forth; the Lucanians, and by a cross of Lucanians, Oscan-Sabellian adventurers, and freedmen, the Bruttians. When the Sabines had now settled in the middle valley of the Volturnus, they also spread into Campania, the most favoured land in Italy: here there had existed since 280 an Etruscan colony. The oldest inhabitants of the country were most likely Tyrrhenians, which is the reason why Capua, like Rome, was derived from Troy. The Tyrrhenians were subdued by the Oscans, and these in their turn by the Etruscans: among the latter, Capua is said to have been called Vulturnum. The Oscans must have been a very great mass; for they quite changed the whole of the population. But the greatness of the Etruscans lasted only for a little while: as early as in 320, they began to decline at the Tiber; how much more therefore in Campania? Now it is natural that Capua, which was a mere settlement of an oligarchic nation, should not have been able to hold out against a conquering people: the subjugated Oscans were not very zealous in the defence of their masters. On this account, the Tuscans at Capua agreed to a compromise by which they received ἑποικοι of their enemy, in fact a Samnite colony,—a foolish arrangement which is so often to be met with in ancient history. Thus the Amphipolitans received the Chalcidians, and these drove out the old Athenian colony: Aristotle brings forward many similar examples. Such towns, in which the ruling community was formed of two distinct races, had seldom the good fortune, like Rome, of having them well united. The Samnites conspired against the Tuscans; and with that faithlessness and cruelty for which all the Sabellians and Oscans are so remarkable, they murdered them after some time, and kept the city for themselves. Three years afterwards, the Samnites spread as far as Cumæ, and conquered that town, which had long been one of the most splendid in Italy. And thus at Capua, the ruling class were first Etruscans; then Samnites, and with them a numerous Oscan commonalty. For according to this system of colonisation, the sovereignty in the colony was given to an offshoot of the conquering people: part of the old inhabitants in the towns became clients; another part remained free; while those in the country, on the other hand, were bondmen or serfs, as in the conquests of the Franks and Lombards. Similar also is the condition of the Spanish colonies in Mexico, in which the original population has likewise continued. This was the state of things in Capua.

We now find it mentioned in Roman history, that the Campanians asked for the help of the Romans and Latins against the Samnites. But how could the colony have fallen out with the people from which it came? This is only to be thus explained. The commonalty of the Oscans, which had been kept in dependance by the Samnites, gained strength, increased in number, and recovered itself; and whereas the Roman *Plebes* gradually united with the patricians, these broke out into a revolution, and overthrew the Samnite patricians, Owing to this, Capua and Samnium became enemies; yet the Samnites seem not to have been destroyed at Capua, but only to have lost the rule: it is the *equites Campani*, mentioned by Livy, to whom the whole body of the citizens pays yearly contributions, either as an indemnity for the *Ager Falernus*, or because they remained faithful to the Romans. Rome liked oligarchy for dependent peoples.

The Samnites reached at that time from the Adriatic to the Lower Sea. No ancient author gives a distinct account of their constitution; and it is only by analogies, and by conclusions from detached circumstances, that the following facts may be surmised as probable. They consisted of four cantons, which formed a confederation, perhaps with subjects and affiliated towns, and were probably quite equal among themselves. Each of these cantons was sovereign, but united to the others by a perpetual league. In what rotation the federal administration went round among them, is more than we know. The weakness of the Samnites with regard to the Romans, was their not forming a compact state, as did these from the time that the Latins were subjected to their sway. They only assembled together in case of war; yet they must have had a permanent congress: what was the nature of it, is quite uncertain. Livy never speaks of a Samnite senate; Dionysius in his fragments makes mention of πρόβουλοι. These were very likely the delegates of each people, similar to the ἀποκλητοῖς of the Ætolians; but whether they were fully empowered to decide on peace and war, or whether, as among the Greek nations, a popular assembly was convoked for such a decision, is uncertain. If this were the case, each people had a vote; as the ancients never voted according to the accidental poll number of those present. [\[130\]](#)

Latium took those who did not belong to it into its league. In the same manner, Rome had formed from the allied Volscians two tribes, which dwelt near the Pontine marshes. Rome and Latium therefore agreed to receive

each a portion of the Volscians, and to keep the Hernicans apart. If now Rome, Latium, and the Hernicans had been allied without supremacy, and they had had common assemblies, the relation of the Samnites would have been a similar one. Each of their peoples formed a sovereign state combining with the others against the foreigner only. Nations which are threatened with destruction from without, can scarcely attain to the sound conviction, that they must sacrifice their individual will to preserve their nationality: the only example to the contrary is that of the nations of Greece joining the Achæan league. In the beginning, the Romans and Samnites fought on equal terms; but the Samnites were never aware of the fundamental defect of their constitution. Had they remodelled it, and instituted but one senate with a popular assembly, I have not the least doubt that the whole war would have taken a different turn. But as it was, now one canton, now another had the ascendancy; sometimes Bovianum and the Pentrians, then perhaps the Caudinians, carried the decisions; now one people, now another was attacked, and the chief command changed hands; for in all likelihood the people which was most threatened at the moment always had it for the protection of its own frontiers. The highest magistrate of the confederation was called *Embratur* (*Imperator*): he is often mentioned on monuments. It is also not unlikely that each people had its *Imperator*, and that the general of the one which happened to hold the chief command, became *Imperator*, or perhaps *Prætor* of the whole of the army. As far as we can judge, their constitutions were thoroughly democratical, as might be expected from mountaineers like these. Moreover, they must have received the whole of the old population among themselves; for even after the most dreadful defeats, numerous as they were, they seem to have been quite unanimous.

The cause which in 412 first engaged the Romans and Samnites in a war with each other, was the spreading of the Samnites towards the Liris. As to the Volscians, they were not much thought of any more: their power was broken, and they were most of them united with the Latins, or connected with them. The Samnites held the whole of the country to Casinum, and had subjugated the Volscians as far as Sora and Fregellæ: sometimes, however, they had to evacuate these districts. Lucania was not in their league; it was an emancipated colony. But the Samnites had likewise reached Apulia, and had conquered a great part of it, as for instance, Luceria. Thus we see that the Samnites were greater than the Romans and Latins together: their

country was equal in extent to half of Switzerland. Their league with the Romans in the beginning of the fifth century, we know already; but unhappily, such treaties are only kept so long as the cravings of ambition, or the lust of conquest, are not strongly roused. I have no doubt, but that an agreement had been entered into with Samnium, that neither people should spread beyond the Liris; yet the Romans might repent of having put to themselves such narrow limits. Had the Samnites conquered Teanum, they would have been masters of all the country between the rivers, and have subjected to themselves the whole district to the Liris. That the Romans were not warranted in receiving the Campanians into their alliance, is acknowledged by Livy himself.

It is said that the Campanians had got into a war with the Samnites, in consequence of their having attacked the Sidicines of Teanum.^[131] The Sidicines probably sprang from the same stock as the Volscians; they inhabited Teanum, but they may not have been limited to that town. The Sidicines had betaken themselves at first to the Campanians, as these were no longer allies of the Samnites, and the Campanian *Plebs* must have deemed it an advantage to gain this people as a bulwark against the Samnites on the north. Capua ruled over a number of places which are said, but without any probability, to have been all of them Etruscan. This region is called Campania,^[132] and is different from that which is so called on the map; it extends but a little beyond the Volturnus, as far as Casilinum to the south, and Calatia and Saticula to the north.^[133] Nola, Neapolis, Pompeii, and Herculaneum did not belong to it: it is therefore quite a little district, and is nothing more than the townland of the citizens of Capua. The Campanians, owing to the fruitfulness of their soil, were wealthy and unwarlike. They wished to ward off the attack; but they could do nothing against mountaineers, and were defeated. The Samnites took a position on the hill of Tifata above Capua, and wasted all the country around. In Capua, it was the old Oscan population which carried on the war in spite of the Samnite colony; and great troubles now arose, as the Samnites probably wanted to restore the oligarchic colonial constitution. The Campanians therefore applied to Rome, or, more likely, to the federal assembly of the Romans, Latins, and Hernicans. This is clearly shown by what is stated from L. Cincius; in Livy we see evident traces of an intentional obliteration of the Roman tradition respecting it. Alone, the Romans must have been

exceedingly embarrassed by this application: they had pleaded in objection their alliance with the Samnites, and therefore the Campanians placed themselves under the protection of the whole league. This *deditio* must not be taken for that of a conquered people; it is here to be understood merely of seeking and receiving protection. In such affairs, the Romans always hypocritically stuck to the letter of the law, even when they acted in direct opposition to the spirit of the ordinances of Numa and Ancus. There was at least that good in it, that they always wished to have the appearance of right on their side. Yet for all that, we must not deem the old Roman *fides* to have been downright hypocrisy: their respect for the laws certainly kept them from doing many dishonourable things against the weaker party. They may be excused on the plea that the Samnites to all appearance became too great for them, and that it was to be foreseen that the league would sooner or later be broken up; so that the favourable opportunity ought not to be thrown away. The Romans were too strongly tempted by the hope of gaining over the Campanians and all the peoples of that country, by a defensive alliance. There is no question, but that they were not impelled by the wish to befriend those who were in need of help; they yielded to the spirit of evil, and the Samnites were perfectly justified in their hatred against them. The Romans sent an embassy to the Samnites, and called upon them to make peace with the Sidicines, and not to devastate the Campanian territory, as the Campanians had placed themselves upon their protection. The Samnites proudly spurned these proffers; and now began their giant struggle against the Romans, Latins, and Hernicans.

This Samnite war is the first great campaign which deserves to be related, since Rome had a history. However much may be deducted from the numbers which are given in Livy,—and this may be done the more safely as it is one of the Valerii of whom these achievements are told, and Valerius Antias was a client of that family,—the difference between these battles and the earlier ones is quite evident. In the year 412, three were fought, the first great battles, besides that of A. Postumius Tubertus on the Algidus, which are recorded in history.

In this year, the Licinian law was violated for the last time, there being two patrician consuls, A. Cornelius Cossus, of whom we know but little, and M. Valerius Corvus, a man in whose favour an exception might be made at any time. He was one of the greatest and most successful of men;

and it is a just remark of Pliny's, that even Solon would have called him such. He is one of the historical heroes of Rome, although the account of the origin of his surname still belongs to poetry: Livy himself does not treat it as history. Yet it is a proof that even in those times heroes were still the subjects of lays. No one will believe, that in 406, a Gaul had challenged the bravest of the Romans to a single combat, and that Valerius when no more than twenty-three years old, had conquered him; for a raven, flying against the enemy, had pecked and lacerated him, so that the youth had gained an easy victory. His first consulship falls in his twenty-third year. (after he had slain the Gaul,) and probably he was consul for the sixth time, forty-six years later: he nearly reached the age of a hundred, and lived to see the complete conquest of Italy. As in those days it often happened that one who had been consul held also the other curule offices, to these he was repeatedly elected until the latest years of his life, and he filled them yet in the full vigour of his mind. He is the man who may give his name to his age; he was the idol of the soldiers, and not only one of the first generals, but he also ruled over the hearts of his men by his amiability and brotherly-kindness, in which notwithstanding he never compromised his authority; the soldiers saw in him the most able of their equals. If we place ourselves at his deathbed, and review with him his life so rich in achievements, we have before us a colossal age, of which we are far from able to give any adequate image.

Rome sent two consular armies, half of them Romans, and the other half Latins, to Campania, which was quite open on the side of Samnium, Nola being even a Samnite colony and Neapolis allied with that people. The two armies appear in very different positions. That of M. Valerius in Campania beyond the Volturnus, was evidently on the defensive; whilst, on the contrary, the army of Cornelius Cossus was intended for a diversion in Samnium, Capua very likely being the base of it, in which enterprise he at that time advanced by the usual road on the north side of the Volturnus, from Calatia to Beneventum in Samnium. Unfortunately we cannot get a distinct view of the events of the war, and we can only surmise their general course from single facts. We find Valerius on Mount Gaurus, probably near Nuceria; so that the Romans enter Samnium from that point, in order to protect Campania. There was another mount Gaurus, not far from Cumæ and the promontory of Misenum. If this one be meant, the Romans were pushed back by the Samnites into this corner, with the sea and the Volturnus

behind them, and their victory was the result of despair.^[134] This would clearly prove, that at first the Romans suffered some losses, which Livy or his annalists passed over in silence; but the battle at all events set matters right again. It was evidently the greatest that had hitherto been known: all the previous ones had indeed been bloody, but not of any duration; for if the Gauls had for some hours striven in vain, they would give up fighting, and the Æquians, Volscians, and Hernicans were insignificant in number. The Samnites, on the contrary, stood against the Romans with equal numbers, and most resolutely; and thus they held on during the whole of the day, without anything being decided, until nightfall, when the Roman knights, as the *principes juventutis* (the Samnites had no cavalry, and the Roman one was very weak as a mounted force), got off their horses, placed themselves before the ranks, and fought with noble spirit. The true nobility of the nation put all the rest to the blush; they followed them, and were irresistible. The slaughter was tremendous on both sides; the Samnites retreated, but merely retreated without flight, as was done near Grossgörschen and Bautzen; the victors followed, but with the greatest caution. Near Suessula, a few miles off, the Samnites took again a position: the camp and the wounded fell, of course, into the hands of the Romans. To these, victory gave more hope than gain; yet the chief point was this, that the battle was an auspicious omen for the whole of the war, which in all likelihood they had entered upon, having before them the chance of a termination which would have utterly ruined them.

The expedition of A. Cornelius Cossus to Samnium certainly took place in the beginning of the campaign. There he seems to have been opposed by a general levy of the militia of the Samnites; as on the whole it was customary with them, to act on the offensive with the regular army, and to leave the defence of the country to the people. Thus the invading Roman hosts had mostly to encounter the levies of the peasantry. Samnium was at that time in its full freshness and vigour. The Roman general rashly entered the hostile country, though it was unknown to him and of most difficult access. No army withstood him: he marched over the ridge of mountains which runs from the North to the South, crossing it from the west to its eastern side, where there are nothing but narrow defiles. The first column had already reached the valley, whilst the last still found itself on the crest of the hill; for this is what, from the nature of the ground, we must gather from Livy's confused account. He most likely wished to get to the road

from Beneventum and the fertile valley of the Calore, so as to keep the northern and the southern Samnites asunder. In this position, the Romans remarked that the opposite hill was occupied. They halted. To retreat in the defile was difficult, and now the Samnites were advancing in order to occupy a height which commanded the road. The Romans were nearly surrounded; as the Samnites were already taking possession of the road in their rear. At this crisis, the tribune P. Decius Mus, a descendant of one of the most energetic plebeian families, proposed to the consul, rapidly to ascend the mountain-steep with a cohort, and to occupy that eminence which the Samnites had incautiously abandoned; so that he could attack them in the rear, and there withstand the assaults of the enemy, until the army, keeping the defile, should have reascended the mountain. This was executed. Decius reached the height which commanded the pass before the Samnites, who had now to try to dislodge him. Here he and his men fought, like the Spartans at Thermopylæ, convinced that they must die, and with such stedfastness, that the Samnites for that evening desisted from the attack; but, whilst the Romans retired to the road which had been abandoned, these took up a position with the resolution of storming the hill the next morning. The band of Decius was entirely surrounded; but during the night he ventured upon a sally down the hill, and cut his way through the enemy, so that with the remainder of his men he returned to the consul. The Romans, now, are said to have again on the following morning won a great victory; yet we cannot believe it. The army of Cossus is no longer spoken of: probably he had got aware of the dangerous character of his expedition; or a loss had been in the meanwhile sustained in Campania, and he been called to give help. At the mount Gaurus, Valerius was alone; but near Suessula the two consuls are together, and likewise the Samnites had been joined by those who had followed in the track of Cossus. The two armies were encamped over against each other; but the Samnites, who were superior in numbers, felt too sure of success: their general must have been of indifferent ability. They spread about, plundering the country; especially as Valerius, entrenched in his camp, gave himself the appearance of being afraid. When now the Samnites were thus scattered, Valerius suddenly attacked their camp and took it; then he quickly turned against the detached bands, and routed them one after the other; so that he and his colleague had a brilliant victory, and both were allowed to triumph.

The Romans now learned by experience, that in the midst of splendour and prosperity the pressure of the times may be very grievous. Since the passing of the Licinian law, there had been continual misery in Rome; new commissions were appointed to make arrangements concerning the debts: this was also done after the victory over the Samnites. The wars rendered a heavy taxation necessary; the plebeians, while they were serving with the army, had also to provide for the maintenance of their families; not one half of all those who were able to bear arms may at that time have remained at home, and so bloody a campaign must surely have caused the deepest affliction to many families. In the second year of the war, when either the Latins held the chief command, or perhaps a truce existed between the Romans and Samnites, a fermentation took place, which very nearly broke out into an explosion. Livy is obscure here; much clearer is an extract of Constantinus from Appian, in which we may distinctly trace Dionysius. The insurrection of the year 413 was occasioned by the debtors. Livy passes this over in silence: he says that the Roman army lay in cantonments in Campania,—probably in consequence of the truce, and that the temptation had come upon them to seize Capua. The Roman consul, who, on taking the command, found the army in a state of open mutiny, tried to get rid of the ringleaders, by sending them off singly on different errands, and at the same time giving orders to secure every one of them. This sending off seems to them suspicious; and a cohort which was sent to Rome, halts near Lautulæ, between Terracina and Fundi; four or five Italian miles from the former place, on a lonely road between the hills and the sea, which had ever been a haunt of robbers and bandits. The mountains there approach the sea almost as close as at Thermopylæ; but they are not as steep. It is quite a narrow defile, connecting Latium and Campania, and there appear to have been warm springs in it; so that in its name also the place resembles Thermopylæ. The country is now a wilderness. I could not find the springs, and at Terracina I forgot to inquire for them. In the second Samnite war, there was fought near Lautulæ one of the greatest battles recorded in history. Here the cohort mutinied, and was joined by great numbers; the communication between Rome and the head quarters was cut off, the messengers of the consuls were intercepted, and the whole of the army must have refused their obedience. A crowd of bondmen for debt flocked in to side with them, and now happened that dreadful state of things which had never before been known: the common people marched against Rome,

without, however, offering any personal violence to the consul. It was no more the *Plebs* on the *Mons Sacer*; but proletarians against the rich, very much like the workmen in manufactories against their masters. But most fortunately for Rome, poor indeed as they had become, they still looked upon themselves as plebeians, and the leading plebeians as their chiefs; so that these last were able to make use of them to reform the constitution. It is remarkable that they drew forth an old lame patrician, T. Quinctius, of the Alban district, from his country seat, and chose him for their captain, as the peasants, in the Peasants' War, did Götz Von Berlichingen; on which they advanced against the city. The distress was very great. The government knew no longer on whom to rely: all who were in the town, armed as well as they could; but the city legions would hardly have been able to make head against the army. Valerius Corvus felt his heart bleed at the thought of a civil war. Fortunately the *Plebes* also was not yet become quite savage; so he held out his hand for reconciliation. The soldiers were likewise moved, when they saw their kinsmen in the army of the town: they alleged great grievances, and were ready to listen to terms of accommodation. On either side, all were unwilling to shed the blood of their brethren. The consequence of this moderation in both parties was a reconciliation: peace was concluded, and the debts, according to Appian (that is to say, Dionysius), were remitted.

The cause of all this, as it is stated in this account, is a most unlikely one. The sending away of individuals could surely have lasted only a very short time; but that a whole cohort should have been thus despatched, is not to be thought of. The other story makes no mention whatever of a military insurrection, or of the intention to take Capua; but it speaks of a commotion at home, a secession like the former ones of the *Plebes*, owing to their indebted state, and the unfair position in which they stood to the patricians, the Licinian law not having been kept. The plebeians emigrated into the Alban district, and had drawn over to them cohorts of the army. It is indeed mentioned that the senate had gathered troops; but there is nothing said about the two armies having faced each other, or about the dictatorship of Valerius (which is found in Livy). Just as they were on the point of drawing the sword, it was agreed on both sides to put an end to the struggle at any price.

A great and essentially plebeian legislation by which that of Licinius was completed, manifests itself as the result of this event. Whatever may have been the true history of that commotion, it was certainly of much greater importance than Livy describes it to have been. Whereas until then the Licinian law, according to which there was always to be one plebeian consul, had been violated seven times in thirteen years; from henceforth there are no more infringements of it, notwithstanding some absurd attempts in later times. In the present fermentation, a rule must have been made which precluded the possibility of any such design being successful. Clauses must have been added, perhaps as stringent as those in the *lex Valeria Horatia*, by which the severest punishments were denounced against any one who hindered the election of the tribunes of the people. Moreover, it is said to have been enacted, that both consuls might also be chosen from the plebeians; but this seems to be a mistake: that this was not carried out, may easily be proved. In the war of Hannibal, there was once a special resolution passed, that both consuls might be taken from the *Plebes* while the war lasted; yet it was not acted upon. It was not before 580, that the natural proportion first won the day, the patrician nobility having dwindled down to such insignificance, that it became impossible to keep up the law as had been done hitherto. Another ordinance which Livy mentions, is of great importance: it shows that there was no longer a mere question of the opposition of the orders against each other; but that among the plebeian nobility the same oligarchical intrigues had manifested themselves, which until then had been confined to the patricians alone,—a proof, that neither of the two was better than the other. This law comprised two points: in the first place, that no one should hold two curule dignities at the same time; secondly, that whoever had filled a curule office, could only be re-elected to it after ten years. The first point, as far as the prætorship was concerned, could effect the patricians only, it having probably often happened that a patrician consul had caused himself to be elected prætor as well, so that he might get the upperhand over his colleague; but with regard to the ædileship, it would also affect the plebeians in alternate years. Livy says that the law was especially directed against the *ambitio novorum hominum*. The second point had probably been mooted by the plebeians themselves, as a check upon the overwhelming influence of men who belonged to their own order; as until then we always find the same plebeian names as Popillius Lænas, C. Marcius, C. Poetelius, in the list of consuls. What was

wanted, was to keep the honours of the state from becoming the property of a few exclusive families.

With regard to military matters, Livy knows of two laws which date from the time of these disturbances. The first, that whosoever had once been a military tribune, should no more become a centurion, is represented as having been brought forward owing to a certain Salinius, who is said to have been thus reduced to a lower rank out of spite. The consuls had full right to appoint whom they chose as centurions; yet there was a feeling among the soldiers, that when a man had been a tribune, he could no more be a centurion which was no higher than a non-commissioned officer. Among the military tribunes, six places every year were filled by the tribes, the rest by the consuls: one could not, however, be elected two years running by the same party. During the year in which a person could not be tribune, he must have been unemployed. Now Salinius, who had been a tribune, and as such had no doubt opposed the consuls, was therefore made by these a centurion: thus the voice of the public promoted, and the consuls degraded him. It was against this that the law was directed. The organisation of the class of officers is one of the best things in the Roman system. Slow advancement, the right to gradual promotion, and the making provision for officers in old age, were unknown to the Romans: by law, no one held a permanent commission; every officer was required to be efficient. They had no notion either of gradually rising by length of service, or of a standing corps of officers: every military tribune was appointed for one year only; if he did not show himself equal to his duty, he was not chosen again; but whoever was efficient was elected year by year by the people and by the consuls in turn, and this was his calling, and his desire. Moreover, it was not necessary to pass through a whole succession of subordinate steps: the young Roman of rank served as a horseman; the consul had the distinguished ones in his cohort as staff-officers; there they learned a great deal, and in a couple of years the young man, in the full prime of life, might become a military tribune. Regard was had besides to that respectable class of people who, without any calling for a higher command, were well qualified to train the soldiers. These were made centurions, what with us would be sergeants. They were all of them people of humble station; they had good pay and enjoyed consideration, and they also might in some cases become tribunes, if they showed remarkable ability. What is done by the great mass of our subalterns, might be

performed as well by an able non-commissioned officer. In all this, the Roman military system is as admirable as in its perfect training of the individual soldier.

The second law may show us how Livy jumbles everything together. The pay of the *equites* is said by him to have been lowered, because they had not taken a share in the insurrection. If the rebels could carry this through, the state was lost. I believe that this was the period when the *equites* ceased to be assigned as a burthen of two thousand *asses* upon the widows and orphans, and it was decreed, that they should have a fixed pay. This was a reasonable change, but a loss for the *eques publicus*; reasonable, because the state could afford the expense.

In luco Petelino, the curies now voted a complete amnesty for all that had happened: no one was either in jest or in earnest to be reproached with it. Livy takes it for a resolution of the centuries *auctoribus patribus*; but it is evident from the trial of Manlius, that in the *lucus Petelinus* the curies alone assembled.

THE WAR AGAINST THE LATINS. THE LAWS OF THE DICTATOR Q. PUBLIUS PHILO. FURTHER EVENTS.

The Romans now decided upon peace with the Samnites. They had already, on account of the past year, received from them an indemnity for pay and keep; or they then received it. The peace was made by the Romans in a selfish and base manner; as the war had been undertaken in conjunction with the Latins. They yielded Capua to the Samnites, and left them at liberty to conquer Teanum. The Sidicines, on the other hand, threw themselves into the arms of the Latins, and concluded with the Volscians, Auruncians, and Campanians, a separate league against the Samnites. The same thing has happened also in modern times; as for instance, the alliance between Prussia and Russia under Frederic the Great and Peter III., in the seven years' war. The Latins now went on with the war *suo Marte*, which Livy in his way of viewing things deems an offence in them, as if they had violated the *majestas populi Romani*. They made war with the Pelignians; from which it may be seen that the Æquians belonged to them, as otherwise they could not have touched the Pelignians. The latter allied themselves with the Samnites, who in their turn applied to the Romans for help or mediation, as the peace had evidently been immediately followed by an alliance. The federal compact of Rome with the Latins and Hernicans had now come to a crisis: the Hernicans were either neutral, or, what is more likely, in a league with the Romans; as Livy and the Capitoline Fasti do not mention them among those over whom Mænius triumphed. Such confederacies may subsist between peoples, none of which is as ambitious and powerful as the Romans then were; but there were now only three ways open. Either they might part from each other and remain friends; or they might enter into a union, like that between Great Britain and Ireland; or lastly, the fortune of arms had to decide, which was to be master of the other: to stand side by side, as hitherto, was impossible. During the last year already, the war had no longer been carried on in common; the Latins had taken the field under their own standards. It was therefore now resolved to

negociate. Latium had a more solid constitution than the Samnites; it was governed like Rome. It had two prætors, as Rome had two consuls; and it must have had a senate, as *decem primi* are mentioned, evidently the deputies of as many towns. These ten leaders betook themselves to Rome, and there they made the most just proposal that the two states should unite; that the senate from three hundred members should be doubled to six hundred; that the popular assembly should be increased,—in which case the seven and twenty Roman tribes would no doubt have been raised to thirty, and the Latin towns have voted as so many tribes; that Rome should be the seat of government, and a Roman and a Latin consul be elected every year. Had the Romans accepted these terms, Rome and Latium would in reality have been equal; but every Roman would have had his privileges lessened. The idea of a Latin consul was odious to the Romans; for, in all the republics, however democratically they may be disposed, there is a spirit of exclusiveness. Of this we find a striking instance in the history of the institutions of Geneva. In that republic there are *bourgeois*; *natifs*, that is to say, children of the *μέτοικοι* or *habitans*; and lastly, *habitans*; all of which have one after the other acquired the right of citizenship. Nothing is more oligarchical than the canton of Uri. Patricians as well as plebeians were discontented. If there was to be only one consul, who should it be, a patrician or a plebeian? They would rather have agreed to have four consuls. The embassy of the Latins, as Livy tells us, was received with general indignation; not that they had disguised from themselves that the impending struggle would be a war for life and death; but because vanity and selfishness outweighed this consideration. We are told, that the consul T. Manlius had declared that he would stab with his own hand the first Latin in the Roman senate. The story has besides the poetical addition, that while they were debating in the Capitol, a thunderstorm and a pelting shower came on; and that the Latin prætor, as he was retiring, fell down the *centum gradus* of the Tarpeian rock, and was taken up lifeless. In later narratives, “lifeless” was prosaically made out to mean “in a swoon.”

The Sabines, renowned as they were of old for uprightness, had been quite asleep, and they had no longer any importance whatever: the northern confederation, the Marsians, Pelignians, Marrucinians, and Vestinians, in spite of their bravery, only wished to be left quiet in their mountains. The Romans passed through their territory, and were in alliance with the Samnites: the latter expected for themselves the conquest of Capua and

Teanum as the result of the war. Had the Romans now been afraid of letting their open country be wasted by the Latins, they would have been obliged to keep themselves merely on the defensive, or else to carry on a tedious war of sieges against the Latin towns. But here the Roman generals showed themselves great, and the way in which they dealt with the whole matter, was masterly. Fixing upon the very boldest plan, they armed the reserve at Rome, and abandoned the fields, even to the very gates of the city, to the Latins; then they marched all the way round through the Sabine and the Marsian country, to join the Samnites; and when this was done, they advanced with a combined force against Capua. If the Latins had now left the Campanians to their fate, and had gone beforehand to meet the Romans, while they were still on their march through the country of the Æquians, they might have perhaps defeated them in these impassable regions. This daring enterprise of the Romans is a proof of high strategical talent; and great men were Manlius and Decius, who, like all great men, knew very well how to estimate their foes: it was on the strength of this knowledge that they ventured thus to lead their armies round in a semicircle. The Latins, by a quick movement, might have devastated the whole of the Roman territory; and then, eight days before the Romans could have returned, they might have made their appearance at the gates of Rome, with an easy retreat to their fortresses: but the Roman generals must have well known the want of spirit and the mediocrity of their enemy, and therefore have left the road to Rome open. The Latins listened to the complaints of the Campanians, and may perhaps have thought thus to destroy the whole of the Roman army with one blow, as it could not return. Their force also might have encouraged them in such a hope: a trifle would have turned the scale; they might have conquered, as well as have been conquered. The Romans, no doubt, had sent all that they could muster into the field, and were not even then equal to the Latins. That the Samnites joined them, is certain; but the Roman annalists try to deny it, as if the Samnites had arrived only after the battle. The Latins and their allies, the Volscians, Æquians, Sidicines, Campanians, and Auruncians, had pitched their camp on the eastern side of Vesuvius; whether Vesperis, where the battle was fought, is the name of a town or a river, is not certain. Here the two armies stood for a long time over-against each other, anxiously awaiting the decisive day. If the Latins had had an able general, they would, after a defeat, have been far better off than the Romans: they could retreat to

Capua, throw themselves behind the Liris, and there collect reinforcements from their own country. Nor were the Romans superior to the Latins in a military point of view. There had always been a Roman and a Latin century combined as a maniple in the legion, so that the organisation of the two armies was the same. Under these circumstances, the consul forbade all single combats on pain of death; and this he did on account of the moral effect,—as slight accidents may easily give birth to a prejudice concerning the issue of the battle,—not on account of the acquaintance with the enemy, as is stated by Livy. Thus it was forbidden in the Russian army to accept the challenge of the Turkish Spahis. The stricter the prohibition was, the louder was the defiance of the Latin knights; and it moreover happened that the Roman cavalry had always been the worst part of the army, worse, for instance, than that of the Ætolians. This gave rise to the duel between the Tusculan Geminus Metius and the son of consul Manlius. Livy has told this incident in a masterly style, with the heart of a Roman, and the soul of a poet: the father, in order to enforce obedience, had his son executed. There is another circumstance connected with it, which Livy mentions only cursorily.^[135] In the old legend, it was certainly not the son of Manlius alone, but a centurion besides, who conquers for the *pedites* as the former did for the *equites*.

The long time which elapsed before the battle began, is a decisive proof that the Samnites did not stay away altogether. The Romans went into battle with gloomy forebodings; besides which, both of the consuls had had a dream, which announced a dismal issue, that one army and the general of the other were doomed to the infernal gods. On this, the two consuls agreed that the general of whichever wing^[136] was hard pressed, should devote himself to the infernal gods. Both of them offered sacrifice; and that of Decius was of evil omen, that of Manlius propitious. It occurs here, as it often does in such cases, that the liver had no *caput*, which is, what in Italian is still called *capo*, the place where the liver is grown to the midriff; the seam was wanting. The liver exhibits the most varied features: quite healthy animals may have great differences of formation in their livers. In the heart and the lungs, no handle for divinations is to be found; the liver has nearly always some abnormalities. Decius now went into battle with the resolution of sacrificing himself, a resolution which must have been formed

already in Rome, as the pontifex accompanied the army in order to devote him.

The Roman legion then consisted of five bodies, *hastati*, *principes*, *triarii*, *rorarii*, *accensi*. Of these, there were three battalions of the line mixed up with light troops, and a battalion of light troops, the *rorarii* with a third of the *hastati*. Of the latter, nearly two-thirds were from early times armed with spears: the *principes* had at that time already *pila*; but the *triarii* had still lances. These were the troops of the line; but the *ferentarii* were light troops with slings, and one-third of the *hastati*, light soldiers with javelins. In the beginning of the battle, these skirmishers were thrown out like the $\psi\lambda\omicron\iota$ of the Greeks, and afterwards retired through the lines to the rear; yet they always came forth again, as soon as the enemy retreated. These three battalions stood in detached maniples with intervals, as at Zama; but certainly not *en échelons*, such a large interval, as that stated by Livy, being practically impossible in a line, as the cavalry would have broken through it at once: probably they were drawn up in a *quincunx*, in which such intervals might exist. As the whole of the Roman array of battle was calculated to keep up the exertion of the individual, not, like the Greek, to form compact masses; the rule was this, that the two first battalions, covered by the skirmishers, approached the enemy as close as possible. Every Roman soldier was perfectly trained for fighting. In the later order of battle, the soldier began the onset with the *pilum*. The Roman soldiers stood in ten ranks with plenty of room for moving; if these were closed, the first battalion ran forward, halted, and then hurled those terrible *pila* which pierced through armour, and of which each man had several with him. When they thus halted, all was not yet over after the first throw; but the front ranks, after having discharged their *pila*, fell back two steps, and the rank close behind them came forward too, and took its place at the side of each, on the same line; the first rank then retired, and formed the tenth rank. Thus the whole ten advanced in their turn to use their *pila*. This mode of attack, the only possible and true one, was terrible to the enemy. From this quiet rotation it may also be conceived, how it was that the fights lasted a long while, and that the soldiers did not at once come to close quarters: an hour surely was taken up in merely throwing the *pila*. Then did the fight with swords begin, in which the ranks again relieved each other. The rear ranks were not idle in the meantime. If some of the front ranks fell, or were worn out, they took their places; and thus the Roman battle might last a

good while. For this, armies must indeed have been trained and practised, as the Romans were. The dust and the shout of battle were not as confusing as the smoke and thunder of artillery. If the *hastati* had done fighting, they withdrew to the rear of the *principes* who now commenced; if the troops were overpowered, they fell back on the *triarii*, who, at that time, formed a reserve which, however, was always obliged to enter into the fight. Besides those four battalions, the three of the line and one of light troops, there was a fifth, the *accensi*, without armour, and merely intended to fill up the places of the slain, whose arms they were to take. The *accensi* and *velati* were the two centuries which were attached to the fifth class, though below its census.

It is evident that Manlius, in this instance, did a thing which had never been done before: he armed the *accensi*, used them to strengthen his line, instead of the *triarii* whom he reserved for the last decision. By this means he saved himself. Not that, as Livy says, the Latins mistook the *accensi* for *triarii*; this is not possible, though it may be that the *accensi* also were armed with spears, and advanced as phalangites. The Latins went on in the old routine; and even then, they had nothing but its common-place elements. In the meantime, at the wing of Decius the fight was disastrous; the Latins were conquering. On this, Decius caused himself to be devoted to death by the pontifex M. Valerius. This devotion had an inspiring effect upon the army, and one which to their ideas was magical; as the consul had atoned for the whole nation, which was now deemed invincible. And thus, according to the legend, the fortune of the battle turned at once; the legions rallied, and won the completest of victories.

If Rome had been overpowered in this struggle, the whole of her army would have been annihilated. The Latins, however, would not have been able to derive the same advantages from it which Rome did; for as Latium itself was wanting in that unity which is based upon a grand central point, the supremacy would have been left in abeyance between it and Samnium. There is every likelihood that Italy would then have fallen under a foreign yoke; it might perhaps have become the hopeless prey of Pyrrhus, or at least of the Carthaginians, and the Gauls would have incessantly wasted it. Had the Italian nations been wise, the same result would have been brought about without the destruction which now indeed accompanied it.

The battle must have been a complete defeat to the Latins; so decisive was it, that all were seized with panic. Capua evidently yielded at once; and those who had been beaten, did not even try to defend themselves behind the Vulturnus, but hurried away beyond the Liris. All fled. At Vescia, however, a new army was formed. Vescia is an Ausonian town near the Vescinian mountains, probably the present S. Agata di Goti: there are indeed no ruins there, but many tombs. It is situated on the natural road from the Liris to the Vulturnus; going to Naples, one has the mountains on the right hand. The flight of the Latins cannot then have been so disorderly as Livy describes it. Here those who had escaped assembled, and were reinforced by fresh contingents from the old Latin and Volscian towns; the Volscians on the sea coast, and on the Liris, the Auruncians and Sidicines, consequently the whole of the country between the Liris and the Vulturnus, were united. This army offered to the Romans a final battle near Trifanum on the Liris, between Sinuessa and Minturnæ. The Romans at once attacked, without resting from their march, and gained a decisive victory, though with a great loss of men; and this second overthrow of the Latins completed the destruction of all their resources, especially as they had the broad river Liris behind them. The contingents dispersed, each to defend its own town. The Romans quickly followed up the advantage which they had won, and went on towards Rome, passing through the very territory of the Latins. Whether Latium was then entirely subdued already, as Livy tells us, or yet later,—the Latins indeed are still open enemies the year after,—can only be decided according to probability. The Roman senate now pronounced judgment at once: perhaps these had laid down arms in their first fright, and had afterwards taken them up again; perhaps also the senate, with a grand confidence in the certainty of eventual success, passed the resolution that the *ager publicus* of the Latin state, the Falernian district of the Campanians, and part of the *ager Privernas*,—Privernum does not seem to have entered into the league of the Latins,—should be confiscated, and assigned to the *Plebes viritim*, that is to say, to every one who had put on the *toga pura*: assignments beyond the Vulturnus would not have been worth anything to the Romans. The assignation was, however, of very trifling extent, as the chief men among the plebeians intrigued with the patricians against the people. It was probably as a compensation for the *ager Falernus*, that to each of the Campanian knights a yearly revenue of four hundred and fifty *denarii*, to be paid by the commonalty of Capua, was

adjudged: these, as was already remarked, were the Samnites of the old colony, who for the sake of their own interest had taken no share in the struggle. In the following year, after the Romans had received the submission of the Latins, that terrible punishment must have driven the latter to despair, and we see them again under arms. We know from more examples than one, with what cruelty the Romans dealt with a people that had revolted, for instance, Pleminius at Locri, during the war of Hannibal; so that we may believe that the garrisons in each of the towns were allowed to commit every crime, and such places had long to suffer all the horrors of a city taken by storm. The Romans now made war against the Latins from the nearest points of their territory. The insurrection was only in old Latium proper; in Tibur, Præneste, Pedum, on one side, and in Aricia, Lavinium, Antium, and Velitræ, on the other: this last town was originally Latin, then Volscian, at length it received a Roman colony; Tusculum and Ardea were Roman. These places formed two masses which defended themselves. The two consuls, Ti. Æmilius Mamercinus and Q. Publilius Philo, fought against them: Publilius had foiled an attempt of the Latins in the field;^[137] Æmilius besieged Pedum. Here the united peoples of Tibur and Pedum had intrenched themselves, and the year passed away without any result. It was resolved to appoint a dictator; it is uncertain for what reason. Æmilius thence took occasion to name Publilius for that dignity.

There was now a suspension of arms, and attention was turned to domestic laws *minuendo juri Patrum*, the necessary results of the existing state of things, and not to be blamed, as Livy imagines. The first was, that one of the censors was now, of necessity, to be a plebeian. This in truth had already before been the case; C. Marcius, as we know, was the first plebeian censor; but it was only now that it became lawful, and was always done. The second, that to the laws which should be brought before the *comitia centuriata*, the patricians were to give a previous consent, whatever might be the resolution which the centuries should come to. Formerly the consuls had the initiative in the laws; afterwards also the prætor, as he too might preside in the senate, and make motions, his power having sprung from that of the consuls: the ædiles therefore had not this right, although they had the *sella curulis*. Yet the decree which the senate had passed on the motion of the magistrate, was not law; but it went to the centuries, and then to the curies. This circuitous method began when the *comitia centuriata* were added to the constitution. The senate was at first a patrician committee, and

in fact even now the majority was still patrician; there was, however, already a very powerful plebeian element in it. Since the decemvirate, a hundred and ten years had elapsed; many patrician clans therefore must in that time have become extinct, and others have gone over to the *Plebes*. From Von Stetten's history of the houses of Augsburg, we see that out of fifty-one houses in that city, thirty-eight became extinct in one hundred years; and that those which were left, then put forth the self-same claims which the fifty-one, a hundred years before, had not been able to make good. There was therefore no longer any reason whatever for allowing the patricians at Rome to have the veto as formerly; if it were taken away, it would only save a very great deal of unnecessary quarrelling. The more the patricians dwindled away, the more the ground was felt to be shaking beneath their feet, the more jealous they became, and the more they displayed their ill-humour in the weightiest business of the state. The change therefore made by Publilius, was a well-grounded one. Nothing, however, was ever formally abolished in Rome; but if old institutions were no more of use, they were allowed to continue as forms, so that they could do no harm: and thus it was enacted, that if the senate wanted anything to be decreed, the curies were to give their sanction to it beforehand. It is probable that, as in after days, only the lictors lent themselves to this farce. The third law is, *ut plebiscita omnes Quirites tenerent*; and it concerns, as was explained above, government decrees (ψηφίσματα), which were to be confirmed by the tribes, instead of by the centuries. This too was a mere formality; for if the tribunes, with whom the consul had previously conferred, agreed to them, the *Plebs* also always gave its consent.

The following year 417 is a decisive one: it is that in which the two hostile masses, the people of Pedum with their neighbours, and the inhabitants of the sea-coast, were utterly routed by L. Furius Camillus and C. Mænius, and Pedum taken by storm. C. Mænius is looked upon by the ancients as the one who decided the war. He conquered on the river Astura, the position of which is not known; a place of that name was situated between Circeii and Antium: certain it is, that he gained a victory on the coast, and Camillus another inland. To Mænius as the conqueror of the Latin people, an equestrian statue was erected. From henceforth no Latin army makes a stand any more in the field: the towns one by one capitulated. Livy's account of it seems extremely satisfactory; but, if we compare it with other important notices, it is not so. He postdates events; some matters he

omits, others he conceives but vaguely; and he makes no distinction between the free and the dependent *municipium*. Thus it happens, that we have only a general knowledge of these relations. The whole of the Latin state was broken up; the single towns, the senate resolved upon keeping, and making them of use to Rome, which, with extraordinary wisdom was done in different ways. Tusculum had had from of old the right of Roman citizenship, but not completely; its inhabitants now became full citizens. To the people of Lanuvium and of Nomentum, the freedom of Rome was granted, to become full citizens like the Tusculans; and at the same time, their population was enrolled in the census as plebeians, and admitted into the tribes. The Tusculans were put into the *tribus Pupinia*,^[138] the Lanuvinians, and perhaps the Veliturnians, were formed into a new tribe, probably the *Scaptia*: whether the Nomentans formed the *Mæcia*, is uncertain. The Aricians also are mentioned by Livy among those who had received the citizenship; but according to an authentic account, they stood some years later in the position of a dependent *municipium*. Thus therefore these peoples attained to great honours. No place has given birth to so many renowned families as the little town of Tusculum, the cradle of the Fulvii, Porcii, Coruncanii, Curii, and others. This is a remark of Cicero's, and as a general rule, a particularly large number of great men thus often come from certain places. Of Lanuvium hardly a family can be named.

Others also became citizens; but not *optimo jure*. From thence begins the class of citizens *sine suffragio*, which afterwards increases, and rises to a position of its own. The isopolites of old were *municipes*; and, if they settled in Rome, they could exercise the full rights of Roman citizens, a case like that of the freemen from the district of Florence before the year 1530. Into this relation of isopolity did those towns now enter, which had received the *civitas sine suffragio*. There was this difference, that formerly those only were *municipes*, who came to Rome, but whose native land enjoyed perfect independence in its political relations with other countries. This was now done away with. Single places became *municipia*; but were quite dependent with regard to foreign affairs; in the definition therefore in Festus, this is the second class of the *municipia*. Such *municipia* had *connubium* with Rome, and their own magistrates, and their inhabitants might acquire landed property there; but they were entirely dependent upon Rome, like an *arrogated* son on his father, or a wife *quæ in manum convenerat*: with regard to others they had no *persona*. Their right as

regarded Rome, was to have equity at her hands. To that of Roman citizenship, they might be admitted as individuals by the censors; yet they did not serve in the legion, because they were not in the tribes; still they had to furnish troops, not as *socii*, but in fact as *Romani*, although in separate cohorts. The question may be mooted, whether they were liable to the *tributum*; that is to say, whether, if a *tributum* was levied at Rome, they had to pay according to the Roman census, and possessed the right of sharing burthens and advantages with the Roman people; or whether they were assessed at home. The latter was probably the case, as they raised and paid their troops themselves, and the *tributum* was also inherently connected with the *tribus*. To pay they had at all events; that was a thing of course. Without doubt, they had a share in the common land: if the Romans got a general assignation, these places also had a district assigned to them which they might dispose of in whatever way they chose. It is thus only, that Capua could have made such considerable acquisitions after the war of Pyrrhus.

Thus was this decision an important epoch for the Roman state. There sprang up quite a new class of *municipia*, the consequence of which was, that the Romans frequently bought estates in those districts. Soon, however, an inconvenience showed itself; as Romans had to appear before the tribunal of those who were by no means of so high a standing as themselves. This was afterwards remedied by the establishment of a *præfectura*; which the ancients, Livy in particular, misinterpreted, as if those towns had become quite subject when such an office was instituted. The province of the præfects (townwardens, reeves), was that of administering the law to the full citizens. Such places were then called *fora* or *conciliabula*, which was much the same thing as the townhouse in an American township: here was the court of law, and the markets also. The Roman who, for instance, bought at Capua a slave according to the law of that district, could not claim him as his property at Rome; if, however, the purchase had been made before the præfect according to Roman law, it could not be impugned on any account.

The fate of the other Latin towns was very hard. From Velitræ, the old senators, who were probably Volscians, together with a large part of the inhabitants, were led away across the Tiber into exile; and a new colony was sent into the place. To Antium, which was a sea-port, a marine colony

was sent; the inhabitants received the inferior right of Roman citizenship, which the Roman settlers also entered into on going thither. The Antiates were deprived of their armed vessels (*interdictum mare*): the Romans detested piracy, and in this way got most easily out of it: whether the commerce of the Antiates suffered from it, was all the same to them. The other places were forbidden *connubium* and *commercium* among each other, and also common deliberations (*concilia*), as in Achaia, Phocis, Bœotia; from none of them could any thing be bought or sold to the other; besides which, each had its own burdens; so that, if once by any calamity the landed property in one of them fell in value, the distress was very great. They were limited to selling among themselves, or to Roman citizens, as they had *commercium* with Romans only. This was the cause of the decline of these towns; for in proportion as Romans settled there, their burthens became greater and greater, so that part of them vanished from the face of the earth. Præneste and Tibur only kept their footing. They were *agro multati*; but in Polybius' times they again make their appearance in possession of the old *jus municipii*. According to Livy, it might seem as if none but the Laurentines had retained the old *fœdus*; but it is very possible that this was also the case with these two, and that, although they at that time lost their demesne, they still preserved the franchise of the *municipium*. Both of them had large and fruitful country districts, and they must have had peculiar vitality in them: Præneste indeed tried more than once to shake off the Roman yoke. In this isolation all those places were comprehended, which at the end of the fourth century were leagued with Latium. The prohibition of the *concilia* remained in force; for the *feriæ Latinæ*, the old diet, became a mere shadow, a *conventus* (πανήγυρις) solely for the celebration of the games. This isolation was also particularly extended to the Æquians, who doubtless had been in the Latin league.

This was an expedient which the Romans now invariably employed, wherever they wanted to break a conquered people, as they did afterwards in Achaia. By this means, the chief places were entirely severed; the feeling of unity died away; they looked on each other as strangers,—and such a separation generally brings on hostility after it, as in Northern and Southern Dittmarschen. As the Romans placed no garrisons in the towns, they were obliged to adopt this Machiavellian policy. In the same manner, the Grand Duke Peter Leopold of Tuscany, who likewise kept no troops, divided his subjects, and thereby made them bad.

The Latin colonies, as it seems, were severed from the rest of Latium; whereas formerly they had been attached in the first instance to Latium, and did not immediately depend upon Rome. They now became a peculiar class of subjects, the like of which had not existed before; as Rome from this time founds Latin colonies by her own absolute authority. These deserve the admiration with which Machiavel speaks of them; they are the device of a grand, statesmanlike spirit. They were increased to thirty, even as there had formerly been thirty Latin towns. These colonies have their origin in the treaty between the two peoples. A district conquered in common, was formerly shared between them both; but those which could not, or which were not to have been thus divided, were assigned as colonies. Rome also founded for herself several colonies, which received the Cærite franchise; but those were called Latin colonies. Here Roman citizens might settle, and thereby left the tribes; yet they could again become citizens, if they chose. Afterwards these colonies joined the Latin towns: in the list of the thirty Latin places, previous to the battle at the Regillus, in Dionysius, which are certainly those in the treaty of peace between Rome and Latium, there are some which were stated to have been founded as Latin colonies by Tarquin the Proud, and are mentioned as such in the war of Hannibal. With regard to these, there is no doubt but that those Romans who joined the Latins in them, acquired equal civil rights. In the Latin colonies, the number of citizens was much larger than in the Roman ones. Afterwards the Italians were admitted to take part in the colonies; they also sometimes got a share of the demesne; and thus the colonies became the great means for the spread of the Roman dominion, and by the Latin language, which became that of Roman policy, those of the old inhabitants were overpowered. They always were from the first dependent upon Rome, and quite unconnected with each other. Until then, the number of the Latin colonies was inconsiderable; from henceforth it increases. All these places were bound to military service, and Rome prescribed to them their contingent: they mainly contributed to the success of the Romans in the Samnite wars. The Romans surrounded themselves with colonies, as their border strongholds. A district was given over to several thousand men with the obligation to keep it; there were added to them from Rome as many as liked to join them, and others from Latium and other nations. The laws were established; the old inhabitants remained as a commonalty,—the mass of the tradesmen certainly consisted of them; they amalgamated before long with the *coloni*,

and this germ grew up to be a stately tree. Rome first planted these colonies on the Liris, and in Campania; then drew this chain as high up as Umbria, and pushed it on further and further. This double plan of founding colonies, and of imparting the right of citizenship, without, and in some cases with the *suffragium*, became the means by which Rome, from a city-corporation, grew into a state which comprised the whole of Italy. The *coloni* were not charged with any personal taxes, which fell upon foreigners only; they had but to pay tithes from the *Ager, ex formula*.

The revolution which resulted from the conquest of the Latins, is immense in its consequences. Only two years before, Rome's destruction by the Latins was quite a possible event; now all the resources of Latium had accrued to her, which had not been destroyed during the struggle. There follows, however, from the reasons mentioned above, an epoch of decline for the Latin towns.

Among the Campanians the Romans likewise created divisions: they made a distinction between the *Populus* and the *Plebes*, the former being the indemnified knights. The relation with the Hernicans was not changed; or if it were, they had now in the victories of the Romans got an equivalent in money. Capua, Cumæ, Suessula, Atella, Fundi, and Formiæ, receive the free *municipium* and isopolity; the Romans therefore nominally acknowledge their full equality.

We are hardly able to form a distinct idea of the then state of the Roman commonwealth at home, owing to the insufficiency of the accounts which we have. The war had cost Rome such heavy sacrifices, that although her sway reached from Sutrium and Nepete as far as Campania, she suffered from faintness and loss of blood for a long time after; and thus the calm which ensued is perfectly intelligible. The year after the decision of the war (418), the prætorship was imparted to the plebeian order, under certain conditions; so that from that time, the prætorship, in accordance with the rule laid down, alternated between patricians and plebeians. This may be historically proved: the exceptions are worth remarking, and they help to explain the law. The first plebeian prætor was Q. Publilius Philo; and therefore, perhaps, some connection between this law and three others which go by his name, may be surmised. When the second prætorship, the so-called *prætura peregrina* was added, one was always a patrician and the other a plebeian; just as afterwards, when there are four in number, two are

patricians, and two plebeians. But when afterwards there were six of them, such an equal division could no longer take place, as the patricians had fast dwindled. The completion of the Licinian law was a great step in advance; the equality of the two orders had now become a reality; for the circumstance that the patricians still chose *interreges* exclusively from among themselves, is of no importance. The recurrence of the *interregna* at that period, indeed shows that the patricians were still dreaming of evading the law; the gain became the more tempting, as the number lessened of those who laid claim to it. Yet these attempts, as far as we can see, did not call forth any violent reaction: the force of circumstances and the reality of facts turned the scales.

Abroad there was no war of any consequence. The Romans had to carry on a petty warfare which was rather welcome to them, and which had for its object, to make their state a connected whole as far as the Liris and Campania. On both banks of the Liris dwelt the Auruncians (called Ausonians by the Greeks, and also in Livy, when he borrows from Greek sources, namely Fabius, or Dionysius), an Oscan people. These had taken part against the Romans in the Latin war; but had afterwards submitted to them as subjects, and were now under their protection. The Sidicines had been left by the Romans to be conquered by the Samnites, and must have come to terms with them: so that the Samnites allowed them to keep their ground, not wishing the barrier between themselves and the Romans to be pulled down. For this reason, there was now jealousy between the Romans and Samnites. Nor could it have been otherwise. It was especially owing to the Samnite conquests in those parts, that the Volscians had attached themselves to the Latins, and afterwards to the Romans; as the Samnites, at that time, were more dangerous to them than the Romans. The great states would let the small ones make war with each other; for by this means events might be brought about, in which they would find an opportunity for coming forth with all their might: these states, were as it were *pour les coups d'épingles qui précèdent les coups de canon*. The Sidicines, leagued with the Auruncians of Cales, attacked the other Auruncians; and therefore the Romans marched against them. The Romans carried on the war with much policy: they behaved lukewarmly, as it was far from their interest that the Sidicines should be hard pressed, lest they should throw themselves into the arms of the Samnites. They took Cales, between Teanum and Cassilinum, and occupied it by a strong colony. The system was now, by

means of such settlements, to gain a firm footing in the country between the Liris and the Volturnus, as far as the Samnites did not possess it: this course they pursued with great perseverance and great success. By the colony of Cales, Rome connected Campania, which was ever suspected, with her own empire. A second colony, founded soon afterwards, was Fregellæ, which in the seventh century became so remarkable for its pride and its misfortune: it was situated on the spot where the Liris is crossed by the Latin road, which leads through Tusculum to the Hernican towns, and thence by Teanum to Capua. The planting of this colony was a real usurpation: the Samnites were masters of the country as far as Monte Casino; they had subjected the Volscians there, and destroyed Fregellæ; by the treaty moreover, they were allowed to spread in those parts, and even if they had abandoned them, the Romans were not to take possession of them. The Samnites had also taken Sora, and established themselves there, with views certainly as ambitious as those of Rome. The Romans concluded isopolity with the Caudinians; nevertheless the two nations were convinced that war between them was inevitable. Under these circumstances, the Romans indeed were engaged in as troublous a policy as the interesting one of the sixteenth century was.

It is certainly not the mere result of chance, when we remark in history, that at certain periods, in countries far apart, the very same kind of changes take place, which, owing to the distance of space and time, cannot have been brought about one by the other, and from which a new order of things springs up. In this we trace the hand of Providence, which guides the fortunes of men, and the progress of all nations, as one whole. Such an epoch is the breaking up of the Latin league, and the spread of the power of Rome, quite similar to the state of things towards the end of the fifteenth century. An interesting parallel may be drawn between the two periods. It is as if the events which single nations and countries may work out by their own resources, had been achieved; and as if all the relations of life should now be changed according to new landmarks. Nations which had ever been strangers to each other, are now brought into contact; the states, which had hitherto been the most flourishing, begin to decay, and there only remains the yellow leaf of autumn; the intellectual brilliance of the most gifted races is waning fast, never to blaze forth again; inclinations and tastes take a new turn, as well as the whole of every day life with its animal wants and enjoyments: even the physical nature of man is changed, as new diseases make their appearance. Thus it was at the end of the fifteenth century. The

bloom of the Italian towns had withered, even as, at the period of which we are treating, Greece was falling into decay. The cause of the prosperity of Greece, the balance of its many small states, was also that of its decline; for no single one of these was powerful enough to keep up the whole.—The very same were the relations of Italy at that time. Florence and Venice stood side by side with equal power; if Venice had been strong enough to have had the mastery, a new and better order of things would have arisen. The battle of Chæronea and the downfall of the Latins took place in the same year, and this coincidence shows us the hand of Providence working in secret. The Romans and Samnites, to all appearance, faced each other as equals; and it seemed as if the struggle must have ended in the destruction of both, of which foreigners and barbarians would then have reaped the advantage. For in the North, the Gauls already held a great part of Italy; and on the other side, the Carthaginians were threatening. It is true that a short time before, Timoleon had checked the spread of the latter in Sicily; yet sooner or later, they could not fail to take that island as well as Corsica, even as they had already got Sardinia, all but one mountain range. Thus it seemed, that after the Romans and Samnites had mutually ruined each other, these two peoples were to divide Italy between themselves.

As for the relations of Rome to the Greeks, there had been hitherto no political connexion between them. There seems indeed to have been some intercourse with the inhabitants of Magna Græcia and the Siceliotes; and I believe that even the learning and science of Magna Græcia exercised a much greater influence than is generally supposed, and that the knowledge also of the Greek language may not at that time have been anything unusual at Rome. Even though Pythagoras should not have become a Roman citizen, as perhaps he is not even an historical personage, the Pythagorean philosophy was from an early period known and admired by the Romans. In the case of some neighbouring places, communications with Greece are more than once spoken of. Cumæ gave occasion for this; the Sibylline books were also indeed reputed to have been kept at Rome. The first missions to Delphi are fabulous, though in fact the Romans did consult the oracle. What we know besides, is limited to the transactions with Massilia at the time that the city was taken by the Gauls, and with the Lipariotes, the guardians of the Tyrrhenian sea against the pirates. All the rest is grounded on legends. But the first political relation, by which Rome as a state comes at length to be connected with the Greeks, dates from that time; for the

treaty with Massilia was in all likelihood nothing more than a treaty of commerce, which I am strongly led to believe from the circumstance of Massilia and Carthage being at enmity, on account of the fisheries, as Justin informs us. By these we are to understand either the coral fisheries on the African, or the tunny fisheries on the Italian coast: the inhabitants of Provence were during the whole of the middle ages in possession of the coral fisheries of Africa. That first connexion was the treaty between Rome and Alexander, king of Epirus;—for, one may indeed call the Epirotes Greeks, although they were of Pelasgian origin, as they were hellenized. Alexander was called over to Italy by the people of Tarentum, in the year of Rome 420, Ol. 112.

About this time, the glory of Magna Græcia had already vanished; most of the places, Posidonia, Pyxus, Caulonia, Hipponium, Terina, and others, had been conquered by the Lucanians and the Bruttians, who had only been able to keep part of them, and had abandoned the rest: a few only still held out, but had to struggle for their existence. Rhegium, Locri, and Croton once so flourishing, had been laid waste by the Dionysii of Syracuse: these indeed had left them alone again; but they lay half in ruins, having only been wretchedly patched up, just as Delhi and Ispahan are now. Thurii and Metapontum had much trouble to defend themselves against the Lucanians; their territory was almost entirely lost, and they were like the Italian towns in the sixth and seventh centuries, when they made head against the Lombards. The only Greek city which, amid the general calamity, was in the full pride of its bloom, was Tarentum. It is true that soon after the expedition of Xerxes, this place had suffered a great defeat from the neighbouring Messapians; yet it had recovered from it, and when the tyrants of Syracuse and the Lucanians threatened the other towns, Tarentum began to flourish. It was undoubtedly increased by the immigration of many Greeks from the other cities, some of which were ruined, and the rest in danger. A parallel to this may be found in the growing prosperity of the Netherlands, and of Switzerland, at the time of the thirty years' war: the flourishing condition of these countries was chiefly owing to the misery in Germany, as industry and commerce had sought a refuge there. In the same way did Tarentum wax great; and it had the advantage besides, which is always enjoyed by a neutral state between countries at war, to which we are to add the wisdom of its government.

The Tarentines were much enriched by industry and commerce, by wool manufactures, by their skill in dyeing, and also by their salt pastures; and with the exception of Syracuse, none of the Greek cities in those days, not even Rhodes itself, were perhaps so wealthy as Tarentum. This town from its position was perfectly peaceful: its population consisted of excellent seamen. Navigation and fishing in all likelihood was their element then, as it is now: this life of busy laziness is the delight of the Greek and the southern Italian; the Neapolitan is perfectly happy when rocking himself about in his fishing boat. Nature has given everything in plenty to the country of Tarentum. Probably the sea is nowhere in Europe so rich in shell and other fish, as in the bay of Tarentum: the poor Tarentine in his idleness is indeed as happy as a prince; he lives only on bread, salt, and olives, which he can always easily procure. Tarentum had no large tracts of land belonging to it, in which there was room for tillage. The Latin race, the Etruscans, Umbrians, Sabellians, and the rest, are born husbandmen. The Italian peasant is an excellent being as long as he is hereditary owner of the soil: he is honest and respectable, whilst the townspeople are good for nothing. The Italian, unless he be of Greek extraction, is quite unfit for a sea life: the Roman coast is supplied with fish by the southern towns, which were still Greek in the middle ages. The Greek is a bad husbandman, even as in ancient times, and not to be compared to the Italian. Although there is a great deal of agricultural knowledge to be found in Theophrastus' book, the Greek did not feel happy in this pursuit: he likes to cultivate the olive-tree, the vine, but not corn. The Greek soil is also in many places almost wholly unfit for growing corn, and is far more suited for olives. The Greek is a cheerful, happy fisherman, and a capital sailor.

The Tarentines were a thoroughly democratic people, like the Athenians of the Piræus, as Aristotle already remarks; owing to the revenue from customs and a variety of other sources, it was a very rich state. With these vast means they were enabled to keep standing armies, like the Dutch in the seventeenth century, as it was also then customary throughout the whole of Greece. General opinion is unfavourable to the Tarentines. At the time when they were engaged in war with the Romans, they were indeed a luxurious, unwarlike people; but the blame which is generally heaped upon them, is in the true spirit of human nature, which when some one, formerly mighty, has fallen, chooses rather to trace to the man himself the causes of his own ruin, than to pity him. I am convinced that in Tarentum, next to Athens, the

wisest and most eminently intellectual men have been bred, and that the commonwealth made an excellent use of them. A state, which reared Archytas, the Leibnitz of his age, and which did not look upon him with jealousy, as the Ephesians did upon Hermodorus, but called him seven times to the office of general, cannot be lightly thought of; the Grecian mind in the whole of its fullness must have dwelt there. The wretched anecdotes which Athenæus, for instance, tells of the Tarentines, are refuted by that single fact. They do not deserve censure any more than those great characters reviled in Schiller's *Mary Stuart*; a thing which I can never forgive in that fine poem. It is indeed possible, that Archytas and the other statesmen of Tarentum looked too much to the interest of their own town, and were not sufficiently imbued with the spirit of general Greek patriotism. To such a feeling the Athenians alone have raised themselves. Archytas may have kept up a good understanding with the tyrants of Syracuse, having regard rather to the advantage than to the honour of his city; yet this is a course from which, in unhappy times, the most worthy men of all countries, when they were at the helm of the state, have not kept altogether clear. The Tarentines are reproached with having employed foreign soldiers, and that in whole armies; first of all, Archidamus of Sparta; then Alexander of Epirus; then Cleonymus, Agathocles, and at last Pyrrhus. For this, Strabo taxes them with cowardice, charging them besides with having shown themselves unthankful to their protectors. Yet it was a general evil of the times after the Peloponnesian war, that militia soldiers were no longer brought into the field, but that standing armies came into use: this was owing to the circumstance, that wars were on a larger scale, and had become more bloody, so that the old stock of citizens was destroyed. The devastations which had attended them, had now made numbers of men homeless, who, especially in Greece, as in modern times in Switzerland, roved about by thousands, being the greatest of nuisances. There had indeed for a long time existed in Greece the fine custom, that the inhabitants of a town which had been conquered and destroyed, remained free, and were not sold for slaves; but all that they had was taken from them, and thus they were obliged to live by robbery. In the thirty years' war, it also became more easy every year to find troops, πόλεμος πόλεμον τρέφει. These soldiers, who were always under arms, were far superior to the militia; and when once it was begun to employ them, the militia were soon no more able to stand against them at all. A town like Tarentum could raise no legions.

This can only be done where there is a respectable and numerous peasantry; whence it happens that there are countries where no other choice is left but to enlist soldiers, as at Florence when the militia had got out of practice, whilst the same thing is ruinous for others. The people of Tarentum would thus have to employ mercenaries, and to keep a standing army would have been injurious to their freedom; if therefore they could do without troops, they were quite right in contenting themselves with their town militia. But if ever it became necessary to enlist troops, there was in Greece at Tænarus the gathering place of the men without a home (*latrones*, μισθοφόροι). These, however, were untrustworthy and faithless, as they followed him who paid the most, like the *condotti* in the fifteenth and sixteenth centuries; and a condottiere was very apt to be guilty of treachery, or he became a tyrant. It was therefore much better to take princes with their well-trained armies into their service, the honour of the prince being a pledge to them. Besides which, why should the Tarentines put themselves out of their way in their trade and business, if they could do otherwise? It might become dangerous; but they wisely took care of themselves, as long as they could. In their dealings with Alexander, they were gainers; with Pyrrhus, however, this was not the case. The English system of enlistment also has been blamed without any insight into the merits of it.

The Tarentines got into a quarrel with the Lucanians, by whom Heraclea and Metapontum, which were in a manner under their protection, had been attacked. The Lucanians had at that time already lost again that part of Calabria which was afterwards called Bruttium: the population there, which was made up of the Pelasgian serfs of the Greek towns, had collected into a people, and had renounced their allegiance; on which the former had wisely recognised them, and made them their friends. In order to indemnify themselves, the Lucanians turned their arms against Tarentum, and tried to conquer Heraclea. In this strait, the Tarentines had sent for Archidamus of Sparta, who, with the unfortunate Phocian refugees, had engaged himself in the service of Crete; but he was killed on the very day that the battle of Chæronea was lost. After some years, they called in Alexander the Molossian, of Epirus, brother to Olympias, the queen of Philip, who also had given him his daughter Cleopatra in marriage. He had been an appanaged prince, and his dominions were very small. At first, he had been presented by Philip with three little towns in Cassopia on the Thesprotian coast; afterwards the latter, who spread his rule in Epirus, and everywhere

took the strong places, raised him to the throne of the Molossians; yet Alexander, as king of that people, found that he was hardly able to do any thing. Philip followed the same line of policy with his relations, which Napoleon did with his brothers; they were to be kings, but without power; for which reason, Philip kept a stronghold like Ambracia for himself. In the times of Alexander of Macedon, our Alexander had to obey the commands of that old, insolent Antipater; he was not on good terms with Alexander, and according to the account of the ancients, it was jealousy of the glory of his nephew which moved him to go to Italy: he is said to have bitterly complained, that it had been his fate to fight against men, whilst the other had only women to withstand him. He went to Italy with views quite different from those of the Tarentines when they called him in. These had engaged him as a petty prince with a well trained army, for their protection; but Alexander went over with the intention of conquering for himself a kingdom, and thus there could not of course be any good understanding long kept up between them. He was successful: he overcame the Sallentines; made a diversion to Posidonia; freed the Greek towns, and united them in a confederacy of which he naturally became the στρατηγός and ἡγεμών. He was of course never at a loss for subsidies from the Tarentines, any more than the belligerent nations of the last century, who had them from England under Walpole; but the memory of his achievements has almost entirely past away: we find but a few stray notices in Tzetzes. His success was brilliant as long as he was on good terms with the Tarentines; but he betrayed his ambitious views and wanted to assume the title of a king of Italy (no doubt in the strict sense of the word). This stirred up the Tarentines, and caused a breach between the two parties. Whether they concluded a separate peace with the Lucanians, is uncertain; but as the assembly of the Greek towns was now held at Heraclea, although Tarentum was the most powerful and distinguished among them, it would seem that this change was made by Alexander, which clearly shows a quarrel with the Tarentines. As, however, the power of Alexander was now too inconsiderable, he seems to have carried on the war as an adventurer, like Charles XII.: he made roving expeditions. Pandosia, in the heart of Lucania, where he was surrounded by Lucanians and Brutians, became his Pultawa: his army was divided, both divisions of it annihilated, and he himself slain. He had before that concluded a treaty with the Romans, which Livy mentions cursorily, but certainly from Roman annals. This is a

proof how the Romans calculated circumstances; they had nothing to fear from him, and wanted to unite with him for no other reason than to overawe the Samnites, who had made a treaty with Tarentum. Real alliance between Rome and Alexander, there was none; for the treaty with the Samnites was still in force. As far as we can get an insight into these matters, we must blame the Romans for having taken the part of foreigners against a native and kindred people. The Samnites are not mentioned among those who at last made war against Alexander; but he had come into collision with them by his excursions: at Posidonia they fought against each other.

What would have been the consequence, had Alexander founded a kingdom of Italy, is a very interesting speculation. Probably it would only have made the victories of the Romans more easy; and therefore, also, their treaty with him was an act of farsighted policy.

In the state of things which now existed between Rome and Samnium, it was not difficult for the ancient historians, to bring the circumstances most vividly before their minds; which we particularly find to be the case with Dionysius, in the *excerpta de Legationibus*. Both parties saw in each other's doings arch-knavery and malignity, and on the whole they may not have been mistaken. The Romans had kept the peoples who dwelt on the side towards Campania, partly in a position of isopolity, as the Fundanians and Formians; partly in one of dependence, as the Privernates. These last tried to shake off their yoke, as the *civitas sine suffragio* was only a burthen to them, the advantages which they enjoyed from it being trifling in proportion; that they could possess land in the Roman territory, was no great gain when their own town itself had a fruitful soil. The Romans beheld in this rebellion an instigation which came from Samnium; and without doubt, any one who was discontented with the Roman rule, met with fellow-feeling among the Samnites. The Privernates were joined by the Fundanians: Vitruvius Vaccus, a Fundanian of high rank, had led his countrymen into this undertaking; yet they did not follow it up, but drew out of it. On the Privernates the Romans passed a severe judgment, of which Livy and Valerius Maximus tell a very pretty story. The ambassadors were to answer on their conscience, what punishment they had deserved; and they said that they deserved that punishment which he ought to have, who has struggled for freedom. The consuls took this answer in good part, and then asked whether they would keep the peace? "If you give us a good

peace,” they replied, “we will keep it; if you give us a bad one, we will break it.” The Romans then gave them the right of citizenship. Dionysius has the same story in the *excerpta de Legationibus*; but he dates it many years earlier, and it has perhaps no foundation whatever. Valerius Maximus is really no authority at all: he is nothing but the echo of Livy. The tale has perhaps originated with the Gens Æmilia, or the Plautia, who were the patrons of Privernum, and had the surname of Privernas; the annalists then foisted it in where it seemed best to tally.^[139] A few years afterwards, the Privernates, according to an unimpeachable statement in a *plebiscitum*,^[140] again revolted. This is, however, struck out, in order to maintain the old tradition with all its interest. At a later period, we find Privernum in possession of the right of citizenship, and that a much more ample one, than the bare Cærite franchise, as its people constituted the *Tribus Ufentina*. Fundi and Formiæ were likewise severely punished. This is the natural course of those events which Livy relates so pathetically; the magnanimity which is there ascribed to the senate, is quite incredible, and mere declamation.

There is no doubt that the Samnites secretly fomented the disturbances among the subjects of Rome: they openly demanded the evacuation of Fregellæ. Justice was undeniably on their side. The Romans had no right to found a colony on the territory which the Samnites had conquered, although these were not in possession of Fregellæ at the time that they took it: such indeed was the state of the case, as otherwise it is not likely that this would have happened. Yet in matters like these justice cannot always be done;—want of right and injustice are often very different things. I would not throw a stone at the leading men among the Romans for not having given up a place which they had occupied on a waste soil, although they had positively no business to do so. The Samnites were spreading rapidly in that neighbourhood; Fregellæ was a *tête-de-pont* and a point of defence on the upper Liris against them, and the advantage which the Romans would have derived from its possession, was much less than the disadvantage of its being in the hands of the Samnites. The Latin road would have been laid open as soon as they gave it up; and their allies, the Hernicans, Latins, and without doubt, the Æquians also, would have been left at the mercy of the enemy. It was very like the case which occurred in the year 1803, after the peace of Amiens, when every one called for the evacuation of Malta by the

English: they could not give it up, notwithstanding their promise to do so, which indeed they ought never to have made. The sluggishness of the Samnite senate might have perhaps afforded a guarantee against any ill use being made of Fregellæ.

The Romans were so prepared for the breaking out of the war, that as early as two years before, they had an army in cantonments on the frontier; because they dreaded an attack against Fregellæ. At that time, the Romans had not only secured a friend by the treaty with Alexander of Epirus, but they also tried to guard against the enemy by means of a peace with the Gauls. These had now had their abode in Italy for more than sixty years. The national migration had stopped; and as they had nowhere been quite a savage people, they had not failed to adopt a certain degree of civilization. They betook themselves to the tilling of land, and became a meek race of peasants; like the Goths under Vitigis, who were likewise a set of unwarlike husbandmen, so that the great Totila had to train them anew into soldiers. The Gauls had two roads to Southern Italy,—the marshes on the Arno; and the Apennine country, which was grown quite wild, being the bulwark of Etruria,—the one down the Tiber, through Umbria, to Latium and Campania; the other through Picenum, along the Adriatic, to Apulia. By the latter of these they must have advanced more than once; but there they were withstood by the northern Sabellian peoples in the Abruzzi; and it is also more difficult than the former. Now, in order not to be troubled by an attack of the Gauls, which the Samnites might easily have brought about, the Romans concluded a formal peace with them, which is passed over in silence by Livy, but is positively mentioned by Polybius, and which there is no doubt that they bought with a sum of money.

This carefulness of the Romans also makes it highly probable, in my opinion, that the old account of their having, in common with other Italian peoples, sent an embassy to Alexander at Babylon, is not a mere fiction. Alexander had put a limit to his conquests in the East; to go southwards against the Ethiopian nations would have been folly; that he would settle down to rest, no one could believe: it was therefore to be expected that he would turn to the West. People generally fancy the places in the west to have been much more isolated than they were; and they will suppose for instance, that the Romans had known nothing whatever of Alexander. But surely they must have had at Rome some knowledge of Alexander's

campaigns, just as Clapperton and Denham, in the interior of Soudan, heard of the insurrection in Greece, and of the part which individual Europeans took in it. When my father was at Sana, in the time of the seven years' war, there they had quite positive news of what was going on, especially of the struggle between the English and French; an Arab showed him a map of Europe: and yet these modern Arabs are people quite lost to the world. The communication was also much easier in those days, than it was in the twelfth and thirteenth centuries, though even then there was some intercourse with the interior of Asia. In Rome there must have been at that period, maps of the world, as in Greece; individuals among the Romans may also have been imbued with Greek learning, as the cognomen of P. Sempronius Sophus seems to prove. That the Samnites and Lucanians sent ambassadors to Alexander, is disputed by no one; that this was done by the Romans, the later writers have doubted. The Lucanians did it, to turn aside from themselves his anger at the death of his uncle; the Samnites, that they might be good friends with him should he come to Italy; the Romans, in like manner, so as at least not to offend him, even though they might not have hoped to gain him for their friend. Even the Iberians sent to him, when they heard of his warlike preparations against Carthage. Livy takes it in his head, that the Romans had perhaps never heard of him. Either they may have suppressed the above-mentioned notice from pride, or the Greeks have invented it from vanity; which, however, must have been done at a time when the Romans were already so powerful, that the homage of Rome heightened the glory of Alexander. But Clitarchus, by whom that statement has been handed down to us, was an elegant author who wrote immediately after the death of Alexander, when the Romans were still engaged in the doubtful struggle with the Samnites. Aristobulus and Ptolemy Lagus, who in historical truth stand far above him, speak of Tyrrhenians and Samnites: in this case, the Romans are comprehended under the former name, even as all the Sabellian peoples are meant by the term Samnites. If Alexander had lived, he would first have turned his arms against Sicily, and from thence have gone against Carthage, which would certainly have fallen; then to Italy, where the Greeks would have received him with the same enthusiasm as in Asia Minor; for he was δεινὸς παρέλκειν. He would have gained them over, have made leagues with them, and have so weakened those who opposed him, that the whole of the peninsula would have been his. Livy has on this subject a discussion which is very finely written, but quite a failure.

Altogether blinded by national vanity, he is grievously mistaken in his estimate of the contending forces, and likewise, when he thinks that the whole of Italy would have united in withstanding Alexander. Had Alexander lived, Rome would have fallen: his death was a necessary dispensation of Providence in order that Rome might become great.

THE SECOND SAMNITE WAR.

The cause of this war is to be traced to Neapolis and Palæopolis, the old Parthenope. Palæopolis we find mentioned only in Livy; it was an old colony of Cumæ, the citizens of which had fled for refuge thither across the sea. Neapolis has its name from its being a much later settlement of different Greek peoples: it was probably first founded Ol. 91, about the time of the Athenian expedition against Sicily, as a bulwark of the Greeks against the Sabellian nations. The Athenians may have had a share in its foundation. Both of the towns were, however, of Chalcidian origin, and constituted a confederate state, which at that time may perhaps have been in possession of Ischia. About the site of Palæopolis, a great deal of worthless stuff has been written, most of all by the Italian antiquaries; we have nothing whatever to build upon besides the two statements in Livy, that Palæopolis was by the side of Neapolis, and that the Roman camp was pitched between the two towns. The old Neapolis undoubtedly lay in the centre of the present city, above the church of Sta. Rosa, the sea having now considerably receded. People, however, sought for Palæopolis likewise within the present city, without considering whether an army could have had room enough between the two towns. I should never have found out the site. A French diplomatist, my friend De Serre, who had been an officer in his youth, and thus had the quick eye of a soldier, discovered it when he was taking a walk with me. The town was on the outer side of the Posilipo, where the lazaretto now stands, a nice healthy place in the direction of Nisida and Limon: perhaps there was in old times a harbour there; both of the isles have very good harbours. This was also the natural communication with Ischia: the Posilipo with its prolongations lay between the two towns in an interval of less than half a German mile; here the Roman army could have encamped on the mountains, and thus the two towns have been cut off from each other. Monuments and coins of Palæopolis are, however, no more to be found. According to the usual supposition, the two towns would have been so near together, that the missiles from the walls of either might have reached the other.

The cause of the hostilities was piracy, or at least attacks by sea against the unprotected merchant-ships of the Romans; who at that time had no fleet, and, strange to say, wanted to disregard the sea, as if indeed it could be disregarded. Complaints about the division of the Falernian territory might likewise have had something to do with it. Many people, in such divisions, of course sold their lots, and so this became a running sore to Rome. Yet if the people of Palæopolis were on this ground at enmity with Rome, the reproach of piracy, which Dionysius puts forth in such a declamatory style, is quite uncalled for; as it is but natural that they should try to harass the trade of a hostile people. The Neapolitans, relying on their alliances with the Samnites and the people of Nola, refused the satisfaction which the Romans demanded from them. Nola had an Oscan population with Chalcidian immigrants: how much the inhabitants were hellenized, may be seen from the Greek stamp of the coins, which bear the inscription ΝΩΛΑΙΩΝ. On the whole, the friendliness between the Samnites and the Greeks is striking: Strabo calls them φιλέλληνες. The Samnites, having no literature of their own, were certainly open to the Greek one: they even tried to talk like the Greeks themselves. Romans and Greeks were always on bad terms with each other; Lucanians and Greeks also were enemies, although the Lucanians partook of Greek civilization: it is certainly no fable that the Pythagorean philosophy was homebred among them. The statement that Pythagoras was a Tyrrhenian of the isles, has no doubt this meaning, that the roots of the Pythagorean philosophy, so far as it is theological, are for the most part to be sought among the Pelasgians in the religion of Samothrace.

Samnite auxiliaries, amounting to four thousand men, together with two thousand Nolans, threw themselves into the towns of Palæopolis and Neapolis: the Tarentines also are mentioned as those who had stirred up Palæopolis. The Tarentines and Samnites were very closely allied; and the former spent their money in getting up a distant war against Rome. The Romans looked upon the occupation of Palæopolis by the Samnites as an act of hostility, and complained of it to the assembly at Samnium. The evacuation was a moral impossibility; and the answer was, that one must not quibble about single grievances, that war was what they wanted, and war they should have. The national assemblies confirmed this answer. In the meanwhile, the siege of Palæopolis had lasted a long time, and the Romans had no prospect of success; their own practice in sieges was still in its very

infancy, and the Greeks opposed to them considerable technical skill: their assaults were therefore without effect, and the sea remained free. But what force could not do, treachery brought about. Neapolis had ships of war with which frequent attacks may have been made against the Roman coasts, which the Romans were not able to protect: the Samnite garrison, at least to all appearance, lay for the greater part in Palæopolis, the Greeks in Neapolis. Two Greeks, Charilaus and Nymphæus, now betrayed the Samnites to the Roman consul Publilius Philo. They proposed an expedition against the Roman coast, and the Samnites marched out of the town ready to embark. The towns were on the side of the harbour enclosed with walls, so the conspirators now shut the gates behind them, and let the Romans in by another gate; the ships had also in the mean time cast off from the shore, and the Samnites were obliged to save themselves as they best could. Palæopolis disappears, and without doubt was destroyed on this occasion. Neapolis (Naples) obtained a favourable alliance; so the conspirators must have been Neapolitans. This acquisition was of great importance to the Romans; for they thus got possession of the two harbours of Naples and Nisida, the only places from which inroads against their territory could possibly be made by sea. This conquest was achieved by Q. Publilius Philo *pro Consule*: he is the first whose consular power was on the motion of a tribune prolonged by a *Senatus consultum* and a *Plebiscitum* (429), his own law on the *plebiscita* being now applied to him. This is a great change in the constitution: a magistracy was created, new in its nature, though not in its form. Until then, no one had triumphed out of his time of holding office; Publilius triumphed as proconsul.

Now begins the second Samnite war, by far the greatest, most interesting, and most wonderful, that of Hannibal excepted. On the whole, it is only with much trouble that we can arrive at somewhat satisfactory results concerning it. Where the battles were fought, is in most cases passed over in silence. Livy has described it, sometimes with a great deal of spirit, at other times with weariness, which comes from his manner of composing. He had set to work without preparation; and therefore he wrote indeed with much freshness, but in a way which was detrimental to anything like criticism or comprehensiveness of view. If he had made a better use of his annals, we might have a clearer insight. It is a pity that the books of Dionysius on this war have been lost: the few fragments in Appian, who copied from him, and in Constantinus Porphyrogenitus, throw a bright light

on many points; for with regard to these times, Dionysius must have been excellent, as the annals were now already quite enough to make out real history from, if one searched as diligently through them as Dionysius did. Even in that age, there were some detached anonymous chronicles, dry and obscure as to details. That isochronistic historiography commences only a hundred years afterwards, does not prejudice this case. Unfortunately, Livy has made no use whatever of the old materials which formed the groundwork of the annals; whenever, therefore, their statements are conflicting, he chooses from among them just what he likes, and is in most instances quite wrong. Livy does not give us a comprehensive view of this war, which lasted for twenty-two years; I succeeded only very late in forming a clear outline of it: it is divided into several periods.

The first period is from 429 to 433. At its beginning, the behaviour of the Samnites seems to us quite strange. They had wished for war; and yet we find them unprepared, and conscious of not being able to carry it through. The instigators must have lost their popularity. It was the same with the Athenians in the Peloponnesian war; after the first and second campaigns, they wished for peace: so did the Venetians after the battle of Ghiera d'Adda. In England, during the year 1793, the war against France was quite popular (I was there myself part of the time); people had not forgotten the meddling conduct of France in the American war; much was still hoped from the colonies, and the national hatred on the whole was very great. But when the war was badly managed, and the power of France increased, it became thoroughly unpopular, and there was a general outcry for peace: the ministers very wisely yielded, and entered into negotiations. Then the nation saw that peace was not possible; new efforts were made, and in 1798 and 1799 the war again was highly popular; after that it was once more unpopular. Thus it happened also with the Samnites. The Romans carried the war in quite a different manner from what these had expected; they saw that their hopes had not been fulfilled, and wished now for peace. Afterwards, however, things completely changed. As the war went on, it became a passion like gambling, especially, of course, when it was not waged successfully. People will not then draw back; they will sooner perish than give themselves up to the mercy of the conqueror, and the war becomes a guerilla struggle. Towards the middle of it therefore, under much greater disasters, the feeling of the Samnites becomes evident, that peace was impossible.

The Samnites, as was mentioned before, consisted of four states, each of which had the *imperium* in its turn. This was an immense disadvantage. Whenever a general was chosen, the hatred and the jealousy there then was among the different leaders may be imagined: if a great man, like Pontius, held the *imperium*, and if it luckily happened that the other prætors were honest men, great results might be arrived at; but all was changed again the year after. Confederate states always have a heartfelt hatred against each other: thus it is in America; thus it was in the army of the empire, where one general was exceedingly glad, if another, who was his confederate, was beaten. Had the Samnites been unanimous, they would have been more than a match for the Romans; but the latter got the better of them, owing to the perfection of the institutions: for the most varied, and even conflicting elements, were all concentrated by the mere power of the Roman mind. In the practice of warfare, the Samnites were certainly equal to the Romans: according to Sallust, the Romans had adopted from them their arms, and perhaps the whole of their military science; at least, we find in the battles both armies formed quite in the same way, and they fought against each other as equals, which is proved by the accounts of the battles. And here I must give a flat contradiction to general Vaudoncourt, who asserts that the Italian, Spanish, and African nations fought in phalanx: their strength was in the sword. The Italians had cohorts, and in all likelihood used the *pila*, like the Romans. The Samnites, as it seems, had belonging to them subject commonalties, or dependencies: the country from Frentum to Luceria was either thus dependent, or formed into a canton of its own; but the connexion was so slight, that the inhabitants of Frentum entirely separated themselves in the course of the war. North of the Samnites, was the confederacy of the Marsians, Marrucinians, Vestinians, and Pelignians: of these, the Vestinians were friends to the Samnites; the others were quite neutral, or had even placed themselves under the protection of the Romans. Thus the Samnites were in a very bad plight; but if, as undoubtedly it was their plan, they had carried on the war along the Liris as far as Capua, they could certainly have kept the Romans at bay. The Romans, however, had a far bolder plan. Just as formerly in the Latin war, they described a semicircle round Samnium; but with much greater risk than at that time. The Samnites were intensely hated by the Apulians; the latter, the ruling tribes of whom were Oscan, may have partly overpowered, partly incorporated with themselves, and partly driven out the old Pelasgian inhabitants. The country of Apulia is a basin in

the midst of mountains; it is like a theatre. The hills are ranged in the form of a horseshoe, and they likewise belong to Apulia; but the country directly below these mountains is a tableland, exceedingly hot, with a chalky soil, almost like Leon in Spain. They had two chief towns, Arpi and Canusium, both of which ruled over a large territory, and were very jealous of each other. At that time, the Samnites had conquered the eastern mountains of Luceria, and may also have harassed the plain. Tarentum was on their side; the Apulians therefore turned themselves to the Romans, and by their mediation may have gained much. It was a grand resolve, to transport the Roman army into Apulia. There were two roads; one, through the country of the Æquians (who were friendly with the Romans), from Tivoli upwards, by the lake of Celano, and by Sulmona, across the narrow district of Samnium; the other, through the country of the Sabines, in the direction of Reate, Civita Ducale, and through the terrible defiles of Antrodoco (the Interocrea of the ancients), the nature of which is such that a brave people may hold out there for an extraordinary length of time, although they were so disgracefully abandoned by the Neapolitans in 1821; then as far as Pescara on the eastern coast, and thus by an immense way round to Apulia. They may have taken both roads at different times; at first, the former one. Now, as long as the Romans were not sure of the Vestinians, and on the other hand were on friendly terms with the other nations, they might indeed have chosen the road first spoken of; as on the second, the Vestinians were the only one of the four northern Sabellian peoples whose country they were to cross, in order to get to Apulia, whilst they had besides to fight their way through the land of the Frentanians. But if they had chosen the first road, the Marsians and Pelignians would as certainly have withstood them, as the Vestinians on the other; for it was their interest, not to let the Romans advance into Apulia. As the Vestinians are now mentioned as being friendly, it is evident that the army marched by Antrodoco. If the Samnites had been united, they would indeed have made every exertion to support the Vestinians. This was not done, and therefore the Romans overthrew the Vestinians, and reduced them to subjection. They now got a firm footing in Apulia, and thus compelled the northern confederacy to keep on a good understanding with them. It was a great advantage, to be in possession of Apulia. The country of the four Sabellian peoples, and also the territories of the northern Samnites, Pentrians, Bovians, and even the Frentanians, are mountain districts and pasture lands on the Abruzzi; during winter, these

tracts are covered with snow, and it is then impossible to keep the sheep there; they are therefore sent during that season into Apulia, which is then clothed with fine and excellent grass; in the spring, the shepherd again takes them to the mountains. These broad features, which belong to Nature herself, are necessarily lasting, and were the same in times of old as they are now. That in those days already there was much sheep-breeding, is proved by the wool-dying manufactories of Tarentum. When the Romans were now in possession of Apulia, they protected the pastures of their allies, and consequently obliged the Marsians, Pelignians, and others, to come to friendly terms with them: they also harassed the northern Samnites. This was therefore no blind undertaking, but one which was completely justified by the nature of the countries: the Romans for all that would not run the hazard, until they saw that it could not be avoided.

Another alliance, besides the Apulian, the Romans had with the Lucanians. These are called a Samnite colony, which is to be understood in a different meaning, from that in which a town-colony is so called: the Lucanians are most likely an offshoot of the Samnites, which had severed itself from the mainstock. They were dwelling amidst Ænotrians (the old Pelasgians), and Greeks; and even as the Samnites were Sabellians become Oscan, so were the Lucanians Ænotrians become Samnite. They had spread, from about Ol. 80, since the downfall of Sybaris, which opened these districts to the Italic peoples: in what relation the Lucanians and Samnites had formerly stood to each other, is uncertain. The territory of Lucania is larger than that of Samnium, yet there is never a corresponding proportion between the power of the two peoples; never, as we see from the rolls of the census, were the Lucanians strong, not even in later times, when the Samnites had been already considerably weakened; the number of their *capita* did not amount to any thing like half that of the Samnites, not to so many as thirty thousand. This shows, that the greater part of the Lucanian population had no share in the sovereignty: in single places only, as, for instance, in Petelia, it was more concentrated; it was a country rent by factions. A portion of them resolved upon uniting with the Romans; this must, however, have been a small majority, as a revolution soon followed, in consequence of which this league was broken up, and the Samnites were called in to garrison their strongholds. This alliance of the Lucanians and Romans is known to us from Livy: we are, however, considerably to modify what he states besides, that the Tarentines, frightened at the power of the

Romans, had persuaded the chief men among the Lucanians to tell the people, that their ambassadors had been cruelly treated by the Romans; and that the Lucanians, exasperated by it, had thrown themselves into the arms of the Samnites. This is the same tale as that which is told of Zopyrus and of Sextus Tarquin. Traitorous party spirit is in Greece also but too prevalent in the later ages. The Samnites are therefore masters of Lucania, and turn its resources in men and money to their own account.

These wars, as far as we are able to get a view of them, are from the very beginning exceedingly interesting, owing to the resolution, skill, and steadiness with which the combats were fought. On both sides, it was a struggle for life and death; they aimed at each other's hearts, like two good swordsmen in a duel: if Hannibal, after the battle of Cannæ, had shown the same determination; if he had not been too cautious, but had pushed his thrusts against the heart of Rome, even as the Samnites did, he would have won. Both parties reckoned much on the discontent of each other's dependents. The Samnites had their frontier above Sora in the Abruzzi, Casinum being their chief town: from that mountain-range they seem always to have chosen the direction of their operations; from thence they also acted on the offensive, and in fact with the express purpose of stirring up a rising of the Latin peoples, who had been still independent so late as fourteen years before, and were therefore ripe for revolt. The traces of this partial insurrection are slurred over in Livy, notwithstanding which they may still be found,—especially those of a rising at Tusculum in conjunction with Privernum and Velitræ: but the Romans always put down these outbreaks, and in consequence, many of these Latin towns were ruined. All this is only to be guessed from detached intimations; for instance, from the motion of a tribune utterly to destroy the Tusculans, which, however, was not carried. To this we must also refer the story which sounds so strange in Livy, of people suddenly flocking together at night, as if the enemy were in the city; for as the armies were far removed, it was quite natural, that a rising of the Latins should spread terror to the very walls of Rome.

The Samnites tried to advance immediately to Rome by the Apennines, at the sources of the Liris; at the same time, the Romans passed the Vulturnus, and endeavoured to make an inroad into Campania by Saticula, and from thence into Samnium. Both parties little heeded where the blows of the enemy might fall, if they could only successfully deal their own.

They both of them found their advantage in this mode of warfare; the Romans, that while the Samnites only laid waste the territory of the allies, they for their part struck at the Samnites themselves; on the other hand, this could not have had any thing like the mischievous effect which the devastations of the Samnites had upon the feelings of the allies. We merely know by the greatest chance, that the seat of that war was in the neighbourhood of the present abbey of Subiaco, on the frontier of the Æquians and Hernicans, in the high mountain-ridges which divide the valleys of the Liris and the Anio. Livy says that they faced each other near Imbrinium in Samnium; but even the Italian commentators, as Sigonius and Hermolaus Barbarus, rightly take this to be Imbrivium, and recognise it as the place, in the country of the Æquians, near Subiaco, from which the emperor Claudius led his aqueducts. Livy shows such little proof of care and exactness, that we cannot but decide for this emendation, which is recommended not only by probability, but even by necessity. The Samnites took up a strong position here; and thus cut off the Romans from the road which leads by Sora to Apulia, so that they were obliged to keep up their communication by Antrodoco: the spot is marked out with all the accuracy of a military history. The state of things was so serious, that in the third year of the war the Romans made L. Papirius Cursor dictator. The consul L. Furius Camillus was ill. Papirius Cursor is still remembered as one of the greatest generals of his nation; by his side was M. Valerius Corvus, who was of the same age with him, and Q. Fabius Maximus, who was younger, but yet was in all likelihood outlived by Valerius Corvus.

M. Valerius Corvus was the most popular man of his day: in politics he stands quite aloof from all party strife. He loved the people, and was beloved by it; the soldiers had unbounded confidence in him, and when he was among them in his leisure hours, it was just as if he were in his own family; he shared with them their toils and their amusements: his popularity was the heir-loom of the Valerii. It was this character which enabled him to allay the insurrection in the year 413. L. Papirius Cursor was a rough man, a downright savage, who had something in him of the nature of Suwarow, except that the latter was certainly far more educated: he had huge bodily strength, and kept it in condition by eating and drinking by rule, like the athletes, as did the emperor Maximin. He teased and worried the soldiers by his terrible strictness, making their duty as irksome as he could, in the belief that by this means they were rendered more efficient. He was just as harsh

towards the officers and commanders of the allies: it was his pleasure, to strike terror into all about him; he never pardoned the least neglect, and he was capable of inflicting corporal and even capital punishment for it. He was hated; yet at the same time he was regarded as quite an unearthly being, as an immense treasure for the republic, as a last refuge in time of need, Q. Fabius was of a different stamp from Valerius Corvus; he seems not to have had such a cheerful, loving, joyous soul: yet for all that, he was *comis*, being a kind master, a mild and wise man. His wisdom and good luck were much reckoned on; Papirius had not so much success. He was also most popular; yet not in the same way as M. Valerius, but rather, it would seem, from a feeling of respect than of love. He was looked upon as the first man of his age, and therefore the surname of Maximus was given him; he was no less a statesman than a general, being as it were a point of union for all parties. He was an aristocrat by birth and position; yet a most judicious one: he was able in many cases, when an umpire, to bend the stubbornness of the oligarchy. We see from his life, how earnest he was in every thing; how he could control his own feelings, and sacrifice them for the common good.

In the neighbourhood of Subiaco, the dictator faced the Samnites; nevertheless there was also an army stationed near Capua, to guard against the inroads into Campania. The dictator had remarked that the auspices had not been observed correctly; nor could he take new ones where he was, as the auspices were different in different places, some being good in Rome, others in the country of the enemy; he had therefore to go back to Rome, that he might take fresh ones in the Capitol. From this, or some other reason, he went to Rome, leaving the *Magister Equitum*, Q. Fabius, in command, with express orders not to act on the offensive. This prohibition may have been well grounded; but perhaps also he did not trust the younger man, or he may indeed have grudged him everything. The Samnites very soon discovered that the Romans were not allowed to fight, and they teased and harassed them the more; besides which, the inactivity of the Romans was dangerous, as the Latin peoples in their rear were ever ready to rise, if the Samnites would only lend a helping hand. On this, Fabius, with all the confidence of youth, resolved upon giving battle to the Samnites, and he won the victory; according to some, he even conquered twice. As the prohibition was looked upon in the army to have been an act of mere envy and jealousy, the *Magister Equitum* sent in his report, not to Papirius Cursor, but to the senate direct. The booty he burned, to deprive the dictator

of the *spolia* for his triumph. In the city, people were certainly not less alarmed at the consequences, than they were glad of the victory. Papirius immediately returned to the camp, his quick journey being also a proof that the army could not have been far from Rome. Surrounded by his twenty-four lictors, he summoned the *Magister Equitum* before his tribunal, and only asked him whether he had fought against his orders, or no? Everything was in readiness for the execution of Fabius; but the whole army put on such a threatening attitude, and men's minds were so roused against Papirius, that he himself began to waver, and at the earnest prayer of the soldiers granted a respite until the following day. During the night, Fabius fled to Rome, and there he betook himself to the senate. But when the senators were met together, and Fabius was in the midst of them, Papirius himself made his appearance and wanted his victim. The senate showed more than once in after days, that it was not fond of Fabius; but at that time, the sympathy for the youthful hero was still general, and it was resolved to protect him. Papirius did not dare to use force. The matter indeed was not now so desperate, as Livy describes it; for the patricians had the free right to appeal from the dictator to the curies, a fact which we know from Verrius Flaccus. What Livy tells us about calling upon the tribunes, is either a mistake arising from the expression *provocatio ad populum*, or it meant the confirmation of the decree of the curies by the *Plebes*; so that, of course, the whole people had granted an amnesty to Fabius. Even then, Papirius was unwilling to give way; but the resolution of the two orders snatched his victim from him. That he was reconciled to Fabius, as Livy makes out, is impossible: Fabius laid down his office, and Papirius took another *Magister Equitum*. He returned, loaded with hatred, to the army; and to this circumstance the unlucky issue of a battle is attributed. This happened in the year 430.

Fabius is said to have gained the victory very much owing to his having ordered the *frena* to be taken off the horses, and the cavalry to rush in this manner against the enemy. If we take *frena* to mean bridles, this would indeed be absurd: the thing may, however, be explained from the bits found at Pompeii and Herculaneum. The curbs and bits which the Romans use for their horses were exceedingly cruel; so that if, instead of these, they had now put on the more humane ones of the Greeks, which Xenophon describes, the horses, being thus eased, would naturally have pressed forward full of spirit and energy.

The war took such a turn, that the Samnites were in great distress, and repented of having taken up arms. They obtained a truce on engaging to furnish a sum for the pay and clothing of the Roman troops; and then began to treat, believing that they might have a peace, if they agreed to the first demands of the Romans, which were the occupation of Naples, and the recognition of the colony of Fregellæ. But there is no doubt that the Romans now put forth very different claims: they also required the evacuation of Lucania and Apulia, stipulating, as they always did in such a peace, that the other party should place themselves in the same disadvantage, as if they had been quite beaten. This was one of the maxims which made the Romans a great nation. The peace was not brought about: the war was renewed; and the Romans now carried it on with great vigour. Fabius became consul, led his army into Apulia, and conquered Luceria and many other towns of the Apulians and Samnites; his repeated victories forced the Samnites to retreat from Fregellæ, and to make a stand against him. The other Roman army also had good luck; so that the whole of the following campaign was crowned with success, and the Samnites at length came to the resolution of seeking for peace at any price. They now turned their wrath against the man who was looked upon as the life and soul of the whole campaign, Papius Brutulus, of the very clan from which, two hundred years afterwards, C. Papius Mutilus sprang. The Romans again granted a truce, for which the Samnites had to make great sacrifices. We are indebted to the *excerpta* from Dionysius for our knowledge of these transactions. The Samnites offered to do all they could; they would punish those who had been the authors of the hostilities. The Romans, however, had indeed demanded the giving up of Papius Brutulus. The resolution which the latter conceived, shows him to have been a great man: he had lived for his people, so long as they wanted to be great; life had no more value for him when their hearts had failed them, and he made away with it, that his fellow-citizens might be able to say, that the author of the war had atoned for it. This is one of the greatest deeds which were done of old, greater than that of Cato. The Samnites, to their shame, sent his corpse to Rome.—As the Romans had the first time already gone further than in their demands before the war; so they now again went beyond the conditions which had then been made, and asked the Samnites to acknowledge their hegemony, as Appian expresses it, that is, *majestatem populi Romani comiter colere*. The ambassadors of the Samnites had appealed to their

clemency; they had declared that they would agree to everything, if the Romans really would not abate any of their pretensions; but as for the acknowledging of Rome's supremacy, that alone they could not decree; it was only their community which could. The consequence of such an acknowledgment of supremacy was a sort of pupilage with regard to other states: the Samnites would therefore have had to give up their alliance with the Tarentines and the Lucanians; Roman commissioners would have had the power of visiting them, and enquiring whether the treaty was duly kept. This was more than the Samnite people would put up with. They had now lost their leader, had suffered shame, had suppliantly prayed for an honourable peace, and all in vain: it was resolved with one consent, to die rather, than to make such a peace. Thus the Romans had this time carried their maxim too far. The consequence of this was, that the Samnites exerted their might to the utmost, and actually began the war in Apulia on account of the importance of that country in a physical point of view. Luceria, with the Roman garrison, was besieged by the Samnites: it had originally been a town of their own, but had been taken from them by the Apulians. The Romans also now changed their mode of warfare: as the chief force of the Samnites was stationed at Apulia, they too resolved to concentrate the whole of their might. They had already before that betaken themselves to Apulia, and indeed had gained allies there, but without acquiring a firm footing. They were therefore obliged to force their way through the Vestinians; yet this they deemed hazardous, as they ran the risk of getting likewise into a war with the Marsians, Marrucinians and Pelignians. But here the unhappy jealousy which these had of the people of their own race would have come to their aid; and even other nations also to whom the Romans were obnoxious, such as the Æquians, and the Campanians themselves, wished well to the Samnites, but did not want them to gain a decisive victory. These petty nations imagined that the Romans and the Samnites would wear themselves out against each other, and that this would be an advantage to them. At the tidings that Luceria was besieged, the two consular armies forthwith prepared to march into Apulia, and resolved upon taking the nearest road; that is to say, they intended to cut their way through Samnium, the Samnites having become contemptible to them. The way they went was perhaps the same as that by which A. Cornelius Cossus had marched, being the road from Capua to Luceria by Beneventum. The general of the Samnites, C. Pontius, one of the greatest men of ancient

times, had foreseen this. He left before Luceria just what was necessary for the blockade, and encamped on the road by which the Romans were advancing near Caudium, the capital of the Caudine Samnites: this town afterwards vanished from the face of the earth, in order that the shame of the Romans might be buried. The Romans descended by a defile into the valley; on the other side, another defile rose high and steep: having nowhere encountered any enemy, as yet, they marched on quite carelessly. The army had come down the first defile in a long column; but when the head of it had begun to ascend the opposite pass, they found it blocked up with stones and felled trees. It is probable that the Samnites had prepared themselves in the same way as the Tyrolese in 1809, who fastened large trunks of trees with ropes, and laid masses of rock behind them, so that when the enemy were in the valley, they cut the ropes, and the rocks crushed the army. With this the mention of the stones in Livy seems to tally. According to his account, the Romans then behaved in the most cowardly manner: he says that they endeavoured to retrace their steps, but that when they found that the defile on the other side was now likewise stopped up, they sat down and encamped in the valley. This is absurd. Those who are thus hemmed in, try and cut their way through like madmen. Surely a great battle was fought and lost by the Romans, as Cicero tells us in plain words (*cum male apud Caudium pugnatum esset*); Appian, of whom we have here only fragments, says that those superior officers, who besides the consuls had remained alive, signed the peace. He mentions twelve tribunes; but, as in a complete army there were twenty-four, it would follow that twelve had been killed, or at least, badly wounded. Zonaras also speaks of a lost battle, and of the taking of the camp. Livy, with incomprehensible vanity, positively insists upon it as a fact that no battle was fought near Caudium: he describes the Romans as cowards, in order to disguise the disgrace of a defeat. What further happened, is shrouded in great darkness; the results of my inquiries are as follows. According to Livy's story, the consuls merely *promised* that the Roman people would make peace, and nothing had been done besides; it is evidently his wish not to represent the Romans as faithless; he states, that half of the Roman knights (six hundred) were given as hostages. But the true state of the case is quite different. Appian, who borrows from Dionysius, tells us that the hostages had been given, ἕως ἅπαρς ὁ δῆμος τὴν εἰρήνην ἐπιψηφίσῃ, that is to say, until the curies and the tribes had decreed the peace. The conditions were reasonable. C. Pontius, in the heyday of his

success, not knowing how to make use of it, invited his father, Herennius Pontius, a friend of the people of Tarentum, and of Archytas^[141] in particular, to the camp, that he might ask him how he should treat the Romans. The old man answered that he ought to butcher them all; and when the son replied, that this would indeed be too barbarous, he is said to have been told by his father, that he ought to let them go, without touching a hair of their head, so as to lay the Romans under obligations by this kindness. But the Romans would at that time have laughed at such εὐθθεια. This account can only have had this meaning. Herennius wanted to say, "The only thing to be done is extermination. How can you ask? If you ask, why then, dismiss them at once!" But Pontius was a highminded man, he had a strong Italian feeling, and it was impossible for him to annihilate the army of a people which protected Italy against invading foreigners, particularly the Gauls and Carthaginians: he doubted not but that a lasting peace might be made with the Romans, if one could only lay hold of them. By great good luck, we know the conditions of it from the fragments. The consuls and all the commanders pledged their word of honour that the people would ratify the peace; until then, the knights, who were sons of the first families, remained as hostages. The *status quo ante bellum* was to be restored; all the places which had belonged to the Samnites were to be given back to them; the colonists were also of course to be withdrawn from Fregellæ; and the old alliance of equality between the Romans and Samnites was to be renewed. There is no trace of any indemnification in money, or of disgraceful conditions: the Romans might themselves march off; but they were to leave their arms, all their stores, their military chest, their baggage, their waggons, horses, &c., behind. This is the common Italian international law. That the Romans passed under the yoke, is related as a *superbia* of the Samnites; but this is quite accounted for by the circumstances of the case. The Samnites had fairly surrounded them with pallisades, some of which were now pulled down, and a gateway made of them, through which the Romans passed singly and unarmed. This had often been done, and was a thing of course. Pontius, however, was so far from being cruel, that, according to Appian, he gave the Romans, when they marched off, beasts of burthen for their wounded, and provisions enough to last for their journey home. Never was a great victory used more fairly. Now comes the question, whether the peace was ratified by the Roman people; and thereupon is based such a serious charge, that Livy throws it into the shade. The proof of

the ratification is the fact that the tribunes of the people were given up to the Samnites; they either had confirmed the resolution of the curies concerning the peace, or they had brought a motion in due form before the *Plebes*. A tribune of the people could not pass one night outside the precincts of the city; so that they could not have been among those, who, being with the army, had settled the peace. The only other possible way of accounting for it would be, that the tribune had by an express resolution been sent to the army; yet even this could only be supposed to have taken place with a view to the ratification. The peace was necessary, in order to get back the hostages. For this reason, the perfidy was committed of ratifying the peace, which was afterwards to be broken under the pretext, that the consuls and the tribunes who had moved it before the senate and the *Plebes*, were traitors, and should be given up to the Samnites. This is the most infamous transaction in the Roman history, and the Romans had indeed good reasons to disguise it. To slur it over, Livy has falsified the account of the whole of the following year, stating, that the Romans had then recovered the hostages at the conquest of Luceria; for in such a violation of the peace they would certainly have been killed long before. The peace is also plainly to be seen from its consequences: the next year, we find the Samnites in possession of Luceria and Fregellæ. We are indeed told that the latter was conquered; yet this may be false, or the colonists were not willing to relinquish their abodes, and the Romans left the Samnites at liberty to make the conquest. At all events, they got possession of the place, which was of great importance in case of the war breaking out anew. Fregellæ covers the Latin road which leads from Tusculum through the country of the Hernicans to the upper Liris and Campania: in this manner, the Romans had now only the road by Terracina, Lautulæ, and the lower Liris, near Minturnæ; moreover, if a Roman army was posted in Campania, and another marched by Subiaco to Apulia, the communication between the two hosts was thus cut off. Still more important was the occupation afterwards of Sora by the Samnites; as well for the reasons just mentioned, as because they thereby acquired a base for their operations. The disaster at Caudium dates from the year 433 according to Cato. Here ends the first period of this war. [\[142\]](#)

The Romans now cancelled the peace, giving up to the Samnites the consuls and the other commanders who had sworn to it. By doing this, they strove to free themselves from the penalty of perjury; and it was with this

view perhaps, that they had even the hypocrisy to cause the resolution concerning the peace to be passed by the tribes, and not by the centuries, so as to exclude the auguries, and to withdraw the case from the cognisance of the sacred law. Livy, on the giving up of the tribunes, takes the opportunity of making a most silly declamation. They, not less than the consuls, were to meet their fate; and when so deep was the disgrace of their nation, they could hardly look upon this as such a great calamity. Moreover, we are told that the consul Postumius had kicked the *fetialis* who is said to have given him up to the Caudinians, with the remark, that the Romans might now carry on the war with justice, as he was a Samnite citizen, and had violated the international laws. This sounds quite absurd; yet the thing is possible. We know from Velleius Paterculus, that isopolity had been concluded with part of the Samnites before the war; perhaps, they were these very Caudinians, and as now, on being exiled, every Roman might assume the right of citizenship in such a state, Postumius, according to the forms of international law, might have claimed the right of citizenship among them for himself. By means of such a detestable farce, he thinks to call down the vengeance of heaven upon the Samnites. However this may be, the peace was faithlessly broken; in opposition to which the generosity of C. Pontius stands out in noble contrast, who let all the prisoners go free, saying, that in that case the Romans ought to send all the legions back to Caudium, that the affair might be restored *in integrum*; individuals were not his enemies. This shows C. Pontius to have been an extraordinary man, and the Samnites a people of high moral feeling.

The Samnites maintained great advantages, although not any lasting ones; the Romans, on the other hand, made immense exertions, and fell back upon their former plan of operations in attacking Samnium on the side of Apulia, and on the western frontier. Q. Publilius Philo and L. Papirius Cursor became consuls. The latter went to Apulia; the former is said to have successfully given battle again on the road which had been so disastrous in 433, and to have fought his way through to Papirius, who was stationed near Arpi. This is not very likely; yet we cannot decide on it. The Romans took up a position at Arpi, which was friendly to them, and from thence besieged Luceria. There, it is stated, Pontius was shut up with seven thousand Samnites, and the six hundred hostages; being obliged to capitulate, he had to pass under the yoke. This account is evidently a mere figment of vanity.

Diodorus is very deserving of attention with regard to these times. We do not know from what source he has borrowed; perhaps from Fabius, perhaps from Timæus: the latter is very possible. Timæus may have treated of this period as an introduction to his history of Pyrrhus, or else in his Siceliote and Italiote histories. The notices of Diodorus are very remarkable, though extremely scattered and unequal; sometimes he drops the thread of his subject, being on the whole a very wretched writer, sometimes he takes it up again; names of places are met with in him, which we do not know at all, some of these evidently misspelt, others, perhaps, written by mistake, or simply unknown to us.—The account of Livy for the year 434 (but the consuls, at that time, came into office in September, so that it belongs to the spring of 435), Diodorus places in the year 439; and this is much more likely, as Luceria can hardly have been twice conquered. The consuls perhaps confined themselves to making preparations for the struggle, and reducing to obedience the allies who had become mutinous. The greatest efforts of the Romans were now in Apulia. They subdued most of the peoples of that country, inasmuch as in 436, and 437, there was a truce between them and the Samnites through the mediation of the Tarentines, who were very much bent on having peace restored, being afraid that the Romans might permanently settle in their neighbourhood. The truce of that time was the curse of the Samnites; we may be sure that C. Pontius, owing to the jealousy of the other cantons, had not then the chief command. The Romans had now the upperhand already. In the year 438, the war breaks out again with extraordinary fury; it is full of the most remarkable turns and changes of fortune: the ever memorable campaign of the year 1757 was indeed more brilliant; yet the one which we have before us, may not unaptly be compared with it. The Samnites got hold of Sora by treachery; we see therefore that they again tried to spread their rule at the upper Liris, according to the same plan which they had followed from the very first. The Romans, on the other hand, with that lion-hearted intrepidity which distinguished both nations in this war, besieged Saticula near Capua, that they might gain ground against Samnium, and confound the Samnites by a diversion. The details I pass over. A Roman army was already in the heart of Samnium, the other in Apulia; both were nearly surrounded, and the tidings of their danger came to Rome. The Samnites having strengthened themselves on the Liris, the Romans saw that the whole of this movement was to cut off Campania from Rome; and they sent in the

greatest haste a contingent under the dictator Q. Fabius into the defile of Lautulæ, from whence it was to join the army in Campania. Yet even Fabius was not invincible. The Samnites crossed the mountains in the rear of Fundi, and posted themselves in the narrow pass, the real Thermopylæ of the country; the Romans seem to have fallen in with them quite unawares, and were signally beaten and routed. This is told in plain words by Diodorus (438 or 439); the *Magister Equitum*, Q. Aulius, allowed himself to be cut down by the enemy. This victory made a wonderful change in the state of affairs. The Samnites overran Latium; Satricum joined them; the peoples far and near either broke out into actual rebellion, or showed themselves to be disaffected. How it happened that fortune turned round, is a point as to which Livy leaves us in the dark; for he has only slightly alluded to the preceding defeats. The Samnites besieged a town which Diodorus calls Kinna (we do not know what place this is); the Romans, while relieving it, utterly discomfited the enemy, and again subjected the towns which had fallen off. Among those who had thus revolted were the Ausonians, or Auruncians, at the mouth of the Liris; they may have tried to keep neutral: some of them, being also perhaps the most compromised, now displayed a degree of baseness which one would not have deemed possible. Twelve Auruncians come to the Romans, and give up to them their cities, which are thereupon destroyed by Rome, a measure which excites the horror of Livy, though as a matter of policy it was quite right. The more embarrassing their circumstances were, the more terrible they had to make themselves to their subjects, as they could not reckon on their attachment. *Deleta Ausonum gens vix certo defectionis crimine*, says Livy; that we cannot know so positively. The disposition to revolt spread as far as Præneste: that the insurrection of this town is to be placed in this year, may be gathered from Livy; as in his account of the year 449, he says of the Prænestine Q. Anicius, who was at that time plebeian ædile, *qui paucis annis ante hostis fuerat*. Most of these people, however, only went far enough to hurt themselves, without doing any good to the Samnites: they none of them had the slightest wish that the supremacy of Rome should pass over to these, and they rather chose to abide in their sorry independence, apart between the two. Had they been wise, they would have sought for a union with Rome; and Rome right gladly would have welcomed them. It is a pity that Livy omits these painful accounts, and that he does not explain how the two Roman armies extricated themselves from

the danger; this must needs have happened, and the Samnites have thus had their advantage wrested from them. Livy himself says, *omnes circa populi defecerant*; the notice of the army of relief under Fabius, we owe to Diodorus alone. With careful examination, we may very nearly ascertain the whole extent of the defection. According to Diodorus, Capua had revolted; according to Livy, it was merely suspected, and the leaders of the conspiracy committed suicide. The former story is the more likely one; so that in consequence of that rebellion, a Roman army under C. Mænius, who was appointed as *Prætor rei gerendi causa*, marched to Campania, and reconquered the town.

With this year ends the second period of the war: the year 440 is the turning point. When the battle near Lautulæ and its results had raised the Samnites to the highest pinnacle of their power, the Romans succeeded in gaining Fortune over to their side again; for on the whole, they never showed themselves greater than after a disaster, even as Horace says, *Merses profundo pulchrior evenit*: they never lost their heads, but after the battle at the Alia. With such determination, one is sure to conquer the world; whoever, with singleness of purpose and sterling qualities, is conscious of his own strength, and resolutely makes head against his antagonist, in every case has already won the game. As early as in the next year, Rome paralysed her enemies by her invincibility; at home indeed she suffered dreadfully from these exertions, but abroad she was unconquerable.

The year 440 was the twelfth of the war. The Samnites had as yet lost nothing but the insignificant towns of Saticula and Luceria, and they still possessed Fregellæ. But now, though they were indeed successful in some detached undertakings, the scale soon turned in favour of the Romans. This is the third period of the war. In 441, the Romans conquered Fregellæ, Atina, Nola (a very important acquisition, not so much in a military, as in a political and financial point of view, as they now gained the rich and blissful country east and north of Vesuvius), and Sora; Nuceria also, between Vesuvius and Salernum, yielded itself up, but afterwards fell off again. They now waged the war against Samnium like a siege, in which the trenches are brought nearer and nearer, until the body of the place is reached. According to Livy, Luceria had previously fallen off, and was now recovered; but it is my belief that it had not indeed been taken before, and that this account is a fiction got up to throw back the disgrace of Caudium

on the Samnites: here the story of the actual siege is twice told. The Romans now formed the resolution of leaving a garrison in Luceria, and they sent thither two thousand five hundred colonists. These, on the district which was assigned to them, had to defend their persons and their property: they were a permanent garrison, the vacancies of which were filled up by their children, and they constituted a much surer defence than cohorts would have done. This plan of founding a colony at such a distance was looked upon with misgiving even by the boldest; but boldness was the right thing: the colony kept its ground, and the passes of Apulia were now Roman. On the Liris also the Romans gain a footing, carrying out the system of a regular siege by parallels which they push on further and further: they restore Sora; build quite a new town, Interamnum; fortify Fregellæ, Casinum, Saticula, and Suessa Aurunca, to overawe the enemy; Cales they had already occupied before. Thus every inlet by the Latin road was shut: it was a girdle of fortresses, like that of Vauban's on the French frontier. Some dim traces there are, which show that the Romans now feared that the Tarentines might in good earnest take part in the war. Tarentum was a naval power, although not like Athens of old. The Tarentines had hitherto only given subsidies; they now sent a fleet to Agrigentum under the command of a Spartan prince, which, as the Greek accounts will have it, was to put the affairs of Syracuse in order (Ol. 116, 3.): but it was either actually destined against Rome, or the Romans expected that it would be. They therefore build a fleet, and appoint *duumviri navales classis ornandæ reficiendæque causa*, who were independent of the consuls; and moreover, they found a colony in the Pontian isles, where there was a good harbour. These islands were very conveniently situated for annoying the coast, and so they were afraid that the Tarentines might settle on them. Thus circumspect were the Romans in all things! Having now a firm base in the fortresses, they transferred the war into the north of Samnium, into the country of the Pentrians.

In this campaign, the army of the consul C. Junius Bubulcus fell into great danger. Guerillas sprang up; so that the communication was cut off, and the troops had much trouble to provide for their subsistence in a country which was quite hostile and desolate. They now heard that the Samnites had driven their cattle into the mountains; and when they tried to get this booty, they were surprised by the enemy, and it was only with considerable loss that they cut their way through. In this battle, the consul

had vowed to *Salus* a temple, the one^[143] for which C. Fabius Pictor made an excellent painting. Here we have the opinion of a judge and lover of art; I have discovered it in a fragment, where perhaps no one would look for it.^[144] This was on the whole the age of the fine arts in Rome: to this period belongs that most beautiful figure of the she-wolf (457). We know besides that other pictures also were at that time offered as votive gifts in the temples; there were statues erected to C. Mænius and to C. Marcius; and Sp. Carvilius caused a colossus to be set up on the Capitoline hill, so that it could be seen from the Alban Mount. From this we may make out with certainty the hill on which the temple of the Capitoline Jupiter stood. In after days, Rome fell into imitating Greece: her inventive powers had died away. This gives important hints for the history of the fine arts.

The Romans had conquered a great part of the country of the Samnites; and if the war had been continued in this way, they would in a few years have attained their object of concluding peace on the terms which these had rejected previous to the battle of Caudium. But now we have before us the striking spectacle of the way in which the nations of ancient Italy were isolated from each other. By this time, it was already the fourteenth year of the war, and with the exception of the Tarentines, no people had as yet taken part with the Samnites: the northern confederacy had until then been at enmity with them, or at least neutral; and the Etruscans had resolved not to stir, from fear perhaps of the Gauls. According to an account in Polybius, the Romans had about this time made a treaty with the Gauls; in all likelihood, that they might use them in case of need against the Etruscans. Owing to these circumstances, Samnium had been brought to the lowest ebb; and it was now only that the Etruscans, headed by the Vulsinians, declared against Rome; so that she was under the necessity of carrying on a double war. We may safely suppose that this taking up of arms did not, as Livy represents it, coincide by mere chance with the end of the Samnite war, but that it was brought about by the Samnites. The Samnites were somewhat relieved by it; yet the Romans did not for all that leave them alone, but they still went on with their offensive war. To describe these operations in detail, would lead too far, although the incidents are remarkable enough; as to the Etruscan war, I put off its history until I have done with that of the Samnites, so as not to break the thread of the narrative.

Interrupted by armistices, it was of different length for different towns; with Vulturnum, it lasted thirty years.

How low the Samnites had sunk, may be seen from the fact that a consular army was too strong for them. It took Bovianum, next to Maluentum, their most thriving town; which, like all the Samnite places (unlike those of the Etruscans), was fortified by nature only, to which it likewise owed an *arx*. The fate of Bovianum gives one a notion how the Samnite places fared. Three times the Romans took this town; and thus we may understand how it was, that it had become so small in Strabo's time. This was also the case in the thirty years' war with Magdeburg, which, after its conquest and destruction by Tilly, was reduced from 30,000 inhabitants to 3,000; only the cathedral and some few houses were still standing, and huts were built over the ruins. Whilst the Romans were fighting in Etruria, the Samnites had evidently formed the intention of carrying out the great plan which renders the third Samnite war so remarkable, of transferring their forces to those countries, and of encountering the Romans on a foreign soil: the people there were in need of a brave and practised army, and the Samnites were willing to let them have one. But in the third year already, the largest of the Etruscan towns concluded a truce with the Romans, and the hopes, which were founded on that diversion, fell to the ground. The expeditions of the Romans against Samnium now became real wars to the knife; as they had not the least prospect of gaining a firm footing there, so long as a Samnite was yet alive. Their armies could only hold the ground on which they stood, and they had to suffer from the want of all the means of subsistence: wherever they came, every soul had fled to the woods. It was in an expedition of this kind, that the consul C. Junius Bubullus got into such great danger. When Q. Fabius afterwards was in Etruria, another Roman army was surrounded in Samnium, and the consul wounded: at Rome a contingent was levied, and a dictator appointed. He was to be elected by the senate; the curies had to confirm him, and to invest him with the *imperium*; and a consul was then to proclaim him. The choice fell upon Papirius Cursor. One of the consuls being blockaded in Samnium, the duty of proclaiming him devolved on Fabius; and to the latter the senate sent a deputation, entreating him to perform the proclamation, as it was expected that he would object to it. But Fabius, like a man, got the better of his feelings, and did it. Papirius answered the hopes of the nation: he rescued the beleaguered army and defeated the Samnites.

When at the end of three years, the Romans had made peace with the Etruscans,—at least with part of them,—they again threw themselves with all their might upon the Samnites; and now the smaller nations began to see what would be the consequences of Rome's unchecked victories. The northern confederacy, with the exception perhaps of the Vestinians, was drawn into the interest of the Samnites. But now the time was past: twelve years earlier, this would have led to the downfall of Rome. Something like this may be found in the history of the French revolution. These people thought that their kinsmen were now sufficiently weakened, so that they might lend them their aid without any risk. The Hernicans also now take the part of the Samnites; and, as it seems, the Æquians likewise, at least so far as to favour them. In 446, Fabius turned against Samnium, and gained a great victory near Allifæ. The exertions of the Samnites had been extraordinary: they had made use of the years during which the Etruscan war lasted, to reconquer Sora and Arpinum, consequently to occupy again the Latin road, and from thence to act upon the neighbouring peoples. Their efforts were not only directed to the raising of large levies. There is mention at this period, of a peculiar ornament of their troops, gold and silver targets; by which we are to understand brazen shields with gold and silver emblems, like those which have been found at Pompeii among the armour of Campanian gladiators, evidently of Greek workmanship. This very circumstance leads one to believe that they had subsidies from Tarentum; for the country of the Samnites was by this time thoroughly wasted. The Tarentines may have furnished the clothing and pay of the soldiers, from which we may also infer that the Samnites had μισθοφόροι. The Tarentines might do this so much the more readily, as the Samnites kept the Lucanians in check.

After the battle at Allifæ, there were found among the prisoners some Hernicans likewise. This was looked upon by the Romans as high treason, and they demanded that those who were guilty of it should be given up. The Romans generally treated their prisoners with great severity. Hannibal used his enemies cruelly, that he might exterminate them; and his allies kindly, in order to gain them over: the Romans did just the reverse. They followed the system of compelling the enemy to acknowledge their supremacy; and when that was done, it was not their plan to destroy them root and branch: on the contrary, they at that time rather wished to bring all the Italians into virtual subjection, and then by degrees to convert them into Romans. But

whilst they did not wish to annihilate their rivals, they held, on the other hand, the principle of so thoroughly intimidating the smaller nations that were averse to their sway, that they would not dare to fall away any more. They therefore let the Samnite prisoners be ransomed, it being an Italian international right, that a man could buy his freedom for a certain sum; those who were not Samnites, they sold for slaves; and the Hernicans, as traitors, were even distributed among the municipal towns for trial. Three of the towns must have taken no share in the war; but Anagnia, Frusino, and the rest, as Livy says, demur to the conditions offered them, which were, to make their submission, and to ransom the prisoners. The expression *cæteri* in Livy shows, that at that period the Hernicans must have been a greater nation than in the days of old, when they consisted of no more than five peoples. The Hernicans now took up arms. Rome was glad of it: for by the fortresses in the south they were cut off from getting Samnite aid; and they were now enemies of so little importance, that after a battle they bought a truce for thirty days. This happened quite seasonably for the Romans, their other army under Postumius being surrounded in Samnium, and very hard pressed; Marcius therefore advanced by forced marches, and made his appearance before matters had come to extremity. The Samnites fought bravely; but the consul who was hemmed in, broke through them, took their camp, and thereby gained the victory. After this and another battle, a truce was concluded for three months, during which the Romans had time to crush the Hernicans. Proud Anagnia, which then ranked as an independent state, like Thebes in Bœotia, lost its political existence, and became a municipal town of the second class, without any intercourse with the foreigner, but with sympolity, that is to say, *connubium* and *commercium* (with Rome); this place moreover and Frusino were deprived of their principal magistrates, and received every year from the prætor at Rome a provost to administer justice. The other Hernicans, who submitted to the laws of Rome, retained their political existence; but as subjects. This reduction of the Hernicans was of the greatest importance for Rome, as the alliance with them had become very burthensome. Nor is it unlikely that the Romans had already tried before to bring in some alterations, and that this had in fact excited the Hernicans to revolt.

The peace with the Samnites was broken again, and now the Romans overran for five months the whole of Samnium; according to Diodorus, they roamed about like hell-hounds, and wasted the country most ruthlessly,

destroying everything alive that they met with, as Ibrahim Pacha did in the ill-fated Morea: on the side of the Samnites, the war had now become a mere guerilla struggle. After this carnage, the Romans themselves had to fly from such a waste: yet the Samnites were still untamed. In the following year, both the Roman armies were again in the heart of Samnium, opposed by two valiant native hosts. The Roman consul Postumius had fought an unsuccessful battle near Tifernum, and his colleague was likewise engaged with the enemy near Bovianum. This campaign bears a great resemblance to that of 1815. Postumius, instead of falling back upon his base of operations, broke up on hearing the news of the other battle; and in the evening, after the two armies had been fighting the whole of the day, he came up just in time to gain a complete victory which decided the war. The Samnite general Statius Gellius was taken prisoner. The Samnites could no longer make a stand in the field: the Romans reconquered Nuceria and the towns in the country of the Volscians, Sora, Arpinum, and others. The next year passed away in an armistice, during which the Samnites had to feed a Roman army in their country. At the end of this period, when the war, according to Diodorus, had lasted twenty-two years and a half, dating from the beginning of the hostilities with Palæopolis, peace was concluded at last.

Its conditions have come down to us in a fragment of Dionysius. The Samnites acknowledged the *majestas populi Romani*; so that they were not allowed to conclude any treaties, and had to withdraw their garrisons from the countries which had been formerly subjected by them. How far their frontiers were altered, is difficult to make out. The Volscian land, of course, remained to the Romans; but it is a question whether Salernum and Buxentum became Roman. This cannot be decided with certainty: it is most likely, as the Romans from henceforth seem to be in immediate connexion with the Lucanians; and it is also probable that the Frentanians remained quite isolated. If so, the territory of Samnium was considerably reduced on both coasts, and then it was also severed from Tarentum. The claims to the posts on the Liris, Fregellæ, and other places, were of course abandoned. Lucania is now again independent, after having become subject to Samnium during the war: the Roman party once more got the upperhand, and thus by degrees the country fell under the power of Rome.

The peace, however, did not last so much as five years, the nature of its conditions rendering this impossible. The Samnite war was followed by the

reduction of the Æquians, who were still attached to their independence. The Romans, by a short but fierce war, forced them into a union with their own state. As the Æquians dwelt in villages built on hills, they were not so easy to be got at; and in consequence they received the right of Roman citizenship under favourable conditions. Hereupon the Romans established a colony at Carseoli in the country of the Æquians, and another at Alba on the lake Fucinus; the former was meant against Samnium, the latter revealed to the Marsians and to the other northern cantons the secret, that they also were to become subjects of the Romans. All the passes which lead through the Apennines, were now shut up. The Marsians rose; but peace was very soon concluded: the Romans wisely granted them very favourable conditions, by which that warlike nation was entirely gained over, and became one of the most faithful of allies. This happened in the year 451.

THE ETRUSCAN WAR. OTHER EVENTS DOWN TO THE THIRD SAMNITE WAR.

In the meanwhile, the Etruscan war had broken out in the year 444. A distinguishing characteristic of the Etruscans is the good faith with which they observed truces; and to this quality it must be attributed that the people of Tarquinii did not take any advantage of the circumstances of the Samnite war. Yet the victory of the Samnites near Lautulæ seems to have given them the first impulse. The union of the Etruscan towns was hard to accomplish; for at that time, not to speak of Cære, which had concluded peace for a hundred years, there were nine states which had to take that common step, although their interests were quite different.^[145] The people of Tarquinii, for instance, had nothing to fear from the Gauls; but other states were threatened by them. When they were still considering, the tables had already turned, victory having in the meanwhile come back again to the Romans,—one reason more for the Etruscans to begin the war. Thus in 442, the Romans already looked upon an Etruscan war as unavoidable, and therefore appointed a dictator: yet the preparations of the Etruscans took up so much time that the whole of the following year passed away very quietly. It was only in the second year, that they commenced hostilities; but they found the Romans prepared. Their army was, however, considerable; and they acted on the offensive, a power which they may have acquired in their fierce wars with the Gauls. The Romans sent Q. Æmilius to Etruria, as the Etruscans were besieging the Roman border fortress Sutrium. The mountains of Viterbo had since the Gallic war been the frontier towards Etruria: they are now a bare ridge of hills; they were then covered with a thick forest. This is the *Silva Ciminia* of which Livy gives such a romantic description. It was nothing but the natural barrier between two nations which were unfriendly, and did not wish to have much intercourse: such a border may purposely be allowed to be overgrown with wood, and to become a wilderness. Such is the boundary between Austrian Croatia and Bosnia, where, since the memory of man, the wood has been left to itself, except that there are some wretched roads in it here and there. This forest was by no means on the scale of a *Silva Hercynia*, to which Livy likens it;

but according to his own account, just broad enough for the Romans to take about a couple of hours to march through it. Sutrium and Nepete were the real border strongholds of the Romans; but always against Vulsinii, not against Tarquinii and Falerii: there the country was quite open, and had intercourse with Rome. The Roman consul now made his appearance to relieve Sutrium. Livy gives a very lively description of the battle; we see from him, that the Romans long kept back their strong reserve. This they often did to the very latest moment, allowing the troops engaged to shed their blood to the last drop: by this means, they gained many a victory. Thus it happened also this time: after having fought the whole day with the Etruscans, they conquered in the evening by bringing up the reserve. Livy says that in this battle the Etruscans had more men killed, while the Romans had the greater number of wounded; the reason of which is this, that the Romans fought with the *pilum* and the sword, but the Etruscans, who were armed after the Greek fashion, used the lance: these had also a large body of light troops. Even if we should listen to this account of Livy, we cannot believe in the result, that the Etruscans had been completely beaten; as in the following year, they were still encamped before Sutrium, and Fabius came forth to its relief. As their army was very great, Fabius thought it hazardous, as well as unnecessary, to attack them; for in truth, bold as the Romans were, on the whole, they were rather circumspect: they did not like to open a campaign with a battle.

Livy's description of these wars is an immense exaggeration, which is the more to be wondered at, as his other histories of the Fabian house are so very exact. Fabius Pictor wrote not more than a hundred years after these events; and he is such an excellent writer, that we cannot lay the blame to him. There can be no doubt that Fabius was followed by Diodorus, whose account is here quite plain and credible, and not in any way to be reconciled with that of Livy: from whom the latter has taken his, heaven knows. According to Livy, the Etruscans in three battles must have lost a hundred thousand men; and not to speak of numbers at all, his description of the siege of Sutrium is quite incredible. Perhaps the only foundation there is for the first battle of Fabius in Livy, is, that by a very clever march he threw Roman troops and provisions into Sutrium. But when the Etruscans did not even then raise the siege, Fabius conceived the plan, which seemed foolhardy in the Romans, of invading Etruria itself across the Ciminian forest. The announcement of it spread terror in Rome. It seemed inevitable

that the army would get between two Etruscan hosts; the Etruscans of Sutrium might cut off its direct retreat, and their return was only possible by going a great way round through Umbria, which was likewise a difficult country to pass. The senate deemed the undertaking so hazardous, that they sent five delegates, and two tribunes of the people, to dissuade him from it;—the tribunes accompanied the delegates, evidently to arrest him, if he should refuse to obey;—but Fabius had started in all haste, and, when the commissioners reached him, he already stood a conqueror in the midst of Etruria, just like Prince Eugene, by whom the order not to fight was read after the battle. Fabius in fact had pushed his army in advance, but had himself remained behind with the cavalry; then, leaving his camp standing, he undertook a great reconnoitring, and by this deceived the Etruscans during the day; towards sunset, he now followed his army and unexpectedly crossed the mountain. According to Diodorus, if we adopt the right reading, [\[146\]](#) Fabius, on the contrary, had invaded Etruria by going all the way round through Umbria, and had thus taken the Etruscans in the rear: in that case, the march across the Ciminian forest would be pure invention.

In this rich country, the Romans had their lust of plunder sated to the full, no enemy having been there for a hundred years, not even the Gauls. The Etruscans now raised the siege of Sutrium, and marched to Perugia, where Fabius won a decisive battle against them. Perugia, Cortona, and Arretium immediately negotiated, making peace for a term of years: thus the western towns, Tarquinii, Vulsinii, Volaterræ, were left to themselves, and they tried to get a treaty on tolerable conditions. [\[147\]](#) The Romans did not perhaps wish to enter into a formal peace: on both sides, they were well pleased to drag on from year to year with the help of armistices. Vulsinii alone held out for thirty years, always drawing in single towns along with it; but the war was constantly interrupted by truces. At Vulsinii, the clients had gained a voice in the government: but the proud Vulsinians afterwards wished, by a counter revolution, to bring back the new *Plebes* to their old state of dependence; and as they did not succeed, they chose rather to let their city be destroyed by the Romans, than to share its honours with their former vassals. It was by raising their subjects, that they had been enabled to resist so long, whilst the other places, which were much better off, had already yielded in the first campaign: these had an enemy in their own subjects. [\[148\]](#)

The Romans had begun to form connexions also with Umbria; they had concluded a treaty with Camers, and had taken Nequinum, a very strong place on the Nera, near the northern frontier of the old Sabine country: the latter they changed into a Latin colony under the name of Narnia. They extended their colonial system thus far already, and by this means cut off the communication between Etruria and Samnium: at the same time, they had built strongholds like these at the mouth of the Liris, in Minturnæ and Suessa. In Narni, there seems to have been a garrison of Samnite auxiliaries; for it is said in the Fasti, that Q. Fabius, in his fifth, and P. Decius, in his fourth consulship, triumphed over the Umbrians and Samnites. With Samnium, there was peace by this time; but marauding was common among the Samnites.

A visible consequence of the peace with the Samnites, is shown in the relation between the Tarentines and Lucanians. During the war, there is no trace of any unfriendliness between these two peoples; but from the moment that the peace was concluded, there is hostility between them, and the Tarentines have to seek for assistance. This is to be accounted for by the fact, that until then the Samnites had ruled over the Lucanians, and had also made use of them against the Romans. The Tarentines called in Cleonymus, because, as the Greek accounts inform us, they were at war with the Lucanians and Romans: these two nations therefore must have been leagued together. Cleonymus was a prince of Sparta, son of the old king Cleomenes; yet as the succession to the throne there was not fixed, and he might be excluded, he readily listened to the invitation of the Tarentines: he was no common-place man; from that time, however, he became an adventurer, and entered the service of several nations. He brought over with him five thousand men, engaged a still stronger body, and forced the Lucanians to make peace. Hereupon, he got possession of Metapontum, in his own name, or in that of Tarentum; but he oppressed it with contributions, which could not possibly be paid, and he showed himself there to be a true tyrant. To the Tarentines he behaved so ill, that they broke off their connexion with him. They got rid of him; for he was taken into pay by one of the parties against Agathocles of Syracuse. The undertaking miscarried; and as Cleonymus on his return found the territory of the Tarentines closed against him, he seized upon Corcyra, and made it his chief arsenal for further expeditions. From thence he went against the Sallentines, and was defeated by a Roman general; then he marched into Venetia, and through the lagunes, against

Padua; but he got on the mudbanks, and was obliged to retreat with some loss. After having roved about for more than twenty years, he returned to Sparta, and accommodated himself to the state of things there: but he was bitterly offended. He then beguiled Pyrrhus into his ill-fated expedition against Sparta, and must have died soon afterwards at an advanced age.

From these notices, circumstances may be gathered which the Roman annals pass over in silence. Not long before this, the Romans had carried on war in Apulia against the Sallentines, who were staunch friends of Tarentum. We now find the Romans allied with the Sallentines against Cleonymus; and hence it is likely that the Tarentines, throughout the Samnite war, were hostile to Rome, and that they made peace with her at the same time as the Lucanians. That a treaty afterwards existed between Rome and Tarentum, is certain; as the violation of a compact, twenty years later, is given as a cause of the war between the two states. One of its conditions was this, that no Roman ship of war was to show itself north of the Lacinian promontory. This treaty is indeed called an ancient one in Livy; but to an historical writer who weighs his words so little, a treaty of twenty years standing may already seem an old one. There cannot have been any concluded earlier, as the Tarentines until then appear to have been always hostile to the Romans.

Besides the eminent men of that age already spoken of, we have to mention Appius Claudius, who on account of the misfortune which befell him, of losing his eyesight, has become celebrated under the name of the Blind. He is quite a strange character, and his acts seem to be most inconsistent, unless we call to mind the times in which he lived. Born and bred in the pride of the patrician party, he goes to such lengths as to refuse as *interrex* to take any votes for the election of a plebeian consul, a fact which we know from Cicero; and yet he is the first to bring the sons of freedmen into the senate, passing over distinguished men: contrary to usage and custom, he tries, when censor to arrogate to himself extensive powers which had long since been curtailed by the constitutional laws; and in his old age, he again appears as the saviour of the state, who in the day of trouble, by his eloquence upholds the drooping courage of the fainthearted senate. This character is therefore quite a puzzle. If with Dionysius and the modern writers, we were to believe that the struggle at Rome, like that at Athens, was between the rich and the ὄχλος we should think it indeed

strange that Appius admitted the children of freedmen into all the tribes, and even placed them in the senate. We must therefore look deeper into the matter, and have before our mind the temper of the parties and classes which existed at the time. During the fifty years which followed the passing of the Licinian law, nobility had already become the attribute of a considerable number of plebeian families, many of which had even then the *jus imaginum*. Among the patricians, the number of the ennobled families was now very limited; and it is a question, whether the plebeian clans of noble rank were not quite as many as the patrician ones, most of the latter having either become extinct or impoverished: we commonly find over and over again the Claudii, Cornelii, Sulpicii, Furii. The plebeians stood in the same relation to the patricians, as the *nobili* of the *Terra Firma* to the city nobles of Venice; had these *notables* become a corporation, as Maffei proposed, they would have formed a *Plebes*: but the nobles of Venice hated nothing so much as that very nobility of Padua, Verona, &c., whilst on the contrary they were friendly and kind towards the native low Venetian. This was the relation of the Roman patrician to his client, in contradistinction to the free plebeian order: a proud patrician, like Appius Claudius, looked upon Licinius, Genucius, and others, as most hateful rivals. Such an aristocracy, looking with a most jealous eye on clans whose equal rank it cannot gainsay, seeks for allies from among the very opposites to aristocracy. Such alliances have been most often seen in the South of Europe: the Santafedists at Naples were Lazzaroni; the royalist volunteers in Spain were from the very lowest of the people. Appius appears, on the one hand, as a man of great name in history; on the other, he is spoken of by Livy as a *homo vafer*, a trickster: this perhaps was not quite an unfounded opinion of him. Appius Claudius, and others of his fellow-patricians, seem to have still entertained the idea of depriving the plebeian nobles of their influence, by calling in a party which of itself could make no claim to honour. Principles like these were fatal in every respect, and hindered the onward march of the constitution. Notwithstanding all this, Appius Claudius was a most distinguished man; and reasons may even be brought forward for his innovations, which would in some measure justify them. He received the children of freedmen into the senate, and distributed the freedmen themselves among the tribes. From this latter point, we must go on again.

It was the distinguishing character of the plebeian order, that its members were landowners, and had their livelihood free and independent,

the very reverse of the condition of the clients. The plebeian, like the patrician, was to be well-born, εὐγενής, *ingenuus*; and therefore, as well as his rival, he added to his name those of his father and grandfather. The *libertinus* could not thus show proof of his ancestors: if he was a freedman himself, he could not name any father at all; if his father was a freedman, he could but mention him alone; but if his grandfather already had been free, then the wall of partition fell to the ground,—he was perfectly *ingenuus*, and could be admitted into the tribes. Now in the course of so long a war, the numbers of those who were bound to serve, had very much fallen off, and the conscription was felt to be a heavy burthen. It is a remark of Aristotle, that the character of the Athenian *Demos* had been much changed in the Peloponnesian war; for its numbers had lessened, and the gaps had been filled up by freedmen and others. If then the Roman people kept to its system of only adding whole tribes, whilst the vacancies in the old ones were scarcely ever filled up, and the enlistments were to be made in the same proportions as before, the citizens who belonged to those old tribes were very hardly dealt with: hence it was but a natural thought, to increase the number of those who were bound to serve. But among the Romans, rights and duties were inseparably united; and thus we may understand why it was that the censor wished to complete the tribes. He who had to bear the burthen of the war, was also to enjoy the advantage of belonging to the commonalty. The undoubted power of the censors to enrol names in the lists of the tribes, the knights, and the senate, and to strike them off likewise, warrants the supposition that the deficiency of two ancestors was not, after all, an insurmountable obstacle to entering the tribes; and that it could not have been altogether a thing unheard of, that freedmen were received in them. Yet if it had been done hitherto, it was in truth but seldom, and in the case of individuals; and the innovation of Appius consisted in this, that he placed the freedmen in a mass among the tribes. In one point of view, this measure was a happy expedient; but there was besides to be considered the change of relations between the different elements of the state, which are to be looked upon in history as always tending to shift their ground. Under the then existing circumstances, the trades might have become of greater importance than they were formerly. If, instead of the slaves, many *ærarrians* carried on the trades and enriched themselves, the relations between the different classes were changed, and the state was then obliged to have regard to their reasonable demands: excessive advantages were not indeed

to be granted them, and at the same time, established institutions and vested interests were to be protected against the too luxuriant growth of what was fresh and new. With these principles, free states have always been able to maintain their ground. Thus at that period a class of people is formed, which we now meet with for the first time, namely, the notaries, or *scribæ*, who had a wider range than the *tabelliones* under the emperors. They became a guild, which in Cicero's times was exclusive, and into which one had to pay for admission: its members were people of the most motley description. According to the Roman constitution, no other kind of knowledge was requisite for holding an administrative office, but the *artes liberales*, which comprised everything that a man of good education was supposed to have learned; on the other hand, the whole mass of that business of which the greater part of the work of officials is made up, was done by the *scribæ*. Thus there was an immense deal of writing at the prætor's office; yet the minutes were neither kept by the prætor himself, nor by any other *homo ingenuus*, but by the *scribæ*. This profession was very lucrative; all transactions were drawn up in writing by them according to certain forms. These men were employed not by the authorities only, but in every possible kind of business; for the Romans wrote to a fearful amount. They kept all the accounts of the ædiles, the laborious registers of the censors and others, while the functionaries themselves only superintended the whole; they also did the same services for the bankers (*negotiatores, equites*), as every Roman was obliged to keep his own accounts, his books of receipts and expenses, and this in deference to public opinion, that he might not be considered as a *homo levis*. For this purpose they frequently kept a *scriba*.

This class now comes forward for the first time, and as a body of the greatest weight, owing to Cn. Flavius. If Appius wished to drag down the leading plebeians from the position which they had won, it was no longer feasible to have recourse to arms in conjunction with clients and isopolites; but he had to gain his point by cunning, which was done by uniting a great mass with the patrician order, and so he introduced *libertini* into the tribes: he had then a majority in the resolutions of the *Plebes*. In a like manner, the *municipes* might further his plans; and he was himself able, by removing, as censor, the independent plebeians from the senate, and by bringing into it men of low birth, to carry measures which were formerly not to be thought of. Something similar occurs in the undertaking of Sylla, who likewise,

more than two hundred years afterwards, came back to his legislation, and promoted men of the lowest rank, who were mere proletarians, into the senate. There is to be found in Livy, from the censorship of Appius downwards, a difference between the *Plebs sincera* and the *forensis factio*; evidently the former is the old *Plebs*, and the latter the incorporated freedmen and isopolites.

Those who had been newly received into the senate, must therefore have been only the creatures of Appius Claudius and his party. He certainly did not think of a *tyrannis*, being too sensible a man to do so: his son is said to have had such an idea; but he must have been mad. His plan could therefore have only been for the interest of the aristocracy: on what is called the “right side” in the French chamber of deputies, there is indeed no want of people who have been raised up by the revolution from the very lowest ranks. That Appius entered *libertini* upon the rolls of the senate, excited such heartburning, that the consuls summoned the senate according to its former composition: he seems in fact to have also made omissions, very likely among the plebeian senators. His list was therefore never made use of.

The period for which the censorship was held, had for a long time been reduced from five years to one and a half. Appius claimed all the five years, and carried his point, until at last he wanted to be consul and censor both at once. This was against the Genucian law; and the tribunes had decided upon having him arrested, if he should try and do this by force: he then resigned the censorship. It is, however, possible that he wished to retain it, not so much from motives of ambition, as for the sake of those great works which he had begun to execute. He made the Appian road, the *regina viarum*. For, the Latin one, which led through Tusculum, and through the country of the Hernicans, being then so much infested, and not yet quite restored to the possession of the Romans, the Appian road was to serve as a shorter and safer one: it led by Terracina, Fundi, and Mola, to Capua. At first, he laid it down as far as Velitræ, then to Setia round the Pontine marshes. That portion which crosses the marshes themselves, he did not make;—even that which was afterwards constructed, was not of much use for the Roman troops;—but he cut a canal through them, in order to drain part of them: for to drain the whole, was not, and will perhaps never be possible. This canal was meant for the conveyance of warlike stores from Cisterna to Terracina;

which was necessary, as the Romans had no fleet, and the Tarentines could easily cut off their communication by sea with Campania. The mainroad for the troops passed over the mountains, and by Setia, *via Setina*, which, therefore, in the list of roads is mentioned separately: it is the same road, which throughout the middle ages, until the times of Pius VI., was again the common one, when the Pontine marshes were deserted. The Romans chose it, because the distance between Cisterna and Terracina through the marshes is too great for one day's march. There lay indeed between the two places *Forum Appii* on the canal; but indeed it must have been inhabited during the winter only: on the *Via Setina*, on the other hand, the armies might encamp on the hills during the summer nights. Had they wished to bivouack in the Pontine marshes during the night, they would have been destroyed by the malignant fevers; consequently the *Via Setina* was a necessity. The *Via Appia*, even if Appius should have carried it on the whole length to Capua, has not been executed by him with that magnificence which we now admire in those parts of it which have not been intentionally destroyed; those closely fitting polygons of basalt, which thousands of years were not able to disturb, are of somewhat later date. The road was now made because it was wanted; and it was not until the year 457, that they began at all to pave it with *peperino*, and some years later with basalt (*silex*),—at first a small portion, from the Porta Capena to the temple of Mars, of which we have positive information in Livy. Before that time, there were highroads already, which along the mainway had footpaths paved with *peperino*; that is to say, with flag-stones (*saxo quadrato*) of that material. For the basaltic pavement, the fines especially were appropriated.

Appius was also the first who brought an aqueduct to Rome, the *aqua Appia*. The Roman aqueducts of later times were of immense extent; the one built by Appius was but a small beginning, being only for immediate wants. They had to fetch water in Rome from wells, but chiefly from cisterns (*putei*), as that which is got from the Tiber is so bad. Those quarters of the city which lay low on marshy ground, as the Velabrum, the *Forum Olitorium*, had of course no wells, and people were therefore obliged to do as well as they could with cisterns: to supply those parts, was the object of the *aqua Appia*. It was brought to Rome from a distance of eight (Italian) miles, and supplied only the lower town, not the hills, as Livy expressly states. It was finished in the middle of the Samnite war, after the year 440, when fortune began to turn in favour of the Romans; and it was all under

ground, as Frontinus tells us, that it might not be destroyed in some of the many Latin insurrections. For it was feared that arches built above ground might be demolished, as was done by the Goths in Belisarius' times. It led by the Cœlius under the Porta Capena to the Aventine, as far as the spot where Piranesi very exactly hit upon it, near the *Clivus Publicius*, at the corner of the hill. The outlet is now covered with rubbish, the water having been choked by stalactites, as in several other aqueducts. This undertaking was a benefit unknown throughout the whole of Greece.

These two works are said to have induced Appius Claudius not to lay down his censorship, until they should be completed, and much has been written here about the struggle between him and the tribunes. If it was merely his intention to carry out this design, the way in which the tribunes behaved would have been paltry enough: but perhaps these works were too grand for the circumstances of the times; and it is a question, how far he may have burthened the existing generation for the benefit of those who came after. According to a statement which Diodorus has taken from Fabius, who, though a patrician himself, was indeed an enemy to oligarchy, Appius actually undertook them without any authority from the senate. This would certainly have been an audacious enterprise; and, to judge from his disposition, it was not impossible. He seems also to have made sales of the *ager publicus* for this purpose; and thus, while the *Plebes* suffered, the members of his own order were losers as well.

His real agent seems to have been the Cn. Flavius, who has been already mentioned. This man was the son of a freedman; he could therefore use the name of his father only, which was Annius. This is an Etruscan name; so that Annius was very likely an Etruscan slave, who had perhaps been a man of consequence in his own country, and had only lost his freedom (*ingenuitas*) by having been taken prisoner. Cn. Flavius became the benefactor of the people, in a manner of which we cannot easily form an idea. According to the most ancient Roman custom, there were thirty-eight court-days in the year of ten months, the kings, and then the consuls, sitting in judgment every eighth day, consequently on the nundines. This was afterwards done away with; the nundines were no more to be the same as the court-days, as on these the country plebeians were in such numbers in the town, that a tumult might easily be raised. The thirty-eight days were therefore distributed over the whole year of twelve months; and there being

too few of them, single days were added, on which likewise *lege agebatur*. But now there was a double difficulty; and the patricians took advantage of the circumstance to keep the plebeians in a state of dependance. The thirty-eight days had been distributed irregularly throughout the year; so that if any one wanted, for instance, to sue by a *vindicatio*, he did not know when the prætor would sit in judgment, but had to make inquiries in the forum, or of the pontiffs, on what day a *legis actio* might be brought in. Now it might be answered, that one could surely have remembered the eight and thirty days: but then there were others besides, half *fasti* and half *nefasti*, on which *lege agebatur*; and others again, on which *comitia* were appointed to be held, but yet *lege non agebatur*. And therefore, as we are told, Appius ordered his *scriba* Cn. Flavius constantly to find out from the lawyers, on what days *legi agi posset*; Flavius by this means made a calendar on a tablet of plaster (*album*), and publicly set it up: it was then frequently copied, and the plebeians were full of gratitude towards him. Indeed, to secure their independence still further, he also published the *formulæ actionum*:—according to Cicero, this was done after his time only, as the forms themselves were first invented at a later period; according to others, it was he who did it, which is much more likely. We must not imagine this to have been a regular system of laws, although it is generally termed *jus Flavianum*, but a set of forms of proceeding for every case,—a sort of “Complete Lawyer.” This was felt to be a heavy blow to the influence of the higher classes on the common people. Until then, no one could transact any business without a legal adviser; for certain acts could only be performed on certain days, and so forth. This manual of law is a great step in the progress of political freedom.

As a requital for these benefits, Cn. Flavius had the votes of the plebeians in the election for the ædiles. When it was objected to him that he could not be an ædile, *quia scriptum faceret*, he took an oath that he would give up his notary business; from which we may gather, that, at that time, it was still incompatible with the condition of an *ingenuus*. Together with him, one Q. Anicius of Præneste, who a few years before had still been a public enemy of the Romans,—perhaps the remote ancestor of that Anician family which was so brilliant in the last days of the western empire,—was elected in opposition to two distinguished plebeians, a Pœtelius and a Domitius; which proves that in this case, isopolites and *libertini*, the *factio forensis*, combined, and decided the election. We find from Pliny, that

Flavius made a vow, *si populo reconciliasset ordines*; by *populo* the patricians are meant, and as Flavius performed his vow, the reconciliation must have been effected: very likely he acted as mediator during the later censorship of Fabius and Decius, inducing the *libertini* to allow their rights to be abridged, as the good of the republic required. For from the mingling of these men with the tribes, there arose great fermentation, down to the censorship of Q. Fabius Maximus and P. Decius. A reconciliation then took place (449): the *libertini* could not entirely forego their rights; but they were combined by Fabius into four tribes, the *tribus urbanæ*, which always remained *tribus libertinorum*, and consequently *minus honestæ*. This measure had most beneficial results. For when we call to mind that the votes were given by tribes, in each of which it was the majority which decided; we may easily imagine, that if the *libertini*, who were engaged in trades and dwelt in the city, were scattered through all the tribes, they, being always present, must have formed the majority in any meeting which was suddenly called; as among the plebeians of each tribe, but few of those who lived out of the town, could have made their appearance: and thus, in such assemblies of the commonalty, the whole power had passed into the hands of the *libertini*. The system of Appius would therefore have become most pernicious, without this wholesome change.

At the time of the second Samnite war, another change took place, namely, the abolition of the *nexum*, which Livy assigns to the consulship of C. Poetelius and L. Papirius; but according to Varro, as corrected from the MS., it was brought about during the dictatorship of Poetelius, 441. With this also agrees the circumstance, that the impoverished state of the families of the bondmen for debt is said to have been a consequence of the disaster at Caudium. We thus see, how even at so late a period, events which did not strictly belong to the province of real political history, were arbitrarily interpolated in the annals. A youth is ill treated; he rung to the forum; a tumult arises: then it came to pass that the *nexum* was abolished, so that the person of the debtor, or those of his children, were now no more to be detained. This shows us a state of things in which the mob have already great power. We cannot doubt but that by this time indeed, wealthy people pledged themselves *realiter* by the *fiducia*, if they had quiritary property; and this kind of mortgage may have become more general, the more the quiritary property increased among the plebeians. It was now permitted as the only one, and it was forbidden to pledge one's person. But if any one

incurred a debt by a *delictum*, the relation of the *addictio* remained; and he was to continue in it, until he redeemed himself: this is certainly the case, even as late as in the war with Hannibal. The continuance of this relation has led many into error, and has awakened in them a suspicion of the law of Pœtelius; but *addictio* is something quite different from the *nexum*. Livy calls this law *novum initium libertatis plebis Romanæ*.

In consequence of the Ogulnian law, from the year 462, the number of the *Pontifices majores* was increased from four to eight, and those of the augurs from four to nine: the increase was taken from the ranks of the plebeians. A ninth pontiff was the *Pontifex maximus*, who without doubt was chosen *promiscue* from both orders. Afterwards *cooptatio* was by a decree: whether it were thus from the beginning, is hidden in darkness. Twenty years later, Ti. Coruncanius was the first plebeian *Pontifex maximus*. Livy gives us the *suasoria* of Decius on the occasion of the Ogulnian law; but the speech is not quite in the character of that age: for, the patricians now knew right well, that they could no longer keep their privileges. This change is evident from the fact, that, although at that time there is no doubt that the nominations to the priesthoods were made by the curies, or by cooptation on the part of the college, yet the law was not transgressed at all, and the plebeians were at once admitted to these offices. Thus the spirit of real life had prevailed over the letter of mere institutions. People as yet only called themselves patricians and plebeians; but there existed already the parties of those who were noble, and of those who were not: the former comprised all the eminent patrician and plebeian families.

The admission to the priesthoods was a point in which the plebeians were highly interested; as the pontiffs were the guardians of the civil law, and the keepers and the fountain head of the whole of the *jus sacrum*, and the augurs, whose declarations in that age were certainly still considered authentic, exercised influence upon all transactions of importance.

THE THIRD SAMNITE WAR.

The peace between the Romans and the Samnites had lasted four years at most. During this interval, the Samnites had, by the defence of Nequinum or Narnia, paved the way for the continuance of the war: they wanted merely to rest themselves, and to collect their strength. By the conditions of their agreement with Rome, they ought to have kept themselves from every sort of hostility against the neighbouring states; yet this was impossible. In Lucania the feuds of the two parties soon broke out again: the country had recovered its independence, and attacked Tarentum; the Samnites declared war with Lucania, and the Lucanians, being hard pressed, put themselves under the protection of the Romans. As these did not like to see the Samnites recovering their power, they required them to give up the Lucanian conquest, in accordance with the peace. The Samnites returned a haughty answer, and warned the Roman ambassadors not to make their appearance in Samnium. In the year 454, whilst in Etruria there was at one moment a truce, and at another a quarrel with some of the towns, open war broke out again with the Samnites. We behold the Apulians allied with Samnium; for Apulia was too far away for Rome to have maintained her dominion there: the Sabines also we find on good terms with the Samnites, and in some instances even in a league with them. Thus therefore had circumstances taken a turn by which the condition of Samnium became somewhat more favourable; on the other hand, the power of Rome had so much spread in the meanwhile, that she was a much more terrible enemy for Samnium to face.

This war took quite a different course from the former ones, from which we may infer that the state of things had changed. The Romans do not again transfer the scene of war into Apulia, whether it was that the Apulians had fallen away from them, or because they were hindered by other circumstances. They now attacked the Samnites in front, who do not go into the Æquian country, but into the Falernian district in the neighbourhood of Vescia. The war lasted eight years, and was still more ruinous for the Samnites than the one before; yet they carried it on with great energy, and the whole of their plan, although not crowned with success, is one of the

grandest which history can produce; but *victrix causa Diis placuit*. In the first campaign, the Romans were at once in the heart of Samnium, and they advanced into Lucania to assist its people: Rome indeed had also sometimes the worst of it; but she did not lose any great battles. In the year 455, both the Roman armies, that of Fabius, and that of Decius, were in Samnium, waging there a war of extermination, of which the account in Livy clearly bears the stamp of authenticity: he had genuine memoirs before him; yet these often contained most irreconcilable statements. The Romans marched from place to place, and wherever they encamped, they destroyed in the country round every trace of cultivation: Fabius had his camp in eighty-six, Decius in forty-five places. They took but few towns; for the Samnites defended themselves on their hills with such lion-hearted courage, that it was impossible to reduce them.—In 456, Volumnius and Ap. Claudius were consuls, Decius proconsul. Volumnius is said to have beaten the Samnites again and again, and at last to have compelled their army to flee into Etruria: this is a calumnious misrepresentation of the heroic spirit and the vast plan of the Samnites. Their army was so far from having been driven out of the country, that Gellius Egnatius fought for several years in Etruria; and even after the destruction of his force, the Samnites a long time held their ground in Samnium: they, on the contrary, conceived the grand idea of abandoning their country to the mercy of the enemy, and of carrying the war into Etruria. The Etruscans had during the last hundred years become better acquainted with the Gauls, who, being settled in the Romagna, had lost their love of roving, and were peacefully engaged in husbandry: individuals only enlisted as warriors. But as on the other side of the Alps the national migration was still going on, the transalpine hosts from time to time crossed the mountains, and then the Gauls were again set in motion. Such a migration must have taken place about this period; and the Etruscans availed themselves of the favourable moment, to take the Gauls in their pay against the Romans. It must have cost them much to come to this resolution; for if the Gauls had settled on the lower Tiber, amid the ruins of Rome, Etruria was surrounded and annihilated. Nevertheless, passion and hatred against the Romans were stronger motives than prudence. The Etruscans, with the exception of a few townships, had in the hope of this reinforcement again taken up arms, violating even their accustomed faith with regard to armistices; Perugia, for instance, did not keep the thirty years' peace. Now as the Etruscans were indeed a wealthy, and with their

serfs to fight at their side, a valiant people, but wanting in generals; the Samnites determined to march through the land of the Pentrians, Marsians, Sabines, and Umbrians, to Etruria. This is not here the fate of the heroic Vendéans, who in the month of October 1793, with all their population passed the Loire, and left their home to be laid waste, because they could not defend it: the Samnites were but an army, and the Romans did not hinder their march. This is one of the most brilliant feats in ancient history, and it excited in Rome not a little dismay.

The junction of Gellius Egnatius with the Etruscans was difficult to effect on account of the new Roman colonies: the Samnites had to march by Antrodoco; Volumnius followed them, but he could not prevent the union. It took place in 456; and the Romans were so far from looking upon them as fugitives, that the consul Volumnius received orders from the senate, to transfer the war from Samnium into Etruria, where Ap. Claudius seemed not to be equal to the emergency of the case. Ap. Claudius, in his patrician pride, considered this as an insult; and he demanded that Volumnius should leave the province: this insolent and egregious folly might have put the very existence of the republic in jeopardy. Volumnius was ready to return, and was only induced by the entreaties of his army to remain. In this year, the Gauls had not yet stirred; it is possible that the hosts which were expected, had not yet crossed the Alps.

The campaign of the year 457, is the turning point of the fate of Italy. The Romans made immense exertions. One body of troops was left behind on the frontier of Samnium, in order to hinder the Samnites from any attempt at offensive war against Rome: perhaps it consisted chiefly of Campanians and Lucanians: it merely acted on the defensive. The army under the proconsul Volumnius marched against the Gauls; and the old consular one of Appius, which was stationed in the neighbourhood of Foligno, was reinforced by two new legions, which Fabius had enlisted. Besides these, there were two armies of reserve, consisting of those who had to take up arms in case of need only, part of them perhaps a mere militia armed with spears: one was encamped on the Vatican hill before the city; the other was thrown forward as far as Falerii, in order to keep up the communication. The consul Decius went to the army, to take the command of the legions; to him Fabius brought his reinforcement. The Romans had posted themselves in the Umbrian mountains, near Nuceria, and had gone

into cantonments there; a detachment was sent to Camerinum^[149] on the most northern slope of the Apennines, to prevent the Gauls from marching through the defiles to Spoleto in the rear of the Romans. The Gauls, we must assume, passed the Apennines by Ariminum and Sena. Here Polybius comes to our aid. The legion which had been pushed on as far as Camerinum, was surprised and cut to pieces; so that the Romans knew nothing of the defeat, until the Gallic horsemen, charging on, displayed the heads of the slain Romans stuck on their lances.—The Etruscans, Samnites, and Umbrians, had combined their forces; until then they had remained on the defensive. Then the two Roman generals again resolved on an exceedingly bold undertaking: elsewhere ἀσφάλεια is wont to be the leading principle of their strategy. They made a movement in flank against an enemy immensely their superior in numbers; the main army marched from Nuceria through the Apennines, which are not very high there, to Sentinum; the Gauls and Samnites were stationed on the right, the Etruscans and Umbrians on the left of it. Between the two, they advanced as far as where the Apennines towards the Adriatic end in ranges of low hills, as if they meant to invade the country of the Senones; the latter, however, instead of advancing, fell back upon their frontier, and the Romans disposed themselves *en échelons*. The consuls called in the reserves. Cn. Fulvius moved from Falerii (Civita Castellana) into the position which had been left by the main army, and was detached against Assisium in the neighbourhood of Perugia: here there is a very high and strong range of mountains, from which he might invade the country, and entice the Etruscans to separate themselves from the Gauls. All this is quite certain, and I am led to think that the second reserve also marched afterwards on to Falerii. At Rome, they were surely forward enough in their preparations for arming, to be able to withstand any sudden invasion from Samnium. Another fact besides is hardly to be doubted, although Polybius merely gives it as a supposition. Volumnius also, who again faced the Samnites in their own country, must have been summoned back; so that by forced marches, he approached on the decisive day through the country of the Sabines above Terni, and abandoned Samnium to its fate.

The diversion of Fulvius against Perugia was crowned by the most complete success; the Etruscans and Umbrians detached considerable divisions of their main army to their own country, to protect the frontiers from the devastations of the enemy. These were the best troops of the

Etruscans, whilst, on the other hand, Fulvius had the worst of the Roman. As generals in the battle, there are mentioned only the two consuls Q. Fabius V. and P. Decius IV.; but most certainly, as mentioned before, Volumnius also was there as proconsul: about fifty to sixty thousand men faced an enemy of infinitely superior numbers. There were a great many reasons for proceeding to Sentinum: in the first place, to draw the Etruscans away from their own home, so that, if they should be obliged to retreat, being separated from their allies, they would have to move by the arc of which the Romans had cut the chord; in the next place, they made the Gauls tremble for their own country, and it was to be expected that a great part of them would be scattered in order to protect their open villages; and lastly, they were afraid of the ἀπόνοια of the Gauls. If they had cut off the retreat of the Gauls in the south, these would have fought much more desperately; now they had the retreat into their own land open before them, and they had not yet crossed the mountains.

The result rewarded their wisdom. Yet the numbers of the enemy were so much superior, that the Romans did not trust to the efforts of human bravery alone; but Decius had resolved upon devoting himself to the infernal gods, and he had induced the plebeian pontiff M. Livius to accompany him, in order, if necessary, to perform the consecration in the midst of the battle. Decius faced the Gauls; Fabius the Etruscans, Umbrians, and Samnites; the legions of Volumnius may have been stationed in the centre. Of these enemies, the Samnites were by far the most formidable. Fabius had a style of his own in his strategy, as is the case with nearly every distinguished general;^[150] he kept back the reserve to the very last,—a manœuvre the practicability of which entirely depends upon the composition of the army; it is only possible with very well trained troops; with young soldiers one risks a defeat;—when the foremost battalions were nearly destroyed, then only he led on the reserve, which was still quite fresh, and in this manner he almost always succeeded. Thus also now against the Samnites. But a different system was that of Decius against the Gauls, and must have been: this is the grand characteristic of the Roman order of battle, that they fought against every enemy in a special manner. The Greek wars are not by any means interesting, but so much the more are those of the Romans. The Greek phalanges pushed against each other, and the masses were immoveable; the Roman method on the contrary was light and flexible: Polybius, a very good officer, found it adapted to every

circumstance. Fabius tried to weary out the Samnites, as it was summer, a season which the labourer from the warmer country bears much more easily than the Samnite, who dwelt in the cooler valleys. The Gauls also were easily wearied; but they were a numberless swarm which with the utmost impetuosity threw themselves upon the enemy; the first onset was the worst; if its shock was resisted, the victory was almost sure. To meet this first attack, Decius did everything in his power, but in vain: the innumerable cavalry of the Gauls, although at first driven back, advanced again with its overwhelming superiority of numbers; and now they brought forward their thousand war chariots, which were a terrible sight for the horses of the Romans. These took fright, and the flight began without any fault of the riders. For two days, the armies had faced each other; on the morning of the third, the Romans had an omen which prophesied victory to them; namely, a hind came down from the mountains, chased by a wolf, who caught her, and tore her in pieces. The day notwithstanding seemed to end disastrously; but Decius, after the example of his father, now devotes himself to death, and he rushes into the midst of the Gallic hosts, adding yet to the form in use the prayer, that fear and death might go before him. Hereupon affright is said to have spread through the army of the foe, and to have stopped it in its career. However this may have been, the death of Decius decided the battle. The Romans rallied, picked up the *pila* from the field of carnage, and hurled them against the Gauls; the barbarian cavalry, having pushed on too far, was surrounded and overpowered; and Fabius, who had already discomfited the Samnites, sent his troops to give aid, and he now also led on the reserve. On this, the Gauls, who, like the Russians at the battles of Zorndorf and Austerlitz, were in one dense mass, broke, and could only scatter and flee: the retreat of the Samnites, Etruscans, and Umbrians to their camp was less of a rout. The loss of the Romans is stated to have been about seven thousand men of one army, and twelve hundred of the other; the Gauls had five and twenty thousand killed, and between seven and eight thousand taken prisoners, which is very credible. They went back again into their own land, without troubling themselves about any thing further, and the Samnites again accomplished an immense undertaking. Gellius Egnatius himself had fallen, either in the battle, or in the retreat; but the Samnite army was once more obliged to march round that of the Romans, or else quite through it, pursued by Volumnius, and attacked by the peoples into

whose territory they trespassed, and whom they had to plunder in order to live. Five thousand of them reached their homes.

Thus ended the greatest campaign for achievements, known in the earlier Roman history. The numbers of the armies are corrupted in most of the books: Livy has for the Gauls 40,330 foot, and 46,000 horse; the former number has been left unchanged, but the 46,000 were brought down to 6,000; it ought, however, to have been 1,000,000 foot and 46,000 horse.^[151] These are numbers, however, which do not belong to history, but merely to the chroniclers. The battle of Sentinum was so glorious, that the Greeks also knew of it, and Duris of Samos mentions in his history that a hundred thousand Gauls had been slain in it.

A campaign of such historical importance as that of the year 457, fills one indeed with pity, but at the same time with the greatest respect. The end of the third Samnite war brought misery and ruin upon Samnium. However blind the struggles of the Samnites may seem to have been, yet in truth they were great. We shall now give a short sketch of the rest of the war. Until 461, when it ended (the peace itself was only concluded in 462), it was continued in the same manner, and the Samnites renewed their attempts to break through into Etruria, but in vain. The Romans wedge themselves into Samnium; the Samnites retaliate in the country between the Liris and the Volturnus. On the whole, during the last years, they still display mighty efforts: even as late as the year of the battle of Sentinum, they make an inroad through Campania. In the second year after,^[152] they are said to have sent two great armies into the field, one of which binds itself by a solemn oath to fight to the last man. The only wonder is where they found the means, especially to keep up the style that they did, as Livy mentions that they had shields embossed with gold and silver: such magnificence sounds quite fabulous in a people which had been so reduced for years.^[153] That, however, the consuls Postumius and Carvilius won *spolia* of extraordinary splendour in their victories over the Samnites, is an historical fact; from part of these, a brazen colossus was erected in front of the Capitol.

But in reality, the war was decided as early as in 459 by the consuls L. Papirius and Sp. Carvilius. It is characteristic of the way in which it was waged, that the Samnite towns, both then, and afterwards in the war of Sylla, so entirely vanished from the earth, that the later geography did not

know of them any more; and that no Samnite antiquities whatever are found in those regions. The last great battle was fought in the year 460. At that time, the son of the great Fabius, Q. Fabius Gurgus, had marched into the country of the Pentrians; against him commanded C. Pontius, the conqueror at Caudium: from this we may infer, that the Caudines certainly took part in the war. The Romans were beaten, and they lost the whole of their baggage, the news of which reached Rome: they had, it is true, cut their way through the enemy; but they were not able to go on with the campaign. Then Fabius begged hard that the *imperium* might not be taken from his son; and he succeeded in carrying a motion to that effect, and in getting permission to go out as legate to his son with a reinforcement: this was the greatest reward which the republic could give to that great man. He now gained a most decisive victory, by which, as Orosius justly remarks, an end was put to the Samnite war; for, although Eutropius tells us that it lasted a year longer, he is indeed such a careless writer, that no stress is to be laid on what he says. The sequel of the victory was horrid: C. Pontius was taken prisoner, led in the triumph, and then put to death: a fouler stain than this is not to be found in the whole of the Roman history. His native city Caudium must also at that time have been razed to the ground.

At the end of this war, when it was too late to turn the scale, it happened that new allies declared for the Samnites. These were the Sabines, whose peace with Rome had lasted for a century and a half, and that in such a manner, that we must believe what we are told by one whose authority is otherwise not quite to be trusted, that they had the right of Roman citizenship. This might have induced the Romans to grant the Samnites the peace, although they were not crushed: on what conditions, we are not able to make out. The Romans took advantage of it to establish on the frontiers of Apulia, Samnium, and Lucania, the large colony of Venusia, the native place of Horace: twenty thousand *coloni* are said to have been sent thither; if this be true, it must have got a large country district. By means of this colony, Samnium was cut off from Tarentum, and such indeed was its importance, that the number given becomes not unlikely: in the war against Pyrrhus, it saved Rome; without it, after the battle of Heraclea, the army of Lævinus would have been utterly destroyed. Some time afterwards, they founded a colony besides at Æsernia in Samnium.

WAR WITH THE SABINES. COMMOTIONS AT HOME. LEX MÆNIA. LEX HORTENSIA.

M'. Curius was called upon to chastise the Sabines. These consisted of several peoples which were very loosely connected with each other: Amiternum had already leagued itself before with the Samnites, and had been taken in the third Samnite war. Hitherto, the fear which the Romans had of the Gauls, had protected the Sabines; but now the former no doubt required that they should accept the Cærite citizenship (sympolity): the Sabines refused, and war broke out. As nearly all their towns were open, the struggle was short and bloodless, and the conquest easy; the booty also was immense, owing to the length of time in which they had lived in peace.

This Sabine war led to a great division of land, as the Roman people by their many and mighty wars had been brought into great distress, like that which is described by Massillon in his funeral oration on Louis XIV. All these great victories appear to us brilliant in a political point of view; the whole period is grand, and we cannot but own in our hearts, that if we were Romans, we should have liked to live in those days, and with men like these: but all this splendour was but a fair outside which covered very grievous misery, and however much Augustine and his friend Orosius may exaggerate, they were not so far wrong at bottom. Before the battle of Sentinum, a miracle had taken place: the statue of the goddess of victory was found lowered from its pedestal and turned towards the north; from her altar, milk, blood, and honey were pouring forth. This was a hard task for the soothsayers: they interpreted it in this way, that the Romans were to go and meet the enemy; that the blood meant war; that the honey betokened the plague, inasmuch as it was wont to be given to those who were thus stricken; that milk was the sign of a bad harvest, as one had then to do without corn, and to make shift with whatever grew of itself. This interpretation is so far-fetched, that evidently it cannot be very old; yet it is a poetical embodying of what really happened. A pestilence spread far and wide, which may not even have begun in Rome, but in Umbria or Samnium: it may have been a sickness which had arisen from the wars; but

perhaps it was connected with a deeper source. The age was on the whole a time of great physical changes; there are still traces which show that in Italy all nature was then in a state of convulsion. Earthquakes are felt, and become quite frightful, until towards the end of the century; the winters are most bitterly cold; an eruption of the volcano in the island of Ischia takes place. In the whole of Europe, epidemics must have reigned: according to Pausanias, a terrible plague was wasting Greece at the time of Antigonos Gonatas, which completed the work of depopulation there. At Rome, according to Livy, it raged for the third year already in 460. There certainly was also a famine in Latium, owing to the devastation of Campania, the granary of Rome. On this occasion, the Romans were directed by the Sibylline books to send an embassy to Epidaurus, and bring Æsculapius to Rome. It consisted of Q. Ogulnius and another. When the state trireme arrived, and they laid the request before the people of Epidaurus, the senate of that town referred them to the god himself: at the incubation, the god promised them that he would follow; a gigantic serpent came forth from the sanctuary, and remained on the deck. At the mouth of the Tiber, it crawled out, plunged into the water, and swam up the Tiber to the island near the city, where the temple of the god was then built. The embassy is not by any means to be doubted: in the temple of Æsculapius at Epidaurus, harmless snakes were kept, one of which had likewise formerly been carried in a waggon to Sicyon. The ground work of this legend is true, all the rest is added to it; we are here on quite different ground from what we were on before. The tale is also remarkable, as it shows how little the Greek ideas were at that time foreign to the Romans.

In this great distress, there now arose in Rome, on the one hand, a great burthen of debt, and on the other, the necessity for a better state of things. The booty from the Sabines, which was gained just then, was so considerable, that the historian Fabius, in Strabo, says that the Romans had first known by this victory what riches were. Besides money, a great part of it must have been land and cattle. Curius declared, that there was so much land, that it must have lain waste, if he had not taken so many prisoners.

This is the obscurest period of Roman history, as here the eleventh book of Livy is wanting. Certain it is, that Curius had a most fierce quarrel with the senate, no doubt about the division of the public land. Curius insisted upon a larger assignation being made to the people,—for so we must call it,

and not commonalty any longer,—and likewise to the *libertini*, inasmuch as they were in the tribes. The quarrel was now also with the plebeian nobility; and so great was the exasperation, that a band of eight hundred youths united to defend the life of Curius, as the knights did that of Cicero. In this state of things, the triumvirs wanted to give Curius seven times seven *jugera*, a whole century at that period; but Curius rejected it, saying that he was a bad citizen, who was not content with his share. Of Agrippa Menenius, we may believe that he was poor; but hardly of Valerius Poplicola, as he was able to build himself a splendid house. As to M'. Curius, his poverty, and the cheerfulness with which he bore it, are well attested; and it is likewise well known how the Samnite ambassadors found him in his farm by his hearth, and how he spurned their gifts; and also that the senate provided for the maintenance of his family while he was consul.

Two years afterwards, he executed during his censorship one of the most magnificent works to be found in the world, the draining of the lake Velinus, by which the cascade of Terni, which is a hundred and forty feet high, was called into existence,—the finest fall of water known, and yet the work of man. Livy calls the Appian Way *monumentum gentis Appiæ*, this is *monumentum Curii*. The lake Velinus filled a great valley in the mountains, and had no outlet, a ridge of rocks of no very great height cutting it off from the Nar (the Nera). Here Curius cut through the rock; gave the lake *Piè de Luna* and *Velino* an outlet; and thus created several square leagues of the richest soils, the fields of la campagna Rieti, the *Rosea* which Cicero calls another Tempe. It is owing to quite an accidental remark of Cicero's, that we know this to have been done by Curius. The water is calcareous, as it is everywhere in the Apennines; and therefore stalactites are growing all about it, on which account it has more than once become necessary since the sixteenth century, the work having been neglected during the middle ages, to change the course of the stream. The lake has shifted its bed, so that a bridge built in those ages is now entirely covered with limestone, and has only been found again a few years ago. A noble Roman bridge across the canal is still to be seen; yet it is not visited by strangers, being rather difficult of access: undoubtedly it is likewise a work of Curius. It was shown to me by an intelligent peasant, and it is built of large blocks of stone fitted together into an arch without cement, in the old Etruscan manner. Although earth as high as a house, on which trees are growing, is lying

upon it, yet there is not a stone moved from its place, even to the breadth of the back of a knife.

The interval between the third Samnite war and Pyrrhus' being called into Italy, which is not quite ten years, is one of the most important in the whole of ancient history, and the want of a more accurate knowledge of it we feel most painfully. Were we able to conjure up some of the lost writings of antiquity, the eleventh book of Livy would be the most instructive; yet sooner or later, this history will certainly be one day discovered. I have collected much of it, but not enough to give a complete historical outline of the time. In the year 462 (according to Cato), the *Lex Mænia* was passed. Only a few days ago, I have discovered a passage concerning it, which I had indeed read more than once before, but in a place where until now it has been overlooked by every one: otherwise, the law is merely known by a cursory remark of Cicero's. It can have no other meaning, but that the *auctoritas* of the *patres* for the curule elections was now done away with, even as forty-six years before it had been by the *Lex Publilia* for the laws made by the centuries. This *Lex Mænia* was absolutely necessary, as the patricians had already voted once. From henceforth, the senate gave its *auctoritas* beforehand; yet the curies were not abolished, as were at Augsburg the chambers (Stuben), the meetings of the houses. The *imperium* was conferred by the mere *simulacrum* of the curies, that is, by the lictors, who represented the curies, as the five witnesses did the classes of the centuries. The carrying of this law is one of the stormy events which happened during the consulship of M'. Curius.

Quite different from it was the *Lex Hortensia*, about which we should be so glad to learn something. From Zonaras we knew until now, that there was much debt, and that from thence arose disturbances; on this the tribunes moved, that the debts should be cancelled, and when all was of no avail, the *Plebes* entrenched itself on the Janiculum, and was after a long sedition at last brought back by the dictator Q. Hortensius. From this dictatorship sprang the *Lex Hortensia*, which is known from Gaius and the *Institutiones*, and of which the purport is, *ut plebiscita omnes Quirites tenerent*. During the last year (1828), something more has been found in the *Excerpta de Sententiis*, edited by Mai, from Dio Cassius, but dreadfully mutilated. I have tried to restore its connection in the *Rheinische Museum*; ^[154] of the correctness of its general meaning, I do not entertain the slightest doubt.

According to that passage, the tribunes moved the cancelling of the debts (*tabulæ novæ*) in consequence of the general suffering.^[155] Distress and debt are most severely felt in the first years of peace. The tribunes made the motion on the strength of the *Lex Publilia*,^[156] according to which, the resolution of the *Plebes* was a bill which was to be confirmed by the curies, before whom nothing could be brought but what had passed through the senate, by whom it was to be introduced: the latter might throw out a bill; if it did not, it went on to the curies. The *Plebes* was now highly delighted at the motion and adopted it; but it had to be brought before the senate, which threw it out. For in those days, we already find the state of things which is so strongly marked under the Gracchi, namely, the feud between the people and the nobles: the plebeian nobility shielded themselves behind the curies, and were very glad when these rejected the motion. The tribunes then brought in another proposition, that, if it thought too much to grant a complete cancelling of the debts, the creditors should fall back to the Licinian law; so that the interests already paid should be deducted from the capital, and the remainder be liquidated in three instalments. It was at that time forbidden to take interest, and money lenders were therefore obliged to screen themselves behind foreigners. When a loan on which interest was charged, was to be negotiated, they went to Præneste and Tibur; and the Tiburtine ostensibly furnished the money, and in his forum also were the litigations decided which might arise from the transaction. Thus the prohibition of usury may be reconciled with the fact that interests were paid after all.

The curies refused to pass the law, even with this modification, and therefore such a bill had every time to be brought in anew *in trinum nundinum*; the people would indeed have been quite satisfied with the proposition as it now stood, but the curies kept on saying no. The people now became maddened; they marched out of the city, and encamped on the Janiculum: it can scarcely be supposed that any magistrate headed the *Plebes*, as in the former secessions. The leaders of the democratical party thought to make use of these circumstances for their own ends, and allowed the people to go farther and farther; thus on the Janiculum it hardly could be said to have behaved as harmlessly as in the former secessions. And now, when the crowd there, instead of dispersing, went on strengthening, the rulers of the republic were frightened, and eagerly wished for a

compromise. The insurgents, however, would have nothing of the sort; they were ever demanding more and more:—what they wanted, it is impossible for us to say, probably a new division of the land, and a much more considerable diminution of the debts. The popular leaders at last put forth the demand, that, as the opposition of the senate and the curies had shaken the peace, these should give up their *veto*; and they carried their point. For the last time, the curies met in the *Æsculetum*, and decreed their own dissolution. An analogous case is the *ordinanza della giustizia* at Florence, by which a great part of the houses was wholly excluded from all civil offices; and that through their own fault, as they would commit any crime, and not appear before the courts of justice.

The Hortensian law comprehended other objects besides. There was but one dictator Hortensius, down to the time of Cicero, and likewise only one Hortensian law.

This resolution was an extraordinary event, the first step towards the fall and the breaking up of the Roman state. Yet the condition of Rome was so sound, that a hundred and fifty years passed away before the mischief displayed itself. It is one of the disadvantages of a free constitution, that what has once been neglected, cannot be so easily made up. The *Veto* could not have continued as it was; but what ought to have been done, and was not done, because it was not done at the right time, was this: the curies should have been filled up from the plebeian nobles, and by a number of clans from the allies. The senate could not have the same weight as a strong aristocratical body; the *sincera plebes*, the good old country folk, gradually dwindled away, and the *factio forensis* got the upperhand; the elements which had rendered the Roman commonalty so excellent, died off by degrees, and ought to have been replaced. This must have struck many a person at that time; for instance, that wise man Fabius, if he was still alive. Sp. Carvilius, a son or grandson of him who conquered the Samnites, brought forward a motion in the war of Hannibal, to receive two members from each senate of the allies into the Roman one; just like Scipio Maffei, who made a similar proposition in Venice. The former was all but torn to pieces in the senate; as for the latter, it is quite a wonder that he got off unpunished. Sallust says, that between the second and the third Punic war, there had been the strongest feeling of respect for the laws of Rome; yet this was merely the peaceful state just before the outbreak of a revolution.

Single cases of evil consequences had not been wanting already; one was, that from henceforth the admission of the Italians to the full right of citizenship became more and more difficult, as this would lessen the influence of the ancient citizens. This afterwards gave rise to a coalition between the allies and the nobles; but unhappily the nobility did not form a corporation. The patrician body crumbled to pieces, and there was nothing to take its place.

Even as the French revolution was very much hastened by the absurd regulation of old Marshal Ségur, that only nobles were to hold commissions, which exasperated all the soldiers; thus in Rome also, a like provocation was given by L. Postumius, an odd character, who—what at that time was not common—had thrice been consul, and was also employed in the decisive embassy to Tarentum: he must therefore have been a man of consequence; but he behaved on this occasion like a madman. During his consulship, he insulted old Q. Fabius, who was with the army as proconsul, by driving him away. There is party hatred in this: Fabius was an aristocrat, but free from all oligarchical spirit. After the war, Postumius had possessed himself of immense tracts of land, and had set two thousand soldiers to work at clearing a forest. For this accumulated insolence, he was impeached by the tribunes, and condemned to pay a fine of five hundred thousand *asses*. Circumstances of this kind gave greater offence than anything else, and the more bitter it became as the oligarchical party fell off in numbers.

In this period is to be placed the appointment of the *triumviri capitales*. The form *triumviri* is indeed a solecism, a proof that even so early as this the *casus obliqui* were prevalent, as in the modern Romanesque languages. From *triumvirorum*, which was often heard, a nominative, *triumviri*, was made; and this form was already generally current in the times of Cicero.—The *triumviri capitales* correspond to the Athenian ἑνδεκά; they had the superintendence of the gaols; beyond this, we are altogether in the dark as to what their office was. They entered upon the functions which had passed from the old *Quæstores parricidii* to the *ædiles curules*. There were many cases in which there was no further investigation to be made, namely, those of *delicta manifesta*: but to inquire in every instance whether a person was *reus manifestus*, the prætor had not time, and there must have been an authority which informed him that there was a *delictum manifestum*: this must formerly have been the quæstors, and now the *tresviri capitales*.

Besides this, they were judges in cases of which the prætör did not take cognisance, in those of foreigners, slaves, and so forth; and they likewise watched over their punishment, as these persons were not under the protection of the tribunes: when, however, there was a doubt, a *judex* was to be granted. Thus this office had the mingled powers of a police and of a criminal jurisdiction.

DESTRUCTION OF THE SENONIAN GAULS. C. FABRICIUS LUSCINUS. WAR WITH TARENTUM. PYRRHUS OF EPIRUS. EVENTS IN SICILY DOWN TO THE FIRST PUNIC WAR.

According to Zonaras, it was the Tarentines who stirred up the peoples far and near against the Romans; first the Lucanians, then the Etruscans, and even the deeply humbled Samnites: the Greek towns were no longer the closest friends of the people of Tarentum; the latter looked to their own political advantage, and were ready to leave them to the mercy of the Lucanians and Bruttians. Either after the third, or even after the second Samnite war, a peace was concluded between the Romans and the Tarentines: in 451, or 452, they already seem to be friends; the Greek writers also speak of it as a treaty of long standing. They seem on both sides to have checked each other by sea; for the Romans bound themselves not to appear with any ship of war north of the Lacinian headland in the gulf of Tarentum, whilst the Tarentines may have made a similar promise.

An unprejudiced observer must have seen from the issue of the third Samnite war, that the fate of Italy was decided; and the Italian people ought to have hastened to unite themselves with Rome on the most favourable terms which they could get. But men's passions have no such wisdom, and they are always looking for some *Deus ex machina*, who is to change everything. One people after another joined the ranks of the enemies of Rome. The Lucanians, who were allied with them during the third Samnite war, availed themselves of their independence to act according to their own liking, and to reduce the Greek towns to subjection. The Bruttians likewise became leagued with the enemies of the Romans; the Greek towns, on the other hand, having been abandoned by the Tarentines, sought their aid. The Etruscans, disunited among themselves, still continued to be ever alternating between peace and war: the Vulsinians alone seem to have carried on uninterrupted war. The strength of the Samnites was quite

broken; yet they tried to rally, so as again to take up arms, as soon as it could be done with any hope of success: for the present, they kept aloof, and gave the Romans no occasion for hostilities. The Tarentines tried to stir up even the Gauls, doing every thing all the while by means of subsidies only: they themselves did nothing openly, and to all appearance the good understanding was kept up. The great distress at home must have obliged the Romans to dissemble; we merely know that, true to their system of supporting the weak against the strong, they gave to the Thurinians their help against the Lucanians. On this occasion, we meet with the first instance of a Greek town having raised a statue to a Roman.^[157] Rome's support saved the Thurinians.

In Etruria, the war now took a different turn. The Etruscans seem to have been so divided among themselves, that the war party called in the Gauls to join with them in fighting against their opponents. Arretium in the north-eastern corner of Tuscany, thus exposed to the Gauls, being governed by the Cilnii, and on friendly terms with Rome, was besieged by the barbarians. In 469 (according to Cato, in whose system the birth of Christ is to be placed in 752, not in 754), the Romans sent to the relief of Arretium the prætor L. Cæcilius Metellus and two legions with auxiliaries, in all, about 20,000 men. But the Senonian Gauls, though they dwelt on the other side of the Alps, over which there was no way, broke through, and defeated Metellus, who himself was left dead on the field of battle, and eleven thousand Romans with him: the whole of his force seems to have been utterly destroyed. Curius was now sent with an army into Etruria, and envoys were also despatched to the Senonians, to ransom the prisoners. The Senonians, however, still harboured vengeance on account of the battle of Sentinum, and Britomaris, a young chieftain whose father had been killed there, instigated them to murder the ambassadors. On this, the Romans determined at all hazards to take revenge; and the consul, P. Cornelius Dolabella, instead of attacking the army of the Gauls, who were perhaps already dreaming of a new conquest of Rome, adopted the plan of falling upon the deserted country of the Senonians, where he partly destroyed the population, and partly carried it away captive. The army of the Senonians, maddened at the tidings of this disaster, returned home, and was entirely routed: it is hardly an exaggeration to say, that the whole of the nation was exterminated. The Boians now crossed the mountains, joined the Etruscans, and met with a defeat near the lake Vadimo; yet the Romans did not set foot

on their territory, which reached from the river Trebia to the Romagna. In the following year, all the fighting men of this tribe came forth again, but with no greater success; the nation, however, was not annihilated: the women and children had stayed behind, and so it regenerated itself. It was not until fifty years later, that the extermination took place. The Gallic migrations from henceforth were no more turned against Italy, but against Thrace and Macedon. How matters went on in Etruria, and what Etruscan towns made their submission, the wretched history of that period leaves quite untold.

All the time that these dreadful wars were waging on the northern frontier, at home in the city, everything was quiet in consequence of the peace of the Janiculum and Æsquiletum; but in Lucania, the Romans carried on their wars without interruption. In this war, C. Fabricius Luscinius is mentioned for the first time. The old heroes were still living: Valerius Corvus, who was now an old man, full of days, no longer plays any active part; Ap. Claudius was blind, but had very great influence still; Fabius in all likelihood was dead. Younger than Appius, but older than Fabricius, was the great warrior M'. Curius Dentatus, who in his politics was a staunch democrat, but yet no demagogue. Curius and Fabricius are remarkable men, and in some respects they are like each other. Of both of them it is certain that they were really poor; both were proud characters; both of them *novi homines*, risen by their greatness in war, and by their personal worth. Fabricius has in all ages been quoted as a pattern of public virtue. Besides these two men, there were on the other side also some eminent personages: L. Postumius, who indeed was also a man of energy, but not so noble as he; P. Cornelius Rufinus, as covetous as Fabricius was disinterested, whom moreover Fabricius and his colleague Q. Æmilius Papus removed from the senate for his luxuriousness. And without them, Rome seems to have abounded in remarkable people: it may likewise have already stood high in an intellectual proficiency of its own, far above that of the most celebrated times of the middle ages, and perhaps also in literature.

Another great man, great as a wise statesman, though he left behind him no distinct memorial in the state, was Ti. Coruncanius, the first plebeian *Pontifex maximus*, who enjoyed the reputation of profound wisdom and knowledge of law. He was always looked upon as the pattern of a pontiff.

The Romans now became more and more aware of how matters stood between them and the people of Tarentum. The peace only lasted because other countries separated them. The wealth of the Tarentines, their naval power, and the ease with which they were able to enlist Greek armies, made the Romans very unwilling to go to war with them. When, however, the troops engaged in Lucania were surrounded on all sides by guerillas, Rome was obliged to send them their supplies by sea, notwithstanding the treaty concluded about twenty years before, which had imposed mutual limits upon that element. The Romans must under actual circumstances have found it unnatural: they might plead that at that time Venusia was not yet theirs; and that by founding this colony, they had tacitly acquired the right of sailing beyond the Lacinian headland. It seems, however, that they also wished to try how long the Tarentines would wait before they made war. This is what is more likely; for according to a notice from a lost book of Livy, which Zonaras confirms, the Tarentines endeavoured to call into life a great coalition against the Romans, with which even the expedition of the Gauls against Arretium is said to have already been connected. Certain it is, that they wished for one; but each single people came but slowly into it. The Romans sent a squadron of ten triremes under the *duumvir navalis*,^[158] L. Valerius, to the roadstead of Tarentum. All the Greek theatres had, if possible, a view of the sea, or at least they faced it; thus it is at Tusculum, and even at Fæsulæ: in these the people assembled, as at Rome in the forum. Among the Greeks, it was less customary to meet together in the ἀγορά, which was a mere place of business: they felt more comfortable in the theatres where they could sit down. These were open every day, and if any one had something to say to the people, he got up upon the stage and spoke from thence. Unhappily for Tarentum, the people was just assembled in the theatre, when the Roman ships steered towards the harbour: had it not been there, the history of the world would have taken another turn; the στρατηγοί would most likely have requested the Romans to go back, and nothing would have followed from the expedition. The people excited one another, and without even coming to any resolution, they all of them ran down to the harbour, pulled the galleys into the water, manned them, and fell upon the Romans without the least warning: two or three ships only saved themselves; most of them were sunk, Valerius himself was killed. Almost all the Tarentines, who had never before seen a Roman army, were now exulting in their victory.

In Rome, this event gave rise to great dismay. They knew there that the whole of Italy was fermenting, and they saw for certain that the Tarentines relied upon a general outbreak; we find distinct traces which show, that not even the Latin people was trusted; the Prænestines, especially, were again ripe for a rising. For this reason, it was a very critical affair for the Romans. Instead of declaring war, they sent an embassy to the Tarentines, to protest in the face of the whole world; so that every one might see that vengeance was only delayed, and not given up. Delegates were also sent to some of the allies north of Tarentum, partly to keep them in their faith, and partly to demand hostages. Among these was C. Fabricius, who, in violation of the law of nations, was arrested, as it seems, by the Samnites. At Rome the greatest exertions were now made: they wished to overawe the enemy, without having at once to begin the war. At the head of an embassy to Tarentum was L. Postumius. A reckless, excitable, giddy people, as the Tarentines were, must have felt their courage rising, when the hated Romans showed themselves frightened; L. Postumius did not gain any thing by his demand that the Tarentines should give up the guilty parties, and indeed the Romans could hardly have expected it. Unfortunately, it was the time of the Dionysia, the feast of the vintage. The ambassadors in democratical Tarentum were not brought before the senate, but before the people, in the orchestra; here they had to speak from below to those above them, instead of haranguing, as they were wont, from a raised platform: this was of itself quite enough to make them feel embarrassed and fidgety. The whole town was intoxicated; drunken sots and impudent fellows laughed at every blunder which the ambassadors made in speaking Greek: one of them even went so far as to befoul the *toga prætexta* of Postumius. He did not lose his self-command, but showed the Tarentines the abominable insult which had been done to him, and loudly complained of it. At this sight, the drunken populace broke out into a much more violent laughter. Then Postumius, shaking his garment, said, I prophesy, ye people of Tarentum, that ye shall wash out this stain with your heart's best blood.

The ambassadors returned without the satisfaction which they had demanded, without even an answer; and they insisted in the Roman senate upon immediate vengeance. But many senators advised caution, and were for waiting until more favourable circumstances presented themselves; the people also, which was labouring under great distress, was at that time against the war, and thus, when it was first proposed, the measure was

thrown out. Fresh negotiations, backed by an army, were to be set on foot. Afterwards, however, it was resolved notwithstanding, to send the army to the frontiers of Tarentum, the consul L. Æmilius Barbula having instructions, when on his march through Lucania, also to attack Tarentum. In that city likewise, there were two parties, one of them mad for war, and the other prudent; the former were aware that the only way of carrying on the war was by calling over into their country a foreign prince, and this could be no other than Pyrrhus of Epirus, who kept a standing army. But then it was to be foreseen, that Pyrrhus, if victorious, would make himself king of Italy, as he was much more powerful than Alexander of Epirus. The aristocracy at Tarentum wished for a union with Rome, that they might bridle the unruly populace; but those who were in power had so lost all common sense, that instead of protecting, as heretofore, the Italiote towns, they made common cause with the Lucanians, and, giving warning to Thurii, an open colony of the whole of Greece, that their protection was withdrawn, they left it to the mercy of its foes. This venerable town, distinguished for its great men, was now taken and sacked by the Lucanians: the Romans conquered it at a later period, but it never recovered. When Barbula appeared before Tarentum, peace would perhaps have been concluded, had not the Tarentines already entered into negotiations with Pyrrhus. These had not yet led to any definitive result, when the Romans, laying every thing waste before them, arrived before Tarentum. On this a *proxenus* of the Romans, Agis, offered himself for the office of στρατηγός, that he might mediate; but just as he was about to undertake the task, the news came that Pyrrhus had accepted the terms proposed to him. Agis was dismissed, and the war began.

Pyrrhus was at that time in his thirty-seventh year, the very prime of life; none of his contemporaries in an age in which neither night nor property was sure, had seen so many vicissitudes as he. For an able man, the finest thing on earth is a career of activity and strife. That which he himself has won, a man may well call his own; to enter quietly into a settled possession, is what any one can do. But action may also be overstrained, so that a person may lose all power of calmly enjoying what he has. Such characters are Charles XII. and Pyrrhus, men who, when they happen to be on the throne, are disastrous to their subjects, and dangerous to their neighbours.

In the Peloponnesian war, the kingdom of the Molossians had been first raised from its insignificance by Tharyps, who had been brought up at Athens. The princely race of the Molossians branched from Philip into two lines, that of Arymbas, and that of Neoptolemus, the father of Olympias. This younger branch, by the influence of Macedon, came into the possession of the throne. By Philip the country had been enlarged in favour of the relations of his wife; Thesprotia and Chaonia seem already to have belonged to it. Afterwards Æacidas, the father of Pyrrhus, of the elder branch, obtained the crown. The lawful power of these Epirote kings, like that of the sovereigns in the middle ages, was very much bounded. Aristotle compares them to the kings of Lacedæmon; but the following of soldiers which they had, was by no means always inconsiderable: tempted by this power, Æacidas, contrary to the general wish of his subjects, meddled in a great many matters. He had attached himself to Olympias, although he had formerly been driven out of his kingdom by the usurpation of his cousin Alexander of Epirus, and he had with singular generosity identified himself with the fate of that fury: by this he incurred the enmity of Cassander, who co-operated in expelling him from Epirus. At that time, Pyrrhus was two years old. Cassander wanted to exterminate the whole family, and it was with the utmost difficulty that the child was saved by faithful servants. He was brought up by Glaucias, the prince of the Taulantians, although the latter had been on terms of enmity with Æacidas. Glaucias grew so fond of the boy, that he did every thing in his power to protect him against Cassander. Pyrrhus was hardly grown up, when he went to the court of Demetrius Poliorcetes, and of old Antigonus, the One-eyed: in this school his extraordinary talent as a general was developed. Demetrius was indeed a great genius spoiled. Here Pyrrhus preserved his moral dignity amidst a most infamous crew. He was, by Demetrius, nominally restored as king of the Molossians; but according to the fashion of the age, he was the vassal of the greater king, and had to serve in his army, like the other petty princes of Epirus. He was with Demetrius and Antigonus in the battle near Ipsus Ol. 119, 4, in which the empire of Antigonus was overthrown, and himself killed: Pyrrhus was at that time sixteen years old. After this battle had been won by the allies, these began to quarrel; and the crafty Demetrius soon found an opportunity of making up with Ptolemy Soter, who, in dividing the spoil, had fallen out with his old friend Seleucus, with Cassander, whom he had ever hated, and likewise with Lysimachus to boot. Pyrrhus was sent to

Alexandria to treat with Ptolemy, and was given as a hostage for the fulfilment of the conditions. He had something peculiarly fascinating about him: his wonderful talents were of the most varied kind, and Heaven had endowed him with the most enchanting amiability and beauty. These qualities he now used for his patron's best advantage, as well as for his own. The Epirote towns were lost in the meanwhile, and his dominions had to all appearance fallen into the hands of Neoptolemus, a son of Alexander the Molossian. But Pyrrhus gained the favour of Ptolemy and Berenice, and was married to Antigone a daughter of Berenice by her first marriage. With the help of Ægyptian money, he was again put in possession of his throne; the attachment of the people soon rid him of his rival Neoptolemus, though for this he employed, it is true, a certain unjustifiable means, the like of which was so much in vogue during the sixteenth century. He now tried to settle himself, for which Fortune soon gave him an opportunity. Cassander died, and left sons behind him, who were enemies to each other: one of these yielded to Pyrrhus, in return for his protection, Ambracia, Amphilochia, and the Epirote provinces which had until now been united with Macedon. This was of the greatest importance to Pyrrhus: now, for the first time, Epirus deserved to be called a state. Pyrrhus indeed did help his ally; but the latter fell by his own fault, and Pyrrhus remained master of the provinces. Demetrius Poliorcetes now also got again upon the throne of Macedon; and with him, Pyrrhus, at first, stood on the same friendly terms as of old. But Demetrius was an encroaching, grasping prince, and thus it was not long before war broke out between them. The oriental pride and haughtiness of Demetrius gave offence to the Macedonians: they fell off from him, and Pyrrhus leagued himself with Lysimachus. The people declared for them, and they divided the country between them. But this division again roused the spirit of the Macedonians: Lysimachus was a native, Pyrrhus a foreigner, for which reason he was cast off by the inhabitants of the district which had fallen to his share. The period of the loss of Macedon is generally dated several years too soon.

Pyrrhus was not stubborn against fortune: he carried on war as an art; if his stars were unkind, he would give way. War was his happiness and his life; he raised the science of generalship to its utmost height; in his method of battle array, he was a mighty master. A fragment of Livy in Servius, according to a safe emendation, says, *Pyrrhus, unicus bellandi artifex, magisque in prælio quam in bello bonus*: the result of the campaign was

what interested him least. Some generals have a talent for making the disposition of a battle; but they either do not know at all how to plan a campaign, or, when they have won a battle, they get tired of the thing; others show a remarkable turn for the arrangement of the whole campaign, but are less successful in battles. To the former class belongs the Archduke Charles of Austria, as he himself acknowledges in his strategical writings: Pyrrhus also cared so much for the pleasure of winning in the game of war, that he scarcely ever followed up a battle which he had gained. It may even have been painful to him, afterwards to annihilate a beaten foe, when there was no longer any skill in destroying him. This betokens a fine soul, but the object of the war is in this way lost sight of.

Pyrrhus now took up his residence in Ambracia, and embellished it as a real city of kings. When the Tarentine ambassadors now made their appearance, and concluded with him a treaty of subsidies, in which very likely much remained unsettled; Pyrrhus quickly sent over Cineas with three thousand men, that he might get a firm footing, and prevent any revulsion in the anger which had been aroused by the devastations of the Romans. Cineas, like his princely friend, was an extraordinary man; he stood by the side of Pyrrhus as one who was quite free, and had attached himself to him from inclination, and with all his heart. He was from a people which has produced no other distinguished man, being of Larissa in Thessaly, probably an Aleuad; and he is called a pupil of Demosthenes: this is only barely possible, as Demosthenes had now been dead forty years already. Perhaps this statement merely rests on a mistake; as he may indeed have been spoken of as a *sectator Demosthenis*. Few at that time might have still been able to appreciate Demosthenes; a man like Cineas understood him, and drew inspiration from his writings. How Cineas became the friend of Pyrrhus, we cannot tell.

The Tarentines delivered up their citadel to Cineas, who, with great adroitness, did every thing to keep them in good humour, so as to blind them with regard to the views of Pyrrhus; he allowed them to go on living merrily; they did not arm themselves, and he quite won their confidence. Pyrrhus had not much might of his own; but from several neighbouring princes he managed to get elephants, engines, ships, and other necessities of war;—from Ptolemy Ceraunus, he had five thousand Macedonian soldiers:—he was a thorn in the side of every one of them, and they were all

glad that he went so far away. He is said to have gone over with twenty thousand foot, four or five thousand horse, and a number of elephants: how many there were of these, we are not told. Early in the year, he was ready; but he had a very bad passage, owing partly to the imperfect navigation of the time, and still more to the circumstance that the Epirotes were even less skilled in steering a ship's course than the Greeks. Moreover, the sea about the Ceraunian rocks had then, as it has to this very day, a bad name for sudden squalls; the swell from the Adriatic to the Syrtes, which is almost like the great Mexican gulf-stream, made the voyage across a hazardous one. Several ships of his fleet were lost, others were driven out of their course; he himself, with a great deal of trouble, reached the Sallentine coast, at which all who had escaped came together. He made all haste to get to Tarentum, which opened its gates to him; but he had hardly collected his scattered fleet, when he took very serious measures with the people there. He saw that his army alone was not strong enough for his designs, and yet an enlistment was too expensive; he therefore had the gates shut, and he raised a levy from among the Tarentines, whom he forced to serve in his phalanx. They were highly displeased at this, many tried to escape; but he redoubled the strictness of his measures, put a stop to the gymnasias and other public meetings, and soon showed himself to be a tyrannical master. The Tarentines had indeed been mistaken in their expectations. They would have treated Pyrrhus, as they did princes who had formerly been called over; they wanted to stay at home, while he carried on the war. But Pyrrhus could do no such thing; his territory was but small, and the war promised to be a bloody one: he therefore demanded the co-operation of the Tarentines. These began to grumble; but they were quite powerless against him, as he was in possession of the citadel. He was thus driven to have recourse to harsh police regulations. Only a consular army under P. Valerius Lævinus withstood him.—The history of the time, with the exception of Pyrrhus' campaigns, is very little known to us: probably Rome employed a large force against Etruria, in order to bring it to a definite peace. The whole of Italy was thrown into a state of fermentation: the Romans took hostages from those allies who could not be relied on, trying however, nowhere to betray any fear; and they raised great armaments. But it is inconceivable how they could have ventured to send only a consular army against Pyrrhus, who moreover every where gained people over by his manners and address. He is, among all the barbarian kings, the only character fraught with all the

brilliance of the old Hellenism; and, although not without faults, he was a being of a higher order, and able to achieve great things with small means. The Samnites and Lucanians had sent ambassadors to him already in Epirus; the Apulians, and several Italian peoples joined him immediately after his arrival; but this did not, for the moment, lead to any increase of his power. The proconsul L. Æmilius Barbula was stationed in Samnium, which he frightfully wasted, to prevent the Samnites from thinking of forming a junction with Pyrrhus against the army of Lævinus. A correspondence sprang up between Pyrrhus and Valerius Lævinus, in which the former offered to act as mediator between Rome and Tarentum. He may indeed have had a high opinion of the Romans, but he did not understand them after all; for the tone of his letters, as far as we know them, is entirely mistaken, so that no agreement took place. The Romans demanded satisfaction from him, for having, though a stranger, set his foot upon Italian ground. This seems to have been a national view of theirs. Valerius now went to Lucania. He wished for a battle, before a confederate army of Samnites and Lucanians could join the king; as most likely they were kept in check by the other consul. Pyrrhus had likewise marched against him, seeking to fight before the two armies formed a junction. He crossed the Siris in the neighbourhood of Heraclea, which is the finest country in this part of Italy, and may rank with Campania in fertility and wealth. He felt confident of victory, and he was bent on humbling the pride of the Italian allies, by beating the Romans without their help. The Romans seem to have gone on very slowly with their preparations; he distressed them very cleverly by cutting off their supply of food, and they were obliged to fight that they might not have to abandon that district, and to fall back upon Venusia, which was dangerous on account of the allies. The evening before the battle, Pyrrhus reconnoitred the Roman position, and was amazed at the order there. He was accustomed to fight against Macedonians and Greeks, or against Illyrians; now he saw the activity and the high state of training of the individual Roman soldier, and thus he became very serious at the thoughts of the impending battle. Here the contrary tactics of two excellent armies came into collision: on the side of the Macedonians, the system was then carried to the highest perfection, of acting in masses;^[159] on the side of the Romans, that of a line which far outflanked the enemy. If the Epirote phalanx awaited the shock of the Romans unmoved, the latter could do nothing; but it was no easy work in cold blood to stand the furious charge of

the Romans, the shower of their *pila*, and the fierce onset of their swords. Yet Pyrrhus had a great advantage in his Thessalian cavalry, that of the Romans being badly mounted and badly armed. The Roman army, to the astonishment of Pyrrhus, now forded the Siris, and fell upon him: on both sides, they fought with great fury. The Romans had never yet encountered any Macedonian phalanx. Seven attacks were repulsed: like madmen, they threw themselves on the *sarissæ*, in order to break through the phalanx, as did Arnold Von Winkelried. The day was not yet won; but the Roman cavalry was very successful in the beginning of the battle: the Epirotes were already wavering; another moment, and they would have been broken. At this crisis, Pyrrhus led forth his cavalry, which, contrary to all expectation, had before that been worsted by the Romans,^[160] and also about twenty elephants with it: the Roman cavalry was terror stricken; the horses took fright and ran away. The Thessalian cavalry now dashed into the flanks of the legions, and cut them down with fearful bloodshed: many Romans were taken prisoners, especially horsemen. The overthrow was complete: the camp could not be held, and every one fled singly: had Pyrrhus pursued, the whole of the Roman army would have been annihilated, as were the French after the battle of Waterloo. But the Romans, and above all Lævinus, here again behaved admirably: they collected their forces, as Frederic the Great did after the battle of Kunersdorf, and retreated to Venusia. This alone could have been the place in Apulia of which Zonaras speaks; were it not for this stronghold, they would have had to go across the mountains as far as Luceria. It was now shown how excellent was the plan of making Venusia a colony; but for this, not a Roman could have escaped, as the Samnites and Lucanians would have destroyed them. The Italian allies reached Pyrrhus after the battle only. Hereupon Pyrrhus at first expected Roman ambassadors; but as he did not hear of any thing from the Romans, who, on the contrary, made new armaments, he put himself in motion. The direct road to Rome lay open before him; he therefore left the Roman armies on one side, and marched upon the capital, as he held that most sound principle of always trying to end the war soon. But as he advanced, he found himself dreadfully mistaken about the condition of the country: Rufinus had been joined by the remnants of Lævinus' army; and probably they had either cut their way through Samnium, or had gone to Rome through the territory of the Marsians and Marrucinians. Pyrrhus expected every where to find provisions for his army; but he was struck with dismay, when he saw the

state of Lucania, and especially of Samnium. According to a newly discovered fragment, he told the Samnites that they had deceived him, and that their country was a wilderness. He could therefore advance but slowly. He approached Capua, which, however, with praiseworthy fidelity shut its gates against him; near Casilinum, he must have crossed the Volturnus; and he now tried to gain the Latin road, so as to reach the discontented towns, Præneste, Tibur, and others. He reckoned likewise on the Etruscans, perhaps also on the Gauls. Here we clearly see the hand of Providence. Had not the Boians been destroyed the year before by the Romans, the Etruscans would certainly have risen; but now they were confined to their own resources, and divided among themselves. On this occasion, the Romans must have shown great adroitness: they no doubt made with the Etruscans at this very moment *συνθήκαι εὐδοκούμεναι*, by which these were only bound to trifling services.

Pyrrhus, who was slowly advancing against Rome with seventy thousand men, as it is said, availed himself of the interval to enter into negotiations for peace, and sent Cineas to Rome. The conditions seemed fair; but when looked at more closely, they were very hard. He demanded that the Romans should conclude a peace with Tarentum, Samnium, Lucania, Apulia, and Bruttium, as with equals, and give up what they had taken from them, namely, Luceria, Fregellæ, Venusia; that is to say, that they should go back to what they possessed forty years before. This was exorbitant. We know these conditions from Appian, who must have taken them from Dionysius: in our books of history, it looks as if Pyrrhus had wished to beg the peace for the Tarentines. The defeat, however, had made such a terrible impression, that Rome was deeply shaken; the majority already began to reconcile themselves to the thought of it. This is the celebrated negotiation of Cineas, and in it we perceive his uncommon tact; for he by no means hurried matters, but tried to win all hearts by personal attentions, in which he was aided by his extraordinary memory: he called every Roman by his name, and treated him according to his peculiar disposition. Appius Claudius, however, turned the scales; and for whatever he may have been guilty of in the course of his life, he now made amends, by inspiring the senate with the courage to reject the proposals of Cineas, and to order him to quit Rome within four and twenty hours. It was not until after these negotiations, that Pyrrhus made his appearance before Rome.

The history of this war has been handed down to us in such a scanty form, that we know merely from an incidental notice, that Pyrrhus took the important town of Fregellæ by storm, and advanced on the Latin road as far as Præneste, of which he got possession of the citadel. Here, where he could overlook the *campagna* of Rome, he found all his hopes disappointed. The Etruscans had concluded a peace, and the army which had been fighting against them, was at Rome, where a levy besides was raised of every one who was able to bear arms; the troops of Lævinus had been reinforced, and following close on the heels of Pyrrhus, had advanced by Capua on the Appian road; the allies who remained faithful had mustered all their forces; and thus he stood in the high Æquian mountains, at a late season of the year, with an army before him within the walls of Rome, another at his side, a reserve forming in his rear, and all this in a country in which retreat was impossible in winter. With a heavy heart, he therefore resolved upon turning back to Campania; a Roman army followed him, and another under Lævinus marched on his flank. Before these two armies could join each other, he wished to give battle to the Romans; but the courage and alacrity of the enemy, and the demoralized state of his own troops, who were already living on bad terms with the allies, so depressed him, that he gave up the idea, and was glad to return to Tarentum with a great deal of booty and many prisoners.

Although this campaign ended without any lasting evil consequences for the Romans, yet they were very much weakened; the number of prisoners taken by Pyrrhus was far greater than at the battle of Heraclea. They therefore sent an embassy to treat about the ransom of these, or to exchange them for Tarentines and Italians. It was then that the celebrated conversation between Fabricius and Pyrrhus took place, which certainly the Romans have not been the first to record. Timæus has written a special work on the war of Pyrrhus; Pyrrhus himself left memoirs behind him, and from these, most likely, the accounts we have are derived: they show what a high opinion the Greeks had of the Romans. The embassy was unsuccessful; but Pyrrhus, owing to the greatness of his mind, and also to make an impression upon a people like the Romans, gave leave to the prisoners to go to Rome for the *Saturnalia*, on their taking an oath that they would return after the feast was ended. It is asserted that no man dared to break his oath, and also that the senate and consuls issued a strict edict against it. On both sides, this act affords a fine proof of the feelings of that

age, and on the whole, the war, from the mutual respect of the combatants, is one of the finest in history; for although both parties fought for life and death, they yet carried it on with kindness for each other. The embassy of Fabricius, Rufinus, and Dolabella, and the account of how Pyrrhus tried to get Fabricius to stay with him, and even to share his kingdom, has passed into an infinite number of moralizing books. I certainly believe in the fact that the king wanted to make Fabricius his friend and companion; the story tallies so exactly with Pyrrhus' character, that we cannot but take it for true, though the details are flourishes of the rhetors, particularly of Dionysius of Halicarnassus. It is one of the traits of genius in Pyrrhus, that he had become an enthusiastic admirer of the Romans: he courted their friendship. Although we must give up some of the actions of his life as unjust, yet his whole soul is so great and noble, that we do not know of any period of history on which one may dwell with greater pleasure. He was desirous of peace, but of a reasonable one for his Italian allies, whom he did not choose to abandon.

But the peace was not obtained. Pyrrhus now saw very clearly, that he could not effect anything by such thrusts against the heart of Rome: the strongholds in Apulia—Venusia and Luceria—had to be wrested from the enemy. This was the object of the campaign which followed. In the meanwhile, an event fell out which made the war still more difficult for him, and did not allow him to draw any fresh reinforcements from Macedon. This was the invasion of that kingdom by the Gauls, which was fatal to Ptolemy Ceraunus by whom he had been hitherto supported. With his Italian allies also, he must have had some differences; so that he now carried on the war with nothing like the forces which he had before. The Romans with both their armies were in Apulia; that Pyrrhus was besieging a town there when one of the armies came up, is mentioned, but not the name of the place: very likely it was Venusia. Here follows the battle near Asculum, the only incident which we know of this year's campaign, the different accounts of which in Plutarch are most perplexing: that of Hieronymus of Cardia, whose sources were Pyrrhus' own memoirs, must be our guide. On the first day, there was a skirmish between the two armies, in which the Romans were afraid to go down into the plain, lest they should be exposed to the elephants and cavalry. As the phalanx with the *sarissæ* would have had to fight at great disadvantage on broken ground, Pyrrhus, with great skill, forced his enemy to take a position which was favourable

to him; and here the Romans were beaten, and are said to have lost seven thousand men. Yet they were so near their camp, and had so well fortified it, that they retired to it in perfect order: it was not an overthrow, but merely a lost battle. It seems also that the Apulians in Pyrrhus' army stopped the course of the victory; for when the Romans were beginning to fall back, they plundered the camp of their own allies, so that it was necessary to send troops to check them. That Pyrrhus did not gain anything beyond the victory, was already the same to him as a defeat. In the meanwhile, the winter was now setting in: among the Romans, the confident hope of victory was on the increase, whereas Pyrrhus had no more prospects. He could not recruit his own troops, as the Gauls were advancing into Macedon, and threatening the frontiers of Epirus; his kingdom was very limited, and his subjects displayed the most decided unwillingness to go and serve beyond the sea to gratify his ambition, when the barbarians were already showing themselves at their borders. Nor had he any trust in the Italians: to control them, he alternately placed an Italian moveable cohort which fought with the *pilum*, and a solid battalion of the phalanx,—a plan which may have been better in theory than it turned out to be in practice. That he had this system, is evident from Polybius; he employed it near Beneventum, perhaps also at Asculum.

The Romans, in all likelihood, had for some time reduced the places on the Liris which had fallen away: public opinion declared for them in the whole of Italy. On both sides, negotiations were attempted. The Romans wished to drive Pyrrhus out of Italy, because its conquest was now sure; Pyrrhus, whose love of roving had been stirred, and who therefore longed to give up the enterprise, made the Romans repeated offers, to which, however, they would not listen so long as any foreign troops had a footing on Italian ground. Now we have new Roman consuls, one of whom was Fabricius. To this time belongs the story of a noble Epirote, or the physician, or cupbearer of Pyrrhus (the name also varies greatly, Timochares, Nicias, &c., being written), having offered the Roman consuls to poison the king. The thing is not incredible in itself; but it is so differently told in all the versions, that it cannot possibly have been publicly known. It seems to me to have been nothing else but a preconcerted farce, which Pyrrhus had got up, that he might have a pretext for retreating from Italy. One could hardly suppose this, had not something like it happened in modern times: the negotiation between Napoleon and Fox in the year 1806,

is a case in point. They wanted to conclude a truce: Pyrrhus, when the Romans gave him up that physician, set all the Roman prisoners free without any ransom; and they, on their side, probably sent him an equal number of Tarentines and Italians. Pyrrhus now declared to his allies, that in the rich country of Sicily, which received him with open arms, he would find the means of aiding them effectually. Thus he now obtained from the Romans an advantageous truce. The latter did not, however, give up the right of continuing the war against the Italians: unfortunate Samnium was left to its fate. Pyrrhus had been in Italy two years and two months; in Sicily he remained until the fourth year.

The Greek population of Sicily had, owing to the death of Agathocles, been rent into factions. Tyrants dismembered the island; the Carthaginians also were spreading over it; and the Mamertines, who were Oscan mercenaries, had treacherously seized upon Messana. Pyrrhus was looked upon as a deliverer, especially as he had married Lanassa, a daughter of Agathocles: his son, whom he brought with him, received homage at Syracuse as king. He drove out the Carthaginians from every place but the impregnable stronghold of Lilybæum, and kept the Mamertines closely shut up within their walls. His friend Cineas must then have been already dead, as we find him surrounded by other men, who were his evil geniuses, and led him on to perdition. His own sound sense inclined him to make peace with the Carthaginians on splendid terms,—they wanted to keep Lilybæum only; but the cowardly Siceliotes would not do this, as they believed that they would not be at all better off, if the Carthaginians still remained in any part of the island. Their condition would, however, have been very much improved. Pyrrhus had conquered the Mamertines, and united the whole of Sicily under the settled rule of an Æacidas. But he now yielded to these unhappy counsels, which was so much the worse for him, as he was wanting in perseverance. The siege of Lilybæum was an immense undertaking; the fortifications of that town were one of the wonders of the ancient world, and the fleet of the Carthaginians was ever bringing fresh troops and provisions. The end of all this was, that Pyrrhus had to raise the siege. He thus lost his credit with the fickle Siceliotes, and was beguiled into tyrannical measures; so that it was good news to him when the Italian allies entreated him to return at any rate, as otherwise they would be forced by the Romans to make a most disadvantageous peace. He could not cross the strait, as the Mamertines were masters of Messana, and a mutinous

Campanian legion had Rhegium; but he landed near Locri. While on his passage, he was attacked by the Carthaginian fleet, which destroyed very many of his ships; and having now scarcely saved any thing of the treasures which he had brought with him from Sicily, he arrived very much reduced in men and in money.

During his absence of more than three years, the Romans had carried on the war with the utmost cruelty. The inhabitants, as was the case in the last years of the Spanish war, could only form guerillas, which did much harm to the enemy's army, but were unable to stand against it in a pitched battle: they were therefore always beaten. I shall not now speak of the single places which were destroyed at that time: old Croton, which was twelve (Italian) miles in circumference, now received its deathblow, and was entirely bereft of its population; the enemy took one town after another, and the country became a wilderness. Pyrrhus returned in the year 477, and restored his army in the most wonderful way. He had many old soldiers from the army of Agathocles, deserters also from the Carthaginians, and others; he now called upon the Tarentines and all the Italians: his army—but most likely this is an exaggeration—is said to have amounted to eighty thousand men. He encamped near Taurasia, not far from Beneventum, being opposed by Curius, who, it seems, had only one army. Pyrrhus was now already disheartened; he had lost all faith in his invincibility; dark forebodings and dreams haunted him;—not that he had entirely lost courage, but his spirit was no more what it had once been. His dispositions for attacking Curius were beautiful; too much, however, was left in them to chance, and his luck had forsaken him. His plan was, that a large body should go round the Roman camp, which was on the side of a hill, and storm it from above at day break, whilst he, at the same time, attacked it from below. But as in night marches people always arrive later than is calculated, the troops which had been sent, lost their way; the king was waiting for the preconcerted signal for him to advance while it was still night, and before it appeared, it became broad day. The Romans then learned that there were enemies behind them on the mountains; on which they quickly formed, and the camp was easily defended, whilst the main body faced the army of Pyrrhus. As they were now already trained to fight against elephants, they took burning arrows wrapped round with tow, which, when shot with sufficient force, penetrated into the hide of the beast with such friction, that the oakum and the pitch caught fire, and maddened

it: they had tried this already at Ascalum, and they now practised it on a far larger scale. One dam, in particular, whose young one was wounded, became furious, and in her rage turned against her own masters. The Epirotes were overpowered, the phalanx utterly broken, and the rout complete; even the camp could not be maintained: Pyrrhus retired to Tarentum. The Romans, besides their other booty, had taken eight elephants. The affair was now decided. Pyrrhus' only thought was to abandon the whole undertaking; yet he did not wish entirely to give up what he possessed in Italy. He therefore left Milo behind in Tarentum with a considerable force, which was strong enough to keep the enemy from a siege, but was a dreadful nuisance for the place itself. The Romans now turned against the several peoples which they had to subdue, while Pyrrhus made use of a stratagem to get off. For he caused the report to be spread among the Tarentines, that he intended, first to settle matters in Macedon, and then to come back again with the whole power of that country: and really he may have had some thoughts of the kind. He now returned with a feeble force to Epirus, after having been away for six years. There he found ample room for enterprises. Antigonus Gonatas, when scarcely raised to the Macedonian throne, was abandoned by his troops, and the whole of the land proclaimed Pyrrhus king; the Macedonians soon became exasperated by the excesses of his Gallic mercenaries, and again sided with Antigonus. Pyrrhus then transferred the war into the Peloponnesus, and undertook an expedition against Sparta, in which he well nigh succeeded; but the victory was snatched from him when the Epirotes had already entered the town. Fortune always showed him success very near, in order to wrest it from him again. From thence he marched to Argos, having been called in by the republican party against the aristocrats and the tyrant Aristippus, who had summoned Antigonus to their aid. In a fight with the latter, within the town itself, Pyrrhus was killed by a woman with a tile. The history of those times is so scanty, that we do not even know the year in which this great prince died.

Two years after Pyrrhus had left Italy, L. Papirius the younger and Sp. Carvilius completed the reduction of Samnium (480). It was indeed in the confident hope that they would effect this, that they were chosen: both of them, about five and twenty years before, in the third Samnite war, had fought the most decisive campaign. The Samnites saw that they could not struggle against fate, and they saved themselves by a peace, which, however painful it might be, could not, after all, be called disgraceful: it

was in reality rather a subjection than a peace. We have no accurate knowledge of its conditions. Thus much is clear, that the confederacy, of which there were only three cantons left, was broken up, and that the Samnite peoples, as such, continued to exist singly. They were to bind themselves *ad majestatem populi Romani comiter colendam*.

The same Papirius, as consul, or proconsul, took Tarentum. In that town, Milo had remained behind with a few thousand Epirote troops. Milo behaved altogether like a rough general, in fact as a distinguished captain of brigands, like the Spanish generals in the Netherlands: the military thought themselves allowed to do anything; the term *latro* is most aptly applied to them. We must imagine Milo to have been a man like Ali Pacha of Janina and his followers: he was capable of the deepest dissimulation, no promise, no oath was sacred to him. We have no idea of what a *φρουρά* then was, even of friendly troops:—one must for this be acquainted with the thirty years' war and that of the Netherlands;—it was just like a quartering of robbers, about the same as the soldiers of the “Catholic League” in the thirty years' war: the Roman discipline was infinitely better. Milo was a thorough scoundrel. He gave the Tarentines to understand that he would negotiate the peace for them, and then leave the town; instead of which, he sold the town and surrendered the citadel to the Romans, the Tarentines fully believing all the time, that the peace was about to be proclaimed. One morning, they were most dismally awakened when Milo had opened to the Romans the gates of the Acropolis, and had himself embarked. The Romans must then already have carried off very many precious things. The walls were partly pulled down; all those who were still alive from the time of the outrage against Postumius were butchered. The Romans boast of having restored to the town its liberty, which means, that they left to it its existence, and allowed the inhabitants the possession of their landed property, and their own magistrates; but a Roman legion was long quartered at Tarentum, and the Tarentines had to pay a contribution, as did all the Greek towns, beginning with Naples, (unless, like Heraclea, they were treated with particular favour,) in contradistinction to the Italian ones, from which the Romans, on the other hand, exacted military service. Only ships were likewise furnished by the Greek towns.

The Lucanians, Bruttians, Sallentines, Picentines, Sarsinates, Umbrians, now gradually acknowledged Rome's supremacy; but in most cases, not

before they had kicked against the pricks, and thereby made their fate worse. The conditions were various. Bruttium had to yield to the Romans half of the forest of Sila, which is of great value for shipbuilding; and thus the Romans acquired revenues, as well as supremacy, in all these countries. They now built a new chain of fortresses, as the first one of the Samnite war was no longer sufficient; on the Adriatic, Brundisium; and also on the lower sea, the sea-port towns of Pyrgi and others. Ten years after the departure of Pyrrhus, Rome was already mistress of the borders of the Romagna, Ferrara, Ravenna, the marshes of Pisa, and the river Macra, as far as the Japygian promontory; and thus she became the most powerful and compact state in all the world then known. She had also a great number of free allies, and she so conducted herself, that we clearly see that there must have been at that time a general law which settled the position of the Italian *socii*: the object of this is plain, it being gradually to form out of them one Roman people. The allies had indeed to blame themselves for having so long struggled against the will of fate. The different nations managed their own affairs themselves; they had their own laws, languages, and dialects; only Rome was their centre, and they were in due time to rub off whatever was incongruous with it. Italy was divided with reference to taxation, and placed under a certain number of quæstors, who collected the revenue. Hence their number was increased from four to eight, as the farmed revenues of the republic had to be gathered in. Isopolity seems to have been introduced for nearly all the peoples of Oscan and Sabellian stock: the Etruscans had a law of their own. In this system, the share was fixed which each of the nations had to take in every war. There must have been a sort of rotation for the military service, although discretionary power was given to the consuls, to state on entering into office to the commissaries of the allies, who had then to find themselves at Rome, how many auxiliaries each had to furnish. The rules in which it is laid down, how much of the *ager publicus* of the Romans should be allotted to them, in what proportion they should be allowed to share in the colonies which were founded, date likewise from this period. It was settled with regard to all the allies of Rome, how they should be capable of acquiring the rights of Roman citizens; and, that too many might not be withdrawn from their homes, the rule was made, that whoever migrated to Rome was to leave one member of his family behind in the land of his birth. Every thing that belonged to the burthen of military service, was regulated by general laws. If we compare the relation of the

allies in other countries of antiquity to the state which held the hegemony, the result is most favourable to the Romans. Their allies were placed on a very honourable footing: for instance, they had to furnish for their soldiers nothing but the pay; their food was provided by Rome. No new legislation took place: the old constitution was merely consolidated, and some particular points defined.

The most important event of that time, is the chastisement which the Romans inflicted on the legion of Rhegium. The Campanians had furnished a legion for the Roman service, and, properly speaking, in rank they stood quite equal to the Romans, as they still had the old right of the *municipium*: Rome had the superiority *de facto* only. When the Romans had got up eight legions against Pyrrhus, there was among them a Campanian one. This was placed as a garrison in Rhegium, to keep that Greek town in submission, which indeed at a former period had placed itself under the protection of the Romans, but now wanted to unite with Pyrrhus. Several of the Greek cities had already freed themselves by treachery from such garrisons: a like charge was also brought against the people of Rhegium. The Campanian general, Decius Jubellius, formed the resolution of making himself master of the town, and to overcome all the scruples of his troops, he caused forged letters of the people of Rhegium to Pyrrhus to be read, as if they intended to betray the garrison to the king; whereupon the soldiers engaged in a dreadful massacre, butchering the male inhabitants, and seizing upon the women and children, just as eight years before, the Mamertines had done at Messana. The Romans had nothing to do with this foul crime; and at the end of the war, when these men had already held the town ten years, they marched to Rhegium. The soldiers had put themselves out of the pale of all the rights of man, and did not consider any pardon to be possible; they therefore, reckoning perhaps on the help of the Carthaginians, tried to stand their ground. The Carthaginian general in Sicily ought to have acted here with determination; yet this was too hazardous, owing to the state of feeling in Carthage: had fortune been unpropitious, he would have been sacrificed. The siege lasted a long while, and the Carthaginians did not interfere with it at all; at last the town was taken by storm. Out of the four thousand, there were three hundred still alive: these were carried to Rome, and beheaded there.

The treaty between the Romans and the Carthaginians had more than once been renewed and modified according to circumstances, especially with regard to the rule of Carthage in Sicily and Sardinia; at last, before the peace of Pyrrhus, they had concluded a formal alliance, and had bound themselves not to make any separate peace. When, however, Pyrrhus was in Sicily, both nations became exceedingly jealous of each other; and when in the second year of the war with Pyrrhus, a fleet of a hundred and twenty Carthaginian ships arrived before Ostia, and placed itself under the disposition of the Romans, the latter sent it back, though with the utmost courtesy. Afterwards, a Carthaginian fleet appeared in the roadstead of Tarentum to negotiate with Milo for the surrender of the town. This evidently made the Romans hasten their speed; and they concluded their bargain in a hurry, and paid more than they would otherwise have done. This is the first misunderstanding between Rome and Carthage; yet strange to say, not even a hint of it is given by Polybius, although other writers mention it: and this is the more wonderful, as nothing could have induced Polybius to conceal it; for he is a most honest historian.

During the siege of Rhegium, the Romans entered into an alliance with Hiero of Syracuse, the first ever made with a Greek out of Italy. Hiero supported them vigorously; for it was his object to recover Messana. This would be much easier for him to do, if the people of Rhegium were destroyed, and he hoped to get from the Romans the furtherance of his ends. But the siege being protracted, the services of Hiero were half forgotten, and the Romans rather chose to do what formerly they would have been ashamed of.

The first occasion of the wretchedness which spread over Sicily, was the unfortunate expedition of the Athenian fleet to Sicily,—the νῆες ἀρχέκακοι, to speak in the words of the poet, the first link of the whole fatal chain. This expedition was a blunder; for even if it had been successful, it was extremely difficult to take advantage of it; yet it is pardonable in a people full of imagination, and which felt a strong call for action, to have allowed itself to be beguiled into such an enterprise. The Athenians were first called in by the Chalcidian towns, owing to the miserable hatred between the Doric and Ionic race, which is likewise found in the colonies; but the great expedition under Alcibiades was caused by the Segestæans, a Pelasgian or Doric people, at the foot of Mount Eryx in Western Sicily, which was hard

pressed by the Selinuntians, who were Ionians: this expedition, as is well known, altogether miscarried. When the Syracusans had now become the sole masters of the island, the Segestæans, dreading their vengeance for having sought the help of the Athenians, betook themselves to the Carthaginians as their refuge; and these, with a large army, conquered Gela, Camarina, and other towns, and encamped before Syracuse, where at that time Dionysius became tyrant. After a war of many vicissitudes, in which Dionysius, during the second campaign, by the conquest of Motye (the surviving inhabitants of which became the founders of Lilybæum), seemed to get the upperhand, so that there was every appearance that the Carthaginians would be entirely swept from the island; the peace was concluded by which these were left in possession of the territories of Selinus and Himera, consequently of a third of Sicily. The country was now infamously governed by Dionysius the Younger, rent by domestic struggles under Dion, and again restored to peace by Timoleon. The latter defeated the Carthaginians, to whom the conquered province remained indeed, but on condition that the Greeks might recover their towns in it. Now follows a time of peace and happiness in Grecian Sicily; then the dreadful usurpation of Agathocles, and his stormy reign which was so full of change. This period has often been thought to have been one of mildness and justice; but it was rather an age which made the reign of Dionysius to be wished for again, an era of humanity and prosperity. Agathocles was no common man; but he was a monster: he wasted the marrow and heart's blood of the country, that he might surround himself with splendour. The way in which Sicily was wasted under this tyrant, and afterwards, was so frightful, that one cannot understand, how tillage and population could have continued in such a country; and especially how Syracuse could have been one of the greatest cities in the world. His wars, on the whole, were marked by awful calamities; their renown for having been brilliant cannot be gainsayed: the peace which he made at last with the Carthaginians was fair enough. The hand of an avenging God was evidently upon him. Feuds broke out in his own family: he was poisoned, as we can hardly doubt, by his son or his grandson; but he did not die, he was only dangerously ill, and he was burned while yet half alive. The curse which lay on the house of Lysimachus, was also manifest in him. After his death, democracy was brought in again at Syracuse; yet it was not able to keep its ground, and the island fell into utter decay. The Carthaginians had laid Agrigentum waste in

the days of Dionysius; it had somewhat recovered since, and after the death of Agathocles, it became independent under Phintias, a prince of its own. The condition of Sicily, even as early as the period described in the letters known under Plato's name, was such, that the Hellenic races were threatened with being crushed by the Pœni and Oscans. This was after the death of Agathocles, and for this reason I believe that the so-called letters of Plato—the earlier ones at least, the seventh and the eighth—date from that time; for, old they are, and they still belong to the classical era, though they are not genuine, that is to say, not as old as Plato. Bentley says that there are two ways of proving the spurious character of a writing, from its contents, and from the language. Against the former, very little can be objected here; with regard, however, to the seventh and eighth letters, some discussion might be raised not only about the language, but also the contents, which evidently bear the stamp of an age later than that of Plato. We have, for example, the prophecy that the Greek race would perish, and in the whole island Oscan or Phœnician be spoken. Agathocles had carried on his wars by means of mercenaries who were most of them barbarians; many were Samnites, Lucanians and Oscans, under which last name, at that time, all the Sabellian peoples also were comprehended. We never find that Romans served in foreign armies; on the other hand, there were Etruscan troops in Sicily, especially Mamertines, which is the common name for the Oscan mercenaries, and indeed we meet with them there at a time when Rome was at war with their mother country. This shows quite a different relation of the individual to the state among the Romans, than among the other nations; and this also accounts for the power of the Romans. The feeble hands which, after the death of Agathocles, took the reins of government, were not able to manage these troops, and so they gave them money to return to Italy. While on their way, these came to Messana to embark. The people there, unmindful of the curse which, once upon a time, had been uttered against them by the Zancleans, whom they had faithlessly driven out, received them into their houses; but they massacred the inhabitants, and set themselves up as a nation under the name of Mamertines, and many other Oscans flocked in to them. The outrages which these hireling soldiers committed, may be likened to those which took place in the year 1576, in the Netherlands, when the mercenary troops sacked whole towns to pay themselves for their wages: this was among others the fate of Maestricht. The Oscan colony was in a league with the people of Rhegium, and

supported them; and the Romans only mastered them with the help of Hiero.

Hiero was of an old and noble race in Syracuse. Some there were, who, perhaps to flatter him, derived his pedigree from Hiero the son of Dinomenes; so that at a time when the state could be prosperously governed by a monarchy alone,—which could only be by a usurpation,—his circumstances peculiarly favoured him for it. He was first nominated general; and then, by the soldiers, king. They could not have wished for a better master. During his reign, which lasted nearly sixty years, was the first Punic war of twenty-four years; and, of course, the resources of his kingdom were most severely taxed. Nevertheless, he displayed so much good sense and economy, and he was withal such a mild ruler, that the Syracusans felt free, and, during the last twenty years of his government, happy. In his youth he was also warlike; but this habit he quite lost. One incident of his life, which is told by the scholiast on the Ibis of Ovid, is seldom noticed. He is said to have had Theocritus put to death on account of a satire, which is very likely to have been done by a Greek ruler of those days.

It was the object of Hiero's endeavours to reduce the Mamertines. Syracuse had only a few dependent towns; Catana and Taurominium were allies. The Carthaginians had gotten Agrigentum, and had extended their frontiers as far as Gela and Camarina, as after the first peace with Dionysius; if Hiero could but have Messana, he hoped to have in the Romans a support against the Carthaginians. With these he was obliged to conclude a peace, in which he yielded to them the conquered places: he was, however, on very good terms with them, as far as outward appearances went. When by straining a point in his morality, he had got rid of his old mutinous mercenaries, whom he betrayed in the war, and allowed to be slaughtered by the Mamertines; he formed a new army, and taking the field against the latter, who had spread on the north-eastern third of the island, he won a decisive battle. To this refers the beautiful idyll *Χάριτες* of Theocritus, a poet, from whom we may form an idea of the freshness of spirit which there was then in Sicily. Hiero had peace with the Carthaginians, in order not to have them for enemies; and they forced upon him their support; they both of them together besieged Messana. Under these circumstances, the Mamertines saw no help. Hiero wished to

exterminate them, as the destroyers of the Greek population; the Carthaginians had the same object in view, but not from the same reason. They also wanted to root them out; because as Oscans and Italians, these were of the same stock with the Romans, and might easily one day open to them the way into the island. Without doubt, they likewise thought of use Hiero merely as their tool, and to get the town for themselves; for, the *fides Punica* cannot after all so entirely be denied. In this dilemma, the Mamertines applied to the Romans. But it was absurd (ἄτοπον is the expression of Polybius) for the Romans, after having hunted down the allies of the Italians in Rhegium, to go and take the part of others who had done the self-same thing. The evil spirit of lust of power had, however, already got hold of the Romans: they were afraid, lest the Carthaginians should put themselves in possession of Messana, where, if these once gained a firm footing, they would find themselves sadly taken in by their false delicacy. And this is also true, that Carthage would have become for Rome, just as invulnerable as England was for Napoleon. The Carthaginians had betrayed their views on Italy when they sent the fleet to Tarentum. From Messana and its excellent harbour, they would have had an opportunity of easily sailing over to Calabria; whereas at present their nearest harbour was Panormus, from which they could not easily have undertaken such a daring enterprise. The Italians in Rhegium, it was contended, had disgraced the Roman name; but the sins of the Mamertines in foreign lands, Rome had nothing to do with. The most enlightened and moral policy would now have been, to exert themselves to make Hiero master of Messana, and to gain him over for an ally. This only seemed hazardous, because in that case, the Mamertines might have opened their gates to the Carthaginians.

The Roman senate had come to no resolution; nay it seems that from the fear of doing an unworthy act, or from motives of morality, it declined the offer. If the constitution had been the same as of yore, that μηδὲν ἀπροβούλευτον, nothing could be brought to the centuries, but what was laid before it by the senate, the affair would have been decided; but now the tribunes, without even calling upon the senate, could go at once to the people, and the latter resolved upon giving help to the Mamertines. Polybius accounts for this step by the circumstance that the people, being burthened with debts, had looked forward to a war, that they might enrich themselves; if this view be correct, it shows, that by this time already, the poorer classes had the upperhand in the assembly. Yet it is likely that

Polybius puts forth that motive, only because he so thought it, and there may have been some others. At any rate, the resolution was foolhardy. The Carthaginians were masters of the sea, and the Romans had not one ship of war; they had even in the conquered sea-ports destroyed all the galleys of Etruria and of other countries, perhaps in order to prevent piracy, and to escape from the responsibility which might thus have fallen upon them. To transport their troops from Rhegium to Messina, they had no other vessels but a few triremes and penteconters belonging to Greek towns, as Polybius tells us. Pliny, on the other hand, says that the Romans had for this purpose in forty days built three hundred triremes; and indeed a small quantity would not have been enough. From Rhegium, the Romans treated with the Mamertines. These had already received into their town a Carthaginian general, but either without any troops at all, or with only very few: by what stratagem they got him away, is more than we know. Appius Claudius at first went over with a small body; soon afterwards, the whole of the army followed. The Carthaginians, whose fleet was lying near Pelorus, tried to hinder their passage; but the Romans took advantage of the wind and tide, and got speedily over by this mad daring. The Carthaginians, who had protected Messina against Rome, now united, as has been mentioned before, with Hiero, and both blockaded the town from different sides; probably the Carthaginians from the North, Hiero from the South. The communication between the two might be difficult; Messina being situated near a mountain of considerable extent, it was easy for the Romans to make a sally and to defeat Hiero separately. He made a stout resistance; but the Syracusan phalanx was not able to withstand the Roman legions. After this victory, the latter turned against the Carthaginians, and, as it seems, without any declaration of war. The Carthaginians retreated, and the Romans advanced without any hindrance. In the following year, 489, they reached the walls of Syracuse under Valerius Messalla, who is thus surnamed from Messina. Taurominium, Catana, and other towns opened their gates to them, and they made preparations likewise to besiege Syracuse; but Hiero still succeeded in making a peace. A very small state only was left to him, but he retained the sovereignty of it: he paid a small war contribution, and concluded an offensive and defensive alliance with the Romans.

Here should be the beginning of the first Punic war; but for the sake of connexion, it is usually dated from the passage over the strait.

END OF VOL. I.

FOOTNOTES:

[1] The use of letters on the whole is very ancient. It has a threefold root:—in Egypt, (or perhaps in Æthiopia,) in Phœnicia, and in Babylon, all three of which are independent of each other. That in Europe writing is of more ancient date than the time in which we place Homer, is undeniable, as we have written monuments from such an early period, leaving, however, the question untouched, whether Homer had committed his lays to writing or not.

[2] Comp. concerning this chronicle Archive for Ancient German Historical Research, v. p. 146. Pertz has afterwards (1839) published it, Monum. Germ. Hist. Script. tom. iii. p. 695 sq.—Note of the German Editor.

[3] IV, 20.

[4] Very interesting in this respect are the recently published traditions of the Sandwich islanders, partly narrations, and partly songs, which have been collected by missionaries.

[5] By some mistake, as it seems, Niebuhr mentions here the Nibelungen instead of Waltharius, which is a Latin poem of the tenth century, and from which Aventinus cites the verses I. 9 foll. He often refers to the old German heroic poems, without, however, quoting them verbatim. Cf. W. Grimm's German Heroic Tradition (Heldensage), p. 302.—Note of the German editor.

[6] XVII, 21 Gellius says that Nævius had come out in the same year that the divorce of Sp. Carvilius Ruga took place, viz. in 519; but in IV. 3, he dates the latter fact from the year 523, and thus concerning the first appearance of Nævius also a difference is made of four years. Cf. Ritschl, Parerga Plautina. Lips. 1845. tom. I. p. 68-70.—Note of the German editor.

[7] For the juster estimation of Virgil, it is to be remarked, that frequently, without directly contradicting the historical statements, he ensconces himself in the old poetical tradition. Thus he evidently takes Romulus to be the grandson of Æneas by Ilia, whence also the misplacing of Æneas at the time of the foundation of Carthage. He has therefore been unjustly censured with such vehemence for his chronological inaccuracy precisely by the age which idolized him. There has not on the whole enough been done by a great deal for the elucidation of Virgil.

[8] Fabius wrote the history of his people two hundred years after Herodotus; by so much therefore the Roman literature of history is later than the Grecian.

[9] The cognomen Pictor occurs rarely by itself; Appian has it, however.

[10] I have a good memory, and yet it has often happened to me before now that I have made mistakes in names. Cicero relates a similar error of himself in the letters to Atticus, where the latter had pointed out to him that he ought to write Phliasii instead of Phliuntii.

[11] Merula places the war of Pyrrhus in the sixth book, because he could not believe that Ennius had devoted one book only for the times between. But Ennius has surely not merely versified the Fasti consulares, but very likely he strung together the principal events only.

[12] Hieron. Columna and Natalis Comes have both of them the vanity of pretending to have read authors, who do not either exist at all, or in Scholiasts only, whom they may indeed have read in more complete MSS. than we do. Niebuhr.—Claudius Sacerdos is now printed in Endlicher's *Analecta grammatica*. Note of the German Editor.

[13] Festus v. Tarpeiæ.—ED.

[14] The mode of writing in periods among the Romans commences with Cato, and was particularly elaborated by C. Gracchus, who is on the whole to be considered as the father of Roman prose. The periodology has, as well as the hexameter, most likely been engrafted on the Roman language from the Greek.

[15] IX, 13.

[16] John James Mascov, born 1689 at Dantzic, lived as professor of history at Leipsic, where he died 1761.—TRANSLATOR.

[17] Whenever Gaius stands upon his own legs, he has no substantiated historical statements.

[18] It was a necessity to reduce history, which had become too voluminous, to abstracts. Such were also the tables of Cornelius Nepos after the example of Apollodorus.

[19] These authors were not mentioned by Niebuhr in his lectures. The brief notice which is given has been taken from the few MS. leaves of his papers which I was allowed to make use of. Editor.

[20] V. p. 352 c. Alm.

[21] Lapus is a Florentine short name for Jacob.

[22] The first excellent translation of a Greek author into Latin is that of Herodian, by Angelus Politian.

[23] By a lapse of memory Niebuhr refers this Greek mode of expression to the account of the expedition of Cleonymus (X, 2,) whilst it occurs in that of Alexander of Epirus, VIII, 24.—Note of the German Editor.

[24] The example which the grammarians quote in corroboration, *legati domum unde venerant redierunt*, is not to be found in our Livy.

[25] This account, which is to be found in M. Seneca, Excerpt. Controv. 1, IV., does not apply to the emperor Caius (*Caligula*), but to the son of M. Agrippa, whom Augustus had adopted. It is stated in Seneca, *mortuo in Syria, C. Cæsare*, which can only be said of the latter. Asinius Pollio died in the year 5 A.D. (Hieron. in Euseb. Chron. ad a. MMXX,) and could not at any rate have known Livy's work complete.

[26] Some books of the library of the Greek Emperors may indeed have remained behind at Constantinople; but they were probably destroyed in the great fire.

[27] The Arabs never translated historians.

[28] Zonaras is a modern Grecian name, and therefore to be pronounced Sónaras, not Zonáras. It is altogether incorrect to pronounce the modern names as the ancient Greek ones.

[29] Zonaras in the beginning of his history made use also of Plutarch's Romulus, Numa, and Poplicula, on which account a certain strange individual, Nicholas Carminius Falco, took it into his head, that Dio had compiled his history from Plutarch, and that all the rest was to be found in Zonaras. He then announced a complete restoration of Dio, yet his ignorance was beyond all belief, so that in the title, instead of βιβλία ὀγδοήκοντα he wrote, βιβλία ὀκτογίντα (The first vol. was published Neapol. 1747, fol.)

[30] The Lower Rhine boasted at that time of several men who were of philological eminence, e. g. F. Fabricius.

[31] 1757—4to.

[32] Before Savigny, these attempts were so imperfect, that Cujatius, Duarenus, Donellus, if they had seen them, would have expressed themselves highly displeased with them. The modern more profound researches also could not always at once hit the right direction on paths which had still to be paved.

[33] This manuscript would be well worthy of being printed, the language in it is excellent.

[34] An eclipse of the sun marked also the moment when Mars overpowered Ilia.

[35] T. Tatius is said to have given him his daughter in marriage, and yet he is already dead in the fourth year after the foundation of Rome.

[36] The ancient Irish legend, as far as it is accessible to me, somewhat differs from the statement, as it is given in the text. It is not Niall the Great who penetrates as far as the Alps, but his successor Dathy, who, A.D. 427, is struck dead by lightning at the foot of the Alps. See Keating, General History of Ireland, transl. by Dermot O'Connor, Lond. 1723, fol. p. 319. M'Dermot, History of Ireland, Lond. 1820, 8vo. I. p. 411. The accounts of Roman authors concerning Ireland are collected in O'Connor Rerum Hibernicarum Scriptores, T. I. Prolegom. p. 1.—Note of the German Editor.

[37] The grammarian whose fragment on the Saturnian verse is here alluded to, is Charisius. Niebuhr transcribed it in the year 1823, from a Neapolitan MS., and his copy is intrusted to Professor Lachmann of Berlin, who is preparing it for publication. From a copy made by O. Müller, Professor Schneidewin, at Göttingen, has had it printed in a programme of the year 1841, "*Flavii Sosipatri Charisii de versu Saturnio commentariolus ex codice Neapolitano nuce primum editus*," and at the same time severely criticised Niebuhr's remarks on the Saturnian verse. One single glance however at the fragment which is printed in his programme, shows that Müller's copy is very defective, and it would therefore have been but seemly for Professor Schneidewin to have first instituted more accurate inquiries respecting the contents of Niebuhr's copy, before he wrote down expressions which indeed

cannot injure the memory of Niebuhr; but which do not by any means reflect very favourably on the modesty of their author.—Note of the German Editor.

[38] In the year 1616.

[39] Livy III. 71, 72.

[40] *Theod. Ryckii Diss. de primis Italiae colonis et Aenea*, in *Luc. Holstenii Notæ et Castigationes in Steph. Byzantium*. Lugd. Bat. 1684, fol.

[41] Salmasius was by far less clear-headed than he was.

[42] The aborigines of Macedon were neither Illyrians nor Thracians, but neither more nor less than Pelasgians. Cf. O. Müller's work on Macedon.

[43] Æschylus already peoples the whole of Greece with Pelasgians.

[44] We may indeed look upon this conclusion as certain, although the researches on the mysteries themselves will ever remain fruitless.

[45] The Fir-Bolgs belong to the Bardic history of Ireland, which mentions them as having formed the third immigration in Ireland. The Scots found them in Ireland ruled by kings. To them the construction of the Cyclopiian walls in Ireland is attributed.—Note of the German Editor.

[46] In the existing collections of fragments of Cato, I do not find this statement. I therefore suppose that Cato is here confounded with Dionysius, who A. R. I, 16, has the notice alluded to.—Note of the German Editor.

[47] Probably C. Sempronius Tuditanus, the same whom Dionysius A. R. I, 11, calls λογιώτατον τῶν Ῥωμαίων συγγραφέων.—Note of the German Editor.

[48] I entered upon these researches already as a youth; but in the last edition only of my history I arrived at clear views. I relied too much on Varro's authority, though I judged correctly as to the main point.

[49] *Albanos rerum potitos usque ad Tullum. Festus s. v. praetor.*

[50] R. H. I. page 222.

[51] It is well known that there exists in Stobæus a poem on Rome, as the authoress of which Erinna is mentioned. As Erinna, however, sung in times in which Rome cannot be supposed to have in any way created a sensation in Æolia, one has had recourse to the explanation, that it was a hymn on strength. Strength cannot however be called a daughter of Mars. The poem is of a far later period, and from these premises some one might perhaps succeed in guessing the misspelt name of the author. He certainly belongs to the time after the war of Hannibal, and perhaps even as late as the times of the emperors: the most likely supposition, however, seems to me that he was a contemporary of Sylla.

[52] In eastern tales, children are fed with the marrow of lions.

[53] *Serv. on Virg. Æn. I. 274.*—Note of the German editor.

[54] I, 48.

[55] Varro I, l. V. (IV) 42.

[56] I have spent many days in Rome in searching for the old churches which were pulled down at the brilliant reconstruction of the town; yet I had no guide to them, until I saw the work of a clergyman, who still showed their traces. Like him, Varro could point out the Sabine chapels.

[57] See p. 115, 116.

[58] See R. H. II, page 202, 250, and others.

[59] Viz. 4 + 5, as five is the plebeian number.—Note of the German Editor.

[60] When the Achæans spread over the Peloponnesus, Sicyon first, and then by degrees the other towns, adopted their νόμιμα. It was tried to force them also upon the Spartans, but in vain.

[61] Classical Tour, II, p. 195.—Note of the German Editor.

[62] The decay of this monument is the fault of the constructors themselves, inasmuch as they did not choose better materials.

[63] Rasena, probably not Rasenna; *Ras* is the root, and *ena* the termination, as in Porsena, Cæcina; yet the Etruscans do not double the consonants any more than the Shemitic nations.

[64] Livy XXII, 57.

[65] I have not chosen to suppress this passage on the Etruscan descent of Servius, which belongs to the lectures of the year 1826, although lower down there occurs a different view, of the year 1828. The disquisition given here, is in connection with that in R. H. I, 422, foll. but comes forth here more clearly and distinctly.—Note of the German Editor.

[66] In the earliest times, antiquities and history cannot be entirely separated. The *Commentarii pontificum*, as well as Livy and Dionysius, set us an example in this.

[67] Although I cannot succeed in finding an instance of the word *clientus*, yet the feminine *clienta* offers sufficient justification for supposing also the masculine in us.—Note of the Germ. Ed.

[68] Non. 486, 24. *Campas*, *Plaut*, *Trin.* II, 4, 144. Lind.—Germ. Ed.

[69] These class distinctions under the second Temple, have only been elucidated by the great Selden, but for whom I should have known nothing of the matter, as the language and literature are unknown to me.

[70] These relative positions were so familiar to our (German) forefathers, that in the Mayence translation of Livy, *populus* is rendered throughout by *Geschlechter*, *plebes* by *Gemeinde*. Thus it says, "There were appointed as burgomasters (consuls), T. Quinctius by the *Geschlechter*, and L. Genucius by the *Gemeinde*;" where Livy has *populus* and *plebes*. The consequence of such an artless view of the several positions was, that the men of the sixteenth century had very correct notions of many things, although devoid of the scientific learning which we cannot do without. I have found this out only a few weeks ago.

[71] The researches into the histories of the Italian cities, such as those which I have made, throw a considerable light on the whole development of the Roman constitution.

[72] The German expression used by Niebuhr is *Hörige*, which is a derivative of *hören* to hear.—TRANSL.

[73] Ulpian's fragm. V, 8.

[74] In the canton of Schwytz the country people were in the same manner divided into four quarters, to which two were afterwards added.

[75] I have omitted to elucidate this in my history.—Nieb.

[76] This expression puzzles Livy very much at the battle of Fidenæ. The old annalist had, *classibus certare*; yet Livy mistook the meaning of this for fleet, and on this doubts whether on the narrow Tiber a contest with fleets could have taken place. But it means nothing else but a fight with heavy armed men.

[77] Sixty stivers made a dollar of Cologne, the value of which is estimated at 23 silver groats (Silbergroschen). An as is therefore something less than 7 Prussian pennies $6\frac{9}{10}$ ths.—GERM. EDIT.

One Prussian dollar = 30 Silv. gr.

One Silver gr. = 12 pennies.

The dollar (thaler) = 2s. 9d.

The as = $\frac{253}{400}$ penny Sterling.—TRANSL.

[78] The Abbé Sieyes, said, it is true, *La minorité a toujours tort*.

[79] Lyon, Narrative of Travels in Northern Africa, Lond. 1821, vol. iv. p. 162, gives that notice. The two tribes which inhabit the town, are the Beni Walid and the Beni Wasid; yet according to his statement, however, it is precisely in war time that the gate in the wall is closed.—Germ. Edit.

[80] A palm is about 9 inches.

[81] See above p. 88. It has already been remarked there that the following disquisition dates from the year 1828, and is therefore to be considered as the ultimate result of Niebuhr's researches on this subject.—Germ. Edit.

[82] Livy V, 1. and the commentators on that passage.

[83] Ulric Becker, in Dahlmann's Researches in the Field of Ancient History (*Forschungen auf dem Gebiete der alten Geschichte*.)—Germ. Edit.

[84] Orelli T. V., II. p. 255.

[85] This is not quite correct. There are native officers in the Company's Sepoy regiments; but they are in every case subordinate to the Europeans.—Note of the English Translator.

[86] The Fasti, such as we have them, mention four Valerii as the sons of Volesus; Publius Poplicola, Marcus, Manius, and Lucius; the latter, or his son Caius, only occurs as Quæstor. The old legends, on the other hand, only knew of two, Publius Poplicola, and Marcus surnamed Maximus. Volesus, wherever he occurs, is mentioned as a Sabine, in the Annals, which Dionysius follows in order to fill up the blank of the earliest times, as a companion of Tatius; others assert, that he had emigrated to Rome at the bidding of the oracles, and very likely this is the older tradition. It is a common genealogical mistake to deem all of them brothers, Dio Cassius

calls Marcus only a clansman of Publius, and the additional term which all the others bestow upon the Valerii, *Volesi filius* or *nepos*, originated merely from the general desire to trace back all the members of a *gens* to some Hero as the common ancestor of their race.

[87] Lar is an Etruscan prænomen frequently occurring on the monuments, and it probably means king or God. Martial's scansion Porsēna is incorrect: in Vibenna, Cæcina, and others, the same termination always appears with the penultima long.

[88] That this number is the correct one,—the MSS. of Livy having thirty-one,—is proved in the new edition of the first volume of the Roman History.

[89] That is to say, the patricians: for these, and not the senate, are meant by *patres* in every correct writer.

[90] Boekh, Political Economy of the Athenians, vol. ii. p. 12.—Germ. Ed.

[91] Ingenious and learned men among the commentators of Livy have written on the relations of the nexi; yet all their researches have missed their object, with the exception of what Doujat, who if I remember right, was a councillor of Parliament in Paris, has said about the matter. Yet those, who wrote after him, did not allow themselves to be taught by him, but they returned to the former errors; as for instance, Drakenborch, although he quotes this author, a proof that learned students, who are not men of the world, may often be mistaken in such matters.

[92] During the middle ages, in Rome the *popolanti*, with the exception of the Corso, were no genuine Romans, but Slavonians and Albanians, who had immigrated under Innocent VIII., and as late as in the fifteenth century, spoke their own language.

[93] See above, p. 169.

[94] Glacier.

[95] It may have been an attempt to conquer the Veientes by establishing a strong hold within their own territory, similar to the ἐπτερισμός of Decelea against Athens; for in those ages a campaign lasted only a very short time, from eight to fourteen days. Either the armed force of the country marched against the enemy, or it besieged them within their walls. To prevent the inhabitants therefore from quietly returning to their fields after the departure of the hostile army, it often happened that the latter established some fortified position in the enemy's territory.

[96] Livy says of the Fabii that they had gone *infelici via, porta Carmentali, dextro Jano*; and Ovid, *Carmentis portæ dextro via proxima Jano est: Ire per hanc noli, quisquis es: omen habet*. This is to be understood as follows. All the Roman gates had a double arch, by one of which people went out, and by the other they came in; the former was termed *Janus dexter*, the latter, *Janus sinister*. The Carmental gate was situated between the Capitoline and the Quirinal hills. Since therefore those, who wanted to go out, could not pass through the left Janus, they had to make a great round, even if they wanted to go to a place quite close to it; for the right Janus was ominous, as the Fabii had passed through it on their last journey out.

[97] Livy, V, 46.

[98] The works of Sigonius and of Beaufort *sur la Republique Romaine* are to be recommended as a rich treasure of subject matter treated by clever men; but they can only be relied on with any safety in the later period. Manutius also may be mentioned with praise: his commentary on Cicero's epistles is quite indispensable for any one who wishes to understand that age. Yet in the earlier times, he too gropes his way in the dark, and that still worse than the others.

[99] From the discovery of this place all my researches on Roman topography have arisen.

[100] Quite incorrect is the spelling *Plebisscita*: *plebi* is the old form of the genitive of *plebes*, as *Hercules*, *Herculi*; *Cæles*, *Cæli*; *dies*, *dii*.

[101] Properly speaking, ἰσονομία (in Herodotus and Thucydides) is that state of liberty in which no one is beyond or above the law; and ἰσηγορία (in Demosthenes), the equal dignity of every free citizen. R. H., II, p. 640, note.

[102] The motive for dating it so early was perhaps this, that Coriolanus was judged by it.

[103] I, 2, 29. cf. II, 2, 2.—Germ. Edit.

[104] The nature of the cury had essentially altered in the course of time. R. H. II, p. 178.—Germ. Ed.

[105] The history of the constitution of Elis offers a close parallel to that of Rome. The highest magistracy in that state was at first held for life. As late as in the Peloponnesian war, the clans of Elis alone are sovereign, and the country district is in a state of subjection, the whole of the power being in the hands of a council of ninety men who were elected for life. The people was divided into three phylæ, of thirty clans each. Afterwards the country district obtained the right of citizenship. The whole of Elis is divided into twelve regions, and the nation into twelve tribes; four of the latter are lost during the war, so that eight tribes only remain. This is an unmistakeable counterpart of the Roman history.

[106] See concerning this relation R. H. II., p. 419-423.—Germ. Ed.

[107] In some recent editions of Livy, we find Clælius instead of Cæcilius; yet this is an emendation: in Dionysius the MSS. have Κλύσιον.—Germ. Edit.

[108] A double disquisition on the same subject (for it occurs here, and now and then in some other places), is to be accounted for from the circumstance that it had to be interrupted at the end of a lecture, and that afterwards in the following one the thread of the argument was not quite accurately taken up.—Germ. Edit.

[109] Enigmatical is what occurs in Livy and elsewhere, that a special law had been granted for a dictator, *ut ei equum escendere liceret*. The way in which this is interpreted, is that the dictator was not entitled to mount on horseback, whilst the *Magister Equitum* was. Perhaps the dictator was not only entitled to make use of a carriage, but even he was not entitled to appear in any other way but in a carriage, particularly on his return from battle. To

this refers a line in Varro, *Dictator ubi currum insedit vehitur usque ad oppidum*. *Oppidum*, according to Varro, is properly speaking the townwall (also a town surrounded by walls in contradistinction to *pagus* and *vicus*).

[110] Festus, s. v. *Præteriti Senatores*, R. H. I. note 1163.—Germ. Ed.

[111] Cic. pro Cluent. c. 42. Ascon. in Orat. Tog. Cand. p. 84 Orell.

[112] The story of a bashaw of Aleppo is quite similar to that of Sp. Mælius. In a great scarcity he summons the principal men, and makes every one of them state the amount of all the corn which he had in store; then he rides to the magazines, and on admeasurement finds double the quantity of what had been written down from their statements; so he takes away the surplus, and the scarcity is at an end.

[113] Labici, as it is generally spelled in the editions of Livy, is a mistake of a copyist in the fourth or fifth century for Lavici, the reverse of which, Vola instead of Bola, is frequently read in the old editions.

[114] The Etruscan town of Capena was perhaps as near Rome as Veii was, though this cannot be decided, as the town disappeared at an early period. Certain it is that it lay between Veii, Falerii, and the Tiber.

[115] Cf. on the other hand R. H. III. note 1034. I nevertheless did not wish to suppress the passage given in the text from the year 182 $\frac{6}{7}$. According to Arago, the winters in Tuscany are now less cold, and the summers less warm than they were in olden times. (Berghaus *Länder-und Völkerkunde*, I. p. 248.)—Germ. Edit.

[116] This notice is from the lectures of 182 $\frac{8}{9}$, and is uniformly given by all the MSS. In the year 182 $\frac{6}{7}$, N. said, the length of the *emissarius* is not measured; it is stated to be one (Italian) mile and a half, 7,500 feet: in R. H. II. p. 570, there are 6,000 feet. Abeken *Mittel Italien*, p. 179, says:—"The subterraneous drain cuts the south-western banks of the lake to an extent of nearly four thousand feet." The statement of its length, as given in the text, seems therefore to be founded on a mistake.—Germ. Edit.

[117] See the speech of Fabricius in Dionysius, p. 747. I. 43. Sylb. from the Exc. de Leg.

[118] See R. H. III. note 485. Above p. 45.

[119] The southern mountains in Spain are connected with the African ones.

[120] In Lombardy, the battle fields of 1799 are very difficult to make out since the direction of the roads has been changed. Near Lützen, near Breitenfeld, and near Leuthen, the sites are also very hard to be recognised; even near Prague and Collin, it is not easily done.

[121] A difficult passage in the *Metamorphoses* of Ovid, refers perhaps to this war. It is stated in it that a heron had risen from the ruins of the city, after its destruction by the barbarians. The latest commentators have, without any just authority, tried to connect this destruction with the war of Hannibal. It might apply to a Samnite campaign, in which Ardea was burnt down; as Strabo, perhaps, would induce us to believe, when asserting, that the Samnites had carried on their conquests as far as Ardea. Yet the Samnites would scarcely have been called barbarians. Most likely there is here an

inversion of the tradition which we have just mentioned, that the Ardeates under Camillus had defeated the Gauls.

[122] As an artist, by working in the presence of his pupil, improves his eye, and thus gives him the best practice, so is it also in literary pursuits. He who has studied for the whole of his life, certainly does a service to his hearers, when he shows them how he has got on, and how also he has sometimes gone back.

[123] Mirabeau said at Marseilles in the year 1789, that C. Gracchus had called on heaven to requite the shedding of his blood, and that from this blood Marius had sprung. But Gracchus was a pure-minded, guiltless man; Marius, a tyrant.

[124] Συμφωνεῖται σχεδὸν ὑπὸ πάντων, says Dionysius; this σχεδὸν shows, that all were not unanimous. I believe that the excellent Cincius had placed it in a different year, perhaps Ol. 99, 1. or 2.

[125] The chronology is very unsettled here on account of the uncertain change of the magistrates. It was not till after the Punic wars, that the consuls entered regularly into office in spring; and it was only in the last years of the republic that they did so on the first of January.

[126] I have, in the neighbourhood of Tivoli, still found vestiges of several places of which nothing is generally known, and which may have been then destroyed. These are square enclosures of walls on the tops of hills, without any traces of surrounding ramparts. We may see from thence how small those towns were, which lay scattered through Italy; they may have contained about fifty houses each.

[127] Probably VII, 12. and VIII, 6. or 8.; yet it is alluded to in other places besides.—Germ. Editor.

[128] The triumph on the Alban mount, which is first mentioned of Papirius Maso after the Punic war, is generally looked upon as a discretionary act of the generals, when they were refused a triumph in Rome; but it is undoubtedly a reminiscence of the ancient custom. Formerly, the Latin general triumphed on the Alban mount, as the Roman in Rome. When there was now no more a Latin general, the *imperator*, as general of the allies, took his triumph on the Alban mount, if it was denied him at Rome.

[129] Monte Sasso *di Castro*, above Mugello, is, according to a surmise of the editor of the R. H. III, note 144, the name to which N. here alludes.

[130] By this remark the difficulty is obviated, which otherwise arises as to how in an assembly wherein those only voted who happened to be present, it could have been the majority of the votes which decided. Applying this to Rome, how could the members of the *Tribus Velina*, the residence of which was very far off, not have felt grievously prejudiced in comparison with those of the *Palatina*? But all this is explained by the fact, that each tribe had only one vote; so that in important discussions the distant ones sent their most able men to town, and thus arose *de facto* a representative government.

[131] The war of the Samnites with the Sidicines shows, that the territory of the Samnites at that time reached to the upper Liris, so that its limits are drawn too narrowly by d'Anville.

[132] *Campania* is the district of the Campanians, that is to say, of the inhabitants of Capua (*Capani* on coins). *Campas* instead of *Campanus* is met with in Plautus.

[133] Niebuhr's positions do not here agree with those in d'Anville.—TRANSL.

[134] In his Roman history (III. 137.), Niebuhr pronounces much more decidedly for the second view; but it is to be remarked that the same version as that in this passage occurs already in the first edition (1812), whilst that, given in our text, dates from the lectures of 1828. The detailed account of the battle (of the year 1826), on the other hand, still follows the version adopted before, of which fact, in order to prevent mistakes, we here expressly remind the reader.—Germ. Edit.

[135] VIII, 8. towards the end.—Germ. Edit.

[136] It is a common mistake of the moderns, that, when they hear of *cornu dextrum* and *sinistrum*, they think of our system, and then suppose also a main body in the centre (*corps de bataille*). Yet the Roman host consisted of those two halves only (*cornua*). All the modern writers on tactics, with the exception of Guischard, are mistaken in this respect.

[137] In one MS. only, there is instead of "in the field," *in campis Tinctanis*; but evidently as a subsequent filling up of a gap, which had been left whilst taking the notes. It is therefore probable that Niebuhr quoted the expression *in campis Ferectanis*, which occurs in Livy, without adding any further remark.—Germ. Edit.

[138] Also Popinia, Festus, s. v. Pupinia tribus, p. 233. M.

[139] The Plautii preserved on their coins the memory of the conquest of Privernum as the most glorious event of their family-history, R. H. III, 201. L. Æmilius Mamercinus Privernas and C. Plautius Decianus triumphed over the Privernates.—Germ. Edit.

[140] Liv. VIII. 37.

[141] Herennius, as it seems, was on the whole considered as a model of wisdom among the Samnites. According to a passage in Cicero *De Senectute*, he occurs as a speaking personage together with Archytas in a philosophical dialogue of a Pythagorean: a remarkable proof how intimately those Italiote towns were connected with the Sabellian peoples, and how far they were from looking upon them as barbarians. They had a great contempt for the Ὀπκοί, and may therefore have made a broad distinction between them and the Samnites. This intercourse with the Greeks accounts for Numa, the fountain head of Sabellian wisdom, having been imagined to have been a Pythagorean. This is a truly Sabine tradition. They went so far in their friendly connection, that the Greeks affected to consider the Samnites as a Spartan colony.

[142] In the lectures of 1826-7, Niebuhr places the end of the first period before the disaster of Caudium, so that the second period is the brilliant one of the Samnites.—Germ. Ed.

[143] They consequently were not annihilated, as Zonaras has it.

[144] This is probably the passage from Dionysius, Mai Excerpt XVI, 6 quoted in R. H. III, p. 415. note 604.—Germ. Edit.

[145] See R. H. III, p. 323.—Germ. Edit.

[146] Reading Ὀμβρικών instead of ὁμόρων. R. H. III, p. 330, note 438.—Germ. Edit.

[147] In the lectures of 1826-7 N. still mentioned here the battle on the lake of Vadimo, which afterwards he probably rejected, as may be inferred from R. H. III. 332.—Germ. Edit.

[148] See above, p. 152.

[149] Not Clusium, as Livy has it, for this was called in the language of the Umbrians Camers. Polybius has the correct name, and a mere comparison, based on the nature of the locality, might show us that Clusium is out of question.

[150] During the revolutionary wars I had so fully entered into the manner of the different generals, that, in very important cases, I foretold how, for instance, Napoleon would act. People would not believe in my predictions; yet they were generally fulfilled.

[151] For the arguments for this opinion see R. H. III, p. 431, note 647.—G. Ed.

[152] We always follow here the chronology of Cato; in Varro and in the Capitoline Fasti whole years are interpolated. This difference is founded upon a monstrous mistake, which Varro makes in the period between the conquest of Rome by the Gauls and the Licinian law. That conquest is dated by him three years earlier than it is in any of the other accounts: from the building of the city to the Gallic invasion, Varro and Cato agree with one another. Varro's mode of reckoning tallies with the Greek one, and therefore it is sometimes used for synchronistical purposes. But there is not one among the ancient historians who makes use of these patch works: Polybius, especially, follows the era of Cato, which is also to be preferred on this account, that it may always be shown with certainty why Cato has reckoned in such or such a manner. A perfectly satisfactory Roman chronology is an impossibility: it was only in the first Punic war that the beginning of the year first remained fixed.

[153] See above, p. 501.

[154] Reprinted in the *Kleine historische und philologische Schriften*. Vol. II. p. 241-256.—G. Ed.

[155] "The benefit of the assignation of land was brought about at a period, when the people was sorely in want of its domestic circumstances being bettered, but too late for it to have been granted." R. H. III, p. 488.

[156] There is evidently, by some mistake, the *Lex Publilia* mentioned instead of the *Lex Valeria Horatia*; as the former merely referred to administrative measures, whilst the latter was still the only valid form for actual laws. See above, p. 321.—G. Ed.

[157] To C. Fabricius.

[158] This dignity must have been abolished before the Punic war, between 471 and 489.

[159] One is not to imagine, that the whole of the phalanx, sixteen thousand men, stood always in one compact mass sixteen files deep; but the Macedonians advanced by smaller divisions of about four hundred and twenty, as is done in most cases even now. These were able to move, and to find spaces to pass through, which was impossible for the great phalanx, when it had closed its ranks. This closing in was the resource of the last moment, and then this mass was impenetrable.

[160] We may see from this, what may be done by determination; as it was such an excellent cavalry, and so vastly superior in numbers.

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Transcriber's Notes

Obvious typographical errors have been silently corrected. Variations in hyphenation and accents have been standardised but all other spelling and punctuation remains unchanged.

On page 535, the heading has been changed from "WAR WITH THE SAMNITES" to "WAR WITH THE SABINES" to match the table of contents and actual content of the section.

*** END OF THE PROJECT GUTENBERG EBOOK NIEBUHR'S
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